United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 116th CONGRESS, SECOND SESSION

Vol. 166 WASHINGTON, THURSDAY, AUGUST 6, 2020 *No. 140*

House of Representatives

The House was not in session today. Its next meeting will be held on Friday, August 7, 2020, at 10 a.m.

Senate

THURSDAY, AUGUST 6, 2020

The Senate met at 9:30 a.m. and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

O God, our shield, we rejoice in the gift of Your salvation.

Look with favor upon our Senators today, delivering them from fear and guiding them around the obstacles that hinder their progress. Lord, unite them for the common good of this great land. Manifest Your purposes to them, making clear Your plans and guiding them with Your love. Give them the wisdom to have confidence in Your power as You inspire them to use their talents as instruments of liberation and healing.

Almighty God, have compassion upon our Nation and world.

We pray in Your Holy Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mr. TILLIS). The Senator from Iowa.

Mr. GRASSLEY. Mr. President, I ask unanimous consent to speak for 1 minute in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

MESKWAKI POWWOW

Mr. GRASSLEY. Mr. President, I want to speak about a Native American tradition in the State of Iowa. It is about the Meskwaki Nation—the only federally recognized Tribe in Iowa.

This year, many important annual community events have been canceled due to the COVID–19 pandemic. Each year, the Meskwaki Powwow serves as an opportunity to bring the Meskwaki Tribe together with fellow Iowans to share, learn, and honor the Meskwakis' unique contributions to our State. This gathering is important to preserving the Meskwakis' heritage and sharing it with the next generation.

In light of the cancellation, the Meskwakis are posting a number of educational resources on their Facebook page, at Meskwaki Nation, to honor the Meskwaki Annual Powwow week. I encourage Iowans to visit and learn.

I yield the floor.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

HEALS ACT

Mr. MCCONNELL. Mr. President, it has been 1 week since Senate Democrats forced the additional Federal benefit for jobless Americans to expire.

Senate Republicans tried everything to prevent the lapse. That Monday, we rolled out a comprehensive proposal for another rescue package that would have kept extra Federal benefits flowing. The Democrats refused to act, so we tried to force the issue.

One of our Senators requested unanimous consent to continue these benefits through the end of the year at a still historically generous level. This plan would have also corrected the bizarre choice facing American workers whom the system was actually paying more to stay home than to resume working, but that wasn't good enough for the Democratic leader, and he objected.

Another Republican Senator then asked unanimous consent to extend Federal support exactly as it had been for 1 more week so that jobless Americans didn't have to bear the cost of the Democrats' leisurely negotiating pace. Once again, the Democratic leader objected.

Finally, Republicans forced a floor vote to demonstrate whether Senators were even willing to debate the issue, whether Senators would even consider extending these benefits, and every single Democrat present voted no.

The week since then has seen plenty of talk and plenty of stalling from the Democratic leaders, who have insisted on handling this themselves—but no significant movement toward progress. They have still kept their ranking members and more reasonable voices locked up. The Speaker and the Democratic leader continue to obstruct the kinds of committee-level discussions that delivered the CARES Act, which are no longer in style. Only they are allowed to speak. Only they among the

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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Democrats are allowed to have an opinion.

Day after day, they have stonewalled the President's team. Day by day, they have tried to invent new euphemisms to create the illusion of progress. Yesterday's contribution from the Speaker was this: There is now a light at the end of the tunnel, but ''how long that tunnel is remains to be seen.'' Well, there are a lot of struggling Americans who could tell Speaker PELOSI exactly how long this tunnel has been and that it will continue to be endless unless the Democrats let us provide more relief to the country.

Their second week of inaction has brought the country to a second cliff in coronavirus aid. Last week, it was the extra Federal benefit for laid-off workers. This week, it is the enormously popular Paycheck Protection Program that has kept millions more Americans off the unemployment rolls in the first place.

The PPP was written and designed in March by Chairman RUBIO and Chairman COLLINS as Main Street America was hurtling toward a cliff. Their innovative policy has saved small businesses on a massive scale. Hundreds of billions of dollars have gone out in emergency loans to more than 600,000 small businesses.

I hear constantly from Kentuckians whose local businesses and whose jobs would not have survived the last several months without this program. From distilleries to medical device suppliers to domestic violence advocates, the PPP has helped community institutions weather the storm and keep more Kentuckians on the payroll.

This emergency program hasn't been perfect, but it has been a huge, huge success. It has remained a success because, back in April, we finally got the Democrats to let us provide another wave of funding after a pointless delay and pointless brinksmanship—you may detect a pattern here—but now many of these businesses are reaching the ends of their ropes. Their PPP money is dwindling, but since the virus remains with us, even where shutdown orders have been lifted, commerce has not roared all the way back.

One survey found that one in four workers who were hired back and kept getting paid because of the PPP has now been warned he might be let go again, and you can bet that number will increase.

Here is how one business owner explained the looming danger to reporters: ''If there isn't another round of stimulus, we'll start cutting past the fat and to the bone, and that's our people, and our people are hard to replace.''

Congress should be strengthening the PPP. Instead, the Democrats have put it in jeopardy. This Saturday, August 8, is the official deadline for anyone who hasn't yet gotten a loan to apply. The door closes the day after tomorrow, and many firms that did receive the assistance are getting nearer to the bottom of the well.

This is why the Senate Republicans' blueprint for another major rescue package would put $190 billion into a second draw of the PPP for the businesses that most need help. The House Democrats' $3 trillion wish list totally left that out. They ignored the PPP. We want to re-up it.

This is just one of the many ways our serious proposal beats the absurd far-left wish list the Democrats' own moderate Members laughed out of the room. While they focus on unrelated liberal demands, like tax cuts for rich people in blue States, we are focused on serious solutions for the problems facing Americans right now.

Yet, instead of getting serious, the Democratic leaders have chosen, instead, to misrepresent and even lie about what is at stake. The Democratic leader's repeated misstatements about the legal protections that the Senate Republicans and the White House want for schools, doctors, nurses, charities, and employers have earned him ''three Pinocchios'' from the Washington Post and a ''Mostly False'' rating from another fact-checker. Let me say that again. The Democratic leader's repeated misstatements about the legal protections the Senate Republicans and the White House want for schools, doctors, nurses, charities, and employers have earned him ''three Pinocchios'' from the Washington Post and a ''Mostly False'' rating from another fact-checker. He doesn't even seem to realize that we modeled our medical malpractice reforms on the COVID-related protections that his fellow Democrats put in place in New York.

So this is where we are—another week that the Speaker of the House and the Democratic leader have spent stonewalling the President's team in talks and holding out for ideological pet projects with no relationship whatsoever to the COVID crisis. Now, as a result, struggling Americans are facing another cliff, with another important form of relief on its last legs.

We face a second straight week of political theater from our Democratic colleagues with no result—except more pain for families, more uncertainty for workers, and more evidence to suggest that perhaps the Democratic leaders were never serious about getting something accomplished in the first place.

All across America, small business owners are hurting and hoping the Democrats get reasonable and allow another major package to move forward. Unemployed Americans need these endless talks to finally bear fruit, and so do school principals and working parents and senior citizens and nurses and doctors and university presidents and students of all ages.

That is why I will not be adjourning the Senate for our August recess today as had been previously scheduled. I have told Republican Senators they will have 24-hours' notice before a vote, but the Senate will be convening on Monday, and I will be right here in Washington. The House has already skipped town, but the Senate will not adjourn for August unless and until the Democrats demonstrate they will never let an agreement materialize.

A lot of Americans' hopes—a lot of American lives—are riding on the Democrats' endless talk. I hope they are not disappointed.

MEASURE PLACED ON THE CALENDAR—S. 4461

Mr. MCCONNELL. Mr. President, I understand there is a bill at the desk due for a second reading.

The PRESIDING OFFICER. The clerk will read the title of the bill for the second time.

The legislative clerk read as follows:

A bill (S. 4461) to provide for a period of continuing appropriations in the event of a lapse in appropriations under the normal appropriations process, and establish procedures and consequences in the event of a failure to enact appropriations.

Mr. MCCONNELL. In order to place the bill on the calendar under the provisions of rule XIV, I object to further proceedings.

The PRESIDING OFFICER. Objection having been heard, the bill will be placed on the calendar.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session to resume consideration of the following nomination, which the clerk will report.

The legislative clerk read the nomination of John Peter Cronan, of New York, to be United States District Judge for the Southern District of New York.

Mr. MCCONNELL. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. SCHUMER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. HYDE-SMITH). Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

CORONAVIRUS

Mr. SCHUMER. Madam President, over the past week and a half, Speaker

PELOSI and I have been engaged in serious discussions and negotiations with the White House over another round of emergency relief for the American people. Our motivation is simple: Americans are crying out for relief.

Cases, hospitalizations, and deaths continue to climb. The snowball of economic impacts continue to roll downhill. This morning, we learned that another 1.2 million Americans filed for unemployment—far more than at any time during the great recession that began in 2008.

Our two parties don't agree on many things. That is no secret. The Trump administration has bungled this crisis from the very beginning and even now is careening from one self-inflicted crisis to the next. Democrats believe that Congress has a moral obligation to step into the breach to help Americans put food on the table and keep a roof over their heads, to save our economy from a deeper recession and longer recovery, and to fight this disease with all the resources and wherewithal a great nation can bring to bear.

After the Senate Republican majority failed in spectacular fashion to put together a bill even its own Members could support, Democrats have engaged in arduous negotiations with the White House trying to impress upon them the gravity of the situation. We have made some progress this week but not enough. The biggest reason is that Trump and his aides and his party in Congress are not truly awake to what is happening in this country.

The Trump administration and Senate Republicans have badly mauled the body politic, the American economy, and American healthcare. We Democrats believe the patient needs a major operation, while Republicans want to apply a bandaid. And we will not let them just pass the bandaid, go home, and still leave America bleeding. That is the difference right now on so many issues.

Our Republican counterparts refuse to acknowledge that Americans who have lost their jobs through no fault of their own might need some assistance with rent. The Republican leader warns of an epidemic of lawsuits that hasn't materialized. What will materialize soon is an epidemic of evictions unless we extend the moratorium and pass rental assistance. Between 19 and 23 million households—one in five rental households—will be at risk of eviction by the end of September unless we do something, unless our Republican colleagues wake up.

Our Republican counterparts refuse to acknowledge that State, local, and Tribal governments, which the Trump administration abandoned in the early days of this crisis, might need Federal support to prevent teachers, firefighters, busdrivers from being laid off and public services from being slashed at the worst possible time. Leader MCCONNELL just states that States should go bankrupt. That is not acceptable.

Our Republican counterparts refuse to acknowledge that running an election in the middle of a pandemic is going to be difficult; that State election systems are going to need more resources; and our post office must be well-staffed and prepared to manage an election that will see more voting by mail than any before.

Yesterday, the Republican leader scoffed at the idea of extended enhanced unemployment benefits because it would mean that some Americans without work would be paid more than our essential workers. Conveniently, the Republican leader did not mention that Democrats have proposed for months that we give our essential workers additional hazard pay and that he and his party continue to block it.

If our friends on the other side are finally worried about how little many of our essential workers are making as we are, I would hope they will put their money where their mouth is and support our proposal to give them hazard pay.

When it comes to elections and education, food assistance for hungry children, and, mind-bogglingly, when it comes to healthcare, testing, tracing, and Medicaid, our Republican friends continue to pinch pennies during a national emergency.

Again, this is the reason our negotiations with the White House have been so difficult. The President and his aides and his party in Congress are not even awake to the crisis in our country. President Trump doesn't have a plan, doesn't engage in negotiations, and still manages to undercut the negotiations at every turn.

There is no leadership from the White House at a time of great crisis. Historians will look back and say this is one of the greatest crises America has felt, and the White House is nowhere to be found. It has never happened before.

Way back in March, after we passed the CARES Act, the Senate Republican majority made a dangerous gamble. Leader MCCONNELL said he was putting the Senate on ''pause'' to see what would happen. Senate Republicans swallowed the President's ridiculous fantasy that the disease would just disappear. Hoping they wouldn't have to do anything, the Republican majority put the Senate on ice for 4 long months—4 months. Only yesterday, Leader MCCONNELL admitted that his delay ''allowed us to learn the coronavirus didn't mysteriously disappear.''

Look, at this late stage, after months of Republican delay, as the country got worse and worse, after Republicans in the Senate failed to generate a proposal that even their own caucus or President could support, Democrats are now in the room—we are the ones in the room trying to negotiate a bill that will meet the country's needs.

While some of my friends on the other side of the aisle are just looking for an outcome, any outcome, so they can vote on something and go home, we are not going to agree to an inadequate bill that doesn't address the challenges in our country.

We are not going to give up. We are going to keep fighting until we achieve the caliber of legislation the American people, during this time of great crisis, need and deserve. We are going to keep working until we get it done.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

CORONAVIRUS

Mr. DURBIN. Madam President, the news this morning about the actions taken by Facebook and Twitter in relation to statements made by President Trump is incredible. We now have a decision by these two major sources of social media to draw down and to remove statements made by the President of the United States on the issue of the national health emergency which we currently face.

They believe—and certainly, on its face, it is clear—that these statements by President Trump misrepresented medical fact in terms of the immunity of children to COVID–19 and the state of play in America when it comes to this pandemic.

The numbers 5 and 25 tell a real story. America has roughly 5 percent of the world's population and, sadly, 25 percent of the COVID infections in the world. How could a great and strong nation like ours have reached this point where this medical crisis has reached a point where many parts of America are facing recordbreaking infection levels?

Part of it has to do with the lack of leadership: a President who has refused to acknowledge experts like Dr. Fauci and others, who, when they say things that disappoint him, are banished from appearing on television with him or making public statements in contradiction of his bizarre point of view. We also know, as well, that the President has downplayed, from the start, the threat of this COVID–19. One of the reasons Facebook and Twitter removed his statements is that the President continues to diminish the severity of this crisis.

We know, as well, that he has failed to tell us the truth and has speculated on medical theories that are just pure quackery. Who can forget the President's famous press conference talking about ingesting disinfectants, his theories about ultraviolet lights, and this hydroxychloroquine fantasy that he continues to enjoy telling the American people? We know, as well, that he has failed to take action when it was needed.

Initially, Governors, including my own in the State of Illinois, were desperate for the equipment that they

needed to protect healthcare workers and to save the lives of those who were infected with the coronavirus. At this moment in time, many people are asking me basic questions on my website. One of the questions from a lady this morning said: Why is it that the United Kingdom has a rapid test and we don't in the United States? I wish I could answer that, but I can't.

The fact is, if you are taking a test to see if you are positive for the coronavirus and the results aren't available for 5 days or even 12 days, they are almost pointless. At that point in time, it is just a data point in history, not something that you could rely on in terms of your own conduct.

How do the Republicans in the Senate explain the nonchalance many of them have displayed when it comes to the challenges we face? This is the worst national health crisis we have faced in 100 years. We know that people are dying. Over 150,000 have died already in this country, and we know that number is likely to grow.

Despite that, when it comes to putting money into testing, Democrats have called for a dramatic investment to make that happen, and the Republicans—just $16 billion for a nation that needs so much more.

When it comes to the economy, I can't understand the position of the Republicans. They refuse to come forward with their own plan to rescue our economy, to help unemployed families, and to put businesses back in business, and they seem to lack a sense of urgency as to the situation we currently face.

The American people take this situation very, very seriously. We have recently done surveys and found that they overwhelmingly believe we still have major challenges ahead, and they start with the coronavirus. Why hasn't this President used the resources of this government to come up with a quick, rapid-results test so that people can learn whether they are positive for coronavirus in a quick fashion? We can't realistically expect to open the economy or open our schools until we have that available across the United States of America. Yet the President doesn't seem to want to take on that responsibility.

For those who believe that we can say to the unemployed ''If you would just work a little harder, you would find a job,'' they ought to face the reality. The reality is we have four unemployed workers in America for every job opening. The reality, as well, is that employers who wish to fill their positions are doing it at a faster pace than at any time. And this notion that if you are receiving an unemployment check you are going to stay home and not go back to work—in the last few months, of the people who have returned to work in America, 70 percent of them were being paid more on unemployment than they were on the jobs that they returned to, but they wanted to get back to work. They believe in work. They know that unemployment is a temporary help and that they have to get back on their own feet as quickly as possible. Plus, there are benefits to working. One of them is health insurance, and many people returned to work to get back to the health insurance that they particularly think is right for their family.

So why would the Republicans be suggesting a reduction in the weekly benefit by some $400? They ought to sit down and talk to the people who are receiving these unemployment checks, as I did last Friday in Chicago. Let them tell their stories. What are they spending these unemployment checks for? Overwhelmingly, the basics of life: food, paying utility bills, rent and mortgage payments.

People aren't salting this money away. Almost half of the unemployed in America have exhausted all of their savings. Some of them have resorted to selling some piece of property they own, some goods or articles that might raise enough money to help them pay their bills. It is a desperate situation for the 30 million Americans who are unemployed. I don't understand why the Republicans don't engage with us in addressing this problem directly.

How can we possibly explain that, in the negotiation over the next rescue package for America, we have the President's Chief of Staff; the Secretary of the Treasury; the Speaker of the House, Democrat NANCY PELOSI; CHUCK SCHUMER, the Democratic leader in the Senate; and two empty chairs? Senator MCCONNELL does not participate in this negotiation, nor does Leader MCCARTHY from the Republicans in the House.

They should be there. That is their job. This notion that they can stand off on the sidelines and just criticize things that are being discussed is not productive. America needs more. America needs a better approach when it comes to this.

Another issue that comes up every time I open any conference call to questioning from an audience is our Postal Service. In July, Postmaster General DeJoy eliminated overtime for postal employees even though parcel volumes were up almost 60 percent in June compared to last year. Usually, about 20 percent of all the work by mail handlers, city carriers, and postal drivers is done in overtime.

In the July memo announcing these operational changes, the new Postmaster acknowledged that employees—listen to this quote—''may see mail left behind or mail on the workroom floor or docks . . . which is not typical.'' Postmaster General DeJoy routinely compares the Postal Service, a 245-year-old government agency that performs a service, to U.S. Steel as an example of the need to adapt to the new market realities. Postmaster DeJoy does not seem to understand that the Postal Service is an essential service provided by the government, not a luxury and certainly not a routine business.

Americans rely on the U.S. Postal Service to deliver needed packages, medications, Social Security checks, and other benefits. Many small businesses would absolutely fold if they couldn't use the U.S. Postal Service and its daily operations, and rural Americans especially know that many for-profit delivery services will not come to their addresses in smalltown America. The Postal Service will be there.

We are less than 100 days from an election where mail-in ballots delivered by the Postal Service will be vital to ensuring people of all political persuasions that they can safely exercise their right to vote while following public health experts' recommendations to reduce the spread of COVID–19.

When contacted to schedule a call with the Postmaster General, his office's response was this: ''Currently, he is not taking calls or meetings as he is focusing on understanding the organization.'' Understanding the organization?

The Heroes Act that passed the House of Representatives 11 weeks ago included $25 billion in emergency funding to cover revenue losses over the next 2 years. I believe in the Postal Service, and I thank the employees. My own mail carrier in my neighborhood back in Springfield, Greg, works late hours, usually delivers our mail at 7 p.m. He tells me he is delivering a lot of packages now. He said: Senator, I just delivered a package of duct tape to one of your neighbors. I want to make sure I deliver your mail every single day, as promised.

He is a dedicated public servant. You can tell it in his manner and his gait and his attitude. He takes his job very, very seriously, and he does it well, as so many do.

We need to support our Postal Service. This is not something we can afford to skimp on at this moment in American history. I hope the Republicans will join us in believing that the Postal Service is worth an investment today, and I hope that we can include that in anything that we move forward.

There is another provision I would hope to include in any rescue package, and it addresses an issue that we all feel intensely. Across America, many communities routinely face the harsh reality of too few doctors or nurses, dentists, or behavioral health providers. It means delayed healthcare in many communities, gaps in accessing lifesaving services, and, ultimately, worse health outcomes, especially in low-income rural and urban areas.

Our Nation is projected to face a shortage of up to 120,000 doctors within the next 10 years and a shortfall of hundreds of thousands of nurses for each of the next several years. If you ask the question, you will find that many hospitals and clinics in smalltown America resort to contract nurses. These are nurses who are available in an emergency, but they are expensive, sometimes charging two or

three times what a nurse is usually paid at the same place—and that was before the coronavirus rampage across our Nation.

This pandemic has magnified these shortages in our system. In my State of Illinois, Governor Pritzker had to call providers out of retirement from other States to deliver surge care while fourth-year medical students at the University of Illinois at Chicago were graduated early so that they could go to work.

Over the past 6 months, America's healthcare workers have faced incredible strains on the frontlines in our fight against the coronavirus. Hundreds of healthcare workers have, tragically, died from COVID–19, tens of thousands have been infected, and countless more endured trauma and burnout from intense patient care.

The crisis has also compounded alarming health disparities for Black and Latinx Americans, who are three times more likely to get sick and die from COVID–19 than White patients. A lack of minority physicians and health professionals of color contributes to this unconscionable inequity. In 2018, only 4 percent of incoming medical students in Illinois were Black men. A recent study found that there are fewer Black male medical students today than there were in 1978. That is 42 years ago.

The simple economics of American medical education pose a barrier to our health workforce needs. We take our most promising students, put them through years of rigorous education and training, license them after a backbreaking residency on one condition: They have to be prepared to assume a student debt of, on average, more than $200,000 to be a doctor in America.

The burden of paying off these loans steers some of our best and brightest minds into higher paying specialties and communities, leaving many areas with gaps and vulnerable to the challenges we are facing today.

To address these health workforce challenges and medical disparities and to bolster surge capacity for future emergencies, I have partnered with Senator MARCO RUBIO of Florida. Together, we have introduced Strengthening America's Health Care Readiness Act, immediately restoring our pipeline of doctors, nurses, and other providers. How do we do it? We provide scholarships and loan repayment funding through the National Health Service Corps and Nurse Corps to those who commit to serve in needy areas.

In 27 States, more than 70 percent of inpatient hospital beds are full. One of the major issues with this capacity strain is the lack of providers to actually staff these health units. Our bill would help to surge tens of thousands of clinicians into these communities. To narrow disparities that I mentioned earlier, our legislation would emphasize recruitment from populations historically underrepresented in healthcare, and our bill would enhance our emergency preparedness by providing loan repayment for clinicians who serve in a reserve capacity—similar to our National Guard—who could be deployed from the private practice to serve in disaster locations.

Representative SCHAKOWSKY—JAN SCHAKOWSKY of Chicago—is our partner in the House. We are pleased to have the support of the American Medical Association, the Association of American Medical Colleges, the National Association of Community Health Centers, and many more.

Senator RUBIO and I are working to include this policy in the next coronavirus relief package. We urge our colleagues to support it.

BELARUS

Madam President, the other day, the Chicago Tribune ran a story with this moving headline:

Her husband jailed, her kids sent away, a 37-year-old ex-teacher is running for president. She's trying to beat ''Europe's last dictator.''

The story went on to explain the courageous effort of Sviatlana Tsikhanouskaya to run for the election on August 9 in Belarus for President, where the country's strongman, Alexander Lukashenko, regularly runs sham elections and usually caps them off by jailing anyone who has the temerity, or nerve, to run against him. In fact, he jailed Sviatlana's husband—a popular online commentator—a few months ago. He disqualified or jailed other candidates and harassed and detained protesters and journalists, including those from Radio Free Europe.

I am not surprised by what I read in the Tribune. You see, 10 years ago, I went to Belarus, just after the equally appalling December 2010 Presidential election in which the same dictator, Lukashenko, jailed the opposition candidates. When I arrived there just after the election, I had a meeting I will never forget. It was with the family members of many of these jailed candidates. They were deeply concerned for the safety of their loved ones who had been rounded up by Lukashenko's KGB—and, yes, he still calls his secret police the KGB.

They spoke movingly—these members of the family—about their admiration for their loved ones who had risked so much just to run in an election and lose against Lukashenko. They spoke of the fear of what would happen at the hands of Lukashenko's henchmen.

I later told their stories on the floor of the Senate. Shortly thereafter, the Senate passed a resolution that I introduced with Senators McCain, Lieberman, and others that said that the announced result of this election in Belarus was neither credible nor sustainable since they jailed the political candidates who opposed Lukashenko. Eventually, all of them were released, but it took time.

Here we go again—witnessing the same brutality and deprivation for the most basic demographic freedoms on the European continent. Clearly, Lukashenko knows he cannot win a fair election, so he turns to the usual autocrats' playbook—harassing and jailing opposition, rigging and discrediting the electoral process, and unleashing brutality on anyone who resisted.

I am here to say to Mr. Lukashenko, no one in the West is fooled. That is why I am pleased to have introduced a resolution with Senators Rubio, Cardin, and others that calls for the release of those disgracefully jailed during the Belarus election period. It calls for basic international election norms to be adhered to, including the allowing of international and local election observers and for the peaceful exercise of basic democratic rights.

I want to thank my colleagues who joined me on this measure. I believe this matter has been passed by live consent. I thank my colleagues for giving me the opportunity to let them know about this violation of democratic values in Belarus.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. GRASSLEY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

HEALS ACT

Mr. GRASSLEY. Madam President, every day we can see that this public health crisis is also an economic crisis. During the shutdowns, some employers shuttered completely, and others were forced to lay off workers. Tens of millions of jobs were saved thanks to the Paycheck Protection Program and other CARES Act provisions, but millions of other Americans lost their jobs and remain unemployed.

While job numbers have improved since the more dire days of March and April, there are still many Americans facing unemployment. Talks are continuing to determine how best to modify and extend a Federal supplement to State unemployment insurance programs, but those talks are going miserably slowly.

These State programs and the extra Federal aid have been important safety nets for folks who have lost their income, but they are only a piece of what we can and should do and what a bill before the U.S. Senate lays out. It is called the HEALS Act, put forth by our leader.

As the leader said yesterday, we know that these programs shouldn't pay someone more to stay home than essential workers are making by working hard. We also know that most people would prefer to have a reliable job and avoid layoff entirely. That is why Republicans, as part of the HEALS Act, have put forward several additional proposals to help already unemployed Americans and prevent others

from getting laid off in the first place. That is why these talks ought to speed up, so we can get some of these other things in place as well as the unemployment issues that we are talking about.

We extend and significantly expand the employee retention tax credit that was included in the CARES Act so that employers can keep more people on the payroll instead of laying them off. It supports businesses that hire more workers as the economy continues to improve.

We expand the work opportunity tax credit to support employers who are helping those currently receiving unemployment insurance find a new, safe, and steady job. Bringing in new employees and expanding the workforce can be complicated, especially in times of a pandemic. Both employers and employees want to maintain safe working environments. It is important for employers to have the resources to keep their workplaces clean and their employees protected. Republicans then proposed a new tax credit for these expenses, like additional cleaning expenses, personal protective gear, and even office reconfigurations that keep employees and customers safe.

The HEALS Act also provides for another round of economic impact payments. An average family of four would receive $3,400 to help cover expenses. These payments will help any family or any individual who has had to deal with layoffs and are in addition to any unemployment benefits they may receive.

These tax provisions serve as a complement to the unemployment insurance program that is being negotiated right now, with no evidence of progress. There ought to be progress. These programs do set up an extra layer of protection for workers and those already out of work.

Together, these proposals provide a responsible approach to help employers reopen businesses so that employees can safely and effectively return to work to continue fueling the Nation's economic recovery.

Why can't we get these important issues resolved for the American people, particularly for the American people who are hurting? And they are hurting because we were faced with a virus pandemic. As a result of the virus pandemic, the government, for the first time in 240 years, shut down the economy of the United States, and then immediately, in the middle of March, after that happened, we made a point of passing the CARES Act to open up the economy, to give people confidence that what the government did that was bad for the economy and for people and hurting people, unemployed—that we were going to take a lead in getting them back. And we are still in this situation. We shouldn't be debating as long as we are to get these issues taken care of.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. SCOTT of Florida). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. SMITH. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Ms. SMITH pertaining to the introduction of S. 4466 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Ms. SMITH. I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

UNANIMOUS CONSENT REQUEST—S. 285

Ms. ERNST. Mr. President, if you are a person just watching politics back home, you probably see a common theme: talking. No matter the topic, people in DC like to talk but not much gets done.

There is one topic that is especially guilty of this, and that is immigration. Democrat or Republican, conservative or liberal, we know our immigration system is broken. That is an easy statement to make, but nothing ever changes, and we need to start getting things done.

In Iowa, we learned this in a very tragic way. On January 31, 2016, the same day as her college graduation, Sarah Root was killed by an illegal immigrant named Eswin Mejia. He was drag racing with a blood alcohol level more than three times the legal limit.

Despite repeated requests by local law enforcement, Immigrations and Customs Enforcement failed to detain Mejia because of a nonsensical policy that allows ICE to use discretion when determining whether to detain a criminal alien charged with a violent offense. He posted bond; he was released; and he disappeared. Still, more than 4 years later, he remains a fugitive, denying Sarah's loved ones any sense of justice for closure.

As a mother, I cannot fathom the grief her family and friends continue to feel after such a devastating loss. Sarah had her whole future ahead of her, but her opportunity to make her mark on the world was tragically cut short. Yet even in death, she touched the lives of others, saving six different individuals through organ donation.

Sadly, what happened to Sarah is not an isolated incident. We have seen this story play out time and again in the more than 4 years since Sarah's killing—innocent lives taken by criminals who enter the United States illegally through a porous border, but nothing ever changes.

Although nothing can bring Sarah back to her family, we can ensure that ICE never makes the same mistake again.

Today, I rise to call upon my Senate colleagues to end this senseless madness, to do something and stop another tragedy like this from happening with a simple and clean fix. I am asking the Senate to join 26 of their colleagues and pass my bill, S. 285, Sarah's Law.

Sarah's Law is simple. It requires that ICE take custody of a person who is in the country illegally if they are charged with a crime that seriously injures another person. It also mandates a better victim notification system that lets victims and their families know what happened to their loved ones.

Sarah's Law is about as commonsense a reform as there is. It recognizes the simple fact that all criminals should be held accountable for their actions and not simply be allowed to slip back into the shadows. If Sarah's Law is passed, people who are in this country illegally who murder another person would be prioritized for deportation if released. Who could be opposed to this?

Here is a bit of good news. President Trump implemented parts of Sarah's Law through an Executive order in 2017, including directing the Secretary of Homeland Security to prioritize the removal of violent criminals. Despite provisions of Sarah's Law being put into place by President Trump's order, it is critical that the Senate codify these enforcement priorities so they cannot be removed by future administrations.

This may seem crazy to those watching at home, but criminal aliens charged with homicide were allowed to escape detention in previous administrations. No family should ever have to endure such a tragedy, especially one that could have been prevented.

I recognize that the immigration debate has become a political football, but justice for victims and their families is not a game. This bill isn't about the southern border or the wall or visa numbers or the larger immigration debate at all. This bill is about changing the system for the better and ensuring that families have the promise of justice. I intend to fulfill that promise to Sarah's loving parents, Michelle Root and Scott Root—the promise that I will do everything I can to ensure that not one more parent has to go through what the Roots have faced—the loss of both their daughter and the promise of justice.

I yield the floor to my colleague from Iowa, Senator GRASSLEY.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, I am here to join my colleague from Iowa, Senator ERNST, in this effort.

We ought to get this unanimous consent request accomplished, and we ought to get this bill passed because it is unjustified that we don't get the cooperation that it takes to keep a person who has committed a felony from the jurisdiction of the courts of the United States.

I joined Senator ERNST in reintroducing Sarah's Law on January 31 of last year, and that was the third anniversary of Sarah Root's death. Sarah was from Council Bluffs, IA, and as my

colleague said, Sarah was tragically killed in Omaha, NE, on the very night of her graduation. An illegal alien struck and killed her while he was driving drunk. He was three times over the legal limit of the amount of alcohol you can have in your blood to be a safe driver.

It is a travesty that the previous administration refused to take Sarah's killer into custody. He was not considered a priority. Can you imagine that? Her killer then disappeared. Obviously, being a smart person who is in violation of the law, he is not going to be seen. So he remains at large. I have said before that Sarah's senseless death is a tragic reminder of the serious improvements that we need in border security and in interior immigration enforcement in our United States of America.

It is outrageous that many innocent Americans have been seriously injured and, in some cases, killed as a result of the actions of criminal illegal aliens.

It is even more outrageous that criminal illegal aliens, like the one who killed Sarah Root, are not subject to mandatory immigration detention. Sarah's Law would amend the Immigration and Nationality Act to require the mandatory detention of an illegal alien who is charged with a crime resulting in the death or serious bodily injury of another person.

This bill is common sense. A lot of times, common sense doesn't prevail in Washington, DC, and the long time to get this very important legislation passed is evidence of the lack of common sense. This bill is long overdue.

I am proud to be a cosponsor of the bill and to support Senator ERNST's unanimous consent request. I gladly thank her for her leadership in this area.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Ms. ERNST. Mr. President, as if in legislative session, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration of S. 285 and that the Senate proceed to its immediate consideration; further, that the bill be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The Senator from New Mexico.

Mr. UDALL. Mr. President, reserving my right to object, this family has suffered a terrible loss and has my sincerest condolences.

Too many families in my home State of New Mexico have lost loved ones to DUIs, and I have made reducing DUIs one of my top priorities. As State attorney general, I worked to increase penalties and get them off the roads.

In the Senate, I am working on a bipartisan basis to use technology to get us to the place at which we can eliminate drunk driving and save thousands of lives per year. The Presiding Officer also knows that we are working very well, in a bipartisan way, to tackle this issue.

I have concerns that this bill uses a tragedy to paint immigrants as more dangerous than other people, which is false by all available data. The immigration detention system is also in need of comprehensive reform, and this bill does nothing to improve our immigration system. Instead, the bill imposes judicially unreviewable detention on immigrants simply charged with certain crimes, not convicted. This is not consistent with due process.

Importantly, this bill has not been subject to committee review. My understanding is that senior members of the Committee on the Judiciary have strong concerns about this bill.

I also believe that we should not be legislating on immigration matters unless and until this body takes action to permanently protect Dreamers and provide them with a path toward citizenship.

I object.

I yield the floor.

The PRESIDING OFFICER. Objection is heard.

The Senator from Iowa.

Ms. ERNST. Mr. President, once again, we are not talking about an overall immigration debate. We are talking about justice for those families who have received none, just as Scott Root and Michelle Root have seen the death of their daughter at the hands of an illegal immigrant and have yet to see justice because that illegal immigrant was allowed to evade justice. So the bill is not about immigration. It is about justice.

I would further argue that, because this was an illegal immigrant and there was no detainer necessary by ICE, the illegal immigrant, who had no strong ties to the community and had operated under a number of assumed names, was able to slip away into the shadows. Most legal immigrants and citizens of the United States have roots somewhere and family somewhere, and they can be tracked and monitored until they are brought to justice. That is not true in this population. Because of that, Sarah Root will never have justice. Her killer will continue to evade authorities because he was, simply, not detained by ICE.

We have the opportunity to correct this, and it is very unfortunate that, today, in the U.S. Senate, we have decided that Michelle Root and Scott Root should not see justice for Sarah, their daughter, and that other families who lose children to illegal immigrants should not have the opportunity for justice.

Certain criminal elements, whether legal or illegal, can slip away, and that is exactly what Eswin Mejia did. He had no ties and was able to slip into the shadows but left a family wondering: How many others will be subjected to the pain and agony that they have gone through since the loss of Sarah? How many other families will go through that?

I yield the floor.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of John Peter Cronan, of New York, to be United States District Judge for the Southern District of New York.

Mitch McConnell, Richard C. Shelby, Lamar Alexander, Pat Roberts, Mike Crapo, Marsha Blackburn, David Perdue, Kevin Cramer, John Cornyn, Shelley Moore Capito, John Thune, Cindy Hyde-Smith, Cory Gardner, Roy Blunt, Martha McSally, John Barrasso, John Boozman.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of John Peter Cronan, of New York, to be United States District Judge for the Southern District of New York, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Tennessee (Mr. ALEXANDER) and the Senator from Tennessee (Mrs. BLACKBURN).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from Illinois (Ms. DUCKWORTH) is necessarily absent.

The PRESIDING OFFICER (Mrs. FISCHER). Are there any other Senators in the Chamber desiring to vote or change their vote?

The yeas and nays resulted—yeas 55, nays 42, as follows:

[Rollcall Vote No. 156 Ex.]

YEAS—55

Barrasso	Grassley	Risch
Blunt	Hawley	Roberts
Boozman	Hoeven	Romney
Braun	Hyde-Smith	Rounds
Burr	Inhofe	Rubio
Capito	Johnson	Sasse
Cassidy	Jones	Scott (FL)
Collins	Kennedy	Scott (SC)
Cornyn	Lankford	Shelby
Cotton	Lee	Sinema
Cramer	Loeffler	Sullivan
Crapo	Manchin	Tester
Cruz	McConnell	Thune
Daines	McSally	Tillis
Enzi	Moran	Toomey
Ernst	Murkowski	Wicker
Fischer	Paul	Young
Gardner	Perdue	
Graham	Portman	

NAYS—42

Baldwin	Cantwell	Cortez Masto
Bennet	Cardin	Durbin
Blumenthal	Carper	Feinstein
Booker	Casey	Gillibrand
Brown	Coons	Harris

Hassan	Merkley	Shaheen
Heinrich	Murphy	Smith
Hirono	Murray	Stabenow
Kaine	Peters	Udall
King	Reed	Van Hollen
Klobuchar	Rosen	Warner
Leahy	Sanders	Warren
Markey	Schatz	Whitehouse
Menendez	Schumer	Wyden

NOT VOTING—3

Alexander	Blackburn	Duckworth

The PRESIDING OFFICER. The yeas are 55, the nays are 42.

The motion is agreed to.

The PRESIDING OFFICER. The Senator from Missouri.

NO TIKTOK ON GOVERNMENT DEVICES ACT

Mr. HAWLEY. Madam President, I would like to make a few brief remarks today about TikTok, an app that has dominated the news in recent weeks and has dominated the internet in recent years.

As most of you know, TikTok is used to create short music videos, and it has grown to be one of the most popular apps in America. More than 80 million Americans now have TikTok on their personal phones. It might be easy just to assume that this app is harmless—music videos, diverting fun—but, let me assure you, the security concerns surrounding TikTok are real and not lighthearted in the least.

TikTok is currently a major security risk, both to our data security and to our national security. ByteDance, which is TikTok's parent corporation, is based in Beijing, and we all know that Chinese corporations and the Chinese Communist Party are, in many ways, the same thing. In fact, China's national intelligence law requires it to be so.

ByteDance, as a Chinese company, is obligated to collaborate with Chinese intelligence services, including by sharing data. In fact, all of the data that TikTok and ByteDance collect—and they collect a lot of data—can be routed at a moment's notice to the Chinese Communist Party.

TikTok is a uniquely intrusive application. The company openly admits that it tracks users' locations, it tracks users' keystroke patterns, it tracks the filenames on users' devices. TikTok essentially claims the right to peer straight through our phones into our lives.

I could go on. TikTok has censored content critical of China's treatment of Uighur Muslims and has violated the Children's Online Privacy Protection Act.

Now, in light of all this, in light of all we know, it is unthinkable to me that we should continue to permit Federal employees—those workers entrusted with sensitive government data—to access this app on their work phones and computers. Not only is it inappropriate; it is irresponsible. This app represents a clear and present security risk at a time when we need to be clear-eyed about the threat from the Chinese Communist Party.

That is why I introduced legislation to remove TikTok from government-owned phones and devices. Now, this is just common sense, and it follows steps that the Pentagon has started to take on its own, but we badly need a uniform standard that can apply across all Federal agencies and government organizations.

Now, over the last few days we have heard a lot about a potential acquisition or sale of TikTok in the United States, but no one can say yet what will come of those talks. Deals fall through all the time, and TikTok is a threat to the security of Federal devices right now. Every day we wait is a day ByteDance can collect more information on and about Americans. Today is the day to take action.

Even if TikTok ends up being sold eventually, it will be the responsibility of this body, the responsibility of all of us, to make sure that no trace of Beijing's influence remains—none at all.

I would like to thank my colleagues for their support, and I particularly want to thank Senator RICK SCOTT, who has been my partner on this effort from the very beginning. It is always a privilege to work with and collaborate with Senator SCOTT, as we have on so many areas, and he has been, as I said, at the forefront of this effort from the very beginning. He is here today, and I would like to yield to him now to make a few remarks.

The PRESIDING OFFICER. The Senator from Florida.

Mr. SCOTT of Florida. Madam President, first I want to thank my colleague from Missouri. We got here at the same time, and both of us saw the dangers of Communist China, the dangers of the Communist Party of China, and the dangers of the General Secretary of the Communist Party, Xi.

We have watched a million Uighurs get put into prison just for their religion. We have watched American companies have their technology stolen. We have watched as American jobs have been stolen. One of the goals that both of us had when we came up here was to stop this.

We had the opportunity last year to visit the protesters in Hong Kong, and we got to hear from them firsthand their concern about what Communist China would be doing to take away their basic rights, rights granted to them in the turnover from Great Britain to China, on paper. But, as we know, the Communist Party and the General Secretary of the Communist Party don't care about any of these things.

We have watched the Communist Party use drones for surveillance. We have watched, as my colleague has said, TikTok become a worldwide phenomenon. It is an opportunity for the Communist Party of China to surveil all of our citizens, whatever of our citizens are using it.

So I want to thank my colleague for his effort in this regard—not just this but all of his efforts to hold Communist China accountable. There is a lot of work to do. As we know, this pandemic was much worse because of the actions of the Communist Party of China.

So this is a commonsense thing to do. We should not have TikTok on Federal Government phones. This is a good first step, but there is a lot more to do to continue to hold Communist China accountable and to make sure we all, as Americans, understand that we are now in a cold war. This is not a cold war that America started. This is a cold war that the Communist Party of China started, led by the General Secretary of the Communist Party, Xi, and we are going to have to continue every day to focus on how we prevent them from surveilling us.

Another thing Americans can do besides making sure you are not using TikTok is making sure you are buying American products and don't buy products from Communist China.

You will do more to hold them accountable. The more we can do things like that, it will change the dynamics, and, hopefully, maybe eventually Communist China will come to their senses and stop being an adversary and eventually be merely a competitor.

I yield back to my colleague from Missouri.

The PRESIDING OFFICER. The Senator from Missouri.

Mr. HAWLEY. Again, I thank Senator SCOTT for his work on this effort, his leadership on this effort, and his leadership across the board when it comes to standing up to Communist China—the Chinese Communist Party.

I also want to thank my friends Senator COTTON, Senator ERNST, Senator KENNEDY, Senator MCSALLY, and all other Senators who have backed this legislation, along with Congressman KEN BUCK, who has led this effort in the House.

Just 2 weeks ago, this legislation passed unanimously out of the Homeland Security and Governmental Affairs Committee. I also want to thank my colleagues there, especially Chairman JOHNSON, who has been a champion on this effort and has worked hard in the last couple of weeks to make sure we can bring this bill to the floor.

I am encouraged by the bipartisan support we have seen in this body to hold the Chinese Communist Party accountable, and that includes, by the way, holding accountable those corporations that would just do China's bidding. If I have anything to say about it, we will not be stopping here.

Madam President, as in legislative session, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 507, S. 3455.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 3455) to prohibit certain individuals from downloading or using TikTok on any device issued by the United States or a government corporation.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Homeland Security and Governmental Affairs, with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''No TikTok on Government Devices Act''.

SEC. 2. PROHIBITION ON THE USE OF TIKTOK.

(a) DEFINITIONS.—In this section—

(1) the term ''covered application'' means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited;

(2) the term ''executive agency'' has the meaning given that term in section 133 of title 41, United States Code; and

(3) the term ''information technology'' has the meaning given that term in section 11101 of title 40, United States Code.

(b) PROHIBITION ON THE USE OF TIKTOK.—

(1) IN GENERAL.—Not later than 60 days after the date of the enactment of this Act, the Director of the Office of Management and Budget, in consultation with the Administrator of General Services, the Director of the Cybersecurity and Infrastructure Security Agency, the Director of National Intelligence, and the Secretary of Defense, and consistent with the information security requirements under subchapter II of chapter 35 of title 44, United States Code, shall develop standards and guidelines for executive agencies requiring the removal of any covered application from information technology.

(2) NATIONAL SECURITY AND RESEARCH EXCEPTIONS.—The standards and guidelines developed under paragraph (1) shall include—

(A) exceptions for law enforcement activities, national security interests and activities, and security researchers; and

(B) for any authorized use of a covered application under an exception, requirements for agencies to develop and document risk mitigation actions for such use.

Mr. HAWLEY. I ask unanimous consent that the committee-reported substitute amendment be agreed to; that the bill, as amended, be considered read and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment in the nature of a substitute was agreed to.

The bill (S. 3455), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

Mr. HAWLEY. I yield the floor.

EXECUTIVE CALENDAR—Continued

The PRESIDING OFFICER. The Senator from Maryland.

CORONAVIRUS

Mr. CARDIN. Madam President, the most recent count of confirmed Americans who have died as a result of COVID–19 is 157,551 souls. In my State of Maryland, that confirmed number is 3,402. Those are the confirmed deaths. We believe the deaths are even higher.

Although the United States represents only 4.3 percent of the world's population, we represent over 26 percent of the COVID–19 infections and almost 23 percent of fatalities. These numbers are continuing to grow every day.

The Trump administration was ill-prepared, inadequate in its response, misleading and inconsistent in its messaging, missing in the international leadership to deal with this global pandemic, and denied the consequences of the pandemic on our own constituents.

Congress took on its responsibility by passing major legislation. The passage of the CARES Act—which was passed in March—was the right response at that time to do what we needed to deal with the pandemic. But we knew by May that COVID–19 would have a much longer impact on our country, would be more difficult to control, and we had to take additional steps in Congress in order to protect our Nation.

The House did the right thing in passing the Heroes Act on May 15. It has been almost 3 months, and the Republican leadership in the Senate has failed to respond. We need to take action that is equivalent to the challenge—this incredible challenge.

This is the worst pandemic we have seen since the 1918 influenza pandemic, over 100 years ago. This is the greatest economic challenge that we have faced since the Great Depression. This requires bold action in order to protect the people of our country.

The help provided by the CARES Act has ended. Unemployment benefits have terminated. State and local governments are out of resources. The small business tools have already been used by the small businesses. American families need additional help. The unemployed need help. State and local governments need help. Our businesses need help. We need to act now and pass a comprehensive package to deal with this pandemic.

What should be included in a comprehensive package? Let me start first with the health challenge. I was pleased that the CARES Act provided for a Marshall Plan to deal with the health pandemic. But we have since learned that this health challenge has been different in different communities. There are disturbing facts about the health disparities on the communities that have been particularly hard-hit. Communities of color have had higher infection rates, higher hospitalization rates, higher deaths. We know that this is in part because of systemic discrimination that we have seen in our system of healthcare. We need to take action.

Let me give you a few things we could do in this next round that could help deal with the disparities in the health impact. The FMAP, the payment for Medicaid by the Federal Government to the States—you see, it has been estimated that 12 million Americans have additionally needed to rely on Medicaid as a result of COVID–19. The States are unable to act because their budgets have been so badly hurt.

There is a risk factor that they will, in fact, even cut back benefits because they don't have the funds to maintain the current benefits before COVID–19, let alone the additional number of people who have been thrown into the need for Medicaid. We need to take steps and improve the FMAP by the Federal Government.

Telehealth has proven to be a very effective tool in dealing with COVID–19. We know that people cannot travel, cannot go to offices as easily as they could, and we have seen a natural desire to do as much telehealth as possible. We have passed legislation to expand the types of services and geography that can use telehealth services. It is very important for rural America, very important for the underserved community, and very important for the transportation-challenged community. We need to make those provisions permanent.

I have introduced two pieces of legislation with my colleagues: the REACH Act, with Senator TIM SCOTT, and the COVID–19 Health Disparities Act, with Senator MENENDEZ. These bills work on fundamental problems of why COVID–19 has had a disparate impact on communities of color.

We want to make sure we have a workforce that represents our communities. We want to make sure there is adequate funding. We want to make sure testing is done, targeted to those communities that are most vulnerable. We want to make sure the vaccine, when it is developed, is fairly shared. We want to make sure we have outreach and education in all communities. These bills deal with those issues.

The health challenge, as it relates to health disparities, needs to be part of the legislation that I hope we will be considering in the very, very near future.

The legislation needs to include an extension of unemployment insurance benefits, which is a lifeline for individuals and our economy. Individuals desperately need these funds in order to take care of basic needs for their families. But our economy needs the influx of these resources in order to keep our economy afloat during COVID–19.

The Heroes Act, which, again, was passed almost 3 months ago, extends the $600-a-week payment through the end of January; whereas the McConnell bill, the HEALS Act, cuts it back to $200 and only through October and sets up a test for local—on the percentage of your previous salary that UI, unemployment insurance, administrators in the States tell us is not administrable, making a roadblock for those even to get the money provided in the HEALS Act, the bill introduced by Senator MCCONNELL.

We need to act boldly. The impact on our economy is here today and is showing no letup. We need to extend the $600, and we need to do it through at least January of next year.

The impact of COVID–19 has been cruel to families meeting their basic obligations, including housing for both

renters and homeowners. The moratorium on eviction and foreclosure has now expired. The protection is not there. It has been estimated that $12.3 million American households are now at risk of eviction.

We need to act now. We need to provide help against eviction and foreclosure, including direct assistance to renters and homeowners. It will not only be, again, the right thing to protect American families during this pandemic, but it will also help deal with stability in the real estate market, making sure we can maintain financial viability for that critically important industry. It is a win-win situation.

But look at the contrast between what was done in the House and what we are asking—the Democrats are asking—to be considered on the Senate floor. The Heroes Act provides $100 billion to assist renters and $75 billion to assist homeowners. The legislation offered by Senator MCCONNELL, the HEALS Act, provides zero assistance.

We need to do what is right for American families and make sure that they have a roof over their heads. That needs to be part of our comprehensive response.

State and local governments are in desperate need. You see, they have balanced budget requirements. They have to balance their budgets, and now they are juggling 2 fiscal years—one for most States that ended on June 30 and another that started on July 1. In both of those fiscal years, they are projecting large deficits.

I can tell you, in Maryland alone, the fiscal year June 30 deficit is now projected to grow by $1 billion.

Here is the challenge. It is up to our State and local governments to fund things such as first responders and public safety and schools and public health and critical, essential services, but they don't have the resources to do it. Without help from the Federal Government, without help in this round, we are going to see additional layoffs and services that are essential in our community not being carried out. The CARES Act helped, but the CARES Act did not deal with the loss of revenue sustained by State and local governments.

Let's just use our common sense here. What do you think our State and local governments are looking at in sales tax revenues with so much consumer activity that has not taken place?

Let's take a look at our income tax revenues by our State and local governments. With income being so severely restricted, those revenues are dramatically reduced. In recent years, we have seen the State and local governments rely more and more on specific taxes, generally with hospitality—dealing with hotels and car rentals and parking. Those revenues are nonexistent.

We need to act. It was for good reason that Governor Hogan, the Republican chair of the National Governors Association for Maryland, and Governor Cuomo, the vice chair—the Democratic Governor from New York—came together with all of our Governors, saying: You need to help us so that we can help our constituents.

By the way, their constituents are our constituents; the same individuals are served by State and local governments and by us in the Congress.

The Heroes Act, once again, provided robust help, recognizing that this pandemic will have an impact not only on the fiscal year that ended June 30 but the fiscal year that began July 1. They provide $900 billion of help to State and local governments, providing for its use for revenue loss and providing direct assistance to our larger subdivisions.

The legislation that was suggested by Senator MCCONNELL on behalf of the Republicans contains zero—no help for State and local governments.

One of the essential functions that State and local governments need to carry out is educating our children in our schools. There are different needs in different communities. Our aid has to be flexible to allow the local school districts to do what is right for their children as it relates to public safety and education. That is our responsibility.

I recently met with educators in Maryland and looked at their challenges. They went over with me the cost challenges that they will face this fall, whether they are doing in-classroom, distant learning, or a hybrid approach. Safely reopening is costly. Following the CDC guidelines to make sure they have the cleaning supplies and protective equipment and infrastructure changes that are necessary to safely have students in the classroom and educators in the classroom; how bus routes need to be changed, which is going to be more expensive; dealing with distant learning and the technology that is needed; the tutoring and special education needs that are going to be more challenging; the training of teachers—all this is going to cost more funds. State and local governments have less funds to operate with.

I particularly want to mention the digital divide. We knew before COVID–19 that if you did not have access to broadband high-speed internet in your household, you were at a disadvantage. It puts your children at a disadvantage because even though they learn at school, learning does not stop at the end of the schoolday, and access to high-speed internet is critically important for students. It is also important for their parents and for everyone to be able to get access to the internet. That has really come to light during COVID–19.

Yes, we have a digital divide. We know that in rural America, it is more difficult to get broadband. We also know about the economic circumstances of many families who can't afford the internet. We need to take steps to remove that digital divide. We need to do that now. We need to do that in this legislation so that our children can get the maximum opportunities this fall through distant learning—those who are going to participate in distant learning. We need to do everything we can so children don't fall further behind because of a lack of access to broadband.

The Heroes Act provides robust funding both for State and local government but also dedicated to education. That is what we need to do and make sure it is part of a robust response.

In November, we will be having our national elections. There is nothing more important to our democracy than protecting the free and fair election process in America so that every eligible voter in our country can cast their ballot safely, that they can do it without fear for their public health, and that we can make sure it is done without influence from foreign actors. That requires additional resources.

I was on the phone with the head of our election board in Maryland, talking about the challenges they have. Governor Hogan has suggested a hybrid approach to the November elections. It is going to cost millions of dollars more to conduct that election. The local governments don't have those funds.

The Heroes Act provides funds to protect the integrity of our election system. It needs to be part of it. We all know there are foreign actors trying to interfere with our elections. We need to take steps to make sure it is protected. Once again, the bill brought to us by the Republicans, the HEALS Act, provides no help. The Heroes Act provides $3.6 billion.

This week, I was on the phone with several of my constituents concerning the U.S. Postal Service. The U.S. Postal Service is mentioned in the Constitution as one of the primary functions of the Federal Government. It is essential. Ask seniors who rely on the Postal Service to get their medicines in a timely way. We now know how important it is for timely conducting our election process. Yet we are seeing delays in service. We are seeing compromises to worker safety. We are seeing unreasonable restrictions imposed by the Postal System, and they have a desperate need for additional resources. There is a lack of overtime, a lack of being able to pick the hours that you make your delivery so that you can get your mail delivered promptly and in the safest way considering the weather and COVID–19. All of that has been compromised because of a lack of resources and, I will also add, the management, the Postmaster.

We need to provide additional help. We knew that before COVID–19, and it is now even more critical post-COVID–19. The Heroes Act provides $25 billion for our Postal System. We need to make sure that is done. Once again, contrast that with the offer that was

made by Senator MCCONNELL, where no money was provided for those services.

Nutrition and the SNAP program are all critically challenged as a result of COVID–19. We need to make sure we make more resources available. The Heroes Act provides more resources to make sure our families receive the nutrition they need.

One of the things is delivering meals. When students are in the classroom, they usually get their food there, and it is a lot more efficient to do it that way. When they are not in the classroom, it has to be delivered, and that is more costly. We have to provide those resources to make sure our children are protected.

We have to deal with childcare. Many families have challenges with childcare. The Heroes Act provides help there.

Essential workers. We talk about essential workers all the time and talk about how we applaud them. They are our heroes. What do we do for them? Well, the House bill deals with hazardous pay to show our appreciation through compensation. That is what we should do. As we pass comprehensive legislation, that should be part of it.

Let me say that we should also do that in regard to our own Federal workforce. We should make sure there are adequate resources to make sure every Federal worker has the protection they need to stay safe from COVID–19. We should do everything we can to encourage telework when telework makes sense for our Federal workforce.

Let me conclude with the area that I probably have spent the most time with, and that is small business. In regard to small business, we have had a bipartisan working group that has made tremendous gains on behalf of tools that help small businesses.

Yes, I do want to acknowledge Senator RUBIO and Senator COLLINS and, on the Democratic side, Senator SHAHEEN. The four of us worked together in the CARES Act to produce the Paycheck Protection Program, which was successful in getting money out quickly to small businesses so they could stay alive.

The problem with the PPP program is that we thought that by now, the economy would be back on track and that small businesses would be able to continue without additional help from the Federal Government. That is not the case.

Secondly, we learned in the PPP program that the underbanked community—the minority small businesses and the smaller small businesses—was left behind when it started because they didn't have the same priority relationship with the lenders as the more sophisticated small businesses had. As a result, they were denied help. In the early stages, their loans were not as large; they didn't get the same type of attention.

As we look at a second round, we need to make sure that it is targeted to those small businesses that need the help and have had revenue loss as a result of COVID–19. That is targeted to the smaller of the small businesses. They are the ones that don't have the same degree of resiliency, and they need attention at this particular moment.

Yes, we need to build up the capacity and make sure that mission lenders—those that are most sensitive to the underserved community—have the capacity and the volume of loans necessary to reach out so that we don't make the same mistake on the next round that was initially made in the PPP program. I think we can get that done.

There has been strong bipartisan talk about these issues. I think we can make progress and get this done.

There is another program that was left out of the HEALS Act by Senator MCCONNELL that I was very disappointed about, and that is the economic injury disaster loan and grant program, the EIDL Program. PPP provided help to small businesses to deal with their payroll expenses and some utility expenses, but it didn't deal with the long-term capital needs of a small business.

We know that they need help in addition to just the paycheck issues. That is where the EIDL Program came in. You can make both an EIDL loan and a PPP loan. Yet we ran out of EIDL funds very early. Instead of issuing loans up to $2 million, the SBA only issued loans up to $150,000. The grant program was $10,000 in cash to small businesses. It doesn't have to be repaid. That is a lifeline for the smaller small businesses. They are the ones that use the EIDL Program. They are the smaller of the small businesses. The SBA imposed a $1,000-per-employee cap, so they didn't get the full amount of the grant.

We have to make sure that we provide additional resources to deal with these issues so that the EIDL Program can provide long-term financing to small businesses. Coupled with the PPP program, we can keep small businesses alive, because we all know they are the growth engine of America. They are the heart of our economy. We need to make sure that is part of the next legislation.

COVID–19 is a once-in-a-lifetime challenge for us. Pandemics happen once in a hundred years. This impact on our economy is similar to the Great Depression. Let's rise to the challenge. Let's pass a bipartisan—I would say a nonpartisan—bold bill to deal with the challenges that are before us, and let's stay here and get it done now.

I yield the floor.

The PRESIDING OFFICER. The Senator from Georgia.

COMMEMORATING THE FEDERAL LAW ENFORCEMENT TRAINING CENTER'S 50TH ANNIVERSARY

Mrs. LOEFFLER. Madam President, I come to the floor today to ask the Senate to pass a resolution honoring the 50th anniversary of the Federal Law Enforcement Training Center—known as FLETC—that is headquartered in my home State of Georgia. This is the center that trains Federal law enforcement officers whom President Trump has directed to help restore law and order in communities across our country faced with dramatic increases in violence.

As part of Operation Legend, the FBI, ATF, DEA, U.S. Marshals Service, and Homeland Security have been deployed to Kansas City, Chicago, Albuquerque, and Detroit to reduce alarming and rising levels of violent crime across America. Sadly, our brave women and men of law enforcement are under attack. Rioters have physically assaulted law enforcement—throwing rocks at them and more, causing countless injuries.

It is clear that the recent surge in violence has been driven in part by a lack of leadership from leftwing politicians who refuse to prosecute crime and who endorse defunding the police. They are clearly intent on politicizing and demonizing our law enforcement.

Today, I am asking the Senate to recognize the critical centers that train these dedicated officers. For half a century, FLETC has trained the next generation of highly qualified law enforcement. Headquartered at the former Glynco Naval Air Station in Georgia, FLETC has been instrumental in getting violent criminals off the streets and protecting our communities for five decades.

Every year, FLETC trains nearly 70,000 officers from 95 Federal law enforcement agencies, as well as State, local, and Tribal law enforcement agencies. This includes agents from FBI, DEA, ATF, Customs and Border Protection agencies, and others. It includes the Secret Service, Park Police, and U.S. Capitol police officers who keep all of us here safe every day.

In Georgia, FLETC is a cornerstone of our coastal community where agents train in a mock town complete with banks, shops, and hotels to mimic real-world scenarios. There are other programs in cyber terrorism, active shooter threats, and financial forensics.

FLETC Director Thomas Walters recently said: ''FLETC is the only institution in the U.S. that has the capability and capacity to train the new Federal officers that will replace thousands of officers that retire from Federal law enforcement in a typical year.''

At a time when law enforcement is under more scrutiny, more pressure than ever, it is important that we take this opportunity to recognize the hard work that goes into training and preparing our Federal law enforcement officers, particularly in my home State of Georgia.

Madam President, as in legislative session, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 668, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 668) commemorating the Federal Law Enforcement Training Center's 50th Anniversary.

There being no objection, the Senate proceeded to consider the resolution.

Mrs. LOEFFLER. I ask unanimous consent that the resolution be agreed to, that the preamble be agreed to, and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The resolution (S. Res. 668) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

EXECUTIVE CALENDAR—Continued

Mrs. LOEFFLER. Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. BROWN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. YOUNG). Without objection, it is so ordered.

MULTIEMPLOYER PENSION SYSTEM

Mr. BROWN. Mr. President, the public health crisis and the economic crisis that are happening right now are not happening in a vacuum.

All the damage caused by the coronavirus and the President's failures is layered on top of all the existing problems of our country, including the crisis we have been facing for years in the multiemployer pension system.

More than a million American workers and retirees were already in danger of losing the retirement security that they earned. These are people who did everything right. They spent years working on assembly lines, bagging groceries, driving trucks, working hard to keep this economy going and to provide for their families. Money came out of every single one of their paychecks to pay into a pension system.

People in Washington don't understand the collective bargaining process. They either don't understand it or don't care to understand it. People give up dollars today at the bargaining table for the promise of a secure retirement, with healthcare and a pension.

This crisis affects thousands of Ohioans and people in Indiana, the Presiding Officer's State. It affects the massive Central States Pension Plan, the Bricklayers Local 7, the Ironworkers Local 17, the Ohio Southwest Carpenters Pension Plan, the Bakers and Confectioners Pension Plan, and on and on and on.

It touches every single State in the country. We are talking about our entire multiemployer pension system. If it collapses, it will not just be retirees who feel the pain. Current workers will be stuck paying into pensions they will never receive. Small businesses will be left drowning in pension liability they can't afford. Small businesses that have been in the family for generations could face bankruptcy.

I have seen those companies: Spangler Candy in Williams County, OH; Smucker's Preserves in Orrville, OH. We have seen these companies that have been family companies paying into this pension plan for generations, and workers lose jobs if businesses close up shop.

The effect will ripple through the entire economy. It is not only union businesses that participate in these plans that will close their doors. It would devastate small communities across the industrial heartland. Small businesses in these communities already are hurt because of this virus.

These pension plans were already in danger prior to February or March, or even April or May, when the President decided that this was a crisis. Now the economic emergency we are in has put them in a worse position.

The House did its part repeatedly. First, they passed the Butch Lewis Act. More than 2 months ago, they passed the Heroes Act, which includes a pension solution.

But under Senator MCCONNELL, the Senate has done nothing. It is time for us to do our part.

Leader MCCONNELL has refused to do anything on pensions. We could have fixed this last year. He chose not to. He didn't address it in the HEALS Act that he introduced last week, and he didn't address it in the CARES Act that we passed back in March.

There are reports the President, who has not been a friend of workers—putting it mildly—was fine with including a multiemployer pension fix in the CARES Act if Leader MCCONNELL wanted it. But Leader MCCONNELL stopped it, and the President wasn't willing to step in. He is supposed to lead the country, but he has outsourced his decision making to Senator MCCONNELL.

The Senate must act. If the entire multiemployer pension system collapses, it will make our economic crisis worse. We knew before this pandemic that the pension system could collapse. It is only more likely to fail now. If that happens, we know who gets hurt the most. It is not the Wall Street banks that squandered workers' money. It is small businesses. It is workers. It is employees who did everything right. Their lives and livelihoods will be devastated if Congress doesn't do our job.

Workers and retirees in Ohio and around the country have rallied in the name of Butch Lewis, a great Ohioan who helped lead this fight and passed away far too soon, fighting for his fellow workers. His wife, Rita Lewis, has continued his fight and has become a leader and an inspiration to so many of us.

Rita once told me that retirees and workers struggling with this crisis feel like they are invisible. These Americans aren't invisible to me. They shouldn't be invisible to this body.

They aren't invisible to Speaker PELOSI or Leader SCHUMER. They are not invisible to Senator SMITH, who is from Minnesota and has done yeoman's work on this; or Senator PETERS from Michigan, who has spoken out and fought for better laws; or Chairman NEAL in the House; or Chairman SCOTT from Virginia in the House; and many of my colleagues who worked for years now trying to find a bipartisan solution.

We are not giving up. As we know, it comes back to the dignity of work. When work has dignity, we honor the retirement security people earn. When you love this country, you fight for the people who make it work.

I urge my colleagues in this body—colleagues with healthcare and retirement plans paid for by taxpayers—to think about these retired workers and the stress—on top of the stress of the coronavirus—they are facing.

Join us. Let's pass a solution that honors their work, that honors the dignity of work, and that keeps our promise.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mrs. HYDE-SMITH. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. Under the previous order, all postcloture time has expired.

The question is, Will the Senate advise and consent to the Cronan nomination?

Mrs. HYDE-SMITH. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Tennessee (Mr. ALEXANDER) and the Senator from Tennessee (Mrs. BLACKBURN).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from Illinois (Ms. DUCKWORTH) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote or to change their vote?

The result was announced—yeas 55, nays 42, as follows:

[Rollcall Vote No. 157 Ex.]

YEAS—55

Barrasso	Grassley	Risch
Blunt	Hawley	Roberts
Boozman	Hoeven	Romney
Braun	Hyde-Smith	Rounds
Burr	Inhofe	Rubio
Capito	Johnson	Sasse
Cassidy	Jones	Scott (FL)
Collins	Kennedy	Scott (SC)
Cornyn	Lankford	Shelby
Cotton	Lee	Sinema
Cramer	Loeffler	Sullivan
Crapo	Manchin	Tester
Cruz	McConnell	Thune
Daines	McSally	Tillis
Enzi	Moran	Toomey
Ernst	Murkowski	Wicker
Fischer	Paul	Young
Gardner	Perdue	
Graham	Portman	

NAYS—42

Baldwin	Harris	Reed
Bennet	Hassan	Rosen
Blumenthal	Heinrich	Sanders
Booker	Hirono	Schatz
Brown	Kaine	Schumer
Cantwell	King	Shaheen
Cardin	Klobuchar	Smith
Carper	Leahy	Stabenow
Casey	Markey	Udall
Coons	Menendez	Van Hollen
Cortez Masto	Merkley	Warner
Durbin	Murphy	Warren
Feinstein	Murray	Whitehouse
Gillibrand	Peters	Wyden

NOT VOTING—3

Alexander	Blackburn	Duckworth

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

The Senator from Alaska.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. SULLIVAN. Mr. President, I ask unanimous consent that the Senate proceed to legislative session for a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—S. 494

Mr. SULLIVAN. Mr. President, I wanted to come down and speak today about a very important sector of the economy for Alaska and for America—that is, our fishermen—and some important, very bipartisan legislation that I am trying to move right now that I am hopeful everybody can agree to. The Senate has agreed to it previously, and I am really hopeful that we can do it again right now.

I talk about the great State of Alaska being the superpower of seafood. Over 60 percent of all seafood—commercial, recreational—harvested in America comes from my great State. Sixty percent. So this is a vital industry in my State but also a vital industry in the country.

As my colleagues know, our fishermen are some of the hardest working Americans. They are also some of the Americans who have been hit the hardest by this pandemic. The Saltonstall-Kennedy Act helps these hard-working men and women across the country by providing consistent funding for fisheries research and development and related programs, grant programs—very popular.

Decades ago, Congress authorized a group of experts from all around the country—Alaska, the east coast—and vessel owners, fishermen, and distributors to advise the Secretary of Commerce on how to distribute these funds. It makes sense. They are the closest to the action. Over time, unfortunately, this group was disbanded. Nobody thought that was a good idea—abolishing this advisory committee.

Then you had the National Marine Fisheries essentially determine how all of these Saltonstall-Kennedy funds would be distributed to fishermen. So, with all due respect to the DC bureaucrats, they are the ones making the decisions.

So we have a bill—my bill—which, by the way, passed the Senate previously, unanimously, that members in the fishing community from all over the country be chosen to determine how to get these funds out to our fishermen, whether in New York or North Carolina or Alaska, and everybody thinks that makes sense.

Our fishermen need support right now; there is no doubt. They are being hammered by this pandemic. So the legislation that I am hopefully going to be able to pass in the Senate here in a couple of minutes has cosponsors across a broad political spectrum in the Senate: Senators CANTWELL, MARKEY, WARREN, MURKOWSKI, and myself.

I am aware of no policy objections to this important piece of legislation. To the contrary, it has already passed the Senate unanimously. I am, however, aware of an unrelated dispute between the Democratic leader and some of my Senate colleagues from the east coast regarding an entirely different bill. I respect disagreements over regional issues, and I certainly hope my colleagues can work them out, but this issue is thousands of miles away from Alaska and my constituents, the people I represent, who are hurting.

Moreover, the bill I am getting ready to introduce, S. 494, helps all fishermen nationwide—New York, North Carolina, Alaska.

The American Fisheries Advisory Committee Act, S. 494, should not be collateral damage or hostage taken in an unrelated fight. If my colleagues want to try and work together, I will certainly help them work out their differences, but I don't think it is constructive to hold hostage this important legislation for a fight that is thousands of miles away from Alaska.

Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 179, S. 494; that the bill be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

Mrs. GILLIBRAND. Objection.

The PRESIDING OFFICER. Objection is heard.

The Senator from New York.

Mrs. GILLIBRAND. Mr. President, reserving the right to object, I ask unanimous consent that the request be modified so that in addition to the request of the Senator from Alaska, the Senate proceed to the immediate consideration of Calendar No. 317, S. 908, the Fluke Fairness Act.

I request that the bill be read a third time and passed and that motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection to the modification?

Mr. TILLIS. Reserving the right to object.

The PRESIDING OFFICER. The Senator from North Carolina.

Mr. TILLIS. Mr. President, I have been in the Senate now for 5½ years, and I don't consider somebody a better friend, an advocate for his State than Senator SULLIVAN. I have actually spent a lot of time—even though Senator GILLIBRAND and I have differences in certain situations, we find ways to work together.

What I have before me, though, is something that is very important for people to understand. I agree with everything Senator SULLIVAN said. His measure, I suspect, has broad support, probably support on its own. But what we have here is the addition by the motion of Senator GILLIBRAND that affects my State, North Carolina. It has to do with reallocation of quotas. It would particularly affect the flounder industry in North Carolina.

I hope that we are able to work out our differences. I hope that we can get Senator SULLIVAN's bill passed. But because it has been amended to include something that hurts my fisheries in North Carolina and my commercial fishermen at the worst possible time, when they are suffering like everybody else from the COVID–19 crisis and all the challenges that that produces, I do object.

The PRESIDING OFFICER. Objection is heard.

Is there objection to the original request?

Mrs. GILLIBRAND. I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Alaska.

Mr. SULLIVAN. Mr. President, while I am disappointed, these are two good friends of mine on the Senate floor right now, whom I have worked with on numerous pieces of legislation. They both represent their States very well, but this is a missed opportunity for the fishermen of America—America, not

just Alaska but for the whole country, New York, North Carolina. And I am certainly hopeful that my good friend from New York and North Carolina can work this out.

I will certainly lend my efforts, my staff's efforts, because we shouldn't have a regional fight blocking what will benefit everybody, particularly when fishermen right now are really hurting. They are one of the sectors of the U.S. economy that have been hammered by this pandemic. This kind of legislation, although it is not going to solve all their problems, shows that we are working for them.

We will live to fight another day here soon. I hope that we are able to pass my legislation, commonsense legislation—the American Fisheries Advisory Committee Act—which will help every fisherman in America.

I yield the floor.

The PRESIDING OFFICER. The Senator from Hawaii.

CORONAVIRUS

Ms. HIRONO. Mr. President, the COVID–19 pandemic has revealed the people doing the truly essential work in our country, and it isn't the Fortune 500 CEO, hedge fund manager, or investment banker. It is the home healthcare worker providing essential care to homebound seniors or the disabled. It is the delivery truckdriver working a 12-hour shift, bringing food and medicine and other critical supplies to people who need it. It is a grocery store clerk, working a checkout line or stocking shelves to keep up with the skyrocketing demand. It is the migrant agricultural worker picking berries or standing on an assembly line at a meatpacking plant. It is the housekeeper or custodian working longer hours to clean our hotels, offices, and other public places. It is the childcare worker coming in every day to care for other children, while being unable to afford care for their own. And it is the busdriver who, despite operating on a tightly enclosed space, transports hundreds of people to work every day.

These people, and others like them doing essential work, are literally risking their lives every day for the rest of us, and they are earning much deserved recognition during this pandemic. But let me be clear. These workers have always been essential, even if our economic system has not valued the jobs they do or treated them with the respect they deserve.

Valuing and respecting essential workers is about more than calling them heroes when that is the popular thing to do. It is about recognizing and calling out how these workers have been treated in our economy. And it is about doing something to fix it.

For too long, people doing the work now deemed essential during the pandemic have been forced to work for low wages that are either at or just above minimum wage, have jobs that offer no paid family or medical leave, have little access to affordable childcare, have jobs that offer no employer-sponsored healthcare coverage, and have been forced to work in dangerous conditions.

Coping with these inequities in normal times was challenging enough for our essential workers, but the pandemic, exacerbated by Donald Trump's failure in leadership, is creating new problems, and it is making existing problems worse. The administration's failure to implement emergency safety standards is creating unsafe workplaces for essential workers.

Meanwhile, it is pushing to provide businesses immunity from coronavirus-related lawsuits. If they are successful, employers would have even less incentive to provide safe workplaces for employees or to protect customers and consumers.

Its failure to fully and effectively use the Defense Production Act means the most vulnerable workers continue to face shortages of personal protective equipment—putting them at greater risk for contacting the coronavirus. And its failure to implement a national testing and contact tracing program means that essential workers face testing delays and may never be notified if a coworker has tested positive for COVID–19.

As Donald Trump refuses to act responsibly to keep our essential workers safe, this has fallen to States, local governments, and the private sector.

In Hawaii, we are fortunate to have responsive State and county governments, strong unions, and one of the lowest uninsured rates in the country, thanks to Hawaii's Prepaid Healthcare Act. These advantages, however, have not shielded Hawaii's essential workers from the dangers of the pandemic.

Let me share a few of their stories. A few weeks ago, I spoke to a group of transit workers who operate The Bus in Honolulu. A simple shower curtain separates the drivers from passengers boarding their buses. Many riders do not wear masks, putting the driver and other passengers at risk for contracting the virus.

Drivers are also facing threats and physical violence when they ask riders to put on a mask. One passenger even spat upon a busdriver who asked the person to observe social distancing.

Many of the busdrivers live in multigenerational families. They spoke about the fear that they will contract the virus on the job and bring it home. Three bus operators have already tested positive, including one just this week.

Transit workers in other industries have also experienced challenges related to coronavirus safety. A group of Hawaii flight attendants I recently spoke with are unable to be tested regularly due to supply shortages, despite showing up to work every day. They also spoke about their daily challenges convincing passengers to wear masks.

Essential workers are also providing childcare during this pandemic so that other essential workers can continue to do their job. Katie, a nanny on Oahu, whom I heard from recently, has provided childcare for essential workers and military families on Oahu during the pandemic. Katie lives with her mom, who has been battling stage IV cancer for nearly 3 years. She is rightly concerned about the possibility she might bring this virus home with her from work.

In April, Katie received a scare when one of the families she worked with told her they might have been exposed. Katie is like so many essential workers in Hawaii and across the country who live with uncertainty about their jobs and families every day.

More firefighters, grocery store workers, bank tellers, postal workers, community health center employees, and paramedics tested positive for COVID–19 this week. They certainly will not be the last.

Something as simple as showing up to work every day shouldn't be an act of bravery, but that is exactly what we are expecting from our essential workers every day. If they can show up and do their job, Congress can certainly step up and do its job.

It is why Senate Democrats have been fighting so hard to pass the Heroes Act—to bring this to the floor, to debate the Heroes Act. The Heroes Act includes a number of strong provisions that will support essential workers during this pandemic. It establishes a $200 billion fund to provide up to $10,000 of hazard pay to each essential worker. It requires the Occupational Safety and Health Administration to issue an emergency temporary standard within 7 days of enactment. It prevents employers from retaliating against workers who report workplace safety issues. It adds another $75 billion for COVID–19 testing, contact tracing, and isolation measures. It also provides every American access to free treatment for COVID–19. It provides access to free and affordable childcare options for essential workers who are expected to show up to their jobs regardless of whether they have someone to look after their children, and it provides permanent paid sick and family leave so that people don't have to choose between their jobs and the health of their families.

The Heroes Act is a bold, worker- and family-centric bill. We should have passed it months ago. Instead, the bill has been sitting on the majority leader's desk for almost 3 months now. He called it ''taking a pause.''

The people suffering in our country didn't have the luxury of taking a pause 3 months ago, and they certainly don't have the luxury to take a pause now. As Senators, we are able to telework. We can attend hearings remotely. We can stay socially distant. Maybe this is one reason some Republican Senators don't have sufficient empathy or the sense of urgency to pass the next COVID relief bill that would actually help the busdriver who

can't drive a bus from home, the UPS driver who can't deliver packages from home, the healthcare aide who can't administer medications to seniors from home, the agriculture worker who can't pick coffee beans from home, and the postal worker who can't deliver the mail from home.

Millions of people are suffering in our country today. They should be able to count on the Senate to step up and take action to help them. At this very moment, negotiators are deciding whom we will help and who will be left behind. Democrats are fighting to protect essential workers and help the unemployed.

Republicans are fighting to protect businesses from their own negligence and allow corporate executives—corporate executives—to write off their business lunches. These very different priorities reflect very different values and point out what is at stake in these negotiations. Protecting and assisting essential workers is a value. It isn't enough to simply tell them ''thank you very much'' and call them heroes. Actions speak louder than words. It is time for us to act. It is long past time for us to act.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. LANKFORD. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—S. RES. 458

Mr. LANKFORD. Mr. President, thousands of radical Islamists rallied on Friday in Northwestern Pakistan in support of a man who earlier this week walked into a courtroom in the city of Peshawar and gunned down a U.S. citizen on trial for blasphemy. That is how the New York Times started its article on this issue last week. The American, Tahir Naseem, died of his wounds before he could be taken to the hospital while the gunman was taken into custody.

The U.S. State Department said Naseem was standing trial after being lured to Pakistan from his home in Illinois. He was entrapped by the country's controversial blasphemy law, which international rights groups have sought to have repealed. The blasphemy law calls for the death penalty for anyone found guilty of insulting Islam, but, in Pakistan, the mere allegation of blasphemy can cause mobs to riot and vigilantes to kill those who have been accused. Pakistani officials said Naseem was charged with blasphemy after he declared himself to be Islam's prophet. That was the accusation that was laid against him.

At the rally in Peshawar, which was in support of the person who murdered the American citizen, the demonstrators carried signs that praised the murderer for the killing and called for his immediate release from jail. They said he killed Naseem because the government was too slow in prosecuting blasphemy cases.

Last December—8 months ago—I filed a resolution to speak with a unified voice on what I considered to be a nonpartisan issue—a simple statement from this Congress condemning blasphemy laws across the world wherever they exist. We are a nation that stands for the ability of every individual to choose any faith, to change one's faith, or for one to have no faith at all. That is a basic human right. Yet, according to the U.S. Commission on International Religious Freedom, 84 countries—more than one-third of the world's countries—have a blasphemy law on the books, including in Pakistan, where an American citizen was murdered last week under an accusation of blasphemy.

This resolution that I filed 8 months ago with the Foreign Affairs Committee has already moved in the House. The House Foreign Affairs Committee worked through the process of this resolution in March of this year and passed it unanimously. It was sponsored by Democrat JAMIE RASKIN and had the support of multiple Democrats on the Foreign Affairs Committee. It was overwhelmingly moved while this resolution—a mere eight pages—has sat, unmoved, for 8 months.

The Vice Chair of the U.S. Commission on International Religious Freedom, who was appointed by Speaker PELOSI, has said that USCIRF—that is this organization—has noted countless times that Pakistan's blasphemy law inflames interreligious tensions and too often leads to violence. He urges the State Department to enter into a binding agreement with the Pakistani Government that includes the repeal of blasphemy provisions in the Pakistan Penal Code. I could not agree more.

The Trump administration has spoken out on this, and the House of Representatives has spoken out on this. The U.S. Commission on International Religious Freedom, a nonpartisan group, has spoken out on this. We in the Senate should also speak out on it, and the time to speak out on it is when we have just had an American citizen murdered overseas because of these laws. It is prime time to move this. This is something that, I believe, should be passed by unanimous consent. How could we oppose the movement of something like this?

Now, I have heard that, possibly, we should slow this whole thing down because resolutions like this should have a fulsome committee process. They should be heard and marked up and read and reread, and 8 months is not enough time to review them. The problem with that is that, last week, a Democratic resolution on elections in Belarus was filed. It was never heard by the Committee on Foreign Relations here in the Senate. Yet it was discharged, placed on the hotline yesterday morning, and cleared last night.

So, for Democratic bills, they don't have to go through the committee process, apparently. They can just move through on their own because the Republicans have not opposed those. The Republicans take the time to read these on their own—to go through the resolutions and make decisions on them. That resolution had a majority of Democratic sponsors, but it also had Republican sponsors.

This resolution is sponsored by CHRIS COONS and me. We also consider it to be a nonpartisan issue. Something that has sat in the committee for 8 months, waiting, surely can move when something that was filed last week and never heard by the Committee on Foreign Relations could move on the hotline in a single day.

So I bring this resolution because I think we should speak out on this as the House has already spoken out on it, as the State Department has already spoken out on it, as the Trump administration has already spoken out on it, and as USCIRF has already spoken out on it. Why wouldn't 100 Senators speak out on this blasphemy resolution today?

Mr. President, I ask unanimous consent that the Committee on Foreign Relations be discharged from further consideration and that the Senate now proceed to S. Res. 458. I further ask the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

The Senator from New Jersey.

Mr. MENENDEZ. Mr. President, in reserving the right to object, first of all, I note that the customary path for bills and resolutions is for them to be considered by their committees of jurisdiction, marked up through regular process, and reported out to the Senate floor.

I understand that many Members of this body have noble causes and good ideas that fall under the jurisdiction of the Senate Committee on Foreign Relations. Unfortunately, the chairman has only held one real legislative markup this entire year—in May. That one meeting, which included multiple pieces of substantive, bipartisan efforts, was ended prematurely before many pieces of vital legislation could be acted upon and without having a vote on even a single amendment. While the minority was strongly supportive of more legislative activity, the chairman pulled down another legislative markup, without any explanation, in the first week of July and yet another one, just this week, without any explanation.

Regardless of those facts, I can tell you that I don't believe the majority, which has the convening power—and, lately, when it does list a committee

hearing or a markup unilaterally decides to do so—has ever sought committee activity for Senator LANKFORD's resolution. This is the first time—and I would assume for others—that many are seeing it.

He mentions the 8 months. I am sure that he could speak to the chairman of the committee by virtue of his being of the majority party, the Republican Party, but the chairman hasn't brought his resolution forward. If he is chagrined that for 8 months it has been languishing in the committee, it is because Chairman RISCH has neither asked for it to be included when there was a business markup nor asked for it now.

It is true that, on occasion, a resolution gets released. I did one for ROB PORTMAN regarding Otto Warmbier—it was the anniversary of the tragic moment—and it was released to the Senate floor. Yet there are many other critically important legislative items that have been marked up and are ready for action on the floor.

Last December, the Defending American Security from Kremlin Aggression Act, or what we know as DASKA, passed out of the Committee on Foreign Relations, through regular order, with a strong bipartisan vote. It has been pending on the floor for nearly 8 months. Over the course of that time, Russian aggression has manifested itself in Syria, Libya, and on the streets of Europe, where opponents of the Putin regime have been assassinated.

This past week, all Senators were briefed on the broader question of foreign interference in our elections, and we know it is a threat and that it is real and growing. If the Senate should dedicate any time to a foreign policy issue, it seems to me that this should be it. Our election is in 88 days. Yet the Senate trudges along, blind to the threat before our very eyes.

DASKA should be the business of the Senate floor, and it should be passed. Similarly, the Senate Committee on Foreign Relations passed a Saudi Arabia bill more than a year ago, and it has been waiting for floor action. I could go on and on.

Now, I don't want to undermine the importance of the issue that Senator LANKFORD is trying to address. Around the world, we see autocratic rulers imposing blasphemy laws as a way of targeting the freedom of religion and speech of those who enjoy that or should enjoy that freedom of religion and speech. His resolution rightly condemns blasphemy laws for violating international human rights standards, and it raises serious concerns.

Yet I would just say that we need to have a moment of self-reflection. This resolution doesn't say anything about this administration's disparaging attitudes and comments about certain religions and ethnicities. How can we have this conversation without addressing President Trump's reported expression of approval of concentration camps for Uighur Muslims in Xinjiang?

Under the leadership of the President and Secretary Pompeo, the administration has downplayed human rights abuses in countries from North Korea to the Persian Gulf; has coddled a dictator who ordered the horrific murder of journalist and U.S. resident Jamal Khashoggi; verbally attacked the principle of freedom of the press; instituted the Muslim ban that sent chills around the world about the U.S. commitment to freedom of religion; and slashed the admission of refugees, many of whom were persecuted religious minorities. Certainly, the Committee on Foreign Relations in the Senate should be saying something about that record as well.

As a matter of fact, between fiscal year 2017 and 2018, the administration reduced the admission to the United States of Christian refugees by 36 percent and of Muslim refugees by 85 percent. We should also be discussing how the U.S. Envoy to the Organization of Islamic Cooperation has been left vacant for over 3 years.

In closing, I believe addressing blasphemy laws and standing up for the freedom of religion and the protection of religious minorities is urgent and warrants much further attention from both the Committee on Foreign Relations and of this body as a whole.

I urge Senator LANKFORD to work with Chairman RISCH to schedule a legislative markup so that this resolution, as well as other important initiatives, can be considered under regular order because, when his resolution or others are before it, there is an opportunity to amend them, to augment them, and to include other issues, even within the context of the issue of religious freedom.

That is not provided here, and for those reasons I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Oklahoma.

Mr. LANKFORD. Madam President, I want to ask my colleague if there is a difference between this resolution and the resolution on elections in Belarus that was filed last week, was discharged, and then passed on the hotline yesterday.

Obviously there are lots of other issues about elections. There has been a lot of conversation that we have had about elections worldwide and about security of elections, but that particular resolution wasn't held up to go through the Foreign Relations Committee to discuss international elections more. It was discharged, and it was sent to the floor on a hotline, and Republicans and Democrats alike agreed on that resolution and passed it through.

Is there a substantive difference between this resolution and that one?

Mr. MENENDEZ. The issues that were expressed in Senator DURBIN's resolution had been issues before the committee on the issue of Belarus. As a matter of fact, even today, the nominee to be the U.S. Ambassador has been discussed. So that issue has been discussed.

Unfortunately, although I think it has merit, the issue of religious freedom, as you have defined in your resolution, has not. So at least the substance of the issue has been the possibility of the debate.

I would simply say that I know you are highlighting that one resolution. Yes, our colleague from Ohio, Senator PORTMAN, brought to my attention the anniversary of Otto Warmbier, and it was happening before—and he said: I did not ask for it to come before the committee. I thought that it should, and it fell between the cracks. So we agreed. But that doesn't mean that everybody is going to come to the floor and not give the committee members the chance to work on resolutions and to have their views cast on that resolution for the full body to consider.

Mr. LANKFORD. Reclaiming my time, it is a lesson learned because the challenge of the Foreign Relations Committee is that almost nothing has been able to get through—no Ambassadors, no resolutions. Everything is not good enough. Everything is not big enough. Quite frankly, everything doesn't attack the Trump Presidency and the Trump State Department, which really becomes the issue.

So even things that are nonpartisan, that we all have wide agreement on—that the House of Representatives was 100 percent in agreement on—can't even get a hearing here, can't even move through. And when an American citizen is killed over a blasphemy law issue, we still can't speak as the Senate. It is unfortunate.

There are things that we disagree on strongly as a body, but protecting the lives of American citizens who are being murdered because of a blasphemy law in Pakistan should not be an area of disagreement for us.

Standing up for religious liberty, speaking out with this one bill—if there are other issues, do 10 more. It is a basic American freedom. We should do multiple resolutions on freedom of the press, freedom of speech, freedom for people to live their faith worldwide. That is who we are as Americans. So do a bunch of them. Speak out on them, but don't stop us from speaking at all on issues where we should speak with a common, unified voice.

We can do better, and we should do better, and we will in time. But right now, we are still not speaking with a clear voice on blasphemy and the death of Americans worldwide, and that is something we should all look at and say is one more example of our not getting the job done in the Senate.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. MENENDEZ. Mr. President, I take offense at the suggestion that nothing is good enough for the Senate Foreign Relations Committee, that nothing gets done. There are 160 ambassadorial employees—and of that

rank—who have passed through the Senate Foreign Relations Committee overwhelmingly with bipartisan support.

Every year, we get the State Department's budget. Every year, we have a budget that is decimated, including for the issues that my colleague cares about. It is because those of us on the committee who believe in the power of diplomacy in the State Department work feverishly to restore and enhance the budget of the State Department that it has been able to carry out its mission. But the budget that the Secretary of State comes before the committee to defend and advocate for is a huge, huge consequence.

Look, we are constantly doing things to protect the lives of American citizens in the committee. I could enumerate a number both of resolutions as well as legislative language that would have far-reaching—I mean, I am in favor of resolutions. They are an expression of sentiment. But legislation that puts into action within our laws the ability of countries that conduct blasphemy and other types of crimes against people who simply want to pursue their religious views—that would be far more consequential.

So there is a lot that goes on in the committee, and a lot of it has actually been bipartisan. By the same token, if our colleague is chagrined that not enough is moving through the committee, talk to the chairman because you can't move anything through the committee if you don't have committee business markups, and we haven't had one—I think except for one—and we are in August.

The PRESIDING OFFICER (Mr. BRAUN). The Senator from Ohio.

UNANIMOUS CONSENT REQUEST

Mr. PORTMAN. Mr. President, I think we are all a little frustrated right now because the negotiations on the next COVID–19 package seem to be at a standstill. If you talk to the negotiators and you even read the press accounts, which are pretty open, what they say is that they are deadlocked. One of the main reasons they are deadlocked is over this issue of unemployment insurance.

Now, recall, back in the CARES Act, there was an extension of a Federal supplement to unemployment insurance. So we put in place a $600 Federal benefit on top of the State benefits.

At the time, there were concerns about whether that would lead to people on unemployment insurance getting more money than they would at work, and there was actually an amendment here on the Senate floor regarding that. Although it did not pass, I think pretty much every Republican supported it with that concern.

In fact, that is what has happened. If you look at what has happened over the past couple of months, as the $600 has been put in place, it clearly has often led to people making more on unemployment insurance than they can make at work.

In fact, the Congressional Budget Office, which is a nonpartisan group here in the U.S. Congress that analyzes some of these economic issues, has said that if someone is on unemployment insurance today, they are likely to be making substantially more than someone who is not on unemployment insurance. In other words, people are making more not to work than to work.

CBO says: ''Roughly five of every six recipients would receive benefits that exceeded the weekly amounts they could expect to earn from work during those months'' if you were to extend this until the end of the year.

In other words, they are saying that 80 percent of UI recipients would make more on unemployment insurance than they would have at their old jobs—meaning that if you followed where the Democratic negotiators are in keeping $600 in place until the end of the year, there would be an unprecedented disincentive to go to work in this country.

I think that is widely acknowledged. The University of Chicago has a study that isn't quite 80 percent; it says 68 percent, though. I don't think anybody disputes the fact that most people on unemployment insurance are making more than they would if they were at work.

When I talk to my Democratic colleagues about that, they are hearing the same thing I am hearing from small business owners—by the way, from nonprofits, from employers of all sizes and all stripes—saying that it is tough to get people to come back to work when they can make more on unemployment insurance by not working.

I think a lot of my Democratic colleagues agree. It is good to get people back to work—get back to work safely, yes, and we ought to be sure that the employers are following the guidelines of the Centers for Disease Control and others. But it is good to get people back to work because then they are reconnected with their healthcare, if they have it, with their retirement savings, and with training. That connection to work is a positive thing, providing people with dignity and self-respect. It comes with work, so we should all be for that.

Yet when you see what is happening in this negotiation, this is being stalled because Democrats are being intransigent. They are saying stubbornly: We are going to stick to $600.

Today, there was a press conference with Speaker PELOSI and Democratic Leader SCHUMER, and that is exactly what they said. Here is the quote: ''We have said that we are going to have $600.'' This is necessary.

I know that that is not where the rank and file are here in this Chamber because I have talked to a number of my Democratic colleagues about this. They realize that the $600—even those who thought it might have been necessary at the time, and I voted for the package at a time when we had unemployment that was such a shock and so high, and people were in such need of immediate cash. But also I have heard, again, from so many of my colleagues on both sides of the aisle, that the $600 is something they are hearing about more and more back home from the employers who say: We can't get people back to work.

So the $600 is something that there needs to be some flexibility on to come up with a smarter way to ensure that people can continue to get a Federal supplement because we do continue to have relatively high unemployment in this country. In my own State of Ohio, there is almost 11 percent unemployment. But let's not have it be so much that people are incentivized not to work. That doesn't help anybody.

There are ''Help Wanted'' signs all over my State. I was at a Ford plant recently, where they have 25 percent absenteeism, which they attribute to this issue. I have been at a lot of small businesses, which is where probably most of my colleagues are hearing a lot of concerns about the fact that they can't get people who used to work for them to come back, and they certainly can't hire the new people they need, even though they are reopening safely and doing everything they are supposed to do in terms of the guidelines. They are having a tough time getting back to work.

There is an auto plant in Ohio where the white-collar workers are now working on the assembly line because they can't get enough workers who would normally have those jobs to work on the assembly line.

So this is a problem right now, and I think everybody acknowledges it except the Democratic negotiators in this negotiation.

Now, I don't think we are actually as far apart as the media accounts would suggest because there are lots of ideas out there. One idea, by the way, makes a lot of sense to me, and I am going to offer this in a moment as a resolution for the Senate to take up. I think this is the ultimate common sense—let's keep $600 in place for now while we negotiate something. Let's have an extension for another week on the unemployment insurance at 600 bucks just so we can negotiate something. What you don't want is people to fall off the cliff, and that is starting to happen now.

The $600 expired last Friday. So 6 days ago it expired, and 6 days ago, 7 days ago, MARTHA MCSALLY, a Senator from Arizona, came to this floor and offered this same unanimous consent request, saying: Let's just have 600 for another week. CHUCK SCHUMER, the Democratic leader, objected—instead, offering the $3.5 trillion package from the House. But he didn't respond to why we wouldn't at least give the negotiators a week to come up with something.

So I am going to offer that same thing today because I do think it is not

fair to have a cliff. I don't think there should be a cliff. I think people should be able to have some level—but not at $600 because that is now understood by everybody to mean that you are disincentivizing work.

Americans are a generous people. Back in 2008 and 2009, when we had the great recession, we also did this. By the way, we did $25 a week then. So for Democrats who say this is unprecedented, well, we had 10 percent unemployment back then—very high unemployment—and we did $25. I think we should do a lot more than that now but not so much that people are making more by not working than by working.

There are a lot of ideas out there. Again, my ideas—ideas of individual Members—may not be what this body chooses to use, and that is fine. We are not all going to get our way, but we should be able to come up with a compromise here.

My idea is to have a return-to-work bonus, so that you are getting the 600 bucks, but you can take some of that money back with you when you go back to work. That would create an incentive to get people back to work and connect people to those businesses as we talked about and the importance of doing that.

But there are other ideas as well. There is a plan that was put out recently by two Obama administration veterans, former Treasury Secretary Timothy Geithner and economic adviser Jason Furman. They joined with a former H.W. Bush economist Glenn Hubbard to put out a proposal from of the Aspen Institute, hardly a conservative group, that proposes that the unemployment system—not at $600 but to continue at a cap of $400 and have it be determined based unemployment level for the State.

The way unemployment works in the States is the States have a benefit, and this Federal benefit is on top of it. Most States provide on average about 50 percent of benefits; $600 is over 100 percent. It is over 130 percent, in fact. So this solution—again, from two Obama administration economists—is that you have $400 as a cap, when unemployment in those States is above 15 percent and zero Federal supplement when the State is at 7 percent or less. It phases out entirely. That is one bipartisan solution that is out there. Instead of insisting on $600, I would hope at least there is a discussion of those kinds of proposals.

Senator ROMNEY has a proposal out there that takes the amount from $500 per week in August to $400 to an 80-percent wage replacement phasing out altogether by year-end. Senator MCCONNELL put his proposal out for a $200 amount over a 2-month period as a transition and then goes to a percent of wages. His percent of wages is 70 percent of wages. Again, there is no State that is that high. The States are 40 percent, 50 percent, 60 percent, in that range.

So there are ideas out there, and yet the Democrats keep coming back again and again to this notion of: We want it all or nothing. I will state to my colleague from Oregon who is here on the floor, and I am glad he is—he did a very good job for Democrats negotiating this proposal. I told him about it at the time. I know he took pride on it, and he should have.

But we also need now to figure out where we go, going forward. None of us should want people to be disincentivized from going to work. We should not have a situation like we have now where, again, you have the leaders on the Democratic side, Speaker PELOSI and Democratic Leader SCHUMER, saying, ''Today, we have said that we are going to have $600. This is necessary.''

We have to be able to show some flexibility here to be able to break this impasse, to be able to provide for people who lost their jobs through no fault of their own and need some help, but not continue to have this policy in place that doesn't work for our economy, for small businesses, and for workers themselves. Let's get the politics out of this. Let's do something that makes sense to be able to move forward on this broader crisis, and I think if we can fix the unemployment insurance issue, we are likely to get there.

Mr. SULLIVAN. Will my colleague from Ohio yield?

Mr. PORTMAN. I would be happy to yield.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. SULLIVAN. Mr. President, I want to thank the Senator from Ohio for his great leadership on this and so many other issues. I see my colleague from Oregon is on the floor as well.

I want to talk about an issue that Senator PORTMAN just touched on, but it is really the key to what is going on here, and that it is good faith. Are negotiations happening in good faith? Or are they not?

Sometimes, it is hard to tell. Sometimes, there is posturing, but, last week at this time, Senator PORTMAN, Senator MCSALLY, and myself were on the floor with regard to discussing Senator MCSALLY's very simple unanimous consent resolution which said as we negotiate—hopefully, in good faith—the difference between what we have put forward—the HEALS Act—and the Speaker Pelosi bill from early May—a bit of a stale $4 trillion bill, one-third of which has nothing to do with the pandemic—but as we are trying to negotiate in good faith, let's move forward with an extension of unemployment so people who are hurting can continue to rely on it. That happens all the time in the Senate.

So what happened? The minority leader came down to the Senate floor and blocked it. He blocked it, and his response was: I am going to block this 1-week extension unless the Republicans take the entire $4-trillion Heroes Act. That is what he said. If you are watching or paying attention, that is the definition of not negotiating in good faith, and every Senator knows it. All 100 of us know it. That was not a good faith maneuver.

What I predicted was the minority leader of the U.S. Senate, despite that maneuver which is going to hurt millions of Americans, did it because he thinks the national media will give him a pass, that no one in the national media will say: Boy, oh boy, the minority leader just blocked a reasonable request for an extension to help people.

But he thinks, and I think with good reason, that the national media won't blame him for what he just did, so he did it with no explanation. That is not good faith. By definition, coming down saying, Take my $4 trillion package or you won't get a 1-week extension of unemployment, that is not good faith.

Let me mention one other point which Senator PORTMAN mentioned. Now, on this tough issue of unemployment insurance—and Senator PORTMAN has been a leader on this—I was talking to some of my Democratic colleagues about them today.

By the way, most of them don't believe that $600 until January is a good idea for the reasons Senator PORTMAN mentioned.

Again, to have the minority leader of the U.S. Senate and Speaker PELOSI just say: 600 bucks, take it or leave it? Colleagues, you all know—we all know—that is not good faith. That is not good faith.

It is starting to feel like the minority leader and the Speaker are not negotiating in good faith right now. I hope they are—I know a lot of my Democratic colleagues are—but people have to remember, regardless of what party you are in, Americans are hurting. They need help. We have one foot in the recovery, one foot still in the pandemic. But what we need as we negotiate this package is good faith.

So I want to thank my colleague from Ohio again for his strong leadership on this and so many other issues. I am certainly going to be supportive of unanimous consent requests which we made at this time just last week to help people—not controversial, a week extension as we negotiate. It happens all the time here in the Senate.

I certainly hope my colleagues on the other side of the aisle are not going to say, No, take my whatever, or we are not going to do it, because it doesn't look or feel like good faith. Do you know who is hurting by that? Do you know who is being hurt by that? The American people, who are suffering.

Mr. PORTMAN. I thank my colleague from Alaska.

Reclaiming my time, I think he has made a good point. We are not talking about a negotiation here. We are talking about a weeklong extension of the existing $600 per week, so we could enable people to have some certainty and predictability on lives.

I have heard from folks back home on unemployment asking: What are you doing? Why can't you come to an agreement?

We talked about why. The Democrats don't seem interested about moving off their proposal, and they said it again today. Maybe they think this is good politics—maybe they think this is something worth hurting these people who are looking, to see if I am going to get my unemployment or not.

I had a tele-townhall last night with a woman whose husband works in the hospitality business, and he has lost his job, and everybody else in that business has told him: Sorry, we are not open for business. He does need the help. She didn't insist on $600, but she said: Give us some certainty that something will go forward.

So that is what this is about. This is just to say give us a week at $600, the full amount, in order to negotiate something that makes more sense for the economy, for small businesses, and for workers. This MARTHA MCSALLY motion which was offered earlier this week and last week, we are going to offer today. It is a unanimous consent.

I ask unanimous consent that the Senate proceed to the immediate consideration of the bill at the desk; I further ask that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

The Senator from Oregon.

Mr. WYDEN. Mr. President, reserving the right to object, the Senate Republicans have spent much of this week offering this idea of a 1-week extension of the $600 unemployment insurance supplement. They have done this as an alternative to spending the week doing real negotiating, which is what I and many Senate Democrats have been calling for, for not just days but weeks and weeks—literally, months—as we called for an advanced proposal.

In my view, the only thing worse than what the Republicans have done, cutting off desperately needed unemployment insurance to millions of families and communities, would be to allow a bill to pass that promises money without actually delivering it. That is snake oil, and I am going to be very specific in describing why that is the case.

Even if this short-term extension were to pass, experts and State agencies have said in very clear terms that States don't have enough time to reprogram their systems and avoid a lapse in benefits. A lot of them just have, as my colleague from Ohio knows—I was talking about it for days in the Finance Committee room—that these State unemployment systems are not equipped to switch the benefits on and off. These short-term extensions won't work and don't work administratively.

Nobody following this debate has to take my word for it. That is what the National Association of State Workforce Agencies have said.

I think there was a comment about, well, this is an image problem. It is a problem of the national media. Well, I would say, colleagues, the national media has been repeating what I just said, which are the exact views of people who aren't Democrats or Republicans, they are the administrators of this crucial program.

A short-term extension isn't enough for the hard-working Americans relying on this lifeline who don't have jobs to go back to. What about next week and the week after? There is going to be promises for week after week that also can't get the money to people so they can make rent and buy groceries.

The only responsible route is to agree to the extension that really looks to economic conditions, ties these benefits to economic conditions and then lower the payments only when it is appropriate to do so, and that means when the economy is in recovery, not when it is facing the kind of dramatic contraction that we all were so concerned about last week.

To me, this is all part of an effort to deflect the fact that when I—and I am just going to talk about myself specifically—but Senator SCHUMER, the Speaker sent letter after letter calling for negotiations because everybody knew there was a cliff. I said it repeatedly. I said: Don't go home, Leader MCCONNELL. Stay here. This cliff is coming, end of July, last weekend, when people got the checks.

So there was a comment about unemployed folks being pushed off the cliff. Well, I am here to tell you, it was Senate Republicans by their inaction who pushed those workers off the cliff.

Now, what is needed is a long-term solution that ensures the extra $600 remains available for as long as this devastating crisis continues.

I heard my colleagues talk about workers. A lot of workers who were laid off once and then brought back have been laid off again. That is really representative of the challenge.

I also want to mention, as we talk about ideas—I heard my colleagues talk about it—another big snake oil idea coming out of the White House that somehow an Executive order is going to accomplish all of this. We hear the words ''Executive order.'' That sounds like it is going to be fast. Man, that sounds good. Executive order; let's move fast. In actuality, it would throw the States in chaos. It would be tied up in the courts. It would slow everything down, just like each of the Senate Republican legislative proposals so far. For example, they all still try to drive the idea of wage replacement. We have seen problems with getting the amount out initially, the $600. Wait until you see what happens with the Republican wage proposals.

There is a path here, and that is to negotiate in good faith. My Republican colleagues have been stalling on negotiating in good faith because they thought somehow—and I find this a real head-scratcher—they could win a war of words by insulting the American worker and claiming that they are kind of lazy, that they don't want to work and the like.

I will tell you, on the Finance Committee, I hear continually from my friend from Ohio who talks about the superior work ethic of Ohioans. Now he is out here talking about how everybody is not willing to work and unemployment benefits are causing folks to stay home rather than work because they are too generous. I think that is just a bunch of hogwash. I believe Americans believe deeply in the dignity of work.

We just had a nationwide townhall meeting about the unemployment issue, and people were saying: I can't believe they are calling us lazy and saying we don't want to work. I get a job offer on Monday night, and I will be up there at the crack of dawn on Tuesday.

That is what workers are saying. So this idea that they are staying home because they don't want to work—besides, it is a violation of the rules of the program as well—I think is just hogwash.

I would also like to put into the RECORD right now the latest assessment from the Bureau of Labor Statistics about what is really going on out here, because the issue is not workers being lazy; the issue is scarcity of jobs. The Bureau of Labor Statistics—again, not a political operation—has reported that there are four unemployed Americans for every job out there. Let me repeat that. Not politicians. Not anecdotes. Not somebody who said something to somebody else. Those are the facts, colleagues. The Bureau of Labor Statistics reported that there are four unemployed Americans for every job out there.

I ask unanimous consent to have printed in the RECORD the Bureau of Labor Statistics analysis showing the paucity of jobs.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

NUMBER OF UNEMPLOYED PERSONS PER JOB OPENING, SEASONALLY ADJUSTED

Month	Number of unemployed persons per job opening
May 2005	2.0
June 2005	1.8
July 2005	1.7
Aug 2005	1.8
Sept 2005	1.7
Oct 2005	1.8
Nov 2005	1.8
Dec 2005	1.8
Jan 2006	1.6
Feb 2006	1.7
Mar 2006	1.5
Apr 2006	1.4
May 2006	1.5
June 2006	1.5
July 2006	1.6
Aug 2006	1.5
Sept 2006	1.4
Oct 2006	1.4
Nov 2006	1.5
Dec 2006	1.5
Jan 2007	1.5
Feb 2007	1.5
Mar 2007	1.4
Apr 2007	1.4
May 2007	1.4
June 2007	1.4
July 2007	1.5
Aug 2007	1.5
Sept 2007	1.5

NUMBER OF UNEMPLOYED PERSONS PER JOB OPENING, SEASONALLY ADJUSTED—Continued

Month	Number of unemployed persons per job opening
Oct 2007	1.5
Nov 2007	1.6
Dec 2007	1.7
Jan 2008	1.7
Feb 2008	1.8
Mar 2008	1.9
Apr 2008	1.9
May 2008	2.0
June 2008	2.2
July 2008	2.4
Aug 2008	2.5
Sept 2008	2.9
Oct 2008	3.0
Nov 2008	3.3
Dec 2008	3.7
Jan 2009	4.4
Feb 2009	4.5
Mar 2009	5.3
Apr 2009	5.9
May 2009	5.6
June 2009	5.8
July 2009	6.4
Aug 2009	6.3
Sept 2009	6.0
Oct 2009	6.3
Nov 2009	6.3
Dec 2009	6.1
Jan 2010	5.3
Feb 2010	5.7
Mar 2010	5.7
Apr 2010	4.8
May 2010	4.9
June 2010	5.1
July 2010	4.6
Aug 2010	4.8
Sept 2010	5.0
Oct 2010	4.5
Nov 2010	4.8
Dec 2010	4.8
Jan 2011	4.5
Feb 2011	4.3
Mar 2011	4.2
Apr 2011	4.2
May 2011	4.3
June 2011	4.0
July 2011	3.7
Aug 2011	4.1
Sept 2011	3.7
Oct 2011	3.7
Nov 2011	3.8
Dec 2011	3.6
Jan 2012	3.3
Feb 2012	3.6
Mar 2012	3.2
Apr 2012	3.3
May 2012	2.2
June 2012	3.2
July 2012	3.3
Aug 2012	3.2
Sept 2012	3.1
Oct 2012	3.2
Nov 2012	3.2
Dec 2012	3.2
Jan 2013	3.2
Feb 2013	3.0
Mar 2013	2.9
Apr 2013	2.9
May 2013	2.8
June 2013	2.8
July 2013	2.9
Aug 2013	2.7
Sept 2013	2.7
Oct 2013	2.6
Nov 2013	2.7
Dec 2013	2.6
Jan 2014	2.5
Feb 2014	2.4
Mar 2014	2.4
Apr 2014	2.1
May 2014	2.1
June 2014	1.9
July 2014	2.0
Aug 2014	1.8
Sept 2014	1.9
Oct 2014	1.8
Nov 2014	1.9
Dec 2014	1.8
Jan 2015	1.7
Feb 2015	1.6
Mar 2015	1.6
Apr 2015	1.5
May 2015	1.6
June 2015	1.6
July 2015	1.3
Aug 2015	1.5
Sept 2015	1.5
Oct 2015	1.4
Nov 2015	1.4
Dec 2015	1.4
Jan 2016	1.3
Feb 2016	1.3
Mar 2016	1.3
Apr 2016	1.4
May 2016	1.3
June 2016	1.3
July 2016	1.3
Aug 2016	1.4
Sept 2016	1.4

NUMBER OF UNEMPLOYED PERSONS PER JOB OPENING, SEASONALLY ADJUSTED—Continued

Month	Number of unemployed persons per job opening
Oct 2016	1.4
Nov 2016	1.3
Dec 2016	1.3
Jan 2017	1.3
Feb 2017	1.3
Mar 2017	1.2
Apr 2017	1.2
May 2017	1.2
June 2017	1.1
July 2017	1.1
Aug 2017	1.1
Sept 2017	1.1
Oct 2017	1.0
Nov 2017	1.1
Dec 2017	1.1
Jan 2018	1.0
Feb 2018	1,0
Mar 2018	0.9
Apr 2018	0.9
May 2018	0.9
June 2018	0.9
July 2018	0.8
Aug 2018	0.9
Sept 2018	0.8
Oct 2018	0.8
Nov 2018	0.8
Dec 2018	0.9
Jan 2019	0.9
Feb 2019	0.9
Mar 2019	0.8
Apr 2019	0.8
May 2019	0.8
June 2019	0.8
July 2019	0.8
Aug 2019	0.8
Sept 2019	0.8
Oct 2019	0.8
Nov 2019	0.9
Dec 2019	0.9
Jan 2020	0.8
Feb 2020	0.8
Mar 2020	1.2
Apr 2020	4.6
May 2020	3.9

Source: Bureau of Labor Statistics.

Mr. WYDEN. I will just say that I am stunned that colleagues are saying that American workers are out trying to scam the system and really don't want to work and all of these things that I think suggest a very different picture than what I hear from workers and, by the way, what I hear from my friend from Ohio when he is in the Finance Committee.

I have a final point. The Republicans knew the cliff was coming in May when the House passed the Heroes Act. They knew the cliff was coming in June. I am just going to walk this through because I heard: Oh my goodness, all of the Democrats are involved in pushing workers off the cliff.

The Republicans knew the cliff was coming in May. That is when the House passed their bill. They knew the cliff was coming a few weeks after that when Senator SCHUMER and I introduced and tried to get passed a piece of legislation that was really based, I say to my friend from Ohio—and something I heard our friend from South Dakota, Senator THUNE, talk about—Senator THUNE said: You know, I get it. When folks are hurting, the benefits have to be used to pay the rent and buy groceries. But when unemployment goes down, the benefit should taper down.

That is essentially what the Democratic leader, Senator SCHUMER, and I offered—to tie unemployment insurance to the realities of what is on the ground in the American economy.

Republicans knew the cliff was coming in May. They knew a few weeks later that Senator SCHUMER and I tried to actually pass a bill that, as I developed it and brought it to our leadership and showed it to colleagues, was really to a great extent sparked by what our friend from South Dakota, a Member of the Republican leadership, said: Well, let's kind of recognize that when the economy gets better, the benefit tapers off.

Republicans knew the cliff was coming in July when again Leader SCHUMER and I tried to provide certainty for American families and communities by passing our bill. Did they come to the table with earnest proposals?

Senate Republicans have spent the week on this idea of a 1-week extension, which the people who run the programs—the people who are the most knowledgeable, who don't have election certificates, who are experts in the field—are saying would not deliver to the people who are desperate to buy groceries and pay rent. It would not deliver the funds they so desperately need for quite some time.

These proposals are not serious. They are political theater.

The cliff is here. As Americans families fall over it, I am just stunned that we are hearing Republicans say: You know, it is OK to offer these proposals.

I have seen a number in elevators, leaving town. I am going to be here. I am going to be here because I think when workers are hurting and they can't make rent and they can't pay groceries, you stay at it.

The Senator from Ohio knows that is how we got to $600, because when Secretary Scalia folded his arms and said he couldn't really do anything that would present a real benefit, we spent 3 days—3 long days—and we said on our side: You are not going to stiff the workers, and we will just average the benefit. Some would get more, some would get less, but we would give everybody in America who, through no fault of their own, has been laid off a chance to pay the rent, buy groceries, and at the same time keep the economy afloat.

For all of those reasons, and especially reflecting my disappointment that after—and I just walked everybody through it—one effort to go and negotiate; a couple of weeks later, another effort; then in July, another effort. But nothing happened. In fact, I stood right where I am, as benefits were about to expire, and I said: How can the Republican leader basically say we are going home? When they asked him about moving anything to really meet the needs of the workers, the press reported—everybody was quoting the press—that the Republican leader laughed.

I yield the floor.

The PRESIDING OFFICER. Is there objection?

Mr. WYDEN. Mr. President, excuse me. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. PORTMAN. I was hoping after all that there wouldn't be an objection because I can't believe that my friend

from Oregon believes that it is not a good idea to do an extension. All we are talking about is an extension for a week of the $600, the full amount, even though, again, all the data out there shows that amount is not practical for our economy, for workers, or for businesses.

He made a valiant effort trying to explain why he is not for that, but I know that people who are watching just think it is common sense. Let's continue to discuss, but let's be sure we have, as my colleague from Alaska said, good-faith negotiations. That is not good faith, to say $600 or nothing. And that is exactly what the negotiators have said.

To my colleague from Oregon, I wish they would authorize you to negotiate. I think you and I could actually work out something, and I think you probably do too. But they have not authorized us, and the Democratic negotiators have said $600 or nothing.

This notion that the 1-week extension just doesn't work—absolutely it works. Are you telling me that the State unemployment offices would not provide the $600? Of course they would. There would be a lapse, of course. There would be a week or two, they say. But that $600 would be in people's pockets.

By the way, there is a lapse right now, so people who lost their unemployment last Friday in some States, including Ohio, continue to get it because there is a lapse in the payment. So, yes, people would get the money. Of course they would get it. And they would be able to plan on it and have some certainty.

Frankly, if it hadn't been blocked last week when Senator MCSALLY stood right over here and offered it, it would be even sooner that people would get it. I say it is 1 to 2 weeks, so for some people, they would be getting it right now.

It is absolutely essential for us to figure out how to find a way forward here. It is not, to me, an option for us to do nothing. We can't allow this cliff to continue. But in the meantime, all we are saying is, let's just have a little time to work it out, and hopefully the Democrats will get off of their $600 and realize that is not a path forward because it doesn't work.

You are right. When we put the $600 in place, our thought was that would be about average. In other words, it would be the average wage replacement, so that you would have half the people making a little more and half the people making a little less. That is not how it worked out.

Again, the Congressional Budget Office—nonpartisan CBO—says that more than 80 percent of the UI recipients are going to make more on unemployment than they would at their old jobs, if you follow the Democratic proposal. In Chicago, 68 percent, but that is not what we intended. Certainly, we should be able to adjust here, and we should be able to get to yes.

My deep concern is that the negotiators are so intransigent on the Democratic side that we will end up hurting the very people Democrats are talking about helping.

Let's come up with a sensible solution. I think there is a path here, and it is to negotiate in good faith. I think an Executive order isn't necessary if we do our work. I think inaction by not negotiating in good faith is the worst possible outcome.

I yield to my colleague from Alaska.

Mr. SULLIVAN. Thank you, Senator PORTMAN.

I have a lot of respect for my colleague from Oregon, who unfortunately just left the Senate floor, but there they go again. On the Senate floor, the Senator from Oregon just said ''Republicans cut off unemployment insurance for millions of families'' when, in reality, what we have just witnessed—if you are watching—on the Senate floor is that the Senator from Oregon objected to restoring unemployment benefits for millions of Americans. That is a fact. That is just what happened.

So he says one thing—and again, I think they get a little bit careless because they think the national media will just report what he says. But he said, ''I object.'' When he said ''I object,'' here is what he meant: I object to restoring unemployment benefits for millions of Americans. That is what the Senator from Oregon just did. There is no denying that. And right before he did it, he said that Republicans cut off unemployment for millions of Americans. That is just not true—not true.

He just objected to restoring unemployment benefits for a week—$600 for millions of Americans—just like the Democratic leader from New York did last week. Then he said: ''Short-term extensions are not enough.'' That is another quote from the Senator from Oregon, but he didn't finish the sentence by saying: And because I objected, they are going to get zero.

So think about that one. Short-term extensions are not enough—sounds good—so he objects so there are no extensions. Again, that is just what happened on the floor.

He didn't say one thing about this issue that Senator PORTMAN and I have been discussing, which is good-faith negotiations. There is not one Senator in this body who believes that when the Democratic leader comes to the floor of the Senate and says ''take the $4 trillion Speaker PELOSI bill passed in early May or nothing,'' that that is good faith. It is almost, by definition, bad faith.

So I think our colleagues, who are trying to negotiate in good faith but are getting locked down by their leadership, are having a bit of a problem because they know this isn't good faith, and they know people are suffering. That is why we have got to work together to get to an agreement, but what we cannot do and what I fear the other side is starting to do is use people who are suffering as leverage in negotiations. That is not what we should be doing. We should be working in good faith to try to get to an agreement, and we should be making statements on the Senate floor that are actually factual.

What just happened here was that the Senator from Oregon objected to American citizens getting their unemployment benefits restored. That is a fact.

I yield the floor.

Mr. PORTMAN. I yield back.

The PRESIDING OFFICER. The Senator from Texas.

CORONAVIRUS

Mr. CORNYN. Mr. President, before they leave the floor, I just want to compliment my colleagues from Alaska and Ohio on making a very important point. You would think, from the press, that there are negotiations taking place, but the truth is that Speaker PELOSI and the minority leader in the Senate, Senator SCHUMER, have shown zero interest in resolving the differences on this next COVID–19 package. I think it is just very important for my colleagues to lay out the facts because there is a tendency to ignore the facts in favor of a mythical or a fantasy construct, so I appreciate their statements.

Hopefully, sometime soon, now that the enhanced unemployment benefits have been allowed to expire as a result of Democratic objections and where the Paycheck Protection Program, which was the single most successful part of the CARES Act legislation that we passed, is likewise scheduled to terminate here soon, I hope Democratic negotiators will get serious about providing a fifth coronavirus relief package to support our country through this unprecedented crisis.

We are doing pretty well. During the previous legislation, we virtually passed these trillion-plus-dollar bills, multitrillion-dollar bills, essentially by unanimous vote because we knew we were in the middle of an emergency. We knew that it was not a time for politics; it was a time to try to help people who were out of work or needed help from our beleaguered healthcare providers.

So we rose to the occasion, previously, by bolstering our healthcare response, making testing free of charge, providing vital funding for our hospitals, and arming our medical workers with the personal protective equipment and other medical equipment they needed in order to sustain the fight. We have poured funding into the research and development of a vaccine, therapeutics, and treatments, which are coming along, and we are all hopeful an American company will win the global race for a vaccine in addition to these therapeutics.

The legislation we passed so far has buoyed the workers and families in need of financial assistance with direct payments, bolstered unemployment benefits, as well as conferred the ability to defer student loan payments

with no penalty, and we have supported our wobbly economy with assistance for Main Street businesses through the Paycheck Protection Program that I mentioned a moment ago and other loans for industries that our State and counties rely upon, as well as countless jobs.

While Republicans and Democrats were negotiating these bills in good faith, it was clear we had some different ideas about the best way to support our country through the crisis, but what mattered most was that we shared the same goal. At least we did then. I am beginning to doubt whether we share the same goal now. The goal then was to help people in distress, economically and from a public health standpoint. Now, it seems like Speaker PELOSI and the minority leader in the Senate are more interested in trying to score political points and use people who are in distress and anxious and fearful as hostages.

Well, it is really, really unacceptable. We should be strengthening our fight against the virus and supporting those harmed by economic impact and laying the foundation for a rebound of our economy, which was one of the strongest in my lifetime right before this pandemic hit.

Those remain my priorities today, as we navigate these uncharted waters and prepare to strengthen our fight at this crucial time, but the hangup in negotiations between Democrats and the administration seems to indicate that our Democratic colleagues have shifted course—or at least that Speaker PELOSI and Minority Leader SCHUMER have.

The majority of information we are learning about these negotiations is not coming from rank-and-file Members but from leaks and press conferences to the media about private meetings in Speaker PELOSI's office. From what I understand, it sounds like the Speaker and the minority leader have simply stiff-armed any offers that fall short of their ridiculous Heroes Act legislation that the Speaker and the House passed on a partisan basis a few weeks ago—that they knew at the time had no chance of becoming law.

This legislation was heralded by Speaker PELOSI and Minority Leader SCHUMER as the solution our country needs to defeat this virus, so let's talk about what is in it. For starters, the so-called Heroes Act is a massive tax cut for millionaires and billionaires. If the Heroes Act became law, the wealthiest people in New York and San Francisco would receive an average benefit of nearly $60,000—$60,000—higher than the household income for many Texans.

Well, this has nothing to do with COVID–19 or supporting those who are struggling to make ends meet. It is a handout to the people who need it least, at everyone else's expense. But that is only one line in the long list of absurdities in this legislation, the Heroes Act, that have absolutely nothing to do with the crisis at hand.

What is the Speaker's priority when it comes to COVID–19? Well, it is a soil health program, environmental justice grants, permanent changes in election law, and not one but two diversity studies in the marijuana industry.

POLITICO called this bill, at the time, a Democratic wish list filled with all the party's favorite policies. NPR, hardly a bastion of conservative communication, said it is a long wish list for Democrats. The New York Times—the New York Times—basically, a party organ for the Democrats, said the bill was more a messaging document than a viable piece of legislation. The reason they said that is because one-third of that bill is unrelated to the coronavirus.

It paid people more to stay home than to work. It sent checks to illegal immigrants. It bailed out poorly run States. It facilitated ballot harvesting, marijuana banking, and, as I said, tax breaks for coastal elites.

That stands in stark contrast to what we have proposed and what Leader MCCONNELL aptly summed up as kids, jobs, and healthcare. Those ought to be our priorities. As we discover our new normal that exists somewhere between the virus arriving in the United States and a vaccine being distributed, that is where we need to target our attention and our support.

That includes funding for educators who are in the process of planning the safest way to teach students in the fall and childcare for working parents who are heading back to the office. It includes helping the workers who had the rug pulled out from under them when our Democratic colleagues refused to continue bolstered unemployment benefits until these workers can get back to a steady paycheck.

Our bill included continued support for our war against the virus itself, both in hospitals and in research labs. These have been the main concerns in my recent conversations with my constituents in Texas, especially now that the bolstered unemployment benefits provided by the CARES Act have expired.

Since March, more than 3 million Texans have filed for unemployment benefits, and recipients have taken advantage of the additional $600 a week. This additional income has helped families cover the rent, groceries, and other critical expenses until they are able to return to work, and for many workers there is still a great deal of uncertainty about when that might happen.

Well, it is clear, though, that that $600 additional benefit had some unintended consequences. Frankly, we should have capped the amount that somebody could receive for unemployment benefits at their previous earning level, but, according to the Texas Workforce Commission, with the $600 weekly benefit on top of the State benefit, 80 percent of the people receiving the unemployment insurance benefit were making more on unemployment insurance than they were previously employed—80 percent.

That brings us to a point far beyond giving workers the financial support they need to stay afloat. Instead, the Federal Government is paying people not to work. That is the wrong incentive and, certainly, completely unnecessary. Payroll, wage substitution—yes. Paying people not to work—no.

A recent poll found that two-thirds of Americans believe that these enhanced benefits discourage people from going back to work, and they are right. Among unemployed Americans, nearly half say they would avoid returning to work if these benefits were extended.

The businesses in my State which closed their doors earlier this year have now had trouble hiring employees back because some 80 percent of those former employees are making more not working than they were working. If we were to extend that benefit through January, as the Heroes Act would, our economy would not recover, as we all need it to do.

So there is a delicate balance—but an important balance—between supporting those who need help until they can return to the workforce and giving them an incentive to avoid returning to work. This is not an all-or-nothing approach. It is not 600 bucks or bust, even though that is the way Speaker PELOSI and Minority Leader SCHUMER like to put it.

We can and we should begin and continue to supplement State unemployment benefits and give workers the income they need to support their families without paying people more to stay home than to work. It is not rocket science.

We are all anxiously waiting for the Speaker and the minority leader to wake up and start focusing on the task at hand, which is on commonsense policies that support our country through this crisis. Texans don't have time to wait for the posturing or the politicking and the grandstanding, not to mention the heel-dragging. They don't have an interest in knowing how diverse the marijuana business is, and they don't want to provide a massive tax break to the richest Americans on the east coast at the expense of everyone else.

My constituents want to be able to feed their families; they want to be able to work; they want to be able to pay their rent; and they want to know their kids will be healthy as the school year begins.

I implore our colleagues, Speaker PELOSI, and Minority Leader SCHUMER to drop the games, quit hurting people you claim to champion, and pay attention to what America really needs.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. SULLIVAN. Mr. President, I want to thank my good friend and colleague from Texas for laying out the choice before us and highlighting, again, this issue of good-faith negotiations, which hopefully we are starting

to see, but last week we didn't see; and he talked about the so-called Heroes Act passed in May—so quite stale.

I will say one other element of that that was shocking and has been shocking to me is, there is a whole section on clawing back CARES Act money that went to Alaska Natives. The Heroes Act, the Pelosi $4 trillion bill, has a section that targets expressly about 20 percent of the population of my State—and my State only. By the way, they are amazing, patriotic people who have been through pandemics before and have suffered horrendously during these pandemics. The Heroes Act targets them and says any money that Native Alaskan organizations have received—by the way, organizations, regional and village corporations set up by Congress—any money they have received will be clawed back in the Heroes Act. Of course, I am never going to let that bill pass—ever—on this floor. It is an outrage.

They need to get more serious about these negotiations, and the ''take it or leave it'' on the $4 trillion Pelosi bill that specifically targets some of the most patriotic Americans in the country, who happen to be my constituents—Alaska Natives—is never going to fly. Never.

TRIBUTE TO JULIA BEVINS

Mr. SULLIVAN. Mr. President, it is Thursday, and it is a time that I get to come to the Senate floor and recognize an Alaskan who has made a difference in my State and, in this case, someone who has made a difference literally around the globe. This is someone I refer to as the ''Alaskan of the Week.'' I love to do it. I know some of our reporters listening enjoy this.

Kristin, I know you love bears, so this week you will be particularly interested.

Before I get into the bears and the story and the individual we are going to honor today, let me tell you a little bit about what is happening in Alaska. Like other places in our great Nation, our State is certainly facing challenges—like the rest of America, one foot in our economic recovery, one foot still in this pandemic. It is a challenging time, but Alaskans are tough—certainly some of the toughest people in America. As I say, tough times don't last, but tough people do. We will get through this as a State, as a nation, and I think that certainly applies to Alaska.

It is summer. The Sun is high. The salmon are running thick. The bears are digging them out of the streams. By the way, a word to the wise: When you have salmon, you almost always have bears, so be careful.

In Alaska, we love our bears and so does our Alaskan of the Week, Julia Bevins, who recently moved from Anchorage to the gorgeous town of Homer—Homer, AK. For those of you who have been there, you know what I am talking about. For those who haven't, you have to get out to Homer. It is the halibut capital of the world but a magnificently beautiful place. Just the drive from Anchorage to Homer is breathtaking. There is no other place in the world like it.

It is from Homer that Julia keeps going the now world-renowned foundation, the international Bear Conservation Fund, which is part of the International Association of Bear Research and Management, or IBA, that she and her late husband, wildlife biologist John Bevins, founded.

Why the foundation and why the bears? Let me tell you about a tragic and beautiful story relating to Julia and her late husband John.

Julia was born in New Mexico and raised in Australia. She has a degree in veterinary science from the University of Queensland in Australia. She came to Alaska in 1984 to get a Ph.D. in wildlife biology at the University of Alaska Fairbanks. Her focus was on reindeer herd health and disease control.

She met John in 1985, and the two were married in Fairbanks in July, 1990. They were both in love with Alaska and with each other. It was the love of a lifetime, Julia said.

Indeed, it was a great match. She was a veterinarian focusing on reindeer. He was a wildlife biologist for the U.S. Fish and Wildlife Service, working on polar bear research—the best wildlife biologist job you could ever have, polar bear research in Alaska.

Then, unfortunately, tragedy struck. Three months after they were married, on October 11, John and his colleague George Menkens, and their pilot, Clifford Minch, got into a twin engine aero commander at Deadhorse. They were headed north to do a low-altitude aerial survey of female polar bears with cubs who prowl the ice hunting for food.

They were believed to have traveled as far as 250 miles northwest of Barrow, now known as Utqiaqvik—the northernmost point of North America. That is where people believe the plane they were traveling on vanished. No one really knows where.

The search, at least initially, was extensive. In the first few days, members of the U.S. Coast Guard flew C–130s, as well as civilians in their aircraft, and spanned the area, flying hundreds of thousands of square miles looking for any signs of the aircraft. After a week, they decided the search was over. Julia was desperate. She knew that her late husband and the two others had 2 weeks of provisions and adequate survival gear. What if they had survived? What if they were on an icefloe? What if they were still out there and the searchers happened to miss them in that huge expanse?

This idea was overwhelming to her. She called everyone she knew to help in keeping the search going. And eventually, like so many Alaskans did, she called the late great Senator Ted Stevens, who—as he was known to do—got to work for his fellow Alaskan.

''He did an amazing thing,'' Julia said. He arranged for the Canadians to send a military radar plane that could detect metal above sea ice—anything bigger than a 4-foot square. The plane could cover an area the size of Manitoba in 1 night. So they did it.

It was that search that finally gave Julia peace of mind. She said: After the military plane came and left, I felt like we had done everything we could have possibly done to find my husband. I knew my husband was gone, and there was a peace of mind going forward.

Senator Ted Stevens gave me a life, she said. He gave me a life free from self-recrimination and free of doubt.

She also credits Senator Stevens for giving her enough peace to work to honor her husband's memory in a way that was unique to him. She took the proceeds she received from the insurance, and she began the bear foundation. It started off small in 1993. The first year it was up and running, the foundation gave away $5,000 in grant money. That money, which was invested well, began to grow and so did the amount of the grants awarded.

One year, the foundation was able to give out $50,000 in grant money. The average size of individual grants is now $8,000. All told, they are able to give about $100,000 a year, including donations that they get from individuals and organizations.

It is not just about the money that has grown, so has the prestige of this foundation. The IBA now has 550 members from over 60 countries. Because of Julia Bevins, in Homer, AK, all across the globe, researchers are working with other biologists. They are tracking bears. They are assisting in management of these great animals. They are writing papers and sharing information. They are doing what they love for the ecosystem. Julia said:

> When people love bears, they love them with their whole heart and soul. It's a very profound thing.

Julia talked about how the IBA funded a researcher to search for a rumored small brown bear—the Gobi bear—in Mongolia, the only bear to exist in this extreme desert habitat. There had been sightings throughout the year, but no scientist had ever been able to prove its existence.

The IBA funded a scientist, Harry Reynolds—an Alaska from Fairbanks—to travel through Mongolia and find the Gobi bear. And he found them. Now the Mongolian Government is committed to its protection.

Scientists funded by the IBA worked with other scientists in Iran to document not only bears, but they were able to find 16 new wildlife species. From the dangerous border between India and Pakistan to the equally dangerous forests of Colombia, bear researchers, helped with IBA money, are working with local citizens and governments and other scientists, forming true alliances to help save bears.

Science ties the world together, Julia said. When you have a collective of

like-minded people working for a common goal, all things are possible.

When you have someone with a mission like Julia Bevins, all things are possible too.

Thank you to Julia for your commitment to this great cause, for your work in helping keep John's memory alive, and for your amazing work on bears in Alaska and bears in the world. Congratulations on being our Alaskan of the Week.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

CORONAVIRUS

Ms. STABENOW. Mr. President, it is Thursday afternoon, and it looks like any other Thursday afternoon. There is no sense of urgency. The leader, Senator MCCONNELL, has sent folks on their way for the weekend, and there is no agreement on the COVID–19 survival package, which is what it really is for so many families.

We are in a situation where it is another week of not focusing on how we get unemployment extension passed or how we deal with hungry families or make sure people are going to have a roof over their head or support our small businesses or our small family farms or our first responders on the frontlines and others in cities and towns and in States who are providing public services essential to us—people who are in jobs who may lose their jobs if we can't get them the support they need.

That is not happening. There are a few nominations—a couple of nominations of judges. Let's put a few more ideologically extreme, rightwing judges on the bench. No sense of urgency. We are here on a Thursday as if it were just regular business.

Over 2 months ago, Senator MCCONNELL said he felt no sense of urgency to act on what the House passed, no sense of urgency at all. Over 2½ months ago, the House of Representatives passed a critical survival package to continue to tackle the pandemic, including testing, supporting our hospitals and nurses and doctors and communities on the frontline who are trying to maintain, manage, and keep us safe—save lives.

Senator MCCONNELL said he felt no sense of urgency. He certainly has demonstrated no sense of urgency since that time. He is not even in the negotiations that are going on right now.

But this isn't a regular Thursday for folks in Michigan. No. This isn't a regular Thursday, like ''Ho-hum, let's go home for the weekend or longer.'' We have 1.8 million people on unemployment benefits. By the way, we don't have 1.8 million jobs right now that they could get. These aren't folks who just don't want to work. The jobs aren't there because of what has happened with the pandemic and the necessary closures and the challenges going on for businesses large and small.

We certainly want to support them to safely be able to reopen, but we have 1.8 million people who, this week—this Friday, as opposed to last Friday—this Friday, tomorrow, when they get help through unemployment, it is going to be about a 60-percent cut—6–0, not 6—a 60-percent cut. Their rent didn't go down 60 percent. Their food didn't go down 60 percent. Their utility bills didn't go down 60 percent. The other things they need to take care of their families didn't go down 60 percent. But their income is going down 60 percent because there is no sense of urgency in this Senate.

The Republican majority sees no sense of urgency. It is just another Thursday afternoon. There is no sense of urgency to help people who are trying to figure out what to do right now because everything collapsed when the pandemic hit and their business closed or other challenges took over so they are not able to work right now. What are they going to do? It is not just another Thursday afternoon for them.

It is not just another Thursday afternoon for the single mom of two kids in Michigan right now who, frankly, could very well be deciding whether she eats tonight because it is so important that the children eat. She can't do both, so she will go hungry one more time so the kids can eat. We have a hunger emergency in this country right now. It is not just another Thursday for those folks, although they have spent too many Thursdays feeling hungry.

It is not just a Thursday for the person who, right now, is probably in their car—maybe they have been there 2, 3, 4 hours—waiting in the food bank line to get some groceries to take home. They used to donate to the food bank, and now they are in a situation in which they have to go to the food bank. They never thought in their wildest dreams that would happen, yet it has. They feel a sense of urgency.

It is not just another Thursday afternoon in the Senate for them. They feel a sense of urgency for today and tomorrow and Saturday and Sunday and Monday and on into however long it is going to take to be able to bring our colleagues together.

It would be humorous if it just weren't so outrageous to hear colleagues talk about how we need to get something done when the House of Representatives passed a bill 2½ month ago, the Heroes Act. It came over here and has just been gathering dust on Senator MCCONNELL's desk.

We know that negotiation takes time. We know you always have to compromise, and that should have started 2 months ago or a month ago, not after somebody is losing 60 percent of their income trying to hold it together for their family.

By the way, we tell people to go home—shelter at home—but their rental protections go away, their mortgage protections go away, and you put more people on the street. That makes a lot of sense in the middle of a health pandemic when we want people to stay home.

Every move that has happened in this Senate since the House acted has been too little too late, and it is causing more and more devastating consequences as a result of that.

I will tell you who doesn't think it is another Thursday, just a normal Thursday afternoon, is 85-year-old retirees I know who are trying to figure out how to get their medicine versus their groceries. By the way, they haven't been out of their house in over 4 months. They are trying to stay connected with their families but are terrified of what is happening. Will what is happening right now be the rest of their life? They certainly feel a sense of urgency for us to act.

The moms and dads who want their kids to go back to school safely and are trying to figure it out are saying: Come on. This cannot be my child's education versus their safety. It has to be both.

That is not exactly rocket science. It has to be both.

I am excited about the Tigers playing now—and their baseball league—and I am excited about the NFL. But if those guys can get tested every day, why can't our teachers? Where are the priorities here? Do they feel a sense of urgency?

I can tell you that my son and daughter and their families and my grandkids feel an incredible sense of urgency. They want to go back to school to see their friends. They want to do it safely. They know it has to be safe. It is not either-or. They feel a sense of urgency. They would love this to be just another Thursday afternoon when we end the week and everybody goes home. It is not that for them as they are trying to figure out where they go for childcare or their school.

It certainly isn't just another regular day for the teachers trying to figure out what to do. They went into teaching because they love children. They want to teach. They also know they may have their own preexisting conditions. They also have their own children at home. They have to think about their own exposure and how they can be teaching, which they want to do, but it has to be done safely because of all the other issues in their lives as well.

I think about the small business owner. We have so many in Michigan. We have the most incredible entrepreneurs in Michigan in every small town as well as in big cities. There are people who poured their hearts and souls and capital and second mortgage on the house and maxed out their credit cards to have the small business they wanted. They are certainly not happy it is just another Thursday afternoon ending the week in the Senate. They are desperate to know how to keep their doors open and the three employees on the payroll. We have done some good work in a bipartisan way on that, which needs to continue.

Yet that small business person and the people I talk to in Michigan feel an incredible sense of urgency.

I talk to our family farmers who work night and day, battling the weather and low prices and chaotic trade policies. I have talked to someone raising livestock who can't find a processor that they need right now to make the food for hungry families. They certainly feel a tremendous sense of urgency.

The reality is that there are millions of people across this country who don't understand what is not happening here—why there is no sense of urgency, why there hasn't been a willingness to come together. Why didn't it happen 2½ months ago? What is going on? It appears that too many people don't care.

This is the United States of America. We are one of the wealthiest nations in the world. We invented the assembly line. We put our footprints on the Moon. We are seeing what is happening today. We should never have gotten to this point right now where people are losing 60 percent of their income on unemployment benefits, are hungry trying to feed their kids, worried about losing the roof over their head or their small business or the family farm. We should never have gotten to this point, but here we are.

It has been more than 80 days since the House passed the Heroes Act—more than 80 days. Since that time, our essential workers, who deserve hazard pay, have been waiting. Those providing public services in our cities and towns and in States have been waiting for the support they need so that they don't lose their job and we don't lose those public services. Our businesses, our schools, our farmers all have been waiting, waiting, waiting. The reality is it is because it is just another Thursday—just another Thursday afternoon in the U.S. Senate.

Senator MCCONNELL has made it very clear that they are just going to have to wait some more. Right now, we should be voting on an important survival package for people in our country. We should be investing whatever it takes to manage and get our arms around this virus, do the testing, provide the healthcare, remain laser focused on getting vaccines. People should have confidence that everything humanly possible is being done and that there is a sense of urgency here.

I feel a sense of urgency. My Democratic colleagues feel the sense of urgency. Through the actions on this floor, we do not see that the Senate Republican majority feels the sense of urgency that every single person in Michigan feels right now.

We need to take action. People are tired of waiting. They can't afford to wait any longer. This is about their lives and their livelihoods. People need help. The Congress, working with the President, needs to provide that help, and there is no excuse not to act.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

CORONAVIRUS

Mr. VAN HOLLEN. Mr. President, here we are—another Thursday afternoon in the Senate. It is pretty quiet around here. It is amazing how quickly this place gets quiet when the Senate majority leader, the Republican leader, Senator MCCONNELL, tells people: We don't have any more work to do today. By the way, we don't have any more work to do tomorrow, Friday. By the way, don't worry about Saturday or Sunday. Monday, you know, I will be here, says the Majority leader, but the Senate doesn't need to be here doing its work—maybe not Tuesday or Wednesday either.

I want to thank the Senator from Michigan, Ms. STABENOW, for being down here, standing up for working men and women and families and small businesses because, for them, it is not business as usual. It is not business as usual for all the folks who are out of work.

Thirty million Americans are on unemployment insurance, but here in the Senate, for the Senate majority leader, it is business as usual. Take a day off. Take the weekend off. Be on standby next week. Maybe we will start doing something real.

I can tell you the coronavirus is not on standby. The coronavirus is not taking a day off or 2 days off. It is continuing to spread in many parts of the country. We don't have enough testing equipment. We are not able to test people quickly. It takes people days and days and days and, in some cases, weeks to get their results.

We hear the President of the United States saying he wants to open up the economy and open up schools. We all want to open up the economy. We all want our children back in school, for classrooms are the best place for learning. But do you know what? You can't just wish for that to happen, just like you can't wish for the coronavirus to go away, and that makes it go away. You need to do real work. You need the testing equipment so that we can test people in realtime and make sure that we prevent further outbreaks. We don't want bonfires to turn into brush fires to turn into prairie fires. You need to catch the virus and contain it. You can't do that if you don't have testing equipment.

So the virus is not taking a day off or 2 or 3 or a week, and we shouldn't either. This Senate needs to do its job. We are in the middle of a pandemic. This is not a normal August. This should not be business as usual, and as Senator STABENOW said, we should not be here, at this moment, with important protections having already expired. This Senate sat by and did nothing while the protections against evictions expired. The eviction moratorium that was protecting millions of Americans—gone. The extra $600 a week in unemployment—gone. Yet here we are with the majority leader saying: Take Friday off. Take Saturday off. Business as usual.

Well, that is a difficult thing to tell families and workers and small businesses around the country, and it cannot be business as usual.

The House of Representatives passed the Heroes Act more than 2½ months ago. It realized that after we passed the CARES Act in a bipartisan way, important protections were going to expire, and it acted. The House made sure it passed legislation to extend the enhanced unemployment of $600 a week. It passed legislation to extend the eviction moratorium. It provided additional food assistance for our kids. It provided important funds for rental assistance, which not only helps tenants stay in their apartments and homes but provides the payments to the landlords so the landlords can make the payments to the people they owe money to and on up the economic food chain.

The House did all of that, and what did the Senate do for 2½ months? Nothing. Nothing. It is like a train is heading right for you, and you stand in the middle of the tracks until it hits you when any commonsense person would do what the House of Representatives did, which was to take action to make sure that we didn't cross these deadlines and cause unnecessary harm to millions of American families, workers, and small businesses. That is what the Senate has done.

Now, even after we are into those deadlines—we have crossed those deadlines—what does the majority leader here, the Republican leader, say? Take tomorrow off. Take the weekend off. Take Monday off. In fact, the Senate may not come in for a while. I mean, we will come in, but there will be no voting, no real business.

Let me tell you what I am hearing from my constituents, because I know it is not different from what other Members are hearing from theirs. Here is a letter I received from a single mom.

I live . . . with my 15-year-old son as a single mother. I am asking for your help in voting to extend the $600 Federal unemployment benefit. I understand a lot of politicians do not want this extended due to the thought that the benefit is too great and will prevent Marylanders from wanting to return back to work, in that they make more money from staying at home off of the State/government this way. Now, we all know, if your job calls you back during this time and you choose not to return, your benefits are going to be cut off anyway.

As for me, I am losing thousands of dollars each month being out of work and am barely scraping by as it is now with the extra $600. I desperately WANT TO RETURN to work and make my regular salary, which is more. I am very thankful for the extra $600 a week and have no idea how I would have survived without it during this time. I have zero other means to any money or credit. I have been able to pay my rent, feed my son, and pay some bills. I have deferred my car payment until August and am behind on car insurance. I am desperately asking for your help

and the help of the government to extend this extra $600 a week benefit for a little while longer. Not to sound ungrateful, but an extra $100 or $200 per week is just not enough to help pay rent and other bills. Cutting this benefit abruptly will cause such economic hardship and devastation to so many Americans.

This is a single mother, with a 15-year-old son, who is pleading with the U.S. Senate to do its job. And what does the majority leader say to Senators? Take tomorrow off. Take Saturday off. Take Sunday off. Take Monday off.

I want to read another letter I received on this subject. Here is what my constituent wrote:

I am emailing in hopes of asking for your support to extend the $600 Federal assistance in addition to unemployment. While I realize that the country has to spend more and more during this pandemic, many of us are learning our temporary layoffs are now permanent (I received the call yesterday) and our industries are still completely shut down. I have always worked in the hotel industry and have no further education or experience than that. The hospitality industry is the hardest hit during this pandemic. While I search multiple times a day for jobs, they simply are not open because the industry has not yet recovered. In fact, our industry is downsizing immensely.

I am a single mother to one 5-year-old boy who will start kindergarten in the fall. We do not receive any financial assistance through the State, such as housing assistance or child support. Maryland unemployment of $430 per week will not even cover the rent costs, and we will quickly be evicted with no options for housing.

I am not looking to make more money than I was at my job. That is not possible. I grossed $75,000 in 2019, but I am looking to be able to pay my rent and bills and part-time childcare because it is in the best interest of my son to have social interaction and education during the pandemic even if I am not working. Please—I beg you—please support the extension of the $600 per week benefit.

Now, I have heard a lot of Senators on this floor over weeks and months talk about how we just cannot extend $600 a week. Yet we hear from these moms and parents who are pleading for that help so that they can simply pay their bills and get by. Even with that, they are not able to pay all of their bills.

The Republican leader says to the U.S. Senate: Take a day off. Take 2 days off. Next week, I will be in, says the majority leader, but I don't need for the Senate to be in, doing its work.

What are we all here for? We should be here 24/7, working around the clock together to resolve these issues.

We have a lot of multi, multi, multimillionaires in this U.S. Senate, and it is really rich for all of us to be telling families out there that the extra $600 per week is too much. That is just too much.

These are individuals who want to go back to work. I just read to you a letter from someone who works in the hospitality industry. That is her experience. That is what she knows.

I don't know if our Republican colleagues have checked recently, but the unemployment rate is around 15 percent. There are a lot of people out there who are looking for work who can't find it. They can't find it because we are in the middle of a pandemic, and that has caused a lot of small businesses and others to shut down in order to make sure that we stop the spread of the virus.

These are people who want to get back to work. They want nothing better than that. They want their children back in school. All of us do. Yet we have a failed, botched Federal response, starting with the White House—starting with the President, who has made this a political issue when it has to be a health issue. It has made the problem a lot worse, and we all know it. We all know that this pandemic is lasting longer in the United States and has killed more people in the United States because of a totally failed response right from the top, and we should not be complicit in that. We should do our job.

We have the majority leader, the Republican leader. What is he saying? He is not even part of the negotiations, right? He says: You know, I am in my Republican caucus lunches, and, reportedly, only half of the Republican Senators want to do anything.

I don't know if that is true or not, but that is what Republican Senators are saying on national television. That is what we are hearing from the Republican caucus. So, if that is not true, it would be great to hear all of the Republican Senators come down to the floor and talk about what they are willing to do, not what they are not willing to do. Because there are not the votes there, the majority leader has contracted out his negotiation authority to the White House, and he has told the Senate to go home.

Let's just start doing our job here in the U.S. Senate. Nobody should be contracting out his job and his vote and his negotiating authority to the White House. This is the U.S. Senate. I don't know what people ran for if they just want to say: Oh, I can't deal with this because my caucus doesn't support any response. Go talk to the White House.

In the meantime in the Senate, take Friday off. Take Saturday off. Take Sunday off. Maybe take Monday, Tuesday, and Wednesday off, too.

That is a hell of a message to send to the American people in the middle of a pandemic during which so many people are hurting.

I will end with this. Instead of the majority leader's coming down to the floor today and telling everybody to go away, we should stay here. We should stay here, and we should do our job. Doing our job means coming together with the next round of emergency legislation to slow down and then stop the spread of the virus and help the millions of Americans who are in tremendous economic pain right now. This is not business as usual. The Senate needs to do its job. Let's stay here and get it done.

I yield the floor.

The PRESIDING OFFICER. The Senator from Delaware.

CORONAVIRUS

Mr. COONS. Mr. President, I rise to join my colleagues this afternoon in asking: Is this just another Thursday—is this just another afternoon in a week, in an average year, or in an average August—when it is fine for all of us to simply head to our other commitments and concerns?

Sometimes here in Washington it is awfully easy to feel and be disconnected—disconnected from the daily concerns and grinding anxiety of the pressing issues that make the lives of the folks we represent so different.

I want to start by reminding us of something a Senator—a Senator from Minnesota—once said in the 1970s. It was Hubert Humphrey who said: The moral character of a society can best be gauged by how they treat those at the dawn of life, its children; those in the shadows of life, the disabled, the disadvantaged; and those in the twilight of life, senior citizens.

Well, if that were the measure of this place in this day and this time, then we are failing.

I think every person here, every person listening or watching knows that we are in the midst of three crises at the same time: a global pandemic, the COVID–19 pandemic, in which a highly transmissive disease has spread rapidly across the world. Many other nations have gotten ahead of it, have managed it, have stabilized it, but here in the United States, we have failed to get our arms around it, to stop it, and to deliver the coordinated resources and supplies needed to give some confidence, some positive direction in our public health infrastructure; in our schools, in our senior skilled nursing centers; in our communities. It has gotten away from us.

More than 150,000 Americans have died so far, and States that thought they had it well under control are seeing it reemerge, and States that early on saw no impact are seeing record deaths and infections.

And coming right on the heels of it, a recession—a recession deep and sharp. In the last quarter, a nearly 40-percent drop in our GDP; the sharpest since we began recording that.

And then third, a renewed focus on inequality in our country. We have seen, because of this pandemic and recession and because of the brutal killing of George Floyd, a reminder of the ways in which we are unequal in our access to healthcare, our access to opportunity, our access to housing.

So that is the environment we are in.

Several months ago, we all came to this floor and unanimously voted—unanimously, in this bitter and divided partisan time, we unanimously voted to deliver $2.3 trillion in assistance and support that sent checks to individual Americans and families, that sent checks to those who were newly unemployed, that sent support for small

businesses at risk of going under, that sent support to State and local governments, that sent support to hospitals. It was the single largest spending bill since the Second World War—some reminder of just the seriousness, the gravity, and the scale of this challenge.

And 2 months later, the House of Representatives took up and passed the Heroes Act—another $3 trillion to provide support across many of those same areas.

And for weeks, this body, the majority, failed to act, to propose an alternative, to take it up and examine it, to send something back, to put something on the table. It was just this Monday, the 27th of July, that we got to see the answer, and that answer fails to meet this moment.

I am from a small State, the State of Delaware—a State below a million people. Our Department of Labor, since March, has received over 130,000 claims for unemployment in a State of less than 1 million. More than 1 in 10 Delawareans have filed for unemployment assistance.

We have had huge challenges delivering all over our country the assistance we voted on months ago. Out of that 130,000, 27,000 of them are still waiting to get their unemployment checks.

My office and other offices in our delegation are helping hundreds of individuals and families who have called, who have emailed, who have texted, and who have reached out for help. And yet, this body, through inaction, allowed the additional $600 a week in unemployment insurance that has sustained so many families to expire because we can't work out a simple agreement on how severe this moment is, on how deep the need is, and on what the right path forward is.

When I talk to my Governor, my mayor, my county executive in my home State, in my city, my county, one of their biggest needs is for additional support for State and local governments.

There is robust support in the Heroes Act sent over by the House—$875 billion. That is a lot of money. There is nothing in the HEALS Act presented this Monday. And why? So far, 1.5 million public employees, public servants—State, county, local employees—have been laid off. And some folks I hear on television talking about this speak as if they are faceless bureaucrats in gray buildings.

But they are teachers; they are paramedics; they are nurses in county hospitals; they are the folks who administer these unemployment claims. They are the folks who help support small businesses. They are the folks who help make sure our water is drinkable, that our parks are mowed, that our libraries are functional, and that our schools can open safely.

This moment is the tale of two worlds—a world in the House of Representatives that says we are in a crisis and an emergency, and when the American people see a challenge this big, this deep, they often look to our Federal Government for the resources that will make it possible for their States and their counties and their communities, for their hospital, for their school to get through.

And here there has been a resounding silence for weeks.

I hear week in and week out from parents, from teachers, from paraprofessionals, anxious: How are our schools going to reopen? What is the plan? Where are the resources? What are the details? How do we get testing? How do we get personal equipment—personal protective equipment?

Even now there are conversations urgently going on in my home State about how and when and where we will be able to reopen.

When it comes to childcare, millions of Americans are unable to return to work because there isn't support for childcare.

And when it comes to small businesses, thousands have closed their doors; thousands more are at risk.

We will not get through this unless we can pull together and deliver a sustained and meaningful response.

So to my colleagues and friends, I don't know where the rest of our colleagues are. I don't know what they are hearing, but I know what I am hearing from my constituents in Delaware.

The way they make sure that we don't get disconnected from our home when we are here in Washington, boy, they text; they email; they call; they post on social media. Some even still write good old-fashioned letters.

And the thousands of letters and emails and comments that I got in the first few weeks of this pandemic and recession motivated me—motivated this entire body—to vote unanimously on the CARES Act, one of the biggest moments of Federal assistance in our Nation's history.

So what is going on now? Why the lack of focus? Why the sense this is just another Thursday afternoon?

Well, let me read to you for a few minutes from a few of the folks who have reached out to me from my home State.

Christine in Wilmington lost her job, now, months ago. She is a single mother. She is raising a 12-year-old son. She got just one unemployment insurance check. She has been barely hanging on, and ultimately had to sell her car to buy groceries. She sent me a message, painful in its focus on the urgency of there being an additional $600 in Federal aid.

She has no job prospects in sight. The $1,200 stimulus check that came from the CARES Act months ago and that one unemployment insurance check so far has been critical to keeping food on the table and the lights on and a roof over their head for her son.

She is just one of millions of Americans right now—right now, wondering what it is going to take to get this body to put down the tools of partisanship and work together.

Some folks say: Well, why don't you just go back to work? There is a study out from the Department of Labor that says for every four unemployed Americans there is only one job that is even posted.

And there are others who cannot work because of their family circumstances. A husband and wife from Millsboro who are senior citizens reached out to me. The wife wants to go back to work. She has an opportunity to go back to work, but her husband has a serious, chronic condition, a lung disease, and she is terrified of going back to work, catching COVID, and infecting her husband in a way that would lead to his death.

They have also relied on this additional unemployment, the $600 a week, which, if it runs out, they will have to make very hard choices. She wants to work, but she wants to protect her husband.

A friend of mine, Jeff, runs a small candy store on Rehoboth Beach. This time of year it would normally be just humming with clients and customers, folks stopping in for Snyder's Candy, a great small business. Business is down 50 percent.

He applied for and he got one of those PPP loans in the CARES Act, but he received just $9,000—far too little to keep everyone on his payroll, to stay fully open, and he is waiting, waiting to see if we will work together to come up with a compromise, with a next step, with a next round of loans.

Another person, a woman Shari, who runs a daycare in Wilmington, small daycare in her own home. She had six families whose children she cared for. Even if she is able to reopen fully and safely, she has heard from those six families. Only two of them are coming back. So she is going to have to close her business, which means she loses her wages, and the families lose childcare.

She has seen firsthand that parents can't go back to work if they don't have childcare. There is funding for childcare in the House bill—so far none in the Senate bill.

And Robert, a man from Newark, DE, works in the entertainment industry. One of the areas hardest hit is the small stages, the entertainment venues that are so important to the vibrancy of our communities and our culture.

He has been relying on unemployment to pay his bills—that extra $600 a week. Robert's message to me:

> When the stimulus runs out, where do I turn? Do I have my vehicle repossessed? Do I not pay my mortgage or buy food? I have worked my entire life and I am ready to get back to it as soon as there is clear direction for society to follow. Unemployment is not a choice—it is an unfortunate byproduct of not taking this virus seriously enough in the beginning.

The publisher of a storied local newspaper in Sussex County shared with me a story that once their PPP funds were exhausted, they had to lay off 20 percent of their full-time staff, half of their contract employees, and he said:

> The uncertainty in regard to the economic condition over the next few months certainly

weighs heavy on the Cape Gazette and our industry as a whole. The loss of local news would be devastating to communities, big and small, across the country.

I can see that I have colleagues eager to join me in these remarks on the floor, so let me bring this to a close.

One of the moments this became most real for me was when the Delaware Food Bank partnered with the Delaware National Guard to provide supplemental food for Delawareans.

I was out at the Christiana Mall, just off I–95—huge parking lot. The mall, of course, closed. This was early on in the pandemic.

We thought we would see dozens, maybe 100 households lined up in their cars to get some extra food, much of it from Federal sources.

The line went all the way around the mall. Hundreds and hundreds of Delawareans—people who later commented either on radio or letters to the editor that they never thought they would be in a food line.

Not since the Great Depression have the food banks of this Nation seen lines as long and made up of as diverse a background and groups asking for, eager for, willing to accept, hoping for support for them and their families.

This year alone, 50,000 Delawareans have turned to our food banks so that they can put food on the table for their families.

I don't know what my colleagues are reading, what emails they are getting, what calls they are answering, what texts or posts on social media are moving them, but I know that the Delawareans that have reached out to me have shared with me the pain of 150,000 Americans who died, have shared with me the anxiety and concern about how schools and businesses will reopen, and have asked: When will we do our job? Work across the aisle, find responsible compromise, and support our Nation in this moment of crisis.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

CORONAVIRUS

Ms. HASSAN. Mr. President, since the early days of the COVID–19 pandemic, it has been clear that we would need a sustained response to mitigate the damaging health and economic impact facing the American people.

When Republicans and Democrats came together to pass the CARES Act in March, I, along with my Democratic colleagues, made clear that we would need to stand ready to provide additional, robust support as the situation demanded.

This afternoon we have been hearing from our colleagues. I thank Senator STABENOW for gathering us here. I thank Senator COONS for the way he just illustrated in such personal, direct terms the way this pandemic and all of its ripple effects are impacting his constituents, as they are impacting my constituents and constituents of every single Member of the U.S. Senate.

Unfortunately, the Trump administration and Washington Republicans have not met the challenges facing the American people today with any sense of urgency, and the cost of that inaction has been seen all across the country. But, today, Senate majority Leader MCCONNELL decided to act as if this were just any other Thursday—just any other Thursday for the Republicans in the Senate.

Well, it is not just any other Thursday for our constituents. Back in May, House Democrats passed a substantial relief bill called the Heroes Act, but for months, Republicans refused to even acknowledge the necessity of providing more relief. In the 3 months since the House acted, the pain that our citizens are experiencing has only grown. Cases have skyrocketed. The United States of America is approaching 160,000 Americans killed by this virus. Small businesses have shuttered, and millions of people have lost their jobs.

Meanwhile, President Trump continues to downplay the significant toll that this virus has taken. Earlier this week he said this of the COVID–19 death toll: ''It is what it is.''

Just yesterday, he again claimed that the virus would simply go away. Not recognizing the gravity of this threat has significantly harmed Americans and America. While Congress can't undo the damage that has been done, I am urging my colleagues to come together on a response that will lead us forward. Throughout this week, I have joined with my colleagues to come to the floor and to lay out some of the priorities that we are focused on and to share what we are hearing from people all across our States.

The cost of inaction grows every single day. Millions of Americans lost enhanced unemployment benefits and with it the ability to feed their families and pay their rent. People will lose their homes now to evictions. By the way, their landlords will feel the ripple effect when they can't pay their rent. Their grocers will feel the ripple effect when they can't buy groceries. The economic pain will spread and spread and spread.

Lack of supplies and testing capacity—a national disgrace months into this pandemic—is hindering the ability to slow the spread of the virus and, of course, hindering the ability of people to get back to work and school safely.

Schools are struggling to open without the adequate guidance that the Federal Government could provide and without resources that they need to keep teachers, staff, students, and families safe.

States and local communities are accelerating cuts and, with it, adding to job losses and lost economic activity.

Americans are hurting. They are hurting in red States, and they are hurting in blue States. They are crying out for help.

One of the great privileges of this job is that people come forward with their ideas, with their hopes, with their fears. They share incredibly personal details about the challenges that they face and then are also so willing to share with us their successes too. We get to witness our constituents and work with them in difficult times and in good times, and they are willing to share that with us. They demonstrate to us day in and day out what it means to be a member of a community, what it means to come together and solve a problem. They do it in their businesses. They do it on school boards. They do it without regard to political party or walk of life.

The least we could do in the U.S. Senate on this Thursday, over this weekend, over the next week, is follow their example, represent them at their best, display that American ingenuity, innovation, pragmatism, compromise, can-do spirit. In the process we could save lives; we could begin to rebuild our economy; and we could demonstrate to the rest of the world that we know how to come together and work for what is best for all of us.

We must help our constituents. We must act. Our country cannot wait any longer.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

CORONAVIRUS

Mr. WYDEN. Mr. President, Senator STABENOW said some time ago that this is not just another Thursday. She and my eloquent colleagues, Senator COONS and Senator HASSAN, who has just left the floor, have shown how painfully true Senator STABENOW's statement is about letting this not be just another Thursday here in the Senate.

With Republican colleagues headed home for the weekend, perhaps for weeks, I want to take stock for a moment of all of the very crises the country faces while American families and communities don't have the luxury of a weekend. There is the COVID crisis, which Senator STABENOW and Senator COONS just talked about, with more than 50,000 newly confirmed cases and 1,000 or more deaths a day with a total of 4½ million cases in our country to date.

There is the joblessness crisis. Enhanced unemployment benefits have expired. Tens of millions of Americans are out of work, with millions walking on economic tightropes.

My colleagues are reading the letters. This is not based on some kinds of media reports. They are reading directly from what their constituents are saying, and I want to make sure everybody knows this, having listened now for days to our colleagues saying that the big problem is that somehow the American worker doesn't actually want to work. Senator STABENOW and I have heard that repeatedly in the Finance Committee room. I think it is insulting to the American worker.

We had a nationwide townhall sponsored by the Town Hall Project on unemployment issues recently, and people would say things such as this: If I heard about a job on Monday night, I would be there at the crack of dawn on Tuesday morning to get that position.

So, as we take stock of these crises, the COVID crisis, the joblessness crisis, I think what we ought to do is add the crisis of legislative malpractice that we are seeing with this Senate Republican walkout today, heading home instead of working, as Senator COONS has said, in a bipartisan way to get the coronavirus rescue bill.

I have not seen anything like this in my time in public service: The biggest public health disaster in over a century, the worst level of unemployment since the Depression, an economy that barely holds on, and tomorrow's jobs report will almost certainly show that any hope for a V-shaped recovery that Donald Trump talked about is long gone.

Republicans delayed and sat on their hands for months. I think the Presiding Officer heard me walk everybody through the calendar, how weeks passed, months passed. We made offer after offer for negotiation. Senator SCHUMER and I developed a proposal that to a great extent was based on some of the thinking of Senator THUNE.

I always think of my friend from Delaware, who is the champion of bipartisanship. That proposal was based on Senator COON's—excuse me, Senator THUNE's thought that, you know, if unemployment is high, people need a benefit so they can make the rent and pay for groceries. Then Senator THUNE said: But, you know, when unemployment goes down, the benefits should reflect that as well. He said that.

So Senator SCHUMER and I wrote the unemployment insurance bill to reflect that. The unemployment benefits would be tied to economic conditions on the ground.

Yet what we have seen is that somehow Senate Republicans can now leave in good conscience for the weekend, possibly the August recess, when the Senate hasn't passed a bill to help all of those Americans who are sick and jobless.

Our job is to legislate on the big issues, not to run home and campaign. Our job is to sit down, negotiate, and find solutions. MITCH MCCONNELL, on the basis of this morning's newspaper, doesn't seem to even show up at the negotiating table.

Now, as I mentioned, we have been warning for days and weeks and months that enhanced unemployment benefits were going to expire at the end of July. Republicans sat on their hands.

Earlier, we heard Senate Republicans talk about how they had a 1-week proposal which, of course, wouldn't—based on the unemployment experts—get any real help to people who need that money for rent and groceries anytime soon. The Senate Republicans said: You know, workers are going over the cliff.

Well, the fact that Republicans have sat this debate out is what pushed those workers over the cliff—pushed them over the cliff—as we warned week after week after week that the economy was cratering and permanent layoffs are increasing.

Senator MERKLEY has joined us. We hear all the time at home and in the Pacific Northwest about people who got laid off once, things seemed to be getting better, they got brought back, and they were laid off again. So it seems—when Senator STABENOW points out that this is not just another Thursday in the Senate—that the economy is headed in the wrong direction.

I am just going to spend a couple of minutes, as we talk about this issue of how things are definitely not right here on this Thursday in the Senate, on the question of what would it take for Senate Republicans to get serious about working with us on a coronavirus bill now? How bad would it have to get? One-quarter of a million Americans' lives lost? Half a million? How many jobless? 40 million? 50 million? Does the economy need to contract even more than it did in the second quarter before Senate Republicans say they are going to work with Democrats to help the economy and help the Congress?

Back in March, there was a basic deal between the American people and the government to try to make sure that there was an effort to try to provide help for people as the pandemic took hold in this country. Senator STABENOW and I were sort of the point people as it related to the big issues in the Finance Committee. Senator STABENOW, doing her usually terrific job on the big health issues, and I spent days and days hearing essentially from the Labor Secretary, Secretary Scalia, about how he really wasn't going to push hard for much of anything except business as usual. But after that difficult period that went on for days and days in the Finance Committee, we actually got the $600 extra per week, each week, and modernized the unemployment program. As Senator STABENOW knows, back when the program began in the 1930s, nobody knew about a gig worker or the self-employed, or the independent contractor, or freelancers, and the like. There was a sense that we would be working on unemployment for a long time, particularly the way it was administered, because the States have these kinds of bronze-age technologies. One of the frustrating parts of this period is that even though millions and millions of Americans have gotten those extra benefits, that is really cold comfort to the many people who haven't been able to get through the system and who haven't been able, call after call after call, to get their claim resolved. Yet there was the beginning, based on that vote, of a strategy to help people get through the economic hardship.

Right now, the Trump administration and Republicans in the Congress are breaking that deal. The virus is out of control, spiking in so many States. The key economic lifeline for jobless Americans is getting yanked away. It is just unconscionable.

And, now, just in the last few hours, there is talk that Donald Trump is looking at possibly tomorrow, Senator STABENOW, tearing up the Constitution and ordering a cut in the Social Security and Medicare tax on his own. This will not give a dime to the millions of families who have lost jobs during the pandemic but will put thousands of dollars in the pockets of every lawyer and wheeler-dealer who can pay themselves a salary while sitting at home.

What really concerns us—and I have been involved in these issues since my Gray Panthers days—is one thing that Donald Trump is talking about, Senator STABENOW, and that is draining the Social Security trust fund and bringing closer the day when Social Security benefits will be cut. So for all of those people who are, say, in their late fifties, and they have worked so hard and done difficult labor year after year after year just hoping—hoping—to be able to get Social Security, now Donald Trump is talking about draining the Social Security trust fund, cutting the Social Security and Medicare tax on his own. It sure seems like he has a monopoly on bad ideas.

He is also talking about some kind of Executive order on enhanced unemployment benefits, which he actually doesn't have the authority to issue—one more Donald Trump ''con'' oil, an additional bit of snake oil.

With respect to the unemployment issue and his idea of an Executive order, what he would do there is throw State workforce agencies into chaos. As we talked about, so many States have faced real challenges in getting benefits out to all the deserving Americans.

We have been trying, on the Finance Committee. Senator STABENOW has been a big champion of improving technology. We got $1 billion for the State agencies. We are trying to get more. Donald Trump's proposal would just end up hurting the jobless Americans counting on benefits even more. If Donald Trump were serious about extending enhanced unemployment coverage, he would be working with Democrats on extending the benefits instead of fighting them.

I am going to close with this, and it is a response to something I have heard from many of my Republican colleagues who seem to have recovered their sense of fiscal conservatism that disappeared when Donald Trump was inaugurated. I heard some of them say that passing another COVID bill would amount to sacrificing our children's futures.

Here is what is worse for American children: growing up at a time when their parents can't find good-paying jobs because of double-digit unemployment, getting evicted from their homes

in the middle of a pandemic and becoming homeless, having to skip meals because their family can't afford enough food each month, going to school in a district that laid off teachers and staff due to the coronavirus recession, which means packing too many kids into classrooms, which can be dangerous.

Let's forget about all of that same old Republican deficit talk. It is the same old routine from a decade ago and a decade before that and a decade before that. The Republican deficit talk was nowhere to be found when they passed—over the opposition of Democrats on the Finance Committee—a $2 trillion tax handout overwhelmingly benefiting multinational corporations and the wealthy.

Americans struggle with the pandemic and the joblessness crisis right now. The Senate needs to deal with it right now.

As Senator STABENOW said—she eloquently launched this important discussion, and I know my friend from Oregon is here to be part of it—it is certainly not another Thursday in the Senate, not another garden-variety, end of the week when you have enhanced unemployment benefits expiring, and 160,000 Americans dying. It is unthinkable—unthinkable—that anybody could be going home when there are so many challenges right in front of us.

I hope the majority leader, Senator MCCONNELL, and my Republican colleagues understand the power of what Senator STABENOW has basically outlined, because there are times on a Thursday afternoon in the Senate where I think you could say you wouldn't have the kinds of challenges we are talking about. This is not one of them. This is one where, on issue after issue, there are crises: the COVID crisis, the joblessness crisis, and now we have a legislative malpractice crisis by Senator MCCONNELL leading his Senators.

I urge him to come back, work with us, bring about the negotiations we need, as I said again and again, on unemployment.

I am not going anywhere—not anywhere. This is one of the most important causes I have ever had the opportunity to be a part of. Even with all of the challenges with unemployment, I can only imagine, Senator STABENOW, how much more hurt there would be in America without those millions of people getting the money for groceries and rent and paying medical bills and car insurance and keeping the lights on.

We need the majority leader and Republican colleagues in the U.S. Senate to work with us. There is no time to waste. They ought to be recognizing the power of what Senators have said here today. That negotiating needs to take place now rather than having yet another break for Senators to pursue other kinds of matters.

I thank my colleagues.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

CORONAVIRUS

Mr. MERKLEY. Mr. President, is this just another Thursday? Are things going along well in America, with nothing to worry about, nothing to keep us up at night, nothing to keep mothers and fathers up worried about the health of their children? Is this just another Thursday with America doing well, or are we here in the midst of the worst pandemic in a century since the Spanish flu? You wouldn't know it from this Chamber. You wouldn't know it from the majority leader's shutting this place down.

Is it possible that we are in the worst economic implosion since the Great Depression? Is this just another Thursday?

You wouldn't know that we are in a terrible economic collapse based on the fact that the majority leader is treating this period of time like just another Thursday, when everything is fine and everything is good in America.

It is almost 3 months ago that the House passed a robust bill to address the pandemic and to address the economic implosion—3 months ago. Why didn't the Senate say immediately, we will act, as well, because we are having big issues in America? They didn't act after the first week after the House acted. They just treated it like another week, no concerns. They didn't act in the second week. We are now 11 weeks since the House acted and still the majority leader says: Don't worry, be happy. It is just another Thursday. All is good in America—no concerns, no anxiety, no worry. Just be happy.

I can tell you what I am hearing from Oregonians. They are saying it is not just another Thursday. They are saying our State government is estimated to lose $10 billion in revenue over the next two bienniums—a little less than $3 billion this biennium, a little more than $4 billion in the next biennium, and about $3 billion after that. That is $10 billion of lost revenue for core programs, like healthcare, housing, education, and transportation. That is a pretty big deal in terms of the foundations for the programs Oregonians count on.

I am hearing from a whole lot of parents—moms and dads—and they are saying: This is not just another Thursday. We are worried about our children's education.

I recognize there are a lot of rich people in America paying for tutors for their children, maybe two tutors for a child—maybe a math tutor and a reading tutor, maybe a special education tutor, who knows—because they are rich.

You know what, most of America are ordinary Americans who count on the quality of our public schools. I can tell you, a lot of parents are worried about how are they going to be able to have an education for their children given the challenge in the school if the school can't afford to convert the way it operates, either in the school, in a very altered manner, or providing workstations and computers and broadband so every child has the ability to work online.

Now, we know that even that is going to be far insufficient because so many children are in households where there isn't going to be the type of full-on, all-day assistance to help them utilize that online access. We know that. Shouldn't we be providing the resources to minimize the gap between the best-off and ordinary families? Shouldn't we be trying to do everything for our children?

My dad was a mechanic. A mechanic who works in the sawmill is called a millwright. He said it is the best job in the world. If he could keep the machinery humming, it meant that every worker had a job to come to, and it meant the company made money. Everybody was happy if he could keep the machinery running, and he did. He did a marvelous job.

He was pretty disappointed when the company was bought by an investor and the mill was shut down overnight and the timber that the company had was sold to another company, a bigger company. But, in that context of a father with a powerful ability to keep machinery humming that would benefit so many other people, he loved the fact that we had good public schools.

He told me: Son, because we live in America and have these public schools, if you go through the door of that schoolhouse and you study hard, you can do almost anything in our country.

What a glorious vision for an ordinary, working American to say to their child: Because we live in America, you can do almost anything, in our country. The horizons are boundless because we have good public schools.

But it is 11 weeks since the House acted. Have we acted to provide good public schools? All of our teachers and our administrators and our parents and our school boards are saying we are just around the corner from the ordinary start of school. It is either just before or just after Labor Day.

Where is the U.S. Senate? MITCH MCCONNELL sent us home. He shut this place down while our children's education, preparation for a very unusual and difficult year, goes untended because there aren't the resources.

I can tell you, I am hearing a lot from the medical community. My wife, Mary, is a nurse. She is a home hospice nurse, so she goes and coaches families as their loved one goes through the final chapter of their life here on our planet. A lot of these folks that she visits, because they are in hospice, it, by definition, means they are quite ill. Often, the families around them are elderly, and they are very concerned about any presence of COVID, coronavirus. What she hears is that we need to tackle this pandemic.

What do the scientists and healthcare experts say? They say a national investment in personal protective equipment; they say a national investment in a testing strategy to be able to do massive numbers of tests to help identify folks who are carrying the virus and spreading the virus but are asymptomatic, as well as those who actually have symptoms; and a massive national investment in tracing so that we can follow up when somebody is identified as carrying the virus—Who did they get it from? Who did they have contact with?—so those folks can go into quarantine and stop the chain of infection from person to person to person.

The House, 11 weeks ago, passed a bill that has massive resources for testing and tracing, and for 11 weeks, the leadership of this body has said: Not needed. Let's do nothing. Let's just treat this as just another Thursday. No concern.

Then I hear from folks who are really worried about the nutrition for our children—not just the education but nutrition. We worked hard to get the EBT program to help out because of school sites being shut down, but what about this coming year? Why aren't we helping with nutrition?

The House, 11 weeks ago, acted, but here, it is just another Thursday—no crisis, no concern when children across America are going hungry. The bill that the House passed had resources for State and local government to help address the hemorrhaging of funds. I noted that Oregon predicts, just in its State government, a loss of $10 billion over next three biennium—or this biennium and the next two. For them to sustain their basic programs, they need help.

I heard today from the president of one of our public universities—our 4-year university, Oregon State University in Corvallis—and they were estimating a massive loss of revenue. They need this bill, which would direct support for our 4-year institutions. They know that the State, if it is going to be able to sustain its support for the universities, so that the money doesn't come in the front door and out the back door, we need to provide help to the State government. I know this isn't a blue-red issue. I know that blue and red Governors are saying the same thing. I know blue and red county commissioners are asking for the same help.

So I say to my colleagues, it is morally unacceptable to just say: This is another Thursday. All is well. We have waited 11 weeks to act after the House. What is another week? What does it matter if a family that has been able to pay its rent or its mortgage or its utilities or put food on the table because they got $600 a week extra help in unemployment, what does it matter if they lose their home? What does it matter if they are evicted?

Well, I will tell you this: It matters a hell of a lot—a huge impact on that family for a long time to come. I don't know how many of my colleagues have worked in the area of assisting homeless families, but when you are destabilized, when you are tossed out, when you experience homelessness, when you are living in your car with your kids or it is a basement this week and it is a van the next and who knows what shelter will let you in, it destabilizes and knocks you down for a long time. It makes it hard to get ready to go to a job interview. It makes it hard to present yourself effectively in a job interview. It puts all kinds of stresses on the family relationship.

Is it really OK that we shut the Senate down when families are going to be evicted because we shut off that $600 per week and the moratorium on evictions expired?

This, colleagues, is not just another Thursday. This is a moment of national crisis, a pandemic crisis, an economic crisis, and we need to be in crisis mode. We need to be here day and night. We need to be working on each of these issues that were addressed 11 weeks ago in the House while this body sat on its hands.

Sitting on your hands when the people of America need us, that is not acceptable in the U.S. Senate. Let's act boldly. Let's act decisively. Let's recognize that we must rise to meet this national challenge and do so now.

I yield to my colleague from Michigan.

The PRESIDING OFFICER. The Senator from Michigan.

CORONAVIRUS

Ms. STABENOW. Mr. President, I want to thank both of my friends from Oregon. We are Oregon strong on the floor. We have great, powerful, effective Senators from Oregon, and I want to thank Senator MERKLEY for his words, as well as my colleagues and friends from Delaware and New Hampshire and Maryland.

We are on the floor today because we know this isn't just another regular Thursday where you can close up for the week and go home and do whatever is going to be done and then maybe come back Monday, maybe Tuesday, maybe Wednesday. We don't know because we don't know what is happening on negotiations. But, oh, well, there is no real sense of urgency anyway, right?

There is an incredible sense of urgency, and, as we have been saying this afternoon, this should not be treated like just another end of the Senate week on a Thursday afternoon. We have the largest health pandemic in a hundred years. As of today, it is about 160,000 deaths in this country. You can't even wrap your head around that: 160,000 people. Yet we are a little over 4 percent of the world's population. We have 25 percent of the deaths.

This did not have to happen. This should never have happened. It should never have happened. And to be in a situation where people are acting as if we have got all the time in the world—how many people have to die before we wrap our arms around what is happening and have a national strategy on testing and on contact tracing and a national strategy to make sure we have all of the testing materials and the PPE and everything that our doctors and nurses and other professionals need and we are treating this with the seriousness that it deserves?

This is a health pandemic. We have to get our arms around this. We have to be able to manage it until we can get vaccines. We did come together and work together on a bipartisan basis in the beginning. That is what is just so frustrating and disheartening and maddening about this situation we are in now, as we go forward, because it is not done.

I wish it was, for my own family and everyone else's. It is not even close to being done, and we have a responsibility to continue to be there and to have people's backs to address the pandemic and all of the economic hardship that has happened as a result of that.

Now, in the CARES package, it was comprehensive. It was great that we were able to come together. One of the things was that the Treasury, the Fed, was able to basically have the capacity to have a safety net under the stock market, under our large businesses: Don't worry. Keep investing. We have got a safety net for you.

But for somebody on unemployment, somebody who is worrying about feeding their children tonight, tomorrow, the next day—somebody who is worried that the water is going to get shut off or they are going to lose their shelter right in the middle of a pandemic when we tell people, ''stay home and, by the way, wash your hands frequently,'' and then the water gets turned off or you have no shelter and you are on the street or you can't feed the kids, or the additional money—the $600 that was allowing you to pay those bills—goes away, which is about a 60-percent cut, in Michigan, for people getting help—no safety net for you. Unh-unh.

There are over 31 million people right now who are on unemployment insurance, and somehow, people want to have us believe that nobody wants to work, that there are over 31 million jobs out there and people just don't want to take them; they just don't want to work.

I can tell you that is not true in Michigan. People in Michigan work. We grow things. We make things. We innovate. We build things. People in Michigan work and work hard.

It is not their fault that we have a 100-year health pandemic that has pushed everybody back down and taken away the capacity for businesses to be safely open and for people to continue their jobs. People would expect that in the United States of America all of us would care about that and that it wouldn't just be another Thursday afternoon, closing up shop for the weekend or beyond.

There is one other thing I want to stress when we talk about supporting communities right now. The President said: It is up to the Governors to step up. It is up to local communities to step up to keep people safe. No national response is necessary.

It is the Governors, the mayors, the county commissioners. They have done that. They have done that. They took all of their resources to make sure they could do everything humanly possible to make sure they could help people be safe: Get the PPE, create a way for people to get testing, do all of the other things to help people. Now, for the Senate and for the President of the United States to say that we have no responsibility to step up and have their back and support them is incredibly irresponsible.

What I find so interesting—who are we talking about locally? We want the restaurants to open. Yet you have to have a food inspector before you can open the restaurant. In Michigan, that is funded through the county—through county government.

We are concerned about first responders—police and fire and 9–1-1 call centers and all of the people who respond to keep us safe. Do you know who the largest group is that will be losing their jobs without help for local communities and States? It is the first responders and law enforcement.

In fact, I had a very prominent police leader in Michigan tell me that the only people he saw trying to defund the police were Donald Trump and MITCH MCCONNELL because they didn't and aren't—the Senate Republicans aren't willing to step up to support funding for first responders, as well as the public health department, as well as the teachers, as well as everyone else involved.

These are not normal times. These are not normal times in terms of the health risks for families. These are not normal times in terms of our economy and what is happening—not even to count the fact that racial disparities are on full display now in front of us in every part of our economy and services.

This is not a normal time. This should not be a normal Thursday afternoon in the U.S. Senate. Every single one of my Democratic colleagues feels a sense of urgency and panic about what is happening. People need help. There are incredible hardships, and they deserve that help.

The U.S. House of Representatives passed help over 2½ months ago. Senator MCCONNELL at the time said that he felt no sense of urgency. In fact, he suggested that States and cities go bankrupt. That is one way to do it: Lay off all the police officers, firefighters, food inspectors, teachers.

People in our country—and I know people in Michigan—feel an incredible sense of urgency to both manage and get beyond this healthcare pandemic, which is not going to be easy. It is going to take all of us working together. But they are anxious to do that, and they are anxious to open up the economy safely and to open up our schools safely and to know that there is some sense of normalcy that we can count on again.

That is going to take all of us working together on a bipartisan basis to get it done. It is going to take a sense of urgency, a sense of responsibility for the role that we play at this moment in time in the history of our country and people's lives. It is going to take a lot of hard work. It is going to take political will more than anything else because the other things we can do. We have to decide we to want to do them.

I hope very, very soon that Senator MCCONNELL, our Senate Republican colleagues, the President and the White House decide that they want to work with us to really get things done for people all across our country.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to executive session for the consideration of executive Calendar Nos. 820 through 832 and all nominations placed on the Secretary's desk in the Air Force, Army, and Coast Guard; that the nominations be confirmed; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The nominations considered and confirmed are as follows:

IN THE MARINE CORPS

The following named officers for appointment to the grade indicated in the United States Marine Corps under title 10, U.S.C., section 624:

To be brigadier general

Col. Jason G. Woodworth

IN THE ARMY

The following named officer for appointment in the United States Army to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be general

Lt. Gen. James H. Dickinson

IN THE AIR FORCE

The following named officer for appointment in the United States Air Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be general

Lt. Gen. Glen D. VanHerck

The following named officer for appointment in the United States Air Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Lt. Gen. Richard M. Clark

The following named officer for appointment in the United States Air Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. Sam C. Barrett

IN THE SPACE FORCE

The following named officer for appointment in he permanent grade indicated in the United States Space Force under title 10, U.S.C., section 716:

To be major general

Maj. Gen. Nina M. Armagno

The following named officer for ointment in the permanent grade indicated in the United States Space Force under title 10, U.S.C., section 716:

To be major general

Maj. Gen. William J. Liquori, Jr.

The following named officer for appointment in the permanent grade indicated in the United States Space Force under title 10, U.S.C., section 716:

To be major general

Maj. Gen. Bradley C. Saltzman

The following named officer for appointment in the permanent grade indicated in the United States Space Force under title 10, U.S.C., section 716:

To be major general

Maj. Gen. Stephen N. Whiting

The following named officer for appointment in the United States Space Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. Nina M. Armagno

The following named officer for appointment in the United States Space Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. William J. Liquori, Jr.

The following named officer for appointment in the United States Space Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. Bradley C. Saltzman

The following named officer for appointment in the United States Space Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. Stephen N. Whiting

NOMINATIONS PLACED ON THE SECRETARY'S DESK

IN THE AIR FORCE

PN1790 AIR FORCE nominations (74) beginning VINCENT W. ABRUZZESE, and ending MONICA SARAI ZAPATER, which nominations were received by the Senate and appeared in the Congressional Record of May 4, 2020.

PN1832 AIR FORCE nomination of Peter B. French, which was received by the Senate and appeared in the Congressional Record of May 11, 2020.

PN2140 AIR FORCE nomination of Laura A. King, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

PN2141 AIR FORCE nomination of Ismael H. Soto Rivas, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

IN THE ARMY

PN1560 ARMY nomination of Benjamin J. Powell, which was received by the Senate and appeared in the Congressional Record of February 13, 2020.

PN1953 ARMY nomination of Alfredo Carinorivera, which was received by the Senate and appeared in the Congressional Record of June 2, 2020.

PN2142 ARMY nomination of Alexander V. Harlamor, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

PN2143 ARMY nomination of Keith A. McGee, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

PN2144 ARMY nomination of LeRoy Carr, III, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

PN2145 ARMY nomination of Cherryann M. Joseph, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

PN2146 ARMY nomination of William H. Putnam, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

PN2147 ARMY nomination of Dana M. Murphy, which was received by the Senate and appeared in the Congressional Record of July 28, 2020.

IN THE COAST GUARD

*PN1900 COAST GUARD nomination of Peter H. Imbriale, which was received by the Senate and appeared in the Congressional Record of May 11, 2020.

*PN2020 COAST GUARD nominations (2) beginning NICHOLAS C. CUSTER, and ending NICOLE L. BLANCHARD, which nominations were received by the Senate and appeared in the Congressional Record of June 17, 2020

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the en bloc consideration of the following nominations: Executive Calendar Nos. 833 and 834.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the nominations en bloc.

The legislative clerk read the nominations of Hester Maria Peirce, of Ohio, to be a Member of the Securities and Exchange Commission for a term expiring June 5, 2025 (Reappointment); and Caroline A. Crenshaw, of the District of Columbia, to be a Member of the Securities and Exchange Commission for a term expiring June 5, 2024.

Thereupon, the Senate proceeded to consider the nominations en bloc.

Mr. MCCONNELL. I ask unanimous consent that the Senate vote on the nominations en bloc with no intervening action or debate; that if confirmed, the motions to reconsider be considered made and laid upon the table en bloc; that the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the Peirce and Crenshaw nominations en bloc?

The nominations were confirmed en bloc.

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I ask unanimous consent the Senate proceed to consideration of the following nomination: Executive Calendar No. 810.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the nomination.

The legislative clerk read the nomination of Christopher C. Miller, of Virginia, to be Director of the National Counterterrorism Center, Office of the Director of National Intelligence.

Thereupon, the Senate proceeded to consider the nomination.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate vote on the nomination with no intervening action or debate; that if confirmed, the motion to reconsider be considered made and laid upon the table; that the President be immediately notified of the Senate's actions.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the Miller nomination?

The nomination was confirmed.

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I ask unanimous consent the Senate proceed to the en bloc consideration of following nominations: Executive Calendar Nos. 549, 792, 793, 794, 795, 796, 797, 798, 802, 803, 804, 806, 807, and all nominations on the Secretary's Desk in the Foreign Service.

The PRESIDING OFFICER. Without objection, it is so ordered.

Thereupon, the Senate proceeded to consider the nominations en bloc.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate vote on the nominations en bloc with no intervening action or debate; that if confirmed, the motions to reconsider be considered made and laid upon the table en bloc, and that President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the nominations of Sung Y. Kim, of California, a Career Member of the Senior Foreign Service, Class of Career Minister, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Indonesia; Natalie E. Brown, of Nebraska, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Uganda; Sandra E. Clark, of Maryland, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Burkina Faso; Joseph Manso, of New York, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, for the rank of Ambassador during his tenure of service as United States Representative to the Organization for the Prohibition of Chemical Weapons; Henry T. Wooster, of Virginia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Hashemite Kingdom of Jordan; Jason Myung-lk Chung, of Virginia, to be United States Director of the Asian Development Bank, with the rank of Ambassador; Richard M. Mills, Jr., of Texas, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be the Deputy Representative of the United States of America to the United Nations, with the rank and status of Ambassador Extraordinary and Plenipotentiary and the Deputy Representative of the United States of America in the Security Council of the United Nations; William Ellison Grayson, of California, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Estonia; William W. Popp, of Missouri, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Guatemala; J. Steven Dowd, of Florida, to be United States Director of the European Bank for Reconstruction and Development; Ramsey Coats Day, of Virginia, to be an Assistant Administrator of the United States Agency for International Development; Richard M. Mills, Jr., of Texas, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Representative of the United States of America to the Sessions of the General Assembly of the United Nations, during his tenure of service as Deputy Representative of the United States of America to the United Nations; Jenny A. McGee, of Texas, to be an Assistant Administrator of the United States Agency for International Development; and the Nominations Placed on the Secretary's Desk in the Foreign Service: PN2067 FOREIGN SERVICE nominations, (101) beginning with Shefali Agrawal, and ending with Michael B. Schooling, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020; PN2068 FOREIGN SERVICE nominations (214) beginning with Anna Mae G. Akers, and ending with Ismat Mohammad G. Omar Yassin, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020; PN2069 FOREIGN SERVICE (43) nominations, beginning with Jonathan Paul Ackley, and ending with Amanda B. Whatley, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020; PN2070 FOREIGN SERVICE (11) nominations, beginning with Jeffrey Thomas Albanese,

and ending with Katherine Rose Woody, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020; PN2071 FOREIGN SERVICE nominations (5) beginning Erin Elizabeth McKee, and ending Dana Rogstad Mansuri, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020; PN2072 FOREIGN SERVICE nominations (27) beginning Lawrence J. Sacks, and ending Bruce F. McFarland, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020; and PN2073 FOREIGN SERVICE nominations (3) beginning Deanna Scott, and ending Christopher Walker, which nominations were received by the Senate and appeared in the CONGRESSIONAL RECORD of June 29, 2020?

The nominations were confirmed en bloc.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to legislative session for a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING THE REVEREND DR. C.T. VIVIAN

Mr. DURBIN. Mr. President, in his powerful eulogy for Congressman John Lewis, President Barack Obama described John Lewis as a man who ''brought this country a little bit closer to our highest ideals.'' President Obama went on to say, ''And someday when we do finish that long journey towards freedom, when we do form a more perfect union—whether it's years from now or decades or even if it takes another two centuries—John Lewis will be a founding father of that fuller, fairer, better America.'' Such a beautiful and fitting epitaph.

Another founder of that ''fuller, fairer, better America'' was the Reverend Dr. C.T. Vivian. C.T. Vivian and John Lewis departed this life on the same day. The timing of their leaving is proof, perhaps, that Mark Twain was right when he said that history does not repeat itself, but sometimes it rhymes.

Who was C.T. Vivian? Martin Luther King called him ''the greatest preacher ever to live.'' The Reverend Gerald Durley, who met C.T. Vivian in 1960 when Durley was a member of the Nashville Student Movement and who delivered the eulogy at his home going, called Dr. Vivian ''the most patient impatient man'' he ever met. Patient with people but impatient with injustice.

C.T. Vivian was mentor to John Lewis, Diane Nash, and many other brave young civil rights activists a half century ago. Before they sat at those segregated lunch counters or boarded those Freedom Rider buses, Dr. Vivian taught them about the tactics—and the transformative power—of nonviolent civil disobedience.

He was as a Baptist minister, an early civil rights organizer, and a member of Martin Luther King's inner circle or advisers. As field general for Dr. King and his Southern Christian Leadership Conference, Dr. Vivian was the national director of some 85 local affiliate chapters of the SCLC from 1963 to 1966, directing protest activities and training in nonviolence, and coordinating voter registration and community development projects.

He led passive protests through angry mobs and was beaten viciously by segregationists, but he never once struck back. He received his first beating in 1961 on a Freedom Ride to Mississippi. In 1964, a white mob beat him with chains and nearly drowned him in the Atlantic Ocean in St. Augustine, FL.

In Selma, AL, in 1965, 2 weeks before Bloody Sunday, Dr. Vivian was trying to register Africa-American residents to vote when Sheriff Jim Clark punched him in the mouth so hard that the blow sent the minister reeling down the courthouse steps. Sheriff Clark then ordered deputies to arrest him for ''criminal provocation.'' Television coverage of Dr. Vivian being dragged away, blood streaming down his face, helped galvanize the voting rights movement.

C.T. Vivian was a hero to all Americans, but many in my State feel a special connection to him because of the formative years he spent among us. He was, like many great Illinoisans, an adopted son of the Land of Lincoln.

He was born Cordy Tindell Vivian in Boonville, Missouri, on July 30, 1924, the only child of Robert and Euzetta Tindell Vivian. His father left the family when he was a baby. His mother lost the family farm in the Depression and the family home in town to arson.

When C.T. was 6, he moved with this mother and maternal grandmother to Macomb, Illinois. The women chose Macomb because its public schools were integrated. They had great expectations for C.T. and they believed in the power of education. C.T. Vivian joined his first protest in Peoria, IL, in 1947, helping to desegregate a downtown cafeteria. In many parts of Illinois at the time, segregation of public facilities was not a law, but it was a custom rigidly enforced.

He first heard Dr. King speak in 1957, while studying for the ministry at the American Baptist College in Nashville. In 1959, he met th Reverend James Lawson, who was teaching nonviolent strategies to members of the Nashville Student Movement, including a young John Lewis.

After leaving the Southern Christian Leadership Conference in 1966, Dr. Vivian returned to Illinois—this time to Chicago—to direct the Urban Training Center for Christian Missions, where he trained clergy, community leaders and others to organize. He worked to advance civil rights and educational and economic opportunities for African Americans, and to reduce the gang violence that ensnared to many young Black men.

He left Chicago in 1972 to become dean of the Shaw University Divinity School in Raleigh, NC. He moved to Atlanta later in the 1970s and founded the C.T. Vivian Leadership Institute, to continue to train the next generation of leaders in the principals and tactics of nonviolent change.

In 2013, Dr. Vivian received the Presidential Medal of Freedom—our Nation's highest civilian honor, from President Barack Obama. It was a moving and historic moment and I was honored to be there.

He died on July 17, 2 weeks shy of his 96th birthday. He is buried in Atlanta next to his fellow foot soldier for justice, Dr. King.

In the last calendar year, we have lost Elijah Cummings, the Reverend Dr. Joseph Lowry, John Lewis and Dr. C.T. Vivian—all giants in the civil rights movement. This is the passing of a great generation, founders of the ''fuller, fairer, better America,'' as President Obama said. As we mourn their passing, let us also give thanks for their lives, and resolve to use the blueprints they left us to continue towards a more perfect union.

TRIBUTE TO DR. BABU PRASAD

Mr. DURBIN. Mr. President, in 1971, a young doctor named Babu Prasad boarded a plane in his native India, headed for America. He was 24 years old and 1 year out of medical school. His first stop was Canton, OH where he worked for a short while before moving to Chicago to complete a residency in anesthesiology at the University of Illinois-Chicago.

He spent the following decade practicing medicine in Alabama before returning to Illinois, this time to the Springfield area, where he spent the next 18 years practicing anesthesiology at HSHS St. John's Hospital before retiring in 2004.

Two weeks ago, this doctor who arrived in America as a young man with no money announced that he was donating $1 million to HSHS St. John's to support a major expansion of the hospital's neonatal intensive care unit. An article in The State Journal-Register, Springfield's hometown newspaper, called Dr. Prasad's gift his ''love letter to the hospital and community.''

At a press conference announcing his donation, Dr. Prasad said simply: ''I want to give back to a country that has given so much to my family and me.''

''Children are our future, so I wanted to direct by gift to the neonatal intensive care unit, to give the babies a healthy start in life,'' said Dr. Prasad.

Dr. Prasad and his wife, Dr. Sudah Prasad, an immunologist, have been quiet and consistent donors to St. John's NICU over the years. Their latest gift of $1 million will support a major expansion of St. John's neonatal intensive care unit. The expansion, expected to be finished in February, will more than double the size of the current NICU and provide single-family patient rooms for premature and critically ill infants.

As a father whose first baby came into this world with serious health challenges, I have a sense of what such supportive accommodations will mean to families of sick and fragile babies, and I am grateful to Dr. Prasad for his generous support of this worthy cause.

St. John's was one of the first hospitals in Illinois to establish a NICU for premature and critically ill infants. Each year, about 2,00 babies are born at St. John's, and about 700 babies from 35 Illinois counties receive care in the hospital's NICU.

In announcing Dr. Prasad's donation, Beverly Neisler, chief development officer for the HSHS St. John's Foundation said, ''Dr. Prasad's gift is a beautiful testament as to who he is as a person. He is a generous and kind man who has built a successful life through hard work, dedication and determination. He means so much to us.''

''A golden opportunity'' is how Dr. Prasad remembers his chance to come to America nearly a half-century ago. ''It felt like heaven,'' he says, nothing like India in the 1970s. At 24, he had never before seen TV.

Nearly 50 years later, Dr. Prasad is a father of three and grandfather of six. Two of his daughters have followed him into the medical profession. Dr. Prasad himself continues to practice anesthesiology and pain management 2 weeks each month at a private medical practice in the Springfield area.

The current COVID crisis reminds us daily how much we depend on the skills and sacrifices of fronteline medical workers and how many of those medical workers are, like Dr. Prasad, immigrants. We are fortunate and we are safer and healthier because they have chosen to make America their home. On behalf of the families of Illinois, I want to thank Dr. Prasad again for keeping two generations of Illinoisans healthy and for his generous gift to future generations.

100TH ANNIVERSARY OF THE 19TH AMENDMENT

Mr. SANDERS. Mr. President, I rise to celebrate the 100th anniversary of the passage of the 19th Amendment, providing suffrage for all sexes in the Constitution of the United States.

The amendment states that the right to vote ''shall not be denied or abridged by the United States or by any State on account of sex.'' The suffrage Movement opened the doors to women's participation in the electoral process and contributed to equitable civic leadership and engagement.

Today, I honor the historic milestone of the women's suffrage movement, and the contributions from my home state of Vermont, while acknowledging the barriers to voting that have harmed and continue to harm some of the most marginalized people in our country.

Vermont's contributions to the suffrage movement ranged from participation on the local level to the national marches. Vermonters fought for women's legal civic participation in our schools, municipal offices, and our State legislature, along with the national right to vote. I am grateful to every Vermonter who fought a more equitable political system.

Notable Vermont suffragists include Clarina Howard Nichols of Townshend, who fought for women's property rights. Annette Parmalee of Washington, one of the most outspoken suffragists in my State, who fought for suffrage locally, statewide and nationally. And Lucy Daniel of Grafton, who used civil disobedience to lend her weight to the fight. I am proud of every Vermonter's contribution to the movement and helping our country expand access to the ballot box.

Suffragists were women of races, ages, and political backgrounds. Yet after the 19th Amendment, millions of women—particularly African-Americans in the Jim Crow South—remained shut out of the polls for decades. Many States and municipalities continued to ignore the 15th and 19th Amendments, effectively withholding voting rights from women, Black people, and anyone who was low-income or ''uneducated''. The harm was most profound at the intersection of marginalized groups.

I find the efforts to stop people from voting to be deeply unpatriotic—then and now. In our long history, the United States has made it harder for some individuals to be civically engaged because of their gender identity, their income, or race. We know that the literacy tests kept those shut out of the education system from the electoral process. We know that poll taxes kept poor people from casting a ballot. And we know that barriers to voting still exist today.

We have seen people from majority Black districts wait in line for double the amount of time as their neighboring white districts. We have seen eligible voters turned away because of inaccurate voting roll purges. From gerrymandering, to archaic voter ID laws, to limiting voter registration, discriminatory efforts still exist that harm our democracy and deprive Americans of a government that represents them. In my view, voting should be a simple process. We should be passing laws to make it easier to vote, not harder.

First and foremost, we must reinstate the Voting Rights Act. We need to make election day a national holiday so that more people are able to get to the polls without losing time or wages from work. We need to expand automatic voter registration, early voting and vote-by-mail capabilities. We need to address voter suppression head on. And we must overturn the Supreme Court's Citizens United decision and reform campaign finance laws to prevent large corporations and billionaires from having an outsized voice in the electoral process.

Today in honor of the centennial of the 19th Amendment, I call on Americans to pursue equity with the same vigor as the suffragists. Question rules and laws that obstruct political participation. Speak out against injustices. And continue to fight for policies that center our Nation's political process on ''we the people.''

30TH ANNIVERSARY OF PASSAGE OF THE AMERICANS WITH DISABILITIES ACT

Mr. BOOZMAN. Mr. President, I rise today in recognition of a significant anniversary in our Nation's history. Thirty years ago, on July 26, 1990, President George H.W. Bush signed into law the Americans with Disabilities Act, ADA. Because of the monumental impact on individuals with disabilities, the ADA remains one of the most celebrated pieces of civil rights legislation today.

Behind the ADA is a specific vision: a more equitable, accessible and inclusive America. This watershed legislation sought to eradicate the discrimination that long confronted individuals with disabilities in the United States in many areas—including employment, education, transportation, and government services. The ADA established a clear and comprehensive national mandate to ensure individuals with disabilities have equal opportunities to participate in their communities.

We can be proud of organizations in Arkansas dedicated to providing services and life-enhancing skills so individuals with disabilities can engage in everyday activities and independent living.

To commemorate the 30th anniversary of the ADA, the Senate recently passed S. Res. 661 recognizing this landmark legislation and the importance of independent living for individuals with disabilities that was made possible with this law.

In celebration of this milestone, I am proud to recognize the advancement of disability rights in Arkansas and nationwide.

VOTE EXPLANATION

Ms. SINEMA. Mr. President, I was necessarily absent but had I been present would have voted no on rollcall vote 153, motion to proceed to the House message to accompany S.178, a bill to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China.

TRIBUTE TO CHIEF FAUSEY AND ASSISTANT CHIEF GOODBROD

Mr. TOOMEY. Mr. President, I rise today to recognize and honor the heroic acts of two Pennsylvania volunteer firefighters, Chief Howard M. Fausey, Sr., and Assistant Chief Ethan Goodbrod of Citizen's Hose Company, Station 45, in Jersey Shore, PA.

On the evening of February 15, 2020, Chief Fausey and Assistant Chief Goodbrod responded to a multiple alarm fire reported at the Broadway Hotel and Restaurant in Jersey Shore, PA. The hotel is a historic building with multiple residential apartments in its upper levels. When Chief Fausey and Assistant Chief Goodbrod arrived on the scene, the building was already consumed in flames, and they soon learned that a man was trapped on the third floor. Without regard to their own personal safety, these volunteer firefighters climbed to the third floor on ladders, forced their way into the building by breaking a window and removing an air-conditioner, found the trapped man amidst heavy smoke, and safely removed him from the building. And they did not arrive a moment too soon. The man they rescued suffered severe burns and smoke inhalation while he was trapped inside. Thanks to Chief Fausey's and Assistant Chief Goodbrod's heroism, he lived to see another day and has recovered from his injuries.

Chief Fausey's and Assistant Chief Goodbrod's courageous acts call attention to the heroic service that first responders provide for their communities every day, often on a volunteer basis. In fact, Citizens Hose Company, Station 45, is made up entirely of volunteers. These individuals, many of whom hail from generations of voluntary service, place themselves in harm's way to protect the rest of us.

We should never take for granted the risks that first responders take to ensure that we are safe in our communities. I want to say to Chief Fausey, to Assistant Chief Goodbrod, and to all of Pennsylvania's first responders, that we are grateful for the service that you provide to the community and thankful for your sacrifices.

ADDITIONAL STATEMENTS

TRIBUTE TO TRISTA HOVDE

● Mr. DAINES. Mr. President, this week I have the honor of recognizing Trista Hovde of Richland County for her outstanding achievement in earning a position on the North Dakota State/Provincial National High School rodeo team.

Trista, a junior at Sidney High School, traveled with her fellow teammates to Guthrie, OK, to compete in the 72nd National High School Finals Rodeo. She partook in the barrel racing, girls' cutting, and reined cow horse competitions.

The NHSFR boasts the title of the largest rodeo in the world, featuring over 1,650 contestants from 43 States as well as Canada, Australia, and Mexico. Participating in the NHSFR is a tremendous honor and I know that she has made both her community and Montana very proud.

It is my distinct honor to recognize Trista for her tireless dedication to the rodeo community and her unique contributions to Sidney and Montana. Her drive and ambition serve as an inspiration to all young Montanans to strive to do the best that they can in everything they do. I look forward to following Trista's rodeo career and all of her future accomplishment.●

RECOGNIZING MAAG PRESCRIPTION & MEDICAL SUPPLY

● Mr. RISCH. Mr. President, as a member and former chairman of the Senate Committee on Small Business and Entrepreneurship, each month I recognize and celebrate the American entrepreneurial spirit by highlighting the success of a small business in my home State of Idaho. Today, I am pleased to honor Maag Prescription & Medical Supply in Pocatello as the Idaho Small Business of the Month for August 2020 and congratulate them on 70 years of business.

Maag Prescription & Medical Supply is an independent, locally owned pharmacy which has been operated by the Maag family since 1950. Established by Irvin and Genevieve Maag, the couple ran all aspects of the business and quickly developed a reputation for providing exemplary service while meeting the specific needs of their customers. As the business flourished and ownership transitioned to their son and daughter-in-law, Greg and Kathy Maag, a fire ravaged the facility in 1977. The Maags quickly sprang into action and rebuilt their business across the street with the strong support of the Pocatello community.

Forty-three years later, Maag Prescription & Medical Supply remains a staple in Southeast Idaho, providing more than 20 jobs to the community and expanding three times to meet the needs of their customers. Their ability to adapt quickly and meet customer demands has been especially important during the COVID–19 pandemic, with the business now offering curbside pickup, free home delivery of prescriptions and oxygen tanks, and in-house production of hand sanitizer for the community. Their emphasis on customer satisfaction has been central to their continued success.

Maag Prescription & Medical Supply's resiliency and service to the community has not gone unnoticed. For the past 2 years, the business received the Idaho State Journal's annual Reader's Choice award. Their business stands as a true testament to American industriousness, exemplifying one of our Nation's most treasured values. Now, in one of the most economically uncertain times, their story reminds us of the importance of commitment to our communities and resilience in the face of adversity.

Congratulations to Greg and Kathy Maag and all of the employees of Maag Prescription & Medical Supply on being selected as the Idaho Small Business of the Month for August 2020. You make our great State proud, and I look forward to your continued growth and success.●

REMEMBERING BEN HILL GRIFFIN, III

● Mr. RUBIO. Mr. President, I pay tribute to the memory of Ben Hill Griffin, III, a lifelong resident of Polk County who left a lasting impact on Florida and the citrus industry.

Ben Hill Griffin, III, was born on March 3, 1942, in Frostproof, FL, to Ben Hill Griffin, Jr., and his wife, Frances. The only son of five children, Ben Hill worked his father's cattle ranches and citrus fields at a young age, learning early that success requires hard work and long hours.

While attending Frostproof High School, Ben Hill played several sports and attended Boys' State, where he was fittingly elected commissioner of agriculture. After graduation, he attended the University of Florida before returning home to Frostproof.

Ben Hill spent a year at the Lake Alfred Experiment Station, gaining experience with various aspects of the citrus industry before joining his father's business. He spent a year and a half working in the fertilizer division, 3 years in the harvesting division, and 2 years in the processing and sales divisions. After paying his dues, his father welcomed him into Ben Hill Griffin, Inc., naming him president and chief operating officer. He would later serve as its chairman of the board and chief executive officer.

Throughout his career, Ben Hill was recognized as a thoughtful leader and savvy businessman within the Florida agricultural and citrus industries and statewide business communities. He was elected to numerous corporate boards, served in leadership positions and they became better companies under his leadership.

During his time as chairman of the Florida Citrus Commission, Ben Hill flew to New York to defend the State from negative media coverage. He succeeded in his efforts to have processed products branded with the Florida symbol and was inducted into the Florida Citrus Hall of Fame in 2009, the Florida Agriculture Hall of Fame in 2010, and the Frostproof High School Hall of Fame in 2010. Even in the face of the challenges before the industry, he continued to invest in Florida citrus and believed in Florida agriculture and her producers.

Ben Hill was also a benefactor of higher education, including the University of Florida and Florida Gulf Coast University, of which he donated the land for the university's construction. He served as a board member for both

university's foundations. He was steadfast in ensuring scholarships were available at numerous Florida institutions to help students attending college to use the opportunity to fulfill their dreams.

My wife Jeanette and I express our heartfelt condolences to his children and grandchildren on the loss of an important leader and great Floridian. May God bless his family during this time of sorrow.●

TRIBUTE TO SHERYL AVERY

● Mr. RUBIO. Mr. President, today I honor Sheryl Avery, the Liberty County Teacher of the Year from Liberty County High School in Bristol, FL.

Sheryl believes that being a teacher means understanding her students will eventually become leaders of our society. Her lifelong goal is to seek opportunities to change the world, which she believes can be done from the classroom.

Sheryl believes that writing is an important skill. It is a skill that all students need to know, not just for school, but for when they join the workforce. She is a published author with three works in print and enjoys writing in her spare time.

Sheryl teaches English for ninth and tenth graders at Liberty County High School. She has worked as an educator for 21 years, with 19 years in the Liberty County School System. She earned her bachelor's degree in English and ESOL from Armstrong Atlantic State University, her master's degree in curriculum and instruction from Georgia Southern University, and is currently studying for her doctorate degree in theology from South University.

I extend my best wishes to Sheryl on her more than two decades of teaching students. I look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO KERRIANNE EDWARDS

● Mr. RUBIO. Mr. President, today I recognize Kerrianne Edwards, the Jackson County Teacher of the Year from Sneads Elementary School in Sneads, FL.

Kerrianne comes from a family of teachers. Her parents were teachers and played a pivotal role in encouraging her to make the profession her career. Kerrianne teaches at the same elementary school that she attended, and her classroom is located directly across from Sherry Faircloth, the same first grade teacher that taught her and her son. She considers Mrs. Faircloth an excellent role model and continues to teach her long after she was her student.

Kerrianne is a first grade teacher at Sneads Elementary School and has been a teacher for 28 years. She previously was a librarian, K–3 teacher, and a second grade teacher at Chattahoochee Elementary School and was named its Teacher of the Year in 2000.

I offer my sincere gratitude to Kerrianne and look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO TONIE GARCIA

● Mr. RUBIO. Mr. President, today I am pleased to recognize Tonie Garcia, the Glades County Teacher of the Year from West Glades School in LaBelle, FL.

Tonie knew she wanted to be a teacher from a young age, crediting God for placing a love for teaching in her heart. She brings a positive attitude and patience to her classroom each day, knowing that some of her students see her more than they see their parents.

Tonie considers it her job to love and cheer for her students, wipe away their tears, and open the doors of learning to them. She does not know what her students go through before coming to class each day, so she shows them kindness and instills in them a ''never give up'' attitude, no matter how challenging the day may be for them.

Tonie is a kindergarten teacher at West Glades School. She is a graduate of Palm Beach Atlantic University and credits its school of education and behavioral studies for preparing her to be a teacher. She previously taught in kindergarten classrooms at Frontier Elementary School and Jupiter Christian School.

I offer my sincere gratitude to Tonie and look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO LESLIE HARN

● Mr. RUBIO. Mr. President, today I recognize Leslie J. Harn, the Hendry County Teacher of the Year from Clewiston High School in Clewiston, FL.

Leslie's goal each day is to make his classroom one where students enjoy learning. He spends the school day helping students to better understand science and other challenges that life has thrown at them. Leslie credits his seventh grade science teacher, Mr. Bowdler, with having a huge impact on him and hopes to have the same effect on his students' lives.

Leslie's biggest inspiration for teaching comes from his faith and his family. His father was an orange grove manager, and his mother drove a school bus. Both instilled in him a strong work ethic and desire to help others whenever possible. In his family, three are educators, and the fourth is in college with plans to pursue education.

Leslie teaches biology at Clewiston High School and previously taught in Collier County. He and his wife are members of Caloosa Baptist Church and work to help families throughout the area.

I am grateful for Leslie's commitment to his students and extend my best wishes. I look forward to learning of his continued good work in his future endeavors.●

TRIBUTE TO MIRANDA HARWOOD

● Mr. RUBIO. Mr. President, today I recognize Miranda Harwood, the Hillsborough County Teacher of the Year from Brooker Elementary School in Brandon, FL.

Miranda teaches fourth grade at Brooker Elementary School and considers this award the culmination of the educational career she began 14 years ago. Miranda wants her students to know that she cares about their education. Since she cannot know what burdens they are going through at home, she works to make sure school is a safe and caring place for them, whether they are in her classroom or with another teacher. She uses testing data to identify her students' strengths and weaknesses and builds her lesson plans to fit their individual needs.

Miranda uses humor and motivational activities to keep her students engaged throughout the school year. Her class votes on a Student of the Month and chooses rewards and consequences. She also hosts a Monday Math Club for her top students and afterschool sessions on Wednesdays and Thursdays for those below their grade level on State exams or on the bubble between passing and not passing.

I offer my sincere gratitude to Miranda for her good work and dedication to her students. I look forward to hearing of her continued success in the years to come.●

TRIBUTE TO VINCENT MILLER

● Mr. RUBIO. Mr. President, today I am pleased to recognize Vincent Miller, the Polk County Teacher of the Year from Winter Haven High School in Winter Haven, FL.

Vincent believes as teachers enter their classrooms, they should ask themselves a few simple questions: What will they add to their students' lives? What class memories will students remember? How will they, themselves, be remembered by students?

He says teachers should be intentional with their approach to meeting students' needs, knowing students are more than just a score or a test; they are the future. Vincent credits his successes today to his former teachers for creating countless memories when he was a student. Being cast by one teacher for a school play changed his life, allowing him to travel the world and perform on cruise ships before becoming a teacher at his alma mater.

Vincent is a math teacher and the girls' basketball coach at Winter Haven High School. He also mentors students, provides afterschool tutoring lessons, hosts a back-to-school supplies event, and sponsors the Key Club and the Culture Club. Vincent holds a doctorate

degree in education from Lynn University and is an adjunct professor at Southeastern University.

I offer my sincere gratitude to Vincent for his commitment to teaching. I look forward to hearing of his continued success in the years to come.●

TRIBUTE TO PAMELA MOSELEY

● Mr. RUBIO. Mr. President, today I recognize Pamela Moseley, the Lafayette County Teacher of the Year from Lafayette Elementary School in Mayo, FL.

Pamela was presented with this important recognition by Lafayette Elementary School's principal, Stephen Clark, and Superintendent Robby Edwards. They were accompanied by her husband, Ralee, and their three children, Lilli, Mallory, and Trevor. During these unprecedented times, Pamela's inspiration comes from her students, their reactions to connections, and their willingness to look for them.

Pamela's ability to adapt her education style to her students ensures they are able to learn at their personal pace. She is always there for her students, providing extra tutoring if they are having trouble learning new subjects.

Pamela has been a teacher for 17 years and has taught fifth grade at Lafayette Elementary School for the past 4 years.

I extend my best wishes to Pamela for her dedication to teaching and look forward to hearing of her continued good work in the years ahead.●

TRIBUTE TO SALLIE MURPHY

● Mr. RUBIO. Mr. President, today I am pleased to recognize Sallie Murphy, the Gadsden County Teacher of the Year from Greensboro Elementary School in Quincy, FL.

Sallie always wanted to make a difference in the lives of children. If she is able to do that each day, it makes her want to come to school and work with a smile on her face. Her students describe her as a great teacher, and they appreciate her help in understanding what they are reading.

Sallie teaches third grade at Greensboro Elementary School. She is in her 7th year of teaching. Sallie's mother, Patsy, was also a teacher at the same school for 33 years and knew Sallie would be a great teacher.

I offer my sincere gratitude to Sallie for her dedication to her students. I look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO MELISSA NELSON

● Mr. RUBIO. Mr. President, today I am pleased to recognize Melissa Nelson, the St. Lucie County Teacher of the Year from Allapattah Flats K–8 in St. Lucie, FL.

Allapattah Flats principal Ana Rodriguez-Oronoz previously taught Melissa as a student in her fifth grade class at White City Elementary School. Now, as a teacher herself, Principal Rodriguez-Oronoz noted that Melissa knows each of her students' unique strengths and understands her place in the classroom as their coach and mentor.

Melissa works with her students each day to complete their assignments and ensure they understand the topics covered. She tutors students during lunch and after school and provides them with incentives and rewards to celebrate their accomplishments, believing this helps to make her instructions more effective.

Melissa teaches eighth grade algebra at Allapattah Flats K–8 and previously worked as a data specialist. She is a graduate of St. Lucie Public Schools and has taught within the district since 2012.

I offer my sincere gratitude to Melissa for her commitment to her students. I look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO SHANEIKA PRIDE

● Mr. RUBIO. Mr. President, today I am pleased to recognize Shaneika Pride, the Madison County Teacher of the Year from Madison County Central School in Madison, FL.

Shaneika values lifelong relationships with her students as an important part of her role as an educator, especially during distance learning through these unprecedented times. She enjoys the opportunity to connect with her students and looks forward to hearing of their successes after leaving her classroom.

Throughout Shaneika's educational career, she has mentored not only her students, but also first-year teachers and student-athletes by coaching volleyball. She relishes the chance to share her educational experiences with both students and new teachers.

Shaneika teaches fourth grade math and science at Madison County Central School and has been an educator for the past 15 years. Previously, she taught third grade for many years at her school before moving to the fourth grade.

I offer my sincere gratitude to Shaneika for her years of work teaching and coaching students and look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO TARA WARD

● Mr. RUBIO. Mr. President, today I am pleased to recognize Tara Ward, the Franklin County Teacher of the Year from Apalachicola Bay Charter School in Apalachicola, FL.

Tara is the first teacher from Apalachicola Bay Charter School to be named Franklin County's Teacher of the Year. Tara began teaching in 2004 and spent a year of team-teaching fourth and fifth grade language arts and history. For the past 14 years, she has taught sixth grade world history and eighth grade language arts.

Originally from Michigan, she had only planned to stay in Florida for 2 years to get teaching experience. Tara earned a bachelor's degree in education from Grove City College and briefly taught in Pennsylvania and Michigan. She and her husband Kevin and their three daughters reside in Apalachicola.

I extend my deepest gratitude to Tara for her years of dedication. I look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO TRIKIA WHITE

● Mr. RUBIO. Mr. President, today I honor Trikia White, the Leon County Teacher of the Year from Augusta Raa Middle School in Tallahassee, FL.

Trikia believes receiving this important recognition makes the long hours she spends grading assignments, preparing lesson plans, and helping students worth it. She enjoys seeing what her students can achieve after leaving her class.

Trikia makes sure each minute of class time is worthwhile to her students. She believes this is the only way for her to learn what they are capable of doing in her classroom, and it allows her to provide informal feedback to them.

Trikia's principal noted that she is always willing to support her students and fellow teachers each day, whether it is offering assistance in her content area or other needs. She works hard to make sure the school exceeds expectations throughout the school year.

Trikia teaches eighth grade language arts at Augusta Raa Middle School and has taught there for 6 of her 11 years as a teacher.

I extend my best wishes to Trikia and look forward to hearing of her continued good work in the years ahead.●

TRIBUTE TO NEAL ELLIOTT

● Mrs. SHAHEEN. Mr. President, I rise today to salute Neal Elliott for his many years of dedicated service and forward-looking leadership at the American Council for an Energy-Efficient Economy, ACEEE. Neal will soon retire from his role as senior director for research, the capstone to a distinguished career at ACEEE that began in 1993. An internationally recognized expert on energy efficiency, he has helped slash energy waste in the United States. Neal leaves a legacy worthy of our praise and gratitude.

ACEEE is a nonprofit, nonpartisan organization that researches and advances energy efficiency policies, programs, technologies and behaviors as a way to strengthen the economy, reduce pollution, protect public health, and address climate change. Since its establishment in 1980, ACEEE has helped to mold U.S. policies that have cut domestic energy use in half relative to the size of the U.S. economy and delivered more than $2,000 in annual savings per individual.

Neal has been instrumental in that success. He has helped to grow not only ACEEE as an organization, which has more than tripled in size since his arrival, but also the field of energy efficiency. He oversees ACEEE's overall research, which includes dozens of reports, fact sheets, and topic briefs each year. He has spearheaded its work on industrial, agricultural, and rural issues, including on such topics as combined heat and power—CHP—electric motor systems, smart energy management, and industrial decarbonization. Neal helped coin the term ''intelligent efficiency'' to reflect the growing need to incorporate the Internet of Things, connected systems, and big data into energy-saving efforts. He was also a key player in the design of the rural energy programs in the 2002 farm bill that expanded into the Rural Energy for America Program in the 2008 farm bill. An expert on energy efficiency policies and programs, he has pushed to overcome market barriers to integrating CHP and distributed energy resources into a cleaner, intelligent power grid. He holds six patents in thermal storage and produce processing, has written dozens of articles and reports, and is a frequent speaker at domestic and international conferences.

Just as important, Neal has played a vital, avuncular role in expanding the energy efficiency community. He is adept at bringing people together and forging effective partnerships. With a doctorate degree in engineering from Duke University, where he previously taught, he has mentored and encouraged countless young professionals. He is passionate about energy efficiency, which he sees as a critical tool for reducing greenhouse gas emissions, mitigating climate change, and securing a more hopeful tomorrow for future generations.

Neal has been a stalwart friend to me and my staff. I am thankful for his leadership and ACEEE's support for my proposals over the years. On behalf of the people of New Hampshire, I ask my colleagues and all Americans to join me in thanking Neal Elliott for his years of service and wishing him all the best in the years ahead.●

REMEMBERING MANUEL CISNEROS

● Ms. SINEMA. Mr. President, today I wish to honor the life of Manuel ''Manny'' Cisneros, a dedicated public servant and advocate for indigent and Latino communities across Arizona. Manny committed his life and career to community building and equal rights empowerment for Arizona's most vulnerable.

As a native of Somerton, AZ, Manny studied at Arizona Western College and went on to pursue a juris doctor degree at both Harvard University and the University of California Berkley School of Law where he received his juris doctor in 1984. Manny would serve as the coordinator of public health for the city of San Francisco, CA, before returning to Arizona to serve as the magistrate and assistant city manager of the city of San Luis. Under Arizona Governor Janet Napolitano, Manny was appointed to lead the Executive Office of Equal Opportunity. He would also serve as the director of the Governor's Fair Housing Office. Manny also dedicated a significant portion of his life to organizing and advocating for Latino voting, education, and fair housing rights. He served as chairman of the Maricopa County Democratic Party and as a delegate to the 1996 and 2000 National Democratic Conventions.

I had the pleasure of working with Manny during the early years of my career and I was always impressed by his kindness and dedication to ensuring every Arizona family had access to affordable and safe housing. As a humble public servant and Latino rights champion, the impact Manny has left in our hearts, his community, and our State will be felt for generations to come. His wife Beatriz and sons Jose and Daniel will be in my thoughts. Please join me in honoring the life of Manny Cisneros.●

REMEMBERING MICHAEL McQUAID

● Ms. SINEMA. Mr. President, today I wish to honor the life of Michael McQuaid, an established figure of the Phoenix business community and a determined philanthropist dedicated to reducing homelessness in central Arizona.

Michael's work to end homelessness began nearly three decades ago when he and his sons completed a community service project to serve meals to the homeless at the Andre House of Hospitality. He eventually became the group's first chairman of the board. In 2003, Michael combined his desire to alleviate the chronic homelessness in Arizona with his experience as a commercial real estate developer and president of JP Management to oversee construction of the Human Services Campus in Phoenix, a national model for holistic homelessness services. He went on to serve as the managing director of the campus and as president of its board of directors. Over the years, Michael also served on the boards of Maricopa County Association of Governments, MAG, Continuum of Care, the Lodestar Day Resource Center, the Arizona Housing Commission, the Valley of the Sun United Way's Ending Homelessness Advisory Council, Experience Matters, and Thunderbird Charities, among others. In 2010, Michael was recognized by Arizona Governor Jan Brewer with the State of Arizona's Lifetime Volunteer Award. In 2013, he was awarded the first Virginia G. Piper Trust Encore Career Award for his efforts to address homelessness in Maricopa County.

Michael established a legacy of service in central Arizona that others will undoubtedly seek to match. I am certain that the love he shared for his fellow Arizonans will be felt for many years to come. Please join me in honoring the life of Michael McQuaid.●

REMEMBERING HUMBERTO TRUJILLO, JR.

● Ms. SINEMA. Mr. President, today I wish to honor the life of Postmaster Humberto Trujillo Jr., ''Junior''. He was a beloved leader, coach, and Postmaster. Junior served others with dedication, and his impact will be felt for generations.

Junior grew up in West Phoenix, where he attended Edison Elementary School and East High School. He was an avid athlete and went on to attend Phoenix College, where he played football, and spent over a decade coaching sports to the children in the community. Junior first worked for the postal service as a masonry foreman who helped construct the Phoenix Main Post Office. As a 31-year veteran of the Postal Service, Junior used his skill and expertise to rise through the ranks of the service. In 2015, Junior accepted the position of Phoenix Postmaster, leading the staff of the same post office he helped build many years ago.

Junior will be deeply missed by his family and the community who shared in his love. Please join me in honoring the life and service of Postmaster Humberto Trujillo, Jr.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Ms. Roberts, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MEASURES PLACED ON THE CALENDAR

The following bill was read the second time, and placed on the calendar:

S. 4461. A bill to provide for a period of continuing appropriations in the event of a lapse in appropriations under the normal appropriations process, and establish procedures and consequences in the event of a failure to enact appropriations.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5237. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to

law, the report of a rule entitled ''Fludioxonil; Pesticide Tolerances'' (FRL No. 10012–03–OCSPP) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5238. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Novaluron; Pesticide Tolerances'' (FRL No. 10011–78–OCSPP) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5239. A communication from the Secretary of Defense, transmitting a report on the approved retirement of General Maryanne Miller, United States Air Force Reserve, and her advancement to the grade of general on the retired list; to the Committee on Armed Services.

EC–5240. A communication from the Director of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting, pursuant to law, the report of a rule entitled ''Final Rule - Federal Interest Rate Authority'' (RIN3064–AF21) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5241. A communication from the Program Specialist, Office of the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Prohibitions and Restrictions on Proprietary Trading and Certain Interests in, and Relationships With, Hedge Funds and Private Equity Funds'' (RIN1557–AE67) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5242. A communication from the Program Specialist, Office of the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Other Real Estate Owned and Technical Amendments'' (RIN1557–AE91) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5243. A communication from the Program Specialist, Office of the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Assessment of Fees'' (RIN1557–AE95) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5244. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Hazardous and Solid Waste Management System; Disposal of Coal Combustion Residuals from Electric Utilities; A Holistic Approach to Closure Part A: Deadline to Initiate Closure'' (FRL No. 10013–20–OLEM) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Environment and Public Works.

EC–5245. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''New Source Performance Standards and National Emission Standards for Hazardous Air Pollutants; Delegation of Authority to Albuquerque-Bernalillo County Air Quality Control Board'' (FRL No. 10013–04–Region 6) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Environment and Public Works.

EC–5246. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Use of Lead Free Pipes, Fittings, Fixtures, Solder, and Flux for Drinking Water'' (FRL No. 10012–43–OW) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Environment and Public Works.

EC–5247. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Environmental Protection Agency Acquisition Regulation (EPAAR); Open Source Software'' (FRL No. 10011–84–OMS) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Environment and Public Works.

EC–5248. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revisions to 2 CFR Part 1500'' (FRL No. 10010–32–OMS) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Environment and Public Works.

EC–5249. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Missouri; Control of Emissions from Production of Pesticides and Herbicides'' (FRL No. 10012–93–Region 7) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Environment and Public Works.

EC–5250. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Significant New Use Rules on Certain Chemical Substances (20–1.B)'' (FRL No. 10010–61–OCSPP) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Environment and Public Works.

EC–5251. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Georgia; Revision to I/M Program'' (FRL No. 10012–66–Region 4) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Environment and Public Works.

EC–5252. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Findings of Failure to Submit State Implementation Plans Required for Attainment of the 2010 1-Hour Primary Sulfur Dioxide (SO2) National Ambient Air Quality Standard (NAAQS)'' (FRL No. 10012–84–Region 6) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Environment and Public Works.

EC–5253. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Final Determination to Approve Site Specific Flexibility for the Cocopah Landfill'' (FRL No. 10011–63–Region 9) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Environment and Public Works.

EC–5254. A communication from the Regulations Writer, Office of Regulations and Reports Clearance, Social Security Administration, transmitting, pursuant to law, the report of a rule entitled ''Extension of Expiration Dates for Three Body System Listings'' (RIN0960–AI48) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Finance.

EC–5255. A communication from the Secretary, Bureau of Certification and Licensing, Federal Maritime Commission, transmitting, pursuant to law, a policy statement entitled ''Policy Statement on Passenger Vessel Financial Responsibility'' (FMC Docket No. 20–13) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5256. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Regulated Navigation Areas; Harbor Entrances along the Coast of Northern California'' ((RIN1625–AA08) (Docket No. USCG–2019–0785)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5257. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Security Zone; Potomac River, Montgomery County, Maryland'' ((RIN1625–AA87) (Docket No. USCG–2017–0448)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on

Commerce, Science, and Transportation.

EC–5258. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zones; Northern California and Lake Tahoe Area Annual Fireworks Events, San Francisco, California'' ((RIN1625–AA00) (Docket No. USCG–2019–0317)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5259. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; San Diego Bay, San Diego, California'' ((RIN1625–AA00) (Docket No. USCG–2020–0252)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5260. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; San Juan Harbor, San Juan, Puerto Rico'' ((RIN1625–AA00) (Docket No. USCG–2019–0460)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5261. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Pier 45 Fire Cleanup and Potential Marine Debris, San Francisco Bay, San Francisco, California'' ((RIN1625–AA00) (Docket No. USCG–2020–0283)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5262. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Drawbridge Operation Regulation; Chelsea River, Chelsea, Massachusetts'' ((RIN1625–AA09) (Docket No. USCG–2019–0809)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5263. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Limestone Bay, St. Thomas, U.S. Virgin Islands'' ((RIN1625–AA00) (Docket No. USCG–2020–0227)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5264. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulations; Recurring Marine Events, Sector Charleston ((RIN1625–AA08) (Docket No. USCG–2019–0691)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5265. A communication from the Legal Yeoman, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Drawbridge Operation Regulation; Lacombe Bayou, Louisiana'' ((RIN1625–AA09) (Docket No. USCG–2018–0953)) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Commerce, Science, and Transportation.

EC–5266. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Flupyradifurone; Pesticide Tolerances'' (FRL No. 10010–98–OCSPP) received in the Office of the President of the Senate on August 5, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5267. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Novaluron; Pesticide Tolerances'' (FRL No. 10011–78–OCSPP) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5268. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Nitrapyrin; Pesticide Tolerances'' (FRL No. 10009–42–OCSPP) received in the Office of the President of the Senate on August 4, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. WICKER, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute and an amendment to the title:

S. 3681. A bill to require a joint task force on the operation of air travel during and after COVID–19 pandemic, and for other purposes (Rept. No. 116–246).

By Mr. WICKER, from the Committee on Commerce, Science, and Transportation, without amendment:

H.R. 835. An act to impose criminal sanctions on certain persons involved in international doping fraud conspiracies, to provide restitution for victims of such conspiracies, and to require sharing of information with the United States Anti-Doping Agency to assist its fight against doping, and for other purposes (Rept. No. 116–247).

By Mr. WICKER, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

H.R. 3153. An act to direct the Director of the National Science Foundation to support research on opioid addiction, and for other purposes (Rept. No. 116–248).

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, with an amendment in the nature of a substitute:

S. 3455. A bill to prohibit certain individuals from downloading or using TikTok on any device issued by the United States or a government corporation.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. WICKER (for himself and Mr. PETERS):

S. 4462. A bill to establish a national integrated flood information system within the National Oceanic and Atmospheric Administration, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. CRAMER:

S. 4463. A bill to amend the Internal Revenue Code of 1986 to include certain over-the-counter dietary supplement products as qualified medical expenses; to the Committee on Finance.

By Ms. WARREN (for herself, Mrs. GILLIBRAND, Mr. MARKEY, Mr. SANDERS, Mrs. FEINSTEIN, Mr. BOOKER, Mr. VAN HOLLEN, Mr. BLUMENTHAL, Mr. BROWN, and Mr. REED):

S. 4464. A bill to amend the Federal Reserve Act to add additional demographic reporting requirements, to modify the goals of the Federal Reserve System, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. SMITH (for herself, Ms. KLOBUCHAR, and Mr. CASEY):

S. 4465. A bill to amend the Higher Education Act of 1965 to establish an emergency grant aid program, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Ms. SMITH:

S. 4466. A bill to authorize the Attorney General to make grants to improve public safety, and for other purposes; to the Committee on the Judiciary.

By Mr. RUBIO:

S. 4467. A bill to rescue domestic medical product manufacturing activity by providing incentives in economically distressed areas of the United States and its possessions; to the Committee on Finance.

By Ms. SMITH (for herself, Mr. ROUNDS, and Ms. BALDWIN):

S. 4468. A bill to increase the Federal share of operating costs for certain projects that receive grants under the Formula Grants to Rural Areas Program of the Federal Transit Administration; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. SMITH (for herself, Mr. BENNET, and Ms. HARRIS):

S. 4469. A bill to ensure coverage of a COVID–19 vaccine and treatment; to the Committee on Health, Education, Labor, and Pensions.

By Mr. TESTER (for himself, Mr. KING, Mr. ROMNEY, Mrs. SHAHEEN, Mr. COONS, and Mr. PERDUE):

S. 4470. A bill to authorize the Secretary of Agriculture to subsidize payments on loans made under certain rural development loan programs, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. BOOKER:

S. 4471. A bill to amend the Fair Credit Reporting Act to provide requirements for

landlords and consumer reporting agencies relating to housing court records, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. PETERS (for himself and Mr. JOHNSON):

S. 4472. A bill to amend the Secure and Trusted Communications Network Reimbursement Program to include eligible telecommunications carriers and providers of educational broadband service, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. WYDEN:

S. 4473. A bill to amend title 17, United States Code, to address circumvention of copyright protection systems with respect to the maintenance or repair of critical medical infrastructure, and for other purposes; to the Committee on the Judiciary.

By Mr. MURPHY (for himself, Mr. LEE, Mr. SANDERS, Mr. COONS, and Mr. PAUL):

S. 4474. A bill to amend the Arms Export Control Act to prohibit the export of certain unmanned aircraft systems; to the Committee on Foreign Relations.

By Ms. SINEMA (for herself and Ms. MCSALLY):

S. 4475. A bill to authorize the Secretary of the Interior to convey certain land to La Paz County, Arizona, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. FEINSTEIN (for herself, Mr. PETERS, Mr. LEAHY, Mr. WYDEN, Mr. DURBIN, Mr. CARPER, Mr. CARDIN, Ms. KLOBUCHAR, Mr. WHITEHOUSE, Mr. WARNER, Mr. BLUMENTHAL, Ms. BALDWIN, Ms. HIRONO, Mr. MARKEY, Mr. VAN HOLLEN, and Ms. CORTEZ MASTO):

S. 4476. A bill to provide protections for employees of, former employees of, and applicants for employment with Federal agencies, contractors, and grantees whose right to petition or furnish information to Congress is interfered with or denied; to the Committee on Homeland Security and Governmental Affairs.

By Ms. SMITH (for herself and Mrs. GILLIBRAND):

S. 4477. A bill making emergency supplemental appropriations for social isolation services under the Older Americans Act of 1965; to the Committee on Appropriations.

By Mr. BLUMENTHAL (for himself and Mr. HAWLEY):

S. 4478. A bill to amend the Trafficking Victims Protection Act of 2000 to ensure adequate time for the preparation of the annual Trafficking in Persons Report and to require the timely provision of information to the Office to Monitor and Combat Trafficking in Persons and the Bureau of Diplomatic Security of the Department of State regarding the number and location of visa denials based on grounds related to human trafficking; to the Committee on Foreign Relations.

By Mr. TILLIS:

S. 4479. A bill to amend title 11, United States Code, to change the treatment of certain rental obligations during bankruptcy; to the Committee on the Judiciary.

By Mr. BOOKER (for himself, Mr. BROWN, and Ms. SMITH):

S. 4480. A bill to promote equity in advanced coursework and programs at elementary and secondary schools; to the Committee on Health, Education, Labor, and Pensions.

By Mr. THUNE (for himself, Mr. ROUNDS, Mr. GRASSLEY, and Ms. ERNST):

S. 4481. A bill to require the Administrator of the Environmental Protection Agency to update the modeling used for lifecycle greenhouse gas assessments for corn-based ethanol and biodiesel, and for other purposes; to the Committee on Environment and Public Works.

By Mr. BOOKER (for himself and Mr. PORTMAN):

S. 4482. A bill to require the Secretary of State to submit to Congress an annual report regarding instances of Arab government retribution toward citizens and residents who engage in people-to-people relations with Israelis; to the Committee on Foreign Relations.

By Mr. COTTON (for himself, Mr. MCCONNELL, Mrs. LOEFFLER, and Mr. CRAMER):

S. 4483. A bill to amend the Higher Education Act of 1965 to ensure that public institutions of higher education eschew policies that improperly constrain the expressive rights of students, and to ensure that private institutions of higher education are transparent about, and responsible for, their chosen speech policies; to the Committee on Health, Education, Labor, and Pensions.

By Mr. DURBIN:

S. 4484. A bill to amend the Internal Revenue Code of 1986 to establish a carbon fee to reduce greenhouse gas emissions, and for other purposes; to the Committee on Finance.

By Mr. TILLIS (for himself, Mr. CORNYN, and Mr. RUBIO):

S. 4485. A bill to modify the definition of critical technologies for purposes of reviews by the Committee on Foreign Investment in the United States; to the Committee on Banking, Housing, and Urban Affairs.

By Mrs. FISCHER (for herself and Ms. SMITH):

S. 4486. A bill to establish an interactive online dashboard to allow the public to review information for Federal grant funding related to mental health programs; to the Committee on Health, Education, Labor, and Pensions.

By Mr. PAUL:

S. 4487. A bill to extend limits on discretionary spending through fiscal year 2024; to the Committee on the Budget.

By Mr. PAUL:

S. 4488. A bill to amend the Internal Revenue Code of 1986 to allow deductions for unreimbursed business expenses, dependent care expenses, and elementary school education expenses, and for other purposes; to the Committee on Finance.

By Mr. JOHNSON:

S. 4489. A bill to appropriately limit forgiveness of loans under the paycheck protection program and to clarify that records in the possession, custody, or control of the Federal Government relating to borrowers and loans under the paycheck protection program are subject to disclosure in accordance with applicable law; to the Committee on Small Business and Entrepreneurship.

By Mr. SANDERS (for himself, Mrs. GILLIBRAND, and Mr. MARKEY):

S. 4490. A bill to impose an emergency tax on the increase in wealth of billionaires during the COVID–19 pandemic in order to pay for all of the out of pocket healthcare expenses of the uninsured and under-insured, including prescription drugs, for one year; to the Committee on Finance.

By Mrs. FEINSTEIN (for herself and Mr. GRASSLEY):

S. 4491. A bill to designate methamphetamine as an emerging threat, and for other purposes; to the Committee on the Judiciary.

By Mr. PETERS:

S. 4492. A bill to provide the Food and Drug Administration with mandatory recall authority for all drug products; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MENENDEZ (for himself, Mr. WYDEN, Mr. BROWN, Mr. WHITEHOUSE, Ms. CORTEZ MASTO, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Ms. STABENOW, Mr. BENNET, Ms. CANTWELL, Mr. WARNER, and Ms. HASSAN):

S. 4493. A bill to amend the Inspector General Act of 1978 to establish an Inspector General of the Office of the United States Trade Representative, and for other purposes; to the Committee on Finance.

By Ms. HASSAN (for herself and Mr. GRASSLEY):

S. 4494. A bill to amend title VI of the Social Security Act to extend the period with respect to which amounts under the Coronavirus Relief Fund may be expended; to the Committee on Finance.

By Ms. HASSAN (for herself, Ms. COLLINS, and Ms. SINEMA):

S. 4495. A bill to amend the Internal Revenue Code of 1986 to provide for automatic advance refunds of additional stimulus tax credits for specified individuals, and for other purposes; to the Committee on Finance.

By Mr. SCHUMER:

S. 4496. A bill to direct the Secretary of Labor to promulgate an occupational safety and health standard that requires covered employers to protect employees from injury and death related to grease trap manholes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. TOOMEY (for himself and Ms. HASSAN):

S. 4497. A bill to temporarily suspend duties on imports of articles needed to combat the COVID–19 pandemic; to the Committee on Finance.

By Mr. HEINRICH (for himself and Ms. MCSALLY):

S. 4498. A bill to amend Public Law 106–511 to reauthorize the Navajo electrification demonstration program, and for other purposes; to the Committee on Indian Affairs.

By Mr. PETERS (for himself, Ms. KLOBUCHAR, and Mr. REED):

S. 4499. A bill to establish an interagency COVID–19 misinformation and disinformation task force, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. PETERS (for himself and Mr. GARDNER):

S. 4500. A bill to amend title 44, United States Code, to preserve and protect open Government data assets; to the Committee on Homeland Security and Governmental Affairs.

By Ms. HASSAN (for herself and Mr. TOOMEY):

S. 4501. A bill to require reports on, and the coordination of trade policy with respect to, articles that may be needed to respond to the COVID–19 pandemic; to the Committee on Finance.

By Mr. KAINE (for himself and Mr. WARNER):

S. 4502. A bill to amend the Natural Gas Act to bolster fairness and transparency in the consideration of interstate natural gas pipeline permits, to provide for greater public input opportunities in the natural gas pipeline permitting process, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. WARNER (for himself, Mr. DAINES, Ms. DUCKWORTH, Mr. CASSIDY, and Mr. CORNYN):

S. 4503. A bill to amend title XVIII of the Social Security Act to protect beneficiaries with limb loss and other orthopedic conditions by providing access to appropriate, safe, effective, patient-centered orthotic and prosthetic care, to reduce fraud, waste, and abuse with respect to orthotics and prosthetics, and for other purposes; to the Committee on Finance.

By Ms. COLLINS (for herself and Mr. PETERS):

S. 4504. A bill to amend title XVIII of the Social Security Act to expand the availability of medical nutrition therapy services under the Medicare program; to the Committee on Finance.

By Mr. CRUZ:

S. 4505. A bill to provide one-time grants to parents and guardians for student education expenses, to establish emergency education freedom grants, and to provide tax credits for donations to eligible scholarship-granting organizations, and for other purposes; to the Committee on Finance.

By Mr. GARDNER:

S. 4506. A bill to ensure coverage of pre-existing conditions under private health insurance, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WARNER (for himself and Mr. SCOTT of South Carolina):

S. 4507. A bill to amend the Public Health Service Act to provide for a national campaign to raise awareness of the importance of seeking preventive health services and the utilization of such services; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ROUNDS:

S. 4508. A bill to authorize a pilot program to explore the use of consumption-based solutions to address software-intensive warfighting capability; to the Committee on Armed Services.

By Mr. WYDEN:

S. 4509. A bill to provide for affordable coverage of COVID–19 vaccines under Medicare, Medicaid, and the Children's Health Insurance Program, and for other purposes; to the Committee on Finance.

By Mr. SCHATZ (for himself and Mr. UDALL):

S. 4510. A bill to establish a Native American language resource center; to the Committee on Indian Affairs.

By Mr. MORAN (for himself, Mr. TILLIS, Mr. ROUNDS, Mr. BOOZMAN, Mr. DAINES, Ms. COLLINS, and Mr. LANKFORD):

S. 4511. A bill to make certain improvements in the laws administered by the Secretary of Veterans Affairs relating to education, burial benefits, and other matters, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. MENENDEZ (for himself, Mr. CASEY, Mr. BROWN, Ms. HIRONO, Ms. WARREN, and Mr. BOOKER):

S. 4512. A bill to establish requirements for Federal agencies to ensure that individuals with limited English proficiency and people with disabilities can access the services, activities, programs, and the benefits of those agencies; to the Committee on Homeland Security and Governmental Affairs.

By Ms. HARRIS:

S. 4513. A bill to ensure climate and environmental justice accountability, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mrs. SHAHEEN (for herself and Mr. PORTMAN):

S. 4514. A bill to prioritize efforts of the Department of State to combat international trafficking in covered synthetic drugs, including new psychoactive substances, and for other purposes; to the Committee on Foreign Relations.

By Mr. MANCHIN (for himself and Mr. CORNYN):

S. 4515. A bill to provide funding for internet-connected devices and associated internet connectivity services; to the Committee on Appropriations.

By Mrs. SHAHEEN:

S. 4516. A bill to establish a Governor's Emergency STEM Promotion Fund, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. RUBIO:

S. 4517. A bill to provide States additional time relating to the appointment of electors and for the meeting of electors for the 2020 election for President and Vice President; to the Committee on Rules and Administration.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mrs. LOEFFLER (for herself and Mr. PERDUE):

S. Res. 668. A resolution commemorating the Federal Law Enforcement Training Center's 50th Anniversary; considered and agreed to.

By Mr. ROUNDS:

S. Res. 669. A resolution to express the sense of the Senate on United States-Israel cooperation on precision-guided munitions; to the Committee on Foreign Relations.

By Ms. WARREN (for herself, Mr. PERDUE, Mr. CARDIN, Mrs. LOEFFLER, Mr. BOOKER, Mrs. FISCHER, Ms. STABENOW, Ms. COLLINS, Ms. BALDWIN, Mr. LANKFORD, Mr. VAN HOLLEN, Mr. BLUMENTHAL, Mrs. FEINSTEIN, Ms. ROSEN, Ms. SINEMA, and Mr. PETERS):

S. Res. 670. A resolution recognizing the seriousness of polycystic ovary syndrome (PCOS) and expressing support for the designation of September 2020 as ''PCOS Awareness Month''; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MARKEY (for himself, Mr. BENNET, Ms. HIRONO, Mr. WYDEN, Mr. CARPER, Mr. JONES, Ms. BALDWIN, Ms. CORTEZ MASTO, Mr. BLUMENTHAL, Ms. STABENOW, Mr. MENENDEZ, Ms. ROSEN, Mrs. FEINSTEIN, Mr. KAINE, Mr. CASEY, Mr. VAN HOLLEN, Ms. SMITH, Mr. WARNER, Mr. MERKLEY, Mr. DURBIN, Ms. KLOBUCHAR, Ms. HARRIS, Mr. BOOKER, Mrs. SHAHEEN, and Mr. BROWN):

S. Res. 671. A resolution recognizing, commemorating, and celebrating the 55th anniversary of the enactment of the Voting Rights Act of 1965, and reaffirming the Senate's commitment to ensuring the continued vitality of the Act and the protection of the voting rights of all citizens of the United States; to the Committee on the Judiciary.

By Mr. GRAHAM (for himself and Mrs. FEINSTEIN):

S. Res. 672. A resolution designating September 2020 as National Democracy Month as a time to reflect on the contributions of the system of government of the United States to a more free and stable world; to the Committee on the Judiciary.

By Mr. MARKEY (for himself, Mr. VAN HOLLEN, Mrs. FEINSTEIN, Mr. MERKLEY, Mr. DURBIN, Mrs. GILLIBRAND, Ms. WARREN, Mr. CARDIN, Mr. COONS, Ms. BALDWIN, Mr. WYDEN, Ms. HIRONO, Mr. MURPHY, Mr. LEAHY, Ms. CANTWELL, Mr. SANDERS, and Ms. SMITH):

S. Res. 673. A resolution affirming that the New START Treaty extension will cover new deployed Russian nuclear delivery systems, and supporting additional initiatives to engage China that advance the goal of concluding an arms control treaty or agreement; to the Committee on Foreign Relations.

By Mr. MENENDEZ (for himself and Mr. LEAHY):

S. Res. 674. A resolution commemorating June 20, 2020, as World Refugee Day; to the Committee on Foreign Relations.

By Mr. CRUZ (for himself, Mr. CORNYN, and Mr. RUBIO):

S. Res. 675. A resolution congratulating the men and women of the Commercial Crew Program of the National Aeronautics and Space Administration and Space Exploration Technologies Corporation and astronauts Robert L. Behnken and Douglas G. Hurley on the successful completion of the Crew Dragon Demo-2 test flight; to the Committee on Commerce, Science, and Transportation.

By Mr. MCCONNELL (for himself and Mr. SCHUMER):

S. Res. 676. A resolution to authorize the production of records by the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs; considered and agreed to.

By Ms. MURKOWSKI (for herself, Mr. SULLIVAN, Mr. TILLIS, Mr. PERDUE, Mr. COTTON, Mr. ROUNDS, Mr. JONES, Mr. VAN HOLLEN, Mrs. SHAHEEN, Ms. ROSEN, Mrs. MURRAY, Mr. MENENDEZ, Mr. MANCHIN, Mr. CASEY, Mr. KING, Ms. HIRONO, Ms. DUCKWORTH, Mrs. LOEFFLER, and Mr. MCCONNELL):

S. Res. 677. A resolution designating August 16, 2020, as ''National Airborne Day''; considered and agreed to.

By Mrs. FEINSTEIN (for herself, Mr. LANKFORD, Mr. BRAUN, Mrs. CAPITO, Ms. HARRIS, Ms. HASSAN, Mr. JONES, Mr. PETERS, and Ms. ROSEN):

S. Res. 678. A resolution designating September 2020 as ''National Child Awareness Month'' to promote awareness of charities that benefit children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States; considered and agreed to.

ADDITIONAL COSPONSORS

S. 624

At the request of Ms. KLOBUCHAR, the names of the Senator from Pennsylvania (Mr. CASEY) and the Senator from Vermont (Mr. SANDERS) were added as cosponsors of S. 624, a bill to amend the Help America Vote Act of 2002 to require States to provide for same day registration.

S. 633

At the request of Mr. MORAN, the names of the Senator from North Dakota (Mr. CRAMER), the Senator from Georgia (Mr. PERDUE), the Senator from Pennsylvania (Mr. CASEY) and the Senator from Illinois (Mr. DURBIN) were added as cosponsors of S. 633, a bill to award a Congressional Gold Medal to the members of the Women's Army Corps who were assigned to the 6888th Central Postal Directory Battalion, known as the ''Six Triple Eight''.

S. 785

At the request of Mr. GARDNER, his name was added as a cosponsor of S. 785, a bill to improve mental health care provided by the Department of Veterans Affairs, and for other purposes.

S. 839

At the request of Mr. PORTMAN, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 839, a bill to extend Federal Pell Grant eligibility of certain short-term programs.

S. 892

At the request of Mr. CASEY, the names of the Senator from West Virginia (Mrs. CAPITO), the Senator from Georgia (Mrs. LOEFFLER), the Senator from Massachusetts (Ms. WARREN) and the Senator from Nebraska (Mrs. FISCHER) were added as cosponsors of S. 892, a bill to award a Congressional Gold Medal, collectively, to the women in the United States who joined the workforce during World War II, providing the aircraft, vehicles, weaponry, ammunition, and other materials to win the war, that were referred to as ''Rosie the Riveter'', in recognition of their contributions to the United States and the inspiration they have provided to ensuing generations.

S. 997

At the request of Ms. WARREN, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 997, a bill to recognize and honor the service of individuals who served in the United States Cadet Nurse Corps during World War II, and for other purposes.

S. 1068

At the request of Mr. CARDIN, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 1068, a bill to secure the Federal voting rights of persons when released from incarceration.

S. 1267

At the request of Mr. MENENDEZ, the names of the Senator from Oregon (Mr. WYDEN), the Senator from Oregon (Mr. MERKLEY), the Senator from Connecticut (Mr. MURPHY), the Senator from Hawaii (Mr. SCHATZ) and the Senator from Michigan (Ms. STABENOW) were added as cosponsors of S. 1267, a bill to establish within the Smithsonian Institution the National Museum of the American Latino, and for other purposes.

S. 1421

At the request of Mr. MARKEY, the name of the Senator from Utah (Mr. LEE) was added as a cosponsor of S. 1421, a bill to award a Congressional Gold Medal to the 23d Headquarters Special Troops and the 3133d Signal Service Company in recognition of their unique and distinguished service as a ''Ghost Army'' that conducted deception operations in Europe during World War II.

S. 1609

At the request of Mr. VAN HOLLEN, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 1609, a bill to amend the Securities Act of 1934 to require country-by-country reporting.

S. 1644

At the request of Mr. TOOMEY, the name of the Senator from Georgia (Mrs. LOEFFLER) was added as a cosponsor of S. 1644, a bill to ensure that State and local law enforcement may cooperate with Federal officials to protect our communities from violent criminals and suspected terrorists who are illegally present in the United States.

S. 2043

At the request of Mr. BLUMENTHAL, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 2043, a bill to provide incentives for hate crime reporting, provide grants for State-run hate crime hotlines, and establish alternative sentencing for individuals convicted under the Matthew Shephard and James Byrd, Jr. Hate Crimes Prevention Act.

S. 2054

At the request of Mr. MARKEY, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 2054, a bill to posthumously award the Congressional Gold Medal, collectively, to Glen Doherty, Tyrone Woods, J. Christopher Stevens, and Sean Smith, in recognition of their contributions to the Nation.

S. 2057

At the request of Mr. MARKEY, the name of the Senator from California (Ms. HARRIS) was added as a cosponsor of S. 2057, a bill to establish a National Climate Bank.

S. 2226

At the request of Ms. KLOBUCHAR, the names of the Senator from Hawaii (Ms. HIRONO), the Senator from New Jersey (Mr. BOOKER) and the Senator from Illinois (Mr. DURBIN) were added as cosponsors of S. 2226, a bill to require States to carry out congressional redistricting in accordance with plans developed and enacted into law by independent redistricting commissions, and for other purposes.

S. 2233

At the request of Mr. HEINRICH, his name was added as a cosponsor of S. 2233, a bill to nullify the effect of the recent executive order that requires Federal agencies to share citizenship data.

S. 2238

At the request of Ms. KLOBUCHAR, the names of the Senator from New Jersey (Mr. BOOKER), the Senator from Pennsylvania (Mr. CASEY), the Senator from Hawaii (Ms. HIRONO) and the Senator from Vermont (Mr. SANDERS) were added as cosponsors of S. 2238, a bill to protect elections for public office by providing financial support and enhanced security for the infrastructure used to carry out such elections, and for other purposes.

S. 2669

At the request of Ms. KLOBUCHAR, the names of the Senator from Pennsylvania (Mr. CASEY), the Senator from Illinois (Mr. DURBIN) and the Senator from Vermont (Mr. SANDERS) were added as cosponsors of S. 2669, a bill to amend the Federal Election Campaign Act of 1971 to clarify the obligation to report acts of foreign election influence and require implementation of compliance and reporting systems by Federal campaigns to detect and report such acts, and for other purposes.

S. 2693

At the request of Mr. SCHATZ, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. 2693, a bill to improve oversight by the Federal Communications Commission of the wireless and broadcast emergency alert systems.

S. 2695

At the request of Mr. ROBERTS, the name of the Senator from Tennessee (Mr. ALEXANDER) was added as a cosponsor of S. 2695, a bill to authorize the Secretary of Agriculture to provide for the defense of United States agriculture and food through the National Bio and Agro-Defense Facility, and for other purposes.

S. 2815

At the request of Mr. SCHUMER, the names of the Senator from Washington (Ms. CANTWELL), the Senator from Vermont (Mr. LEAHY) and the Senator from Minnesota (Ms. SMITH) were added as cosponsors of S. 2815, a bill to require the Secretary of the Treasury to mint coins in commemoration of the National Purple Heart Honor Mission.

S. 3264

At the request of Mr. UDALL, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 3264, a bill to expedite and streamline the deployment of affordable broadband service on Tribal land, and for other purposes.

S. 3470

At the request of Mr. MARKEY, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 3470, a bill to establish the National Office of New Americans, to reduce obstacles to United States citizenship, to support the integration of immigrants into the social, cultural, economic, and civic life of the United States, and for other purposes.

S. 3485

At the request of Mr. WHITEHOUSE, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 3485, a bill to expand the Outer Continental Shelf Lands Act to expand revenue sharing for offshore wind, to reauthorize the National Oceans and Coastal Security Act, and for other purposes.

S. 3487

At the request of Ms. BALDWIN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 3487, a bill to amend the Victims of Crime Act of 1984 to provide for the compensation of elderly victims of property damage, to provide increased funding for the crime victim compensation fund, and for other purposes.

S. 3677

At the request of Ms. BALDWIN, the names of the Senator from Washington (Ms. CANTWELL) and the Senator from Virginia (Mr. WARNER) were added as cosponsors of S. 3677, a bill to require the Occupational Safety and Health Administration to promulgate an emergency temporary standard to protect employees from occupational exposure to SARS–CoV–2, and for other purposes.

S. 3703

At the request of Ms. COLLINS, the name of the Senator from Georgia (Mr. PERDUE) was added as a cosponsor of S. 3703, a bill to amend the Elder Abuse Prevention and Prosecution Act to improve the prevention of elder abuse and exploitation of individuals with Alzheimer's disease and related dementias.

S. 3814

At the request of Mr. BENNET, the names of the Senator from Alabama (Mr. SHELBY), the Senator from California (Ms. HARRIS) and the Senator from Maryland (Mr. VAN HOLLEN) were added as cosponsors of S. 3814, a bill to establish a loan program for businesses affected by COVID–19 and to extend the loan forgiveness period for paycheck protection program loans made to the hardest hit businesses, and for other purposes.

S. 3856

At the request of Ms. WARREN, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 3856, a bill to authorize emergency homeless assistance grants under the Emergency Solutions Grants program of the Department of Housing and Urban Development for response to the public health emergency relating to COVID–19, and for other purposes.

S. 3900

At the request of Ms. ROSEN, the name of the Senator from New Hampshire (Ms. HASSAN) was added as a cosponsor of S. 3900, a bill to direct the Secretary of Defense to carry out a grant program to support science, technology, engineering, and mathematics education in the Junior Reserve Officers' Training Corps and for other purposes.

S. 3933

At the request of Mr. CORNYN, the name of the Senator from Indiana (Mr. YOUNG) was added as a cosponsor of S. 3933, a bill to restore American leadership in semiconductor manufacturing by increasing Federal incentives in order to enable advanced research and development, secure the supply chain, and ensure long-term national security and economic competitiveness.

S. 4000

At the request of Ms. WARREN, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 4000, a bill to require Federal law enforcement and prison officials to obtain or provide immediate medical attention to individuals in custody who display medical distress.

S. 4003

At the request of Mr. MENENDEZ, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 4003, a bill to improve United States consideration of, and strategic support for, programs to prevent and respond to gender-based violence from the onset of humanitarian emergencies and to build the capacity of humanitarian actors to address the immediate and long-term challenges resulting from such violence, and for other purposes.

S. 4061

At the request of Mr. CORNYN, the names of the Senator from California (Mrs. FEINSTEIN) and the Senator from North Carolina (Mr. TILLIS) were added as cosponsors of S. 4061, a bill to provide emergency nutrition assistance to States, and for other purposes.

S. 4071

At the request of Mr. RUBIO, the name of the Senator from Arizona (Ms. MCSALLY) was added as a cosponsor of S. 4071, a bill to amend the Internal Revenue Code of 1986 to adjust identification number requirements for taxpayers filing joint returns to receive Economic Impact Payments.

S. 4075

At the request of Mrs. CAPITO, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 4075, a bill to amend the Public Works and Economic Development Act of 1965 to provide for the release of certain Federal interests in connection with certain grants under that Act, and for other purposes.

S. 4106

At the request of Mr. BRAUN, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. 4106, a bill to amend the Public Health Service Act to provide for hospital and insurer price transparency.

S. 4108

At the request of Mr. CASEY, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of S. 4108, a bill to amend title XIX of the Social Security Act to increase Federal support to State Medicaid programs during economic downturns, and for other purposes.

S. 4117

At the request of Mr. CRAMER, the names of the Senator from Mississippi (Mrs. HYDE-SMITH) and the Senator from Louisiana (Mr. KENNEDY) were added as cosponsors of S. 4117, a bill to provide automatic forgiveness for paycheck protection program loans under $150, 000, and for other purposes.

S. 4129

At the request of Mr. WICKER, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 4129, a bill to amend the Internal Revenue Code of 1986 to reinstate advance refunding bonds.

S. 4140

At the request of Mr. BOOKER, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 4140, a bill to provide additional emergency funding for certain nutrition programs.

S. 4150

At the request of Mr. REED, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of S. 4150, a bill to require the Secretary of the Treasury to provide assistance to certain providers of transportation services affected by the novel coronavirus.

S. 4160

At the request of Mr. THUNE, the names of the Senator from Colorado (Mr. GARDNER) and the Senator from New York (Mrs. GILLIBRAND) were added as cosponsors of S. 4160, a bill to enable certain hospitals that were participating in or applied for the drug discount program under section 340B of the Public Health Service Act prior to the COVID–19 public health emergency to temporarily maintain eligibility for such program, and for other purposes.

S. 4174

At the request of Ms. COLLINS, the name of the Senator from California (Ms. HARRIS) was added as a cosponsor of S. 4174, a bill to provide emergency appropriations to the United States Postal Service to cover losses related to the COVID–19 crisis and to direct the Board of Governors of the United States Postal Service to develop a plan for ensuring the long term solvency of the Postal Service.

S. 4186

At the request of Mr. COONS, the names of the Senator from Ohio (Mr. BROWN) and the Senator from Iowa (Ms. ERNST) were added as cosponsors of S. 4186, a bill to provide grants to States that do not suspend, revoke, or refuse to renew a driver's license of a person or refuse to renew a registration of a motor vehicle for failure to pay a civil or criminal fine or fee, and for other purposes.

S. 4233

At the request of Ms. COLLINS, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 4233, a bill to establish a payment program for unexpected loss of markets and revenues to timber harvesting and timber hauling businesses due to the COVID–19 pandemic, and for other purposes.

S. 4255

At the request of Mr. WARNER, the names of the Senator from New Jersey (Mr. MENENDEZ), the Senator from Maryland (Mr. VAN HOLLEN), the Senator from Alabama (Mr. JONES), the Senator from North Carolina (Mr. TILLIS), the Senator from Idaho (Mr. CRAPO), the Senator from Arkansas (Mr. BOOZMAN), the Senator from Louisiana (Mr. KENNEDY), the Senator from South Carolina (Mr. SCOTT), the Senator from South Carolina (Mr. GRAHAM) and the Senator from Mississippi (Mr. WICKER) were added as cosponsors of S. 4255, a bill to amend the CARES Act to establish community investment programs, and for other purposes.

S. 4258

At the request of Mr. CORNYN, the names of the Senator from New Hampshire (Ms. HASSAN), the Senator from South Carolina (Mr. GRAHAM), the Senator from Michigan (Ms. STABENOW), the Senator from Mississippi (Mrs. HYDE-SMITH) and the Senator from Colorado (Mr. GARDNER) were added as cosponsors of S. 4258, a bill to establish a grant program for small live venue operators and talent representatives.

S. 4285

At the request of Mr. MANCHIN, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of S. 4285, a bill to establish a pilot program through which the Institute of Museum and Library Services shall allocate funds to States for the provision of Internet-connected devices to libraries.

S. 4286

At the request of Mr. MARKEY, the names of the Senator from Massachusetts (Ms. WARREN) and the Senator from Maine (Ms. COLLINS) were added as cosponsors of S. 4286, a bill to authorize appropriations for offsetting the costs related to reductions in research productivity resulting from the coronavirus pandemic.

S. 4290

At the request of Mr. CORNYN, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. 4290, a bill to provide much needed liquidity to America's job creators.

S. 4296

At the request of Mr. PORTMAN, the names of the Senator from West Virginia (Mrs. CAPITO) and the Senator from Rhode Island (Mr. WHITEHOUSE) were added as cosponsors of S. 4296, a bill to provide the Administrator of the Drug-Free Communities Support Program the authority to waive the Federal fund limitation for the Drug-Free Communities Support Program.

S. 4317

At the request of Mr. CORNYN, the names of the Senator from Oklahoma (Mr. LANKFORD), the Senator from Georgia (Mr. PERDUE), the Senator from Georgia (Mrs. LOEFFLER), the Senator from Pennsylvania (Mr. TOOMEY) and the Senator from Missouri (Mr. BLUNT) were added as cosponsors of S. 4317, a bill to lessen the burdens on interstate commerce by discouraging insubstantial lawsuits relating to COVID–19 while preserving the ability of individuals and businesses that have suffered real injury to obtain complete relief.

S. 4338

At the request of Mr. BOOKER, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 4338, a bill to direct the Secretary of Agriculture to temporarily suspend increased line speeds at meat and poultry establishments, and for other purposes.

S. 4344

At the request of Mr. TESTER, the names of the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Delaware (Mr. COONS) were added as cosponsors of S. 4344, a bill to provide a tax credit to live event venues that provided refunds on tickets for events that were cancelled due to the coronavirus pandemic.

S. 4362

At the request of Mr. MERKLEY, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. 4362, a bill to prohibit water and power shutoffs during the COVID–19 emergency period, provide drinking and waste water assistance to households, and for other purposes.

S. 4374

At the request of Mr. MENENDEZ, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 4374, a bill to establish a Government-wide initiative to promote diversity and inclusion in the Federal workforce, and for other purposes.

S. 4390

At the request of Mr. KAINE, the name of the Senator from California (Ms. HARRIS) was added as a cosponsor of S. 4390, a bill to establish a grant program to support schools of medicine and schools of osteopathic medicine in underserved areas.

S. 4395

At the request of Mr. MERKLEY, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 4395, a bill to amend title 46, United States Code, to authorize maritime transportation emergency relief, and for other purposes.

S. 4402

At the request of Mr. CORNYN, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 4402, a bill to amend the Federal Water Pollution Control Act to clarify certain activities that would have been authorized under Nationwide Permit 12 and other Nationwide Permits, and for other purposes.

S. 4433

At the request of Mr. CORNYN, the name of the Senator from Iowa (Mr. GRASSLEY) was added as a cosponsor of S. 4433, a bill to authorize the National Medal of Honor Museum Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

S. 4439

At the request of Ms. SMITH, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. 4439, a bill to require any COVID–19 drug developed in whole or in part with Federal support to be affordable and accessible by prohibiting monopolies and price gouging, and for other purposes.

S. 4442

At the request of Mr. WARNER, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 4442, a bill to amend subtitle A of title II of division A of the CARES Act to provide Pandemic Unemployment Assistance to individuals with mixed income sources, and for other purposes.

S. RES. 524

At the request of Mr. CARDIN, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. Res. 524, a resolution condemning the practice of politically motivated imprisonment, calling for the immediate release of political prisoners in the Russian Federation, and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse.

S. RES. 578

At the request of Mr. WYDEN, the names of the Senator from Connecticut (Mr. MURPHY), the Senator from Ohio (Mr. PORTMAN), the Senator from Virginia (Mr. KAINE), the Senator from Pennsylvania (Mr. TOOMEY), the Senator from New Hampshire (Mrs. SHAHEEN), the Senator from Tennessee (Mr. ALEXANDER), the Senator from Connecticut (Mr. BLUMENTHAL), the Senator from Georgia (Mr. PERDUE), the Senator from Maryland (Mr. VAN HOLLEN), the Senator from Oklahoma (Mr. INHOFE), the Senator from Maryland (Mr. CARDIN), the Senator from Kansas (Mr. MORAN), the Senator from Oklahoma (Mr. LANKFORD) and the Senator from Maine (Ms. COLLINS) were added as cosponsors of S. Res. 578, a resolution condemning the Government of Iran's state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 658

At the request of Mr. DURBIN, the name of the Senator from Indiana (Mr. YOUNG) was added as a cosponsor of S. Res. 658, a resolution calling for a free, fair, and transparent presidential election in Belarus taking place on August 9, 2020, including the unimpeded participation of all presidential candidates.

AMENDMENT NO. 2582

At the request of Ms. ERNST, the name of the Senator from Arizona (Ms. MCSALLY) was added as a cosponsor of amendment No. 2582 intended to be proposed to S. 178, a bill to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China.

AMENDMENT NO. 2593

At the request of Ms. COLLINS, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of amendment No. 2593 intended to be proposed to S. 178, a bill to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. KAINE (for himself and Mr. WARNER):

S. 4502. A bill to amend the Natural Gas Act to bolster fairness and transparency in the consideration of interstate natural gas pipeline permits, to provide for greater public input opportunities in the natural gas pipeline permitting process, and for other purposes; to the Committee on Commerce, Science, and Transportation.

Mr. KAINE. Mr. President, today I am introducing a bipartisan bill to

make the process of siting natural gas pipelines fairer, more transparent, and more responsive to landowner concerns.

For some time now, I have been listening to Virginians with passionate views on the process involved in permitting the Atlantic Coast and Mountain Valley Pipelines. For various reasons, many oppose one or both of these projects while others support these projects. The Federal Energy Regulatory Commission, FERC, is tasked with analyzing all the issues—purpose and need for a project, impacts on people living on the route, potential risks to the environment or property—and deciding what course best serves the public interest.

From listening to all sides, I have concluded that while reasonable people may reach different conclusions, FERC's public input process is flawed and could be better. Accordingly, this legislation proposes several steps to address several shortcomings, all of which were originally brought to my attention by Virginia constituents. For instance, this bill requires programmatic analysis of pipelines proposed around the same time and in the same geographic vicinity so that the full impacts of multiple projects can be analyzed. It requires a greater number of public comment meetings so that citizens are not required to commute long distances to meetings at which they must speed through just a few minutes of remarks on these complex topics. It ensures that affected landowners are given proper notice and compensation. It guarantees that landowner complaints will be heard before construction commences. And it clarifies the circumstances under which eminent domain should and should not be used.

I am pleased to be joined by my colleague Senator MARK WARNER on this bill, which is an update to a version we introduced in the 115th Congress. The public deserves reasonable opportunity to weigh in on energy infrastructure projects, and we are heeding calls by our constituents to make this process fairer and more transparent without mandating a particular outcome.

I encourage the Senate to consider this legislation, not to pave the way for pipelines nor to throw up insurmountable roadblocks to them, but to give the public greater certainty that the federal government's infrastructure decisions are fair and transparent.

By Ms. COLLINS (for herself and Mr. PETERS):

S. 4504. A bill to amend title XVIII of the Social Security Act to expand the availability of medical nutrition therapy services under the Medicare program; to the Committee on Finance.

Ms. COLLINS. Mr. President, I rise today to join my colleague from Michigan, Senator PETERS, in introducing legislation to expand Medicare beneficiaries' access to Medical Nutrition Therapy, or MNT, which is a cost-effective component of treatment for obesity, diabetes, hypertension, dyslipidemia, and other chronic conditions. At a time when we are seeing many diet-related chronic conditions contribute to poor COVID–19 outcomes, increasing access to MNT should be part of the strategy to improve disease management and prevention for America's seniors. Our legislation, the Medical Nutrition Therapy Act of 2020, would make two important changes to support patients, improve health outcomes, and reduce unnecessary healthcare costs.

First, it would expand Medicare Part B coverage of outpatient medical nutrition therapy services to a number of currently uncovered diseases or conditions—including prediabetes, obesity, high blood pressure, high cholesterol, malnutrition, eating disorders, cancer, celiac disease, and HIV/AIDS. Currently, Medicare Part B only covers outpatient MNT for diabetes, renal disease, and post-kidney transplant. Second, the bill would allow more types of providers—including nurse practitioners, physician assistants, clinical nurse specialists, and psychologists—to refer patients to MNT. This is especially critical for a rural State like Maine, where a NP or PA may be one's trusted primary care provider.

MNT counseling is provided by registered dietitian nutritionists, RDNs, as part of a collaborative healthcare team. It is evidenced-based and proven to positively impact weight, blood pressure, blood lipids, and blood sugar control, and nutritional counseling by RDNs is even recommended by the National Lipid Association to promote long-term adherence to an individualized, heart-healthy diet. Through MNT, individuals benefit from in-depth individualized nutrition assessments and trusted followup visits for the repeated reinforcement necessary to aid with behavior and lifestyle changes.

Seniors deserve improved access to this cost-effective medical treatment, but many older adults are missing out under the current Medicare policy. Marcy Kyle, a RDN from Rockport, ME, shared numerous stories of patients being denied access to medically necessary MNT that illustrate why this legislation is needed. In one story, a patient with prediabetes was referred by his primary care physician for MNT at age 64. At that time, his private insurance covered the service and he booked the first available appointment the following week. But this patient turned 65 that week and transitioned onto Medicare. You can imagine his surprise upon arriving for his appointment that MNT would not be covered. While the outpatient facility changed its process after this case in order to prevent similar situations, it demonstrates how the current restrictions are detrimental for older adults at a critical juncture in their health journey.

Another example from Maine was a patient with a new diagnosis of celiac disease complicated by severe weight loss. His private insurance covered MNT as celiac disease is a very controllable disease with proper nutrition. But when transitioning from private insurance to Medicare, this patient lost his opportunity for MNT. We know that early treatment with MNT can prevent future and more serious health complications and chronic conditions in older adults, and conditions such as prediabetes and celiac disease should be covered.

The health and financial crisis brought on by the COVID–19 pandemic makes access to MNT even more important. Seniors with diet-related conditions are suffering more than any other population in terms of the worst health outcomes, including death. Data from the Centers for Medicare & Medicaid Services, CMS, in June confirmed elevated risk for seniors with underlying health conditions. Among those hospitalized with COVID–19, 79 percent of patients had hypertension, 60 percent had hyperlipidemia, 50 percent of patients either presented with chronic kidney disease or diabetes. Tragically, of those hospitalized, 28 percent were never able to leave the hospital because they passed away.

In addition to the significant health impacts, the economic impact of chronic diseases is staggering. According to the U.S. Centers for Disease Control and Prevention, 90 percent of the $3.5 trillion the United States spends annually on health care goes to the treatment of people with chronic diseases and mental health conditions. Preventing chronic diseases, or managing symptoms when prevention is not possible, is one way to reduce these costs. This is particularly important for the Medicare Program as more than two-thirds of seniors on Medicare live with multiple chronic conditions. As one registered dietition nutritionist in Maine told me, ''We all know a dollar spent on prevention saves many health care dollars in the long run and is the right thing to do for our seniors at a time when they have limited budgets.''

The Medical Nutrition Therapy Act of 2020 is supported by more than 30 national organizations, including the Academy of Nutrition and Dietetics, the American Diabetes Association, the Endocrine Society, the American Cancer Society Cancer Action Network, and the National Kidney Foundation.

I urge my colleagues to support this important legislation to improve access to cost-effective medical treatment for Medicare patients with chronic diseases.

By Ms. SMITH:

S. 4466. A bill to authorize the Attorney General to make grants to improve public safety, and for other purposes; to the Committee on the Judiciary.

Ms. SMITH. Mr. President, I rise today to continue to lift up the voices of millions of Americans who are demanding policing reform as a necessary

step on the path towards racial justice in this country. The challenges in defeating systemic racism can seem insurmountable, but there are clear next steps.

We need to start by transforming our policing system to root out the systemic racism and the culture of violence that is killing Black and Brown and indigenous people and people of color.

I want to talk today about four areas of this work that need our urgent attention.

First, we need to bring justice, accountability, and change to police departments by passing the Justice in Policing Act.

Second, we need to invest in new models of public safety by supporting community-led reform and innovation. I am asking the Senate to take up and pass my new bill to do just that.

Third, we need to end the criminalization of poverty, which happens when other social systems fail.

Finally, we need to root out racism in our systems of education, healthcare, housing, and economic opportunity so that everyone in this country can have the freedom and the opportunity to build the lives they choose.

In order to bring justice, accountability, and change to policing departments around the country, we need to start by passing the Justice in Policing Act. Led by Senator BOOKER and Senator HARRIS, this bill is a comprehensive set of needed Federal-level reforms to a system that is designed to shield police officers from accountability and consequences and denies justice to victims of police violence.

These reforms—like ending qualified immunity, establishing a national use-of-force standard, creating a registry of police misconduct, and banning dangerous practices like choke holds and no-knock warrants—are long overdue.

Indeed, communities and activists have pushed for many of the reforms in this bill for decades. A few weeks ago, I spoke on this floor about the urgent need to pass this bill. Unfortunately, this critical legislation is still sitting on Leader MCCONNELL's desk. But I promise that I will keep fighting until the Justice in Policing Act is signed into law.

Policing needs other changes, too, like banning so-called warrior training, which encourages law enforcement officials to see the public as hostile enemies. We need to empower the Civil Rights Division of the Department of Justice to independently investigate police departments that systematically violate the constitutional rights of our communities.

We need to reform Federal sentencing to repeal 1994 crime bill provisions, like mandatory minimums and draconian sentencing enhancements, and we need to prohibit police union contracts that create unfair barriers to effective investigations, civilian oversight, and holding police departments accountable to the communities they are sworn to serve.

In our work to transform policing, the second step we need to take at the Federal level is to support local community-led innovation in public safety.

Although Congress has the responsibility to establish national standards for justice and accountability, Federal-level change can only go so far. State, local, and Tribal governments are responsible for overseeing policing in their communities. I believe that these communities know best what will work in their own cities and towns. The Federal Government, though, can play a catalytic role by supporting and funding innovative, anti-racist policing reform.

With this in mind, today I am introducing a bill, the Supporting Innovation and Public Safety Act, which would help State, local, and Tribal governments reimagine policing in their communities by funding innovative projects and best practices that will transform how we deliver public safety and other social services.

My bill would empower local governments to develop and implement projects to improve public safety through systemic change, not just by growing police department budgets.

There are great examples of innovation already happening. Local jurisdictions are experimenting with new ways to provide mental health crisis response. They are addressing ways of dealing with gun violence as a public health issue and even how to enforce low-level traffic safety violations without involving an armed police officer.

I have long believed that those who are closest to the work know best how to get the work done. Through these grants from the Federal level, we will be able to help local communities adopt new approaches to public safety, tailoring their needs and unique circumstances to what they need to do. Then we can develop robust evaluation of these community-led projects, which will generate new data and new models of public safety in policing and also sow the seeds of progress and broad transformation.

The third thing we need to do at all levels of government is to work together to stop criminalizing poverty and using the criminal justice system as the solution for every social ill.

For decades, we have dramatically underfunded efforts to support housing, mental health, and substance abuse. And then we criminalize the results of this lack of support. We ask police departments to control behavior like loitering or trespassing, public intoxication, and public nuisances—all offenses that largely don't threaten public safety. Then we put people in jail because they have a mental illness or lack a safe place to live. Poverty becomes the reason why people, especially people of color, get caught up in the criminal justice system.

It is time that we stop criminalizing poverty and start investing in solutions to get to the root causes of social problems. We need to refocus policing on violence prevention and crisis response, which connects people to the services that they need.

A good place to start is by dramatically reforming cash bail so that those who haven't been convicted of a crime don't remain in jail just because they can't afford bail. Almost 60 percent of the nearly 750,000 people currently in jail have not been convicted of any crime. They are in jail just because they cannot afford bail, and the data tells us that this is yet another burden that falls disproportionately on communities of color.

Indeed, when we criminalize poverty, we facilitate the systemic racist harassment, surveillance, and control of Black and Brown, and indigenous communities. That is why we need to ban the use of quotas for law enforcement officers to enforce so-called broken windows offenses. These offenses do not threaten public safety, and they are disproportionately enforced on communities of color.

A recent New York Times investigation found that in many large police departments, serious violent crimes make up only about 1 percent of all calls for service—1 percent. Many of those same departments are solving less than 30 percent of those serious crimes. We could actually improve public safety by devoting resources to combating violent crime rather than overenforcing low-level offenses in communities of color.

Let's think about what this means for marijuana offenses. The Federal marijuana prohibition is a failed policy that contributes to mass incarceration and overpolicing of communities of color. White and Black people use marijuana at roughly the same rate, but a Black person is almost four times as likely to be arrested for a marijuana offense.

The Federal Government is behind both State law and public opinion. Forty-two States and the District of Columbia already allow some type of marijuana use, despite the long-time Federal prohibition.

It is time to legalize marijuana, and we should do it in a practical and commonsense way that protects the health and safety and the civil rights of our communities.

We need to take up and pass Senator HARRIS's Marijuana Opportunity Reinvestment and Expungement Act, the MORE Act, which I am proud to cosponsor. The MORE Act would address the devastating impact on communities of color on the War on Drugs by expunging marijuana-related convictions and reinvesting in community.

Also, I recently introduced a bill, the Substance Resolution and Safety Act, which would ensure that marijuana is regulated to protect the health and the safety of youth, of consumers, and of drivers. We do this without replicating the racist enforcement patterns of our current drug policy.

Finally, we need to recognize that racial justice is not only about policing and criminal justice reform. We need to root out racist policies that are built into our systems of housing, healthcare, education, and economic opportunity.

The legacy of slavery, of oppression, and of discrimination is pervasive in these areas and our communities bear the scars of these past crimes even as new injuries accumulate. This is why a Black or a Brown child living in the neighborhood where George Floyd was murdered has fewer opportunities than a White child living just a few miles away.

The impact of generations of stolen labor, of systemic violence, and exclusion from opportunity is revealed today in legal disparities, achievement gaps, housing instability, and the dramatic difference in wealth and wages between White people and people of color.

Addressing these challenges are crucial to the unfinished work of racial justice in our country. This means that we need to implement anti-racist practices and policies, like ending the use of armed police officers in schools, eliminating discipline disparities, and shutting off the school-to-prison pipeline. It means addressing the systemic exclusion of Black and Brown and indigenous people from the wealth-building opportunities of homeownership. It means tackling the root causes of racial health disparities, including environmental injustices and discrimination in healthcare. It means supporting economic opportunity for all by removing racist barriers to employment, entrepreneurship, credit, and capital.

The scale of the injustice that we see in our country can sometimes feel overwhelming, and the path can seem very long. These are some concrete steps that we can take on that path, and they are necessary steps, to fulfill our country's promise of freedom and equity for all of us. Community leaders and activists are showing us the path forward, and following this path requires us to be courageous, requires us to be humble, and, at times, requires us to be uncomfortable. But it is a path rooted in love and trust and hope.

By Mr. THUNE (for himself, Mr. ROUNDS, Mr. GRASSLEY, and Ms. ERNST):

S. 4481. A bill to require the Administrator of the Environmental Protection Agency to update the modeling used for lifecycle greenhouse gas assessments for corn-based ethanol and biodiesel, and for other purposes; to the Committee on Environment and Public Works.

Mr. THUNE. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4481

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Adopt the Greenhouse Gases, Regulated Emissions, and Energy Use in Transportation Model Act'' or the ''Adopt GREET Act''.

SEC. 2. DEFINITION OF ADMINISTRATOR.

In this Act, the term ''Administrator'' means the Administrator of the Environmental Protection Agency.

SEC. 3. LIFECYCLE GREENHOUSE GAS EMISSIONS FROM CORN-BASED ETHANOL.

(a) IN GENERAL.—Subject to subsection (b), not later than 90 days after the date of enactment of this Act, and every 5 years thereafter, the Administrator shall update the methodology used by the Environmental Protection Agency in lifecycle analyses with respect to greenhouse gas emissions that result from corn-based ethanol.

(b) REQUIREMENTS.—

(1) FIRST UPDATE.—In carrying out the first update required under subsection (a), the Administrator shall adopt—

(A) the most recent Greenhouse gases, Regulated Emissions, and Energy use in Transportation model (commonly referred to as the ''GREET model'') developed by Argonne National Laboratory; or

(B) the methodology described in the study by the Office of the Chief Economist of the Department of Agriculture entitled ''The greenhouse gas benefits of corn ethanol–assessing recent evidence'' and published on March 25, 2019.

(2) SUBSEQUENT UPDATES.—In carrying out the second and each subsequent update required under subsection (a), the Administrator shall—

(A) as necessary, adopt, review, or update a methodology determined to be appropriate by the Administrator; or

(B) adopt a methodology described in subparagraph (A) or (B) of paragraph (1).

(c) REPORT.—If the Administrator fails to carry out subsection (b)(2) before the applicable deadline described in subsection (a), the Administrator shall submit to the Committees on Agriculture, Nutrition, and Forestry, Energy and Natural Resources, and Environment and Public Works of the Senate and the Committees on Agriculture, Energy and Commerce, and Science, Space, and Technology of the House of Representatives a report describing the reasons for the failure to carry out subsection (b)(2), which may include a determination by the Administrator that the methodology adopted or updated in a previous update under subsection (a) remains the most current methodology based on available data, research, and technology.

SEC. 4. LIFECYCLE GREENHOUSE GAS EMISSIONS FROM BIODIESEL.

(a) IN GENERAL.—Subject to subsection (b), not later than 90 days after the date of enactment of this Act, and every 5 years thereafter, the Administrator shall update the methodology used by the Environmental Protection Agency in lifecycle analyses with respect to greenhouse gas emissions that result from biodiesel.

(b) REQUIREMENTS.—

(1) FIRST UPDATE.—In carrying out the first update required under subsection (a), the Administrator shall adopt the most recent Greenhouse gases, Regulated Emissions, and Energy use in Transportation model (commonly referred to as the ''GREET model'') developed by Argonne National Laboratory.

(2) SUBSEQUENT UPDATES.—In carrying out the second and each subsequent update required under subsection (a), the Administrator shall—

(A) as necessary, adopt, review, or update a methodology determined to be appropriate by the Administrator; or

(B) adopt the methodology described in paragraph (1).

(c) REPORT.—If the Administrator fails to carry out subsection (b)(2) before the applicable deadline described in subsection (a), the Administrator shall submit to the Committees on Agriculture, Nutrition, and Forestry, Energy and Natural Resources, and Environment and Public Works of the Senate and the Committees on Agriculture, Energy and Commerce, and Science, Space, and Technology of the House of Representatives a report describing the reasons for the failure to carry out subsection (b)(2), which may include a determination by the Administrator that the methodology adopted or updated in a previous update under subsection (a) remains the most current methodology based on available data, research, and technology.

By Mr. DURBIN:

S. 4484. A bill to amend the Internal Revenue Code of 1986 to establish a carbon fee to reduce greenhouse gas emissions, and for other purposes; to the Committee on Finance.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4484

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''America's Clean Future Fund Act''.

SEC. 2. CLIMATE CHANGE FINANCE CORPORATION.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—There is established in the executive branch an independent agency, to be known as the ''Climate Change Finance Corporation'' (referred to in this section as the ''C2FC''), which shall finance clean energy and climate change resiliency activities in accordance with subsection (c).

(2) MISSION.—

(A) IN GENERAL.—The mission of the C2FC is to combat and reduce the effects of climate change by building resilience among communities facing harmful impacts of climate change and supporting a dramatic reduction in greenhouse gas emissions—

(i) through the deployment of clean and renewable technology, resilient infrastructure, research and development, the commercialization of new technology, clean energy manufacturing, and industrial decarbonization; and

(ii) to meet the goals of—

(I) by 2030, a net reduction of greenhouse gas emissions by 45 percent, based on 2018 levels; and

(II) by 2050, a net reduction of greenhouse gas emissions by 100 percent, based on 2018 levels.

(B) ACTIVITIES.—The C2FC shall carry out the mission described in subparagraph (A) by—

(i) financing investments in clean energy and transportation, resiliency, and infrastructure;

(ii) using Federal investment to encourage the infusion of private capital and investment into the clean energy and resilient infrastructure sectors, while creating new workforce opportunities; and

(iii) providing financing in cases where private capital cannot be leveraged, while minimizing competition with private investment.

(3) EXERCISE OF POWERS.—Except as otherwise provided expressly by law, all Federal laws dealing with public or Federal contracts, property, works, officers, employees,

budgets, or funds, including the provisions of chapters 5 and 7 of title 5, United States Code, shall apply to the exercise of the powers of the C2FC.

(b) BOARD OF DIRECTORS.—

(1) IN GENERAL.—The management of the C2FC shall be vested in a Board of Directors (referred to in this section as the ''Board'') consisting of 7 members, who shall be appointed by the President, by and with the advice and consent of the Senate.

(2) CHAIRPERSON AND VICE CHAIRPERSON.—

(A) IN GENERAL.—A Chairperson and Vice Chairperson of the Board shall be appointed by the President, by and with the advice and consent of the Senate, from among the individuals appointed to the Board under paragraph (1).

(B) TERM.—An individual—

(i) shall serve as Chairperson or Vice Chairperson of the Board for a 3-year term; and

(ii) may be renominated for the position until the term of that individual on the Board under paragraph (3)(C) expires.

(3) BOARD MEMBERS.—

(A) CITIZENSHIP REQUIRED.—Each member of the Board shall be an individual who is a citizen of the United States.

(B) REPRESENTATION.—The members of the Board shall fairly represent agricultural, educational, research, industrial, nongovernmental, labor, and commercial interests throughout the United States.

(C) TERM.—

(i) IN GENERAL.—Except as otherwise provided in this section, each member of the Board—

(I) shall be appointed for a term of 6 years; and

(II) may be reappointed for 1 additional term.

(ii) INITIAL STAGGERED TERMS.—Of the members first appointed to the Board—

(I) 2 shall each be appointed for a term of 2 years;

(II) 3 shall each be appointed for a term of 4 years; and

(III) 2 shall each be appointed for a term of 6 years.

(4) INITIAL MEETING.—Not later than 30 days after the date on which all members of the Board are appointed under paragraph (1), the Board shall hold an initial meeting.

(c) INVESTMENT TOOLS.—

(1) DEFINITIONS.—In this subsection:

(A) ELIGIBLE BORROWER.—The term ''eligible borrower'' means any person, including a business owner or project developer, that seeks a loan to carry out approved practices or projects described in subparagraph (A)(i) of paragraph (2) from an eligible lender that may receive a loan guarantee under that paragraph for that loan, according to criteria determined by the C2FC.

(B) ELIGIBLE ENTITY.—The term ''eligible entity'' means—

(i) a State;

(ii) a unit of local government; and

(iii) a research and development institution (including a National Laboratory).

(C) ELIGIBLE LENDER.—The term ''eligible lender'' means—

(i) a Federal- or State-chartered bank;

(ii) a Federal- or State-chartered credit union;

(iii) an agricultural credit corporation;

(iv) a United States Green Bank Institution; and

(v) any other lender that the Board determines has a demonstrated ability to underwrite and service loans for the intended approved practice for which the loan will be used.

(2) GRANTS, LOAN GUARANTEES, AND OTHER INVESTMENT TOOLS.—

(A) IN GENERAL.—The C2FC—

(i) shall provide grants to eligible entities and loan guarantees to eligible lenders issuing loans to eligible borrowers for approved practices and projects relating to climate change mitigation and resilience measures, including—

(I) energy efficiency upgrades to infrastructure;

(II) electric, hydrogen, and clean transportation programs and deployment, including programs—

(aa) to purchase personal vehicles, commercial vehicles, and public transportation fleets and school bus fleets;

(bb) to deploy electric vehicle charging and hydrogen infrastructure; and

(cc) to develop and deploy low carbon sustainable aviation fuels;

(III) clean energy and vehicle manufacturing research, demonstrations, and deployment;

(IV) battery storage research, demonstrations, and deployment;

(V) development or purchase of equipment for practices described in section 6;

(VI) development and deployment of clean energy and clean technologies, with a focus on—

(aa) carbon capture, utilization, and sequestration, bioenergy with carbon capture and sequestration, direct air capture, and infrastructure associated with those processes, including construction of carrier pipelines for the transportation of anthropogenic carbon dioxide;

(bb) energy storage and grid modernization;

(cc) geothermal energy;

(dd) commercial and residential solar;

(ee) wind energy; and

(ff) any other clean technology use or development, as determined by the Board;

(VII) measures that anticipate and prepare for climate change impacts, and reduce risks and enhance resilience to sea level rise, extreme weather events, and other climate change impacts, including by—

(aa) building resilient energy, water, and transportation infrastructure;

(bb) providing weatherization assistance for low-income households; and

(cc) increasing the resilience of the agriculture sector; and

(VIII) natural infrastructure research, demonstrations, and deployment; and

(ii) may implement other investment tools and products approved by the Board, pursuant to subparagraph (D), to achieve the mission of the C2FC described in subsection (a)(2).

(B) PROJECT PRIORITIZATION.—

(i) DEFINITION OF ENVIRONMENTAL JUSTICE COMMUNITY.—The term ''environmental justice community'' means a community with significant representation of communities of color, low-income communities, or Tribal and indigenous communities that experiences, or is at risk of experiencing, higher or more adverse human health or environmental effects.

(ii) PRIORITIZATION.—In providing financial and other assistance under subparagraph (A), the C2FC shall give priority to, as determined by the C2FC—

(I) deindustrialized communities or communities with significant local economic reliance on carbon-intensive industries;

(II) environmental justice communities, communities with populations of color, communities of color, indigenous communities, and low-income communities that—

(aa) experience a disproportionate burden of the negative human health and environmental impacts of pollution or other environmental hazards; or

(bb) may not have access to public information and opportunities for meaningful public participation relating to human health and environmental planning, regulations, and enforcement;

(III) communities at risk of impacts of natural disasters or sea level rise exacerbated by climate change;

(IV) public or nonprofit entities that serve dislocated workers, veterans, or individuals with a barrier to employment; and

(V) communities that have minimal or no investment in the approved practices and projects described in subparagraph (A)(i).

(C) LOAN GUARANTEES.—

(i) IN GENERAL.—In providing loan guarantees under subparagraph (A), the C2FC shall cooperate with eligible lenders through agreements to participate on a deferred (guaranteed) basis.

(ii) LEVEL OF PARTICIPATION IN GUARANTEED LOANS.—In providing a loan guarantee under subparagraph (A), the C2FC shall guarantee 75 percent of the balance of the financing outstanding at the time of disbursement of the loan.

(iii) INTEREST RATES.—Notwithstanding the provisions of the constitution of any State or the laws of any State limiting the rate or amount of interest that may be charged, taken, received, or reserved, the maximum legal rate of interest on any financing made on a deferred basis under this subsection shall not exceed a rate prescribed by the C2FC.

(iv) GUARANTEE FEES.—

(I) IN GENERAL.—With respect to each loan guaranteed under this subsection (other than a loan that is repayable in 1 year or less), the C2FC shall collect a guarantee fee, which shall be payable by the eligible lender, and may be charged to the eligible borrower in accordance with subclause (II).

(II) BORROWER CHARGES.—A guarantee fee described in subclause (I) charged to an eligible borrower shall not—

(aa) exceed 2 percent of the deferred participation share of a total loan amount that is equal to or less than $150,000;

(bb) exceed 3 percent of the deferred participation share of a total loan amount that is greater than $150,000 but less than $700,000; or

(cc) exceed 3.5 percent of the deferred participation share of a total loan amount that is equal to or greater than $700,000.

(D) OTHER INVESTMENT TOOLS AND PRODUCTS.—

(i) IN GENERAL.—The Board may, based on market needs, develop and implement any other investment tool or product necessary to achieve the mission of the C2FC described in subsection (a)(2) and the deployment of projects described in subparagraph (A)(i), including offering—

(I) warehousing and aggregation credit facilities;

(II) zero interest loans;

(III) credit enhancements; and

(IV) construction finance.

(ii) STATE AND LOCAL GREEN BANKS.—The Board shall provide funds to United States Green Bank Institutions as necessary to finance projects that are best served by those entities.

(3) WAGE RATE REQUIREMENTS.—All laborers and mechanics employed by eligible entities and eligible borrowers on projects funded directly by or assisted in whole or in part by the activities of the C2FC under this section shall be paid at wages at rates not less than those prevailing on projects of a similar character in the locality as determined by the Secretary of Labor in accordance with subchapter IV of chapter 31 of title 40, United States Code (commonly known as the ''Davis-Bacon Act'').

(4) BUY AMERICA REQUIREMENTS.—

(A) IN GENERAL.—All iron, steel, and manufactured goods used for projects under this

section shall be produced in the United States.

(B) WAIVER.—The Board may waive the requirement in subparagraph (A) if the Board finds that—

(i) enforcing the requirement would be inconsistent with the public interest;

(ii) the iron, steel, and manufactured goods produced in the United States are not produced in a sufficient and reasonably available amount or are not of a satisfactory quality; or

(iii) enforcing the requirement will increase the overall cost of the project by more than 25 percent.

(d) PROGRAM REVIEW AND REPORT.—Not later than 2 years after the date of enactment of this Act, and every 2 years thereafter, the Board shall—

(1) conduct a review of the activities of the C2FC; and

(2) submit to Congress a report that—

(A) describes the projects and funding opportunities that have been most successful in progressing towards the mission described in subsection (a)(2) during the time period covered by the report; and

(B) includes recommendations on the clean energy and resiliency projects that should be prioritized in forthcoming years to achieve that mission.

(e) INITIAL CAPITALIZATION.—

(1) IN GENERAL.—There is appropriated to carry out this section, out of any funds in the Treasury not otherwise appropriated, $7,500,000,000 for each of fiscal years 2021 and 2022, to remain available until expended.

(2) ADDITIONAL CAPITALIZATION.—If, pursuant to section 4692(g) of the Internal Revenue Code of 1986 (as added by section 3), the carbon fee has been reduced to zero for calendar year 2022, there is appropriated to carry out this section, out of any funds in the Treasury not otherwise appropriated, $7,500,000,000 for fiscal year 2023, to remain available until expended.

SEC. 3. CARBON FEE.

Chapter 38 of subtitle D of the Internal Revenue Code of 1986 is amended by adding at the end the following new subchapter:

"Subchapter E—Carbon Fee

''Sec. 4691. Definitions.
''Sec. 4692. Carbon fee.
''Sec. 4693. Fee on noncovered fuel emissions.
''Sec. 4694. Refunds for carbon capture, sequestration, and utilization.
''Sec. 4695. Border adjustments.

"SEC. 4691. DEFINITIONS.

''For purposes of this subchapter—

''(1) ADMINISTRATOR.—The term 'Administrator' means the Administrator of the Environmental Protection Agency.

''(2) CARBON DIOXIDE EQUIVALENT OR CO_2-E.—The term 'carbon dioxide equivalent' or 'CO_2-e' means the number of metric tons of carbon dioxide emissions with the same global warming potential over a 100-year period as one metric ton of another greenhouse gas.

''(3) CARBON-INTENSIVE PRODUCT.—The term 'carbon-intensive product' means—

''(A) iron, steel, steel mill products (including pipe and tube), aluminum, cement, glass (including flat, container, and specialty glass and fiberglass), pulp, paper, chemicals, or industrial ceramics, and

''(B) any manufactured product which the Secretary, in consultation with the Administrator, the Secretary of Commerce, and the Secretary of Energy, determines is energy-intensive and trade-exposed (with the exception of any covered fuel).

''(4) COVERED ENTITY.—The term 'covered entity' means—

''(A) in the case of crude oil—

''(i) any operator of a United States refinery (as described in subsection (d)(1) of section 4611), and

''(ii) any person entering such product into the United States for consumption, use, or warehousing (as described in subsection (d)(2) of such section),

''(B) in the case of coal—

''(i) any producer subject to the tax under section 4121, and

''(ii) any importer of coal into the United States,

''(C) in the case of natural gas—

''(i) any entity which produces natural gas (as defined in section 613A(e)(2)) from a well located in the United States, and

''(ii) any importer of natural gas into the United States,

''(D) in the case of any noncovered fuel emissions, the entity which is the source of such emissions, provided that the total amount of carbon dioxide or methane emitted by such entity for the preceding year (as determined using the methodology required under section 4692(e)(4)) was not less than 25,000 metric tons, and

''(E) any entity or class of entities which, as determined by the Secretary, is transporting, selling, or otherwise using a covered fuel in a manner which emits a greenhouse gas into the atmosphere and which has not been covered by the carbon fee, the fee on noncovered fuel emissions, or the carbon border fee adjustment.

''(5) COVERED FUEL.—The term 'covered fuel' means crude oil, natural gas, coal, or any other product derived from crude oil, natural gas, or coal which shall be used so as to emit greenhouse gases to the atmosphere.

''(6) GREENHOUSE GAS.—The term 'greenhouse gas'—

''(A) has the meaning given such term in section 901 of the Energy Independence and Security Act of 2007 (42 U.S.C. 17321), and

''(B) includes any other gases identified by rule of the Administrator.

''(7) GREENHOUSE GAS CONTENT.—The term 'greenhouse gas content' means the amount of greenhouse gases, expressed in metric tons of CO_2-e, which would be emitted to the atmosphere by the use of a covered fuel.

''(8) NONCOVERED FUEL EMISSION.—The term 'noncovered fuel emission' means any carbon dioxide or methane emitted as a result of the production, processing, transport, or use of any product or material within the energy or industrial sectors—

''(A) including any fugitive or process emissions associated with the production, processing, or transport of a covered fuel, and

''(B) excluding any emissions from the combustion or use of a covered fuel.

''(9) QUALIFIED CARBON OXIDE.—The term 'qualified carbon oxide' has the meaning given the term in section 45Q(c).

''(10) UNITED STATES.—The term 'United States' shall be treated as including each possession of the United States (including the Commonwealth of Puerto Rico and the Commonwealth of the Northern Mariana Islands).

"SEC. 4692. CARBON FEE.

''(a) DEFINITIONS.—In this section:

''(1) APPLICABLE PERIOD.—Subject to subsection (g), the term 'applicable period' means, with respect to any determination made by the Secretary under subsection (e)(3) for any calendar year, the period—

''(A) beginning on January 1, 2022, and

''(B) ending on December 31 of the preceding calendar year.

''(2) CUMULATIVE EMISSIONS.—The term 'cumulative emissions' means an amount equal to the sum of any greenhouse gas emissions resulting from the use of covered fuels and any noncovered fuel emissions for all years during the applicable period.

''(3) CUMULATIVE EMISSIONS TARGET.—The term 'cumulative emissions target' means an amount equal to the sum of the emissions targets for all years during the applicable period.

''(4) EMISSIONS TARGET.—The term 'emissions target' means the target for greenhouse gas emissions during a calendar year as determined under subsection (e)(1).

''(b) CARBON FEE.—Subject to subsection (g), during any calendar year that begins after December 31, 2021, there is imposed a carbon fee on any covered entity's use, sale, or transfer of any covered fuel.

''(c) AMOUNT OF THE CARBON FEE.—The carbon fee imposed by this section is an amount equal to—

''(1) the greenhouse gas content of the covered fuel, multiplied by

''(2) the carbon fee rate, as determined under subsection (d).

''(d) CARBON FEE RATE.—The carbon fee rate shall be determined in accordance with the following:

''(1) IN GENERAL.—The carbon fee rate, with respect to any use, sale, or transfer during a calendar year, shall be—

''(A) in the case of calendar year 2022, $25, and

''(B) except as provided in paragraphs (2) and (3), in the case of any calendar year after 2022, the amount equal to the sum of—

''(i) the amount under subparagraph (A), plus

''(ii)(I) in the case of calendar year 2023, $10, and

''(II) in the case of any calendar year after 2023, the amount in effect under this clause for the preceding calendar year, plus $10.

''(2) INFLATION ADJUSTMENT.—

''(A) IN GENERAL.—In the case of any calendar year after 2022, the amount determined under paragraph (1)(B) shall be increased by an amount equal to—

''(i) that dollar amount, multiplied by

''(ii) the cost-of-living adjustment determined under section 1(f)(3) for that calendar year, determined by substituting '2021'for '2016' in subparagraph (A)(ii) thereof.

''(B) ROUNDING.—If any increase determined subparagraph (A) is not a multiple of $1, such increase shall be rounded up to the next whole dollar amount.

''(3) ADJUSTMENT OF CARBON FEE RATE.—

''(A) INCREASE IN RATE FOLLOWING MISSED CUMULATIVE EMISSIONS TARGET.—In the case of any calendar year following a determination by the Secretary pursuant to subsection (e)(3) that the cumulative emissions for the preceding calendar year exceeded the cumulative emissions target for such year, paragraph (1)(B)(ii)(II) shall be applied—

''(i) in the case of calendar years 2025 through 2030, by substituting '$15' for '$10',

''(ii) in the case of calendar years 2031 through 2040, by substituting '$20' for '$10', and

''(iii) in the case of any calendar year beginning after 2040, by substituting '$25' for '$10'.

''(B) CESSATION OF RATE INCREASE FOLLOWING ACHIEVEMENT OF CUMULATIVE EMISSIONS TARGET.—In the case of any year following a determination by the Secretary pursuant to subsection (e)(3) that—

''(i) the average annual emissions of greenhouse gases from covered entities over the preceding 3-year period are not more than 10 percent of the greenhouse gas emissions during the year 2018, and

''(ii) the cumulative emissions did not exceed the cumulative emissions target,

paragraph (1)(B)(ii)(II) shall be applied by substituting '$0' for '$10'.

''(C) METHODOLOGY.—With respect to any year, the annual greenhouse gas emissions and cumulative emissions described in subparagraph (A) or (B) shall be determined using the methodology required under subsection (e)(4).

''(e) EMISSIONS TARGETS.—

''(1) IN GENERAL.—

''(A) REFERENCE YEAR.—For purposes of subsection (d), the emissions target for any year shall be the amount of greenhouse gas emissions that is equal to—

''(i) for calendar years 2022 and 2023, the applicable percentage of the total amount of greenhouse gas emissions from the use of any covered fuel during calendar year 2018, and

''(ii) for calendar year 2024 and each calendar year thereafter, the applicable percentage of the total amount of greenhouse gas emissions from the use of any covered fuel and noncovered fuel emissions during calendar year 2018.

''(B) METHODOLOGY.—For purposes of subparagraph (A), with respect to determining the total amount of greenhouse gas emissions from the use of any covered fuel and noncovered fuel emissions during calendar year 2018, the Administrator shall use such methods as are determined appropriate, provided that such methods are, to the greatest extent practicable, comparable to the methods established under paragraph (4).

''(2) APPLICABLE PERCENTAGE.—

''(A) 2022 THROUGH 2035.—In the case of calendar years 2022 through 2035, the applicable percentage shall be determined as follows:

"Year	Applicable percentage
2022	85 percent
2023	79 percent
2024	74 percent
2025	69 percent
2026	66 percent
2027	62 percent
2028	59 percent
2029	56 percent
2030	53 percent
2031	50 percent
2032	47 percent
2033	44 percent
2034	42 percent
2035	40 percent

''(B) 2036 THROUGH 2050.—In the case of calendar years 2036 through 2050, the applicable percentage shall be equal to—

''(i) the applicable percentage for the preceding year, minus

''(ii) 2 percentage points.

''(C) AFTER 2050.—In the case of any calendar year beginning after 2050, the applicable percentage shall be equal to 10 percent.

''(3) EMISSIONS REPORTING AND DETERMINATIONS.—

''(A) REPORTING.—Not later than September 30, 2023, and annually thereafter, the Administrator, in consultation with the Secretary, shall make available to the public a report on—

''(i) the cumulative emissions with respect to the preceding calendar year, and

''(ii) any other relevant information, as determined appropriate by the Administrator.

''(B) DETERMINATIONS.—Not later than September 30, 2024, and annually thereafter, the Administrator, in consultation with the Secretary and as part of the report described in subparagraph (A), shall determine whether cumulative emissions with respect to the preceding calendar year exceeded the cumulative emissions target with respect to such year.

''(4) EMISSIONS ACCOUNTING METHODOLOGY.—

''(A) IN GENERAL.—Not later than January 1, 2022, the Administrator shall prescribe rules for greenhouse gas accounting for covered entities for purposes of this subchapter, which shall—

''(i) to the greatest extent practicable, employ existing data collection methodologies and greenhouse gas accounting practices,

''(ii) ensure that the method of accounting—

''(I) applies to—

''(aa) all greenhouse gas emissions from covered fuels and all noncovered fuel emissions, and

''(bb) all covered entities,

''(II) excludes—

''(aa) any greenhouse gas emissions which are not described item (aa) of subclause (I), and

''(bb) any entities which are not described in item (bb) of such subclause, and

''(III) appropriately accounts for—

''(aa) qualified carbon oxide which is captured and disposed or used in a manner described in section 4694, and

''(bb) nonemitting uses of covered fuels, as described in subsection (f),

''(iii) subject to such penalties as are determined appropriate by the Administrator, require any covered entity to report, not later than April 1 of each calendar year—

''(I) the total greenhouse gas content of any covered fuels used, sold, or transferred by such covered entity during the preceding calendar year, and

''(II) the total noncovered fuel emissions of the covered entity during the preceding calendar year, and

''(iv) require any information reported pursuant to clause (iii) to be verified by a third-party entity that, subject to such process as is determined appropriate by the Administrator, has been certified by the Administrator with respect to the qualifications, independence, and reliability of such entity.

''(B) GREENHOUSE GAS REPORTING PROGRAM.—For purposes of establishing the rules described in subparagraph (A), the Administrator may elect to modify the activities of the Greenhouse Gas Reporting Program to satisfy the requirements described in clauses (i) through (iv) of such subparagraph.

''(5) REVISIONS.—With respect to any determination made by the Administrator as to the amount of greenhouse gas emissions for any calendar year (including calendar year 2018), any subsequent revision by the Administrator with respect to such amount shall apply for purposes of the fee imposed under subsection (b) for any calendar years beginning after such revision.

''(f) EXEMPTION AND REFUND.—The Secretary shall prescribe such rules as are necessary to ensure the carbon fee imposed by this section is not imposed with respect to any nonemitting use, or any sale or transfer for a nonemitting use, including rules providing for the refund of any carbon fee paid under this section with respect to any such use, sale, or transfer.

''(g) DELAYED APPLICATION OF CARBON FEE FOR 2022.—

''(1) FIRST QUARTER OF 2022.—Not later than November 1, 2021, the Secretary shall determine whether the requirement described in paragraph (3) has been satisfied, and if such requirement has not been satisfied, the carbon fee imposed by this section shall be reduced to zero for the first calendar quarter of 2022.

''(2) REMAINING QUARTERS OF 2022.—If, pursuant to paragraph (1), the carbon fee imposed by this section has been reduced to zero for the first calendar quarter of 2022, the Secretary shall, not later than February 1, 2022, determine whether the requirement described in paragraph (3) has been satisfied, and if such requirement has not been satisfied—

''(A) the carbon fee imposed by this section shall be reduced to zero for the second, third, and fourth calendar quarters of 2022, and

''(B) subsection (a)(1)(A) shall be applied by substituting 'January 1, 2023' for 'January 1, 2022'.

''(3) UNEMPLOYMENT RATE REQUIREMENT.—The requirement described in this paragraph is that the unemployment rate for each census division, as determined by the Secretary, in coordination with the Bureau of Labor Statistics of the Department of Labor, based upon the most recently completed calendar quarter for which such information is available, is less than 5 percent.

''(h) ADMINISTRATIVE AUTHORITY.—The Secretary, in consultation with the Administrator, shall prescribe such regulations, and other guidance, to assess and collect the carbon fee imposed by this section, including—

''(1) the identification of covered entities that are liable for payment of a fee under this section or section 4693,

''(2) as may be necessary or convenient, rules for distinguishing between different types of covered entities,

''(3) as may be necessary or convenient, rules for distinguishing between the greenhouse gas emissions of a covered entity and the greenhouse gas emissions that are attributed to the covered entity but not directly emitted by the covered entity,

''(4) requirements for the quarterly payment of such fees, and

''(5) rules to ensure that the carbon fee under this section, the fee on noncovered fuel emissions under section 4693, or the carbon border fee adjustment is not imposed on an emission from covered fuel or noncovered fuel emission more than once.

"SEC. 4693. FEE ON NONCOVERED FUEL EMISSIONS.

''(a) IN GENERAL.—During any calendar year that begins after December 31, 2023, there is imposed a fee on a covered entity for any noncovered fuel emissions which occur during the calendar year.

''(b) AMOUNT.—The fee to be paid under subsection (a) by the covered entity which is the source of the emissions described in that subsection shall be an amount equal to—

''(1) the total amount, in metric tons of CO_2-e, of emitted greenhouse gases, multiplied by

''(2) an amount equal to the carbon fee rate in effect under section 4692(d) for the calendar year of such emission.

''(c) ADMINISTRATIVE AUTHORITY.—The Secretary, in consultation with the Administrator, shall prescribe such regulations, and other guidance, to assess and collect the carbon fee imposed by this section, including regulations describing the requirements for the quarterly payment of such fees.

"SEC. 4694. REFUNDS FOR CARBON CAPTURE, SEQUESTRATION, AND UTILIZATION.

''(a) IN GENERAL.—

''(1) CAPTURE, SEQUESTRATION, AND USE.—The Secretary, in consultation with the Administrator and the Secretary of Energy, shall prescribe regulations for providing payments to any person which captures qualified carbon oxide which is—

''(A) disposed of by such person in secure geological storage, as described in section 45Q(f)(2), or

''(B) used in a manner which has been approved by the Secretary pursuant to subsection (c).

''(2) ELECTION.—If the person described in paragraph (1) makes an election under this paragraph in such time and manner as the Secretary may prescribe by regulations, the credit under this section—

''(A) shall be allowable to the person that owns the facility described in subsection (b)(1), and

''(B) shall not be allowable to the person described in paragraph (1).

''(b) PAYMENTS FOR CARBON CAPTURE.—

''(1) IN GENERAL.—In the case of any facility for which carbon capture equipment has been placed in service, the Secretary shall make payments in the same manner as if such payment was a refund of an overpayment of the fee imposed by section 4692 or 4693.

''(2) AMOUNT OF PAYMENT.—The payment determined under this subsection shall be an amount equal to—

''(A) the metric tons of qualified carbon oxide captured and disposed of, used, or utilized in a manner consistent with subsection (a), multiplied by

''(B)(i) the carbon fee rate during the year in which the carbon fee was imposed by section 4692 on the covered fuel to which such carbon oxide relates, or

''(ii) in the case of a direct air capture facility (as defined in section 45Q(e)(1)), the carbon fee rate during the year in which the qualified carbon oxide was captured and disposed of, used, or utilized.

''(c) APPROVED USES OF QUALIFIED CARBON OXIDE.—The Secretary, in consultation with Administrator and the Secretary of Energy, shall, through regulation or other public guidance, determine which uses of qualified carbon oxide are eligible for payments under this section, which may include—

''(1) use as a tertiary injectant in a qualified enhanced oil or natural gas recovery project (as defined in subsection (e)(2) of section 45Q) and disposal in secure geological storage,

''(2) utilization in a manner described in clause (i) or (ii) of section 45Q(f)(5)(A), or

''(3) any other use which ensures minimal leakage or escape of such carbon oxide.

''(d) EXCEPTION.—In the case of any facility which is owned by an entity that is determined to be in violation of any applicable air or water quality regulations, such facility shall not be eligible for any payment under this section during the period of such violation.

''SEC. 4695. BORDER ADJUSTMENTS.

''(a) IN GENERAL.—The fees imposed by, and refunds allowed under, this section shall be referred to as 'the carbon border fee adjustment'.

''(b) EXPORTS.—

''(1) CARBON-INTENSIVE PRODUCTS.—In the case of any carbon-intensive product which is exported from the United States, the Secretary shall pay to the person exporting such product a refund equal to the amount of the cost of such product attributable to any fees imposed under this subchapter related to the manufacturing of such product (as determined under regulations established by the Secretary).

''(2) COVERED FUELS.—In the case of any covered fuel which is exported from the United States, the Secretary shall pay to the person exporting such fuel a refund equal to the amount of the cost of such fuel attributable to any fees imposed under this subchapter related to the use, sale, or transfer of such fuel.

''(c) IMPORTS.—

''(1) CARBON-INTENSIVE PRODUCTS.—

''(A) IMPOSITION OF EQUIVALENCY FEE.—In the case of any carbon-intensive product imported into the United States, there is imposed an equivalency fee on the person importing such product in an amount equal to the cost of such product that would be attributable to any fees imposed under this subchapter related to the manufacturing of such product if any inputs or processes used in manufacturing such product were subject to such fees (as determined under regulations established by the Secretary).

''(B) REDUCTION IN FEE.—The amount of the equivalency fee under subparagraph (A) shall be reduced by the amount, if any, of any fees imposed on the carbon-intensive product by the foreign nation or governmental units from which such product was imported.

''(2) COVERED FUELS.—

''(A) IN GENERAL.—In the case of any covered fuel imported into the United States, there is imposed a fee on the person importing such fuel in an amount equal to the amount of any fees that would be imposed under this subchapter related to the use, sale, or transfer of such fuel.

''(B) REDUCTION IN FEE.—The amount of the fee under subparagraph (A) shall be reduced by the amount, if any, of any fees imposed on the covered fuel by the foreign nation or governmental units from which the fuel was imported.

''(d) TREATMENT OF ALTERNATIVE POLICIES AS FEES.—Under regulations established by the Secretary, foreign policies that have substantially the same effect in reducing emissions of greenhouse gases as fees shall be treated as fees for purposes of subsections (b) and (c).

''(e) REGULATORY AUTHORITY.—

''(1) IN GENERAL.—The Secretary shall consult with the Administrator, the Secretary of Commerce, and the Secretary of Energy in establishing rules and regulations implementing the purposes of this section.

''(2) TREATIES.—The Secretary, in consultation with the Secretary of State, may adjust the applicable amounts of the refunds and equivalency fees under this section in a manner that is consistent with any obligations of the United States under an international agreement.''.

SEC. 4. AMERICA'S CLEAN FUTURE FUND.

(a) IN GENERAL.—Subchapter A of chapter 98 of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''SEC. 9512. AMERICA'S CLEAN FUTURE FUND.

''(a) ESTABLISHMENT AND FUNDING.—There is established in the Treasury of the United States a trust fund to be known as the 'America's Clean Future Fund' (referred to in this section as the 'Trust Fund'), consisting of such amounts as are appropriated to the Trust Fund under subsection (b).

''(b) TRANSFERS TO AMERICA'S CLEAN FUTURE FUND.—There is appropriated to the Trust Fund, out of any funds in the Treasury not otherwise appropriated, amounts equal to the fees received into the Treasury under sections 4692, 4693, and 4695, less—

''(1) any amounts refunded or paid under sections 4692(d), 4694, and 4695(b), and

''(2) for each of the first 18 fiscal years beginning after September 30, 2022, an amount equal to the quotient of—

''(A) $100,000,000,000, and

''(B) 18.

''(c) EXPENDITURES.—For each fiscal year, amounts in the Trust Fund shall be apportioned as follows:

''(1) CARBON FEE REBATE AND PAYMENTS FOR CARBON REDUCTION AND SEQUESTRATION.—

''(A) CARBON FEE REBATE.—For the purposes described in section 5 of the America's Clean Future Fund Act and any expenses necessary to administer such section—

''(i) for each of the first 10 fiscal years beginning after September 30, 2022, an amount equal to—

''(I) 75 percent of those amounts, minus

''(II) the amount determined under subparagraph (B) for such fiscal year, and

''(ii) for any fiscal year beginning after the period described in clause (i), the applicable percentage of such amounts.

''(B) PAYMENTS FOR CARBON REDUCTION AND SEQUESTRATION.—For the purposes described in section 6 of the America's Clean Future Fund Act, for each of the first 10 fiscal years beginning after September 30, 2022, an amount equal to 7 percent of the amount determined annually under subparagraph (A)(i)(I).

''(C) APPLICABLE PERCENTAGE.—For purposes of subparagraph (A)(ii), the applicable percentage shall be equal to—

''(i) for the first fiscal year beginning after the period described in subparagraph (A)(i), 76 percent,

''(ii) for each of the first 3 fiscal years subsequent to the period described in clause (i), the applicable percentage for the preceding fiscal year increased by 1 percentage point, and

''(iii) for any fiscal year subsequent to the period described in clause (ii), 80 percent.

''(2) CLIMATE CHANGE FINANCE CORPORATION.—

''(A) IN GENERAL.—For the purposes described in section 2 of the America's Clean Future Fund Act, the applicable percentage of such amounts.

''(B) APPLICABLE PERCENTAGE.—For purposes of this paragraph, the applicable percentage shall be equal to—

''(i) for each of the first 10 fiscal years beginning after the period described in subsection (e) of such section, 15 percent,

''(ii) for each of the first 4 fiscal years subsequent to the period described in clause (i), the applicable percentage for the preceding fiscal year increased by 1 percentage point, and

''(iii) for any fiscal year subsequent to the period described in clause (ii), 20 percent.

''(3) TRANSITION ASSISTANCE FOR IMPACTED COMMUNITIES.—

''(A) IN GENERAL.—For the purposes described in section 7 of the America's Clean Future Fund Act, the applicable percentage of such amounts.

''(B) APPLICABLE PERCENTAGE.—For purposes of this paragraph, the applicable percentage shall be equal to—

''(i) for each of the first 10 fiscal years beginning after September 30, 2022, 10 percent,

''(ii) for each of the first 4 fiscal years subsequent to the period described in clause (i), the applicable percentage for the preceding fiscal year reduced by 2 percentage points, and

''(iii) for any fiscal year subsequent to the period described in clause (ii), 0 percent.

''(d) ADJUSTMENT.—If, pursuant to section 4692(g), the carbon fee has been reduced to zero for calendar year 2022—

''(1) subsection (b)(2) and paragraphs (1)(A)(i), (1)(B), and (3)(B)(i) of subsection (c) shall each be applied by substituting 'September 30, 2023' for 'September 30, 2022', and

''(2) subsection (b)(2)(A) shall be applied by substituting '$150,000,000,000' for '$100,000,000,000'.''.

(b) CLERICAL AMENDMENT.—The table of sections for subchapter A of chapter 98 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 9512. America's Clean Future Fund.''.

SEC. 5. AMERICA'S CLEAN FUTURE FUND STIMULUS.

(a) ELIGIBLE INDIVIDUAL.—

(1) IN GENERAL.—In this section, the term ''eligible individual'' means, with respect to any quarter, any natural living person—

(A) who has a valid Social Security number or taxpayer identification number,

(B) who has attained 18 years of age, and

(C) whose principal place of abode is in the United States for more than one-half of the most recent taxable year for which a return has been filed.

(2) VERIFICATION.—The Secretary of the Treasury, or the Secretary's delegate (referred to in this section as the ''Secretary'') may verify the eligibility of an individual to receive a carbon fee rebate payment under subsection (b).

(b) REBATES.—Subject to subsections (c)(2) and (l), from amounts in the America's Clean Future Fund established by section 9512(c)(1)(A) of the Internal Revenue Code of 1986 that are available in any year, the Secretary shall, for each calendar quarter beginning after September 30, 2022, make carbon fee rebate payments to each eligible individual, to be known as ''America's Clean Future Fund Stimulus payments'' (referred to

in this section as ''carbon fee rebate payments'').

(c) PRO-RATA SHARE.—

(1) IN GENERAL.—With respect to each quarter during any fiscal year beginning after September 30, 2022, the carbon fee rebate payment is 1 pro-rata share for each eligible individual of an amount equal to 25 percent of amounts apportioned under section 9512(c)(1)(A) of the Internal Revenue Code of 1986 for such fiscal year.

(2) INITIAL ANNUAL REBATE PAYMENTS.—

(A) IN GENERAL.—From amounts appropriated under subsection (j), the Secretary shall, for each of fiscal years 2021 and 2022, make carbon fee rebate payments to each eligible individual during the third quarter of each such fiscal year.

(B) PRO-RATA SHARE.—For purposes of this paragraph, the carbon fee rebate payment is 1 pro-rata share for each eligible individual of the amount appropriated under subsection (j) for the fiscal year.

(3) ESTIMATE.—For each fiscal year described in paragraph (1), the Secretary shall, not later than the first day of such fiscal year, publicly announce an estimate of the amount of the carbon fee rebate payment for each quarter during such fiscal year.

(d) PHASEOUT.—

(1) DEFINITIONS.—In this subsection:

(A) MODIFIED ADJUSTED GROSS INCOME.—The term ''modified adjusted gross income'' means adjusted gross income increased by any amount excluded from gross income under section 911, 931, or 933 of the Internal Revenue Code of 1986.

(B) HOUSEHOLD MEMBER.—The term ''household member of the taxpayer'' means the taxpayer, the taxpayer's spouse, and any dependent of the taxpayer.

(C) THRESHOLD AMOUNT.—The term ''threshold amount'' means—

(i) $150,000 in the case of a taxpayer filing a joint return, and

(ii) $75,000 in the case of a taxpayer not filing a joint return.

(2) PHASEOUT OF PAYMENTS.—In the case of any taxpayer whose modified adjusted gross income for the most recent taxable year for which a return has been filed exceeds the threshold amount, the amount of the carbon fee rebate payment otherwise payable to any household member of the taxpayer under this section shall be reduced (but not below zero) by a dollar amount equal to 5 percent of such payment (as determined before application of this paragraph) for each $1,000 (or fraction thereof) by which the modified adjusted gross income of the taxpayer exceeds the threshold amount.

(e) FEE TREATMENT OF PAYMENTS.—Amounts paid under this section shall not be includible in gross income for purposes of Federal income taxes.

(f) FEDERAL PROGRAMS AND FEDERAL ASSISTED PROGRAMS.—The carbon fee rebate payment received by any eligible individual shall not be taken into account as income and shall not be taken into account as resources for purposes of determining the eligibility of such individual or any other individual for benefits or assistance, or the amount or extent of benefits or assistance, under any Federal program or under any State or local program financed in whole or in part with Federal funds.

(g) DISCLOSURE OF RETURN INFORMATION.—Section 6103(l) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(23) DISCLOSURE OF RETURN INFORMATION RELATING TO CARBON FEE REBATE PAYMENTS.—

''(A) DEPARTMENT OF TREASURY.—Return information with respect to any taxpayer shall, without written request, be open to inspection by or disclosure to officers and employees of the Department of the Treasury whose official duties require such inspection or disclosure for purposes of administering section 5 of the America's Clean Future Fund Act.

''(B) RESTRICTION ON DISCLOSURE.—Information disclosed under this paragraph shall be disclosed only for purposes of, and to the extent necessary in, carrying out such section.''.

(h) REGULATIONS.—The Secretary shall prescribe such regulations, and other guidance, as may be necessary to carry out the purposes of this section, including—

(1) establishment of rules for eligible individuals who have not filed a recent tax return, and

(2) in coordination with the Commissioner of Social Security, the Secretary of Veterans Affairs, and any relevant State agencies, establish methods to identify eligible individuals and provide carbon fee rebate payments to such individuals through appropriate means of distribution, including through the use of electronic benefit transfer cards.

(i) PUBLIC AWARENESS CAMPAIGN.—The Secretary shall conduct a public awareness campaign, in coordination with the Commissioner of Social Security and the heads of other relevant Federal agencies, to provide information to the public regarding the availability of carbon fee rebate payments under this section.

(j) INITIAL APPROPRIATION.—For purposes of subsection (c)(2), there is appropriated, out of any funds in the Treasury not otherwise appropriated, to remain available until expended—

(1) for the fiscal year ending September 30, 2021, $37,500,000,000,

(2) for the fiscal year ending September 30, 2022, $37,500,000,000, and

(3) if, pursuant to section 4692(g) of the Internal Revenue Code of 1986 (as added by section 3), the carbon fee has been reduced to zero for calendar year 2022, $37,500,000 for the fiscal year ending September 30, 2023.

(k) ADJUSTMENT.—If, pursuant to section 4692(g) of the Internal Revenue Code of 1986, the carbon fee has been reduced to zero for calendar year 2022—

(1) subsections (b) and (c)(1) shall each be applied by substituting ''September 30, 2023'' for ''September 30, 2022'', and

(2) subsection (c)(2) shall be applied by substituting ''2021, 2022, and 2023'' for ''2021 and 2022''.

(l) TERMINATION.—This section shall not apply to any calendar quarter beginning after—

(1) a determination by the Secretary under section 4692(d)(3)(B) of the Internal Revenue Code of 1986; or

(2) any period of 8 consecutive calendar quarters for which the amount of carbon fee rebate payment (without application of subsection (d)) during each such quarter is less than $20.

SEC. 6. PAYMENTS FOR CARBON REDUCTION AND SEQUESTRATION.

(a) IN GENERAL.—The Secretary of Agriculture (referred to in this section as the ''Secretary''), in consultation with the Administrator of the Environmental Protection Agency, shall provide payments to farmers, ranchers, private forest landowners, and other agricultural landowners in the United States that reduce or sequester greenhouse gas emissions through the adoption of qualifying farming, ranching, and forestry practices described in subsection (b).

(b) QUALIFYING PRACTICES.—

(1) IN GENERAL.—For a farming, ranching, or forestry practice to be eligible for payments under subsection (a), the Secretary shall determine that the practice qualifies as measurable, reportable, and verifiable for reducing or sequestering greenhouse gas emissions.

(2) INCLUDED PRACTICES.—Farming, ranching, and forestry practices that the Secretary may determine to be eligible for payments under paragraph (1) are—

(A) conservation enhancements, which may include—

(i) improved soil, water, and land management;

(ii) cover crops;

(iii) prairie, buffer, and edge-of-field strips;

(iv) conservation tillage;

(v) easements;

(vi) fertilizer practice improvements;

(vii) ecologically-appropriate reforestation and other sustainable forestry and related stewardship practices;

(viii) land or soil carbon sequestration;

(ix) avoidance of the conversion of grassland, wetland, and forest land; and

(x) grassland management, including prescribed grazing;

(B) livestock management, which may include—

(i) enteric fermentation reduction; and

(ii) aerobic digestion or improved manure management;

(C) capital upgrades and infrastructure investments to reduce greenhouse gas emissions, which may include—

(i) building and equipment refurbishment or upgrades;

(ii) adoption of renewable or clean energy and energy efficiency technologies; and

(iii) avoiding or removing agricultural land from urban or suburban development; and

(D) any other practice, as determined by the Secretary, that results in a quantifiable reduction in or sequestration of greenhouse gas emissions.

(c) CONSIDERATIONS.—In determining the amount and duration of a payment under subsection (a), the Secretary shall consider—

(1) the degree of additionality of the greenhouse gas reduction or sequestration as a result of the applicable qualifying practice described in subsection (b), as compared to a historical baseline;

(2) whether the recipient of the payment was an early adopter of 1 or more practices that reduce or sequester greenhouse gas emissions; and

(3) the degree of transitionality or permanence of the greenhouse gas reduction or sequestration as a result of the applicable qualifying practice described in subsection (b).

(d) MEASUREMENT, REPORTING, MONITORING, AND VERIFICATION.—

(1) IN GENERAL.—The Secretary shall approve and provide oversight of 1 or more third-party agents to provide services described in paragraph (2).

(2) SERVICES DESCRIBED.—Services referred to in paragraph (1) are determining the reduction or sequestration of greenhouse gas emissions as a result of qualifying practices described in subsection (b) by—

(A) measurement;

(B) reporting;

(C) monitoring;

(D) verification; and

(E) using methods to account for additionality, as compared to a historical baseline.

(3) USE OF PROTOCOLS.—Services referred to in paragraph (1) shall be provided using generally accepted protocols.

(4) USE OF DEPARTMENT OF AGRICULTURE RESOURCES.—The Secretary shall require a third-party agent approved under paragraph (1) to use the resources, boards, committees, geospatial data, aerial or other maps, employees, offices, and capacities of the Department of Agriculture in providing services under that paragraph.

(5) PRIVACY AND DATA SECURITY.—

(A) IN GENERAL.—The Secretary shall establish—

(i) safeguards to protect the privacy of information that is submitted through or retained by a third-party agent approved under paragraph (1), including employees and contractors of the third-party agent; and

(ii) such other rules and standards of data security as the Secretary determines to be appropriate to carry out this section.

(B) PENALTIES.—The Secretary shall establish penalties for any violations of privacy or confidentiality under subparagraph (A).

(6) DISCLOSURE OF INFORMATION.—

(A) PUBLIC DISCLOSURE.—Information collected for purposes of services provided under paragraph (1) may be disclosed to the public or disclosed for purposes of audit, research, or improvement of the program under this section—

(i) if the information is transformed into a statistical or aggregate form such that the information does not include any identifiable or personal information of individual producers; or

(ii) in a form that may include identifiable or personal information of a producer if that producer consents to the disclosure of the information.

(B) REQUIREMENT.—The participation of a producer in, and the receipt of any benefit by the producer under, the program under this section or any other program administered by the Secretary may not be conditioned on the producer providing consent under subparagraph (A)(ii).

(e) INELIGIBILITY.—A person that is determined to be in violation of any applicable air quality regulation or the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.) (including regulations) shall not be eligible for any payment under subsection (a) during the period of the violation.

(f) REGULATIONS.—Not later than July 1, 2022, the Secretary shall issue regulations to carry out this section, including—

(1) the amount of a payment under subsection (a), which shall be based on—

(A) the quantity of carbon dioxide equivalent emissions reduced or sequestered; and

(B) the considerations described in subsection (c);

(2) a methodology that any third-party agents approved under subsection (d)(1) shall use to provide the services under that subsection;

(3) a limitation on the total amount of payments that may be made under subsection (a) with respect to a producer; and

(4) a requirement for the duration of emissions reduction or sequestration for purposes of eligibility for payments under subsection (a).

(g) EFFECTIVENESS.—

(1) IN GENERAL.—The authority to provide payments under this section shall be effective for each of the first 10 fiscal years beginning after September 30, 2022.

(2) ADJUSTMENT.—If, pursuant to section 4692(g) of the Internal Revenue Code of 1986 (as added by section 3), the carbon fee has been reduced to zero for calendar year 2022, paragraph (1) shall be applied by substituting ''September 30, 2023'' for ''September 30, 2022''.

SEC. 7. TRANSITION ASSISTANCE FOR IMPACTED COMMUNITIES.

(a) IN GENERAL.—The Secretary of Commerce, acting through the Assistant Secretary of Commerce for Economic Development (referred to in this section as the ''Secretary''), in coordination with the Secretary of Labor, shall provide grants to eligible entities for transition assistance to a low-carbon economy.

(b) ELIGIBLE ENTITIES.—An entity eligible to receive a grant under this section is a labor organization, an institution of higher education (as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001)), a unit of State or local government, an economic development organization, a nonprofit organization, community-based organization, or intermediary, or a State board or local board (as those terms are defined in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102)) that serves or is located in a community that—

(1) as determined by the Secretary, in coordination with the Secretary of Labor, has been or will be impacted by economic changes in carbon-intensive industries, including job losses;

(2) as determined by the Secretary, in consultation with the Administrator of the Federal Emergency Management Agency, has been or is at risk of being impacted by extreme weather events, sea level rise, and natural disasters related to climate change; or

(3) as determined by the Secretary, in consultation with the Administrator of the Environmental Protection Agency, has been impacted by harmful residuals from a fossil fuel or carbon-intensive industry.

(c) USE OF FUNDS.—An eligible entity that receives a grant under this section shall use the grant for—

(1) economic and workforce development activities, such as—

(A) job creation;

(B) providing reemployment and worker transition assistance, including registered apprenticeships, subsidized employment, job training, transitional jobs, and supportive services (as defined in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102)), with priority given to—

(i) workers impacted by changes in carbon-intensive industries;

(ii) individuals with a barrier to employment (as defined in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102)); and

(iii) programs that lead to a recognized postsecondary credential (as defined in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102));

(C) local and regional investment, including commercial and industrial economic diversification;

(D) export promotion; and

(E) establishment of a monthly subsidy payment for workers who retire early due to economic changes in carbon-intensive industries;

(2) climate change resiliency, such as—

(A) building electrical, communications, utility, transportation, and other infrastructure in flood-prone areas above flood zone levels;

(B) building flood and stormproofing measures in flood-prone areas and erosion-prone areas;

(C) increasing the resilience of a surface transportation infrastructure asset to withstand extreme weather events and climate change impacts;

(D) improving stormwater infrastructure;

(E) increasing the resilience of agriculture to extreme weather;

(F) ecological restoration;

(G) increasing the resilience of forests to wildfires; and

(H) increasing coastal resilience;

(3) environmental cleanup from fossil fuel industry facilities that are abandoned or retired, or closed due to bankruptcy, and residuals from carbon-intensive industries, such as—

(A) coal ash and petroleum coke cleanup;

(B) mine reclamation; and

(C) remediation of impaired waterways and drinking water resources; or

(4) other activities as the Secretary, in coordination with the Secretary of Labor, the Administrator of the Federal Emergency Management Agency, and the Administrator of the Environmental Protection Agency, determines to be appropriate.

(d) REQUIREMENTS.—

(1) LABOR STANDARDS; NONDISCRIMINATION.—An eligible entity that receives a grant under this section shall use the funds in a manner consistent with sections 181 and 188 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3241, 3248).

(2) WAGE RATE REQUIREMENTS.—All laborers and mechanics employed by eligible entities to carry out projects and activities funded directly by or assisted in whole or in part by a grant under this section shall be paid at wages at rates not less than those prevailing on projects of a similar character in the locality as determined by the Secretary of Labor in accordance with subchapter IV of chapter 31 of title 40, United States Code (commonly known as the ''Davis-Bacon Act'').

(3) BUY AMERICA REQUIREMENTS.—

(A) IN GENERAL.—All iron, steel, and manufactured goods used for projects and activities carried out with a grant under this section shall be produced in the United States.

(B) WAIVER.—The Secretary may waive the requirement in subparagraph (A) if the Secretary finds that—

(i) enforcing the requirement would be inconsistent with the public interest;

(ii) the iron, steel, and manufactured goods produced in the United States are not produced in a sufficient and reasonably available amount or are not of a satisfactory quality; or

(iii) enforcing the requirement will increase the overall cost of the project or activity by more than 25 percent.

(e) COORDINATION.—An eligible entity that receives a grant under this section is encouraged to collaborate or partner with other eligible entities in carrying out activities with that grant.

(f) REPORT.—Not later than 3 years after the date on which the Secretary establishes the grant program under this section, the Secretary and the Secretary of Labor shall submit to Congress a report on the effectiveness of the grant program, including—

(1) the number of individuals that have received reemployment or worker transition assistance under this section;

(2) a description of any job creation activities carried out with a grant under this section and the number of jobs created from those activities;

(3) the percentage of individuals that have received reemployment or worker transition assistance under this section who are, during the second and fourth quarters after exiting the program—

(A) in education or training activities; or

(B) employed;

(4) the average wages of individuals that have received reemployment or worker transition assistance under this section during the second and fourth quarters after exit from the program;

(5) a description of any regional investment activities carried out with a grant under this section;

(6) a description of any export promotion activities carried out with a grant under this section, including—

(A) a description of the products promoted; and

(B) an analysis of any increase in exports as a result of the promotion;

(7) a description of any resilience activities carried out with a grant under this section; and

(8) a description of any cleanup activities from fossil fuel industry facilities or carbon-intensive industries carried out with a grant under this section.

(g) FUNDING.—

(1) INITIAL FUNDING.—

(A) IN GENERAL.—There is appropriated to the Secretary, out of any funds in the Treasury not otherwise appropriated, $5,000,000,000 for each of fiscal years 2021 and 2022 to carry out this section, to remain available until expended.

(B) ADDITIONAL FUNDING.—If, pursuant to section 4692(g) of the Internal Revenue Code of 1986 (as added by section 3), the carbon fee has been reduced to zero for calendar year 2022, there is appropriated to carry out this section, out of any funds in the Treasury not otherwise appropriated, $5,000,000,000 for fiscal year 2023, to remain available until expended.

(2) AMERICA'S CLEAN FUTURE FUND.—The Secretary shall carry out this section using amounts made available from the America's Clean Future Fund under section 4.

SEC. 8. STUDY ON CARBON PRICING.

(a) IN GENERAL.—Not later than January 1, 2024, the Administrator of the Environmental Protection Agency (referred to in this section as the ''Administrator'') shall seek to enter into an agreement with the National Academy of Sciences under which the National Academy of Sciences shall carry out a study not less frequently than once every 5 years to evaluate the effectiveness of the fees established under sections 4692 and 4693 of the Internal Revenue Code of 1986 in achieving the following goals:

(1) A net reduction of greenhouse gas emissions by 45 percent, based on 2018 levels, by 2030.

(2) A net reduction of greenhouse gas emissions by 100 percent, based on 2018 levels, by 2050.

(b) REQUIREMENTS.—In executing the agreement under subsection (a), the Administrator shall ensure that, in carrying out a study under that subsection, the National Academy of Sciences—

(1) includes an evaluation of—

(A) total annual greenhouse gas emissions by the United States, including greenhouse gas emissions not subject to the fees described in that subsection; and

(B) the historic trends in the total greenhouse gas emissions evaluated under subparagraph (A);

(2) analyzes the extent to which greenhouse gas emissions have been or would be reduced as a result of current and potential future policies, including—

(A) a projection of greenhouse gas emissions reductions that would result if the regulations of the Administrator were to be adjusted to impose stricter limits on greenhouse gas emissions than the goals described in that subsection, with a particular focus on greenhouse gas emissions not subject to the fees described in that subsection;

(B) the status of greenhouse gas emissions reductions that result from fees charged under sections 4692 and 4693 of the Internal Revenue Code of 1986;

(C) a projection of greenhouse gas emissions reductions that would result if fees charged under such sections were annually increased—

(i) at the current price path; and

(ii) above the current price path;

(D) an analysis of greenhouse gas emissions reductions that result from the policies of States, units of local government, Tribal communities, and the private sector;

(E) a projection of greenhouse gas emissions reductions that would result from the promulgation of additional Federal climate policies, including a clean energy standard, increased fuel economy and greenhouse gas emissions standards for motor vehicles, a low-carbon fuel standard, electrification of cars and heavy-duty trucks, and reforestation of not less than 3,000,000 acres of land within the National Forest System; and

(F) the status and projections of decarbonization in other major economies; and

(3) submits a report to the Administrator, Congress, and the Board of Directors of the Climate Change Finance Corporation describing the results of the study.

SEC. 9. EFFECTIVE DATE.

The amendments made by this Act shall apply to any calendar year beginning after December 31, 2021.

By Mrs. FEINSTEIN (for herself and Mr. GRASSLEY):

S. 4491. A bill to designate methamphetamine as an emerging threat, and for other purposes; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, psychostimulant overdose deaths, including methamphetamine-related deaths, increased by 27 percent in 1 year. That is a higher rate of increase than any other illicit substance in our country, including fentanyl.

It is time to sound the alarm. We must take immediate action to prevent methamphetamine from becoming the next drug overdose crisis facing our country.

That is why I am introducing the Methamphetamine Response Act with my colleague, Senator GRASSLEY.

This bill does two things.

First, it declares methamphetamine an emerging drug threat.

Second, it requires the Office of National Drug Control Policy, ONDCP, to develop and implement a national plan that is specific to methamphetamine, in accordance the ONDCP Reauthorization, which I was proud to coauthor, and which was enacted in 2018 as part of the SUPPORT Act.

This plan must include an assessment of the methamphetamine threat, including the current availability of, and demand for, the drug, and the effectiveness of evidence-based prevention and treatment programs, as well as law enforcement programs; short- and long-term goals focused on supply and demand reduction and the expansion of prevention and treatment programs; performance measures related to the plan's goals; and the level of funding needed to implement the plan, including an assessment of whether available funding can be reprogrammed or transferred or whether additional funds are needed.

There is no question that methamphetamine is emerging yet again as a major drug threat to our Nation.

Between 2008 and 2017, methamphetamine-related treatment admissions increased from 15 percent to nearly 24 percent. Heroin use among those admitted for methamphetamine treatment increased from 5.3 percent to 23.6 percent, indicating a significant and troubling increase in poly substance use.

Between 2018 and 2019, psychostimulant overdose deaths, including methamphetamine deaths, increased in 27 of the 38 states that provide drug-specific data to the Centers for Disease Control and Prevention. This amounts to a 27-percent increase nationally.

By the end of 2019, methamphetamine availability, use, purity, and potency had increased, as street level prices declined.

Data shows that methamphetamine use is no longer limited to Midwest and Western States but is increasingly prevalent in Northeastern States.

Emergency room admissions for suspected stimulant overdoses, including methamphetamine, increased by 23 percent between January 2019 and 2020. These increases occurred in 36 States and the District of Colombia.

In the first 9 months of fiscal year 2020, methamphetamine seizures increased by 52 percent.

COVID–19 is likely to exacerbate these trends.

In fact, the National Institute on Drug Abuse has warned clinicians to be prepared to monitor adverse effects associated with increased methamphetamine use, including respiratory and pulmonary effects, among COVID–19 patients.

Additionally, the necessary social distancing requirements associated with COVID–19 have made in-person treatment more difficult, increasing the probability that those seeking treatment may not be able to access it.

These facts alone are enough to declare methamphetamine an emerging threat, but public reports indicating that Mexican cartels are stockpiling methamphetamine at the border and are poised to flood the United States with methamphetamine make the situation that much more urgent.

In 1 year methamphetamine killed more than 16,000 Americans. Absent immediate action and a whole-of-government plan, these fatalities will continue to increase.

Please join me in supporting Methamphetamine Response Act to stop methamphetamine from becoming the next wave in a series of preventable crises that have impacted the United States.

By Mr. SCHUMER:

S. 4496. A bill to direct the Secretary of Labor to promulgate an occupational safety and health standard that requires covered employers to protect employees from injury and death related to grease trap manholes; to the Committee on Health, Education, Labor, and Pensions.

Mr. SCHUMER. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4496

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Bryce Raynor Act of 2020''.

SEC. 2. OCCUPATIONAL SAFETY AND HEALTH STANDARD REGARDING GREASE TRAP MANHOLES.

(a) DEFINITIONS.—In this section, the terms ''employee'' and ''employer'' have the meanings given the terms in section 3 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 652).

(b) INTERIM FINAL STANDARD.—

(1) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Secretary of Labor shall promulgate an interim final occupational safety and health standard protecting employees from death and injury related to grease trap manholes that—

(A) shall be included as a new section in subpart D of part 1910 of title 29, Code of Federal Regulations or any successor subpart, with the heading ''Grease Trap Manholes''; and

(B) requires employers to protect all employees from falling in or tripping on grease trap manholes by—

(i) ensuring that the grease trap manholes and surrounding areas are inspected regularly and in accordance with clause (iv) and maintained in a safe condition, consistent with paragraphs (1), (2), and (3) of section 1910.22(d) of such subpart;

(ii) ensuring that, consistent with section 1910.28(b)(3) of such subpart, each employee—

(I) is protected from falling through any grease trap manhole opening that is 4 feet (1.2 meters) or more above a lower level by a cover, guardrail system, travel restraint system, or personal fall arrest system; and

(II) is protected from tripping into or stepping into or through any grease trap manhole opening that is less than 4 feet (1.2 meters) above a lower level by a cover or guardrail system;

(iii) ensuring that each grease trap manhole opening—

(I) has a cover that, consistent with the requirements of section 1910.29(e) of such subpart—

(aa) is capable of supporting, without failure, at least twice the maximum intended load that may be imposed on the cover at any one time;

(bb) is manufactured for commercial use;

(cc) is secured by a bolt or locking mechanism to prevent accidental displacement; and

(dd) is made of round cast iron, or metal of a similar construction rated for heavy road traffic, with sufficient weight to prevent unauthorized access; and

(II) has a secondary protection device consisting of a screen or netting sufficient to prevent a person from falling into the grease trap manhole opening; and

(iv) ensuring that each grease trap manhole and cover for a grease trap manhole opening is inspected twice a year to ensure that the cover is made of metal, locked, and can support twice the maximum intended load.

(2) NOTICE AND COMMENT.—Notwithstanding any other provision of section 6 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655), the Secretary of Labor shall, prior to promulgating the interim final standard under paragraph (1), provide notice of the interim final standard and a 30-day opportunity for public comment.

(3) EFFECTIVE DATE OF INTERIM FINAL STANDARD.—

(A) IN GENERAL.—The interim final standard promulgated under paragraph (1) shall—

(i) take effect on a date specified by the Secretary of Labor that is not later than 30 days after the date of promulgation, except that such interim final standard may include a reasonable phase-in period for the implementation of required engineering controls that take effect after such date;

(ii) have the legal effect of, and be enforced in the same manner as, an occupational safety and health standard promulgated under section 6(b) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655(b)); and

(iii) be in effect until the final standard described in subsection (c)(2) becomes effective and enforceable.

(B) FAILURE TO PROMULGATE.—If an interim final standard described in paragraph (1) is not promulgated by the date that is 2 years after the date of enactment of this Act, the provisions of such paragraph shall be in effect and enforced in the same manner as any standard promulgated under section 6(b) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655(b)) until such provisions are superseded in whole by an interim final standard promulgated by the Secretary that meets the requirements of paragraph (1).

(c) FINAL STANDARD.—

(1) PROPOSED FINAL STANDARD.—Not later than 30 months after the date of enactment of this Act, the Secretary of Labor shall, pursuant to section 6 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655), promulgate a proposed final standard protecting employees from death and injury related to grease trap manholes that shall include, at a minimum, the elements contained in the interim final standard promulgated under subsection (b).

(2) FINAL STANDARD.—Not later than 42 months after the date of enactment of this Act, the Secretary of Labor shall, pursuant to section 6 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655), promulgate a final standard protecting employees from death and injury related to grease trap manholes. Such final standard shall include, at a minimum, the elements contained in the interim final standard promulgated under subsection (b).

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 668—COMMEMORATING THE FEDERAL LAW ENFORCEMENT TRAINING CENTER'S 50TH ANNIVERSARY

Mrs. LOEFFLER (for herself and Mr. PERDUE) submitted the following resolution; which was considered and agreed to:

S. RES. 668

Whereas the Federal Law Enforcement Training Center (''FLETC'') was established on July 1, 1970, in response to a need for standard training across Federal law enforcement agencies;

Whereas the FLETC headquarters in Glynco, Georgia, opened in 1975;

Whereas FLETC became a part of the Department of Homeland Security on March 1, 2003, pursuant to the Homeland Security Act of 2002 (P.L. 107–296);

Whereas, in 2016, Congress passed, and the President signed into law, FLETC's first authorizing legislation, the Federal Law Enforcement Training Centers Reform and Improvement Act of 2015 (P.L. 114–285);

Whereas FLETC provides basic and advanced law enforcement training for 95 Federal law enforcement agencies and to State, local, and Tribal law enforcement agencies nationwide;

Whereas FLETC includes training locations in Glynco, Georgia, Artesia, New Mexico, Charleston, South Carolina, and Cheltenham, Maryland;

Whereas the mission of FLETC is to prepare the Federal law enforcement community to safeguard the people of the United States, our homeland, and our values through strategic partnerships; and

Whereas FLETC trains nearly 70,000 law enforcement personnel annually in 872 training programs and maintains more than 3,400 acres of training ground: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the 50th anniversary of the Federal Law Enforcement Training Center; and

(2) recognizes the staff, students, and leadership of the Federal Law Enforcement Training Center for their commitment to preparing law enforcement to protect the people of the United States.

SENATE RESOLUTION 669—TO EXPRESS THE SENSE OF THE SENATE ON UNITED STATES-ISRAEL COOPERATION ON PRECISION-GUIDED MUNITIONS

Mr. ROUNDS submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 669

Resolved, That it is the sense of the Senate that—

(1) the Department of Defense has cooperated extensively with Israel to assist in the procurement of precision-guided munitions, and such cooperation represents an important example of robust United States support for Israel;

(2) to the extent practicable, the Secretary of Defense should take further measures to expedite deliveries of precision-guided munitions to Israel; and

(3) regularized annual purchases of precision-guided munitions by Israel, in accordance with existing requirements and practices regarding the export of defense articles and defense services, coordinated with the United States Air Force annual purchase of precision-guided munitions, would enhance the security of both the United States and Israel by—

(A) promoting a more efficient use of defense resources by taking advantage of economies of scale;

(B) enabling the United States and Israel to address crisis requirements for precision-guided munitions in a timely and flexible manner; and

(C) encouraging the defense industrial base to maintain routine production lines of precision-guided munitions.

SENATE RESOLUTION 670—RECOGNIZING THE SERIOUSNESS OF POLYCYSTIC OVARY SYNDROME (PCOS) AND EXPRESSING SUPPORT FOR THE DESIGNATION OF SEPTEMBER 2020 AS ''PCOS AWARENESS MONTH''

Ms. WARREN (for herself, Mr. PERDUE, Mr. CARDIN, Mrs. LOEFFLER, Mr. BOOKER, Mrs. FISCHER, Ms. STABENOW, Ms. COLLINS, Ms. BALDWIN, Mr. LANKFORD, Mr. VAN HOLLEN, Mr. BLUMENTHAL, Mrs. FEINSTEIN, Ms. ROSEN, Ms. SINEMA, and Mr. PETERS) submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 670

Whereas polycystic ovary syndrome (in this preamble referred to as ''PCOS'') is a

common health problem among women and girls involving a hormonal imbalance;

Whereas there is no universal definition of PCOS, but researchers estimate that between 5,000,000 and 10,000,000 women in the United States are affected by the condition;

Whereas, according to a 2004 study, the annual burden of PCOS in the United States is an estimated $4,360,000,000, and this figure pertains to only the reproductive years of women and does not consider the cost of other comorbidities, including obstetrical complications, or the cost of metabolic morbidities in post-menopause or adolescence;

Whereas PCOS can affect girls at the onset of puberty and throughout the remainder of their lives;

Whereas the symptoms of PCOS include infertility, irregular or absent menstrual periods, acne, weight gain, thinning of scalp hair, excessive facial and body hair growth, numerous small ovarian cysts, pelvic pain, and mental health problems;

Whereas women with PCOS have higher rates of psychosocial disorders, including depression, anxiety, bipolar disorder, and eating disorders, and are at greater risk for suicide;

Whereas adolescents with PCOS often are not diagnosed, and many have metabolic dysfunction and insulin resistance, which can lead to type 2 diabetes, cardiovascular disease, obstructive sleep apnea, nonalcoholic fatty liver disease, and endometrial cancer at a young adult age;

Whereas PCOS is the most common cause of female infertility;

Whereas PCOS in pregnancy is associated with increased risk of gestational diabetes, preeclampsia, pregnancy-induced hypertension, preterm delivery, cesarean delivery, miscarriage, and fetal and infant death;

Whereas women with PCOS are at increased risk of developing high blood pressure, high cholesterol, stroke, and heart disease (the leading cause of death among women);

Whereas women with PCOS have a more than 50 percent chance of developing type 2 diabetes or prediabetes before the age of 40;

Whereas women with PCOS may be at a higher risk for breast cancer and ovarian cancer, and their risk for developing endometrial cancer is 3 times higher than women who do not have PCOS;

Whereas research has found genetic evidence of a causal link between depression and PCOS;

Whereas research has indicated PCOS shares a genetic architecture with metabolic traits, as evidenced by genetic correlations between PCOS and obesity, fasting insulin, type 2 diabetes, lipid levels, and coronary artery disease;

Whereas adolescents with PCOS are at markedly increased risk for type 2 diabetes, fatty liver disease, and heart disease;

Whereas PCOS negatively alters metabolic function independent of, but exacerbated by, an increased body mass index (BMI);

Whereas an estimated 50 percent of women with PCOS are undiagnosed, and many remain undiagnosed until they experience fertility difficulties or develop type 2 diabetes or other cardiometabolic disorders;

Whereas the cause of PCOS is unknown, but researchers have found strong links to a genetic predisposition and significant insulin resistance, which affects up to 70 percent of women with PCOS; and

Whereas there is no known cure for PCOS: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes polycystic ovary syndrome (in this resolution referred to as ''PCOS'') as a serious disorder that impacts many aspects of health, including cardiometabolic, reproductive, and mental health, and quality of life;

(2) expresses support for the designation of September 2020 as ''PCOS Awareness Month'';

(3) supports the goals and ideals of PCOS Awareness Month, which are—

(A) to increase awareness of, and education about, PCOS and its connection to comorbidities, such as type 2 diabetes, endometrial cancer, cardiovascular disease, nonalcoholic fatty liver disease, and mental health disorders, among the general public, women, girls, and health care professionals;

(B) to improve diagnosis and treatment of PCOS;

(C) to disseminate information on diagnosis, treatment, and management of PCOS, including prevention of comorbidities such as type 2 diabetes, endometrial cancer, cardiovascular disease, nonalcoholic fatty liver disease, and eating disorders; and

(D) to improve quality of life and outcomes for women and girls with PCOS;

(4) recognizes the need for further research, improved treatment and care options, and a cure for PCOS;

(5) acknowledges the struggles affecting all women and girls afflicted with PCOS in the United States;

(6) urges medical researchers and health care professionals to advance their understanding of PCOS to improve research, diagnosis, and treatment of PCOS for women and girls; and

(7) encourages States, territories, and localities to support the goals and ideals of PCOS Awareness Month.

SENATE RESOLUTION 671—RECOGNIZING, COMMEMORATING, AND CELEBRATING THE 55TH ANNIVERSARY OF THE ENACTMENT OF THE VOTING RIGHTS ACT OF 1965, AND REAFFIRMING THE SENATE'S COMMITMENT TO ENSURING THE CONTINUED VITALITY OF THE ACT AND THE PROTECTION OF THE VOTING RIGHTS OF ALL CITIZENS OF THE UNITED STATES

Mr. MARKEY (for himself, Mr. BENNET, Ms. HIRONO, Mr. WYDEN, Mr. CARPER, Mr. JONES, Ms. BALDWIN, Ms. CORTEZ MASTO, Mr. BLUMENTHAL, Ms. STABENOW, Mr. MENENDEZ, Ms. ROSEN, Mrs. FEINSTEIN, Mr. KAINE, Mr. CASEY, Mr. VAN HOLLEN, Ms. SMITH, Mr. WARNER, Mr. MERKLEY, Mr. DURBIN, Ms. KLOBUCHAR, Ms. HARRIS, Mr. BOOKER, Mrs. SHAHEEN, and Mr. BROWN) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 671

Whereas the passage of the Voting Rights Act of 1965 marked a historic point in the ongoing struggle to achieve political equality, end racial discrimination, and enforce the voting rights guarantees enshrined in the 14th and 15th Amendments to the Constitution of the United States;

Whereas March 7, 1965, would become known as ''Bloody Sunday'', after nonviolent civil rights activists—including the late Representative John Lewis—marching across the Edmund Pettus Bridge in Selma, Alabama to the State capital in Montgomery in support of voting rights were attacked and savagely beaten by State troopers and local lawmen;

Whereas, on March 15, 1965, President Lyndon B. Johnson addressed a joint session of Congress concerning the violence in Selma and the denial of voting rights, saying, ''At times, history and fate meet at a single time in a single place to shape a turning point in man's unending search for freedom. So it was at Lexington and Concord. So it was a century ago at Appomattox. So it was last week in Selma, Alabama. . . . There is no cause for pride in what has happened in Selma. There is no cause for self-satisfaction in the long denial of equal rights of millions of Americans. But there is cause for hope and for faith in our democracy in what is happening here tonight. . . . Experience has clearly shown that the existing process of law cannot overcome systematic and ingenious discrimination. No law that we now have on the books—and I have helped to put 3 of them there—can ensure the right to vote when local officials are determined to deny it. . . . Wednesday, I will send to Congress a law designed to eliminate illegal barriers to the right to vote. . . . This bill will strike down restrictions to voting in all elections—Federal, State, and local—which have been used to deny [Blacks] the right to vote.'';

Whereas a bipartisan Congress approved the Voting Rights Act of 1965, and on August 6, 1965, President Lyndon B. Johnson signed this landmark legislation into law;

Whereas the Voting Rights Act of 1965 effectuates the permanent guarantee of the 15th Amendment that ''the right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude'';

Whereas, according to the Congressional Research Service, the Voting Rights Act had ''an immediate and dramatic impact'', and within 4 years of its passage, nearly 1,000,000 Black voters were registered, including over 50 percent of the Black voting age population in every southern State;

Whereas, after the 1966 elections, the number of Black elected officials in the South more than doubled, from 72 to 159;

Whereas the Voting Rights Act of 1965 stands as a landmark legislative achievement and pays tribute to the heroism of all those who fought to fulfill the promises guaranteed to them by the 14th and 15th Amendments, especially those whose blood was spilled and whose lives were lost;

Whereas the Voting Rights Act of 1965 has been extended and amended 5 times;

Whereas, despite progress from 55 years of enforcement of the Voting Rights Act of 1965, voting rights are still under attack in the United States;

Whereas, in its decision in Shelby County v. Holder, 570 U.S. 529 (2013), the Supreme Court of the United States struck down section 4 of the Voting Rights Act of 1965, which required covered States and jurisdictions with a history of discriminatory voting practices to submit voting changes for ''preclearance'' before they could take effect;

Whereas, since the decision in *Shelby County*, many States have passed discriminatory voting laws that have made it more difficult for people of color and low income individuals to vote;

Whereas it is vital to democracy in the United States that the provisions of the Voting Rights Act of 1965 are fully effective to prevent discrimination and dilution of the equal rights of minority voters; and

Whereas the Voting Rights Act of 1965 has been widely hailed as the single most important civil rights law passed in the history of the United States: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes, commemorates, and celebrates the 55th anniversary of the enactment of the Voting Rights Act of 1965;

(2) reaffirms its commitment to advancing the legacy of the Voting Rights Act of 1965 to

ensure the continued effectiveness of the Act in protecting the voting rights of all citizens of the United States;

(3) commits itself to fully restoring section 4 of the Voting Rights Act of 1965 and modernizing and strengthening the Voting Rights Act of 1965 through further legislative efforts; and

(4) encourages the people of the United States to celebrate the 55th anniversary of the Voting Rights Act of 1965.

SENATE RESOLUTION 672—DESIGNATING SEPTEMBER 2020 AS NATIONAL DEMOCRACY MONTH AS A TIME TO REFLECT ON THE CONTRIBUTIONS OF THE SYSTEM OF GOVERNMENT OF THE UNITED STATES TO A MORE FREE AND STABLE WORLD

Mr. GRAHAM (for himself and Mrs. FEINSTEIN) submitted the following resolution; which was referred to the Committee on the Judiciary.

S. RES. 672

Whereas, 2,000 years after the ancient Greeks laid the groundwork for democracy, the founders of the United States built an even greater system of government, a democratic republic, propelling the United States to become the most advanced nation in human history;

Whereas the model of government of the United States has been reproduced around the world;

Whereas, according to Freedom House, more than 1 in 3 people in the world do not live in states considered free;

Whereas the Constitution of the United States and the Bill of Rights, with the addition of the Reconstruction Era amendments, including the 14th and 15th Amendments, and the 19th Amendment, enshrine the rights and civil liberties of citizens of the United States, including the right to vote in free and fair elections;

Whereas the perpetuation of the ideals of democracy does not happen on its own and can be stalled or reversed;

Whereas surveys show that citizens of the United States are losing faith in the democratic system;

Whereas former Supreme Court Justice Sandra Day O'Connor said, ''The practice of democracy is not passed down through the gene pool. It must be taught and learned anew by each generation of citizens.'';

Whereas President John F. Kennedy said, ''Democracy is never a final achievement. It is a call to untiring effort, to continual sacrifice and to the willingness, if necessary, to die in its defense.'';

Whereas President Ronald Reagan said, ''Democracy is worth dying for, because it's the most deeply honorable form of government ever devised by man.'';

Whereas World War II demonstrated the fragility of democracy and the civilized life that accompanies democracy;

Whereas British Prime Minister Winston Churchill observed that, ''Indeed it has been said that democracy is the worst form of Government except for all those other forms that have been tried from time to time . . . .'';

Whereas President George Washington said the United States must recognize the immense value of the national Union and work towards preservation of that Union with ''jealous anxiety'' and wrote that the security of a free Constitution may be accomplished by ''teaching the people themselves to know and to value their own rights'';

Whereas President Thomas Jefferson wrote, ''Educate and inform the whole mass of the people . . . . They are the only sure reliance for the preservation of our liberty.''; and

Whereas the Government of the United States must teach and educate the people by taking appropriate actions to highlight and emphasize the importance of democratic principles and the essential role of democratic principles in the freedoms and way of life enjoyed by the people of the United States: Now, therefore, be it

Resolved, That the Senate—

(1) designates September 2020 as ''National Democracy Month'';

(2) encourages States and local governments to designate September 2020 as ''National Democracy Month'';

(3) recognizes the celebration of ''National Democracy Month'' as a time to reflect on the contributions of the system of government of the United States to a more free and stable world; and

(4) encourages the people of the United States to observe ''National Democracy Month'' with appropriate ceremonies and activities that—

(A) provide appreciation for the system of government of the United States; and

(B) demonstrate that the people of the United States shall never forget the sacrifices made by past generations of people of the United States to preserve the freedoms and principles of the United States.

SENATE RESOLUTION 673—AFFIRMING THAT THE NEW START TREATY EXTENSION WILL COVER NEW DEPLOYED RUSSIAN NUCLEAR DELIVERY SYSTEMS, AND SUPPORTING ADDITIONAL INITIATIVES TO ENGAGE CHINA THAT ADVANCE THE GOAL OF CONCLUDING AN ARMS CONTROL TREATY OR AGREEMENT

Mr. MARKEY (for himself, Mr. VAN HOLLEN, Mrs. FEINSTEIN, Mr. MERKLEY, Mr. DURBIN, Mrs. GILLIBRAND, Ms. WARREN, Mr. CARDIN, Mr. COONS, Ms. BALDWIN, Mr. WYDEN, Ms. HIRONO, Mr. MURPHY, Mr. LEAHY, Ms. CANTWELL, Mr. SANDERS, and Ms. SMITH) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 673

Whereas, on March 1, 2018, President Vladimir Putin of the Russian Federation previewed five new Russian nuclear delivery systems in his State of the Nation address;

Whereas two of the new systems, the Sarmat intercontinental ballistic missile (ICBM) and the Avangard hypersonic glide vehicle, will count under the limits of the Treaty between the United States of America and the Russian Federation on Measures for the Further Reduction and Limitation of Strategic Offensive Arms (commonly referred to as the ''New START Treaty''), as confirmed by Sergey Lavrov, Foreign Minister of the Russian Federation;

Whereas an additional pair of new systems, the Poseidon nuclear-powered torpedo and the Burevestnik nuclear-powered cruise missile, are not projected to be deployed during the five-year extension of the New START Treaty to 2026, and even if they were deployed, the United States is able to address its concerns about those weapons through the Bilateral Consultative Committee;

Whereas the Russian Federation's fifth new system, the Kinzhal short-range air-launched ballistic missile, is being deployed as a theater-strike weapon on MiG-31 aircraft, rather than on a heavy bomber, in which case it would be automatically accountable under the New START Treaty;

Whereas the advance timing of the Russian Federation's nuclear modernization cycle may allow it to significantly expand its strategic nuclear arsenal relative to the United States in the event that the New START Treaty expires on February 5, 2021;

Whereas the 2020 Annual Report on the Implementation of the new START Treaty concluded that the Russian Federation was ''in compliance with the terms of the New START Treaty'';

Whereas the People's Republic of China has never entered into a treaty or agreement with the United States or any other party that places binding limits on its shorter-range, intermediate-, or strategic-range ballistic missiles, verified by National Technical Means and by on-site inspections, as the United States and Russian Federation did through the Intermediate-Range Nuclear Forces (INF) Treaty, the START I and START II Treaties, and the New START Treaty, each of which took multiple years to successfully negotiate;

Whereas the People's Republic of China possesses significantly fewer ICBMs, submarine launched ballistic missiles (SLBMs), and heavy bombers than the Russian Federation or the United States, and according to the Defense Intelligence Agency (DIA), China's warhead stockpile is in the ''the low couple of hundreds'', a fraction of the size of the arsenals of the Russian Federation and the United States; and

Whereas the People's Republic of China has repeatedly declined invitations by the United States to enter into trilateral negotiations on an arms control treaty or other agreement regarding its nuclear arsenal: Now, therefore, be it

Resolved, That the Senate—

(1) calls on the President to immediately extend the New START Treaty until 2026;

(2) affirms that, by extending the New START Treaty until 2026, the President of the United States can secure limitations on two new types of Russian Federation strategic weapons beyond those accountable when the Treaty entered into force in 2011 or at any time thereafter;

(3) calls on the Russian Federation to cease the development of hazardous and provocative new weapons systems including the Burevestnik cruise missile, which is powered by a nuclear reactor and may violate the prohibition in numerous treaties and military manuals against causing superfluous injury and unnecessary suffering;

(4) affirms the December 1987 statement by President Ronald Reagan and General Secretary Mikhail S. Gorbachev of the Soviet Union that ''a nuclear war cannot be won and must never be fought'';

(5) calls on the President to consider the views of the North Atlantic Treaty Organization and other United States allies and partners who overwhelmingly back extension of the New START Treaty; and

(6) supports, following the extension of the New START Treaty, a United States initiative to engage China in negotiations towards the eventual conclusion of an arms control treaty or agreement, starting with steps to reduce the risk of strategic miscalculation and the threat of a nuclear exchange, which may include—

(A) a formal invitation to appropriate officials from the People's Republic of China, and to each of the permanent members of the United Nations Security Council, to observe a United States-Russian Federation New START Treaty on-site inspection in 2020 to demonstrate the security benefits of transparency into strategic nuclear forces;

(B) an agreement with the People's Republic of China that allows for advance notifications of ballistic missile launches, through the Hague Code of Conduct or other data exchanges or doctrine discussions related to strategic nuclear forces;

(C) an agreement not to target or interfere in nuclear command, control, and communications (commonly referred to as ''NC3'') infrastructure; or

(D) any other cooperative measure that benefits United States-China strategic stability.

SENATE RESOLUTION 674—COMMEMORATING JUNE 20, 2020, AS WORLD REFUGEE DAY

Mr. MENENDEZ (for himself and Mr. LEAHY) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 674

Whereas World Refugee Day is a global event to acknowledge the courage, strength, and determination of women, men, and children who are forced to flee their homes due to persecution;

Whereas, according to the United Nations High Commissioner for Refugees (referred to in this preamble as ''UNHCR'') and section 101(a)(42) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(42)), as added by section 201 of the Refugee Act of 1980 (Public Law 96–212), a refugee is a person who—

(1) is outside of the country of his or her nationality or habitual residence; and

(2) is unable or unwilling to return because of a well-founded fear of persecution for reasons of race, religion, nationality, political opinion, or membership in a particular social group;

Whereas, according to the UNHCR, at the end of 2019—

(1) there were at least 79,500,000 forcibly displaced people worldwide, which is the worst displacement crisis in recorded history, including—

(A) 29,600,000 refugees;

(B) more than 45,700,000 internally displaced people; and

(C) 4,200,000 asylum seekers;

(2) 1 person out of every 97 people worldwide was a refugee, an asylum seeker, or an internally displaced person;

(3) the number of refugees under UNHCR's mandate had doubled since 2010;

(4) 68 percent of the world's refugees came from only 5 countries (Syria, Venezuela, Afghanistan, South Sudan, and Burma);

(5) 73 percent of all refugees were residing in countries adjacent to the countries from which they had fled;

(6) approximately 31,000,000 of the people who had been forcibly displaced and 50 percent of all refugees were children younger than 18 years of age, millions of whom were unable to access basic services, including education;

(7) approximately 11,000,000 people were newly displaced due to recent conflict or persecution, including 8,600,000 internally displaced persons and 2,400,000 refugees and asylum seekers, representing an average of at least 30,000 such people per day;

(8) more than 50 percent of the population of Syria (at least 13,000,000 people) were displaced, either across the international border or within Syria, which represents the largest displacement crisis in the world today;

(9) more than 1,400,000 refugees needed resettlement to a third country (an 80 percent increase since 2011), while only 107,800 refugees were resettled to a total of 26 countries; and

(10) only 317,200 refugees voluntarily returned to their country or place of origin, which represents fewer than 2 percent of the 20,400,000 refugees under UNHCR's mandate;

Whereas millions of refugees around the world are stateless (not recognized as nationals by any state) and therefore require a path to citizenship as part of any solution to their displacement;

Whereas refugee children are 5 times more likely to be out of school than non-refugee children;

Whereas refugees who are women and girls are often at greater risk of violence, human trafficking, exploitation, and gender-based violence;

Whereas more than 50 percent of refugees reside in urban areas;

Whereas 85 percent of refugees and asylum seekers reside in developing countries, which places enormous additional pressure on the already limited resources of those countries;

Whereas the average length of time refugees remain displaced from their home country ranges between 10 and 26 years;

Whereas while refugee resettlement is a critical solution for refugees, fewer than 10 percent of global resettlement needs have been met and global refugee resettlement opportunities have fallen by 50 percent since 2016;

Whereas the United States resettlement program, which was established 40 years ago—

(1) is a lifesaving solution crucial to global humanitarian efforts;

(2) strengthens global security;

(3) advances United States foreign policy goals;

(4) supports regional host countries; and

(5) assists individuals and families in need;

Whereas the United States annual refugee admissions ceiling fell from 85,000 in fiscal year 2016 to 18,000 in fiscal year 2020, which represents the lowest level in the history of the program;

Whereas, as of June 19, 2020 (9 months into fiscal year 2020), the United States had welcomed only 7,684 refugees into the country, which is fewer than 50 percent of the President's 18,000 refugee admissions ceiling;

Whereas, at this pace, the United States will not meet its fiscal year 2020 refugee admissions goal;

Whereas, for fiscal year 2020, the United States, irrespective of global resettlement needs, designated new thematic and regional allocations for United States refugee admissions that prioritize—

(1) refugees fleeing persecution on account of religious persecution;

(2) Iraqis; and

(3) refugees from Central America;

Whereas refugees are the most vetted travelers to enter the United States and are subject to extensive screening checks that may last between 18 months and 3 years, including in-person interviews, biometric data checks, and multiple interagency reviews;

Whereas refugees—

(1) are major contributors to local economies;

(2) pay an average of $21,000 more in taxes than they receive in benefits; and

(3) revitalize cities and towns by—

(A) offsetting population decline; and

(B) boosting economic growth by opening businesses, paying taxes, and buying homes;

Whereas certain industries and towns rely heavily on refugee workers to support their economic stability, and low rates of arrivals of refugees have had serious impacts on economic growth; and

Whereas, during the COVID–19 pandemic—

(1) refugees, internally displaced persons, and asylum seekers, many of whom live in dangerously overcrowded settings and have inadequate access to basic services like healthcare, water, and sanitation, are especially vulnerable to the spread of the novel coronavirus;

(2) well-intentioned government polices to mitigate the spread of the novel coronavirus may exacerbate inequalities and disproportionately impact those already suffering from conflict and persecution;

(3) UNHCR and the International Organization for Migration suspended their international refugee resettlement operations for 3 months, which negatively affected at least 10,000 refugees who were already approved for travel to their respective countries of resettlement;

(4) numerous countries have restricted access to asylum, including the United States, which summarily returned more than 40,000 asylum seekers gathered at the southern United States border back to Mexico and only permitted 2 individuals to remain in the United States to request humanitarian protection between March 21 and May 13, 2020; and

(5) many refugees are serving as critical frontline health professionals and essential workers combating the COVID–19 pandemic in the United States and other host countries: Now, therefore, be it

Resolved, That the Senate—

(1) reaffirms the bipartisan commitment of the United States to promote the safety, health, and well-being of millions of refugees, including the education of refugee children and displaced persons who flee war, persecution, or torture in search of peace, hope, and freedom;

(2) recognizes those individuals who have risked their lives working, either individually or for nongovernmental organizations and international agencies, such as UNHCR, to provide lifesaving assistance and protection for people displaced by conflicts around the world;

(3) underscores the importance of the United States refugee resettlement program as a critical tool for the United States Government—

(A) to leverage foreign policy;

(B) to strengthen national and regional security; and

(C) to demonstrate international support of refugees;

(4) calls upon the United States Government—

(A) to continue providing robust funding for refugee protection overseas and resettlement in the United States;

(B) to uphold its international leadership role in responding to displacement crises with humanitarian assistance and protection of the most vulnerable populations;

(C) to work in partnership with the international community to find solutions to existing conflicts and prevent new conflicts from beginning;

(D) to ensure that—

(i) the United States refugee resettlement program is equipped to protect and support refugees; and

(ii) the United States provides essential leadership to the international refugee assistance community and to local communities across the United States seeking to welcome refugees and to help them achieve the American dream;

(E) to alleviate the burden placed on frontline refugee host countries, such as the Hashemite Kingdom of Jordan, the People's Republic of Bangladesh, the Republic of Uganda, the Republic of Colombia, and the Federal Democratic Republic of Ethiopia, which receive the majority of the world's refugees, and provide these countries with humanitarian and development support;

(F) to endorse the Global Compact for Refugees, affirmed by the United Nations General Assembly on December 17, 2018, and join

the Global Compact for Safe, Orderly, and Regular Migration, done in Morocco July 11, 2018;

(G) to terminate harmful policies that undermine refugee law and humanitarian principles, including—

(i) the closure of the United States border to asylum seekers;

(ii) the Migrant Protection Protocols, implemented beginning on January 29, 2019; and

(iii) the Asylum Cooperative Agreements signed with Guatemala, Honduras, and El Salvador in 2019;

(H) to adopt a robust and inclusive interpretation of United States refugee law that takes into account the changed nature of conflict and persecution and increase complementary legal pathways for protection and entry into the United States;

(I) to meet the challenges of the worst refugee crisis in recorded history by—

(i) restoring United States leadership on refugee resettlement; and

(ii) increasing the number of refugees welcomed to and resettled in the United States to—

(I) not fewer than 18,000 refugees during fiscal year 2020; and

(II) not fewer than 95,000 refugees during fiscal year 2021; and

(J) to restore the United States' longstanding tradition of resettling the most vulnerable refugees and to avoid discrimination, including discrimination based on a refugee's nationality or religious beliefs; and

(5) reaffirms the goals of World Refugee Day and reiterates the strong commitment to protect the millions of refugees who live without material, social, or legal protections.

SENATE RESOLUTION 675—CONGRATULATING THE MEN AND WOMEN OF THE COMMERCIAL CREW PROGRAM OF THE NATIONAL AERONAUTICS AND SPACE ADMINISTRATION AND SPACE EXPLORATION TECHNOLOGIES CORPORATION AND ASTRONAUTS ROBERT L. BEHNKEN AND DOUGLAS G. HURLEY ON THE SUCCESSFUL COMPLETION OF THE CREW DRAGON DEMO-2 TEST FLIGHT

Mr. CRUZ (for himself, Mr. CORNYN, and Mr. RUBIO) submitted the following resolution; which was referred to the Committee on Commerce, Science, and Transportation:

S. RES. 675

Whereas, on July 8, 2011, the space shuttle Atlantis launched from the Kennedy Space Center on the 135th and final flight (referred to in this preamble as ''STS–135'') of the Space Transportation System of the National Aeronautics and Space Administration (referred to in this preamble as ''NASA'');

Whereas, following the retirement of the space shuttle Atlantis, which was the last space shuttle in the fleet of the Space Transportation System, and the formal end of the Space Shuttle Program on August 31, 2011, the United States lacked the domestic capability to launch astronauts to the International Space Station (referred to in this preamble as the ''ISS'') from United States soil;

Whereas, following the end of the Space Shuttle Program in 2011, the only method for transporting astronauts of the United States to the ISS was to purchase seats on the Soyuz spacecraft of Russia at a cost of approximately $86,000,000 per seat;

Whereas, in 2011, NASA began investing money in what would become the Commercial Crew Program to stimulate efforts within the private sector to aid in the development and demonstration of safe, reliable, and cost-effective crew transportation capabilities to replace the Space Transportation System;

Whereas, in August 2012, NASA awarded funding to 3 participants under the Commercial Crew Program, the Boeing Company, Sierra Nevada Corporation, and Space Exploration Technologies Corporation (referred to in this preamble as ''SpaceX''), for the commercial development of fully integrated crew transportation capabilities;

Whereas, in September 2014, NASA completed the down selection process and awarded contracts under the Commercial Crew Program to 2 participants, the Boeing Company and SpaceX, for commercially built and operated integrated crew transportation systems;

Whereas, on January 19, 2020, NASA and SpaceX completed the launch escape demonstration of the Crew Dragon spacecraft and the Falcon 9 rocket, which was the final major flight test of the Crew Dragon spacecraft before a demonstration flight to the ISS with astronauts from the United States;

Whereas, on May 30, 2020, Robert L. Behnken and Douglas G. Hurley became the first astronauts from the United States to launch to the ISS on a rocket of the United States from United States soil since STS–135 on July 8, 2011;

Whereas Douglas G. Hurley had also served on the crew of STS–135 as the pilot;

Whereas, on May 31, 2020, Robert L. Behnken and Douglas G. Hurley arrived safely at the ISS, docking the Crew Dragon spacecraft to the Harmony module of the ISS and joining Expedition 63 as crew members;

Whereas, on August 1, 2020, Robert L. Behnken and Douglas G. Hurley departed the ISS after spending 2 months as crew members of Expedition 63;

Whereas, on August 2, 2020, the Crew Dragon spacecraft safely splashed down off the coast of Florida;

Whereas the successful completion of the Crew Dragon Demo–2 test flight marks a new chapter in human space exploration by transporting astronauts on a commercially built and operated spacecraft of the United States for the first time; and

Whereas the continued leadership of the United States in space and space exploration is vital for—

(1) both the national security and economic prosperity of the United States and the friends and allies of the United States; and

(2) the continued development and exploration of space for the benefit of humankind: Now, therefore, be it

Resolved, That the Senate—

(1) congratulates the men and women of the Commercial Crew Program of the National Aeronautics and Space Administration (referred to in this resolution as ''NASA'') and Space Exploration Technologies Corporation (referred to in this resolution as ''SpaceX'') and astronauts Robert L. Behnken and Douglas G. Hurley on the successful completion of the Crew Dragon Demo–2 test flight;

(2) honors the men and women of SpaceX and the Commercial Crew Program of NASA, who worked tirelessly to design, build, and operate the Crew Dragon spacecraft;

(3) recognizes the contributions of all of the administrators, astronauts, engineers, scientists, and support staff—

(A) who helped reach the milestone of the successful completion of the Crew Dragon Demo–2 test flight; and

(B) whose dedication and continued efforts will ensure the continued leadership of the United States in space;

(4) recognizes that NASA, through its programs of human space exploration, including Mercury, Gemini, Apollo, the Space Shuttle Program, the International Space Station, and the Commercial Crew Program, has inspired and continues to inspire generations of children to become engineers, scientists, and explorers, which has led the United States to maintain its precedent of leadership in human space exploration; and

(5) reaffirms the commitment of the Senate to human space exploration for the benefit of humankind.

SENATE RESOLUTION 676—TO AUTHORIZE THE PRODUCTION OF RECORDS BY THE PERMANENT SUBCOMMITTEE ON INVESTIGATIONS OF THE COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. MCCONNELL (for himself and Mr. SCHUMER) submitted the following resolution; which was considered and agreed to.

S. RES. 676

Whereas, the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs conduced an investigation into the art industry and United States policies that undermine sanctions;

Whereas, the Subcommittee has received a request from the U.S. Department of Homeland Security for access to records of the Subcommittee's investigation;

Whereas, by the privileges of the Senate of the United States and Rule XI of the Standing Rules of the Senate, no evidence under the control or in the possession of the Senate can, by administrative or judicial process, be taken from such control or possession but by permission of the Senate;

Whereas, when it appears that evidence under the control or in the possession of the Senate is needed for the promotion of justice, the Senate will take such action as will promote the ends of justice consistent with th privileges of the Senate: Now, therefore, be it

Resolved, That the Chairman and Ranking Minority Member of the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs, acting jointly, are authorized to provide to the U.S. Department of Homeland Security and other regulatory agencies, law enforcement officials, and entities or individuals duly authorized by Federal or State government, records of the Subcommittee's investigation into the art industry and the United States policies that undermine sanctions.

Mr. MCCONNELL. Mr. President, the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs recently conducted an investigation into the use of the art industry to evade financial sanctions imposed by the United States on foreign adversaries. The subcommittee has now received a request from the U.S. Department of Homeland Security seeking access to records that the subcommittee obtained during the investigation.

In keeping with the Senate's practice under its rules, this resolution would authorize the chairman and ranking

minority member of the Permanent Subcommittee on Investigations, acting jointly, to provide records, obtained by the subcommittee in the course of its investigation, in response to this request and requests from other Federal or State government entities and officials with a legitimate need for the records.

SENATE RESOLUTION 677—DESIGNATING AUGUST 16, 2020, AS ''NATIONAL AIRBORNE DAY''

Ms. MURKOWSKI (for herself, Mr. SULLIVAN, Mr. TILLIS, Mr. PERDUE, Mr. COTTON, Mr. ROUNDS, Mr. JONES, Mr. VAN HOLLEN, Mrs. SHAHEEN, Ms. ROSEN, Mrs. MURRAY, Mr. MENENDEZ, Mr. MANCHIN, Mr. CASEY, Mr. KING, Ms. HIRONO, Ms. DUCKWORTH, Mrs. LOEFFLER, and Mr. MCCONNELL) submitted the following resolution; which was considered and agreed to:

S. RES. 677

Whereas the members of the airborne forces of the Armed Forces of the United States have a long and honorable history as bold and fierce warriors who, for the national security of the United States and the defense of freedom and peace, project the ground combat power of the United States by air transport to the far reaches of the battle area and to the far corners of the world;

Whereas, on June 25, 1940, experiments with airborne operations by the United States began when the Army Parachute Test Platoon was first authorized by the Department of War;

Whereas, in July 1940, 48 volunteers began training for the Army Parachute Test Platoon;

Whereas the first official Army parachute jump took place on August 16, 1940, to test the innovative concept of inserting United States ground combat forces behind a battle line by means of a parachute;

Whereas the success of the Army Parachute Test Platoon before the entry of the United States into World War II validated the airborne operational concept and led to the creation of a formidable force of airborne formations that included the 11th\\, 13th\\, 17th\\, 82nd\\, and 101st\\ Airborne Divisions;

Whereas, included in those divisions, and among other separate formations, were many airborne combat, combat support, and combat service support units that served with distinction and achieved repeated success in armed hostilities during World War II;

Whereas the achievements of the airborne units during World War II prompted the evolution of those units into a diversified force of parachute and air-assault units that, over the years, have fought in Korea, the Dominican Republic, Vietnam, Grenada, Panama, the Persian Gulf region, and Somalia, and have engaged in peacekeeping operations in Lebanon, Egypt's Sinai Peninsula, Haiti, Bosnia, and Kosovo;

Whereas, since the terrorist attacks of September 11, 2001, the members of the United States airborne forces, including members of the XVIII Airborne Corps, the 82nd\\ Airborne Division, the 101st\\ Airborne Division (Air Assault), the 173rd\\ Airborne Brigade Combat Team, the 4th\\ Brigade Combat Team (Airborne) of the 25th\\ Infantry Division, the 75th\\ Ranger Regiment, special operations forces of the Army, Marine Corps, Navy, and Air Force, and other units of the Armed Forces, have demonstrated bravery and honor in combat, stability, and training operations in Afghanistan and Iraq;

Whereas the modern-day airborne forces also include other elite forces composed of airborne trained and qualified special operations warriors, including Army Special Forces, Marine Corps Reconnaissance units, Navy SEALs, and Air Force combat control and pararescue teams;

Whereas, of the members and former members of the United States airborne forces, thousands have achieved the distinction of making combat jumps, dozens have earned the Medal of Honor, and hundreds have earned the Distinguished Service Cross, the Silver Star, or other decorations and awards for displays of heroism, gallantry, intrepidity, and valor;

Whereas the members and former members of the United States airborne forces are all members of a proud and honorable tradition that, together with the special skills and achievements of those members, distinguishes the members as intrepid combat parachutists, air assault forces, special operation forces, and, in the past, glider infantry;

Whereas individuals from every State of the United States have served gallantly in the airborne forces, and each State is proud of the contributions of its paratrooper veterans during the many conflicts faced by the United States;

Whereas the history and achievements of the members and former members of the United States airborne forces warrant special expressions of the gratitude of the people of the United States; and

Whereas, since the airborne forces, past and present, celebrate August 16 as the anniversary of the first official jump by the Army Parachute Test Platoon, August 16 is an appropriate day to recognize as National Airborne Day: Now, therefore, be it

Resolved, That the Senate—

(1) designates August 16, 2020, as ''National Airborne Day''; and

(2) calls on the people of the United States to observe National Airborne Day with appropriate programs, ceremonies, and activities.

SENATE RESOLUTION 678—DESIGNATING SEPTEMBER 2020 AS ''NATIONAL CHILD AWARENESS MONTH'' TO PROMOTE AWARENESS OF CHARITIES THAT BENEFIT CHILDREN AND YOUTH-SERVING ORGANIZATIONS THROUGHOUT THE UNITED STATES AND RECOGNIZING THE EFFORTS MADE BY THOSE CHARITIES AND ORGANIZATIONS ON BEHALF OF CHILDREN AND YOUTH AS CRITICAL CONTRIBUTIONS TO THE FUTURE OF THE UNITED STATES

Mrs. FEINSTEIN (for herself, Mr. LANKFORD, Mr. BRAUN, Mrs. CAPITO, Ms. HARRIS, Ms. HASSAN, Mr. JONES, Mr. PETERS, and Ms. ROSEN) submitted the following resolution; which was considered and agreed to:

S. RES. 678

Whereas millions of children and youth in the United States represent the hopes and the future of the United States;

Whereas numerous individuals, charities benefitting children, and youth-serving organizations that work with children and youth collaborate to provide invaluable services to enrich and better the lives of children and youth throughout the United States;

Whereas raising awareness of, and increasing support for, organizations that provide access to health care, social services, education, the arts, sports, and other services will result in the development of character in, and the future success of, the children and youth of the United States;

Whereas the month of September, as the school year begins, is a time when parents, families, teachers, school administrators, and communities increase the focus on children and youth throughout the United States;

Whereas the month of September is a time for the people of the United States to highlight, and be mindful of, the needs of children and youth;

Whereas private corporations and businesses have joined with hundreds of national and local charitable organizations throughout the United States in support of a month-long focus on children and youth; and

Whereas designating September 2020 as ''National Child Awareness Month'' would recognize that a long-term commitment to children and youth is in the public interest and will encourage widespread support for charities and organizations that seek to provide a better future for the children and youth of the United States: Now, therefore, be it

Resolved, That the Senate designates September 2020 as ''National Child Awareness Month''—

(1) to promote awareness of charities that benefit children and youth-serving organizations throughout the United States;

(2) to recognize the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States; and

(3) to recognize the importance of meeting the needs of at-risk children and youth, including children and youth who—

(A) have experienced homelessness;

(B) are in the foster care system;

(C) have been victims, or are at risk of becoming victims, of child sex trafficking;

(D) have been impacted by violence;

(E) have experienced trauma; and

(F) have serious physical and mental health needs.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2595. Ms. ERNST submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table.

SA 2596. Mr. MORAN submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2597. Mr. SCOTT, of South Carolina submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2598. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2599. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2600. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2601. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2602. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2603. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2604. Mr. CORNYN submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2605. Mr. RUBIO submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2606. Mrs. LOEFFLER submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2607. Ms. ERNST submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2608. Mr. YOUNG (for himself and Mr. SASSE) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2609. Mrs. GILLIBRAND submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2610. Mr. SULLIVAN (for himself and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2611. Mr. WICKER submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2612. Mr. WICKER submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2613. Mr. ENZI (for himself and Ms. HASSAN) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2614. Mr. BRAUN (for himself, Mr. GRASSLEY, and Mr. ENZI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2615. Mr. ENZI submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2616. Mr. WICKER (for himself, Mr. BARRASSO, Mrs. CAPITO, Mr. PERDUE, Mr. BOOZMAN, Mr. MORAN, and Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2617. Mr. WICKER submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2618. Mr. WICKER (for himself, Mr. CASSIDY, Mr. SULLIVAN, Ms. CANTWELL, and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2619. Mr. WICKER (for himself, Mr. CASSIDY, Mr. SULLIVAN, Ms. CANTWELL, and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2620. Mr. LANKFORD submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2621. Mr. BLUNT (for himself, Mr. CRAMER, Mr. DAINES, and Mr. SULLIVAN) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2622. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2623. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2624. Mr. MORAN submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2625. Mr. WICKER (for himself, Mr. RUBIO, Mr. BLUNT, Mrs. BLACKBURN, Ms. COLLINS, Mr. CORNYN, Mrs. HYDE-SMITH, Mr. CASSIDY, and Mr. GRAHAM) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2626. Mr. TOOMEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2627. Mr. GRASSLEY (for himself, Mr. DAINES, and Ms. MCSALLY) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2628. Mr. GRASSLEY submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2629. Mr. GRASSLEY (for himself, Mr. DAINES, and Ms. MCSALLY) submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2630. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2631. Ms. COLLINS submitted an amendment intended to be proposed to amendment SA 2542 submitted by Mr. CRAPO and intended to be proposed to the amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2632. Mr. CRAMER submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2633. Mr. WICKER (for himself, Mr. RUBIO, Mr. BLUNT, Mrs. BLACKBURN, Ms. COLLINS, Mr. CORNYN, Mrs. HYDE-SMITH, Mr. CASSIDY, and Mr. GRAHAM) submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2634. Mr. WICKER submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2635. Mr. WICKER (for himself, Mr. BARRASSO, Mrs. CAPITO, Mr. PERDUE, Mr. BOOZMAN, Mr. MORAN, and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2636. Mr. MCCONNELL (for Mrs. FISCHER) proposed an amendment to the resolution S. Res. 659, designating September 2020 as ''School Bus Safety Month''.

SA 2637. Mr. MCCONNELL (for Mr. THUNE) proposed an amendment to the joint resolution S.J. Res. 74, requesting the Secretary of the Interior to authorize a unique and 1-time arrangement for certain displays on Mount Rushmore National Memorial relating to the centennial of the ratification of the 19th Amendment to the Constitution of the United States during the period beginning August 18, 2020, and ending on September 30, 2020.

SA 2638. Mr. MCCONNELL (for Mr. COONS) proposed an amendment to the concurrent resolution S. Con. Res. 37, honoring the life and work of Louis Lorenzo Redding, whose lifelong dedication to civil rights and service stand as an example of leadership for all people.

SA 2639. Ms. MCSALLY (for herself and Mr. RISCH) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table.

SA 2640. Mr. GRASSLEY submitted an amendment intended to be proposed by him to the bill S. 178, supra; which was ordered to lie on the table.

SA 2641. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 propose by Mr. MCCONNELL to the bill S. 178, supra; which was ordered to lie on the table.

SA 2642. Mr. MCCONNELL (for Mr. WICKER) proposed an amendment to the bill S. 2299, to amend title 49, United States Code, to enhance the safety and reliability of pipeline transportation, and for other purposes.

TEXT OF AMENDMENT ON AUGUST 4, 2020

SA 2512. Mr. MORAN (for himself and Mr. BLUMENTHAL) proposed an amendment to the bill S. 2330, to amend the Ted Stevens Olympic and Amateur Sports Act to provide for congressional oversight of the board of directors of the United States Olympic and Paralympic Committee and to protect amateur athletes from emotional, physical, and sexual abuse, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) The courageous voice of survivors is a call to action to end emotional, physical, and sexual abuse in the Olympic and Paralympic movement.

(2) Larry Nassar, the former national team doctor for USA Gymnastics, sexually abused

over 300 athletes for over two decades because of ineffective oversight by USA Gymnastics and the United States Olympic Committee.

(3) While the case of Larry Nassar is unprecedented in scale, the case is hardly the only recent incident of sexual abuse in amateur sports.

(4) Survivors of Larry Nassar's abuse and all survivors of abuse in the Olympic and Paralympic movement deserve justice and redress for the wrongs the survivors have suffered.

(5) After a comprehensive congressional investigation, including interviews and statements from survivors, former and current organization officials, law enforcement, and advocates, Congress found that the United States Olympic Committee and USA Gymnastics fundamentally failed to uphold their existing statutory purposes and duty to protect amateur athletes from sexual, emotional, or physical abuse.

(6) USA Gymnastics and the United States Olympic Committee knowingly concealed abuse by Larry Nassar, leading to the abuse of dozens of additional amateur athletes during the period beginning in the summer of 2015 and ending in September 2016.

(7) Ending abuse in the Olympic and Paralympic movement requires enhanced oversight to ensure that the Olympic and Paralympic movement does more to serve athletes and protect their voice and safety.

SEC. 3. DEFINITIONS.

Section 220501(b) of title 36, United States Code, is amended—

(1) in paragraph (4), by striking ''United States Center for Safe Sport'' and inserting ''United States Center for SafeSport'';

(2) in paragraph (6), by striking ''United States Olympic Committee'' and inserting ''United States Olympic and Paralympic Committee'';

(3) by amending paragraph (8) to read as follows:

''(8) 'national governing body' means an amateur sports organization, a high-performance management organization, or a paralympic sports organization that is certified by the corporation under section 220521.'';

(4) by striking paragraph (9);

(5) by redesignating paragraphs (4), (5), (6), (7), (8), and (10) as paragraphs (5), (6), (7), (8), (9), and (12), respectively;

(6) by inserting after paragraph (3) the following:

''(4) 'Athletes' Advisory Council' means the entity established and maintained under section 220504(b)(2)(A) that—

''(A) is composed of, and elected by, amateur athletes to ensure communication between the corporation and currently active amateur athletes; and

''(B) serves as a source of amateur-athlete opinion and advice with respect to policies and proposed policies of the corporation.''; and

(7) by inserting after paragraph (9), as so redesignated, the following:

''(10) 'protected individual' means any amateur athlete, coach, trainer, manager, administrator, or official associated with the corporation or a national governing body.

''(11) 'retaliation' means any adverse or discriminatory action, or the threat of an adverse or discriminatory action, including removal from a training facility, reduced coaching or training, reduced meals or housing, and removal from competition, carried out against a protected individual as a result of any communication, including the filing of a formal complaint, by the protected individual or a parent or legal guardian of the protected individual relating to the allegation of physical abuse, sexual harassment, or emotional abuse, with—

''(A) the Center;

''(B) a coach, trainer, manager, administrator, or official associated with the corporation;

''(C) the Attorney General;

''(D) a Federal or State law enforcement authority;

''(E) the Equal Employment Opportunity Commission; or

''(F) Congress.''.

SEC. 4. MODERNIZATION OF THE TED STEVENS OLYMPIC AND AMATEUR SPORTS ACT.

(a) IN GENERAL.—Chapter 2205 of title 36, United States Code, is amended—

(1) in the chapter heading, by striking ''**UNITED STATES OLYMPIC COMMITTEE**'' and inserting ''**UNITED STATES OLYMPIC AND PARALYMPIC COMMITTEE**'';

(2) in section 220502, by amending subsection (c) to read as follows:

''(c) REFERENCES TO UNITED STATES OLYMPIC ASSOCIATION AND UNITED STATES OLYMPIC COMMITTEE.—Any reference to the United States Olympic Association or the United States Olympic Committee is deemed to refer to the United States Olympic and Paralympic Committee.'';

(3) in section 220503—

(A) in paragraph (3), by striking ''and the Pan-American Games'' each place it appears and inserting ''the Pan-American Games, and the Parapan American Games''; and

(B) in paragraph (4), by striking ''and Pan-American Games'' and inserting ''the Pan-American Games, and the Parapan American Games'';

(4) in section 220504(b)(3), by striking ''or the Pan-American Games'' and inserting ''the Pan-American Games, or the Parapan American Games'';

(5) in section 220505(c)—

(A) in paragraph (3), by striking ''and the Pan-American Games'' and inserting ''the Pan-American Games, and the Parapan American Games'';

(B) by amending paragraph (4) to read as follows:

''(4) certify national governing bodies for any sport that is included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games;''; and

(C) in paragraph (5), by inserting ''the Parapan American Games,'' after ''the Pan-American Games,'';

(6) in section 220506—

(A) in subsection (a)—

(i) in paragraph (1), by striking ''United States Olympic Committee'' and inserting ''United States Olympic and Paralympic Committee'';

(ii) in paragraph (2), by striking ''3 TaiGeuks'' and inserting ''3 Agitos''; and

(iii) in paragraph (4), by inserting '' 'Parapan American','' after '' 'Pan-American','';

(B) in subsection (b), by inserting ''the Parapan American team,'' after ''the Pan-American team,''; and

(C) in subsection (c)(3), by striking ''or Pan-American Games activity'' and inserting ''Pan-American, or Parapan American Games activity'';

(7) in section 220509(a)—

(A) in the first sentence, by inserting ''the Parapan American Games,'' after ''the Pan-American Games,''; and

(B) in the second sentence, by striking ''or the Pan-American Games'' and inserting ''the Pan-American Games, or the Parapan American Games'';

(8) in section 220512, by striking ''and Pan-American Games'' and inserting ''Pan-American Games, and Parapan American Games'';

(9) in section 220523(a), by striking ''and the Pan-American Games'' each place it appears and inserting ''the Pan-American Games, and the Parapan American Games'';

(10) in section 220528(c)—

(A) in subparagraph (A), by striking ''or in both the Olympic and Pan-American Games'' and inserting ''or in each of the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games''; and

(B) by amending subparagraph (B) to read as follows:

''(B) any Pan-American Games or Parapan American Games, for a sport in which competition is held in the Pan-American Games or the Parapan American Games, as applicable, but not in the Olympic Games or the Paralympic Games.''; and

(11) in section 220531, by striking ''United States Olympic Committee'' each place it appears and inserting ''United States Olympic and Paralympic Committee''.

(b) CONFORMING AMENDMENT.—The table of chapters for part B of subtitle II of title 36, United States Code, is amended by striking the item relating to chapter 2205 and inserting the following:

''2205. United States Olympic and Paralympic Committee 220501''. .....

SEC. 5. CONGRESSIONAL OVERSIGHT OF UNITED STATES OLYMPIC AND PARALYMPIC COMMITTEE AND NATIONAL GOVERNING BODIES.

(a) IN GENERAL.—Chapter 2205 of title 36, United States Code, is amended—

(1) by redesignating the second subchapter designated as subchapter III (relating to the United States Center for SafeSport), as added by section 202 of the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act of 2017 (Public Law 115–126; 132 Stat. 320) as subchapter IV; and

(2) by adding at the end the following:

''SUBCHAPTER V—DISSOLUTION OF BOARD OF DIRECTORS OF CORPORATION AND TERMINATION OF RECOGNITION OF NATIONAL GOVERNING BODIES

''§ 220551. Definitions

''In this subchapter, the term 'joint resolution' means a joint resolution—

''(1) which does not have a preamble; and

''(2) for which—

''(A)(i) the title is only as follows: 'A joint resolution to dissolve the board of directors of the United States Olympic and Paralympic Committee'; and

''(ii) the matter after the resolving clause—

''(I) is as follows: 'That Congress finds that dissolving the board of directors of the United States Olympic and Paralympic Committee would not unduly interfere with the operations of chapter 2205 of title 36, United States Code'; and

''(II) prescribes adequate procedures for forming a board of directors of the corporation as expeditiously as possible and in a manner that safeguards the membership and voting power of the representatives of amateur athletes at all times, consistent with the membership and voting power of amateur athletes under section 220504(b)(2); or

''(B)(i) the title is only as follows: 'A joint resolution relating to terminating the recognition of a national governing body'; and

''(ii) the matter after the resolving clause is only as follows: 'That Congress determines that _____, which is recognized as a national governing body under section 220521 of title 36, United States Code, has failed to fulfill its duties, as described in section 220524 of title 36, United States Code', the blank space being filled in with the name of the applicable national governing body.

''§ 220552. Dissolution of board of directors of corporation and termination of recognition of national governing bodies

''(a) DISSOLUTION OF BOARD OF DIRECTORS OF CORPORATION.—Effective on the date of enactment of a joint resolution described in section 220551(2)(A) with respect to the board of directors of the corporation, such board of directors shall be dissolved.

''(b) TERMINATION OF RECOGNITION OF NATIONAL GOVERNING BODY.—Effective on the date of enactment of a joint resolution described in section 220551(2)(B) with respect to a national governing body, the recognition of the applicable amateur sports organization as a national governing body shall cease to have force or effect.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of sections for chapter 2205 of title 36, United States Code, is amended—

(1) by striking the second item relating to subchapter III (relating to the United States Center for SafeSport), as added by section 202 of the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act of 2017 (Public Law 115–126; 132 Stat. 320) and inserting the following:

''SUBCHAPTER IV—UNITED STATES CENTER FOR SAFESPORT''; AND

(2) by adding at the end the following:

''SUBCHAPTER V—DISSOLUTION OF BOARD OF DIRECTORS OF CORPORATION AND TERMINATION OF RECOGNITION OF NATIONAL GOVERNING BODIES

''220551. Definitions.
''220552. Dissolution of board of directors of corporation and termination of recognition of national governing bodies.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date that is 1 year after the date of the enactment of this Act.

SEC. 6. MODIFICATIONS TO UNITED STATES OLYMPIC AND PARALYMPIC COMMITTEE.

(a) PURPOSES OF THE CORPORATION.—Section 220503 of title 36, United States Code, is amended—

(1) in paragraph (9), by inserting ''and access to'' after ''development of'';

(2) in paragraph (14), by striking ''; and'' and inserting a semicolon;

(3) in paragraph (15), by striking the period at the end and inserting ''; and''; and

(4) by adding at the end the following:

''(16) to effectively oversee the national governing bodies with respect to compliance with and implementation of the policies and procedures of the corporation, including policies and procedures on the establishment of a safe environment in sports as described in paragraph (15).''.

(b) MEMBERSHIP AND REPRESENTATION.—Section 220504 of title 36, United States Code, is amended—

(1) in subsection (a), by inserting '', and membership shall be available only to national governing bodies'' before the period at the end;

(2) in subsection (b), by amending paragraph (2) to read as follows:

''(2) amateur athletes who are actively engaged in amateur athletic competition or who have represented the United States in international amateur athletic competition, including through provisions that—

''(A) establish and maintain an Athletes' Advisory Council;

''(B) ensure that the chair of the Athletes' Advisory Council, or the designee of the chair, holds voting power on the board of directors of the corporation and in the committees and entities of the corporation;

''(C) require that—

''(i) not less than ⅓ of the membership of the board of directors of the corporation shall be composed of, and elected by, such amateur athletes; and

''(ii) not less than 20 percent of the membership of the board of directors of the corporation shall be composed of amateur athletes who—

''(I) are actively engaged in representing the United States in international amateur athletic competition; or

''(II) have represented the United States in international amateur athletic competition during the preceding 10-year period; and

''(D) ensure that the membership and voting power held by such amateur athletes is not less than ⅓ percent of the membership and voting power held in the board of directors of the corporation and in the committees and entities of the corporation, including any panel empowered to resolve grievances;''; and

(3) by adding at the end the following:

''(c) CONFLICT OF INTEREST.—An athlete who represents athletes under subsection (b)(2) shall not be employed by the Center, or serve in a capacity that exercises decision-making authority on behalf of the Center, during the 2-year period beginning on the date on which the athlete ceases such representation.

''(d) CERTIFICATION REQUIREMENTS.—The bylaws of the corporation shall include a description of all generally applicable certification requirements for membership in the corporation.''.

(c) DUTIES.—

(1) IN GENERAL.—Section 220505 of title 36, United States Code, is amended—

(A) in the section heading, by striking ''**Powers**'' and inserting ''**Powers and duties**''; and

(B) by adding at the end the following:

''(d) DUTIES.—

''(1) IN GENERAL.—The duty of the corporation to amateur athletes includes the adoption, effective implementation, and enforcement of policies and procedures designed—

''(A) to immediately report to law enforcement and the Center any allegation of child abuse of an amateur athlete who is a minor;

''(B) to ensure that each national governing body has in place policies and procedures to report immediately any allegation of child abuse of an amateur athlete, consistent with—

''(i) the policies and procedures developed under subparagraph (C) of section 220541(a)(1); and

''(ii) the requirement described in paragraph (2)(A) of section 220542(a); and

''(C) to ensure that each national governing body and the corporation enforces temporary measures and sanctions issued pursuant to the authority of the Center.

''(2) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to preempt or otherwise abrogate the duty of care of the corporation under State law or the common law.''.

(2) CONFORMING AMENDMENT.—The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220505 and inserting the following:

''220505. Powers and duties.''.

(d) RESTRICTIONS.—

(1) POLICY WITH RESPECT TO ASSISTING MEMBERS OR FORMER MEMBERS IN OBTAINING JOBS.—Section 220507 of title 36, United States Code, is amended by adding at the end the following:

''(c) POLICY WITH RESPECT TO ASSISTING MEMBERS OR FORMER MEMBERS IN OBTAINING JOBS.—The corporation shall develop 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the corporation from assisting a member or former member in obtaining a new job (except the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law.''.

(2) POLICY WITH RESPECT TO TERMS AND CONDITIONS OF EMPLOYMENT.—

(A) IN GENERAL.—Section 220507 of title 36, United States Code, as amended by paragraph (1), is further amended by adding at the end the following:

''(d) POLICY REGARDING TERMS AND CONDITIONS OF EMPLOYMENT.—The corporation shall establish a policy—

''(1) not to disperse bonus or severance pay to any individual named as a subject of an ethics investigation by the ethics committee of the corporation, until such individual is cleared of wrongdoing by such investigation; and

''(2) that provides that—

''(A) if the ethics committee determines that an individual has violated the policies of the corporation—

''(i) the individual is no longer entitled to bonus or severance pay previously withheld; and

''(ii) the compensation committee of the corporation may reduce or cancel the withheld bonus or severance pay; and

''(B) in the case of an individual who is the subject of a criminal investigation, the ethics committee shall investigate the individual.''.

(B) APPLICABILITY.—The amendment made by subparagraph (A) shall not apply to any term of employment for the disbursement of bonus or severance pay that is in effect as of the day before the date of the enactment of this Act.

(e) RESOLUTION OF DISPUTES AND PROTECTING ABUSE VICTIMS FROM RETALIATION.—Section 220509 of title 36, United States Code, is amended—

(1) in subsection (a), in the first sentence, by inserting ''complaints of retaliation or'' after ''relating to'';

(2) by amending subsection (b) to read as follows:

''(b) OFFICE OF THE ATHLETE OMBUDS.—

''(1) IN GENERAL.—The corporation shall hire and provide salary, benefits, and administrative expenses for an ombudsman and support staff for athletes.

''(2) DUTIES.—The Office of the Athlete Ombuds shall—

''(A) provide independent advice to athletes at no cost about the applicable provisions of this chapter and the constitution and bylaws of the corporation, national governing bodies, international sports federations, the International Olympic Committee, the International Paralympic Committee, and the Pan-American Sports Organization, and with respect to the resolution of any dispute involving the opportunity of an amateur athlete to participate in the Olympic Games, the Paralympic Games, the Pan-American Games, the Parapan American Games, world championship competition or other protected competition as defined in the constitution and bylaws of the corporation;

''(B) assist in the resolution of athlete concerns;

''(C) provide independent advice to athletes with respect to—

''(i) the role, responsibility, authority, and jurisdiction of the Center; and

''(ii) the relative value of engaging legal counsel; and

''(D) report to the Athletes' Advisory Council on a regular basis.

''(3) HIRING PROCEDURES; VACANCY; TERMINATION.—

''(A) HIRING PROCEDURES.—The procedure for hiring the ombudsman for athletes shall be as follows:

''(i) The Athletes' Advisory Council shall provide the corporation's executive director with the name of 1 qualified person to serve as ombudsman for athletes.

''(ii) The corporation's executive director shall immediately transmit the name of such person to the corporation's executive committee.

''(iii) The corporation's executive committee shall hire or not hire such person after fully considering the advice and counsel of the Athletes' Advisory Council.

''(B) VACANCY.—If there is a vacancy in the position of the ombudsman for athletes, the nomination and hiring procedure set forth in this paragraph shall be followed in a timely manner.

''(C) TERMINATION.—The corporation may terminate the employment of an individual serving as ombudsman for athletes only if—

''(i) the termination is carried out in accordance with the applicable policies and procedures of the corporation;

''(ii) the termination is initially recommended to the corporation's executive committee by either the corporation's executive director or by the Athletes' Advisory Council; and

''(iii) the corporation's executive committee fully considers the advice and counsel of the Athletes' Advisory Council prior to deciding whether or not to terminate the employment of such individual.

''(4) CONFIDENTIALITY.—

''(A) IN GENERAL.—The Office of the Athlete Ombuds shall maintain as confidential any information communicated or provided to the Office of the Athlete Ombuds in confidence in any matter involving the exercise of the official duties of the Office of the Athlete Ombuds.

''(B) EXCEPTION.—The Office of the Athlete Ombuds may disclose information described in subparagraph (A) as necessary to resolve or mediate a dispute, with the permission of the parties involved.

''(C) JUDICIAL AND ADMINISTRATIVE PROCEEDINGS.—

''(i) IN GENERAL.—The ombudsman and the staff of the Office of the Athlete Ombuds shall not be compelled to testify or produce evidence in any judicial or administrative proceeding with respect to any matter involving the exercise of the duties of the Office of the Athlete Ombuds.

''(ii) WORK PRODUCT.—Any memorandum, work product, notes, or case file of the Office of the Athlete Ombuds—

''(I) shall be confidential; and

''(II) shall not be—

''(aa) subject to discovery, subpoena, or any other means of legal compulsion; or

''(bb) admissible as evidence in a judicial or administrative proceeding.

''(D) APPLICABILITY.—The confidentiality requirements under this paragraph shall not apply to information relating to—

''(i) applicable federally mandated reporting requirements;

''(ii) a felony personally witnessed by a member of the Office of the Athlete Ombuds;

''(iii) a situation, communicated to the Office of the Athlete Ombuds, in which an individual is at imminent risk of serious harm; or

''(iv) a congressional subpoena.

''(E) DEVELOPMENT OF POLICY.—

''(i) IN GENERAL.—Not later than 180 days after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, the Office of the Athlete Ombuds shall develop and publish in the Federal Register a confidentiality and privacy policy consistent with this paragraph.

''(ii) DISTRIBUTION.—The Office of the Athlete Ombuds shall distribute a copy of the policy developed under clause (i) to—

''(I) employees of the national governing bodies; and

''(II) employees of the corporation.

''(iii) PUBLICATION BY NATIONAL GOVERNING BODIES.—Each national governing body shall—

''(I) publish the policy developed under clause (i) on the internet website of the national governing body; and

''(II) communicate to amateur athletes the availability of the policy.

''(5) PROHIBITION ON RETALIATION.—No employee, contractor, agent, volunteer, or member of the corporation shall take or threaten to take any action against an athlete as a reprisal for disclosing information to or seeking assistance from the Office of the Athlete Ombuds.

''(6) INDEPENDENCE IN CARRYING OUT DUTIES.—The board of directors of the corporation or any other member or employee of the corporation shall not prevent or prohibit the Office of the Athlete Ombuds from carrying out any duty or responsibility under this section.''; and

(3) by adding at the end the following:

''(c) RETALIATION.—

''(1) IN GENERAL.—The corporation, the national governing bodies, or any officer, employee, contractor, subcontractor, or agent of the corporation or a national governing body may not retaliate against any protected individual as a result of any communication, including the filing of a formal complaint, by a protected individual or a parent or legal guardian of the protected individual relating to an allegation of physical abuse, sexual harassment, or emotional abuse.

''(2) DISCIPLINARY ACTION.—If the corporation finds that an employee of the corporation or a national governing body has retaliated against a protected individual, the corporation or national governing body, as applicable, shall immediately terminate the employment of, or suspend without pay, such employee.

''(3) DAMAGES.—

''(A) IN GENERAL.—With respect to a protected individual the corporation finds to have been subject to retaliation, the corporation may award damages, including damages for pain and suffering and reasonable attorney fees.

''(B) REIMBURSEMENT FROM NATIONAL GOVERNING BODY.—In the case of a national governing body found to have retaliated against a protected individual, the corporation may demand reimbursement from the national governing body for damages paid by the corporation under subparagraph (A).''.

(f) REPORTS AND AUDITS.—

(1) IN GENERAL.—Section 220511 of title 36, United States Code, is amended to read as follows:

''§ 220511. Reports and audits

''(a) REPORT.—

''(1) SUBMISSION TO PRESIDENT AND CONGRESS.—Not less frequently than annually, the corporation shall submit simultaneously to the President and to each House of Congress a detailed report on the operations of the corporation for the preceding calendar year.

''(2) MATTERS TO BE INCLUDED.—Each report required by paragraph (1) shall include the following:

''(A) A comprehensive description of the activities and accomplishments of the corporation during such calendar year.

''(B) Data concerning the participation of women, disabled individuals, and racial and ethnic minorities in the amateur athletic activities and administration of the corporation and national governing bodies.

''(C) A description of the steps taken to encourage the participation of women, disabled individuals, and racial minorities in amateur athletic activities.

''(D) A description of any lawsuit or grievance filed against the corporation, including any dispute initiated under this chapter.

''(E) The agenda and minutes of any meeting of the board of directors of the corporation that occurred during such calendar year.

''(F) A report by the compliance committee of the corporation that, with respect to such calendar year—

''(i) identifies—

''(I) the areas in which the corporation has met compliance standards; and

''(II) the areas in which the corporation has not met compliance standards; and

''(ii) assesses the compliance of each member of the corporation and provides a plan for improvement, as necessary.

''(G) A detailed description of any complaint of retaliation made during such calendar year, including the entity involved, the number of allegations of retaliation, and the outcome of such allegations.

''(3) PUBLIC AVAILABILITY.—The corporation shall make each report under this subsection available to the public on an easily accessible internet website of the corporation.

''(b) AUDIT.—

''(1) IN GENERAL.—Not less frequently than annually, the financial statements of the corporation for the preceding fiscal year shall be audited in accordance with generally accepted auditing standards by—

''(A) an independent certified public accountant; or

''(B) an independent licensed public accountant who is certified or licensed by the regulatory authority of a State or a political subdivision of a State.

''(2) LOCATION.—An audit under paragraph (1) shall be conducted at the location at which the financial statements of the corporation normally are kept.

''(3) ACCESS.—An individual conducting an audit under paragraph (1) shall be given full access to—

''(A) all records and property owned or used by the corporation, as necessary to facilitate the audit; and

''(B) any facility under audit for the purpose of verifying transactions, including any balance or security held by a depository, fiscal agent, or custodian.

''(4) REPORT.—

''(A) IN GENERAL.—Not later than 180 days after the end of the fiscal year for which an audit is carried out, the auditor shall submit a report on the audit to the Committee on Commerce, Science, and Transportation of the Senate, the Committee on the Judiciary of the House of Representatives, and the chair of the Athletes' Advisory Council.

''(B) MATTERS TO BE INCLUDED.—Each report under subparagraph (A) shall include the following for the applicable fiscal year:

''(i) Any statement necessary to present fairly the assets, liabilities, and surplus or deficit of the corporation.

''(ii) An analysis of the changes in the amounts of such assets, liabilities, and surplus or deficit.

''(iii) A detailed statement of the income and expenses of the corporation, including the results of any trading, manufacturing, publishing, or other commercial endeavor.

''(iv) A detailed statement of the amounts spent on stipends and services for athletes.

''(v) A detailed statement of the amounts spent on compensation and services for executives and administration officials of the

corporation, including the 20 employees of the corporation who receive the highest amounts of compensation.

''(vi) A detailed statement of the amounts allocated to the national governing bodies.

''(vii) Such comments and information as the auditor considers necessary to inform Congress of the financial operations and condition of the corporation.

''(viii) Recommendations relating to the financial operations and condition of the corporation.

''(ix) A description of any financial conflict of interest (including a description of any recusal or other mitigating action taken), evaluated in a manner consistent with the policies of the corporation, of—

''(I) a member of the board of directors of the corporation; or

''(II) any senior management personnel of the corporation.

''(C) PUBLIC AVAILABILITY.—

''(i) IN GENERAL.—The corporation shall make each report under this paragraph available to the public on an easily accessible internet website of the corporation.

''(ii) PERSONALLY IDENTIFIABLE INFORMATION.—A report made available under clause (i) shall not include the personally identifiable information of any individual.''.

(2) CONFORMING AMENDMENT.—The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220511 and inserting the following:

''220511. Reports and audits.''.

(g) ANNUAL AMATEUR ATHLETE SURVEY.—

(1) IN GENERAL.—Subchapter I of chapter 2205 of title 36, United States Code, is amended by adding at the end the following:

''§ 220513. Annual amateur athlete survey

''(a) IN GENERAL.—Not less frequently than annually, the corporation shall cause an independent third-party organization, under contract, to conduct an anonymous survey of amateur athletes who are actively engaged in amateur athletic competition with respect to—

''(1) their satisfaction with the corporation and the applicable national governing body; and

''(2) the behaviors, attitudes, and feelings within the corporation and the applicable national governing body relating to sexual harassment and abuse.

''(b) CONSULTATION.—A contract under subsection (a) shall require the independent third-party organization to develop the survey in consultation with the Center.

''(c) PROHIBITION ON INTERFERENCE.—If the corporation or a national governing body makes any effort to undermine the independence of, introduce bias into, or otherwise influence a survey under subsection (a), such activity shall be reported immediately to Congress.

''(d) PUBLIC AVAILABILITY.— The corporation shall make the results of each such survey available to the public on an internet website of the corporation.''.

(2) CONFORMING AMENDMENT.—The table of sections for chapter 2205 of title 36, United States Code, is amended by inserting after the item relating to 220512 the following:

''220513. Annual amateur athlete survey.''.

SEC. 7. MODIFICATIONS TO NATIONAL GOVERNING BODIES.

(a) CERTIFICATION OF NATIONAL GOVERNING BODIES.—

(1) IN GENERAL.—Section 220521 of title 36, United States Code, is amended—

(A) in the section heading, by striking ''**Recognition of amateur sports organizations as national governing bodies**'' and inserting ''**Certification of national governing bodies**'';

(B) by amending subsection (a) to read as follows:

''(a) IN GENERAL.—With respect to each sport included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games, the corporation—

''(1) may certify as a national governing body an amateur sports organization, a high-performance management organization, or a paralympic sports organization that files an application and is eligible for such certification under section 220522; and

''(2) may not certify more than 1 national governing body.'';

(C) in subsection (b), by striking ''recognizing'' and inserting ''certifying'';

(D) in subsection (c), by striking ''recognizing'' and inserting ''certifying''; and

(E) by amending subsection (d) to read as follows:

''(d) REVIEW OF CERTIFICATION.—Not later than 8 years after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, and not less frequently than once every 4 years thereafter, the corporation—

''(1) shall review all matters related to the continued certification of an organization as a national governing body;

''(2) may take action the corporation considers appropriate, including placing conditions on the continued certification of an organization as a national governing body;

''(3) shall submit to Congress a summary report of each review under paragraph (1); and

''(4) shall make each such summary report available to the public.''.

(2) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) Chapter 2205 of title 36, United States Code, is amended—

(i) in section 220504(b), by amending paragraph (1) to read as follows:

''(1) national governing bodies, including through provisions that establish and maintain a National Governing Bodies' Council that is composed of representatives of the national governing bodies who are selected by their boards of directors or other governing boards to ensure effective communication between the corporation and the national governing bodies;'';

(ii) in section 220512, by striking ''or paralympic sports organization'';

(iii) in section 220522—

(I) by striking subsection (b); and

(II) in subsection (a)—

(aa) by striking ''recognized'' each place it appears and inserting ''certified'';

(bb) by striking ''recognition'' each place it appears and inserting ''certification'';

(cc) in paragraph (6), by striking ''the Olympic Games or the Pan-American Games'' and inserting ''the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games'';

(dd) in paragraph (11)—

(AA) in the matter preceding subparagraph (A), by inserting '', high-performance management organization, or paralympic sports organization'' after ''amateur sports organization''; and

(BB) in subparagraph (B), by striking ''amateur sports'' and inserting ''applicable'';

(ee) in paragraph (14), by striking ''or the Pan-American Games'' and inserting ''the Pan-American Games, or the Parapan American Games''; and

(ff) by striking the subsection designation and heading and all that follows through ''An amateur sports organization'' and inserting ''An amateur sports organization, a high-performance management organization, or a paralympic sports organization'';

(iv) in section 220524, by striking ''amateur sports'' each place it appears;

(v) in section 220528—

(I) by striking ''recognition'' each place it appears and inserting ''certification'';

(II) by striking ''recognize'' each place it appears and inserting ''certify''; and

(III) in subsection (g), in the subsection heading, by striking ''RECOGNITION'' and inserting ''CERTIFICATION'';

(vi) in section 220531—

(I) by striking '', each national governing body, and each paralympic sports organization'' each place it appears and inserting ''and each national governing body''; and

(II) in subsection (c)(2), by striking ''each paralympic sports organization,'';

(vii) in section 220541(d)(3), by striking subparagraph (C);

(viii) in section 220542—

(I) by striking ''or paralympic sports organization'' each place it appears; and

(II) in subsection (a)(2)—

(aa) in subparagraph (A), in the matter preceding clause (i), by striking '', a paralympic sports organization,'';

(bb) in subparagraph (E), by striking ''or a paralympic sports organization of each national governing body and paralympic sports organization''; and

(cc) in subparagraph (F)(i)—

(AA) by striking '', or an adult'' and inserting ''or an adult'';

(BB) by striking '', paralympic sports organization,''; and

(CC) by striking '', paralympic sports organizations,''.

(B) The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220521 and inserting the following:

''220521. Certification of national governing bodies.''.

(b) ELIGIBILITY REQUIREMENTS WITH RESPECT TO GOVERNING BOARDS.—Section 220522 of title 36, United States Code, as amended by subsection (a)(2), is further amended—

(1) in paragraph (2), by inserting '', including the ability to provide and enforce required athlete protection policies and procedures'' before the semicolon;

(2) in paragraph (4)(B)—

(A) by striking ''conducted in accordance with the Commercial Rules of the American Arbitration Association'' and inserting ''which arbitration under this paragraph shall be conducted in accordance with the standard commercial arbitration rules of an established major national provider of arbitration and mediation services based in the United States and designated by the corporation with the concurrence of the Athletes' Advisory Council and the National Governing Bodies' Council''; and

(B) by striking ''Commercial Rules of Arbitration'' and inserting ''standard commercial rules of arbitration of such designated provider'';

(3) in paragraph (5), in the matter preceding subparagraph (A), by inserting ''except with respect to the oversight of the organization,'' after ''sport,'';

(4) by redesignating paragraphs (10) through (15) as paragraphs (11) through (16), respectively;

(5) by inserting after paragraph (9) the following:

''(10) ensures that the selection criteria for individuals and teams that represent the United States are—

''(A) fair, as determined by the corporation in consultation with the national governing bodies, the Athletes' Advisory Council, and the United States Olympians and Paralympians Association;

''(B) clearly articulated in writing and properly communicated to athletes in a timely manner; and

''(C) consistently applied, using objective and subjective criteria appropriate to the applicable sport;'';

(6) by striking paragraph (13), as so redesignated, and inserting the following:

''(13) demonstrates, based on guidelines approved by the corporation, the Athletes' Advisory Council, and the National Governing Bodies' Council, that—

''(A) its board of directors and other such governing boards have established criteria and election procedures for, and maintain among their voting members, individuals who—

''(i) are elected by amateur athletes; and

''(ii) are actively engaged in amateur athletic competition, or have represented the United States in international amateur athletic competition, in the sport for which certification is sought;

''(B) any exception to such guidelines by such organization has been approved by—

''(i) the corporation; and

''(ii) the Athletes' Advisory Council; and

''(C) the voting power held by such individuals is not less than ⅓ of the voting power held by its board of directors and other such governing boards;'';

(7) in paragraph (15), as so redesignated, by striking ''; and'' and inserting a semicolon;

(8) in paragraph (16), as so redesignated, by striking the period at the end and inserting a semicolon; and

(9) by adding at the end the following:

''(17) commits to submitting annual reports to the corporation that include, for each calendar year—

''(A) a description of the manner in which the organization—

''(i) carries out the mission to promote a safe environment in sports that is free from abuse of amateur athletes (including emotional, physical, and sexual abuse); and

''(ii) addresses any sanctions or temporary measures required by the Center;

''(B) a description of any cause of action or complaint filed against the organization that was pending or settled during the preceding calendar year; and

''(C) a detailed statement of—

''(i) the income and expenses of the organization; and

''(ii) the amounts expended on stipends, bonuses, and services for amateur athletes, organized by the level and gender of the amateur athletes;

''(18) commits to meeting any minimum standard or requirement set forth by the corporation; and

''(19) provides protection from retaliation to protected individuals.''.

(c) GENERAL DUTIES OF NATIONAL GOVERNING BODIES.—Section 220524 of title 36, United States Code, is amended—

(1) in the matter preceding paragraph (1), by striking ''For the sport'' and inserting the following:

''(a) IN GENERAL.—For the sport'';

(2) in subsection (a), as so designated—

(A) in paragraph (8), by striking ''; and'' and inserting a semicolon;

(B) in paragraph (9), by striking the period at the end and inserting a semicolon; and

(C) by adding at the end the following:

''(10) develop 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the national governing body from assisting a member or former member in obtaining a new job (except for the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law or the policies or procedures of the Center;

''(11) promote a safe environment in sports that is free from abuse of any amateur athlete, including emotional, physical, and sexual abuse;

''(12) take care to promote a safe environment in sports using information relating to any temporary measure or sanction issued pursuant to the authority of the Center;

''(13) immediately report to law enforcement any allegation of child abuse of an amateur athlete who is a minor; and

''(14) have in place policies and procedures to report immediately any allegation of child abuse of an amateur athlete, consistent with—

''(A) the policies and procedures developed under subparagraph (C) of section 220541(a)(1); and

''(B) the requirement described in paragraph (2)(A) of section 220542(a).''; and

(3) by adding at the end the following:

''(b) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to preempt or otherwise abrogate the duty of care of a national governing body under State law or the common law.''.

(d) ELIMINATION OF EXHAUSTION OF REMEDIES REQUIREMENT.—Section 220527 of title 36, United States Code, is amended—

(1) by striking subsection (b);

(2) in subsection (c), by striking ''If the corporation'' and all that follows through ''subsection (b)(1) of this section, it'' and inserting ''The corporation''; and

(3) by redesignating subsections (c) and (d) as subsections (b) and (c), respectively.

(e) ARBITRATION OF CORPORATION DETERMINATIONS.—Section 220529(a) of title 36, United States Code, is amended by striking ''any regional office of the American Arbitration Association'' and inserting ''the arbitration and mediation provider designated by the corporation under section 220522(a)(4)''.

(f) ENSURE LIMITATIONS ON COMMUNICATIONS ARE INCLUDED IN LIMITATIONS ON INTERACTIONS.—Section 220530(a) of title 36, United States Code, is amended—

(1) in paragraph (2), by inserting '', including communications,'' after ''interactions''; and

(2) in paragraph (4), by striking ''makes'' and all that follows through the period at the end and inserting the following: ''makes—

''(A) a report under paragraph (1); or

''(B) any other report relating to abuse of any amateur athlete, including emotional, physical, and sexual abuse.''.

SEC. 8. MODIFICATIONS TO UNITED STATES CENTER FOR SAFESPORT.

(a) DESIGNATION OF UNITED STATES CENTER FOR SAFESPORT.—

(1) IN GENERAL.—Section 220541 of title 36, United States Code, is amended—

(A) in the section heading by striking ''**SAFE SPORT**'' and inserting ''**SAFESPORT**'';

(B) by amending subsection (a) to read as follows:

''(a) DUTIES OF CENTER.—

''(1) IN GENERAL.—The United States Center for SafeSport shall—

''(A) serve as the independent national safe sport organization and be recognized worldwide as the independent national safe sport organization for the United States;

''(B) exercise jurisdiction over the corporation and each national governing body with regard to safeguarding amateur athletes against abuse, including emotional, physical, and sexual abuse, in sports;

''(C) maintain an office for education and outreach that shall develop training, oversight practices, policies, and procedures to prevent the abuse, including emotional, physical, and sexual abuse, of amateur athletes participating in amateur athletic activities through national governing bodies;

''(D) maintain an office for response and resolution that shall establish mechanisms that allow for the reporting, investigation, and resolution, pursuant to subsection (c), of alleged sexual abuse in violation of the Center's policies and procedures;

''(E) ensure that the mechanisms under subparagraph (D) provide fair notice and an opportunity to be heard and protect the privacy and safety of complainants;

''(F) maintain an office for compliance and audit that shall—

''(i) ensure that the national governing bodies and the corporation implement and follow the policies and procedures developed by the Center to prevent and promptly report instances of abuse of amateur athletes, including emotional, physical, and sexual abuse; and

''(ii) establish mechanisms that allow for the reporting and investigation of alleged violations of such policies and procedures;

''(G) publish and maintain a publicly accessible internet website that contains a comprehensive list of adults who are barred by the Center; and

''(H) ensure that any action taken by the Center against an individual under the jurisdiction of the Center, including an investigation, the imposition of sanctions, and any other disciplinary action, is carried out in a manner than provides procedural due process to the individual, including, at a minimum—

''(i) the provision of written notice of the allegations against the individual;

''(ii) a right to be represented by counsel or other advisor;

''(iii) an opportunity to be heard during the investigation;

''(iv) in a case in which a violation is found, a reasoned written decision by the Center; and

''(v) the ability to challenge, in a hearing or through arbitration, interim measures or sanctions imposed by the Center.

''(2) RULES OF CONSTRUCTION.—Nothing in this subsection shall be construed—

''(A) to preclude the Center from imposing interim measures or sanctions on an individual before an opportunity for a hearing or arbitration;

''(B) to require the Center to meet a burden of proof higher than the preponderance of the evidence;

''(C) to give rise to a claim under State law or to create a private right of action; or

''(D) to render the Center a state actor.'';

(C) in subsection (b), by striking ''subsection (a)(3)'' and inserting ''subsection (a)(1)(C)'';

(D) in subsection (d), as amended by section 7(a)(2)—

(i) in paragraph (3), by inserting after subparagraph (B) the following:

''(C) the corporation;'';

(ii) by redesignating paragraph (3) as paragraph (4); and

(iii) by inserting after paragraph (2) the following:

''(3) REMOVAL TO FEDERAL COURT.—

''(A) IN GENERAL.—Any civil action brought in a State court against the Center relating to the responsibilities of the Center under this section, section 220542, or section 220543, shall be removed, on request by the Center, to the district court of the United States in the district in which the action was brought, and such district court shall have original jurisdiction over the action without regard to the amount in controversy or the citizenship of the parties involved.

''(B) RULE OF CONSTRUCTION.—Nothing in this chapter shall be construed to create a private right of action.''; and

(E) by adding at the end the following:

''(e) TRAINING MATERIALS.—The office for education and outreach referred to in subsection (a)(1)(C) shall—

''(1) develop training materials for specific audiences, including coaches, trainers, doctors, young children, adolescents, adults, and individuals with disabilities; and

''(2) not less frequently than every 3 years, update such training materials.

''(f) INDEPENDENCE.—

''(1) PROHIBITION WITH RESPECT TO FORMER EMPLOYEES AND BOARD MEMBERS.—A former employee or board member of the corporation or a national governing body shall not work or volunteer at the Center during the 2-year period beginning on the date on which the former employee or board member ceases employment with the corporation or national governing body.

''(2) ATHLETES SERVING ON BOARD OF DIRECTORS OF NATIONAL GOVERNING BODY.—

''(A) IN GENERAL.—An athlete serving on the board of directors of a national governing body who is not otherwise employed by the national governing body, may volunteer at, or serve in an advisory capacity to, the Center.

''(B) INELIGIBILITY FOR EMPLOYMENT.—An athlete who has served on the board of directors of a national governing body shall not be eligible for employment at the Center during the 2-year period beginning on the date on which the athlete ceases to serve on such board of directors.

''(3) CONFLICTS OF INTEREST.—An executive or attorney for the Center shall be considered to have an inappropriate conflict of interest if the executive or attorney also represents the corporation or a national governing body.

''(4) INVESTIGATIONS.—

''(A) IN GENERAL.—The corporation and the national governing bodies shall not interfere in, or attempt to influence the outcome of, an investigation.

''(B) REPORT.—In the case of an attempt to interfere in, or influence the outcome of, an investigation, not later than 72 hours after such attempt, the Center shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives a report describing the attempt.

''(C) WORK PRODUCT.—

''(i) IN GENERAL.—Any decision, report, memorandum, work product, notes, or case file of the Center—

''(I) shall be confidential; and

''(II) shall not be subject to discovery, subpoena, or any other means of legal compulsion in any civil action in which the Center is not a party to the action.

''(ii) RULE OF CONSTRUCTION.—Nothing in this subparagraph shall be construed to prohibit the Center from providing work product described in clause (i) to a law enforcement agency for the purpose of assisting in a criminal investigation.

''(g) FUNDING.—

''(1) MANDATORY PAYMENTS.—

''(A) FISCAL YEAR 2020.—Not later than 30 days after the date of the enactment of this subsection, the corporation shall make a mandatory payment of $20,000,000 to the Center for operating costs of the Center for fiscal year 2020.

''(B) SUBSEQUENT FISCAL YEARS.—Beginning on January 1, 2020, the corporation shall make a mandatory payment of $20,000,000 to the Center on January 1 each year for operating costs of the Center.

''(2) FUNDS FROM NATIONAL GOVERNING BODIES.—The corporation may use funds received from 1 or more national governing bodies to make a mandatory payment required by paragraph (1).

''(3) FAILURE TO COMPLY.—

''(A) IN GENERAL.—The Center may file a lawsuit to compel payment under paragraph (1).

''(B) PENALTY.—For each day of late or incomplete payment of a mandatory payment under paragraph (1) after January 1 of the applicable year, the Center shall be allowed to recover from the corporation an additional $20,000.

''(4) ACCOUNTABILITY.—

''(A) IN GENERAL.—Amounts transferred to the Center by the corporation or a national governing body shall be used, in accordance with section 220503(15), primarily for the purpose of carrying out the duties and requirements under sections 220541 through 220543 with respect to the investigation and resolution of allegations of sexual misconduct, or other misconduct, made by amateur athletes.

''(B) USE OF FUNDS.—

''(i) IN GENERAL.—Of the amounts made available to the Center by the corporation or a national governing body in a fiscal year for the purpose described in section 220503(15)—

''(I) not less than 50 percent shall be used for processing the investigation and resolution of allegations described in subparagraph (A); and

''(II) not more than 10 percent may be used for executive compensation of officers and directors of the Center.

''(ii) RESERVE FUNDS.—

''(I) IN GENERAL.—If, after the Center uses the amounts as allocated under clause (i), the Center does not use the entirety of the remaining amounts for the purpose described in subparagraph (A), the Center may retain not more than 25 percent of such amounts as reserve funds.

''(II) RETURN OF FUNDS.—The Center shall return to the corporation and national governing bodies any amounts, proportional to the contributions of the corporation and national governing bodies, that remain after the retention described in subclause (I).

''(iii) LOBBYING AND FUNDRAISING.—Amounts made available to the Center under this paragraph may not be used for lobbying or fundraising expenses.

''(h) COMPLIANCE AUDITS.—

''(1) IN GENERAL.—Not less frequently than annually, the Center shall carry out an audit of the corporation and each national governing body—

''(A) to assess compliance with policies and procedures developed under this subchapter; and

''(B) to ensure that consistent training relating to the prevention of child abuse is provided to all staff of the corporation and national governing bodies who are in regular contact with amateur athletes and members who are minors subject to parental consent.

''(2) CORRECTIVE MEASURES.—

''(A) IN GENERAL.—The Center may impose on the corporation or a national governing body a corrective measure to achieve compliance with the policies and procedures developed under this subchapter or the training requirement described in paragraph (1)(B).

''(B) INCLUSIONS.—A corrective measure imposed under subparagraph (A) may include the implementation of an athlete safety program or specific policies, additional compliance audits or training, and the imposition of a probationary period.

''(C) ENFORCEMENT.—

''(i) IN GENERAL.—On request by the Center, the corporation shall—

''(I) enforce any corrective measure required under subparagraph (A); and

''(II) report the status of enforcement with respect to a national governing body within a reasonable timeframe.

''(ii) METHODS.—The corporation may enforce a corrective measure through any means available to the corporation, including by withholding funds from a national governing body, limiting the participation of the national governing body in corporation events, and decertifying a national governing body.

''(iii) EFFECT OF NONCOMPLIANCE.—If the corporation fails to enforce a corrective measure within 72 hours of a request under clause (i), the Center may submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives a report describing the noncompliance.

''(3) ANNUAL REPORT.—

''(A) IN GENERAL.—Not less frequently than annually, the Center shall submit to Congress a report on the findings of the audit under paragraph (1) for the preceding year and the status of any corrective measures imposed as a result of the audit.

''(B) PUBLIC AVAILABILITY.—

''(i) IN GENERAL.—Each report under subparagraph (A) shall be made available to the public.

''(ii) PERSONALLY IDENTIFIABLE INFORMATION.—A report made available to the public shall not include the personally identifiable information of any individual.

''(i) REPORTS TO CORPORATION.—Not later than 30 days after the end of each calendar quarter that begins after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, the Center shall submit to the corporation a statement of the following:

''(1) The number and nature of misconduct complaints referred to the Center, by sport.

''(2) The number and type of pending misconduct complaints under investigation by the Center.

''(3) The number of misconduct complaints for which an investigation was terminated or otherwise closed by the Center.

''(4) The number of such misconduct complaints reported to law enforcement agencies by the Center for further investigation.

''(5) The number of discretionary cases accepted or declined by the Center, by sport.

''(6) The average time required for resolution of such cases and misconduct complaints.

''(7) Information relating to the educational activities and trainings conducted by the office of education and outreach of the Center during the preceding quarter, including the number of educational activities and trainings developed and provided.

''(j) CERTIFICATIONS OF INDEPENDENCE.—

''(1) IN GENERAL.—Not later than 180 days after the end of a fiscal year, the Comptroller General of the United States shall make available to the public a certification relating to the Center's independence from the corporation.

''(2) ELEMENTS.—A certification required by paragraph (1) shall include the following:

''(A) A finding of whether a violation of a prohibition on employment of former employees or board members of the corporation under subsection (f) has occurred during the year preceding the certification.

''(B) A finding of whether an executive or attorney for the Center has had an inappropriate conflict of interest during that year.

''(C) A finding of whether the corporation has interfered in, or attempted to influence the outcome of, an investigation by the Center.

''(D) Any recommendations of the Comptroller General for resolving any potential risks to the Center's independence from the corporation.

''(3) AUTHORITY OF COMPTROLLER GENERAL.—

''(A) IN GENERAL.—The Comptroller General may take such reasonable steps as, in the view of the Comptroller General, are necessary to be fully informed about the operations of the corporation and the Center.

''(B) SPECIFIC AUTHORITIES.—The Comptroller General shall have—

''(i) access to, and the right to make copies of, any and all nonprivileged books, records, accounts, correspondence, files, or other documents or electronic records, including emails, of officers, agents, and employees of the Center or the corporation; and

''(ii) the right to interview any officer, employee, agent, or consultant of the Center or the corporation.

''(C) TREATMENT OF PRIVILEGED INFORMATION.—If, under this subsection, the Comptroller General seeks access to information contained within privileged documents or materials in the possession of the Center or the corporation, the Center or the corporation, as the case may be, shall, to the maximum extent practicable, provide the Comptroller General with the information without compromising the applicable privilege.''.

(2) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) Subchapter IV of chapter 2205 of title 36, United States Code, as redesignated by section 5(a)(1), is amended in the subchapter heading by striking ''SAFE SPORT'' and inserting ''SAFESPORT''.

(B) The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220541 and inserting the following:

''220541. Designation of United States Center for SafeSport.''.

(b) ADDITIONAL DUTIES OF CENTER.—Section 220542 of title 36, United States Code, is amended—

(1) in the section heading, by striking the period at the end; and

(2) in subsection (a)—

(A) in paragraph (1), by striking ''; and'' and inserting a semicolon; and

(B) in paragraph (2)—

(i) in subparagraph (A), by striking clauses (i) and (ii) and inserting the following:

''(i) law enforcement consistent with section 226 of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341); and

''(ii) the Center, whenever such members or adults learn of facts leading them to suspect reasonably that an amateur athlete who is a minor has suffered an incident of child abuse;'';

(ii) by redesignating subparagraphs (B) through (F) as subparagraphs (E) through (I), respectively;

(iii) by inserting after subparagraph (A) the following:

''(B) a requirement that the Center shall immediately report to law enforcement consistent with section 226 of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341) any allegation of child abuse of an amateur athlete who is a minor, including any report of such abuse submitted to the Center by a minor or by any person who is not otherwise required to report such abuse;

''(C) 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the Center from assisting a member or former member in obtaining a new job (except for the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law;

''(D) a requirement that the Center, including any officer, agent, attorney, or staff member of the Center, shall not take any action to notify an alleged perpetrator of abuse of an amateur athlete of any ongoing investigation or accusation unless—

''(i) the Center has reason to believe an imminent hazard will result from failing to so notify the alleged perpetrator; or

''(ii) law enforcement—

''(I) authorizes the Center to take such action; or

''(II) declines or fails to act on, or fails to respond to the Center with respect to, the allegation within 72 hours after the time at which the Center reports to law enforcement under subparagraph (B);'';

(iv) in subparagraph (F), as so redesignated, by inserting '', including communications,'' after ''interactions'';

(v) by amending subparagraph (G), as so redesignated, to read as follows:

''(G) procedures to prohibit retaliation by the corporation or any national governing body against any individual who makes—

''(i) a report under subparagraph (A) or (E); or

''(ii) any other report relating to abuse of any amateur athlete, including emotional, physical, and sexual abuse;'';

(vi) in subparagraph (H), as so redesignated, by striking ''; and'' and inserting a semicolon;

(vii) in subparagraph (I), as so redesignated, by striking the period at the end of clause (ii) and inserting a semicolon; and

(viii) by adding at the end the following:

''(J) a prohibition on the use in a decision of the Center under section 220541(a)(1)(D) of any evidence relating to other sexual behavior or the sexual predisposition of the alleged victim, or the admission of any such evidence in arbitration, unless the probative value of the use or admission of such evidence, as determined by the Center or the arbitrator, as applicable, substantially outweighs the danger of—

''(i) any harm to the alleged victim; and

''(ii) unfair prejudice to any party; and

''(K) training for investigators on appropriate methods and techniques for ensuring sensitivity toward alleged victims during interviews and other investigative activities.''.

(c) RECORDS, AUDITS, AND REPORTS.—Section 220543 of title 36, United States Code, is amended—

(1) by striking subsection (b) and inserting the following:

''(b) AUDITS AND TRANSPARENCY.—

''(1) ANNUAL AUDIT.—

''(A) IN GENERAL.—Not less frequently than annually, the financial statements of the Center for the preceding fiscal year shall be audited by an independent auditor in accordance with generally accepted accounting principles—

''(i) to ensure the adequacy of the internal controls of the Center; and

''(ii) to prevent waste, fraud, or misuse of funds transferred to the Center by the corporation or the national governing bodies.

''(B) LOCATION.—An audit under subparagraph (A) shall be conducted at the location at which the financial statements of the Center normally are kept.

''(C) REPORT.—Not later than 180 days after the date on which an audit under subparagraph (A) is completed, the independent auditor shall issue an audit report.

''(D) CORRECTIVE ACTION PLAN.—

''(i) IN GENERAL.—On completion of the audit report under subparagraph (C) for a fiscal year, the Center shall prepare, in a separate document, a corrective action plan that responds to any corrective action recommended by the independent auditor.

''(ii) MATTERS TO BE INCLUDED.—A corrective action plan under clause (i) shall include the following for each such corrective action:

''(I) The name of the person responsible for the corrective action.

''(II) A description of the planned corrective action.

''(III) The anticipated completion date of the corrective action.

''(IV) In the case of a recommended corrective action based on a finding in the audit report with which the Center disagrees, or for which the Center determines that corrective action is not required, an explanation and a specific reason for noncompliance with the recommendation.

''(2) ACCESS TO RECORDS AND PERSONNEL.—With respect to an audit under paragraph (1), the Center shall provide the independent auditor access to all records, documents, and personnel and financial statements of the Center necessary to carry out the audit.

''(3) PUBLIC AVAILABILITY.—

''(A) IN GENERAL.—The Center shall make available to the public on an easily accessible internet website of the Center—

''(i) each audit report under paragraph (1)(C);

''(ii) the Internal Revenue Service Form 990 of the Center for each year, filed under section 501(c) of the Internal Revenue Code of 1986; and

''(iii) the minutes of the quarterly meetings of the board of directors of the Center.

''(B) PERSONALLY IDENTIFIABLE INFORMATION.—An audit report or the minutes made available under subparagraph (A) shall not include the personally identifiable information of any individual.

''(4) RULE OF CONSTRUCTION.—For purposes of this subsection, the Center shall be considered a private entity.

''(c) REPORT.—The Center shall submit an annual report to Congress, including—

''(1) a strategic plan with respect to the manner in which the Center shall fulfill its duties under sections 220541 and 220542;

''(2) a detailed description of the efforts made by the Center to comply with such strategic plan during the preceding year;

''(3) any financial statement necessary to present fairly the assets, liabilities, and surplus or deficit of the Center for the preceding year;

''(4) an analysis of the changes in the amounts of such assets, liabilities, and surplus or deficit during the preceding year;

''(5) a detailed description of Center activities, including—

''(A) the number and nature of misconduct complaints referred to the Center;

''(B) the total number and type of pending misconduct complaints under investigation by the Center;

''(C) the number of misconduct complaints for which an investigation was terminated or otherwise closed by the Center; and

''(D) the number of such misconduct complaints reported to law enforcement agencies by the Center for further investigation;

''(6) a detailed description of any complaint of retaliation made during the preceding year by an officer or employee of the Center or a contractor or subcontractor of the Center that includes—

''(A) the number of such complaints; and

''(B) the outcome of each such complaint;

''(7) information relating to the educational activities and trainings conducted by the office of education and outreach of the Center during the preceding year, including the number of educational activities and trainings developed and provided; and

''(8) a description of the activities of the Center.

''(d) DEFINITIONS.—In this section—

''(1) 'audit report' means a report by an independent auditor that includes—

''(A) an opinion or a disclaimer of opinion that presents the assessment of the independent auditor with respect to the financial records of the Center, including whether such records are accurate and have been maintained in accordance with generally accepted accounting principles;

''(B) an assessment of the internal controls used by the Center that describes the scope

of testing of the internal controls and the results of such testing; and

''(C) a compliance assessment that includes an opinion or a disclaimer of opinion as to whether the Center has complied with the terms and conditions of subsection (b); and

''(2) 'independent auditor' means an independent certified public accountant or independent licensed public accountant, certified or licensed by a regulatory authority of a State or a political subdivision of a State, who meets the standards specified in generally accepted accounting principles.''.

SEC. 9. EXEMPTION FROM AUTOMATIC STAY IN BANKRUPTCY CASES.

Section 362(b) of title 11, United States Code, is amended—

(1) in paragraph (27), by striking ''and'' at the end;

(2) in paragraph (28), by striking the period at the end and inserting ''; and''; and

(3) by inserting after paragraph (28) the following:

''(29) under subsection (a)(1) of this section, of any action by—

''(A) an amateur sports organization, as defined in section 220501(b) of title 36, to replace a national governing body, as defined in that section, under section 220528 of that title; or

''(B) the corporation, as defined in section 220501(b) of title 36, to revoke the certification of a national governing body, as defined in that section, under section 220521 of that title.''.

SEC. 10. ENHANCED CHILD ABUSE REPORTING.

Section 226(c)(9) of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341(c)(9)) is amended—

(1) by striking ''adult who is authorized'' and inserting the following: ''adult who—

''(A) is authorized'';

(2) in subparagraph (A), as so designated, by inserting ''or'' after the semicolon at the end; and

(3) by adding at the end the following:

''(B) is an employee or representative of the United States Center for SafeSport;''.

SEC. 11. COMMISSION ON THE STATE OF U.S. OLYMPICS AND PARALYMPICS.

(a) ESTABLISHMENT.—There is established within the legislative branch a commission, to be known as the ''Commission on the State of U.S. Olympics and Paralympics'' (referred to in this section as the ''Commission'').

(b) COMPOSITION.—

(1) IN GENERAL.—The Commission shall be composed of 16 members, of whom—

(A) 4 members shall be appointed by the chairman of the Committee on Commerce, Science, and Transportation of the Senate;

(B) 4 members shall be appointed by the ranking member of the Committee on Commerce, Science, and Transportation of the Senate;

(C) 4 members shall be appointed by the chairman of the Committee on Energy and Commerce of the House of Representatives; and

(D) 4 members shall be appointed by the ranking member of the Committee on Energy and Commerce of the House of Representatives.

(2) CO-CHAIRS.—Of the members of the Commission—

(A) 1 co-chair shall be designated by the chairman of the Committee on Commerce, Science, and Transportation of the Senate; and

(B) 1 co-chair shall be designated by the chairman of the Committee on Energy and Commerce of the House of Representatives.

(3) QUALIFICATIONS.—

(A) IN GENERAL.—Each member appointed to the Commission shall have the following qualifications:

(i) Experience in 1 or more of the following:

(I) Amateur, Olympic and Paralympic, or professional athletics.

(II) Elite athletic coaching.

(III) Public service relating to sports.

(IV) Professional advocacy for increased minority participation in sports.

(V) Olympic and Paralympic sports administration or professional sports administration.

(ii) Expertise in bullying prevention and the promotion of a healthy organizational culture.

(B) OLYMPIC OR PARALYMPIC ATHLETES.—Not fewer than 8 members appointed under paragraph (1) shall be current or former Olympic or Paralympic athletes.

(c) INITIAL MEETING.—Not later than 30 days after the date on which the last member is appointed under paragraph (1), the Commission shall hold an initial meeting.

(d) QUORUM.—11 members of the Commission shall constitute a quorum.

(e) NO PROXY VOTING.—Proxy voting by members of the Commission shall be prohibited.

(f) STAFF.—The co-chairs of the Commission shall appoint an executive director of the Commission, and such staff as appropriate, with compensation.

(g) PUBLIC HEARINGS.—The Commission shall hold 1 or more public hearings.

(h) TRAVEL EXPENSES.—Members of the Commission shall serve without pay, but shall receive travel expenses in accordance with sections 5702 and 5703 of title 5, United States Code.

(i) DUTIES OF COMMISSION.—

(1) STUDY.—

(A) IN GENERAL.—The Commission shall conduct a study on matters relating to the state of United States participation in the Olympic and Paralympic Games.

(B) MATTERS STUDIED.—The study under subparagraph (A) shall include—

(i) a review of the most recent reforms undertaken by the United States Olympic and Paralympic Committee;

(ii) a description of proposed reforms to the structure of the United States Olympic and Paralympic Committee;

(iii) an assessment as to whether the board of directors of the United States Olympic and Paralympic Committee includes diverse members, including athletes;

(iv) an assessment of United States athlete participation levels in the Olympic and Paralympic Games;

(v) a description of the status of any United States Olympic and Paralympic Committee licensing arrangement;

(vi) an assessment as to whether the United States is achieving the goals for the Olympic and Paralympic Games set by the United States Olympic and Paralympic Committee;

(vii) an analysis of the participation in amateur athletics of—

(I) women;

(II) disabled individuals; and

(III) minorities;

(viii) a description of ongoing efforts by the United States Olympic and Paralympic Committee to recruit the Olympic and Paralympic Games to the United States;

(ix) an evaluation of the functions of the national governing bodies (as defined in section 220501 of title 36, United States Code) and an analysis of the responsiveness of the national governing bodies to athletes with respect to the duties of the national governing bodies under section 220524(a)(3) of title 36, United States Code; and

(x) an assessment of the finances and the financial organization of the United States Olympic and Paralympic Committee.

(2) REPORT.—

(A) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act, the Commission shall submit to Congress a report on the results of the study conducted under paragraph (1), including a detailed statement of findings, conclusions, recommendations, and suggested policy changes.

(B) PUBLIC AVAILABILITY.—The report required by subparagraph (A) shall be made available to the public on an internet website of the United States Government that is available to the public.

(j) POWERS OF COMMISSION.—

(1) SUBPOENA AUTHORITY.—The Commission may subpoena an individual the testimony of whom may be relevant to the purpose of the Commission.

(2) FURNISHING INFORMATION.—On request by the executive director of the Commission, the head of a Federal agency shall furnish information to the Commission.

(k) TERMINATION OF COMMISSION.—The Commission shall terminate 90 days after the date on which the Commission submits the report under subsection (i)(2).

(l) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated such sums as may be necessary to carry out this section.

SEC. 12. SEVERABILITY.

If any provision of this Act, or an amendment made by this Act, is determined to be unenforceable or invalid, the remaining provisions of this Act and the amendments made by this Act shall not be affected.

TEXT OF AMENDMENTS

SA 2595. Ms. ERNST submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. CALCULATION OF MAXIMUM LOAN AMOUNT FOR FARMERS AND RANCHERS UNDER THE PAYCHECK PROTECTION PROGRAM.

Section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) is amended—

(1) in subparagraph (E), in the matter preceding clause (i), by striking ''During'' and inserting ''Except as provided in subparagraph (T), during''; and

(2) by adding at the end the following:

''(T) CALCULATION OF MAXIMUM LOAN AMOUNT FOR FARMERS AND RANCHERS.—

''(i) DEFINITION.—In this subparagraph, the term 'covered recipient' means an eligible recipient that—

''(I) operates as a sole proprietorship or as an independent contractor, or is an eligible self-employed individual;

''(II) reports farm income or expenses on a Schedule F (or any equivalent successor schedule); and

''(III) was in business during the period beginning on February 15, 2019, and ending on June 30, 2019.

''(ii) NO EMPLOYEES.—With respect to covered recipient without employees, the maximum covered loan amount shall be the lesser of—

''(I) the sum of—

''(aa) the product obtained by multiplying—

''(AA) the gross income of the covered recipient in 2019, as reported on a Schedule F (or any equivalent successor schedule), that is not more than $100,000, divided by 12; and

''(BB) 2.5; and

''(bb) the outstanding amount of a loan under subsection (b)(2) that was made during the period beginning on January 31, 2020, and ending on April 3, 2020, that the borrower intends to refinance under the covered loan, not including any amount of any advance under the loan that is not required to be repaid; or

''(II) $2,000,000.

''(iii) WITH EMPLOYEES.—With respect to a covered recipient with employees, the maximum covered loan amount shall be calculated using the formula described in subparagraph (E), except that the gross income of the covered recipient described in clause (ii)(I)(aa)(AA) of this subparagraph, as divided by 12, shall be added to the sum calculated under subparagraph (E)(i)(I).

''(iv) RECALCULATION.—A lender that made a covered loan to a covered recipient before the date of enactment of this subparagraph may, at the request of the covered recipient—

''(I) recalculate the maximum loan amount applicable to that covered loan based on the formula described in clause (ii) or (iii), as applicable, if doing so would result in a larger covered loan amount; and

''(II) provide the covered recipient with additional covered loan amounts based on that recalculation.''.

SA 2596. Mr. MORAN submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EXTENDED AVAILABILITY FOR CORONAVIRUS RELIEF FUND PAYMENTS USED IN ACCORDANCE WITH A QUALIFYING ECONOMIC DEVELOPMENT PLAN.

Section 601(d) of the Social Security Act (42 U.S.C. 801(d)) is amended to read as follows:

''(d) USE OF FUNDS; AVAILABILITY.—

''(1) IN GENERAL.—A State, Tribal government, and unit of local government shall use the funds provided under a payment made under this section to cover only those costs of the State, Tribal government, or unit of local government that—

''(A) are necessary expenditures incurred due to the public health emergency with respect to the Coronavirus Disease 2019 (COVID–19);

''(B) were not accounted for in the budget most recently approved as of the date of enactment of this section for the State or government; and

''(C) subject to paragraph (2), were incurred during the period that begins on March 1, 2020, and ends on December 30, 2020.

''(2) EXTENDED AVAILABILITY FOR FUNDS USED IN ACCORDANCE WITH A QUALIFYING ECONOMIC DEVELOPMENT PLAN.—

''(A) IN GENERAL.—Notwithstanding subparagraph (C) of paragraph (1), funds provided under a payment made under this section shall remain available to a State, Tribal government, or unit of local government until December 31, 2022, for obligation by the State or government—

''(i) for costs of the State or government that—

''(I) are necessary expenditures incurred due to the public health emergency with respect to the Coronavirus Disease 2019 (COVID–19); and

''(II) were not accounted for in the budget most recently approved as of the date of enactment of this section for the State or government; and

''(ii) in accordance with a qualifying economic development plan.

''(B) AVAILABILITY.—Any funds obligated under subparagraph (A) as of the date specified in such subparagraph shall remain available until expended.

''(C) CERTIFICATION REQUIREMENT.—In order to use funds provided under a payment under this section in accordance with this paragraph, a State, Tribal government, or unit of local government shall provide the Secretary with a certification signed by the Chief Executive of the State or government that the proposed uses of the funds under the qualifying economic development plan are consistent with the requirements of subparagraph (A)(i).

''(D) QUALIFYING ECONOMIC DEVELOPMENT PLAN.—For purposes of subparagraph (A), the term 'qualifying economic development plan' means, with respect to a State or government, a plan for using funds paid or distributed to the State or government under this section to respond to the COVID–19 public health emergency that is approved by the State or the governing board of a university before December 30, 2020.''.

SA 2597. Mr. SCOTT of South Carolina submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. DIRECT APPROPRIATION TO MBDA.

(a) DEFINITION.—In this section, the term ''small business concern'' has the meaning given the term in section 3 of the Small Business Act (15 U.S.C. 632).

(b) APPROPRIATION.—There is appropriated, out of amounts in the Treasury not otherwise appropriated, for the fiscal year ending September 30, 2020, $10,000,000 under the heading ''Department of Commerce—Minority Business Development Agency'' for minority business centers of the Minority Business Development Agency of the Department of Commerce to provide technical assistance to small business concerns.

(c) EMERGENCY DESIGNATION.—

(1) IN GENERAL.—The amounts provided under this section are designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(g)).

(2) DESIGNATION IN SENATE.—In the Senate, this section is designated as an emergency requirement pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018.

SA 2598. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. USE OF PPP LOANS FOR SUPPLIER COSTS.

(a) IN GENERAL.—Section 7(a)(36)(F)(i) of the Small Business Act (15 U.S.C. 636(a)(36)(F)(i)) is amended—

(1) in subclause (VI), by striking ''and'' at the end;

(2) in subclause (VII), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(VIII) covered supplier costs, as defined in section 1106(a) of the CARES Act (15 U.S.C. 9005(a)).''.

(b) LOAN FORGIVENESS.—Section 1106 of the CARES Act (15 U.S.C. 9005) is amended—

(1) in subsection (a)—

(A) by redesignating paragraphs (5), (6), (7), and (8) as paragraphs (6), (7), (8), and (9), respectively;

(B) by inserting after paragraph (4) the following:

''(5) the term 'covered supplier cost' means an expenditure made by an entity to a supplier of goods pursuant to a contract in effect before February 15, 2020 for the supply of goods that are essential to the operations of the entity at the time at which the expenditure is made;'';

(C) in paragraph (8), as so redesignated—

(i) in subparagraph (C), by striking ''and'' at the end; and

(ii) by adding at the end the following:

''(E) covered supplier costs; and'';

(2) in subsection (b) by adding at the end the following:

''(5) Any covered supplier cost.'';

(3) in subsection (d)(8), by inserting ''any payment on any covered supplier cost,'' after ''rent obligation,''; and

(4) in subsection (e)—

(A) in paragraph (2), by inserting ''payments on covered supplier costs'' after ''lease obligations,''; and

(B) in paragraph (3)(B), by inserting ''make payments on covered supplier costs,'' after ''rent obligation,''.

(c) EFFECTIVE DATE; APPLICABILITY.—The amendments made by section shall be effective as if included in the CARES Act (Public Law 116–136) and shall apply to any loan made pursuant to section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)).

SA 2599. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. ELIMINATION OF MAINTENANCE OF EFFORT REQUIREMENTS.

(a) IN GENERAL.—Section 6008 of the Families First Coronavirus Response Act (Public Law 116–127) is amended—

(1) in subsection (b), by striking ''with respect to a quarter'' and all that follows through ''the State does not'' and inserting ''with respect to a quarter, if the State does not''; and

(2) by striking subsection (d).

(b) EFFECTIVE DATE.—The amendment made by subsection (a)(1) shall take effect as if included in the enactment of the Families First Coronavirus Response Act (Public Law 116–127).

SA 2600. Mr. LEE submitted an amendment intended to be proposed to

amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. STATE VALIDATION AND APPROVAL OF IN VITRO DIAGNOSTIC TESTS.

(a) IN GENERAL.—Notwithstanding any other provision of law, including any provision of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 301 et seq.) or section 353 of the Public Health Service Act (42 U.S.C. 263a), a State may validate and approve for use in the State an in vitro diagnostic test (as defined in section 809.3 of title 21, Code of Federal Regulations (or successor regulations)), for use and distribution within the applicable State only, in accordance with such processes and standards as the State may require.

(b) NO REQUIREMENT TO NOTIFY FDA.—The manufacturer of an in vitro diagnostic test validated and approved by a State under subsection (a) shall not be required, with respect to the use of such test in such State, to notify the Food and Drug Administration, receive approval from the Food and Drug Administration, or report results to the Food and Drug Administration.

(c) NO APPLICABILITY OF CLIA REQUIREMENT.—The requirements of section 353 of the Public Health Service Act (42 U.S.C. 263a) shall not apply with respect to a test validated and approved by a State, to the extent such test is used only within that State.

SA 2601. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. MAIN STREET LENDING PROGRAM.

(a) IN GENERAL.—Not later than 7 days after the date of enactment of this Act, the Board of Governors of the Federal Reserve System shall make the following changes to the Main Street Lending Program established by the Board of Governors:

(1) Eliminate any minimum loan amount under the Program.

(2) Eliminate any servicing fee imposed on a lender with respect to the initiation or purchase of any loan under the Program.

(3) Provide that—

(A) there shall not be a minimum interest rate for any loan covered under the Program; and

(B) the Board of Governors may establish a maximum interest rate for any loan covered under the Program.

(b) TRANSFER OF APPROPRIATIONS.—

(1) TRANSFER.—Effective on the date that is 7 days after the date of enactment of this Act, and notwithstanding any other provision of law, the Secretary of the Treasury shall transfer to the fund established under section 5302(a)(1) of title 31, United States Code, from the unobligated balances of the amounts made available under section 1107(a)(1) of the CARES Act (15 U.S.C. 9006(a)(1)), the lesser of the amount of such unobligated balances or $6,000,000,000.

(2) CHARACTERISTICS OF TRANSFERRED AMOUNTS.—The amounts transferred under paragraph (1)—

(A) notwithstanding section 5302(a)(1) of title 31, United States Code, shall be available to the Secretary of the Treasury, without further appropriation, to, in accordance with the changes made by subsection (a), make loans, loan guarantees, and other investments under the Main Street Lending Program established by the Board of Governors of the Federal Reserve System; and

(B) shall remain available until January 1, 2026.

SA 2602. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. STUDY, REPORT, AND MODELING TOOL RELATING TO THE TAX EQUIVALENT AMOUNT OF PAYMENTS UNDER THE PAYMENT IN LIEU OF TAXES PROGRAM.

(a) FINDINGS.—Congress finds that—

(1) Congress agreed with recommendations of a Federal commission that, if Federal land is to be retained by the Federal Government and not contribute to the tax bases of the local governments within the jurisdictions of which the land is located, compensation should be offered to those local governments to make up for the presence of nontaxable land within the jurisdictions of those local governments;

(2) local governments rely on the stability of property tax revenues, but no precise figure can be given in advance for the authorization level of the payment in lieu of taxes program;

(3) Federal agencies have determined that payments to local governments under the payment in lieu of taxes program are far lower than what would be due to local governments under tax equivalency;

(4) payments under the payment in lieu of taxes program help local governments carry out vital services, such as firefighting, police protection, public education, construction of public schools, construction of roads, and search-and-rescue operations; and

(5) the technology exists to more accurately determine what the taxable value of land held by the Federal Government would be if that land were taxable by local governments.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Federal Government should—

(1) determine the amount that payments under the payment in lieu of taxes program would be if those payments were equivalent to the tax revenues that local governments would otherwise receive for the same land; and

(2) compensate those local governments accordingly.

(c) DEFINITIONS.—In this section:

(1) PAYMENT IN LIEU OF TAXES PROGRAM.—The term ''payment in lieu of taxes program'' means the payment in lieu of taxes program established under chapter 69 of title 31, United States Code.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(3) TAX EQUIVALENT AMOUNT.—The term ''tax equivalent amount'', with respect to payments under the payment in lieu of taxes program, means the amount of property tax revenues that would be generated for local governments (including the tax revenues of States, counties, cities, and other taxing jurisdictions, as applicable) for the Federal land eligible for those payments if that land were privately owned.

(d) STUDY, REPORT, AND MODEL ON TAX EQUIVALENT AMOUNT OF PILT PAYMENTS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary, in consultation with the Secretary of Agriculture and the head of any other Federal agency that the Secretary determines to be appropriate, shall—

(A) conduct a study—

(i) to evaluate all land eligible for payments under the payment in lieu of taxes program as of the date of enactment of this Act;

(ii) to determine the market value of that land in a fair and open market; and

(iii) to determine the tax equivalent amount of payments under the payment in lieu of taxes program for that land;

(B) submit to Congress and make publicly available a report describing—

(i) the results of the study conducted under subparagraph (A); and

(ii) how payments under the payment in lieu of taxes program could more accurately reflect the tax equivalent amount; and

(C) develop a modeling tool that—

(i) accounts for reasonable and customary valuation factors and assumptions; and

(ii) calculates, in a timely manner, for every acre of Federal land eligible for payments under the payment in lieu of taxes program—

(I) the market value of that land; and

(II) the tax equivalent amount of payments under the payment in lieu of taxes program for that land.

(2) REQUIREMENTS.—

(A) STUDY.—In conducting the study under paragraph (1)(A), the Secretary shall consider any studies conducted by States, counties, or other taxing jurisdictions pertaining to the tax equivalent amount of payments under the payment in lieu of taxes program.

(B) MODELING TOOL.—The modeling tool developed under paragraph (1)(C) shall—

(i) accurately calculate, in real time, the market value of every acre of Federal land in the United States;

(ii) enable an employee or agent of the Department of the Interior to manually modify factors relating to the valuation model used by the modeling tool to calculate, in real time, the market value of Federal land based on new assumptions relating to that land;

(iii) provide technical anchors relating to market data—

(I) to ensure the ongoing integrity of the modeling tool; and

(II) to ensure that the land values determined by the modeling tool are defensible and based on sound and generally accepted valuation methodologies;

(iv) assimilate, in a visual interface—

(I) market data, including the availability of mineral extraction, energy production, water management, timber management, agricultural uses, and recreational uses with respect to the applicable land; and

(II) geographic information systems (commonly known as ''GIS'') data relating to all Federal land eligible for payments under the payment in lieu of taxes program;

(v) tie the model used by the tool to market sources, allowing the model to automatically adjust and reflect current market conditions; and

(vi) allow a user of the modeling tool—

(I) to estimate the value of Federal land as that land is currently used; and

(II) to estimate changes in that value due to future uses under various scenarios under private or public ownership.

(3) CONTRACTS AND CONSULTANTS.—The Secretary may contract or consult with any public or private entity to analyze data, conduct research, or develop a model that would contribute to the report and modeling tool developed by the Secretary under this subsection.

SA 2603. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

Beginning on page 2, strike line 13 and all that follows through page 5, line 18, and insert the following:

''(3) AMOUNT OF FEDERAL PANDEMIC UNEMPLOYMENT COMPENSATION.—

''(A) IN GENERAL.—The amount specified in this paragraph is the following amount with respect to an individual:

''(i) For weeks of unemployment beginning after the date on which an agreement is entered into under this section and ending on or before July 31, 2020, $600.

''(ii) For weeks of unemployment beginning after the last week under clause (i) and ending before December 31, 2020, an amount equal to one of the following, as determined by the State for all individuals:

''(I) The applicable flat option amount described in subparagraph (D).

''(II) An amount (not to exceed the applicable cap amount described in subparagraph (D)) equal to—

''(aa) two-thirds of the individual's average weekly wages; minus

''(bb) the individual's base amount (determined prior to any reductions or offsets).

''(B) BASE AMOUNT.—For purposes of this paragraph, the term 'base amount' means, with respect to an individual, an amount equal to—

''(i) for weeks of unemployment under the pandemic unemployment assistance program under section 2102, the amount determined under subsection (d)(1)(A)(i) or (d)(2) of such section 2102, as applicable; or

''(ii) for all other weeks of unemployment, the amount determined under paragraph (1)(A) of this subsection.

''(C) AVERAGE WEEKLY WAGES.—

''(i) IN GENERAL.—Subject to clause (ii), for purposes of this paragraph, the term 'average weekly wages' means, with respect to an individual, the following:

''(I) If the State computes the individual weekly unemployment compensation benefit amount based on an individual's average weekly wages in a base period, an amount equal to the individual's average weekly wages used in such computation.

''(II) If the State computes the individual weekly unemployment compensation benefit amount based on high quarter wages or a formula using wages across some but not all quarters in a base period, an amount equal to 1/13 of such high quarter wages or average wages of the applicable quarters used in the computation for the individual.

''(III) If the State uses computations other than the computations under subclause (I) or (II) for the individual weekly unemployment compensation benefit amount, or for computations of the weekly benefit amount under the pandemic unemployment assistance program under section 2102, as described in subsection (d)(1)(A)(i) or (d)(2) of such section 2102, for which subclause (I) or (II) do not apply, an amount equal to 1/52 of the sum of all base period wages.

''(ii) SPECIAL RULE.—If more than one of the methods of computation under subclauses (I), (II), and (III) of clause (i) are applicable to a State, then such term shall mean the amount determined under the applicable subclause of clause (i) that results in the highest amount of average weekly wages.

''(D) APPLICABLE FLAT OPTION AND CAP AMOUNT.—The applicable flat option amount and the applicable cap amount described in this subparagraph is as follows:

''(i) For weeks of unemployment beginning after the last week under subparagraph (A)(i) and ending before August 31, 2020—

''(I) the applicable flat option amount is $200; and

''(II) the applicable cap amount is $500.

''(ii) For weeks of unemployment beginning after the last week under clause (i) and ending on or before September 30, 2020—

''(I) the applicable flat option amount is $150; and

''(II) the applicable cap amount is $400.

''(iii) For weeks of unemployment beginning after the last week under clause (ii) and ending on or before November 1, 2020—

''(I) the applicable flat option amount is $100; and

''(II) the applicable cap amount is $300.

''(iv) For weeks of unemployment beginning after the last week under clause (iii) and ending on or before November 30, 2020—

''(I) the applicable flat option amount is $50; and

''(II) the applicable cap amount is $200.

''(v) For weeks of unemployment beginning after the last week under clause (iv) and ending on or before December 31, 2020—

''(I) the applicable flat option amount is $0; and

''(II) the applicable cap amount is $100.''.

SA 2604. Mr. CORNYN submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. MONETIZATION OF GENERAL BUSINESS CREDITS.

(a) IN GENERAL.—Section 38 of the Internal Revenue Code of 1986 is amended by inserting after subsection (d) the following:

''(e) SPECIAL RULES FOR ELIGIBLE YEARS.—

''(1) IN GENERAL.—If a taxpayer elects the application of this subsection for any eligible taxable year—

''(A) the limitation under subsection (c) shall be increased by an amount equal to the excess (if any) of—

''(i) the credit allowed under subsection (a) for the taxable year (determined without regard to subsection (c)), over

''(ii) the credit allowed under subsection (a) for such taxable year (determined after the application of subsection (c)), and

''(B) the amount of the credit determined under section 41(a) for such taxable year shall be determined without regard to the limitation in the first sentence of section 41(g).

''(2) TREATMENT OF CREDIT.—For purposes of this title (other than this section and section 39), the excess of—

''(A) amount of the credit allowed solely by reason of this subsection, over

''(B) net income tax (as defined in subsection (c)(1)) reduced by credits allowable under subparts D (without regard to this subsection) and G,

shall be treated as an overpayment of tax for the taxable year.

''(3) ELIGIBLE TAXABLE YEAR.—For purposes of this subsection, the term 'eligible taxable year' means any taxable year ending in 2019 or 2020.

''(4) ELECTION.—An election under paragraph (1) shall be made at such time and in such manner as the Secretary may prescribe.

''(5) GUIDANCE AND REGULATIONS.—The Secretary shall prescribe such regulations and guidance as may be necessary to carry out this subsection, including regulations or guidance to prevent any double counting of credits allowable under this section.''.

(b) ALLOWANCE OF REFUNDS.—Section 1324(b)(2) of title 31, United States Code, is amended by inserting ''38(e)'' after ''36B''.

(c) CONFORMING AMENDMENT.—Section 6211(b)(4)(A) of the Internal Revenue Code of 1986 is amended by inserting ''38(e),'' after ''36B,''.

(d) CREDITS NOT SUBJECT TO SEQUESTRATION.—Section 255(d) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 905(d)) is amended—

(1) by striking ''Payments'' and inserting the following:

''(1) IN GENERAL.—Payments'', and

(2) by adding at the end the following:

''(2) GENERAL BUSINESS CREDITS.—Payments made under subsection (e) of section 38 of the Internal Revenue Code of 1986 shall be exempt from reduction under any order issued under this part.''.

(e) SPECIAL RULE FOR REFUNDS.—

(1) IN GENERAL.—For purposes of the Internal Revenue Code of 1986, a credit or refund for which an application described in paragraph (2)(A) is filed shall be treated as made under section 6411 of such Code.

(2) TENTATIVE REFUND.—

(A) APPLICATION.—A taxpayer may file an application for a tentative credit or refund of any amount for which a credit or refund for any taxable year is due by reason of section 38(e) of the Internal Revenue Code of 1986. Such application shall be in such manner and form as the Secretary of the Treasury (or the Secretary's delegate) may prescribe and shall—

(i) be verified in the same manner as an application under section 6411(a) of such Code,

(ii) be filed not later than the date that is 120 days after the date of the enactment of this Act, and

(iii) set forth—

(I) the amount of the credit claimed under section 38(e) of such Code for such taxable year, and

(II) the amount of the refund claimed.

(B) ALLOWANCE OF ADJUSTMENTS.—Within a period of 90 days from the date on which an application is filed under subparagraph (A), the Secretary of the Treasury (or the Secretary's delegate) shall—

(i) review the application,

(ii) determine the amount of the overpayment, and

(iii) apply, credit, or refund such overpayment,

in a manner similar to the manner provided in section 6411(b) of the Internal Revenue Code of 1986.

(C) CONSOLIDATED RETURNS.—The provisions of section 6411(c) of the Internal Revenue Code of 1986 shall apply to an adjustment under this paragraph to the same extent and manner as the Secretary of the

Treasury (or the Secretary's delegate) may provide.

(3) APPLICATION FOR ADJUSTMENT OF OVERPAYMENT OF ESTIMATED INCOME TAX.—An application for adjustment of overpayment of estimated income tax under section 6425 of the Internal Revenue Code of 1986 by reason of section 38(e) of such Code shall not fail to be treated as timely filed if filed not later than the date which is 120 days after the date of the enactment of this Act.

(f) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years ending after December 31, 2018.

SA 2605. Mr. RUBIO submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. LIMIT ON PPP LOANS TO ENTITIES THAT ARE CONNECTED TO THE PEOPLE'S REPUBLIC OF CHINA.

Section 7(a)(36)(A)(iv) of the Small Business Act (15 U.S.C. 636(a)(36)(A)(iv)) is amended to read as follows:

''(iv) the term 'eligible recipient'—

''(I) means an individual or entity that is eligible to receive a covered loan; and

''(II) does not include any business concern or entity—

''(aa) for which an entity created in or organized under the laws of the People's Republic of China or the Special Administrative Region of Hong Kong, or that has significant operations in the People's Republic of China or the Special Administrative Region of Hong Kong, owns or holds, directly or indirectly, not less than 20 percent of the economic interest of the business concern or entity, including as equity shares or a capital or profit interest in a limited liability company or partnership; or

''(bb) that retains, as a member of the board of directors of the business concern, a person who is a resident of the People's Republic of China;''.

SA 2606. Mrs. LOEFFLER submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. ADDITIONAL ELIGIBLE EXPENSES.

(a) ALLOWABLE USE OF PPP LOAN.—Section 7(a)(36)(F)(i) of the Small Business Act (15 U.S.C. 636(a)(36)(F)(i)) is amended—

(1) in subclause (VI), by striking ''and'' at the end;

(2) in subclause (VII), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(VIII) covered operations expenditures, as defined in section 1106(a) of the CARES Act (15 U.S.C. 9005(a)).''.

(b) LOAN FORGIVENESS.—Section 1106 of the CARES Act (15 U.S.C. 9005) is amended—

(1) in subsection (a)—

(A) by redesignating paragraphs (3) through (8) as paragraphs (4) through (9), respectively;

(B) by inserting after paragraph (2) the following:

''(3) the term 'covered operations expenditure' means a payment for any business software or cloud computing service that facilitates business operations, product or service delivery, the processing, payment, or tracking of payroll expenses, human resources, sales and billing functions, or accounting or tracking of supplies, inventory, records and expenses;''; and

(C) in paragraph (8), as so redesignated—

(i) in subparagraph (C), by striking ''and'' at the end; and

(ii) by adding at the end the following:

''(E) covered operations expenditures; and'';

(2) in subsection (b), by adding at the end the following:

''(5) Any covered operations expenditure.'';

(3) in subsection (d)(8), by inserting ''any payment on any covered operations expenditure,'' after ''rent obligation,''; and

(4) in subsection (e)—

(A) in paragraph (2), by inserting ''payments on covered operations expenditures,'' after ''lease obligations,''; and

(B) in paragraph (3)(B), by inserting ''make payments on covered operations expenditures,'' after ''rent obligation,''.

SA 2607. Ms. ERNST submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. BUSINESSES EMPLOYING ESSENTIAL CRITICAL INFRASTRUCTURE WORKERS.

(a) IN GENERAL.—Section 7(a)(36)(D)(iii) of the Small Business Act (15 U.S.C. 636(a)(36)(D)(iii) is amended—

(1) by striking ''During'' and inserting the following:

''(I) IN GENERAL.—During''; and

(2) by adding at the end the following:

''(II) BUSINESS CONCERNS EMPLOYING ESSENTIAL CRITICAL INFRASTRUCTURE WORKERS.—

''(aa) DEFINITION.—In this subclause, the term 'critical infrastructure business concern' means a business concern that—

''(AA) employs 1 or more essential critical infrastructure workers (as defined in guidance from the Secretary of Homeland Security);

''(BB) employs not more than 500 employees per physical location of the business concern; and

''(CC) has operations that, if organized as a separate business entity, would be assigned a North American Industry Classification System code beginning with 72 at the time of the disbursal.

''(bb) ELIGIBILITY.—During the covered period, any critical infrastructure business concern shall be eligible to receive a covered loan.

''(cc) APPLICATION OF LOAN AND FORGIVENESS REQUIREMENTS.—For purposes of determining the loan amount and applying all other requirements and terms under this paragraph or section 1106 of the CARES Act (15 U.S.C. 9005) with respect to a critical infrastructure business concern, the eligible recipient of the covered loan shall be that portion of the critical infrastructure business concern that, if organized as a separate business entity, would be assigned a North American Industry Classification System code beginning with 72.''.

SA 2608. Mr. YOUNG (for himself and Mr. SASSE) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. IMPROVEMENTS TO STATE UNEMPLOYMENT SYSTEMS AND STRENGTHENING PROGRAM INTEGRITY.

(a) UNEMPLOYMENT COMPENSATION SYSTEMS.—

(1) IN GENERAL.—Section 303(a) of the Social Security Act (42 U.S.C. 503(a)) is amended—

(A) in the matter preceding paragraph (1), by striking ''provision for—'' and inserting ''provision for each of the following:'';

(B) at the end of each of paragraphs (1) through (10) and paragraph (11)(B), by striking ''; and'' and inserting a period; and

(C) by adding at the end the following new paragraph:

''(13) The State system shall, in addition to meeting the requirements under section 1137, meet the following requirements:

''(A) The system shall be capable of handling a surge of claims that would represent a twentyfold increase in claims from January 2020 levels, occurring over a one-month period.

''(B) The system shall be capable of—

''(i) adjusting wage replacement levels for individuals receiving unemployment compensation;

''(ii) adjusting weekly earnings disregards, including the ability to adjust such disregards in relation to an individual's earnings or weekly benefit amount; and

''(iii) providing for wage replacement levels that vary based on the duration of benefit receipt.

''(C) The system shall have in place an automated process for receiving and processing claims for disaster unemployment assistance under section 410(a) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5177(a)), with flexibility to adapt rules regarding individuals eligible for assistance and the amount payable.

''(D) In the case of a State that makes payments of short-time compensation under a short-time compensation program (as defined in section 3306(v) of the Internal Revenue Code of 1986), the system shall have in place an automated process of receiving and processing claims for short-time compensation.

''(E) The system shall have in place an automated process for receiving and processing claims for—

''(i) unemployment compensation for Federal civilian employees under subchapter I of chapter 85 of title 5, United States Code;

''(ii) unemployment compensation for exservicemembers under subchapter II of chapter 85 of title 5, United States Code; and

''(iii) trade readjustment allowances under sections 231 through 233 of the Trade Act of 1974 (19 U.S.C. 2291–2293).''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall apply to weeks of unemployment beginning on or after the earlier of—

(A) the date the State changes its statutes, regulations, or policies in order to comply with such amendment; or

(B) October 1, 2023.

(b) ELECTRONIC TRANSMISSION OF UNEMPLOYMENT COMPENSATION INFORMATION.—Section 303 of the Social Security Act (42 U.S.C. 503) is amended by adding at the end the following new subsection:

''(n) ELECTRONIC TRANSMISSION OF UNEMPLOYMENT COMPENSATION INFORMATION.—

''(1) IN GENERAL.—Not later than October 1, 2022, the State agency charged with administration of the State law shall use a system developed (in consultation with stakeholders) and designated by the Secretary of Labor for automated electronic transmission of requests for information relating to unemployment compensation and the provision of such information between such agency and employers or their agents.

''(2) USE OF APPROPRIATED FUNDS.—The Secretary of Labor may use funds appropriated for grants to States under this title to make payments on behalf of States as the Secretary determines is appropriate for the use of the system described in paragraph (1).

''(3) EMPLOYER PARTICIPATION.— The Secretary of Labor shall work with the State agency charged with administration of the State law to increase the number of employers using this system and to resolve any technical challenges with the system.

''(4) REPORTS ON USE OF ELECTRONIC SYSTEM.—After the end of each fiscal year, on a date determined by the Secretary, each State shall report to the Secretary information on—

''(A) the proportion of employers using the designated system described in paragraph (1);

''(B) the reasons employers are not using such system; and

''(C) the efforts the State is undertaking to increase employer's use of such system.

''(5) ENFORCEMENT.—Whenever the Secretary of Labor, after reasonable notice and opportunity for hearing to the State agency charged with the administration of the State law, finds that there is a failure to comply substantially with the requirements of paragraph (1), the Secretary of Labor shall notify such State agency that further payments will not be made to the State until the Secretary of Labor is satisfied that there is no longer any such failure. Until the Secretary of Labor is so satisfied, such Secretary shall make no future certification to the Secretary of the Treasury with respect to the State.''.

(c) UNEMPLOYMENT COMPENSATION INTEGRITY DATA HUB.—

(1) IN GENERAL.—Section 303(a) of the Social Security Act (42 U.S.C. 503(a)), as amended by subsection (a), is amended by adding at the end the following new paragraph:

''(14) The State agency charged with administration of the State law shall use the system designated by the Secretary of Labor for cross-matching claimants of unemployment compensation under State law against any databases in the system to prevent and detect fraud and improper payments.''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall apply to weeks of unemployment beginning on or after the earlier of—

(A) the date the State changes its statutes, regulations, or policies in order to comply with such amendment; or

(B) October 1, 2022.

(d) REDUCING STATE BURDEN IN PROVIDING DATA TO PREVENT AND DETECT FRAUD.—Section 303 of the Social Security Act (42 U.S.C. 503), as amended by subsection (b), is amended by adding at the end the following new subsection:

''(o) USE OF UNEMPLOYMENT CLAIMS DATA TO PREVENT AND DETECT FRAUD.—The Inspector General of the Department of Labor shall, for the purpose of identifying and investigating fraud in unemployment compensation programs, have direct access to each of the following systems:

''(1) The system designated by the Secretary of Labor for the electronic transmission of requests for information relating to interstate claims for unemployment compensation.

''(2) The system designated by the Secretary of Labor for cross-matching claimants of unemployment compensation under State law against databases to prevent and detect fraud and improper payments (as referred to in subsection (a)(14).''.

(e) USE OF NATIONAL DIRECTORY OF NEW HIRES IN ADMINISTRATION OF UNEMPLOYMENT COMPENSATION PROGRAMS AND PENALTIES ON NONCOMPLYING EMPLOYERS.—

(1) IN GENERAL.—Section 303 of the Social Security Act (42 U.S.C. 503), as amended by subsections (b) and (d), is amended by adding at the end the following new subsection:

''(p) USE OF NATIONAL DIRECTORY OF NEW HIRES.—

''(1) IN GENERAL.—Not later than October 1, 2022, the State agency charged with administration of the State law shall—

''(A) compare information in the National Directory of New Hires established under section 453(i) against information about individuals claiming unemployment compensation to identify any such individuals who may have become employed, in accordance with any regulations or guidance that the Secretary of Health and Human Services may issue and consistent with the computer matching provisions of the Privacy Act of 1974;

''(B) take timely action to verify whether the individuals identified pursuant to subparagraph (A) are employed; and

''(C) upon verification pursuant to subparagraph (B), take appropriate action to suspend or modify unemployment compensation payments, and to initiate recovery of any improper unemployment compensation payments that have been made.

''(2) ENFORCEMENT.—Whenever the Secretary of Labor, after reasonable notice and opportunity for hearing to the State agency charged with the administration of the State law, finds that there is a failure to comply substantially with the requirements of paragraph (1), the Secretary of Labor shall notify such State agency that further payments will not be made to the State until the Secretary of Labor is satisfied that there is no longer any such failure. Until the Secretary of Labor is so satisfied, such Secretary shall make no future certification to the Secretary of the Treasury with respect to the State.''.

(2) PENALTIES.—

(A) IN GENERAL.—Section 453A(d) of the Social Security Act (42 U.S.C. 653a(d)), in the matter preceding paragraph (1), is amended by striking ''have the option to set a State civil money penalty which shall not exceed'' and inserting ''set a State civil money penalty which shall be no less than''.

(B) EFFECTIVE DATE.—The amendment made by subparagraph (A) shall apply to penalties assessed on or after October 1, 2022.

(f) STATE PERFORMANCE.—

(1) IN GENERAL.—Section 303 of the Social Security Act (42 U.S.C. 503), as amended by subsections (b), (d), and (e), is amended by adding at the end the following new subsection:

''(q) STATE PERFORMANCE.—

''(1) IN GENERAL.—For purposes of assisting States in meeting the requirements of this title, title IX, title XII, or chapter 23 of the Internal Revenue Code of 1986 (commonly referred to as 'the Federal Unemployment Tax Act'), the Secretary of Labor may—

''(A) consistent with subsection (a)(1), establish measures of State performance, including criteria for acceptable levels of performance, performance goals, and performance measurement programs;

''(B) consistent with subsection (a)(6), require States to provide to the Secretary of Labor data or other relevant information from time to time concerning the operations of the State or State performance, including the measures, criteria, goals, or programs established under paragraph (1);

''(C) require States with sustained failure to meet acceptable levels of performance or with performance that is substantially below acceptable standards, as determined based on the measures, criteria, goals, or programs established under subparagraph (A), to implement specific corrective actions and use specified amounts of the administrative grants under this title provided to such States to improve performance; and

''(D) based on the data and other information provided under subparagraph (B)—

''(i) to the extent the Secretary of Labor determines funds are available after providing grants to States under this title for the administration of State laws, recognize and make awards to States for performance improvement, or performance exceeding the criteria or meeting the goals established under subparagraph (A); or

''(ii) to the extent the Secretary of Labor determines funds are available after providing grants to States under this title for the administration of State laws, provide incentive funds to high-performing States based on the measures, criteria, goals, or programs established under subparagraph (A).

''(2) ENFORCEMENT.—Whenever the Secretary of Labor, after reasonable notice and opportunity for hearing to the State agency charged with the administration of the State law, finds that there is a failure to comply substantially with the requirements of paragraph (1), the Secretary of Labor shall notify such State agency that further payments will not be made to the State until the Secretary of Labor is satisfied that there is no longer any such failure. Until the Secretary of Labor is so satisfied, such Secretary shall make no future certification to the Secretary of the Treasury with respect to the State.''.

(2) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the date of enactment of this Act.

(g) FUNDING.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated to the Secretary of Labor $2,000,000,000 to assist States in carrying out the amendments made by this section, which may include regional or multi-State efforts. Amounts appropriated under the preceding sentence shall remain available until expended.

SA 2609. Mrs. GILLIBRAND submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. DIRECT FARM LOAN FORGIVENESS.

(a) DEFINITIONS.—In this section:

(1) ELIGIBLE BORROWER.—The term ''eligible borrower'' means a borrower of an eligible loan that is actively engaged in farming (within the meaning of section 1001A of the Food Security Act of 1985 (7 U.S.C. 1308–1)) with respect to a farming operation—

(A) for which the eligible loan was made; and

(B) the average annual adjusted gross income for the previous 5-year period of which is not more than $300,000.

(2) ELIGIBLE LOAN.—The term ''eligible loan'' means a loan made before March 19, 2020, that is—

(A) a direct farm ownership loan under subtitle A of the Consolidated Farm and Rural Development Act (7 U.S.C. 1922 et seq.);

(B) a direct operating loan under subtitle B of the Consolidated Farm and Rural Development Act (7 U.S.C. 1941 et seq.); or

(C) an emergency loan under subtitle C of the Consolidated Farm and Rural Development Act (7 U.S.C. 1961 et seq.).

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(b) LOAN FORGIVENESS.—

(1) IN GENERAL.—Not later than 1 year after the date on which the Secretary receives an application under paragraph (2), subject to paragraphs (3) and (4), the Secretary shall cancel the obligation to repay the balance of principal and interest due as of the date of enactment of this Act on an eligible loan for the eligible borrower.

(2) APPLICATIONS.—To be eligible for cancellation under paragraph (1), not later than 1 year after the date of enactment of this Act, an eligible borrower shall submit to the Secretary an application, which shall cover all eligible loans for which the eligible borrower is seeking cancellation.

(3) LIMITATIONS.—The total amount cancelled under paragraph (1) with respect to a farming operation shall be not more than $250,000.

(4) CONDITION.—The cancellation of an obligation under paragraph (1) shall be subject to the condition that the applicable eligible borrower shall continue to be actively engaged in farming (within the meaning of section 1001A of the Food Security Act of 1985 (7 U.S.C. 1308–1)) for the 2-year period beginning on the date on which the Secretary cancels the obligation under that paragraph.

(c) EFFECT.—An eligible borrower that receives cancellation of an obligation with respect to an eligible loan under subsection (b)(1) shall not be determined to be ineligible for any loan under subtitle A, B, or C of the Consolidated Farm and Rural Development Act (7 U.S.C. 1922 et seq.) because of that cancellation.

(d) TAXABILITY.—For purposes of the Internal Revenue Code of 1986, any amount which (but for this subsection) would be includible in gross income of the eligible borrower by reason of forgiveness described in subsection (b) shall be excluded from gross income.

SA 2610. Mr. SULLIVAN (for himself and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. INCREASED ABILITY FOR PAYCHECK PROTECTION PROGRAM BORROWERS TO REQUEST AN INCREASE IN LOAN AMOUNT DUE TO UPDATED REGULATIONS.

(a) DEFINITIONS.—In this section—

(1) the term ''Administration'' means the Small Business Administration; and

(2) the terms ''covered loan'' and ''eligible recipient'' have the meanings given those terms in section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)).

(b) INCREASED AMOUNT.—Notwithstanding the interim final rule issued by the Administration entitled ''Business Loan Program Temporary Changes; Paycheck Protection Program—Loan Increases'' (85 Fed. Reg. 29842 (May 19, 2020)), an eligible recipient of a covered loan that is eligible for an increased covered loan amount as a result of any interim final rule that allows for covered loan increases may submit a request for an increase in the covered loan amount even if—

(1) the initial covered loan amount has been fully disbursed; or

(2) the lender of the initial covered loan has submitted to the Administration a Form 1502 report related to the covered loan.

SA 2611. Mr. WICKER submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. INCLUSION OF CRITICAL CARE HOSPITALS IN THE PAYCHECK PROTECTION PROGRAM.

(a) ELIGIBILITY OF HOSPITALS WITH MORE THAN ONE PHYSICAL LOCATION.—Section 7(a)(36)(D)(iii) of the Small Business Act (15 U.S.C. 636(a)(36)(D)(iii)) is amended by striking ''beginning with 72'' and inserting the following: ''beginning with 72 (or, in the case of a critical care hospital, is assigned a North American Industry Classification System code beginning with 62)''.

(b) WAIVER OF AFFILIATION RULES.—Section 7(a)(36)(D)(iv)(I) of the Small Business Act (15 U.S.C. 636(a)(36)(D)(iv)(I)) is amended by striking ''beginning with 72'' and inserting the following: ''beginning with 72 (or, in the case of a critical care hospital, is assigned a North American Industry Classification System code beginning with 62)''.

(c) CRITICAL CARE HOSPITALS DEFINED.—Section 7(a)(36)(D) of the Small Business Act (15 U.S.C. 636(a)(36)(D)) is amended by adding at the end the following:

''(vii) CRITICAL CARE HOSPITAL DEFINED.—In this subparagraph, the term 'critical care hospital' means—

''(I) a hospital (as defined in section 1861(e) of the Social Security Act (42 U.S.C. 1395x(e))) that—

''(aa) is located in a county (or equivalent unit of local government) in a rural area, as defined in section 1886(d)(2)(D) of such Act (42 U.S.C. 1395ww(d)(2)(D));

''(bb) is treated as being located in a rural area pursuant to section 1886(d)(8)(E) of such Act (42 U.S.C. 1395ww(d)(8)(E)); or

''(cc) for the most recent cost reporting period under section 1886(d) of such Act (42 U.S.C. 1395ww(d)), received an additional payment under section 1886(d)(5)(F) of such Act (42 U.S.C. 1395ww(d)(5)(F)); and

''(II) a nonprofit or public critical access hospital, as defined in section 1861(mm)(1) of the Social Security Act (42 U.S.C. 1395x(mm)(1)).''.

SA 2612. Mr. WICKER submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. INCLUSION OF CRITICAL CARE HOSPITALS IN THE PAYCHECK PROTECTION PROGRAM.

(a) ELIGIBILITY OF HOSPITALS WITH MORE THAN ONE PHYSICAL LOCATION.—Section 7(a)(36)(D)(iii) of the Small Business Act (15 U.S.C. 636(a)(36)(D)(iii)) is amended by striking ''beginning with 72'' and inserting the following: ''beginning with 72 (or, in the case of a critical care hospital, is assigned a North American Industry Classification System code beginning with 62)''.

(b) WAIVER OF AFFILIATION RULES.—Section 7(a)(36)(D)(iv)(I) of the Small Business Act (15 U.S.C. 636(a)(36)(D)(iv)(I)) is amended by striking ''beginning with 72'' and inserting the following: ''beginning with 72 (or, in the case of a critical care hospital, is assigned a North American Industry Classification System code beginning with 62)''.

(c) CRITICAL CARE HOSPITALS DEFINED.—Section 7(a)(36)(D) of the Small Business Act (15 U.S.C. 636(a)(36)(D)) is amended by adding at the end the following:

''(vii) CRITICAL CARE HOSPITAL DEFINED.—In this subparagraph, the term 'critical care hospital' means—

''(I) a hospital (as defined in section 1861(e) of the Social Security Act (42 U.S.C. 1395x(e))) that—

''(aa) is located in a county (or equivalent unit of local government) in a rural area, as defined in section 1886(d)(2)(D) of such Act (42 U.S.C. 1395ww(d)(2)(D));

''(bb) is treated as being located in a rural area pursuant to section 1886(d)(8)(E) of such Act (42 U.S.C. 1395ww(d)(8)(E)); or

''(cc) for the most recent cost reporting period under section 1886(d) of such Act (42 U.S.C. 1395ww(d)), received an additional payment under section 1886(d)(5)(F) of such Act (42 U.S.C. 1395ww(d)(5)(F)); and

''(II) a nonprofit or public critical access hospital, as defined in section 1861(mm)(1) of the Social Security Act (42 U.S.C. 1395x(mm)(1)).''.

SA 2613. Mr. ENZI (for himself and Ms. HASSAN) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. AUTHORITY TO DESTROY COUNTERFEIT DEVICES.

(a) IN GENERAL.—Section 801(a) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 381(a)) is amended—

(1) in the fourth sentence, by inserting ''or counterfeit device'' after ''counterfeit drug''; and

(2) by striking ''The Secretary of the Treasury shall cause the destruction of'' and all that follows through ''liable for costs pursuant to subsection (c).'' and inserting the

following: ''The Secretary of the Treasury shall cause the destruction of any such article refused admission unless such article is exported, under regulations prescribed by the Secretary of the Treasury, within 90 days of the date of notice of such refusal or within such additional time as may be permitted pursuant to such regulations, except that the Secretary of Health and Human Services may destroy, without the opportunity for export, any drug or device refused admission under this section, if such drug or device is valued at an amount that is $2,500 or less (or such higher amount as the Secretary of the Treasury may set by regulation pursuant to section 498(a)(1) of the Tariff Act of 1930 (19 U.S.C. 1498(a)(1))) and was not brought into compliance as described under subsection (b). The Secretary of Health and Human Services shall issue regulations providing for notice and an opportunity to appear before the Secretary of Health and Human Services and introduce testimony, as described in the first sentence of this subsection, on destruction of a drug or device under the seventh sentence of this subsection. The regulations shall provide that prior to destruction, appropriate due process is available to the owner or consignee seeking to challenge the decision to destroy the drug or device. Where the Secretary of Health and Human Services provides notice and an opportunity to appear and introduce testimony on the destruction of a drug or device, the Secretary of Health and Human Services shall store and, as applicable, dispose of the drug or device after the issuance of the notice, except that the owner and consignee shall remain liable for costs pursuant to subsection (c).''.

(b) DEFINITION.—Section 201(h) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(h)) is amended—

(1) by redesignating subparagraphs (1), (2), and (3) as clauses (A), (B), and (C), respectively; and

(2) after making such redesignations—

(A) by striking ''(h) The term'' and inserting ''(h)(1) The term''; and

(B) by adding at the end the following:

''(2) The term 'counterfeit device' means a device which, or the container, packaging, or labeling of which, without authorization, bears a trademark, trade name, or other identifying mark, imprint, or symbol, or any likeness thereof, or is manufactured using a design, of a device manufacturer, packer, or distributor other than the person or persons who in fact manufactured, packed, or distributed such device and which thereby falsely purports or is represented to be the product of, or to have been packed or distributed by, such other device manufacturer, packer, or distributor.

''(3) For purposes of subparagraph (2)—

''(A) the term 'manufactured' refers to any of the following activities: manufacture, preparation, propagation, compounding, assembly, or processing; and

''(B) the term 'manufacturer' means a person who is engaged in any of the activities listed in clause (A).''.

SA 2614. Mr. BRAUN (for himself, Mr. GRASSLEY, and Mr. ENZI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PRICE TRANSPARENCY REQUIREMENTS.

(a) HOSPITALS.—Section 2718(e) of the Public Health Service Act (42 U.S.C. § 300gg–18(e)) is amended—

(1) by striking ''Each hospital'' and inserting the following:

''(1) IN GENERAL.—Each hospital'';

(2) by inserting '', in a machine-readable format, via open application program interfaces (APIs)'' after ''a list'';

(3) by inserting '', along with such additional information as the Secretary may require with respect to such charges for purposes of promoting public awareness of hospital pricing in advance of receiving a hospital item or service'' before the period; and

(4) by adding at the end the following:

''(2) DEFINITION OF STANDARD CHARGES.—Notwithstanding any other provision of law, for purposes of paragraph (1), the term 'standard charges' means the rates hospitals, including providers or entities that contract with or practice at a hospital, charge for all items and services at a minimum, chargemaster rates, rates that hospitals negotiate with third party payers across all plans, including those related to a patient's specific plan, discounted cash prices, and other rates determined by the Secretary.

''(3) ENFORCEMENT.—In addition to any other enforcement actions or penalties that may apply under subsection (b)(3) or another provision of law, a hospital that fails to provide the information required by this subsection and has not completed a corrective action plan to comply with the requirements of such subsection shall be subject to a civil monetary penalty of an amount not to exceed $300 per day that the violation is ongoing as determined by the Secretary. Such penalty shall be imposed and collected in the same manner as civil money penalties under subsection (a) of section 1128A of the Social Security Act are imposed and collected.''.

(b) TRANSPARENCY IN COVERAGE.—Section 1311(e)(3) of the Patient Protection and Affordable Care Act (42 U.S.C. 18031(e)(3)) is amended—

(1) in subparagraph (A)—

(A) in clause (vii), by inserting before the period the following: '', including, for all items and services covered under the plan, aggregate information on specific payments the plan has made to out-of-network health care providers on behalf of plan enrollees''; and

(B) by designating clause (ix) as clause (x); and

(C) by inserting after clause (viii), the following:

''(ix) Information on the specific negotiated payment rates between the plan and health care providers for all items and services covered under the plan.'';

(2) in subparagraph (B)—

(A) in the heading, by striking ''USE'' and inserting ''DELIVERY METHODS AND USE'';

(B) by inserting '', as applicable,'' after ''English proficiency''; and

(C) by inserting after the second sentence, the following: ''The Secretary shall establish standards for electronic delivery and access to such information by individuals, free of charge, in machine readable format, through an internet website and via open APIs.'';

(3) in subparagraph (C)—

(A) in the first sentence, by inserting ''or out-of-network provider'' after ''item or service by a participating provider'';

(B) in the second sentence, by striking ''through an internet website'' and inserting ''free of charge, in machine readable format, through an internet website, and via open APIs, in accordance with standards established by the Secretary,''; and

(C) by adding at the end the following: ''Such information shall include specific negotiated rates that allow for comparison between providers and across plans, and related to a patient's specific plan, including after an enrollee has exceeded their deductible responsibility.''; and

(4) in subparagraph (D) by striking ''subparagraph (A)'' and inserting ''subparagraphs (A), (B), and (C)''.

SA 2615. Mr. ENZI submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. IMPROVEMENTS TO THE MEDICARE HOSPITAL ACCELERATED AND ADVANCE PAYMENTS PROGRAMS DURING THE COVID–19 PUBLIC HEALTH EMERGENCY.

(a) PART A.—

(1) REPAYMENT PERIODS.—Section 1815(f)(2)(C) of the Social Security Act (42 U.S.C. 1395g(f)(2)(C)) is amended—

(A) in clause (i), by striking ''120 days'' and inserting ''270 days''; and

(B) in clause (ii), by striking ''12 months'' and inserting ''18 months''.

(2) AUTHORITY FOR DISCRETION.—Section 1815(f)(2)(A)(ii) of the Social Security Act (42 U.S.C. 1395g(f)(2)(A)(ii)) is amended by inserting ''(or, with respect to requests submitted to the Secretary on or after July 9, 2020, may)''after ''shall.''.

(b) PART B.—In carrying out the advance payments program described in section 421.214 of title 42, Code of Federal Regulations (or a successor regulation), the Secretary of Health and Human Services, in the case of a payment made under such program during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)), upon request of the supplier receiving such payment, shall—

(1) provide up to 270 days before claims are offset to recoup the payment; and

(2) allow not less than 14 months from the date of the first advance payment before requiring that the outstanding balance be paid in full.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

(d) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary of Health and Human Services may implement the provisions of, and the amendments made by, this section by program instruction or otherwise.

(e) EMERGENCY DESIGNATION.—

(1) IN GENERAL.—The amounts provided by this section and the amendments made by this section are designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(g)).

(2) DESIGNATION IN SENATE.—In the Senate, this section and the amendments made by this section are designated as an emergency requirement pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018.

SA 2616. Mr. WICKER (for himself, Mr. BARRASSO, Mrs. CAPITO, Mr. PERDUE, Mr. BOOZMAN, Mr. MORAN, and

Ms. MURKOWSKI) submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. REINSTATEMENT OF ADVANCE REFUNDING BONDS.

(a) IN GENERAL.—The amendments made by section 13532 of Public Law 115-97 are repealed and the provisions of law amended by such section are restored as if such section had never been enacted.

(b) EFFECTIVE DATE.—The repeal made by this section shall take effect on the date of enactment of this Act.

SA 2617. Mr. WICKER submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. CREDIT FOR AMERICAN INFRASTRUCTURE BONDS ALLOWED TO ISSUERS.

(a) IN GENERAL.—Subchapter B of chapter 65 of the Internal Revenue Code of 1986 is amended by inserting after section 6430 the following new section:

''SEC. 6431. CREDIT TO ISSUER OF AMERICAN INFRASTRUCTURE BONDS.

''(a) IN GENERAL.—The issuer of an American infrastructure bond shall be allowed a credit with respect to each interest payment under such bond which shall be payable by the Secretary as provided in subsection (b).

''(b) PAYMENT OF CREDIT.—

''(1) IN GENERAL.—The Secretary shall pay (contemporaneously with each interest payment date under such bond) to the issuer of such bond (or to any person who makes such interest payments on behalf of the issuer) the applicable percentage of the interest payable under such bond on such date.

''(2) APPLICABLE PERCENTAGE.—For purposes of paragraph (1), the applicable percentage shall be equal to—

''(A) in the case of any American infrastructure bond issued before January 1, 2026, 35 percent, and

''(B) in the case of any American infrastructure bond issued after December 31, 2025, 28 percent.

''(3) INTEREST PAYMENT DATE.—For purposes of this subsection, the term 'interest payment date' means each date on which the holder of record of the American infrastructure bond is entitled to a payment of interest under such bond.

''(c) AMERICAN INFRASTRUCTURE BOND.—

''(1) IN GENERAL.—For purposes of this section, the term 'American infrastructure bond' means any obligation if—

''(A) the interest on such obligation would (but for this section) be excludable from gross income under section 103,

''(B) either—

''(i) the obligation is not a private activity bond, or

''(ii) the obligation is a private activity bond, but it is issued as part of an issue 95 percent or more of the net proceeds of which are to be used to finance or refinance property that meets the ownership test in section 145(a)(1), as applied by substituting '95 percent of the property' for 'all property', and

''(C) the issuer makes an irrevocable election to have this section apply.

''(2) APPLICABLE RULES.—For purposes of applying paragraph (1)—

''(A) for purposes of section 149(b), a bond shall not be treated as federally guaranteed by reason of the credit allowed under this section, and

''(B) a bond shall not be treated as an American infrastructure bond if the issue price has more than a de minimis amount (determined under rules similar to the rules of section 1273(a)(3)) of premium over the stated principal amount of the bond.

''(d) SPECIAL RULES.—

''(1) INTEREST ON AMERICAN INFRASTRUCTURE BONDS INCLUDIBLE IN GROSS INCOME FOR FEDERAL INCOME TAX PURPOSES.—For purposes of this title, interest on any American infrastructure bond shall be includible in gross income.

''(2) APPLICATION OF ARBITRAGE RULES.—For purposes of section 148, the yield on an issue of American infrastructure bonds shall be reduced by the credit allowed under this section, except that no such reduction shall apply with respect to determining the amount of gross proceeds of an issue that qualifies as a reasonably required reserve or replacement fund.

''(e) REGULATIONS.—The Secretary may prescribe such regulations and other guidance as may be necessary or appropriate to carry out this section.''.

(b) CONFORMING AMENDMENTS.—

(1) The table of sections for subchapter B of chapter 65 of subtitle F of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 6431. Credit to issuer of american infrastructure bonds.''.

(2) Subparagraph (A) of section 6211(b)(4) of such Code is amended by inserting ''6431,'' after ''36B,''.

(c) TRANSITIONAL COORDINATION WITH STATE LAW.—Except as otherwise provided by a State after the date of the enactment of this Act, the interest on any American infrastructure bond (as defined in section 6431 of the Internal Revenue Code of 1986 (as added by this Act)) and the amount of any credit determined under such section with respect to such bond shall be treated for purposes of the income tax laws of such State as being exempt from Federal income tax.

(d) ADJUSTMENT TO PAYMENT TO ISSUERS IN CASE OF SEQUESTRATION.—

(1) IN GENERAL.—In the case of any payment under subsection (b) of section 6431 of the Internal Revenue Code of 1986 (as added by this Act) made after the date of enactment of this Act to which sequestration applies, the amount of such payment shall be increased to an amount equal to—

(A) such payment (determined before such sequestration), multiplied by

(B) the quotient obtained by dividing the number 1 by the amount by which the number 1 exceeds the percentage reduction in such payment pursuant to such sequestration.

(2) SEQUESTRATION.—For purposes of this subsection, the term ''sequestration'' means any reduction in direct spending ordered in accordance with a sequestration report prepared by the Director of the Office and Management and Budget pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 or the Statutory Pay-As-You-Go Act of 2010 or future legislation having similar effect.

(e) EFFECTIVE DATE.—The amendments made by this section shall apply to obligations issued after the date of enactment of this Act.

SA 2618. Mr. WICKER (for himself, Mr. CASSIDY, Mr. SULLIVAN, Ms. CANTWELL, and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ____FISHERY RESOURCE DISASTER RELIEF

SEC. _____. SHORT TITLE.

This title may be cited as the ''Fishery Failures: Urgently Needed Disaster Declarations Act''.

SEC. _____. FISHERY RESOURCE DISASTER RELIEF.

Section 312(a) of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1861a(a)) is amended to read as follows:

''(a) FISHERY RESOURCE DISASTER RELIEF.—

''(1) DEFINITIONS.—In this subsection:

''(A) ALLOWABLE CAUSE.—The term 'allowable cause' means a natural cause, discrete anthropogenic cause, or undetermined cause.

''(B) ANTHROPOGENIC CAUSE.—The term 'anthropogenic cause' means an anthropogenic event, such as an oil spill or spillway opening—

''(i) that could not have been addressed or prevented by fishery management measures; and

''(ii) that is otherwise beyond the control of fishery managers to mitigate through conservation and management measures, including regulatory restrictions imposed as a result of judicial action or to protect human health or marine animals, plants, or habitats.

''(C) FISHERY RESOURCE DISASTER.—The term 'fishery resource disaster' means a disaster that is determined by the Secretary in accordance with this subsection and—

''(i) is an unexpected decrease in fish stock biomass or other change that results in significant loss of access to the fishery resource, which may include loss of fishing vessels and gear for a substantial period of time and results in significant revenue or subsistence loss due to an allowable cause; and

''(ii) does not include—

''(I) reasonably predictable, foreseeable, and recurrent fishery cyclical variations in species distribution or stock abundance; or

''(II) reductions in fishing opportunities resulting from conservation and management measures taken pursuant to this Act.

''(D) INDIAN TRIBE.—The term 'Indian Tribe' has the meaning given such term in section 102 of the Federally Recognized Indian Tribe List Act of 1994 (25 U.S.C. 5130), and the term 'Tribal' means of or pertaining to such an Indian tribe.

''(E) NATURAL CAUSE.—The term 'natural cause'—

''(i) means a weather, climatic, hazard, or biology-related event, such as—

''(I) a hurricane;

''(II) a flood;

''(III) a harmful algal bloom;

''(IV) a tsunami;

''(V) a hypoxic zone;

''(VI) a drought;

''(VII) El Niño effects on water temperature;

''(VIII) a marine heat wave;

''(IX) disease; or

''(X) access to fishery resources that is impeded due to impacts to captains and crew caused by the COVID-19 pandemic; and

''(ii) does not mean a normal or cyclical variation in a species distribution or stock abundance.

''(F) 12-MONTH REVENUE LOSS.—The term '12-month revenue loss' means the percentage reduction in commercial, charter, headboat, and processor revenue for the 12 months during the fishery resource disaster period that is due to the fishery resource disaster, when compared to average annual revenue in the most recent 5-year period or equivalent for stocks with cyclical life histories.

''(G) UNDETERMINED CAUSE.—The term 'undetermined cause' means a cause in which the current state of knowledge does not allow the Secretary to identify the exact cause, and there is no current conclusive evidence supporting a possible cause of the fishery resource disaster.

''(2) GENERAL AUTHORITY.—

''(A) IN GENERAL.—The Secretary shall have the authority to determine the existence, extent, and beginning and end dates of a fishery resource disaster under this subsection in accordance with this subsection.

''(B) AVAILABILITY OF FUNDS.—After the Secretary determines that a fishery resource disaster has occurred, the Secretary is authorized to make sums available, from funds appropriated under paragraph (9) that are available, to be used by the affected State, Tribal government, or interstate marine fisheries commission, or by the Secretary in cooperation with the affected State, Tribal government, or interstate marine fisheries commission.

''(C) SAVINGS CLAUSE.—

''(i) IN GENERAL.—Except as provided under clause (ii), the requirements under this subsection shall take effect only with respect to requests for a fishery resource disaster determination submitted after the date of enactment of the Fishery Failures: Urgently Needed Disaster Declarations Act.

''(ii) EXCEPTION.—Clause (i) shall not apply to a fishery resource disaster determination related to the COVID-19 pandemic.

''(3) INITIATION OF A FISHERY RESOURCE DISASTER REVIEW.—

''(A) ELIGIBLE REQUESTERS.—Not later than 1 year after the date of the conclusion of the fishing season, a request for a fishery resource disaster determination may be submitted to the Secretary, if the Secretary has not independently determined that a fishery resource disaster has occurred, by—

''(i) the Governor of an affected State;

''(ii) an official Tribal resolution; or

''(iii) any other comparable elected or politically appointed representative as determined by the Secretary.

''(B) REQUIRED INFORMATION.—A complete request for a fishery resource disaster determination under subparagraph (A) shall include—

''(i) identification of all presumed affected fish stocks;

''(ii) identification of the fishery as Federal, non-Federal, or both;

''(iii) the geographical boundaries of the fishery;

''(iv) preliminary information on causes of the fishery resource disaster, if known; and

''(v) information needed to support a finding of a fishery resource disaster, including—

''(I) information demonstrating the occurrence of an unexpected decrease in fish stock biomass or other change that results in significant loss of access to the fishery resource, which could include the loss of fishing vessels and gear, for a substantial period of time;

''(II) 12-month revenue loss or subsistence loss for the affected Federal fishery, or if a fishery resource disaster has occurred at any time in the previous 5-year period, an appropriate time frame as determined by the Secretary;

''(III) if applicable, information on lost resource tax revenues assessed by local communities, such as a raw fish tax; and

''(IV) if applicable, information on 12-month revenue loss for processors related to the information provided under subclause (I), subject to section 402(b).

''(C) ASSISTANCE.—The Secretary may provide assistance, data, and analysis to an eligible requester described in paragraph (1), if so requested and the data is not available to the requester, in carrying out the compete request under subparagraph (A).

''(4) REVIEW PROCESS.—

''(A) INTERIM RESPONSE.—Not later than 20 days after receipt of a request under paragraph (3), the Secretary shall provide an interim response to the individual that—

''(i) acknowledges receipt of the request;

''(ii) provides a regional contact within the National Oceanographic and Atmospheric Administration;

''(iii) outlines the process and timeline by which a request shall be considered; and

''(iv) requests additional information concerning the fishery resource disaster, if the original request is considered incomplete.

''(B) EVALUATION OF REQUESTS.—

''(i) IN GENERAL.—The Secretary shall complete a review, within the time frame described in clause (ii), using the best scientific information available, in consultation with the affected fishing communities, States, or Tribes, of—

''(I) the information provided by the requester and any additional information relevant to the fishery, which may include—

''(aa) fishery characteristics;

''(bb) stock assessments;

''(cc) the most recent fishery independent surveys and other fishery resource assessments and surveys conducted by Federal, State, or Tribal officials;

''(dd) estimates of mortality; and

''(ee) overall effects; and

''(II) the available economic information, which may include an analysis of—

''(aa) landings data;

''(bb) revenue;

''(cc) the number of participants involved;

''(dd) the number and type of jobs and persons impacted, which may include—

''(AA) fishers;

''(BB) charter fishing operators;

''(CC) subsistence users;

''(DD) United States fish processors; and

''(EE) an owner of a related fishery infrastructure or business affected by the disaster, such as a marina operator, recreational fishing equipment retailer, or charter, headboat, or tender vessel owner, operator, or crew;

''(ee) an impacted Indian Tribe;

''(ff) an impacted business or other entity;

''(gg) the availability of hazard insurance to address financial losses due to a disaster;

''(hh) other forms of disaster assistance made available to the fishery, including prior awards of disaster assistance for the same event;

''(ii) the length of time the resource, or access to the resource, has been restricted;

''(jj) status of recovery from previous fishery resource disasters;

''(kk) lost resource tax revenues assessed by local communities, such as a raw fish tax; and

''(ll) other appropriate indicators to an affected fishery, as determined by the National Marine Fisheries Service.

''(ii) TIME FRAME.—The Secretary shall complete the review described in clause (i), if the fishing season, applicable to the fishery—

''(I) has concluded or there is no defined fishing season applicable to the fishery, not later than 120 days after the Secretary receives a complete request for a fishery resource disaster determination;

''(II) has not concluded, not later than 120 days after the conclusion of the fishing season; or

''(III) has not been opened, not later than 120 days after the Secretary receives a complete request for a fishery resource disaster determination.

''(C) FISHERY RESOURCE DISASTER DETERMINATION.—The Secretary shall make the determination of a fishery resource disaster based on the criteria for determinations listed in paragraph (5).

''(D) NOTIFICATION.—Not later than 14 days after the conclusion of the review under this paragraph, the Secretary shall notify the requestor and the Governor of the affected State or Tribal representative of the determination of the Secretary.

''(5) CRITERIA FOR DETERMINATIONS.—

''(A) IN GENERAL.—The Secretary shall make a determination about whether a fishery resource disaster has occurred, based on the revenue loss thresholds under subparagraph (B), and, if a fishery resource disaster has occurred, whether the fishery resource disaster was due to—

''(i) a natural cause;

''(ii) an anthropogenic cause;

''(iii) a combination of a natural cause and an anthropogenic cause; or

''(iv) an undetermined cause.

''(B) REVENUE LOSS THRESHOLDS.—

''(i) IN GENERAL.—The Secretary shall apply the following 12-month revenue loss thresholds in determining whether a fishery resource disaster has occurred:

''(I) Losses greater than 80 percent shall result in a positive determination that a fishery resource disaster has occurred.

''(II) Losses between 35 percent and 80 percent shall be evaluated to determine whether a fishery resource disaster has occurred, based on the information provided or analyzed under paragraph (4)(B).

''(III) Losses less than 35 percent shall not be eligible for a determination that a fishery resource disaster has occurred, except where the Secretary determines there are extenuating circumstances that justify using a lower threshold in making the determination.

''(ii) CHARTER FISHING.—In making a determination of whether a fishery resource disaster has occurred, the Secretary shall consider the economic impacts to the charter fishing industry to ensure financial coverage for charter fishing businesses.

''(iii) SUBSISTENCE USES.—In making a determination of whether a fishery resource disaster has occurred, the Secretary may consider loss of subsistence opportunity, where appropriate.

''(C) INELIGIBLE FISHERIES.—A fishery subject to overfishing in any of the 3 years preceding the date of a determination under this subsection is not eligible for a determination of whether a fishery resource disaster has occurred unless the Secretary determines that overfishing was not a contributing factor to the fishery resource disaster.

''(D) EXCEPTIONAL CIRCUMSTANCES.—In an exceptional circumstance where substantial economic impacts to the affected fishery and fishing community have been subject to a disaster declaration under another statutory authority, such as in the case of a natural disaster or from the direct consequences of a Federal action taken to prevent, or in response to, a natural disaster for purposes of protecting life and safety, the Secretary may

determine a fishery resource disaster has occurred without a request or without conducting the required analyses in subparagraphs (A) and (B).

''(6) DISBURSAL OF APPROPRIATED FUNDS.—

''(A) AUTHORIZATION.—The Secretary shall allocate funds available under paragraph (9) for fishery resource disasters.

''(B) ALLOCATION OF APPROPRIATED FISHERY RESOURCE DISASTER ASSISTANCE.—

''(i) NOTIFICATION OF FUNDING AVAILABILITY.—When there are appropriated funds for 1 or more fishery resource disasters, the Secretary shall notify the public and representatives of affected fishing communities with a positive disaster determination that is unfunded of the allocation under paragraph (2)(B) not more than 14 days after the date of the appropriation or the determination of a fishery resource disaster, whichever occurs later.

''(ii) EXTENSION OF DEADLINE.—The Secretary may extend the deadline under clause (i) by 90 days to evaluate and make determinations on eligible requests.

''(C) CONSIDERATIONS.—In determining the allocation of appropriations for a fishery resource disaster, the Secretary shall consider commercial, charter, headboat, or seafood processing revenue losses and may consider the following factors:

''(i) Direct economic impacts.

''(ii) Uninsured losses.

''(iii) Losses of subsistence and Tribal ceremonial fishing opportunity.

''(iv) Losses of recreational fishing opportunity.

''(v) Aquaculture operations revenue loss.

''(vi) Direct revenue losses to a fishing community.

''(vii) Treaty obligations.

''(viii) Other economic impacts.

''(D) SPEND PLANS.—To receive an allocation from funds available under paragraph (9), a requestor with an affirmative fishery resource disaster determination shall submit a spend plan to the Secretary, not more than 120 days after receiving notification that funds are available, that shall include the following information, if applicable:

''(i) Objectives and outcomes, with an emphasis on addressing the factors contributing to the fishery resource disaster and minimizing future uninsured losses, if applicable.

''(ii) Statement of work.

''(iii) Budget details.

''(E) REGIONAL CONTACT.—The Secretary shall provide a regional contact within the National Oceanic and Atmospheric Administration to facilitate review of spend plans and disbursal of funds.

''(F) DISBURSAL OF FUNDS.—

''(i) AVAILABILITY.—Funds shall be disbursed not later than 90 days after the date the Secretary receives a complete spend plan under subparagraph (D).

''(ii) METHOD.—The Secretary may provide an allocation of funds under this subsection in the form of a grant, direct payment, cooperative agreement, loan, or contract.

''(iii) ELIGIBLE USES.—

''(I) IN GENERAL.—Funds allocated for fishery resources disasters under this subsection shall prioritize the following uses, which are not in order of priority:

''(aa) Habitat conservation and restoration and other activities, including scientific research, that reduce adverse impacts to the fishery or improve understanding of the affected species or its ecosystem.

''(bb) The collection of fishery information and other activities that improve management of the affected fishery.

''(cc) In a commercial fishery, capacity reduction and other activities that improve management of fishing effort, including funds to offset budgetary costs to refinance a Federal fishing capacity reduction loan or to repay the principal of a Federal fishing capacity reduction loan.

''(dd) Developing, repairing, or improving fishery-related public infrastructure.

''(ee) Job training and economic transition programs.

''(ff) Public information campaigns on the recovery of the fishery, including marketing.

''(gg) For any purpose that the Secretary determines is appropriate to restore the fishery affected by such a disaster or to prevent a similar disaster in the future.

''(hh) Direct assistance to a person, fishing community (including assistance for lost fisheries resource levies), or a business to alleviate economic loss incurred as a direct result of a fishery resource disaster, particularly when affected by a circumstance described in paragraph (5)(D).

''(ii) Appropriate economic and other incentives to encourage commercial fisherman to return to the fishery once it has recovered from the disaster.

''(jj) Hatcheries and stock enhancement to help rebuild the affected stock or offset fishing pressure on the affected stock.

''(kk) Other activities that recover or improve management of the affected fishery, as determined by the Secretary.

''(II) DISPLACED FISHERY EMPLOYEES.—Where appropriate, individuals carrying out the activities described in items (aa) through (ff) of subclause (I) shall be individuals who are, or were, employed in a commercial, charter, or Tribal fishery for which the Secretary has determined that a fishery resource disaster has occurred.

''(7) LIMITATIONS.—

''(A) FEDERAL SHARE.—

''(i) IN GENERAL.—Except as applied to Tribes and as provided in clauses (ii) and (iii), the Federal share of the cost of any activity carried out under the authority of this subsection shall not exceed 75 percent of the cost of that activity.

''(ii) WAIVER.—The Secretary may waive the non-Federal share requirements of this subsection, if the Secretary determines that—

''(I) no reasonable means are available through which the recipient of the Federal share can meet the non-Federal share requirement; and

''(II) the probable benefit of 100 percent Federal financing outweighs the public interest in imposition of the non-Federal share requirement.

''(iii) EXCEPTION.—The Federal share of direct assistance as described in paragraph (6)(F)(iii)(I)(hh) shall be equal to 100 percent.

''(B) LIMITATIONS ON ADMINISTRATIVE EXPENSES.—

''(i) FEDERAL.—Not more than 3 percent of the funds available under this subsection may be used for administrative expenses by the National Oceanographic and Atmospheric Administration.

''(ii) STATE OR TRIBAL GOVERNMENTS.—Of the funds remaining after the use described in clause (i), not more than 5 percent may be used by States, Tribal governments, or interstate marine fisheries commissions for administrative expenses.

''(C) FISHING CAPACITY REDUCTION PROGRAM.—

''(i) IN GENERAL.—No funds available under this subsection may be used as part of a fishing capacity reduction program in a fishery unless the Secretary determines that adequate conservation and management measures are in place in such fishery.

''(ii) ASSISTANCE CONDITIONS.—As a condition of providing assistance under this subsection with respect to a vessel under a fishing capacity reduction program, the Secretary shall—

''(I) prohibit the vessel from being used for fishing; and

''(II) require that the vessel be—

''(aa) scrapped or otherwise disposed of in a manner approved by the Secretary;

''(bb) donated to a nonprofit organization and thereafter used only for purposes of research, education, or training; or

''(cc) used for another non-fishing purpose provided the Secretary determines that adequate measures are in place to ensure that the vessel cannot reenter any fishery anywhere in the world.

''(D) NO FISHERY ENDORSEMENT.—

''(i) IN GENERAL.—A vessel that is prohibited from fishing under subparagraph (C)(ii)(I) shall not be eligible for a fishery endorsement under section 12113(a) of title 46, United States Code.

''(ii) NONEFFECTIVE.—A fishery endorsement for a vessel described in clause (i) shall not be effective.

''(iii) NO SALE.—A vessel described in clause (i) shall not sold to a foreign owner or reflagged.

''(8) PUBLIC INFORMATION ON DATA COLLECTION.—The Secretary shall make available and update as appropriate, information on data collection and submittal best practices for the information described in paragraph (4)(B).

''(9) AUTHORIZATION OF APPROPRIATIONS.—

''(A) AUTHORIZATION.—There are authorized to be appropriated to carry out this subsection such sums as may be necessary.

''(B) AVAILABILITY OF FUNDS.—Amounts appropriated under this subsection shall remain available until expended.

''(C) TAX EXEMPT STATUS.—The Fisheries Disasters Fund appropriated under this subsection shall be a tax exempt fund.''.

SEC. _____. MAGNUSON-STEVENS FISHERY CONSERVATION AND MANAGEMENT ACT.

(a) REPEAL.—Section 315 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1864) is repealed.

(b) REPORT.—Section 113(b)(2) of the Magnuson-Stevens Fishery Conservation and Management Reauthorization Act of 2006 (16 U.S.C. 460ss note) is amended—

(1) in the paragraph heading, by striking ''ANNUAL REPORT'' and inserting ''REPORT'';

(2) in the matter preceding subparagraph (A), by striking ''Not later than 2 years after the date of enactment of this Act, and annually thereafter'' and inserting ''Not later than 2 years after the date of enactment of the Fishery Failures: Urgently Needed Disaster Declarations Act, and biennially thereafter''; and

(3) in subparagraph (D), by striking ''the calendar year 2003'' and inserting ''the most recent''.

SEC. _____. INTERJURISDICTIONAL FISHERIES ACT OF 1986.

(a) REPEAL.—Section 308 of the Interjurisdictional Fisheries Act of 1986 (16. U.S.C. 4107) is repealed.

(b) TECHNICAL EDIT.—Section 3(k)(1) of the Small Business Act (15 U.S.C. 632(k)(1)) is amended by striking ''(as determined by the Secretary of Commerce under section 308(b) of the Interjurisdictional Fisheries Act of 1986)'' and inserting ''(as determined by the Secretary of Commerce under the Fishery Failures: Urgently Needed Disaster Declarations Act)''.

SEC. _____. BUDGET REQUESTS; REPORTS.

(a) BUDGET REQUEST.—In the budget justification materials submitted to Congress in support of the budget of the Department of Commerce for each fiscal year (as submitted with the budget of the President under section 1105(a) of title 31, United States Code), the Secretary of Commerce shall include a separate statement of the amount requested to be appropriated for that fiscal year for outstanding unfunded fishery resource disasters.

(b) DRIFTNET ACT AMENDMENTS OF 1990 REPORT AND BYCATCH REDUCTION AGREEMENTS.—

(1) IN GENERAL.—The Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.) is amended—

(A) in section 202(h), by striking paragraph (3); and

(B) in section 206—

(i) by striking subsections (e) and (f); and

(ii) by redesignating subsections (g) and (h) as subsections (e) and (f), respectively.

(2) BIENNIAL REPORT ON INTERNATIONAL COMPLIANCE.—Section 607 of the High Seas Driftnet Fishing Moratorium Protection Act (16 U.S.C. 1826h) is amended—

(A) by inserting ''(a) IN GENERAL.—'' before ''The Secretary'' and indenting appropriately; and

(B) by adding at the end the following:

''(b) ADDITIONAL INFORMATION.—In addition to the information described in paragraphs (1) through (5) of subsection (a), the report shall include—

''(1) a description of the actions taken to carry out the provisions of section 206 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1826), including—

''(A) an evaluation of the progress of those efforts, the impacts on living marine resources, including available observer data, and specific plans for further action;

''(B) a list and description of any new fisheries developed by nations that conduct, or authorize their nationals to conduct, large-scale driftnet fishing beyond the exclusive economic zone of any nation; and

''(C) a list of the nations that conduct, or authorize their nationals to conduct, large-scale driftnet fishing beyond the exclusive economic zone of any nation in a manner that diminishes the effectiveness of or is inconsistent with any international agreement governing large-scale driftnet fishing to which the United States is a party or otherwise subscribes; and

''(2) a description of the actions taken to carry out the provisions of section 202(h) of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1822(h)).

''(c) CERTIFICATION.—If, at any time, the Secretary, in consultation with the Secretary of State and the Secretary of the department in which the Coast Guard is operating, identifies any nation that warrants inclusion in the list described under subsection (b)(1)(C), due to large scale drift net fishing, the Secretary shall certify that fact to the President. Such certification shall be deemed to be a certification for the purposes of section 8(a) of the Fishermen's Protective Act of 1967 (22 U.S.C. 1978(a)).''.

(c) REPORT ON EFFORTS TO PREPARE AND ADAPT UNITED STATES FISHERY MANAGEMENT FOR THE IMPACTS OF CLIMATE CHANGE.—

(1) IN GENERAL.—Not later than 2 years after the date of enactment of this title, the Comptroller General of the United States shall submit a report to Congress examining efforts by the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, and the National Marine Fisheries Service to prepare and adapt to the impacts of climate change.

(2) CONTENTS OF STUDY.—The report required under paragraph (1) shall include—

(A) an examination of current or previous efforts (including the 2016 GAO Report on Federal Fisheries Management), and whether those efforts have resulted in changes to management, by the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, and the National Marine Fisheries Service to prepare and adapt Federal and jointly managed fisheries for the impacts of climate change;

(B) an examination of any guidance issued to the Regional Fishery Management Councils by the National Marine Fisheries Service to prepare and adapt Federal fishery management for the impacts of climate change and whether and how that guidance has been utilized;

(C) identification of and recommendations for how best to address the most significant economic, social, ecological, or other knowledge gaps, as well as key funding gaps, that would increase the ability of the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, or the National Marine Fisheries Service to prepare and adapt fishery management for the impacts of climate change;

(D) recommendations for how the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, and the National Marine Fisheries Service can better adapt fishery management and prepare associated fishing industries and dependent communities for the impacts of climate change; and

(E) recommendations for how to enhance the capacity of the National Marine Fisheries Service to monitor climate-related changes to fisheries and marine ecosystems, to understand the mechanisms of change, to evaluate risks and priorities, to provide forecasts and projections of future conditions, to communicate scientific advice, and to better manage fisheries under changing conditions due to climate change.

SA 2619. Mr. WICKER (for himself, Mr. CASSIDY, Mr. SULLIVAN, Ms. CANTWELL, and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ___FISHERY RESOURCE DISASTER RELIEF

SEC. _____. SHORT TITLE.

This title may be cited as the ''Fishery Failures: Urgently Needed Disaster Declarations Act''.

SEC. _____. FISHERY RESOURCE DISASTER RELIEF.

Section 312(a) of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1861a(a)) is amended to read as follows:

''(a) FISHERY RESOURCE DISASTER RELIEF.—

''(1) DEFINITIONS.—In this subsection:

''(A) ALLOWABLE CAUSE.—The term 'allowable cause' means a natural cause, discrete anthropogenic cause, or undetermined cause.

''(B) ANTHROPOGENIC CAUSE.—The term 'anthropogenic cause' means an anthropogenic event, such as an oil spill or spillway opening—

''(i) that could not have been addressed or prevented by fishery management measures; and

''(ii) that is otherwise beyond the control of fishery managers to mitigate through conservation and management measures, including regulatory restrictions imposed as a result of judicial action or to protect human health or marine animals, plants, or habitats.

''(C) FISHERY RESOURCE DISASTER.—The term 'fishery resource disaster' means a disaster that is determined by the Secretary in accordance with this subsection and—

''(i) is an unexpected decrease in fish stock biomass or other change that results in significant loss of access to the fishery resource, which may include loss of fishing vessels and gear for a substantial period of time and results in significant revenue or subsistence loss due to an allowable cause; and

''(ii) does not include—

''(I) reasonably predictable, foreseeable, and recurrent fishery cyclical variations in species distribution or stock abundance; or

''(II) reductions in fishing opportunities resulting from conservation and management measures taken pursuant to this Act.

''(D) INDIAN TRIBE.—The term 'Indian Tribe' has the meaning given such term in section 102 of the Federally Recognized Indian Tribe List Act of 1994 (25 U.S.C. 5130), and the term 'Tribal' means of or pertaining to such an Indian tribe.

''(E) NATURAL CAUSE.—The term 'natural cause'—

''(i) means a weather, climatic, hazard, or biology-related event, such as—

''(I) a hurricane;

''(II) a flood;

''(III) a harmful algal bloom;

''(IV) a tsunami;

''(V) a hypoxic zone;

''(VI) a drought;

''(VII) El Niño effects on water temperature;

''(VIII) a marine heat wave;

''(IX) disease; or

''(X) access to fishery resources that is impeded due to impacts to captains and crew caused by the COVID-19 pandemic; and

''(ii) does not mean a normal or cyclical variation in a species distribution or stock abundance.

''(F) 12-MONTH REVENUE LOSS.—The term '12-month revenue loss' means the percentage reduction in commercial, charter, headboat, and processor revenue for the 12 months during the fishery resource disaster period that is due to the fishery resource disaster, when compared to average annual revenue in the most recent 5-year period or equivalent for stocks with cyclical life histories.

''(G) UNDETERMINED CAUSE.—The term 'undetermined cause' means a cause in which the current state of knowledge does not allow the Secretary to identify the exact cause, and there is no current conclusive evidence supporting a possible cause of the fishery resource disaster.

''(2) GENERAL AUTHORITY.—

''(A) IN GENERAL.—The Secretary shall have the authority to determine the existence, extent, and beginning and end dates of a fishery resource disaster under this subsection in accordance with this subsection.

''(B) AVAILABILITY OF FUNDS.—After the Secretary determines that a fishery resource disaster has occurred, the Secretary is authorized to make sums available, from funds appropriated under paragraph (9) that are available, to be used by the affected State, Tribal government, or interstate marine fisheries commission, or by the Secretary in cooperation with the affected State, Tribal government, or interstate marine fisheries commission.

''(C) SAVINGS CLAUSE.—

''(i) IN GENERAL.—Except as provided under clause (ii), the requirements under this subsection shall take effect only with respect to requests for a fishery resource disaster determination submitted after the date of enactment of the Fishery Failures: Urgently Needed Disaster Declarations Act.

''(ii) EXCEPTION.—Clause (i) shall not apply to a fishery resource disaster determination related to the COVID-19 pandemic.

''(3) INITIATION OF A FISHERY RESOURCE DISASTER REVIEW.—

''(A) ELIGIBLE REQUESTERS.—Not later than 1 year after the date of the conclusion of the

fishing season, a request for a fishery resource disaster determination may be submitted to the Secretary, if the Secretary has not independently determined that a fishery resource disaster has occurred, by—

''(i) the Governor of an affected State;

''(ii) an official Tribal resolution; or

''(iii) any other comparable elected or politically appointed representative as determined by the Secretary.

''(B) REQUIRED INFORMATION.—A complete request for a fishery resource disaster determination under subparagraph (A) shall include—

''(i) identification of all presumed affected fish stocks;

''(ii) identification of the fishery as Federal, non-Federal, or both;

''(iii) the geographical boundaries of the fishery;

''(iv) preliminary information on causes of the fishery resource disaster, if known; and

''(v) information needed to support a finding of a fishery resource disaster, including—

''(I) information demonstrating the occurrence of an unexpected decrease in fish stock biomass or other change that results in significant loss of access to the fishery resource, which could include the loss of fishing vessels and gear, for a substantial period of time;

''(II) 12-month revenue loss or subsistence loss for the affected Federal fishery, or if a fishery resource disaster has occurred at any time in the previous 5-year period, an appropriate time frame as determined by the Secretary;

''(III) if applicable, information on lost resource tax revenues assessed by local communities, such as a raw fish tax; and

''(IV) if applicable, information on 12-month revenue loss for processors related to the information provided under subclause (I), subject to section 402(b).

''(C) ASSISTANCE.—The Secretary may provide assistance, data, and analysis to an eligible requester described in paragraph (1), if so requested and the data is not available to the requester, in carrying out the compete request under subparagraph (A).

''(4) REVIEW PROCESS.—

''(A) INTERIM RESPONSE.—Not later than 20 days after receipt of a request under paragraph (3), the Secretary shall provide an interim response to the individual that—

''(i) acknowledges receipt of the request;

''(ii) provides a regional contact within the National Oceanographic and Atmospheric Administration;

''(iii) outlines the process and timeline by which a request shall be considered; and

''(iv) requests additional information concerning the fishery resource disaster, if the original request is considered incomplete.

''(B) EVALUATION OF REQUESTS.—

''(i) IN GENERAL.—The Secretary shall complete a review, within the time frame described in clause (ii), using the best scientific information available, in consultation with the affected fishing communities, States, or Tribes, of—

''(I) the information provided by the requester and any additional information relevant to the fishery, which may include—

''(aa) fishery characteristics;

''(bb) stock assessments;

''(cc) the most recent fishery independent surveys and other fishery resource assessments and surveys conducted by Federal, State, or Tribal officials;

''(dd) estimates of mortality; and

''(ee) overall effects; and

''(II) the available economic information, which may include an analysis of—

''(aa) landings data;

''(bb) revenue;

''(cc) the number of participants involved;

''(dd) the number and type of jobs and persons impacted, which may include—

''(AA) fishers;

''(BB) charter fishing operators;

''(CC) subsistence users;

''(DD) United States fish processors; and

''(EE) an owner of a related fishery infrastructure or business affected by the disaster, such as a marina operator, recreational fishing equipment retailer, or charter, headboat, or tender vessel owner, operator, or crew;

''(ee) an impacted Indian Tribe;

''(ff) an impacted business or other entity;

''(gg) the availability of hazard insurance to address financial losses due to a disaster;

''(hh) other forms of disaster assistance made available to the fishery, including prior awards of disaster assistance for the same event;

''(ii) the length of time the resource, or access to the resource, has been restricted;

''(jj) status of recovery from previous fishery resource disasters;

''(kk) lost resource tax revenues assessed by local communities, such as a raw fish tax; and

''(ll) other appropriate indicators to an affected fishery, as determined by the National Marine Fisheries Service.

''(ii) TIME FRAME.—The Secretary shall complete the review described in clause (i), if the fishing season, applicable to the fishery—

''(I) has concluded or there is no defined fishing season applicable to the fishery, not later than 120 days after the Secretary receives a complete request for a fishery resource disaster determination;

''(II) has not concluded, not later than 120 days after the conclusion of the fishing season; or

''(III) has not been opened, not later than 120 days after the Secretary receives a complete request for a fishery resource disaster determination.

''(C) FISHERY RESOURCE DISASTER DETERMINATION.—The Secretary shall make the determination of a fishery resource disaster based on the criteria for determinations listed in paragraph (5).

''(D) NOTIFICATION.—Not later than 14 days after the conclusion of the review under this paragraph, the Secretary shall notify the requestor and the Governor of the affected State or Tribal representative of the determination of the Secretary.

''(5) CRITERIA FOR DETERMINATIONS.—

''(A) IN GENERAL.—The Secretary shall make a determination about whether a fishery resource disaster has occurred, based on the revenue loss thresholds under subparagraph (B), and, if a fishery resource disaster has occurred, whether the fishery resource disaster was due to—

''(i) a natural cause;

''(ii) an anthropogenic cause;

''(iii) a combination of a natural cause and an anthropogenic cause; or

''(iv) an undetermined cause.

''(B) REVENUE LOSS THRESHOLDS.—

''(i) IN GENERAL.—The Secretary shall apply the following 12-month revenue loss thresholds in determining whether a fishery resource disaster has occurred:

''(I) Losses greater than 80 percent shall result in a positive determination that a fishery resource disaster has occurred.

''(II) Losses between 35 percent and 80 percent shall be evaluated to determine whether a fishery resource disaster has occurred, based on the information provided or analyzed under paragraph (4)(B).

''(III) Losses less than 35 percent shall not be eligible for a determination that a fishery resource disaster has occurred, except where the Secretary determines there are extenuating circumstances that justify using a lower threshold in making the determination.

''(ii) CHARTER FISHING.—In making a determination of whether a fishery resource disaster has occurred, the Secretary shall consider the economic impacts to the charter fishing industry to ensure financial coverage for charter fishing businesses.

''(iii) SUBSISTENCE USES.—In making a determination of whether a fishery resource disaster has occurred, the Secretary may consider loss of subsistence opportunity, where appropriate.

''(C) INELIGIBLE FISHERIES.—A fishery subject to overfishing in any of the 3 years preceding the date of a determination under this subsection is not eligible for a determination of whether a fishery resource disaster has occurred unless the Secretary determines that overfishing was not a contributing factor to the fishery resource disaster.

''(D) EXCEPTIONAL CIRCUMSTANCES.—In an exceptional circumstance where substantial economic impacts to the affected fishery and fishing community have been subject to a disaster declaration under another statutory authority, such as in the case of a natural disaster or from the direct consequences of a Federal action taken to prevent, or in response to, a natural disaster for purposes of protecting life and safety, the Secretary may determine a fishery resource disaster has occurred without a request or without conducting the required analyses in subparagraphs (A) and (B).

''(6) DISBURSAL OF APPROPRIATED FUNDS.—

''(A) AUTHORIZATION.—The Secretary shall allocate funds available under paragraph (9) for fishery resource disasters.

''(B) ALLOCATION OF APPROPRIATED FISHERY RESOURCE DISASTER ASSISTANCE.—

''(i) NOTIFICATION OF FUNDING AVAILABILITY.—When there are appropriated funds for 1 or more fishery resource disasters, the Secretary shall notify the public and representatives of affected fishing communities with a positive disaster determination that is unfunded of the allocation under paragraph (2)(B) not more than 14 days after the date of the appropriation or the determination of a fishery resource disaster, whichever occurs later.

''(ii) EXTENSION OF DEADLINE.—The Secretary may extend the deadline under clause (i) by 90 days to evaluate and make determinations on eligible requests.

''(C) CONSIDERATIONS.—In determining the allocation of appropriations for a fishery resource disaster, the Secretary shall consider commercial, charter, headboat, or seafood processing revenue losses and may consider the following factors:

''(i) Direct economic impacts.

''(ii) Uninsured losses.

''(iii) Losses of subsistence and Tribal ceremonial fishing opportunity.

''(iv) Losses of recreational fishing opportunity.

''(v) Aquaculture operations revenue loss.

''(vi) Direct revenue losses to a fishing community.

''(vii) Treaty obligations.

''(viii) Other economic impacts.

''(D) SPEND PLANS.—To receive an allocation from funds available under paragraph (9), a requestor with an affirmative fishery resource disaster determination shall submit a spend plan to the Secretary, not more than 120 days after receiving notification that funds are available, that shall include the following information, if applicable:

''(i) Objectives and outcomes, with an emphasis on addressing the factors contributing to the fishery resource disaster and minimizing future uninsured losses, if applicable.

''(ii) Statement of work.

''(iii) Budget details.

''(E) REGIONAL CONTACT.—The Secretary shall provide a regional contact within the National Oceanic and Atmospheric Administration to facilitate review of spend plans and disbursal of funds.

''(F) DISBURSAL OF FUNDS.—

''(i) AVAILABILITY.—Funds shall be disbursed not later than 90 days after the date the Secretary receives a complete spend plan under subparagraph (D).

''(ii) METHOD.—The Secretary may provide an allocation of funds under this subsection in the form of a grant, direct payment, cooperative agreement, loan, or contract.

''(iii) ELIGIBLE USES.—

''(I) IN GENERAL.—Funds allocated for fishery resources disasters under this subsection shall prioritize the following uses, which are not in order of priority:

''(aa) Habitat conservation and restoration and other activities, including scientific research, that reduce adverse impacts to the fishery or improve understanding of the affected species or its ecosystem.

''(bb) The collection of fishery information and other activities that improve management of the affected fishery.

''(cc) In a commercial fishery, capacity reduction and other activities that improve management of fishing effort, including funds to offset budgetary costs to refinance a Federal fishing capacity reduction loan or to repay the principal of a Federal fishing capacity reduction loan.

''(dd) Developing, repairing, or improving fishery-related public infrastructure.

''(ee) Job training and economic transition programs.

''(ff) Public information campaigns on the recovery of the fishery, including marketing.

''(gg) For any purpose that the Secretary determines is appropriate to restore the fishery affected by such a disaster or to prevent a similar disaster in the future.

''(hh) Direct assistance to a person, fishing community (including assistance for lost fisheries resource levies), or a business to alleviate economic loss incurred as a direct result of a fishery resource disaster, particularly when affected by a circumstance described in paragraph (5)(D).

''(ii) Appropriate economic and other incentives to encourage commercial fisherman to return to the fishery once it has recovered from the disaster.

''(jj) Hatcheries and stock enhancement to help rebuild the affected stock or offset fishing pressure on the affected stock.

''(kk) Other activities that recover or improve management of the affected fishery, as determined by the Secretary.

''(II) DISPLACED FISHERY EMPLOYEES.—Where appropriate, individuals carrying out the activities described in items (aa) through (ff) of subclause (I) shall be individuals who are, or were, employed in a commercial, charter, or Tribal fishery for which the Secretary has determined that a fishery resource disaster has occurred.

''(7) LIMITATIONS.—

''(A) FEDERAL SHARE.—

''(i) IN GENERAL.—Except as applied to Tribes and as provided in clauses (ii) and (iii), the Federal share of the cost of any activity carried out under the authority of this subsection shall not exceed 75 percent of the cost of that activity.

''(ii) WAIVER.—The Secretary may waive the non-Federal share requirements of this subsection, if the Secretary determines that—

''(I) no reasonable means are available through which the recipient of the Federal share can meet the non-Federal share requirement; and

''(II) the probable benefit of 100 percent Federal financing outweighs the public interest in imposition of the non-Federal share requirement.

''(iii) EXCEPTION.—The Federal share of direct assistance as described in paragraph (6)(F)(iii)(I)(hh) shall be equal to 100 percent.

''(B) LIMITATIONS ON ADMINISTRATIVE EXPENSES.—

''(i) FEDERAL.—Not more than 3 percent of the funds available under this subsection may be used for administrative expenses by the National Oceanographic and Atmospheric Administration.

''(ii) STATE OR TRIBAL GOVERNMENTS.—Of the funds remaining after the use described in clause (i), not more than 5 percent may be used by States, Tribal governments, or interstate marine fisheries commissions for administrative expenses.

''(C) FISHING CAPACITY REDUCTION PROGRAM.—

''(i) IN GENERAL.—No funds available under this subsection may be used as part of a fishing capacity reduction program in a fishery unless the Secretary determines that adequate conservation and management measures are in place in such fishery.

''(ii) ASSISTANCE CONDITIONS.—As a condition of providing assistance under this subsection with respect to a vessel under a fishing capacity reduction program, the Secretary shall—

''(I) prohibit the vessel from being used for fishing; and

''(II) require that the vessel be—

''(aa) scrapped or otherwise disposed of in a manner approved by the Secretary;

''(bb) donated to a nonprofit organization and thereafter used only for purposes of research, education, or training; or

''(cc) used for another non-fishing purpose provided the Secretary determines that adequate measures are in place to ensure that the vessel cannot reenter any fishery anywhere in the world.

''(D) NO FISHERY ENDORSEMENT.—

''(i) IN GENERAL.—A vessel that is prohibited from fishing under subparagraph (C)(ii)(I) shall not be eligible for a fishery endorsement under section 12113(a) of title 46, United States Code.

''(ii) NONEFFECTIVE.—A fishery endorsement for a vessel described in clause (i) shall not be effective.

''(iii) NO SALE.—A vessel described in clause (i) shall not sold to a foreign owner or reflagged.

''(8) PUBLIC INFORMATION ON DATA COLLECTION.—The Secretary shall make available and update as appropriate, information on data collection and submittal best practices for the information described in paragraph (4)(B).

''(9) AUTHORIZATION OF APPROPRIATIONS.—

''(A) AUTHORIZATION.—There are authorized to be appropriated to carry out this subsection such sums as may be necessary.

''(B) AVAILABILITY OF FUNDS.—Amounts appropriated under this subsection shall remain available until expended.

''(C) TAX EXEMPT STATUS.—The Fisheries Disasters Fund appropriated under this subsection shall be a tax exempt fund.''.

SEC. _____. MAGNUSON-STEVENS FISHERY CONSERVATION AND MANAGEMENT ACT.

(a) REPEAL.—Section 315 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1864) is repealed.

(b) REPORT.—Section 113(b)(2) of the Magnuson-Stevens Fishery Conservation and Management Reauthorization Act of 2006 (16 U.S.C. 460ss note) is amended—

(1) in the paragraph heading, by striking ''ANNUAL REPORT'' and inserting ''REPORT'';

(2) in the matter preceding subparagraph (A), by striking ''Not later than 2 years after the date of enactment of this Act, and annually thereafter'' and inserting ''Not later than 2 years after the date of enactment of the Fishery Failures: Urgently Needed Disaster Declarations Act, and biennially thereafter''; and

(3) in subparagraph (D), by striking ''the calendar year 2003'' and inserting ''the most recent''.

SEC. _____. INTERJURISDICTIONAL FISHERIES ACT OF 1986.

(a) REPEAL.—Section 308 of the Interjurisdictional Fisheries Act of 1986 (16. U.S.C. 4107) is repealed.

(b) TECHNICAL EDIT.—Section 3(k)(1) of the Small Business Act (15 U.S.C. 632(k)(1)) is amended by striking ''(as determined by the Secretary of Commerce under section 308(b) of the Interjurisdictional Fisheries Act of 1986)'' and inserting ''(as determined by the Secretary of Commerce under the Fishery Failures: Urgently Needed Disaster Declarations Act)''.

SEC. _____. BUDGET REQUESTS; REPORTS.

(a) BUDGET REQUEST.—In the budget justification materials submitted to Congress in support of the budget of the Department of Commerce for each fiscal year (as submitted with the budget of the President under section 1105(a) of title 31, United States Code), the Secretary of Commerce shall include a separate statement of the amount requested to be appropriated for that fiscal year for outstanding unfunded fishery resource disasters.

(b) DRIFTNET ACT AMENDMENTS OF 1990 REPORT AND BYCATCH REDUCTION AGREEMENTS.—

(1) IN GENERAL.—The Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.) is amended—

(A) in section 202(h), by striking paragraph (3); and

(B) in section 206—

(i) by striking subsections (e) and (f); and

(ii) by redesignating subsections (g) and (h) as subsections (e) and (f), respectively.

(2) BIENNIAL REPORT ON INTERNATIONAL COMPLIANCE.—Section 607 of the High Seas Driftnet Fishing Moratorium Protection Act (16 U.S.C. 1826h) is amended—

(A) by inserting ''(a) IN GENERAL.—'' before ''The Secretary'' and indenting appropriately; and

(B) by adding at the end the following:

''(b) ADDITIONAL INFORMATION.—In addition to the information described in paragraphs (1) through (5) of subsection (a), the report shall include—

''(1) a description of the actions taken to carry out the provisions of section 206 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1826), including—

''(A) an evaluation of the progress of those efforts, the impacts on living marine resources, including available observer data, and specific plans for further action;

''(B) a list and description of any new fisheries developed by nations that conduct, or authorize their nationals to conduct, large-scale driftnet fishing beyond the exclusive economic zone of any nation; and

''(C) a list of the nations that conduct, or authorize their nationals to conduct, large-scale driftnet fishing beyond the exclusive economic zone of any nation in a manner that diminishes the effectiveness of or is inconsistent with any international agreement governing large-scale driftnet fishing to which the United States is a party or otherwise subscribes; and

''(2) a description of the actions taken to carry out the provisions of section 202(h) of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1822(h)).

''(c) CERTIFICATION.—If, at any time, the Secretary, in consultation with the Secretary of State and the Secretary of the department in which the Coast Guard is operating, identifies any nation that warrants inclusion in the list described under subsection

(b)(1)(C), due to large scale drift net fishing, the Secretary shall certify that fact to the President. Such certification shall be deemed to be a certification for the purposes of section 8(a) of the Fishermen's Protective Act of 1967 (22 U.S.C. 1978(a)).''.

(c) REPORT ON EFFORTS TO PREPARE AND ADAPT UNITED STATES FISHERY MANAGEMENT FOR THE IMPACTS OF CLIMATE CHANGE.—

(1) IN GENERAL.—Not later than 2 years after the date of enactment of this title, the Comptroller General of the United States shall submit a report to Congress examining efforts by the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, and the National Marine Fisheries Service to prepare and adapt to the impacts of climate change.

(2) CONTENTS OF STUDY.—The report required under paragraph (1) shall include—

(A) an examination of current or previous efforts (including the 2016 GAO Report on Federal Fisheries Management), and whether those efforts have resulted in changes to management, by the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, and the National Marine Fisheries Service to prepare and adapt Federal and jointly managed fisheries for the impacts of climate change;

(B) an examination of any guidance issued to the Regional Fishery Management Councils by the National Marine Fisheries Service to prepare and adapt Federal fishery management for the impacts of climate change and whether and how that guidance has been utilized;

(C) identification of and recommendations for how best to address the most significant economic, social, ecological, or other knowledge gaps, as well as key funding gaps, that would increase the ability of the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, or the National Marine Fisheries Service to prepare and adapt fishery management for the impacts of climate change;

(D) recommendations for how the Regional Fishery Management Councils, the Atlantic States Marine Fisheries Commission, and the National Marine Fisheries Service can better adapt fishery management and prepare associated fishing industries and dependent communities for the impacts of climate change; and

(E) recommendations for how to enhance the capacity of the National Marine Fisheries Service to monitor climate-related changes to fisheries and marine ecosystems, to understand the mechanisms of change, to evaluate risks and priorities, to provide forecasts and projections of future conditions, to communicate scientific advice, and to better manage fisheries under changing conditions due to climate change.

SA 2620. Mr. LANKFORD submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. SUPPLEMENTAL EMERGENCY UNEMPLOYMENT RELIEF FOR GOVERNMENTAL ENTITIES AND NONPROFIT ORGANIZATIONS.

(a) IN GENERAL.—Section 903(i)(1)(B) of the Social Security Act (42 U.S.C. 1103(i)(1)(B)) is amended by striking ''one-half'' and inserting ''100 percent''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect as if included in the enactment of the Relief for Workers Affected by Coronavirus Act (contained in subtitle A of title II of division A of the CARES Act (Public Law 116–136)).

SA 2621. Mr. BLUNT (for himself, Mr. CRAMER, Mr. DAINES, and Mr. SULLIVAN) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. 3. SUSTAINING TOURISM ENTERPRISES DURING THE COVID–19 PANDEMIC.

(a) SHORT TITLE.—This section may be cited as the ''Sustaining Tourism Enterprises During the COVID–19 Pandemic Act'' or the ''STEP Act''.

(b) TOURISM AND EVENTS SUPPORT AND PROMOTION.—Title II of the Public Works and Economic Development Act of 1965 is amended by inserting after section 207 (42 U.S.C. 3147) the following:

''SEC. 208. TOURISM AND EVENTS SUPPORT AND PROMOTION.

''(a) IN GENERAL.—Not later than 90 days after the date of enactment of the Sustaining Tourism Enterprises During the COVID–19 Pandemic Act, the Secretary shall provide grants to eligible entities—

''(1) to assist with loss of revenue due to the economic impact of the Coronavirus Disease 2019 (COVID–19); and

''(2) to promote economic recovery in communities affected by a decline in tourism and events due to COVID–19.

''(b) ELIGIBLE ENTITIES.—An entity eligible to receive a grant under this section is an entity that performs tourism promotion responsibilities, hosts, organizes, owns, operates, or staffs an event venue, a convention, or a trade show, or provides services as a concessionaire to events and tourism locations, including—

''(1) a State tourism board or department;

''(2) a political subdivision or instrumentality of a State or local government;

''(3) a unit of local government, including a county government;

''(4) a Tribal government;

''(5) a multijurisdictional or regional group;

''(6) a nonprofit organization described in section 501(c) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of that Code;

''(7) a quasi-governmental organization; and

''(8) a private business.

''(c) APPLICATION.—To be eligible to receive a grant under this section, an eligible entity shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

''(d) SELECTION.—The Secretary shall select eligible entities to receive grants under this section based on factors to be determined by the Secretary, using the best available data, including economic impact information provided by applicants, such as information on job losses faced by the eligible entity or within the industry of the eligible entity, to address the economic recovery needs in areas impacted by the decline in travel, tourism, and events activities, and the associated revenues, due to COVID–19.

''(e) USE OF FUNDS.—

''(1) IN GENERAL.—An eligible entity may use the funds from a grant under this section—

''(A) to pay costs associated with tourism marketing and promotion activities necessary to assist with economic recovery from lost revenue due to COVID–19, including to purchase advertisements from local media outlets, including on radio and television broadcast stations and in newspapers, for the purpose of marketing, public awareness, or information campaigns relating to local tourism;

''(B) to pay costs to promote economic recovery in communities impacted by a decline in travel, tourism, and events revenue as a result of COVID–19, including through the provision of information on the safety and security of sites for traveler or attendee awareness;

''(C) to pay cleaning and sanitary costs, including physical modifications, associated with precautions to provide for safe worker, traveler, or event environments; and

''(D) to pay the costs of salaries and expenses associated with the operations of the eligible entity with respect to activities described in subparagraphs (A), (B), and (C).

''(2) PROHIBITION.—Funds from a grant under this section may not be used for activities related to or for purposes of lobbying any governmental entity.

''(f) DISTRIBUTION.—Of the amounts made available to carry out this section—

''(1) $2,000,000,000 shall be for expedited grants to eligible entities to offset revenue losses due to the economic impact of COVID–19; and

''(2) any remaining amounts shall be for grants for activities described in subparagraphs (A) through (D) of subsection (e)(1).

''(g) MAXIMUM AMOUNT OF GRANT.—An eligible entity may not receive a grant under this section in an amount that is—

''(1) in the case of a grant under subsection (f)(1), more than 80 percent of the loss in revenue experienced by the eligible entity during the period beginning March 1, 2020, and ending on the date of submission of the application, as compared to the same period in 2019; and

''(2) in the case of a grant under subsection (f)(2), more than 80 percent of the revenue of the eligible entity during calendar year 2019.

''(h) LIMITATION.—

''(1) IN GENERAL.—Not more than 15 percent of the amounts made available to carry out this section may be used to provide grants to eligible entities that are private businesses.

''(2) PRIORITY.—The Secretary shall give priority for the amounts under paragraph (1) to private businesses that are small business concerns (within the meaning of section 3 of the Small Business Act (15 U.S.C. 632)).

''(i) NO CEDS REQUIRED.—To receive a grant under this section, an eligible entity shall not be required to have a comprehensive economic development strategy.

''(j) WAIVER.—The Secretary may waive, or specify alternative requirements for, any provision of any statute or regulation that the Secretary administers in connection with a grant under this section if the Secretary determines that any such waivers or alternative requirements are necessary to expedite or facilitate the use of the amounts made available under this section.

''(k) FEDERAL SHARE.—Notwithstanding section 204, the Federal share of the cost of an activity carried out with a grant under this section shall be 100 percent.

''(l) ADMINISTRATION.—

''(1) IN GENERAL.—Not more than 2 percent of the amounts made available to carry out this section may be used for the administrative costs of carrying out this section.

''(2) STAFFING.—

''(A) TEMPORARY APPOINTMENT.—The Secretary may appoint and fix the compensation

of such temporary personnel as may be necessary to carry out this section, without regard to the provisions of title 5, United States Code, governing appointments in competitive service.

''(B) PERMANENT APPOINTMENT.—

''(i) IN GENERAL.—In the case of an individual appointed as temporary personnel under subparagraph (A) who has served continuously for not less than 2 years, the Secretary may appoint that individual to a position in the Economic Development Administration in the same manner that competitive service employees with competitive status are considered for transfer, reassignment, or promotion to such positions.

''(ii) TREATMENT.—An individual appointed to a position under clause (i) shall become a career-conditional employee, unless the employee has already completed the service requirements for career tenure.

''(3) INVESTIGATIONS AND AUDITS.—The Secretary shall use $3,000,000 of the amounts made available to carry out this section to carry out investigations and audits related to the provision of grants under this section.

''(m) FUNDING.—

''(1) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary to carry out this section $10,000,000,000, to remain available until September 30, 2022.

''(2) ADDITIONAL FUNDING.—Notwithstanding any other provision of law, the Secretary may use any amounts made available to the Secretary under the heading 'ECONOMIC DEVELOPMENT ASSISTANCE PROGRAMS (INCLUDING TRANSFERS OF FUNDS)' under the heading 'ECONOMIC DEVELOPMENT ADMINISTRATION' under the heading 'DEPARTMENT OF COMMERCE' in title II of division B of the CARES Act (Public Law 116–136) that are unobligated as of the date of enactment of the Sustaining Tourism Enterprises During the COVID–19 Pandemic Act to provide grants under this section.''.

SA 2622. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. MAINTAINING 2021 MEDICARE PART B PREMIUM AND DEDUCTIBLE AT 2020 LEVELS CONSISTENT WITH ACTUARIALLY FAIR RATES.

(a) 2021 PREMIUM AND DEDUCTIBLE AND REPAYMENT THROUGH FUTURE PREMIUMS.—Section 1839(a) of the Social Security Act (42 U.S.C. 1395r(a)) is amended—

(1) in the second sentence of paragraph (1), by striking ''(5) and (6)'' and inserting ''(5), (6), and (7)'';

(2) in paragraph (6)(C)—

(A) in clause (i), by striking ''section 1844(d)(1)'' and inserting ''subsections (d)(1) and (e)(1) of section 1844''; and

(B) in clause (ii), by striking ''paragraph (5)'' and inserting ''paragraphs (5) and (7)''; and

(3) by adding at the end the following:

''(7) In applying this part (including subsection (i) and section 1833(b)), the monthly actuarial rate for enrollees age 65 and over for 2021 shall be the same as the monthly actuarial rate for enrollees age 65 and over for 2020.''.

(b) TRANSITIONAL GOVERNMENT CONTRIBUTION.—Section 1844 of the Social Security Act (42 U.S.C. 1395w) is amended—

(1) in subsection (a), by adding at the end the following new sentence: ''In applying paragraph (1), the amounts transferred under subsection (e)(1) with respect to enrollees described in subparagraphs (A) and (B) of such subsection shall be treated as premiums payable and deposited in the Trust Fund under subparagraphs (A) and (B), respectively, of paragraph (1).''; and

(2) by adding at the end the following:

''(e)(1) For 2021, there shall be transferred from the General Fund to the Trust Fund an amount, as estimated by the Chief Actuary of the Centers for Medicare & Medicaid Services, equal to the reduction in aggregate premiums payable under this part for a month in such year (excluding any changes in amounts collected under section 1839(i)) that are attributable to the application of section 1839(a)(7) with respect to—

''(A) enrollees age 65 and over; and

''(B) enrollees under age 65.

Such amounts shall be transferred from time to time as appropriate.

''(2) Premium increases affected under section 1839(a)(6) shall not be taken into account in applying subsection (a).

''(3) There shall be transferred from the Trust Fund to the General Fund of the Treasury amounts equivalent to the additional premiums payable as a result of the application of section 1839(a)(6), excluding the aggregate payments attributable to the application of section 1839(i)(3)(A)(ii)(II).''.

(c) ADDITIONAL TRANSITIONAL GOVERNMENT CONTRIBUTION.—Section 1844 of the Social Security Act (42 U.S.C. 1395w), as amended by subsection (b)(2), is amended by adding at the end the following:

''(f)(1) There shall be transferred from the General Fund of the Treasury to the Trust Fund an amount, as estimated by the Chief Actuary of the Centers for Medicare & Medicaid Services, equal to amounts paid under the advance payment program under section 421.214 of title 42, Code of Federal Regulations (or any successor regulation) during the period beginning on March 28, 2020, and ending on July 9, 2020.

''(2) There shall be transferred from the Trust Fund to the General Fund of the Treasury amounts equivalent to the sum of—

''(A) the amounts by which claims have offset (in whole or in part) the amount of such advance payments described in paragraph (1); and

''(B) the amount of such advance payments that has been repaid (in whole or in part), under the advance payment program under such section 421.214 (or any such successor regulation).

''(3) Amounts described in paragraphs (1) and (2) shall be transferred from time to time as appropriate.''.

(d) INDENTATION CORRECTION.—Section 1839(i)(3)(A)(ii) of the Social Security Act (42 U.S.C. 1395r(i)(3)(A)(ii)) is amended by moving the indentation of subclause (I) two ems to the right.

(e) EMERGENCY DESIGNATION.—

(1) IN GENERAL.—The amounts provided by this section and the amendments made by this section are designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(g)).

(2) DESIGNATION IN SENATE.—In the Senate, this section and the amendments made by this section are designated as an emergency requirement pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018.

SA 2623. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ___—SUPPORTING PATIENTS, PROVIDERS, OLDER AMERICANS, AND FOSTER YOUTH IN RESPONDING TO COVID–19

Subtitle A—Promoting Access to Care and Services

SEC. __01. MAINTAINING 2021 MEDICARE PART B PREMIUM AND DEDUCTIBLE AT 2020 LEVELS CONSISTENT WITH ACTUARIALLY FAIR RATES.

(a) 2021 PREMIUM AND DEDUCTIBLE AND REPAYMENT THROUGH FUTURE PREMIUMS.—Section 1839(a) of the Social Security Act (42 U.S.C. 1395r(a)) is amended—

(1) in the second sentence of paragraph (1), by striking ''(5) and (6)'' and inserting ''(5), (6), and (7)'';

(2) in paragraph (6)(C)—

(A) in clause (i), by striking ''section 1844(d)(1)'' and inserting ''subsections (d)(1) and (e)(1) of section 1844''; and

(B) in clause (ii), by striking ''paragraph (5)'' and inserting ''paragraphs (5) and (7)''; and

(3) by adding at the end the following:

''(7) In applying this part (including subsection (i) and section 1833(b)), the monthly actuarial rate for enrollees age 65 and over for 2021 shall be the same as the monthly actuarial rate for enrollees age 65 and over for 2020.''.

(b) TRANSITIONAL GOVERNMENT CONTRIBUTION.—Section 1844 of the Social Security Act (42 U.S.C. 1395w) is amended—

(1) in subsection (a), by adding at the end the following new sentence: ''In applying paragraph (1), the amounts transferred under subsection (e)(1) with respect to enrollees described in subparagraphs (A) and (B) of such subsection shall be treated as premiums payable and deposited in the Trust Fund under subparagraphs (A) and (B), respectively, of paragraph (1).''; and

(2) by adding at the end the following:

''(e)(1) For 2021, there shall be transferred from the General Fund to the Trust Fund an amount, as estimated by the Chief Actuary of the Centers for Medicare & Medicaid Services, equal to the reduction in aggregate premiums payable under this part for a month in such year (excluding any changes in amounts collected under section 1839(i)) that are attributable to the application of section 1839(a)(7) with respect to—

''(A) enrollees age 65 and over; and

''(B) enrollees under age 65.

Such amounts shall be transferred from time to time as appropriate.

''(2) Premium increases affected under section 1839(a)(6) shall not be taken into account in applying subsection (a).

''(3) There shall be transferred from the Trust Fund to the General Fund of the Treasury amounts equivalent to the additional premiums payable as a result of the application of section 1839(a)(6), excluding the aggregate payments attributable to the application of section 1839(i)(3)(A)(ii)(II).''.

(c) ADDITIONAL TRANSITIONAL GOVERNMENT CONTRIBUTION.—Section 1844 of the Social Security Act (42 U.S.C. 1395w), as amended by subsection (b)(2), is amended by adding at the end the following:

''(f)(1) There shall be transferred from the General Fund of the Treasury to the Trust

Fund an amount, as estimated by the Chief Actuary of the Centers for Medicare & Medicaid Services, equal to amounts paid under the advance payment program under section 421.214 of title 42, Code of Federal Regulations (or any successor regulation) during the period beginning on March 28, 2020, and ending on July 9, 2020.

''(2) There shall be transferred from the Trust Fund to the General Fund of the Treasury amounts equivalent to the sum of—

''(A) the amounts by which claims have offset (in whole or in part) the amount of such advance payments described in paragraph (1); and

''(B) the amount of such advance payments that has been repaid (in whole or in part), under the advance payment program under such section 421.214 (or any such successor regulation).

''(3) Amounts described in paragraphs (1) and (2) shall be transferred from time to time as appropriate.''.

(d) INDENTATION CORRECTION.—Section 1839(i)(3)(A)(ii) of the Social Security Act (42 U.S.C. 1395r(i)(3)(A)(ii)) is amended by moving the indentation of subclause (I) two ems to the right.

SEC. __02. IMPROVEMENTS TO THE MEDICARE HOSPITAL ACCELERATED AND ADVANCE PAYMENTS PROGRAMS DURING THE COVID–19 PUBLIC HEALTH EMERGENCY.

(a) PART A.—

(1) REPAYMENT PERIODS.—Section 1815(f)(2)(C) of the Social Security Act (42 U.S.C. 1395g(f)(2)(C)) is amended—

(A) in clause (i), by striking ''120 days'' and inserting ''270 days''; and

(B) in clause (ii), by striking ''12 months'' and inserting ''18 months''.

(2) AUTHORITY FOR DISCRETION.—Section 1815(f)(2)(A)(ii) of the Social Security Act (42 U.S.C. 1395g(f)(2)(A)(ii)) is amended by inserting ''(or, with respect to requests submitted to the Secretary on or after July 9, 2020, may)''after ''shall.''.

(b) PART B.—In carrying out the advance payments program described in section 421.214 of title 42, Code of Federal Regulations (or a successor regulation), the Secretary of Health and Human Services, in the case of a payment made under such program during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)), upon request of the supplier receiving such payment, shall—

(1) provide up to 270 days before claims are offset to recoup the payment; and

(2) allow not less than 14 months from the date of the first advance payment before requiring that the outstanding balance be paid in full.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

(d) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary of Health and Human Services may implement the provisions of, and the amendments made by, this section by program instruction or otherwise.

SEC. __03. AUTHORITY TO EXTEND MEDICARE TELEHEALTH WAIVERS.

(a) AUTHORITY.—Section 1834(m) of the Social Security Act (42 U.S.C. 1395m(m)) is amended by adding at the end the following new paragraph:

''(9) AUTHORITY TO EXTEND TELEHEALTH WAIVERS AND POLICIES.—

''(A) AUTHORITY.—Notwithstanding the preceding provisions of this subsection and section 1135, subject to subparagraph (B), if the emergency period under section 1135(g)(1)(B) expires prior to December 31, 2021, the authority provided the Secretary under section 1135(b)(8) to waive or modify requirements with respect to a telehealth service, and modifications of policies with respect to telehealth services made by interim final rule applicable to such period, shall be extended through December 31, 2021.

''(B) NO REQUIREMENT TO EXTEND.— Nothing in subparagraph (A) shall require the Secretary to extend any specific waiver or modification or modifications of policies that the Secretary does not find appropriate for extension.

''(C) IMPLEMENTATION.—Notwithstanding any provision of law, the provisions of this paragraph may be implemented by interim final rule, program instructions or otherwise.''.

(b) MEDPAC EVALUATION AND REPORT.—

(1) STUDY.—

(A) IN GENERAL.—The Medicare Payment Advisory Commission (in this subsection referred to as the ''Commission'') shall conduct an evaluation of—

(i) the expansions of telehealth services under part B of title XVII of the Social Security Act related to the COVID-19 public health emergency described in section 1135(g)(1)(B) of such Act (42 U.S.C. 1320b–5(g)(1)(B)); and

(ii) the appropriate treatment of such expansions after the expiration of such public health emergency.

(B) ANALYSIS.—The evaluation under subparagraph (A) shall include an analysis of each the following:

(i) Which, if any, of such expansions should be continued after the expiration of the such public health emergency,

(ii) Whether any such continued expansions should be limited to, or differentially applied to, clinicians participating in certain value-based payment models.

(iii) How Medicare should pay for telehealth services after the expiration of such public health emergency, and the implications of payment approaches on aggregate Medicare program spending,

(iv) Medicare program integrity and beneficiary safeguards that may be warranted with the coverage of telehealth services.

(v) The implications of expanded Medicare coverage of telehealth services for beneficiary access to care and the quality of care provided via telehealth.

(vi) Other areas determined appropriate by the Commission.

(2) REPORT.—Not later than June 15, 2021, the Commission shall submit to Congress a report containing the results of the evaluation conducted under paragraph (1), together with recommendations for such legislation and administrative action as the Commission determines appropriate.

(c) HHS PROVISION OF INFORMATION AND STUDY AND REPORT.—

(1) PRE–COVID–19 PUBLIC HEALTH EMERGENCY TELEHEALTH AUTHORITY.—Not later than 3 months after the date of enactment of this Act, the Secretary of Health and Human Services (in this subsection referred to as the ''Secretary'') shall make available on the internet website of the Centers for Medicare & Medicaid Services information describing the requirements applicable to telehealth services and other virtual services under the original Medicare fee-for-service program under parts A and B of title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) and the Medicare Advantage program under part C of such title prior to the waiver or modification of such requirements during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)), as established by statute, regulation, and sub-regulatory guidance under such title.

(2) STUDY AND REPORT.—

(A) STUDY.—The Secretary shall conduct a study on the impact of telehealth and other virtual services furnished under the Medicare program under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) during the emergency period described in section 1135(g)(1)(B) of such Act (42 U.S.C. 1320b–5(g)(1)(B)). In conducting such study, the Secretary shall—

(i) assess the impact of such services on access to care, health outcomes, and spending by type of physician, practitioner, or other entity, and by patient demographics and other characteristics that include—

(I) age, gender, race, and type of eligibility for the Medicare program;

(II) dual eligibility for both the Medicare program and the Medicaid program under title XIX of such Act (42 U.S.C. 1396 et seq.);

(III) residing in an area of low-population density or a health professional shortage area (as defined in section 332(a)(1)(A) of the Public Health Service Act (42 U.S.C. 254e(a)(1)(A))) ;

(IV) diagnoses, such as a diagnosis of COVID–19, a chronic condition, or a mental health disorder or substance use disorder;

(V) telecommunication modality used, including extent to which the services are furnished using audio-only technology;

(VI) residing in a State other than the State in which the furnishing physician, practitioner, or other entity is located; and

(VII) other characteristics and information determined appropriate by the Secretary; and

(ii) to the extent feasible, assess such impact based on—

(I) the type of technology used to furnish the service;

(II) the extent to which patient privacy is protected;

(III) the extent to which documented or suspected fraud or abuse occurred; and

(IV) patient satisfaction.

(B) USE OF INFORMATION.—The Secretary may use reliable non-governmental sources of information in assessing the impact of characteristics described in subparagraph (A) under the study.

(C) REPORT.—

(i) INTERIM PROVISION OF INFORMATION.—The Secretary shall, as determined appropriate, periodically during such emergency period, post on the internet website of the Centers for Medicare & Medicaid services data on utilization of telehealth and other virtual services under the Medicare program and the impact of characteristics described in subparagraph (A) on such utilization.

(ii) REPORT.—Not later than 15 months after date of enactment of this Act, the Secretary shall submit to Congress a report on the study conducted under subparagraph (A), together with recommendations for such legislation and administrative action as the Secretary determines appropriate.

SEC. __04. EXTENDING MEDICARE TELEHEALTH FLEXIBILITIES FOR FEDERALLY QUALIFIED HEALTH CENTERS AND RURAL HEALTH CLINICS.

(a) IN GENERAL.—Section 1834(m) of the Social Security Act (42 U.S.C. 1395m(m)) is amended—

(1) in paragraph (4)(C)—

(A) in clause (i), in the matter preceding subclause (I), by striking ''and (7)'' and inserting ''(7), and (8)''; and

(B) in clause (ii)(X), by inserting ''or paragraph (8)(A)(i)'' before the period; and

(2) in paragraph (8)—

(A) in the paragraph heading by inserting ''AND FOR AN ADDITIONAL PERIOD AFTER'' after ''DURING '';

(B) in subparagraph (A)—

(i) in the matter preceding clause (i), by inserting ''and the 5-year period beginning on

the first day after the end of such emergency period'' after ''1135(g)(1)(B)'';

(ii) in clause (ii), by striking ''and'' at the end;

(iii) by redesignating clause (iii) as clause (iv); and

(iv) by inserting after clause (ii) the following new clause:

''(iii) the geographic requirements described in paragraph (4)(C)(i) shall not apply with respect to such a telehealth service; and'';

(C) in subparagraph (B)(i)—

(i) in the first sentence, by inserting ''and the 5-year period beginning on the first day after the end of such emergency period'' before the period; and

(ii) in the third sentence, by striking ''program instruction or otherwise'' and inserting ''interim final rule, program instruction, or otherwise''; and

(D) by adding at the end the following new subparagraph:

''(C) REQUIREMENT DURING ADDITIONAL PERIOD.—

''(i) IN GENERAL.—During the 5-year period beginning on the first day after the end of the emergency period described in section 1135(g)(1)(B), payment may only be made under this paragraph for a telehealth service described in subparagraph (A)(i) that is furnished to an eligible telehealth individual if such service is furnished by a qualified provider (as defined in clause (ii)).

''(ii) DEFINITION OF QUALIFIED PROVIDER.—For purposes of this subparagraph, the term 'qualified provider' means, with respect to a telehealth service described in subparagraph (A)(i) that is furnished to an eligible telehealth individual, a Federally qualified health center or rural health clinic that furnished to such individual, during the 3-year period ending on the date the telehealth service was furnished, an item or service in person for which—

''(I) payment was made under this title; or

''(II) such payment would have been made if such individual were entitled to, or enrolled for, benefits under this title at the time such item or service was furnished.''.

(b) EFFECTIVE DATE.—The amendments made by this section (other than the amendment made by subsection (a)(2)(D)) shall take effect as if included in the enactment of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

SEC. _05. SUPPORT FOR OLDER FOSTER YOUTH.

(a) FUNDING INCREASES.—The dollar amount specified in section 477(h)(1) of the Social Security Act (42 U.S.C. 677(h)(1)) for fiscal year 2020 is deemed to be $193,000,000.

(b) PROGRAMMATIC FLEXIBILITY.—During the COVID–19 public health emergency:

(1) SUSPENSION OF CERTAIN REQUIREMENTS UNDER THE EDUCATION AND TRAINING VOUCHER PROGRAM.—The Secretary may allow a State to waive the applicability of the requirement in section 477(i)(3) of the Social Security Act (42 U.S.C. 677(i)(3)) that a youth must be enrolled in a postsecondary education or training program or making satisfactory progress toward completion of that program if a youth is unable to meet these requirements due to the public health emergency.

(2) AUTHORITY TO WAIVE LIMITATIONS ON PERCENTAGE OF FUNDS USED FOR HOUSING ASSISTANCE AND ELIGIBILITY FOR SUCH ASSISTANCE.—Notwithstanding subsections (b)(3)(B) and (b)(3)(C) of section 477 of the Social Security Act (42 U.S.C. 677), a State may—

(A) use more than 30 percent of the amounts paid to the State from its allotment under subsection (c) of such section for a fiscal year for room or board payments; and

(B) expend amounts paid to the State from its allotment under subsection (c) of such section for a fiscal year for room or board for youth who have attained age 18, are no longer in foster care or otherwise eligible for services under such section, and experienced foster care at 14 years of age or older.

(c) SPECIAL RULES.—

(1) NONAPPLICATION OF MATCHING FUNDS REQUIREMENT FOR INCREASED FUNDING.—With respect to the amount allotted to a State under section 477(c)(1) of the Social Security Act (42 U.S.C. 677(c)(1)) for fiscal year 2020, the Secretary shall apply section 474(a)(4)(A)(i) of such Act (42 U.S.C. 674(a)(4)(A)(i)) to the additional amount of such allotment resulting from the deemed increase in the dollar amount specified in section 477(h)(1) of such Act (42 U.S.C. 677(h)(1)) for fiscal year 2020 under subsection (a) by substituting ''100 percent'' for ''80 percent''.

(2) NO RESERVATION FOR EVALUATION, TECHNICAL ASSISTANCE, PERFORMANCE MEASUREMENT, AND DATA COLLECTION ACTIVITIES.—Section 477(g)(2) of such Act (42 U.S.C. 677(g)(2)) shall not apply to the portion of the deemed dollar amount for section 477(h)(1) of such Act (42 U.S.C. 677(h)(1)) for fiscal year 2020 under subsection (a) that exceeds the dollar amount specified in that section for such fiscal year.

(d) DEFINITIONS.—In this section:

(1) COVID–19 PUBLIC HEALTH EMERGENCY.—The term ''COVID–19 public health emergency'' means the public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act on January 31, 2020, entitled ''Determination that a Public Health Emergency Exists Nationwide as the Result of the 2019 Novel Coronavirus'' and includes any renewal of such declaration pursuant to such section 319.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

SEC. _06. COURT IMPROVEMENT PROGRAM.

(a) TEMPORARY FUNDING INCREASES.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated to the Secretary, $10,000,000 for fiscal year 2020 for making grants in accordance with this section to the highest State courts described in section 438 of the Social Security Act (42 U.S.C. 629h). Grants made under this section shall be considered to be Court Improvement Program grants made under such section 438, subject to the succeeding provisions of this section.

(b) DISTRIBUTION OF FUNDS.—

(1) IN GENERAL.—From the amount appropriated under subsection (a), the Secretary shall—

(A) reserve up to $500,000 for Tribal court improvement activities; and

(B) pay from the amount remaining after the application of subparagraph (A), a grant to each highest State court that is approved to receive a grant under section 438 of the Social Security Act for the purpose described in subsection (a)(3) of that section for fiscal year 2020.

(2) AMOUNT.—The amount of the grant awarded to a highest State court under this section is equal to the sum of—

(A) $85,000; and

(B) the amount that bears the same ratio to the amount appropriated under subsection (a) that remains after the application of paragraph (1)(A) and subparagraph (A) of this paragraph, as the number of individuals in the State who have not attained 21 years of age bears to the total number of such individuals in all States (based on the most recent year for which data are available from the Bureau of the Census).

(3) OTHER RULES.—

(A) IN GENERAL.—The grants awarded to the highest State courts under this section shall be in addition to any grants made to such courts under section 438 of such Act for any fiscal year.

(B) NO MATCHING REQUIREMENT.—The limitation on the use of funds specified in section 438(d) of such Act (42 U.S.C. 629h(d)) shall not apply to the grants awarded under this section.

(C) NO ADDITIONAL APPLICATION.—The Secretary shall award grants to the highest State courts under this section without requiring such courts to submit an additional application.

(D) REPORTS.—The Secretary may establish reporting criteria specific to the grants awarded under this section.

(E) REDISTRIBUTION OF FUNDS.—If a highest State court does not accept a grant awarded under this section, or does not agree to comply with any reporting requirements imposed under subparagraph (D) or the use of funds requirements specified in subsection (c), the Secretary shall redistribute the grant funds that would have been awarded to that court among the other highest State courts that are awarded grants under this section and agree to comply with such reporting and use of funds requirements.

(c) USE OF FUNDS.—A highest State court awarded a grant under this section shall use the grant funds to address needs stemming from the COVID–19 public health emergency, which may include any of the following:

(1) Technology investments to facilitate the transition to remote hearings for dependency courts when necessary as a direct result of the COVID–19 public health emergency.

(2) Training for judges, attorneys, and caseworkers on facilitating and participating in remote technology hearings that still comply with due process, meet Congressionally mandated requirements, ensure child safety and well-being, and help inform judicial decision-making.

(3) Programs to help families address aspects of the case plan to avoid delays in legal proceedings that would occur as a direct result of the COVID–19 public health emergency.

(4) Other purposes to assist courts, court personnel, or related staff related to the COVID–19 public health emergency.

(d) DEFINITIONS.—In this section:

(1) COVID–19 PUBLIC HEALTH EMERGENCY.—The term ''COVID–19 public health emergency'' means the public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act on January 31, 2020, entitled ''Determination that a Public Health Emergency Exists Nationwide as the Result of the 2019 Novel Coronavirus'' and includes any renewal of such declaration pursuant to such section 319.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

Subtitle B—Emergency Support and COVID–19 Protection for Nursing Homes

SEC. _11. DEFINITIONS.

In this subtitle:

(1) COVID–19.—The term ''COVID–19'' means the 2019 Novel Coronavirus or 2019-nCoV.

(2) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(3) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(4) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(5) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(6) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(7) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

SEC. __12. ESTABLISHING COVID–19 STRIKE TEAMS FOR NURSING FACILITIES.

(a) IN GENERAL.—The Secretary is authorized to establish and support the operation of strike teams comprised of individuals with relevant skills, qualifications, and experience to respond to COVID–19-related crises in participating providers during the COVID–19 public health emergency period, based on data reported by such providers to the Centers for Disease Control and Prevention.

(b) MISSION AND COMPOSITION OF STRIKE TEAMS.—

(1) IN GENERAL.—Strike teams established by the Secretary may include assessment, testing, and clinical teams, and a mission for each such team may include performing medical examinations, conducting COVID–19 testing, and assisting participating providers with the implementation of infection control practices (such as quarantine, isolation, or disinfection procedures).

(2) LETTER OF AUTHORIZATION.—Strike teams and members of such teams shall be subject to the Secretary's oversight and direction and the Secretary may issue a letter of authorization to team members describing—

(A) the individual's designation to serve on 1 or more teams under an emergency proclamation by the Secretary;

(B) the mission of the team;

(C) the authority of the individual to perform the team mission;

(D) the individual's authority to access places, persons, and materials necessary for the team member's performance of the team's mission;

(E) the requirement that team members maintain the confidentiality of patient information shared with such individuals by a participating provider; and

(F) the required security background checks that the individual has passed.

(3) SECRETARIAL OVERSIGHT.—The Secretary may, at any time, disband any strike team and rescind the letter of authorization for any team member.

(4) TEAM AND MEMBER AUTHORITY.—A team and team member may not use the letter of authorization described in paragraph (2) for any purpose except in connection with the team's mission of acting in good faith to promote resident and employee safety in participating providers in which COVID–19 is confirmed to be present.

(5) ADMINISTRATION.—The Secretary, in consultation with the Director of the Centers for Disease Control and Prevention, may establish protocols and procedures for requesting the assistance of a strike team established under this section and any other procedures deemed necessary for the team's operation.

(6) SUPPLEMENTATION OF OTHER RESPONSE EFFORTS.—Strike teams established by the Secretary under this section shall supplement and not supplant response efforts carried out by a State strike team or a technical assistance team established by the Secretary during the COVID-19 public health emergency period.

SEC. __13. PROMOTING COVID–19 TESTING AND INFECTION CONTROL IN NURSING FACILITIES.

(a) NURSING HOME PROTECTIONS.—The Secretary, in consultation with the Elder Justice Coordinating Council, is authorized during the COVID–19 public health emergency period to enhance efforts by participating providers to respond to COVID–19, including through—

(1) development of online training courses for personnel of participating providers, survey agencies, the long-term care ombudsman of each State, and other individuals to facilitate the implementation of subsection (b);

(2) enhanced diagnostic testing of visitors to, personnel of, and residents of, participating providers in which measures of COVID–19 in the community support more frequent testing for COVID–19;

(3) development of training materials for personnel of participating providers, the long-term care ombudsman of each State, and other individuals to facilitate the implementation of subsection (c); and

(4) providing support to participating providers in areas deemed by the Secretary to require additional assistance due to the presence COVID–19 infections.

(b) TRAINING ON BEST PRACTICES IN INFECTION CONTROL AND PREVENTION.—

(1) IN GENERAL.—The Secretary shall develop training courses on infection control and prevention, including cohorting, strategies and use of telehealth to mitigate the transmission of COVID–19 in participating providers during the COVID–19 public health emergency period.

(2) DEVELOPMENT.—To the extent practicable, the training programs developed by the Secretary under this subsection shall use best practices in infection control and prevention.

(3) COORDINATION WITH OTHER FEDERAL ENTITIES.—The Secretary shall seek input as appropriate on the training courses developed under this subsection from the Elder Justice Coordinating Council and the Director of the Centers for Disease Control and Prevention.

(4) INTERACTIVE WEBSITE.—The Secretary is authorized to create an interactive website to disseminate training materials and related information in the areas of infection control and prevention, for purposes of carrying out this subsection during the COVID–19 public health emergency period.

SEC. __14. PROMOTING TRANSPARENCY IN COVID–19 REPORTING BY NURSING FACILITIES.

Not later than 10 days after the date of enactment of this Act, and at least weekly thereafter during the COVID-19 public health emergency period, the Secretary shall provide the Governor of each State with a list of all participating providers in the State with respect to which the reported cases of COVID–19 in visitors to, personnel of, and residents of, such providers increased during the previous week (or, in the case of the first such list, during the 10-day period beginning on the date of enactment of this Act).

SEC. __15. FUNDING.

The Secretary may use amounts appropriated for COVID–19 response and related activities pursuant to the CARES Act (Public Law 116–136) and subsequently enacted legislation to carry out this subtitle.

Subtitle C—Emergency Designation

SEC. __21. EMERGENCY DESIGNATION.

(a) IN GENERAL.—The amounts provided by this title and the amendments made by this title are designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(g)).

(b) DESIGNATION IN SENATE.—In the Senate, this title and the amendments made by this title are designated as an emergency requirement pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018.

SA 2624. Mr. MORAN submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ____ PRIVATE-PUBLIC PARTNERSHIP TO PRESERVE JOBS IN THE AVIATION MANUFACTURING INDUSTRY

SEC. ___01. DEFINITIONS.

In this title:

(1) AT-RISK EMPLOYEE GROUP.—The term ''at-risk employee group'' means the portion of an employer's United States workforce that—

(A) does not exceed 25 percent of the employer's total United States workforce; and

(B) as of the date an application is submitted, is at risk of a furlough or permanent reduction in force but for the relief provided for in this title.

(2) AVIATION MANUFACTURING COMPANY.—The term ''aviation manufacturing company'' means those businesses that hold a Federal Aviation Administration Type Certificate, Production Certificate, Repair Station Certificate, or other similar authorization from the Federal Aviation Administration, and as the Secretary may determine, may include civil aviation suppliers of such businesses.

(3) COVID–19 PUBLIC HEALTH EMERGENCY.—The term ''COVID–19 public health emergency'' means the public health emergency with respect to the 2019 Novel Coronavirus.

(4) EMPLOYEE.—The term ''employee'' has the meaning given that term in section 3 of the Fair Labor Standards Act of 1938 (29 U.S.C. 203)).

(5) EMPLOYER.—The term ''employer'' means an aviation manufacturing company that is an employer (as defined in section 3 of the Fair Labor Standards Act of 1938 (29 U.S.C. 203)).

(6) PRIVATE PARTNER CONTRIBUTION.—The term ''private partner contribution'' means the contribution funded by the employer under this title to maintain a minimum of 50 percent of the at-risk employee group's total compensation level, and combined with the public partner contribution, is sufficient to maintain the total compensation level for the at-risk employee group as of April 1, 2020.

(7) PUBLIC PARTNER CONTRIBUTION.—The term ''public partner contribution'' means the contribution funded by the Federal Government under this title to provide not more than 50 percent of the at-risk employees group's total compensation level, and combined with the private partner contribution, is sufficient to maintain the total compensation level for those in the at-risk employee group as of April 1, 2020.

(8) SECRETARY.—The term ''Secretary'' means the Secretary of the Treasury, or the designee of the Secretary of the Treasury.

(9) TOTAL COMPENSATION LEVEL.—The term ''total compensation level'' means the level

of total base compensation and benefits being provided to an at-risk employee group employee, excluding overtime and premium pay, as of April 1, 2020.

SEC. ___02. PRIVATE-PUBLIC PARTNERSHIP.

(a) AUTHORITY TO ENTER INTO AGREEMENTS AND MAKE CONTRIBUTIONS.—Notwithstanding any other provision of law, to help ensure the continued retention of employees in the aviation manufacturing industry impacted by the COVID–19 public health emergency, the Secretary is authorized to partner with employers to supplement compensation of an at-risk employee group financially impacted by the COVID–19 public health emergency and to facilitate the effective economic recovery of the aviation manufacturing industry by entering into agreements with such employers and providing public partner contributions in accordance with this title. The public partner contributions made under such an agreement when combined with the private partner contribution, shall be in an amount sufficient to maintain the total compensation level for the at-risk employee group as of April 1, 2020, for a term to be agreed, but for a duration that is not longer than 1 year.

(b) PROCEDURES.—As soon as practicable, but in no case not later than 10 days after the date of enactment of this Act, the Secretary shall publish procedures for application and minimum eligibility requirements for participation in the private-public partnership program authorized under this title. Nothing in the preceding sentence shall be construed as prohibiting the Secretary from publishing such supplements to the initially published procedures as the Secretary determines necessary.

(c) TERMS AND CONDITIONS.—Upon submission of an application, the Secretary may partner with an employer to provide to the employer a public partner contribution, that together with the private partner contribution, shall constitute an amount sufficient to maintain the total compensation level of the at-risk employee group, for a period not to exceed 1 year, if the Secretary determines that—

(1) the employer establishes that economic conditions as of the date of the application would make necessary a furlough or permanent reduction in force of a portion of its workforce devoted to aviation manufacturing;

(2) there is an identifiable at-risk employee group;

(3) the employer agrees to fund the private partner contribution for as long as it is accepting the public partner contribution (and, in the event circumstances dictate that the employer cease its participation in this program early, the employer agrees and shall notify the Secretary that there shall be no further obligation of the Secretary to fund the public partner contribution);

(4) the employer commits to refrain from any furlough or permanent reduction in force of employees in the at-risk employee group for as long as it accepts public partner contributions for that group, subject to the employer's right to discipline or terminate an employee in accordance with employer policy;

(5) the employer shall use the public and private partner contribution solely for the purpose of providing compensation and benefits of the at-risk employee group and for no other purpose; and

(6) the public and private partner contribution shall be utilized solely for compensation of United States-based employees.

(d) CONSIDERATIONS.—In determining whether to enter into a private-public partnership with an employer and the terms for such a partnership with a specific employer, the Secretary may consider—

(1) the relevant financial performance of the employer, including the extent to which the employer has experienced a deterioration in cash position, loss of revenue, and other relevant information;

(2) information regarding the likelihood the employer will need to impose a furlough or permanent reduction in force of employees in the at-risk employee group in the absence of the partnership and the factors that would be used to determine which employees in the at-risk employee group are likely to be so affected, including whether the selection of employees to be so affected would be based on a general reduction in headcount across the business or by location (or both), position, or other factors; and

(3) any other information the Secretary deems relevant to determining whether to enter into a private-public partnership with an employer or to the terms for such a partnership with a specific employer.

(e) NO LIMIT ON NUMBER AGREEMENTS WITH AN EMPLOYER.—An employer may seek and be granted public partner contributions under this title on multiple occasions.

(f) COORDINATION.—In implementing this section, the Secretary shall coordinate with the Secretary of Transportation and the Secretary of Commerce.

(g) AGREEMENT DEADLINE.—No agreement shall be entered into by the Secretary under the private-public partnership program authorized under this title after the end of the 1-year period that begins on the effective date for the first agreement entered into under such program.

SEC. ___03. FUNDING.

Out of any funds in the Treasury not otherwise appropriated, there are appropriated to the Secretary $14,400,000,000 for the period of fiscal years 2020 through 2021, to carry out this title.

SA 2625. Mr. WICKER (for himself, Mr. RUBIO, Mr. BLUNT, Mrs. BLACKBURN, Ms. COLLINS, Mr. CORNYN, Mrs. HYDE-SMITH, Mr. CASSIDY, and Mr. GRAHAM) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ___ CORPS ACT

SEC. ___ 1. SHORT TITLE.—

This title may be cited as the ''Cultivating Opportunity and Response to the Pandemic through Service Act'' or the ''CORPS Act''.

SEC. ___2. FINDINGS.

Congress finds the following:

(1) The United States has a strong history of citizen response to national calls to service in order to help the Nation recover in times of crisis.

(2) More than 80 years ago, the Nation rose to the challenge of the Great Depression with the creation of citizen service programs like the Civilian Conservation Corps (referred to in this section as the ''CCC'') and the Works Progress Administration (referred to in this section as the ''WPA'').

(3) Millions of participants benefitted from paid employment and opportunities to develop their skills while constructing national parks and public lands infrastructure and producing cultural works still enjoyed today.

(4) Following decades of evolution, incorporating policies of both political parties, today's national service programs carry on the legacy of the CCC and WPA.

(5) Founded in 1990, the Corporation for National and Community Service today coordinates national service by individuals in the United States across every State and territory, partnering with State-level commissions and supporting locally driven services in partnership with nongovernmental organizations and State governments.

(6) National service programs provide public health, education, employment training, and nutrition services for which the Nation has a critical need in the current crisis.

(7) The signature programs of the Corporation for National and Community Service, which are the AmeriCorps State and National, AmeriCorps National Civilian Community Corps, AmeriCorps VISTA, and National Senior Service Corps programs, can and should be expanded to meet current needs.

(8) The novel coronavirus pandemic has infected and killed individuals in every State and territory, causing more than 2,000,000 cases and 115,000 deaths so far.

(9) In response, States, tribal governments, and cities across the country have closed down businesses, schools, and public events, leading to a dramatic drop in economic activity and a sharp projected decline in the United States economy.

(10) More than 40,000,000 applications for unemployment benefits have been filed in recent weeks, with weekly filings repeatedly exceeding historic record levels.

(11) More than 1 in every 10 adults in the United States has applied for unemployment insurance since the crisis began.

(12) The pandemic and the associated economic consequences have disproportionately impacted people of color across many States.

(13) To recover, the Nation also needs meaningful employment opportunities, as well as a significant expansion of the human capital working to address community needs around public health, behavioral health, hunger, education, and conservation.

(14) Experience has demonstrated the centrality of community participation in pandemic response, to overcome stigma and structural barriers and meet the full needs of all members of a diverse community.

(15) As the Nation works to respond to and recover from the current twin challenges of a public health pandemic and an economic crisis, national service presents a unique opportunity for flexible, locally driven responses to meet State and local public health, employment, and recovery needs.

SEC. ___3. PURPOSES.

The purposes of this title are—

(1) to provide for annual growth of 250,000 participants, over 3 years, in national service programs, such as the Public Land Corps (also known as the 21st Century Conservation Service Corps) programs and other AmeriCorps programs, that will provide services in response to the pandemic and economic crisis;

(2) to ensure that participant allowances cover the reasonable cost of participation and provide participants with economic and educational opportunity;

(3) to stabilize such national service programs during economic crisis; and

(4) to support opportunities for all individuals in the United States to engage in service.

SEC. ___4. DEFINITIONS.

(a) NCSA.—Section 101 of the National and Community Service Act of 1990 (42 U.S.C. 12511) is amended—

(1) by redesignating paragraphs (13) through (16), (17) through (35), and (36) through (49), as paragraphs (14) through (17), (19) through (37), and (39) through (52), respectively;

(2) by inserting after paragraph (12) the following:

''(13) COVID–19 DEFINITIONS.—

''(A) COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—The term 'COVID–19 emergency response and recovery period' means the period beginning on the first day of the COVID–19 public health emergency and ending at the end of fiscal year 2023.

''(B) COVID–19 PUBLIC HEALTH EMERGENCY.—The term 'COVID–19 public health emergency' means the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19.'';

(3) by inserting after paragraph (17), as so redesignated, the following:

''(18) HIGH-POVERTY AREA.—The term 'high -poverty area' means a census tract defined as high-poverty by the Bureau of the Census.''; and

(4) by inserting after paragraph (37), as so redesignated, the following:

''(38) PUBLIC LAND CORPS.—The term 'Public Lands Corps' means the Corps established in section 204 of the Public Lands Corps Act of 1993 (16 U.S.C. 1723).''.

(b) DVSA.—Section 421 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5061) is amended—

(1) in paragraph (19), by striking ''and'' after the semicolon;

(2) in paragraph (20), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(21)(A) the term 'COVID–19 emergency response and recovery period' means the period beginning on the first day of the COVID–19 public health emergency and ending at the end of fiscal year 2023; and

''(B) the term 'COVID–19 public health emergency' means the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19; and

''(22) the term 'Public Lands Corps' means the Corps established in section 204 of the Public Lands Corps Act of 1993 (16 U.S.C. 1723).''.

SEC. ___5. PRIORITIZING RESPONSE SERVICES.

(a) AMERICORPS STATE AND NATIONAL.—

(1) NATIONAL SERVICE PRIORITIES.—Section 122(f) of the National and Community Service Act of 1990 (42 U.S.C. 12572(f)) is amended—

(A) in paragraph (1)—

(i) in subparagraph (A), by adding at the end the following: ''For fiscal years 2020 through 2023, the Corporation shall include, in the national service priorities, the priorities described in paragraph (5).''; and

(ii) in subparagraph (B), by adding at the end the following: ''For fiscal years 2020 through 2023, each State shall include, in the State priorities, the priorities described in paragraph (5).''; and

(B) by adding at the end the following:

''(5) EMERGENCY PRIORITIES.—For fiscal years 2020 through 2023, the priorities established under paragraph (1) for national service programs shall provide that the Corporation and the States, as appropriate, shall give priority to entities submitting applications—

''(A) that propose activities directly related to the response to and recovery from the COVID–19 public health emergency, such as the provision of—

''(i) public health services, including support for isolation and quarantine activities;

''(ii) emergency logistics, such as the setup of alternate care sites;

''(iii) work that furthers the capacity of State (including territorial), tribal, and local health departments and the recommendations of the Director of the Centers for Disease Control and Prevention;

''(iv) work that furthers the capacity of nonprofit and community organizations to respond to the immediate needs of individuals affected by COVID–19;

''(v) services that support economic opportunity;

''(vi) education, including enrichment and adult education and literacy activities;

''(vii) services to address housing and food insecurity; and

''(viii) jobs for youth in preserving and restoring nature;

''(B) who—

''(i) are—

''(I) current (as of the date of the application submission) or former recipients of financial assistance under the program for which the application is submitted; and

''(II) able to provide services directly related to the response and recovery described in subparagraph (A); or

''(ii) are—

''(I) community-based organizations located in the rural or high-poverty areas, or tribal communities, the organizations propose to serve; and

''(II) able to provide services directly related to the response and recovery described in subparagraph (A);

''(C) to the maximum extent practicable—

''(i) if the entities are proposing programs that serve, or proposing to give priority for positions to applicants from, underserved populations, such as individuals described in section 129(a)(1)(B) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3164(a)(1)(B)), minority individuals, individuals who have had contact with the juvenile justice system, Indians, veterans, and individuals whose abilities are not typical, such as individuals with intellectual or developmental disabilities;

''(ii) especially if the entities propose recruiting applicants for positions to serve in the same metropolitan or micropolitan statistical area or county as the area or county, respectively, in which the applicants attended a secondary school or institution of higher education; and

''(iii) especially if the entities propose programs that serve populations in rural or high-poverty areas, or tribal communities; and

''(D) that propose to give priority for positions to applicants who—

''(i) were serving outside of the United States in the Peace Corps, the J. William Fulbright Educational Exchange Program referenced in section 112 of the Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2460), or the program under this subtitle, subtitle E, or part A of title I of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4951 et seq.); but

''(ii) ended their terms of service early, or returned to the United States before the end of their terms of service, due to the COVID–19 public health emergency.''.

(b) AMERICORPS NCCC.—Section 157 of the National and Community Service Act of 1990 (42 U.S.C. 12617) is amended—

(1) in subsection (b)(1), by adding at the end the following:

''(C) SURGE CAPACITY AND PRIORITY PROJECTS.—

''(i) SURGE CAPACITY PROJECTS.—The Corporation and the Director of the Centers for Disease Control and Prevention shall develop, and the Corporation shall approve, a proposal for public health surge capacity projects. In carrying out the projects, the Corporation and the Director shall develop and deploy public health surge capacity teams.

''(ii) PRIORITY PROJECTS.—For fiscal years 2020 through 2023, the Corporation shall give priority to entities submitting applications for projects under this subtitle in the same manner as the Corporation gives priority to entities submitting applications for national service programs under section 122(f)(5).''; and

(2) in subsection (c)—

(A) in paragraph (1), by striking ''The campus'' and inserting ''Except as provided in paragraph (3), the campus''; and

(B) by adding at the end the following:

''(3) SURGE CAPACITY AND PRIORITY PROJECTS.—The Corporation shall assign the projects described in clauses (i) and (ii) of subsection (b)(1)(C) to specified Corps campuses.''.

(c) AMERICORPS VISTA.—Section 109 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4960) is amended by adding at the end the following: ''For fiscal years 2020 through 2023, the Corporation shall give priority to entities submitting applications for projects or programs under this part in the same manner as the Corporation gives priority to entities submitting applications for national service programs under section 122(f)(5) of the National and Community Service Act of 1990 (42 U.S.C. 12572(f)(5)).''.

SEC. ___6. STRENGTHENING OPPORTUNITY.

(a) ALLOWANCES.—

(1) DOMESTIC VOLUNTEER SERVICE ACT OF 1973.—Section 105(b) of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955(b)) is amended by adding at the end the following:

''(4) Notwithstanding paragraph (2), during the COVID–19 emergency response and recovery period, the Director shall set the subsistence allowance for volunteers under paragraph (1) for each fiscal year so that—

''(A) the minimum allowance is not less than an amount equal to 175 percent of such poverty line (as defined in section 673(2) of the Community Services Block Grant Act) for a single individual as expected for each fiscal year; and

''(B) the average subsistence allowance, excluding allowances for Hawaii, Guam, American Samoa, and Alaska, is not less than 185 percent of such poverty line.

''(5)(A) A stipend or allowance under this section or an allowance under section 140 of the National and Community Service Act of 1990 (42 U.S.C. 12594) shall not be increased as a result of amendments made by the Cultivating Opportunity and Response to the Pandemic through Service Act, or any other amendment made to this section or that section 140, respectively, unless the funds appropriated for carrying out this part or subtitle C of the National and Community Service Act of 1990 (42 U.S.C. 12571 et seq.), respectively, are sufficient to maintain for the fiscal year involved a number of participants to serve under this part or that subtitle C, respectively, that is at least equal to the number of such participants so serving during the preceding fiscal year.

''(B) In the event that sufficient appropriations for any fiscal year (consistent with subparagraph (A)) are not available to increase any stipend or allowance under this section or allowance under section 140 of the National and Community Service Act of 1990 to the minimum amount specified in this section or under that section 140, respectively, the Director shall increase the stipend or allowance involved to such amount as appropriations for such year permit consistent with subparagraph (A).''.

(2) NATIONAL AND COMMUNITY SERVICE ACT OF 1990.—Section 158 of the National and Community Service Act of 1990 (42 U.S.C. 12618) is amended by adding at the end the following:

''(h) ADJUSTMENT TO MAXIMUM ALLOWANCE DURING COVID–19 RESPONSE AND RECOVERY

PERIOD.—Notwithstanding the limitation on the allowance amount specified in subsection (b), during the COVID–19 emergency response and recovery period, the amount of the allowance that the Director shall establish pursuant to that subsection shall be any amount not in excess of the amount equal to 175 percent of the poverty line that is applicable to a family of 2 (as defined by the Office of Management and Budget and revised annually in accordance with section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2))).''.

(b) NATIONAL SERVICE EDUCATIONAL AWARDS.—Section 147 of the National and Community Service Act of 1990 (42 U.S.C. 12603) is amended by adding at the end the following:

''(f) ADJUSTMENT TO EDUCATIONAL AWARD DURING THE COVID–19 RESPONSE AND RECOVERY.—

''(1) IN GENERAL.—Notwithstanding subsection (a), an individual described in section 146(a) who successfully completes a required term of full-time national service in an approved national service position during the COVID–19 emergency response and recovery period shall receive a national service educational award having a value equal to twice the maximum amount of a Federal Pell Grant under section 401 of the Higher Education Act of 1965 (20 U.S.C. 1070a) that a student eligible for such Grant may receive in the aggregate (without regard to whether the funds are provided through discretionary or mandatory appropriations), for the award year for which the national service position is approved by the Corporation.

''(2) LESS THAN FULL-TIME SERVICE.—Notwithstanding subsections (b) and (c), an individual described in section 146(a) who successfully completes a required term of part-time national service in an approved national service position during the COVID–19 response and recovery period, or who is serving in an approved national service position and is released, during that period, in accordance with section 139(c)(1)(A) from completing the full-time or part-time term of service agreed to by the individual, shall receive that portion of the national service educational award calculated under paragraph (1) that corresponds to the quantity of the term of service actually completed by the individual.

''(3) DEFINITION.—In this subsection, the term 'institution of higher education' has the meaning given the term in section 148(h).''.

(c) TAX PROVISIONS.—

(1) INCOME TAX EXCLUSION FOR LIVING ALLOWANCE.—

(A) IN GENERAL.—Part III of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by inserting after section 139H the following new section:

''SEC. 139I. LIVING ALLOWANCE FOR NATIONAL SERVICE PARTICIPANTS.

''Gross income does not include the amount of any living allowance provided under section 105(b) of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955(b)) or section 140(a) or 158(b) of the National and Community Service Act of 1990 (42 U.S.C. 12594(a), 12618(b)).''.

(B) CLERICAL AMENDMENT.—The table of sections for part III of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by inserting after the item relating to section 139H the following new item:

''Sec. 139I. Living allowance for national service participants.''.

(C) EFFECTIVE DATE.—The amendments made by this paragraph shall apply to taxable years beginning after the date of the enactment of this Act.

(2) EXCLUSION FROM GROSS INCOME OF NATIONAL SERVICE EDUCATIONAL AWARDS.—

(A) IN GENERAL.—Section 117 of the Internal Revenue Code of 1986 (relating to qualified scholarships) is amended by adding at the end the following new subsection:

''(e) NATIONAL SERVICE EDUCATIONAL AWARDS.—Gross income shall not include any payments from the National Service Trust established under section 145 of the National and Community Service Act of 1990 (42 U.S.C. 12601), including the national service educational award described in subtitle D of title I of such Act (42 U.S.C. 12601 et seq.).''.

(B) EXCLUSION OF DISCHARGE OF STUDENT LOAN DEBT.—Subsection (f) of section 108 of such Code is amended by adding at the end the following new paragraph:

''(6) PAYMENTS UNDER NATIONAL SERVICE EDUCATIONAL AWARD PROGRAMS.—In the case of an individual, gross income shall not include any amount received as a national service educational award under subtitle D of title I of the National and Community Service Act of 1990 (42 U.S.C. 12601 et seq.).''.

(C) EFFECTIVE DATE.—The amendments made by this paragraph shall apply to taxable years ending after the date of the enactment of this Act.

SEC. ___7. INVITING PARTICIPATION.

(a) COORDINATION WITH OTHER YOUTH PROGRAMS.—Section 193A of the National and Community Service Act of 1990 (42 U.S.C. 12651d) is amended by adding at the end the following:

''(j) COORDINATION WITH OTHER YOUTH PROGRAMS.—

''(1) COVERED PROGRAMS.—The term 'covered program' means—

''(A) the YouthBuild program carried out by the Secretary of Labor under section 171 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3226);

''(B) the program of the Indian Youth Service Corps under section 210 of the Public Lands Corps Act of 1993 (16 U.S.C. 1727b);

''(C) a youth conservation corps program under title I of the Act entitled 'An Act to establish a pilot program in the Departments of the Interior and Agriculture designated as the Youth Conservation Corps, and for other purposes', approved August 13, 1970 (commonly known as the 'Youth Conservation Corps Act of 1970'; 16 U.S.C. 1701 et seq.); and

''(D) the National Guard Youth Challenge Program under section 509 of title 32, United States Code.

''(2) COORDINATION.—The Chief Executive Officer, in coordination with the Federal agency representatives for covered programs, shall develop a plan and make recommendations in the plan to improve coordination between covered programs and programs of the Corporation to meet the needs of underserved youth, such as economically disadvantaged youth, minority youth, youth who left school without a secondary school diploma, formerly incarcerated or court-involved youth, youth who are children of an incarcerated parent, youth in foster care (including youth aging out of foster care), migrant youth, and other youth who are neither enrolled in secondary or postsecondary school or participating in the labor market.''.

(b) PLATFORM FOR NATIONAL SENIOR SERVICE CORPS.—Title IV of the Domestic Volunteer Service Act of 1973 is amended—

(1) by redesignating section 421 (42 U.S.C. 5061), as amended by section ___4(b), as section 401;

(2) by moving that section 401 so as to follow the title heading for title IV; and

(3) by inserting after section 420 (42 U.S.C. 5059) the following:

''SEC. 421. ONLINE SERVICE PLATFORM.

''(a) ESTABLISHMENT.—The Chief Executive Officer of the Corporation shall establish an online service platform with a gateway to connect volunteers in the National Senior Service Corps with service projects and enable the volunteers to carry out distance volunteer services. The platform shall be linked to and placed prominently on the website of the Corporation. The Corporation may enter into a contract with a public entity to create the platform.

''(b) TRAINING RESOURCES AND INFORMATION.—

''(1) IN GENERAL.—The Corporation shall provide training resources, information, and guidance for the volunteers on the platform.

''(2) INFORMATION.—The Corporation shall provide information to regional offices of the Corporation about how to get volunteers in the National Senior Service Corps connected to the platform through the gateway.

''(3) GUIDANCE.—The Corporation shall issue guidance for the regional offices about how to transfer the programs of the National Senior Service Corps to the platform.

''(4) OUTREACH.—The Corporation shall provide outreach services to promote the platform including outreach to institutions of higher education, the Department of Veterans Affairs for mentorship projects, and State and local governments for community engagement projects.''.

(c) OUTREACH AND PROMOTION CAMPAIGN.—Section 193A(g) of such Act is amended by adding at the end the following:

''(4) OUTREACH AND PROMOTION CAMPAIGN.—

''(A) IN GENERAL.—In carrying out public awareness functions under this subsection, the Corporation shall carry out an outreach and promotion campaign to promote programs under the national service laws with opportunities to respond to the COVID–19 public health emergency, with the goal of maximizing awareness of those programs among individuals ages 17 through 30.

''(B) REPORT.—The Corporation shall prepare and submit to Congress a report that—

''(i) evaluates the outreach and promotion campaign; and

''(ii) contains—

''(I) an analysis of the measures and resources that would be required for the Corporation effectively to notify individuals who are ages 17 through 30 every 2 years of opportunities under the national service laws and steps to take to apply for those opportunities;

''(II) a description of how the Corporation would ensure those measures would enable the Corporation to provide that notification to targeted individuals from diverse geographic areas, including individuals who are ages 17 through 30 living in rural or high-poverty areas, or tribal communities; and

''(III) a recommendation regarding whether the Corporation should make the notifications described in subclause (I).''.

(d) VOLUNTEER GENERATION FUND.—Section 198P(d)(2) of the National and Community Service Act of 1990 (42 U.S.C. 12653p(d)(2)) is amended by adding at the end the following: ''With respect to grants made with funds appropriated as an additional amount under section 501(a)(4)(F), the minimum grant amount shall be not less than $250,000.''.

SEC. ___8. ENSURING AGILITY.

(a) WAIVER OF MATCHING FUNDS REQUIREMENTS.—Section 189A of the National and Community Service Act of 1990 (42 U.S.C. 12645d) is amended—

(1) in the section heading, by inserting ''**; MATCHING FUNDS DURING COVID–19 RESPONSE AND RECOVERY PERIOD**'' after ''**COMMUNITIES**''; and

(2) by adding at the end the following:

''(c) COVID–19 RESPONSE.—Notwithstanding any other provision of law, an entity that receives assistance from the Corporation for any program under the national

service laws (including a State Commission and an entity receiving subgrant funds) during the COVID–19 emergency response and recovery period shall not be subject to any requirements to provide matching funds for any such program, and the Federal share of such assistance for a recipient (including for a State Commission and a subgrant recipient) may be 100 percent.''.

(b) PILOT PROGRAM.—Section 126 of the National and Community Service Act of 1990 (42 U.S.C. 12576) is amended by adding at the end the following:

''(d) DIRECT PLACEMENTS DURING THE COVID–19 RESPONSE AND RECOVERY PERIOD.—

''(1) IN GENERAL.—Notwithstanding section 178(h), during the COVID–19 emergency response and recovery period, the Corporation shall implement a pilot program allowing State Commissions to directly place a portion of individuals who have approved national service positions in State national service programs in a manner to be determined by the Corporation.

''(2) PRIORITIES.—State Commissions participating in the pilot program shall, to the extent practicable, prioritize the placement of individuals in national service programs that serve rural or high-poverty areas, or tribal communities, especially such programs carried out by entities that have not previously been service sponsors for participants.

''(3) REPORT.—The Corporation shall prepare and submit a report to Congress at the end of the pilot program described in paragraph (1), containing recommendations about whether and how to continue such a program of direct placements.''.

(c) NO SUMMER LIMITATION DURING COVID–19 RESPONSE AND RECOVERY PERIOD.—Section 104 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4954) is amended by adding at the end the following:

''(f)(1) Notwithstanding any other provision of this part, during the COVID–19 emergency response and recovery period, the Director may enroll full-time VISTA associates in a program, during any months of the year, under such terms and conditions as the Director shall determine to be appropriate. Such individuals shall be assigned to projects that address the needs of underserved communities as a result of the COVID–19 public health emergency.

''(2) In preparing reports relating to programs under this Act, the Director shall report on participants, costs, and accomplishments under the program under this subsection separately.

''(3) The limitation on funds appropriated for grants and contracts, as contained in section 108, shall not apply to the program under this subsection.''.

(d) VISTA LIMITATION APPLICABILITY.—Section 108 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4958) is amended—

(1) in subsection (a), by striking ''Of funds appropriated'' and inserting ''Subject to subsection (c), of funds appropriated''; and

(2) by adding at the end the following:

''(c) RULE FOR COVID–19 RESPONSE AND RECOVERY PERIOD.—Notwithstanding subsection (a), during the COVID–19 emergency response and recovery period, in order to address the needs of underserved communities related to the COVID–19 pandemic, of funds appropriated for the purpose of this part under section 501, not more than 75 percent may be obligated for the direct cost of supporting volunteers in programs and projects (including new programs and projects that begin after the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act) carried out pursuant to this part, and such funds may be obligated regardless of when grant recipients commenced such programs and projects.''.

(e) AUGMENTATION AND EXPANSION GRANTS.—Title IV of the National and Community Service Act of 1990 (42 U.S.C. 12671) is amended—

(1) by striking the title IV title heading and all that follows through the section heading for section 401 and inserting the following:

''TITLE IV—RESPONSE PROJECTS

''SEC. 401. PROJECTS HONORING VICTIMS OF TERRORIST ATTACKS.'';

and

(2) by adding at the end the following:

''SEC. 402. COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD AUGMENTATION AND EXPANSION GRANTS.

''During the COVID–19 emergency response and recovery period, the Corporation may award noncompetitive augmentation and expansion grants, at such time and in such manner as the Corporation determines appropriate.''.

(f) TERM OF SERVICE DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Section 146 of the National and Community Service Act of 1990 (42 U.S.C. 12602) is amended by adding at the end the following:

''(g) TERM OF SERVICE DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Notwithstanding the aggregate value limit described in subsection (c), during the COVID–19 emergency response and recovery period, a participant who received 2 national service educational awards for terms of service concluding before the end of fiscal year 2020 may, as determined by the Corporation, be eligible for an additional term of service and, on the successful completion of that term, a third national service educational award.''.

(g) INCREASE IN LIMITATION ON GRANT AMOUNTS.—

(1) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT DURING EMERGENCY RESPONSE AND RECOVERY PERIOD.—Section 189 of the National and Community Service Act of 1990 (42 U.S.C. 12645c) is amended by adding at the end the following:

''(f) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Notwithstanding the limits described in subsections (a) and (e), during the COVID–19 emergency response and recovery period, the amount of funds approved by the Corporation for a grant to operate a program authorized under the national service laws, for supporting individuals serving in approved national service positions, may not exceed, for each full-time equivalent position—

''(1) an amount equal to the sum of—

''(A) $7,500; and

''(B) the living allowance established under section 140(a) (including any adjustment attributable to section 105(b)(4) of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955(b))); or

''(2) for a grant for a program meeting the requirements described in subsection (e), an amount equal to the sum of—

''(A) $10,000; and

''(B) the living allowance established under section 140(a) (including any adjustment referred to in paragraph (1)(B)).''.

(2) WAIVER AUTHORITY FOR INCREASED LIMITATION.—Section 189(e)(1) of the National and Community Service Act of 1990 (42 U.S.C. 12645c(e)(1)) is amended by striking ''$19,500'' and inserting ''an amount equal to the sum of $10,000 and the living allowance established under section 140(a) (including any adjustment referred to in subsection (f)(1)(B))''.

(h) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT FOR EDUCATIONAL AWARD ONLY PROGRAM DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Section 129A of the National and Community Service Act of 1990 (42 U.S.C. 12581a) is amended by adding at the end the following:

''(g) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT FOR EDUCATIONAL AWARD ONLY PROGRAM DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Notwithstanding the limit described in subsection (b), during the COVID–19 emergency response and recovery period, the Corporation may provide the operational support under this section for a program in an amount that is not more than $1,600 per individual enrolled in an approved national service position, or not more than $2,000 per such individual if at least 50 percent of the persons enrolled in the program are disadvantaged youth.''.

(i) SEASONAL PROGRAM.—

(1) ESTABLISHMENT OF NATIONAL CIVILIAN COMMUNITY CORPS PROGRAM.—Section 152(b)(2) of the National and Community Service Act of 1990 (42 U.S.C. 12612(b)(2)) is amended by striking ''summer'' and inserting ''seasonal''.

(2) SEASONAL NATIONAL SERVICE PROGRAM.—Section 154 of the National and Community Service Act of 1990 (42 U.S.C. 12614) is amended—

(A) in the section heading by striking ''**SUMMER**'' and inserting ''**SEASONAL**'';

(B) in subsection (a), by striking ''summer'' and inserting ''seasonal'';

(C) in subsection (b), by striking ''50 percent of the participants in the summer'' and inserting ''35 percent of the participants in the seasonal''; and

(D) by striking subsection (c) and inserting the following:

''(c) SEASONAL PROGRAM.—Persons desiring to participate in the seasonal national service program shall enter into an agreement with the Director to participate in the Corps for a period of not less than 3 months and not more than 6 months, as specified by the Director.''.

(j) NATIONAL SENIOR SERVICE CORPS.—Part D of title II of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5021 et seq.) is amended by adding at the end the following:

''SEC. 229. COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.

''(a) AGE REQUIREMENTS.—Notwithstanding section 201(a), during the COVID–19 emergency response and recovery period, in order to address the critical needs of local communities across the country as a result of the COVID–19 pandemic, individuals who are 45 years of age or older may be enrolled as volunteers to provide services under part A.

''(b) INCOME REQUIREMENTS.—Notwithstanding section 211(d), during the COVID–19 emergency response and recovery period, the terms 'low-income person' and 'person of low income' under such section shall mean any person whose income is not more than 400 percent of the poverty line defined in section 673(2) of the Community Services Block Grant (42 U.S.C. 9902(2)) and adjusted by the Director in the manner described in such section.''.

(k) FLEXIBILITY.—

(1) POLICY OF MAXIMIZING FLEXIBILITY.—It is the sense of the Senate that, in carrying out activities under this title, the Corporation for National and Community Service should, consistent with the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4950 et seq.) and the National and Community Service Act of 1990 (42 U.S.C. 12501), maximize the flexibility of State Commissions (as defined in section 101 of such Act (42 U.S.C. 12511)) to award and amend grants, consistent with the purposes of this title, and to rapidly enroll new individuals to serve in programs under the national service laws.

(2) REPORT ON ACTIVITIES TO MAXIMIZE FLEXIBILITY.—Not later than 120 days after the date of enactment of this Act, and in consultation with such State Commissions,

the Chief Executive Officer of the Corporation for National and Community Service shall prepare and submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives a report containing recommendations on what additional actions to maximize flexibility for such State Commissions would strengthen the work of State Commissions and their grantees.

(l) FURTHER EXPEDITING RAPID ENROLLMENT.—Not later than 90 days after the date of enactment of this Act, the Chief Executive Officer of the Corporation for National and Community Service shall review the Corporation's capacity and shall prepare and submit a report to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives containing information about whether a new unit within the Corporation for National and Community Service should be established to provide additional assistance or manage the enrollment process to ensure compliance with sections 189D and 199I of the National and Community Service Act of 1990 (42 U.S.C. 12645g; 12655i) for incoming participants in national service programs, particularly new national service programs receiving program assistance for the first time.

SEC. ____9. AUTHORIZATIONS OF APPROPRIATIONS.

(a) AMERICORPS STATE AND NATIONAL; EDUCATIONAL AWARDS.—

(1) IN GENERAL.—Section 501(a)(2) of the National and Community Service Act of 1990 (42 U.S.C. 12681(a)(2)) is amended by striking ''fiscal years 2010 through 2014'' and all that follows and inserting ''fiscal year 2020, in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, additional amounts of—

''(A) $10,300,000,000, to provide financial assistance under subtitle C of title I; and

''(B) $3,659,000,000, to provide national service educational awards under subtitle D of title I for the total of the number of participants described in section 121(f)(1) for fiscal years 2020 through 2023.''.

(2) CONFORMING AMENDMENT.—Section 121(f)(1) of such Act (42 U.S.C. 12571(f)(1)) of such Act is amended by striking subparagraphs (A), (B) and (C) and inserting the following:

''(A) increase the number of positions to 250,000 per year by fiscal year 2023; and

''(B) ensure that the increase described in subparagraph (A) is achieved through an appropriate balance of full- and part-time service positions;''.

(b) AMERICORPS NCCC.—Section 501(a)(3)(A) of such Act (42 U.S.C. 12681(a)(3)(A)) is amended by striking ''such sums as may be necessary for each of fiscal years 2010 through 2014.'' and inserting ''in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act an additional amount of $592,000,000 for fiscal year 2020.''.

(c) VOLUNTEER GENERATION FUND.—Section 501(a)(4) of such Act (42 U.S.C. 12681(a)(4)) is amended—

(1) in subparagraph (A), by striking ''for each of fiscal years 2010 through 2014'' and inserting ''for fiscal year 2020''; and

(2) in subparagraph (F), by striking ''section 198P—'' and all that follows and inserting ''in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, an additional amount of $50,000,000 for fiscal year 2020.''.

(d) ADMINISTRATION BY THE CORPORATION AND STATE COMMISSIONS.—Section 501(a)(5) of such Act (42 U.S.C. 12681(a)(5)) is amended—

(1) in subparagraph (A), by striking ''such sums as may be necessary for each of fiscal years 2010 through 2014.'' and inserting ''in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, an additional amount of $754,000,000 for fiscal year 2020.'';

(2) in subparagraph (B), by striking ''for a fiscal year, a portion'' and inserting ''a portion (from the amounts appropriated under subparagraph (A) before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, and an additional portion of $158,000,000,''; and

(3) by adding at the end the following new subparagraph:

''(C) OUTREACH AND PROMOTION CAMPAIGN FOR COVID–19 RESPONSE OPPORTUNITIES.—Of the amounts appropriated under subparagraph (A), $10,000,000 shall be made available to carry out an outreach and promotion campaign under section 193A(g)(4).''.

(e) AMERICORPS VISTA.—Section 501 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5081) is amended—

(1) in subsection (a)(1), by striking ''$100,000,000 for fiscal year 2010 and such sums as may be necessary for each of the fiscal years 2011 through 2014.'' and inserting '', in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, an additional amount of $1,100,000,000 for fiscal year 2020.''; and

(2) in subsection (d), by striking the period and inserting '', except that any additional amount appropriated under an amendment made by the Cultivating Opportunity and Response to the Pandemic through Service Act shall remain available for obligation through fiscal year 2023.''.

(f) NATIONAL SENIOR SERVICE CORPS.—Section 502 of such Act (42 U.S.C. 5082) is amended by adding at the end the following:

''(e) ONLINE SERVICE RESOURCES.—There are authorized to be appropriated, to develop online service resources to carry out parts A, B, C, and E of title II, $5,000,000 for fiscal year 2020.''.

SEC. __10. TABLE OF CONTENTS.

(a) NCSA.—The table of contents in section 1(b) of the National Community Service Act of 1990 is amended—

(1) by striking the item relating to section 154 and inserting the following:

''Sec. 154. Seasonal national summer program.'';

(2) by striking the item relating to section 189A and inserting the following:

''Sec. 189A. Matching requirements for severely economically distressed communities; matching funds during COVID–19 response and recovery period.'';

and

(3) by striking the item relating to the title heading for title IV and all that follows through the item relating to section 401 and inserting the following:

''TITLE IV—RESPONSE PROJECTS

''Sec. 401. Projects honoring victims of terrorist attacks.

''Sec. 402. COVID–19 emergency response and recovery period augmentation and expansion grants.''.

(b) DVSA.—The table of contents in section 1(b) of the National Community Service Act of 1990 is amended—

(1) in the items relating to part D of title II, by adding at the end the following:

''Sec. 229. COVID–19 emergency response and recovery period.'';

(2) by inserting after the item relating to the title heading for title IV the following:

''Sec. 401. Definitions.'';

and

(3) by striking the item relating to section 421 and inserting the following:

''Sec. 421. Online service platform.''.

SA 2626. Mr. TOOMEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. TEMPORARY SUSPENSION OF DUTIES ON ARTICLES NEEDED TO COMBAT THE COVID–19 PANDEMIC.

(a) IN GENERAL.—An article described in subsection (b) entered, or withdrawn from warehouse for consumption, during the period specified in subsection (c) shall enter the United States free of duty, including free of any duty that may be imposed as a penalty or otherwise imposed in addition to other duties, including any duty imposed pursuant to—

(1) section 301 of the Trade Act of 1974 (19 U.S.C. 2411);

(2) section 232 of the Trade Expansion Act of 1962 (19 U.S.C. 1862); or

(3) the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.).

(b) ARTICLES DESCRIBED.—An article is described in this subsection if the article is classified under any of the following statistical reporting numbers of the Harmonized Tariff Schedule of the United States or is identified by the United States International Trade Commission, after the date of the enactment of this Act, as an article related to the response to the COVID–19 pandemic:

2207.10.6090	3824.99.9295	7613.00.0000
2208.90.8000	3824.99.9297	8419.20.0010
2804.40.0000	3923.21.0095	8419.20.0020
2847.00.0000	3923.29.0000	8421.39.8040
3002.13.0000	3926.20.1010	8705.90.0000
3002.14.0000	3926.20.1020	8713.10.0000
3002.15.0000	3926.20.9010	8713.90.0030
3002.19.0000	3926.20.9050	8713.90.0060
3002.20.0000	3926.90.9910	9004.90.0000
3003.10.0000	3926.90.9990	9018.11.3000
3003.20.0000	3926.90.9996	9018.11.6000
3003.60.0000	4015.11.0110	9018.11.9000
3003.90.0100	4015.11.0150	9018.12.0000
3004.10.1020	4015.19.0510	9018.19.4000
3004.10.1045	4015.19.0550	9018.19.5500
3004.10.5045	4015.19.1010	9018.19.7500
3004.10.5060	4015.90.0010	9018.31.0040
3004.20.0020	4015.90.0050	9018.31.0080
3004.20.0030	4818.50.0000	9018.31.0090
3004.20.0060	4818.90.0000	9018.32.0000
3004.49.0060	6116.10.6500	9018.39.0020
3004.60.0000	6210.10.2000	9018.39.0040
3004.90.1000	6210.10.5000	9018.39.0050
3004.90.9210	6210.10.9010	9018.90.3000
3004.90.9285	6210.10.9040	9018.90.7580
3004.90.9290	6210.50.3500	9018.90.8000
3005.10.5000	6210.50.7500	9019.20.0000
3005.90.5090	6216.00.5420	9020.00.6000
3006.70.0000	6307.90.6090	9020.00.9000
3401.11.5000	6307.90.6800	9022.12.0000
3401.19.0000	6307.90.7200	9025.19.8040
3401.20.0000	6307.90.8910	9025.19.8080
3808.94.1000	6307.90.9889	9026.80.4000
3808.94.5000	6505.00.0100	9027.80.2500
3821.00.0000	6505.00.8015	9027.80.4530
3822.00.1090	6505.00.9089	9028.20.0000

3822.00.5090	7311.00.0090	9402.90.0010
3822.00.6000	7324.90.0000	9402.90.0020

(c) PERIOD SPECIFIED.—The period specified in this subsection is the period—

(1) beginning on the date that is 15 days after the date of the enactment of this Act; and

(2) ending on December 31, 2022.

SA 2627. Mr. GRASSLEY (for himself, Mr. DAINES, and Ms. MCSALLY) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PROMOTING QUALITY OF LIFE FOR RESIDENTS OF LONG-TERM CARE FACILITIES DURING THE COVID–19 EMERGENCY PERIOD.

(a) IN GENERAL.—Sections 1819(c)(3) and 1919(c)(3) of the Social Security Act (42 U.S.C. 1395i–3(c)(3), 1396r(c)(3)) are each amended—

(1) in subparagraph (D), by striking ''and'' at the end;

(2) in subparagraph (E), by striking the period and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(F) provide for the use by residents of a telecommunications device and the Internet, including assistance from facility staff in the use of such technology, if necessary or requested by the resident or the resident's representative, or the long-term care ombudsman of a State, to support telecommunication during the emergency period described in section 1135(g)(1)(B)(relating to the 2019 Novel Coronavirus), such as audio, visual, text communication, videoconference, and two-way audio/video options, by residents of such facility with family members and other individuals.''.

(b) ACCESS DURING THE COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—

(1) LONG-TERM CARE FACILITIES.—Not later than 30 days after the date of enactment of this Act, the Secretary shall take steps necessary to ensure that the residents of each participating provider and of other long-term care facilities designated by the Secretary have access to the devices, Internet, and assistance necessary to support the televisitation practices described in sections 1819(c)(3)(F) and 1919(c)(3)(F) of the Social Security Act, as added by subsection (a), during the COVID–19 public health emergency period.

(2) NOTIFICATION REQUIREMENTS.—In carrying out the amendments made by subsection (a) and paragraph (1) of this subsection, the Secretary shall address—

(A) notification to residents, representatives and family members of residents, and the long-term care ombudsman of each State, of access to such televisitation;

(B) how participating providers will ensure or enable installation and access to a device purchased by, or for the use or benefit of, individual residents; and

(C) operational issues or other barriers to ensure timely resident access to the deployment of such televisitation.

(c) FUNDING.—

(1) ESTABLISHMENT OF TELEVISITATION FUND.—There is established in the Treasury of the United States a fund, to be known as the ''Televisitation Fund'' (referred to in this section as the ''Fund''), to be administered by the Secretary.

(2) TRANSFERS.—Beginning on the date of enactment of this Act and ending on September 30, 2022, and in a manner consistent with section 3302(b) of title 31, there shall be transferred to the Fund from the General Fund of the Treasury, an amount that is not less than—

(A) $50,000,000, if such sums are appropriated by Congress for the Telehealth Resource Center of the Federal Office of Rural Health Policy of the Office for the Advancement of Telehealth to promote the development of televisitation for participating providers, which shall remain available through September 30, 2021; or

(B) in the event that appropriated funds are not available under subparagraph (A), 30 percent of the amount of assessments collected under section 1128A of the Social Security Act (42 U.S.C. 1320a–7a), which shall remain available until expended.

(3) USE OF FUNDS.—

(A) IN GENERAL.—From amounts in the Fund, in addition to any other amounts available, and without further appropriation, the Secretary shall, during each of fiscal years 2020 and 2021, use amounts available in the Fund to award televisitation grants to participating providers and, to the extent appropriated funding is available, other long-term care facilities designated by the Secretary to receive such grants. The Secretary shall use amounts in the Fund only to supplement the funds that would, in the absence of such Federal funds, be made available from other Federal, State, and local sources to promote televisitation, and not to supplant such funds.

(B) GRANTS.—Of the amounts in the Fund used under subparagraph (A), not less than $25,000,000, if such amounts are available in the Fund during fiscal year 2020 or 2021, shall be used for grants to address technical, service delivery, operational, or other related barriers to the timely deployment of televisitation in participating providers, including with respect to addressing inadequate access to broadband and necessary staff to facilitate the use of televisitation, telecommunications devices, or other items or services as necessary to implement such televisitation.

(d) DEFINITIONS.—In this section:

(1) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(2) LONG-TERM CARE FACILITY.—The term ''long-term care facility'' has the meaning given that term in section 2011(15) of the Social Security Act (42 U.S.C. 1397j(15)).

(3) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(4) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(5) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(6) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(7) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

(8) TELEVISITATION.—The term ''televisitation'' means telecommunication, including but not limited to audio, visual, text communication, video conference, and two-way audio/video options, by residents of a participating provider with other individuals.

SA 2628. Mr. GRASSLEY submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EMERGENCY SUPPORT AND COVID–19 PROTECTIONS FOR NURSING HOMES.

(a) ESTABLISHING COVID–19 STRIKE TEAMS FOR NURSING FACILITIES.—

(1) IN GENERAL.—The Secretary is authorized to establish and support the operation of strike teams comprised of individuals with relevant skills, qualifications, and experience to respond to COVID–19-related crises in participating providers during the COVID–19 public health emergency period, based on data reported by such providers to the Centers for Disease Control and Prevention.

(2) MISSION AND COMPOSITION OF STRIKE TEAMS.—

(A) IN GENERAL.—Strike teams established by the Secretary may include assessment, testing, and clinical teams, and a mission for each such team may include performing medical examinations, conducting COVID–19 testing, and assisting participating providers with the implementation of infection control practices (such as quarantine, isolation, or disinfection procedures).

(B) LETTER OF AUTHORIZATION.—Strike teams and members of such teams shall be subject to the Secretary's oversight and direction and the Secretary may issue a letter of authorization to team members describing—

(i) the individual's designation to serve on 1 or more teams under an emergency proclamation by the Secretary;

(ii) the mission of the team;

(iii) the authority of the individual to perform the team mission;

(iv) the individual's authority to access places, persons, and materials necessary for the team member's performance of the team's mission;

(v) the requirement that team members maintain the confidentiality of patient information shared with such individuals by a participating provider; and

(vi) the required security background checks that the individual has passed.

(C) SECRETARIAL OVERSIGHT.—The Secretary may, at any time, disband any strike team and rescind the letter of authorization for any team member.

(D) TEAM AND MEMBER AUTHORITY.—A team and team member may not use the letter of authorization described in subparagraph (B) for any purpose except in connection with the team's mission of acting in good faith to promote resident and employee safety in participating providers in which COVID–19 is confirmed to be present.

(E) ADMINISTRATION.—The Secretary, in consultation with the Director of the Centers for Disease Control and Prevention, may

establish protocols and procedures for requesting the assistance of a strike team established under this subsection and any other procedures deemed necessary for the team's operation.

(F) SUPPLEMENTATION OF OTHER RESPONSE EFFORTS.—Strike teams established by the Secretary under this subsection shall supplement and not supplant response efforts carried out by a State strike team or a technical assistance team established by the Secretary during the COVID-19 public health emergency period.

(b) PROMOTING COVID–19 TESTING AND INFECTION CONTROL IN NURSING FACILITIES.—

(1) NURSING HOME PROTECTIONS.—The Secretary, in consultation with the Elder Justice Coordinating Council established under section 2021 of the Social Security Act (42 U.S.C. 1397k), is authorized during the COVID–19 public health emergency period to enhance efforts by participating providers to respond to COVID–19, including through—

(A) development of online training courses for personnel of participating providers, survey agencies, the long-term care ombudsman of each State, and other individuals to facilitate the implementation of paragraph (2);

(B) enhanced diagnostic testing of visitors to, personnel of, and residents of, participating providers in which measures of COVID–19 in the community support more frequent testing for COVID–19;

(C) development of training materials for personnel of participating providers, the long-term care ombudsman of each State, and representatives and family members of residents; and

(D) providing support to participating providers in areas deemed by the Secretary to require additional assistance due to the presence COVID–19 infections.

(2) TRAINING ON BEST PRACTICES IN INFECTION CONTROL AND PREVENTION.—

(A) IN GENERAL.—The Secretary shall develop training courses on infection control and prevention, including cohorting, strategies and use of telehealth to mitigate the transmission of COVID–19 in participating providers during the COVID–19 public health emergency period.

(B) DEVELOPMENT.—To the extent practicable, the training programs developed by the Secretary under this subsection shall use best practices in infection control and prevention.

(C) COORDINATION WITH OTHER FEDERAL ENTITIES.—The Secretary shall seek input as appropriate on the training courses developed under this subsection from the Elder Justice Coordinating Council and the Director of the Centers for Disease Control and Prevention.

(D) INTERACTIVE WEBSITE.—The Secretary is authorized to create an interactive website to disseminate training materials and related information in the areas of infection control and prevention, for purposes of carrying out this subsection during the COVID–19 public health emergency period.

(c) PROMOTING TRANSPARENCY IN COVID–19 REPORTING BY NURSING FACILITIES AND LONG-TERM CARE FACILITIES.—

(1) COLLECTION AND REPORTING OF STAFFING DATA BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall develop a plan for ensuring that participating providers resume compliance with the requirement, under section 1128I(g) of the Social Security Act (42 U.S.C. 1320a–7j(g)), to electronically submit direct care staffing information based on payroll and other auditable data (including measures to ensure that the submitted data includes direct care staffing information for the entire duration of the COVID–19 emergency period).

(2) COLLECTION AND REPORTING OF DATA RELATED TO COVID–19 BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall ensure that participating providers and long-term care facilities report all suspected and confirmed cases of COVID–19 among personnel and residents of the provider or facility, all COVID–19-related fatalities among personnel and residents of the provider or facility, and all fatalities among personnel and residents of the provider or facility, whether related to COVID–19 or unrelated to COVID–19, for the period beginning on January 1, 2020, to the Secretary.

(3) REPORTING OF NURSING FACILITY DATA RELATED TO COVID–19 BY THE SECRETARY.—Not later than 10 days after the date of enactment of this Act, and at least weekly thereafter during the COVID–19 public health emergency period, the Secretary shall provide the Governor of each State with a list of all participating providers in the State with respect to which the reported cases of COVID–19 in visitors to, personnel of, and residents of, such providers increased during the previous week (or, in the case of the first such list, during the 10-day period beginning on the date of enactment of this Act).

(4) CONFIDENTIALITY.—Any information reported under this subsection that is made available to the public shall be made so available in a manner that protects the identity of residents of participating providers and long-term care facilities.

(d) EXTENDING ELDER JUSTICE ACT PROTECTIONS DURING THE COVID–19 EMERGENCY PERIOD.—

(1) LONG-TERM CARE OMBUDSMAN PROGRAM GRANTS AND TRAINING.—Section 2043 of the Social Security Act (42 U.S.C. 1397m–2) is amended—

(A) in subsection (a)—

(i) in paragraph (1)(A), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2)(D))'' before the semicolon; and

(ii) in paragraph (2)—

(iii) in subparagraph (B), by striking ''and'' after the semicolon;

(iv) in subparagraph (C), by striking the period at the end and inserting a semicolon; and

(v) by adding at the end the following:

''(D) for the emergency period described in section 1135(g)(1)(B), $12,000,000.'';

(B) in subsection (b)—

(i) in paragraph (1), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2))'' before the period; and

(ii) in paragraph (2), by inserting before the period the following: '', and for the emergency period described in section 1135(g)(1)(B), $12,000,000''.

(2) ELDER JUSTICE COORDINATING COUNCIL.—

(A) MEMBERSHIP.—Section 2021(b)(1) of the Social Security Act (42 U.S.C. 1397k(b)(1)) is amended—

(i) by redesignating subparagraph (C) as subparagraph (D); and

(ii) by inserting after subparagraph (B), the following:

''(C) The Administrator of the Federal Emergency Management Agency.''.

(B) DUTIES.—Section 2021(f)(1) of such Act (42 U.S.C. 1397k(f)(1)) is amended by inserting ''the Federal Emergency Management Agency,'' after ''Justice,''.

(3) ADULT PROTECTIVE SERVICES FUNCTIONS AND GRANT PROGRAMS.—Section 2042 of the Social Security Act (42 U.S.C. 1397m–1) is amended—

(A) in subsection (a)(2), by inserting '', and $5,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014'';

(B) in subsection (b)(5), by inserting '', and $150,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''; and

(C) in subsection (c)(6), by inserting '', and $30,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''.

(4) TECHNICAL AMENDMENT.—Section 2011(12)(A) of the Social Security Act (42 U.S.C. 1397j(12)(A)) is amended by striking ''450b'' and inserting ''5304''.

(e) REDUCING RACIAL DISPARITIES IN NURSING FACILITIES DURING THE COVID–19 EMERGENCY.—

(1) TASK FORCE.—The Secretary shall establish a task force, to be known as the ''Ethnic and Racial Disparities in Nursing Facilities Task Force'' (referred to in this subsection as the ''task force''), to gather data on racial and ethnic disparities in participating providers during the COVID-19 public health emergency period and provide recommendations to Federal, State, local, and Tribal policymakers on ways to reduce such disparities.

(2) MEMBERSHIP.—The task force shall be composed of the Secretary, the Surgeon General, other Federal, State, and local government officials, and individuals appointed by the Secretary with firsthand knowledge of, or expertise relating to, disparities in access to quality care for residents of participating providers who are members of racial or ethnic minority groups. In appointing such individuals, the Secretary shall ensure the individuals appointed provide ample representation with respect to the demographics of residents and caregivers of such participating providers, particularly with respect to residents and caregivers of such facilities who are members of racial or ethnic minority groups.

(3) ADMINISTRATION.—

(A) CHAIRPERSON.—The Secretary shall serve as the chairperson of the task force. The Surgeon General shall serve as the vice chairperson.

(B) STAFF.—The task force shall have 2 full-time staff members.

(C) MEETINGS.—The task force shall convene at least monthly, with the first meeting to occur within 60 days after the enactment of this Act.

(4) REPORTING AND RECOMMENDATIONS.—

(A) MONTHLY REPORTS.—Not later than 45 days after the 1st meeting of the task force, and monthly thereafter, the task force shall submit to Congress and the Federal Emergency Management Agency a report that includes—

(i) recommended methodologies for improving Federal data collection on resident outcomes in participating providers with disproportionately high rates of admission of individuals who are members of racial or ethnic minority groups;

(ii) the identification of participating providers evidencing racial or ethnic disparities in psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse rates, neglect rates, fatality rates, and any additional areas, as determined by the task force based on available public health data (or, if no such data are available, on the basis of such other publicly available data or information as the task force may determine);

(iii) the identification of factors, including Federal and State policies, that have contributed to racial or ethnic health disparities in resident outcomes in participating providers, and actions Congress (and if appropriate, other entities) can take to address these factors; and

(iv) recommendations for best practices to promote improvements in participating providers evidencing racial or ethnic disparities

in psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse and neglect rates, fatality rates, or any additional areas determined by the task force.

(B) CONSULTATION WITH INDIAN TRIBES.—In submitting reports and recommendations under this paragraph, the task force shall consult with Indian Tribes and Tribal organizations.

(C) SUNSET.—The task force shall terminate on December 31, 2022.

(f) ACHIEVING SAVINGS IN HEALTH CARE PROGRAMS BY REDUCING IMPROPER PRESCRIBING OF CONTROLLED SUBSTANCES.—

(1) IN GENERAL.—Within 120 days of enactment of this Act and annually thereafter, the Secretary shall report all Medicare revocation actions or preclusion list placements to the Drug Enforcement Administration that are based totally or in part on the improper prescribing, administering, or dispensing of controlled substances.

(2) DEFINITIONS.—The terms used in this subsection shall have the meaning given such terms in section 102 of the Controlled Substances Act (42 U.S.C. 802). For purposes of paragraph (1), the ''improper prescribing, administering, or dispensing of controlled substances'' includes doing so in any of the following respects:

(A) In excessive quantities.

(B) For other than a legitimate medical purpose or outside the usual course of professional practice.

(C) Beyond the scope of the practitioner's DEA registration.

(D) In any other manner not permitted by the Controlled Substances Act (21 U.S.C. 801 et. seq.).

(3) ACCESS TO EVIDENCE.—When making the reports required under paragraph (1), the Secretary shall provide the Drug Enforcement Administration with any relevant records or other evidence that Drug Enforcement Administration requests for purposes of carrying out its functions under the Controlled Substances Act. The Drug Enforcement Administration may use any such information or other evidence provided by the Secretary for the purposes of any criminal, civil, or administrative proceeding arising out the Controlled Substances Act.

(g) FUNDING.—

(1) CARES ACT.—-The Secretary may use amounts appropriated for COVID–19 response and related activities pursuant to the CARES Act (Public Law 116–136) and subsequently enacted legislation to carry out this section and the amendments made by this section.

(2) PREVENTION AND PUBLIC HEALTH FUND.—The Secretary may use amounts in the Prevention and Public Health Fund, established under section 4002 of the Patient Protection and Affordable Care Act of 2010, to carry out this section and the amendments made by this section, including by providing financial assistance to participating providers as appropriate for implementation of the requirements of this section and the amendments made by this section.

(h) DEFINITIONS.—In this section:

(1) COVID–19.—The term ''COVID–19'' means the 2019 Novel Coronavirus or 2019-nCoV.

(2) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(3) LONG-TERM CARE FACILITY.—The term ''long-term care facility'' has the meaning given that term in section 2011(15) of the Social Security Act (42 U.S.C. 1397j(15)).

(4) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(5) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(6) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(7) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(8) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

SA 2629. Mr. GRASSLEY (for himself, Mr. DAINES, and Ms. MCSALLY) submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PROMOTING QUALITY OF LIFE FOR RESIDENTS OF LONG-TERM CARE FACILITIES DURING THE COVID–19 EMERGENCY PERIOD.

(a) IN GENERAL.—Sections 1819(c)(3) and 1919(c)(3) of the Social Security Act (42 U.S.C. 1395i–3(c)(3), 1396r(c)(3)) are each amended—

(1) in subparagraph (D), by striking ''and'' at the end;

(2) in subparagraph (E), by striking the period and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(F) provide for the use by residents of a telecommunications device and the Internet, including assistance from facility staff in the use of such technology, if necessary or requested by the resident or the resident's representative, or the long-term care ombudsman of a State, to support telecommunication during the emergency period described in section 1135(g)(1)(B)(relating to the 2019 Novel Coronavirus), such as audio, visual, text communication, videoconference, and two-way audio/video options, by residents of such facility with family members and other individuals.''.

(b) ACCESS DURING THE COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—

(1) LONG-TERM CARE FACILITIES.—Not later than 30 days after the date of enactment of this Act, the Secretary shall take steps necessary to ensure that the residents of each participating provider and of other long-term care facilities designated by the Secretary have access to the devices, Internet, and assistance necessary to support the televisitation practices described in sections 1819(c)(3)(F) and 1919(c)(3)(F) of the Social Security Act, as added by subsection (a), during the COVID–19 public health emergency period.

(2) NOTIFICATION REQUIREMENTS.—In carrying out the amendments made by subsection (a) and paragraph (1) of this subsection, the Secretary shall address—

(A) notification to residents, representatives and family members of residents, and the long-term care ombudsman of each State, of access to such televisitation;

(B) how participating providers will ensure or enable installation and access to a device purchased by, or for the use or benefit of, individual residents; and

(C) operational issues or other barriers to ensure timely resident access to the deployment of such televisitation.

(c) FUNDING.—

(1) ESTABLISHMENT OF TELEVISITATION FUND.—There is established in the Treasury of the United States a fund, to be known as the ''Televisitation Fund'' (referred to in this section as the ''Fund''), to be administered by the Secretary.

(2) TRANSFERS.—Beginning on the date of enactment of this Act and ending on September 30, 2022, and in a manner consistent with section 3302(b) of title 31, there shall be transferred to the Fund from the General Fund of the Treasury, an amount that is not less than—

(A) $50,000,000, if such sums are appropriated by Congress for the Telehealth Resource Center of the Federal Office of Rural Health Policy of the Office for the Advancement of Telehealth to promote the development of televisitation for participating providers, which shall remain available through September 30, 2021; or

(B) in the event that appropriated funds are not available under subparagraph (A), 30 percent of the amount of assessments collected under section 1128A of the Social Security Act (42 U.S.C. 1320a–7a), which shall remain available until expended.

(3) USE OF FUNDS.—

(A) IN GENERAL.—From amounts in the Fund, in addition to any other amounts available, and without further appropriation, the Secretary shall, during each of fiscal years 2020 and 2021, use amounts available in the Fund to award televisitation grants to participating providers and, to the extent appropriated funding is available, other long-term care facilities designated by the Secretary to receive such grants. The Secretary shall use amounts in the Fund only to supplement the funds that would, in the absence of such Federal funds, be made available from other Federal, State, and local sources to promote televisitation, and not to supplant such funds.

(B) GRANTS.—Of the amounts in the Fund used under subparagraph (A), not less than $25,000,000, if such amounts are available in the Fund during fiscal year 2020 or 2021, shall be used for grants to address technical, service delivery, operational, or other related barriers to the timely deployment of televisitation in participating providers, including with respect to addressing inadequate access to broadband and necessary staff to facilitate the use of televisitation, telecommunications devices, or other items or services as necessary to implement such televisitation.

(d) DEFINITIONS.—In this section:

(1) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(2) LONG-TERM CARE FACILITY.—The term ''long-term care facility'' has the meaning given that term in section 2011(15) of the Social Security Act (42 U.S.C. 1397j(15)).

(3) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in

section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(4) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(5) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(6) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(7) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

(8) TELEVISITATION.—The term ''televisitation'' means telecommunication, including but not limited to audio, visual, text communication, video conference, and two-way audio/video options, by residents of a participating provider with other individuals.

SA 2630. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EMERGENCY SUPPORT AND COVID–19 PROTECTIONS FOR NURSING HOMES.

(a) ESTABLISHING COVID–19 STRIKE TEAMS FOR NURSING FACILITIES.—

(1) IN GENERAL.—The Secretary is authorized to establish and support the operation of strike teams comprised of individuals with relevant skills, qualifications, and experience to respond to COVID–19-related crises in participating providers during the COVID–19 public health emergency period, based on data reported by such providers to the Centers for Disease Control and Prevention.

(2) MISSION AND COMPOSITION OF STRIKE TEAMS.—

(A) IN GENERAL.—Strike teams established by the Secretary may include assessment, testing, and clinical teams, and a mission for each such team may include performing medical examinations, conducting COVID–19 testing, and assisting participating providers with the implementation of infection control practices (such as quarantine, isolation, or disinfection procedures).

(B) LETTER OF AUTHORIZATION.—Strike teams and members of such teams shall be subject to the Secretary's oversight and direction and the Secretary may issue a letter of authorization to team members describing—

(i) the individual's designation to serve on 1 or more teams under an emergency proclamation by the Secretary;

(ii) the mission of the team;

(iii) the authority of the individual to perform the team mission;

(iv) the individual's authority to access places, persons, and materials necessary for the team member's performance of the team's mission;

(v) the requirement that team members maintain the confidentiality of patient information shared with such individuals by a participating provider; and

(vi) the required security background checks that the individual has passed.

(C) SECRETARIAL OVERSIGHT.—The Secretary may, at any time, disband any strike team and rescind the letter of authorization for any team member.

(D) TEAM AND MEMBER AUTHORITY.—A team and team member may not use the letter of authorization described in subparagraph (B) for any purpose except in connection with the team's mission of acting in good faith to promote resident and employee safety in participating providers in which COVID–19 is confirmed to be present.

(E) ADMINISTRATION.—The Secretary, in consultation with the Director of the Centers for Disease Control and Prevention, may establish protocols and procedures for requesting the assistance of a strike team established under this subsection and any other procedures deemed necessary for the team's operation.

(F) SUPPLEMENTATION OF OTHER RESPONSE EFFORTS.—Strike teams established by the Secretary under this subsection shall supplement and not supplant response efforts carried out by a State strike team or a technical assistance team established by the Secretary during the COVID-19 public health emergency period.

(b) PROMOTING COVID–19 TESTING AND INFECTION CONTROL IN NURSING FACILITIES.—

(1) NURSING HOME PROTECTIONS.—The Secretary, in consultation with the Elder Justice Coordinating Council established under section 2021 of the Social Security Act (42 U.S.C. 1397k), is authorized during the COVID–19 public health emergency period to enhance efforts by participating providers to respond to COVID–19, including through—

(A) development of online training courses for personnel of participating providers, survey agencies, the long-term care ombudsman of each State, and other individuals to facilitate the implementation of paragraph (2);

(B) enhanced diagnostic testing of visitors to, personnel of, and residents of, participating providers in which measures of COVID–19 in the community support more frequent testing for COVID–19;

(C) development of training materials for personnel of participating providers, the long-term care ombudsman of each State, and representatives and family members of residents; and

(D) providing support to participating providers in areas deemed by the Secretary to require additional assistance due to the presence COVID–19 infections.

(2) TRAINING ON BEST PRACTICES IN INFECTION CONTROL AND PREVENTION.—

(A) IN GENERAL.—The Secretary shall develop training courses on infection control and prevention, including cohorting, strategies and use of telehealth to mitigate the transmission of COVID–19 in participating providers during the COVID–19 public health emergency period.

(B) DEVELOPMENT.—To the extent practicable, the training programs developed by the Secretary under this subsection shall use best practices in infection control and prevention.

(C) COORDINATION WITH OTHER FEDERAL ENTITIES.—The Secretary shall seek input as appropriate on the training courses developed under this subsection from the Elder Justice Coordinating Council and the Director of the Centers for Disease Control and Prevention.

(D) INTERACTIVE WEBSITE.—The Secretary is authorized to create an interactive website to disseminate training materials and related information in the areas of infection control and prevention, for purposes of carrying out this subsection during the COVID–19 public health emergency period.

(c) PROMOTING TRANSPARENCY IN COVID–19 REPORTING BY NURSING FACILITIES AND LONG-TERM CARE FACILITIES.—

(1) COLLECTION AND REPORTING OF STAFFING DATA BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall develop a plan for ensuring that participating providers resume compliance with the requirement, under section 1128I(g) of the Social Security Act (42 U.S.C. 1320a–7j(g)), to electronically submit direct care staffing information based on payroll and other auditable data (including measures to ensure that the submitted data includes direct care staffing information for the entire duration of the COVID–19 emergency period).

(2) COLLECTION AND REPORTING OF DATA RELATED TO COVID–19 BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall ensure that participating providers and long-term care facilities report all suspected and confirmed cases of COVID–19 among personnel and residents of the provider or facility, all COVID–19-related fatalities among personnel and residents of the provider or facility, and all fatalities among personnel and residents of the provider or facility, whether related to COVID–19 or unrelated to COVID–19, for the period beginning on January 1, 2020, to the Secretary.

(3) REPORTING OF NURSING FACILITY DATA RELATED TO COVID–19 BY THE SECRETARY.—Not later than 10 days after the date of enactment of this Act, and at least weekly thereafter during the COVID–19 public health emergency period, the Secretary shall provide the Governor of each State with a list of all participating providers in the State with respect to which the reported cases of COVID–19 in visitors to, personnel of, and residents of, such providers increased during the previous week (or, in the case of the first such list, during the 10-day period beginning on the date of enactment of this Act).

(4) CONFIDENTIALITY.—Any information reported under this subsection that is made available to the public shall be made so available in a manner that protects the identity of residents of participating providers and long-term care facilities.

(d) EXTENDING ELDER JUSTICE ACT PROTECTIONS DURING THE COVID–19 EMERGENCY PERIOD.—

(1) LONG-TERM CARE OMBUDSMAN PROGRAM GRANTS AND TRAINING.—Section 2043 of the Social Security Act (42 U.S.C. 1397m–2) is amended—

(A) in subsection (a)—

(i) in paragraph (1)(A), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2)(D))'' before the semicolon; and

(ii) in paragraph (2)—

(iii) in subparagraph (B), by striking ''and'' after the semicolon;

(iv) in subparagraph (C), by striking the period at the end and inserting a semicolon; and

(v) by adding at the end the following:

''(D) for the emergency period described in section 1135(g)(1)(B), $12,000,000.'';

(B) in subsection (b)—

(i) in paragraph (1), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2))'' before the period; and

(ii) in paragraph (2), by inserting before the period the following: '', and for the emergency period described in section 1135(g)(1)(B), $12,000,000''.

(2) ELDER JUSTICE COORDINATING COUNCIL.—

(A) MEMBERSHIP.—Section 2021(b)(1) of the Social Security Act (42 U.S.C. 1397k(b)(1)) is amended—

(i) by redesignating subparagraph (C) as subparagraph (D); and

(ii) by inserting after subparagraph (B), the following:

''(C) The Administrator of the Federal Emergency Management Agency.''.

(B) DUTIES.—Section 2021(f)(1) of such Act (42 U.S.C. 1397k(f)(1)) is amended by inserting ''the Federal Emergency Management Agency,'' after ''Justice,''.

(3) ADULT PROTECTIVE SERVICES FUNCTIONS AND GRANT PROGRAMS.—Section 2042 of the Social Security Act (42 U.S.C. 1397m–1) is amended—

(A) in subsection (a)(2), by inserting '', and $5,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014'';

(B) in subsection (b)(5), by inserting '', and $150,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''; and

(C) in subsection (c)(6), by inserting '', and $30,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''.

(4) TECHNICAL AMENDMENT.—Section 2011(12)(A) of the Social Security Act (42 U.S.C. 1397j(12)(A)) is amended by striking ''450b'' and inserting ''5304''.

(e) REDUCING RACIAL DISPARITIES IN NURSING FACILITIES DURING THE COVID–19 EMERGENCY.—

(1) TASK FORCE.—The Secretary shall establish a task force, to be known as the ''Ethnic and Racial Disparities in Nursing Facilities Task Force'' (referred to in this subsection as the ''task force''), to gather data on racial and ethnic disparities in participating providers during the COVID-19 public health emergency period and provide recommendations to Federal, State, local, and Tribal policymakers on ways to reduce such disparities.

(2) MEMBERSHIP.—The task force shall be composed of the Secretary, the Surgeon General, other Federal, State, and local government officials, and individuals appointed by the Secretary with firsthand knowledge of, or expertise relating to, disparities in access to quality care for residents of participating providers who are members of racial or ethnic minority groups. In appointing such individuals, the Secretary shall ensure the individuals appointed provide ample representation with respect to the demographics of residents and caregivers of such participating providers, particularly with respect to residents and caregivers of such facilities who are members of racial or ethnic minority groups.

(3) ADMINISTRATION.—

(A) CHAIRPERSON.—The Secretary shall serve as the chairperson of the task force. The Surgeon General shall serve as the vice chairperson.

(B) STAFF.—The task force shall have 2 full-time staff members.

(C) MEETINGS.—The task force shall convene at least monthly, with the first meeting to occur within 60 days after the enactment of this Act.

(4) REPORTING AND RECOMMENDATIONS.—

(A) MONTHLY REPORTS.—Not later than 45 days after the 1st meeting of the task force, and monthly thereafter, the task force shall submit to Congress and the Federal Emergency Management Agency a report that includes—

(i) recommended methodologies for improving Federal data collection on resident outcomes in participating providers with disproportionately high rates of admission of individuals who are members of racial or ethnic minority groups;

(ii) the identification of participating providers evidencing racial or ethnic disparities in psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse rates, neglect rates, fatality rates, and any additional areas, as determined by the task force based on available public health data (or, if no such data are available, on the basis of such other publicly available data or information as the task force may determine);

(iii) the identification of factors, including Federal and State policies, that have contributed to racial or ethnic health disparities in resident outcomes in participating providers, and actions Congress (and if appropriate, other entities) can take to address these factors; and

(iv) recommendations for best practices to promote improvements in participating providers evidencing racial or ethnic disparities in psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse and neglect rates, fatality rates, or any additional areas determined by the task force.

(B) CONSULTATION WITH INDIAN TRIBES.—In submitting reports and recommendations under this paragraph, the task force shall consult with Indian Tribes and Tribal organizations.

(C) SUNSET.—The task force shall terminate on December 31, 2022.

(f) ACHIEVING SAVINGS IN HEALTH CARE PROGRAMS BY REDUCING IMPROPER PRESCRIBING OF CONTROLLED SUBSTANCES.—

(1) IN GENERAL.—Within 120 days of enactment of this Act and annually thereafter, the Secretary shall report all Medicare revocation actions or preclusion list placements to the Drug Enforcement Administration that are based totally or in part on the improper prescribing, administering, or dispensing of controlled substances.

(2) DEFINITIONS.—The terms used in this subsection shall have the meaning given such terms in section 102 of the Controlled Substances Act (42 U.S.C. 802). For purposes of paragraph (1), the ''improper prescribing, administering, or dispensing of controlled substances'' includes doing so in any of the following respects:

(A) In excessive quantities.

(B) For other than a legitimate medical purpose or outside the usual course of professional practice.

(C) Beyond the scope of the practitioner's DEA registration.

(D) In any other manner not permitted by the Controlled Substances Act (21 U.S.C. 801 et. seq.).

(3) ACCESS TO EVIDENCE.—When making the reports required under paragraph (1), the Secretary shall provide the Drug Enforcement Administration with any relevant records or other evidence that Drug Enforcement Administration requests for purposes of carrying out its functions under the Controlled Substances Act. The Drug Enforcement Administration may use any such information or other evidence provided by the Secretary for the purposes of any criminal, civil, or administrative proceeding arising out the Controlled Substances Act.

(g) FUNDING.—

(1) CARES ACT.—-The Secretary may use amounts appropriated for COVID–19 response and related activities pursuant to the CARES Act (Public Law 116–136) and subsequently enacted legislation to carry out this section and the amendments made by this section.

(2) PREVENTION AND PUBLIC HEALTH FUND.—The Secretary may use amounts in the Prevention and Public Health Fund, established under section 4002 of the Patient Protection and Affordable Care Act of 2010, to carry out this section and the amendments made by this section, including by providing financial assistance to participating providers as appropriate for implementation of the requirements of this section and the amendments made by this section.

(h) DEFINITIONS.—In this section:

(1) COVID–19.—The term ''COVID–19'' means the 2019 Novel Coronavirus or 2019-nCoV.

(2) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(3) LONG-TERM CARE FACILITY.—The term ''long-term care facility'' has the meaning given that term in section 2011(15) of the Social Security Act (42 U.S.C. 1397j(15)).

(4) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(5) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(6) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(7) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(8) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

SA 2631. Ms. COLLINS submitted an amendment intended to be proposed to amendment SA 2542 submitted by Mr. CRAPO and intended to be proposed to the amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

On page 4, strike line 1 and all that follows through page 5, line 23.

SA 2632. Mr. CRAMER submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. REAL ACT OF 2020.

(a) SHORT TITLE.—This section may be cited as the ''Restoring Education And Learning Act of 2020'' or the ''REAL Act of 2020''.

(b) REINSTATEMENT OF FEDERAL PELL GRANT ELIGIBILITY.—Section 401(b) of the Higher Education Act of 1965 (20 U.S.C. 1070a(b)) is amended—

(1) by striking paragraph (6);

(2) by redesignating paragraph (7) as paragraph (6); and

(3) in paragraph (2)(A)(ii), by striking ''(7)(B)'' and inserting ''(6)(B)''.

(c) EFFECTIVE DATE.—The amendments made by subsection (b) shall be effective for academic year 2020–2021 and succeeding academic years.

SA 2633. Mr. WICKER (for himself, Mr. RUBIO, Mr. BLUNT, Mrs. BLACKBURN, Ms. COLLINS, Mr. CORNYN, Mrs. HYDE-SMITH, Mr. CASSIDY, and Mr. GRAHAM) submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ____—CORPS ACT

SEC. ___ 1. SHORT TITLE.—

This title may be cited as the ''Cultivating Opportunity and Response to the Pandemic through Service Act'' or the ''CORPS Act''.

SEC. ___2. FINDINGS.

Congress finds the following:

(1) The United States has a strong history of citizen response to national calls to service in order to help the Nation recover in times of crisis.

(2) More than 80 years ago, the Nation rose to the challenge of the Great Depression with the creation of citizen service programs like the Civilian Conservation Corps (referred to in this section as the ''CCC'') and the Works Progress Administration (referred to in this section as the ''WPA'').

(3) Millions of participants benefitted from paid employment and opportunities to develop their skills while constructing national parks and public lands infrastructure and producing cultural works still enjoyed today.

(4) Following decades of evolution, incorporating policies of both political parties, today's national service programs carry on the legacy of the CCC and WPA.

(5) Founded in 1990, the Corporation for National and Community Service today coordinates national service by individuals in the United States across every State and territory, partnering with State-level commissions and supporting locally driven services in partnership with nongovernmental organizations and State governments.

(6) National service programs provide public health, education, employment training, and nutrition services for which the Nation has a critical need in the current crisis.

(7) The signature programs of the Corporation for National and Community Service, which are the AmeriCorps State and National, AmeriCorps National Civilian Community Corps, AmeriCorps VISTA, and National Senior Service Corps programs, can and should be expanded to meet current needs.

(8) The novel coronavirus pandemic has infected and killed individuals in every State and territory, causing more than 2,000,000 cases and 115,000 deaths so far.

(9) In response, States, tribal governments, and cities across the country have closed down businesses, schools, and public events, leading to a dramatic drop in economic activity and a sharp projected decline in the United States economy.

(10) More than 40,000,000 applications for unemployment benefits have been filed in recent weeks, with weekly filings repeatedly exceeding historic record levels.

(11) More than 1 in every 10 adults in the United States has applied for unemployment insurance since the crisis began.

(12) The pandemic and the associated economic consequences have disproportionately impacted people of color across many States.

(13) To recover, the Nation also needs meaningful employment opportunities, as well as a significant expansion of the human capital working to address community needs around public health, behavioral health, hunger, education, and conservation.

(14) Experience has demonstrated the centrality of community participation in pandemic response, to overcome stigma and structural barriers and meet the full needs of all members of a diverse community.

(15) As the Nation works to respond to and recover from the current twin challenges of a public health pandemic and an economic crisis, national service presents a unique opportunity for flexible, locally driven responses to meet State and local public health, employment, and recovery needs.

SEC. ___3. PURPOSES.

The purposes of this title are—

(1) to provide for annual growth of 250,000 participants, over 3 years, in national service programs, such as the Public Land Corps (also known as the 21st Century Conservation Service Corps) programs and other AmeriCorps programs, that will provide services in response to the pandemic and economic crisis;

(2) to ensure that participant allowances cover the reasonable cost of participation and provide participants with economic and educational opportunity;

(3) to stabilize such national service programs during economic crisis; and

(4) to support opportunities for all individuals in the United States to engage in service.

SEC. ___4. DEFINITIONS.

(a) NCSA.—Section 101 of the National and Community Service Act of 1990 (42 U.S.C. 12511) is amended—

(1) by redesignating paragraphs (13) through (16), (17) through (35), and (36) through (49), as paragraphs (14) through (17), (19) through (37), and (39) through (52), respectively;

(2) by inserting after paragraph (12) the following:

''(13) COVID–19 DEFINITIONS.—

''(A) COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—The term 'COVID–19 emergency response and recovery period' means the period beginning on the first day of the COVID–19 public health emergency and ending at the end of fiscal year 2023.

''(B) COVID–19 PUBLIC HEALTH EMERGENCY.—The term 'COVID–19 public health emergency' means the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19.'';

(3) by inserting after paragraph (17), as so redesignated, the following:

''(18) HIGH-POVERTY AREA.—The term 'high -poverty area' means a census tract defined as high-poverty by the Bureau of the Census.''; and

(4) by inserting after paragraph (37), as so redesignated, the following:

''(38) PUBLIC LAND CORPS.—The term 'Public Lands Corps' means the Corps established in section 204 of the Public Lands Corps Act of 1993 (16 U.S.C. 1723).''.

(b) DVSA.—Section 421 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5061) is amended—

(1) in paragraph (19), by striking ''and'' after the semicolon;

(2) in paragraph (20), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(21)(A) the term 'COVID–19 emergency response and recovery period' means the period beginning on the first day of the COVID–19 public health emergency and ending at the end of fiscal year 2023; and

''(B) the term 'COVID–19 public health emergency' means the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19; and

''(22) the term 'Public Lands Corps' means the Corps established in section 204 of the Public Lands Corps Act of 1993 (16 U.S.C. 1723).''.

SEC. ___5. PRIORITIZING RESPONSE SERVICES.

(a) AMERICORPS STATE AND NATIONAL.—

(1) NATIONAL SERVICE PRIORITIES.—Section 122(f) of the National and Community Service Act of 1990 (42 U.S.C. 12572(f)) is amended—

(A) in paragraph (1)—

(i) in subparagraph (A), by adding at the end the following: ''For fiscal years 2020 through 2023, the Corporation shall include, in the national service priorities, the priorities described in paragraph (5).''; and

(ii) in subparagraph (B), by adding at the end the following: ''For fiscal years 2020 through 2023, each State shall include, in the State priorities, the priorities described in paragraph (5).''; and

(B) by adding at the end the following:

''(5) EMERGENCY PRIORITIES.—For fiscal years 2020 through 2023, the priorities established under paragraph (1) for national service programs shall provide that the Corporation and the States, as appropriate, shall give priority to entities submitting applications—

''(A) that propose activities directly related to the response to and recovery from the COVID–19 public health emergency, such as the provision of—

''(i) public health services, including support for isolation and quarantine activities;

''(ii) emergency logistics, such as the setup of alternate care sites;

''(iii) work that furthers the capacity of State (including territorial), tribal, and local health departments and the recommendations of the Director of the Centers for Disease Control and Prevention;

''(iv) work that furthers the capacity of nonprofit and community organizations to respond to the immediate needs of individuals affected by COVID–19;

''(v) services that support economic opportunity;

''(vi) education, including enrichment and adult education and literacy activities;

''(vii) services to address housing and food insecurity; and

''(viii) jobs for youth in preserving and restoring nature;

''(B) who—

''(i) are—

''(I) current (as of the date of the application submission) or former recipients of financial assistance under the program for which the application is submitted; and

''(II) able to provide services directly related to the response and recovery described in subparagraph (A); or

''(ii) are—

''(I) community-based organizations located in the rural or high-poverty areas, or tribal communities, the organizations propose to serve; and

''(II) able to provide services directly related to the response and recovery described in subparagraph (A);

''(C) to the maximum extent practicable—

''(i) if the entities are proposing programs that serve, or proposing to give priority for positions to applicants from, underserved populations, such as individuals described in section 129(a)(1)(B) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3164(a)(1)(B)), minority individuals, individuals who have had contact with the juvenile justice system, Indians, veterans, and individuals whose abilities are not typical, such as individuals with intellectual or developmental disabilities;

''(ii) especially if the entities propose recruiting applicants for positions to serve in the same metropolitan or micropolitan statistical area or county as the area or county, respectively, in which the applicants attended a secondary school or institution of higher education; and

''(iii) especially if the entities propose programs that serve populations in rural or high-poverty areas, or tribal communities; and

''(D) that propose to give priority for positions to applicants who—

''(i) were serving outside of the United States in the Peace Corps, the J. William Fulbright Educational Exchange Program referenced in section 112 of the Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2460), or the program under this subtitle, subtitle E, or part A of title I of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4951 et seq.); but

''(ii) ended their terms of service early, or returned to the United States before the end of their terms of service, due to the COVID–19 public health emergency.''.

(b) AMERICORPS NCCC.—Section 157 of the National and Community Service Act of 1990 (42 U.S.C. 12617) is amended—

(1) in subsection (b)(1), by adding at the end the following:

''(C) SURGE CAPACITY AND PRIORITY PROJECTS.—

''(i) SURGE CAPACITY PROJECTS.—The Corporation and the Director of the Centers for Disease Control and Prevention shall develop, and the Corporation shall approve, a proposal for public health surge capacity projects. In carrying out the projects, the Corporation and the Director shall develop and deploy public health surge capacity teams.

''(ii) PRIORITY PROJECTS.—For fiscal years 2020 through 2023, the Corporation shall give priority to entities submitting applications for projects under this subtitle in the same manner as the Corporation gives priority to entities submitting applications for national service programs under section 122(f)(5).''; and

(2) in subsection (c)—

(A) in paragraph (1), by striking ''The campus'' and inserting ''Except as provided in paragraph (3), the campus''; and

(B) by adding at the end the following:

''(3) SURGE CAPACITY AND PRIORITY PROJECTS.—The Corporation shall assign the projects described in clauses (i) and (ii) of subsection (b)(1)(C) to specified Corps campuses.''.

(c) AMERICORPS VISTA.—Section 109 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4960) is amended by adding at the end the following: ''For fiscal years 2020 through 2023, the Corporation shall give priority to entities submitting applications for projects or programs under this part in the same manner as the Corporation gives priority to entities submitting applications for national service programs under section 122(f)(5) of the National and Community Service Act of 1990 (42 U.S.C. 12572(f)(5)).''.

SEC. 6. STRENGTHENING OPPORTUNITY.

(a) ALLOWANCES.—

(1) DOMESTIC VOLUNTEER SERVICE ACT OF 1973.—Section 105(b) of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955(b)) is amended by adding at the end the following:

''(4) Notwithstanding paragraph (2), during the COVID–19 emergency response and recovery period, the Director shall set the subsistence allowance for volunteers under paragraph (1) for each fiscal year so that—

''(A) the minimum allowance is not less than an amount equal to 175 percent of such poverty line (as defined in section 673(2) of the Community Services Block Grant Act) for a single individual as expected for each fiscal year; and

''(B) the average subsistence allowance, excluding allowances for Hawaii, Guam, American Samoa, and Alaska, is not less than 185 percent of such poverty line.

''(5)(A) A stipend or allowance under this section or an allowance under section 140 of the National and Community Service Act of 1990 (42 U.S.C. 12594) shall not be increased as a result of amendments made by the Cultivating Opportunity and Response to the Pandemic through Service Act, or any other amendment made to this section or that section 140, respectively, unless the funds appropriated for carrying out this part or subtitle C of the National and Community Service Act of 1990 (42 U.S.C. 12571 et seq.), respectively, are sufficient to maintain for the fiscal year involved a number of participants to serve under this part or that subtitle C, respectively, that is at least equal to the number of such participants so serving during the preceding fiscal year.

''(B) In the event that sufficient appropriations for any fiscal year (consistent with subparagraph (A)) are not available to increase any stipend or allowance under this section or allowance under section 140 of the National and Community Service Act of 1990 to the minimum amount specified in this section or under that section 140, respectively, the Director shall increase the stipend or allowance involved to such amount as appropriations for such year permit consistent with subparagraph (A).''.

(2) NATIONAL AND COMMUNITY SERVICE ACT OF 1990.—Section 158 of the National and Community Service Act of 1990 (42 U.S.C. 12618) is amended by adding at the end the following:

''(h) ADJUSTMENT TO MAXIMUM ALLOWANCE DURING COVID–19 RESPONSE AND RECOVERY PERIOD.—Notwithstanding the limitation on the allowance amount specified in subsection (b), during the COVID–19 emergency response and recovery period, the amount of the allowance that the Director shall establish pursuant to that subsection shall be any amount not in excess of the amount equal to 175 percent of the poverty line that is applicable to a family of 2 (as defined by the Office of Management and Budget and revised annually in accordance with section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2))).''.

(b) NATIONAL SERVICE EDUCATIONAL AWARDS.—Section 147 of the National and Community Service Act of 1990 (42 U.S.C. 12603) is amended by adding at the end the following:

''(f) ADJUSTMENT TO EDUCATIONAL AWARD DURING THE COVID–19 RESPONSE AND RECOVERY.—

''(1) IN GENERAL.—Notwithstanding subsection (a), an individual described in section 146(a) who successfully completes a required term of full-time national service in an approved national service position during the COVID–19 emergency response and recovery period shall receive a national service educational award having a value equal to twice the maximum amount of a Federal Pell Grant under section 401 of the Higher Education Act of 1965 (20 U.S.C. 1070a) that a student eligible for such Grant may receive in the aggregate (without regard to whether the funds are provided through discretionary or mandatory appropriations), for the award year for which the national service position is approved by the Corporation.

''(2) LESS THAN FULL-TIME SERVICE.—Notwithstanding subsections (b) and (c), an individual described in section 146(a) who successfully completes a required term of part-time national service in an approved national service position during the COVID–19 response and recovery period, or who is serving in an approved national service position and is released, during that period, in accordance with section 139(c)(1)(A) from completing the full-time or part-time term of service agreed to by the individual, shall receive that portion of the national service educational award calculated under paragraph (1) that corresponds to the quantity of the term of service actually completed by the individual.

''(3) DEFINITION.—In this subsection, the term 'institution of higher education' has the meaning given the term in section 148(h).''.

(c) TAX PROVISIONS.—

(1) INCOME TAX EXCLUSION FOR LIVING ALLOWANCE.—

(A) IN GENERAL.—Part III of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by inserting after section 139H the following new section:

''SEC. 139I. LIVING ALLOWANCE FOR NATIONAL SERVICE PARTICIPANTS.

''Gross income does not include the amount of any living allowance provided under section 105(b) of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955(b)) or section 140(a) or 158(b) of the National and Community Service Act of 1990 (42 U.S.C. 12594(a), 12618(b)).''.

(B) CLERICAL AMENDMENT.—The table of sections for part III of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by inserting after the item relating to section 139H the following new item:

''Sec. 139I. Living allowance for national service participants.''.

(C) EFFECTIVE DATE.—The amendments made by this paragraph shall apply to taxable years beginning after the date of the enactment of this Act.

(2) EXCLUSION FROM GROSS INCOME OF NATIONAL SERVICE EDUCATIONAL AWARDS.—

(A) IN GENERAL.—Section 117 of the Internal Revenue Code of 1986 (relating to qualified scholarships) is amended by adding at the end the following new subsection:

''(e) NATIONAL SERVICE EDUCATIONAL AWARDS.—Gross income shall not include any payments from the National Service Trust established under section 145 of the National and Community Service Act of 1990 (42 U.S.C. 12601), including the national service educational award described in subtitle D of title I of such Act (42 U.S.C. 12601 et seq.).''.

(B) EXCLUSION OF DISCHARGE OF STUDENT LOAN DEBT.—Subsection (f) of section 108 of such Code is amended by adding at the end the following new paragraph:

''(6) PAYMENTS UNDER NATIONAL SERVICE EDUCATIONAL AWARD PROGRAMS.—In the case of an individual, gross income shall not include any amount received as a national service educational award under subtitle D of title I of the National and Community Service Act of 1990 (42 U.S.C. 12601 et seq.).''.

(C) EFFECTIVE DATE.—The amendments made by this paragraph shall apply to taxable years ending after the date of the enactment of this Act.

SEC. 7. INVITING PARTICIPATION.

(a) COORDINATION WITH OTHER YOUTH PROGRAMS.—Section 193A of the National and Community Service Act of 1990 (42 U.S.C. 12651d) is amended by adding at the end the following:

''(j) COORDINATION WITH OTHER YOUTH PROGRAMS.—

''(1) COVERED PROGRAMS.—The term 'covered program' means—

''(A) the YouthBuild program carried out by the Secretary of Labor under section 171 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3226);

''(B) the program of the Indian Youth Service Corps under section 210 of the Public Lands Corps Act of 1993 (16 U.S.C. 1727b);

''(C) a youth conservation corps program under title I of the Act entitled 'An Act to establish a pilot program in the Departments of the Interior and Agriculture designated as the Youth Conservation Corps, and for other purposes', approved August 13, 1970 (commonly known as the 'Youth Conservation Corps Act of 1970'; 16 U.S.C. 1701 et seq.); and

''(D) the National Guard Youth Challenge Program under section 509 of title 32, United States Code.

''(2) COORDINATION.—The Chief Executive Officer, in coordination with the Federal agency representatives for covered programs, shall develop a plan and make recommendations in the plan to improve coordination between covered programs and programs of the Corporation to meet the needs of underserved youth, such as economically disadvantaged youth, minority youth, youth who left school without a secondary school diploma, formerly incarcerated or court-involved youth, youth who are children of an incarcerated parent, youth in foster care (including youth aging out of foster care), migrant youth, and other youth who are neither enrolled in secondary or postsecondary school or participating in the labor market.''.

(b) PLATFORM FOR NATIONAL SENIOR SERVICE CORPS.—Title IV of the Domestic Volunteer Service Act of 1973 is amended—

(1) by redesignating section 421 (42 U.S.C. 5061), as amended by section ___4(b), as section 401;

(2) by moving that section 401 so as to follow the title heading for title IV; and

(3) by inserting after section 420 (42 U.S.C. 5059) the following:

''SEC. 421. ONLINE SERVICE PLATFORM.

''(a) ESTABLISHMENT.—The Chief Executive Officer of the Corporation shall establish an online service platform with a gateway to connect volunteers in the National Senior Service Corps with service projects and enable the volunteers to carry out distance volunteer services. The platform shall be linked to and placed prominently on the website of the Corporation. The Corporation may enter into a contract with a public entity to create the platform.

''(b) TRAINING RESOURCES AND INFORMATION.—

''(1) IN GENERAL.—The Corporation shall provide training resources, information, and guidance for the volunteers on the platform.

''(2) INFORMATION.—The Corporation shall provide information to regional offices of the Corporation about how to get volunteers in the National Senior Service Corps connected to the platform through the gateway.

''(3) GUIDANCE.—The Corporation shall issue guidance for the regional offices about how to transfer the programs of the National Senior Service Corps to the platform.

''(4) OUTREACH.—The Corporation shall provide outreach services to promote the platform including outreach to institutions of higher education, the Department of Veterans Affairs for mentorship projects, and State and local governments for community engagement projects.''.

(c) OUTREACH AND PROMOTION CAMPAIGN.—Section 193A(g) of such Act is amended by adding at the end the following:

''(4) OUTREACH AND PROMOTION CAMPAIGN.—

''(A) IN GENERAL.—In carrying out public awareness functions under this subsection, the Corporation shall carry out an outreach and promotion campaign to promote programs under the national service laws with opportunities to respond to the COVID–19 public health emergency, with the goal of maximizing awareness of those programs among individuals ages 17 through 30.

''(B) REPORT.—The Corporation shall prepare and submit to Congress a report that—

''(i) evaluates the outreach and promotion campaign; and

''(ii) contains—

''(I) an analysis of the measures and resources that would be required for the Corporation effectively to notify individuals who are ages 17 through 30 every 2 years of opportunities under the national service laws and steps to take to apply for those opportunities;

''(II) a description of how the Corporation would ensure those measures would enable the Corporation to provide that notification to targeted individuals from diverse geographic areas, including individuals who are ages 17 through 30 living in rural or high-poverty areas, or tribal communities; and

''(III) a recommendation regarding whether the Corporation should make the notifications described in subclause (I).''.

(d) VOLUNTEER GENERATION FUND.—Section 198P(d)(2) of the National and Community Service Act of 1990 (42 U.S.C. 12653p(d)(2)) is amended by adding at the end the following: ''With respect to grants made with funds appropriated as an additional amount under section 501(a)(4)(F), the minimum grant amount shall be not less than $250,000.''.

SEC. ___8. ENSURING AGILITY.

(a) WAIVER OF MATCHING FUNDS REQUIREMENTS.—Section 189A of the National and Community Service Act of 1990 (42 U.S.C. 12645d) is amended—

(1) in the section heading, by inserting ''**; MATCHING FUNDS DURING COVID–19 RESPONSE AND RECOVERY PERIOD**'' after ''**COMMUNITIES**''; and

(2) by adding at the end the following:

''(c) COVID–19 RESPONSE.—Notwithstanding any other provision of law, an entity that receives assistance from the Corporation for any program under the national service laws (including a State Commission and an entity receiving subgrant funds) during the COVID–19 emergency response and recovery period shall not be subject to any requirements to provide matching funds for any such program, and the Federal share of such assistance for a recipient (including for a State Commission and a subgrant recipient) may be 100 percent.''.

(b) PILOT PROGRAM.—Section 126 of the National and Community Service Act of 1990 (42 U.S.C. 12576) is amended by adding at the end the following:

''(d) DIRECT PLACEMENTS DURING THE COVID–19 RESPONSE AND RECOVERY PERIOD.—

''(1) IN GENERAL.—Notwithstanding section 178(h), during the COVID–19 emergency response and recovery period, the Corporation shall implement a pilot program allowing State Commissions to directly place a portion of individuals who have approved national service positions in State national service programs in a manner to be determined by the Corporation.

''(2) PRIORITIES.—State Commissions participating in the pilot program shall, to the extent practicable, prioritize the placement of individuals in national service programs that serve rural or high-poverty areas, or tribal communities, especially such programs carried out by entities that have not previously been service sponsors for participants.

''(3) REPORT.—The Corporation shall prepare and submit a report to Congress at the end of the pilot program described in paragraph (1), containing recommendations about whether and how to continue such a program of direct placements.''.

(c) NO SUMMER LIMITATION DURING COVID–19 RESPONSE AND RECOVERY PERIOD.—Section 104 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4954) is amended by adding at the end the following:

''(f)(1) Notwithstanding any other provision of this part, during the COVID–19 emergency response and recovery period, the Director may enroll full-time VISTA associates in a program, during any months of the year, under such terms and conditions as the Director shall determine to be appropriate. Such individuals shall be assigned to projects that address the needs of underserved communities as a result of the COVID–19 public health emergency.

''(2) In preparing reports relating to programs under this Act, the Director shall report on participants, costs, and accomplishments under the program under this subsection separately.

''(3) The limitation on funds appropriated for grants and contracts, as contained in section 108, shall not apply to the program under this subsection.''.

(d) VISTA LIMITATION APPLICABILITY.—Section 108 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4958) is amended—

(1) in subsection (a), by striking ''Of funds appropriated'' and inserting ''Subject to subsection (c), of funds appropriated''; and

(2) by adding at the end the following:

''(c) RULE FOR COVID–19 RESPONSE AND RECOVERY PERIOD.—Notwithstanding subsection (a), during the COVID–19 emergency response and recovery period, in order to address the needs of underserved communities related to the COVID–19 pandemic, of funds appropriated for the purpose of this part under section 501, not more than 75 percent may be obligated for the direct cost of supporting volunteers in programs and projects (including new programs and projects that begin after the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act) carried out pursuant to this part, and such funds may be obligated regardless of when grant recipients commenced such programs and projects.''.

(e) AUGMENTATION AND EXPANSION GRANTS.—Title IV of the National and Community Service Act of 1990 (42 U.S.C. 12671) is amended—

(1) by striking the title IV title heading and all that follows through the section heading for section 401 and inserting the following:

''TITLE IV—RESPONSE PROJECTS

''SEC. 401. PROJECTS HONORING VICTIMS OF TERRORIST ATTACKS.'';

and

(2) by adding at the end the following:

''SEC. 402. COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD AUGMENTATION AND EXPANSION GRANTS.

''During the COVID–19 emergency response and recovery period, the Corporation may award noncompetitive augmentation and expansion grants, at such time and in such manner as the Corporation determines appropriate.''.

(f) TERM OF SERVICE DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Section 146 of the National and Community Service Act of 1990 (42 U.S.C. 12602) is amended by adding at the end the following:

''(g) TERM OF SERVICE DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Notwithstanding the aggregate value limit described in subsection (c), during the COVID–19 emergency response and recovery period, a participant who received 2 national service educational awards for terms of service concluding before the end of fiscal year

2020 may, as determined by the Corporation, be eligible for an additional term of service and, on the successful completion of that term, a third national service educational award.''.

(g) INCREASE IN LIMITATION ON GRANT AMOUNTS.—

(1) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT DURING EMERGENCY RESPONSE AND RECOVERY PERIOD.—Section 189 of the National and Community Service Act of 1990 (42 U.S.C. 12645c) is amended by adding at the end the following:

''(f) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Notwithstanding the limits described in subsections (a) and (e), during the COVID–19 emergency response and recovery period, the amount of funds approved by the Corporation for a grant to operate a program authorized under the national service laws, for supporting individuals serving in approved national service positions, may not exceed, for each full-time equivalent position—

''(1) an amount equal to the sum of—

''(A) $7,500; and

''(B) the living allowance established under section 140(a) (including any adjustment attributable to section 105(b)(4) of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955(b))); or

''(2) for a grant for a program meeting the requirements described in subsection (e), an amount equal to the sum of—

''(A) $10,000; and

''(B) the living allowance established under section 140(a) (including any adjustment referred to in paragraph (1)(B)).''.

(2) WAIVER AUTHORITY FOR INCREASED LIMITATION.—Section 189(e)(1) of the National and Community Service Act of 1990 (42 U.S.C. 12645c(e)(1)) is amended by striking ''$19,500'' and inserting ''an amount equal to the sum of $10,000 and the living allowance established under section 140(a) (including any adjustment referred to in subsection (f)(1)(B))''.

(h) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT FOR EDUCATIONAL AWARD ONLY PROGRAM DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Section 129A of the National and Community Service Act of 1990 (42 U.S.C. 12581a) is amended by adding at the end the following:

''(g) INCREASE IN LIMITATION ON TOTAL GRANT AMOUNT FOR EDUCATIONAL AWARD ONLY PROGRAM DURING COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.—Notwithstanding the limit described in subsection (b), during the COVID–19 emergency response and recovery period, the Corporation may provide the operational support under this section for a program in an amount that is not more than $1,600 per individual enrolled in an approved national service position, or not more than $2,000 per such individual if at least 50 percent of the persons enrolled in the program are disadvantaged youth.''.

(i) SEASONAL PROGRAM.—

(1) ESTABLISHMENT OF NATIONAL CIVILIAN COMMUNITY CORPS PROGRAM.—Section 152(b)(2) of the National and Community Service Act of 1990 (42 U.S.C. 12612(b)(2)) is amended by striking ''summer'' and inserting ''seasonal''.

(2) SEASONAL NATIONAL SERVICE PROGRAM.—Section 154 of the National and Community Service Act of 1990 (42 U.S.C. 12614) is amended—

(A) in the section heading by striking ''**SUMMER**'' and inserting ''**SEASONAL**'';

(B) in subsection (a), by striking ''summer'' and inserting ''seasonal'';

(C) in subsection (b), by striking ''50 percent of the participants in the summer'' and inserting ''35 percent of the participants in the seasonal''; and

(D) by striking subsection (c) and inserting the following:

''(c) SEASONAL PROGRAM.—Persons desiring to participate in the seasonal national service program shall enter into an agreement with the Director to participate in the Corps for a period of not less than 3 months and not more than 6 months, as specified by the Director.''.

(j) NATIONAL SENIOR SERVICE CORPS.—Part D of title II of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5021 et seq.) is amended by adding at the end the following:

''SEC. 229. COVID–19 EMERGENCY RESPONSE AND RECOVERY PERIOD.

''(a) AGE REQUIREMENTS.—Notwithstanding section 201(a), during the COVID–19 emergency response and recovery period, in order to address the critical needs of local communities across the country as a result of the COVID–19 pandemic, individuals who are 45 years of age or older may be enrolled as volunteers to provide services under part A.

''(b) INCOME REQUIREMENTS.—Notwithstanding section 211(d), during the COVID–19 emergency response and recovery period, the terms 'low-income person' and 'person of low income' under such section shall mean any person whose income is not more than 400 percent of the poverty line defined in section 673(2) of the Community Services Block Grant (42 U.S.C. 9902(2)) and adjusted by the Director in the manner described in such section.''.

(k) FLEXIBILITY.—

(1) POLICY OF MAXIMIZING FLEXIBILITY.—It is the sense of the Senate that, in carrying out activities under this title, the Corporation for National and Community Service should, consistent with the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4950 et seq.) and the National and Community Service Act of 1990 (42 U.S.C. 12501), maximize the flexibility of State Commissions (as defined in section 101 of such Act (42 U.S.C. 12511)) to award and amend grants, consistent with the purposes of this title, and to rapidly enroll new individuals to serve in programs under the national service laws.

(2) REPORT ON ACTIVITIES TO MAXIMIZE FLEXIBILITY.—Not later than 120 days after the date of enactment of this Act, and in consultation with such State Commissions, the Chief Executive Officer of the Corporation for National and Community Service shall prepare and submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives a report containing recommendations on what additional actions to maximize flexibility for such State Commissions would strengthen the work of State Commissions and their grantees.

(l) FURTHER EXPEDITING RAPID ENROLLMENT.—Not later than 90 days after the date of enactment of this Act, the Chief Executive Officer of the Corporation for National and Community Service shall review the Corporation's capacity and shall prepare and submit a report to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives containing information about whether a new unit within the Corporation for National and Community Service should be established to provide additional assistance or manage the enrollment process to ensure compliance with sections 189D and 199I of the National and Community Service Act of 1990 (42 U.S.C. 12645g; 12655i) for incoming participants in national service programs, particularly new national service programs receiving program assistance for the first time.

SEC. ___9. AUTHORIZATIONS OF APPROPRIATIONS.

(a) AMERICORPS STATE AND NATIONAL; EDUCATIONAL AWARDS.—

(1) IN GENERAL.—Section 501(a)(2) of the National and Community Service Act of 1990 (42 U.S.C. 12681(a)(2)) is amended by striking ''fiscal years 2010 through 2014'' and all that follows and inserting ''fiscal year 2020, in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, additional amounts of—

''(A) $10,300,000,000, to provide financial assistance under subtitle C of title I; and

''(B) $3,659,000,000, to provide national service educational awards under subtitle D of title I for the total of the number of participants described in section 121(f)(1) for fiscal years 2020 through 2023.''.

(2) CONFORMING AMENDMENT.—Section 121(f)(1) of such Act (42 U.S.C. 12571(f)(1)) of such Act is amended by striking subparagraphs (A), (B) and (C) and inserting the following:

''(A) increase the number of positions to 250,000 per year by fiscal year 2023; and

''(B) ensure that the increase described in subparagraph (A) is achieved through an appropriate balance of full- and part-time service positions;''.

(b) AMERICORPS NCCC.—Section 501(a)(3)(A) of such Act (42 U.S.C. 12681(a)(3)(A)) is amended by striking ''such sums as may be necessary for each of fiscal years 2010 through 2014.'' and inserting ''in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act an additional amount of $592,000,000 for fiscal year 2020.''.

(c) VOLUNTEER GENERATION FUND.—Section 501(a)(4) of such Act (42 U.S.C. 12681(a)(4)) is amended—

(1) in subparagraph (A), by striking ''for each of fiscal years 2010 through 2014'' and inserting ''for fiscal year 2020''; and

(2) in subparagraph (F), by striking ''section 198P—'' and all that follows and inserting ''in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, an additional amount of $50,000,000 for fiscal year 2020.''.

(d) ADMINISTRATION BY THE CORPORATION AND STATE COMMISSIONS.—Section 501(a)(5) of such Act (42 U.S.C. 12681(a)(5)) is amended—

(1) in subparagraph (A), by striking ''such sums as may be necessary for each of fiscal years 2010 through 2014.'' and inserting ''in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, an additional amount of $754,000,000 for fiscal year 2020.'';

(2) in subparagraph (B), by striking ''for a fiscal year, a portion'' and inserting ''a portion (from the amounts appropriated under subparagraph (A) before the date of enactment of the Cultivating Opportunity and Response to the Pandemic through Service Act, and an additional portion of $158,000,000,''; and

(3) by adding at the end the following new subparagraph:

''(C) OUTREACH AND PROMOTION CAMPAIGN FOR COVID–19 RESPONSE OPPORTUNITIES.—Of the amounts appropriated under subparagraph (A), $10,000,000 shall be made available to carry out an outreach and promotion campaign under section 193A(g)(4).''.

(e) AMERICORPS VISTA.—Section 501 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5081) is amended—

(1) in subsection (a)(1), by striking ''$100,000,000 for fiscal year 2010 and such sums as may be necessary for each of the fiscal years 2011 through 2014.'' and inserting '', in addition to any amount appropriated before the date of enactment of the Cultivating Opportunity and Response to the Pandemic

through Service Act, an additional amount of $1,100,000,000 for fiscal year 2020.''; and

(2) in subsection (d), by striking the period and inserting '', except that any additional amount appropriated under an amendment made by the Cultivating Opportunity and Response to the Pandemic through Service Act shall remain available for obligation through fiscal year 2023.''.

(f) NATIONAL SENIOR SERVICE CORPS.—Section 502 of such Act (42 U.S.C. 5082) is amended by adding at the end the following:

''(e) ONLINE SERVICE RESOURCES.—There are authorized to be appropriated, to develop online service resources to carry out parts A, B, C, and E of title II, $5,000,000 for fiscal year 2020.''.

SEC. __10. TABLE OF CONTENTS.

(a) NCSA.—The table of contents in section 1(b) of the National Community Service Act of 1990 is amended—

(1) by striking the item relating to section 154 and inserting the following:

''Sec. 154. Seasonal national summer program.'';

(2) by striking the item relating to section 189A and inserting the following:

''Sec. 189A. Matching requirements for severely economically distressed communities; matching funds during COVID–19 response and recovery period.'';

and

(3) by striking the item relating to the title heading for title IV and all that follows through the item relating to section 401 and inserting the following:

''TITLE IV—RESPONSE PROJECTS

''Sec. 401. Projects honoring victims of terrorist attacks.

''Sec. 402. COVID–19 emergency response and recovery period augmentation and expansion grants.''.

(b) DVSA.—The table of contents in section 1(b) of the National Community Service Act of 1990 is amended—

(1) in the items relating to part D of title II, by adding at the end the following:

''Sec. 229. COVID–19 emergency response and recovery period.'';

(2) by inserting after the item relating to the title heading for title IV the following:

''Sec. 401. Definitions.'';

and

(3) by striking the item relating to section 421 and inserting the following:

''Sec. 421. Online service platform.''.

SA 2634. Mr. WICKER submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. CREDIT FOR AMERICAN INFRASTRUCTURE BONDS ALLOWED TO ISSUERS.

(a) IN GENERAL.—Subchapter B of chapter 65 of the Internal Revenue Code of 1986 is amended by inserting after section 6430 the following new section:

''SEC. 6431. CREDIT TO ISSUER OF AMERICAN INFRASTRUCTURE BONDS.

''(a) IN GENERAL.—The issuer of an American infrastructure bond shall be allowed a credit with respect to each interest payment under such bond which shall be payable by the Secretary as provided in subsection (b).

''(b) PAYMENT OF CREDIT.—

''(1) IN GENERAL.—The Secretary shall pay (contemporaneously with each interest payment date under such bond) to the issuer of such bond (or to any person who makes such interest payments on behalf of the issuer) the applicable percentage of the interest payable under such bond on such date.

''(2) APPLICABLE PERCENTAGE.—For purposes of paragraph (1), the applicable percentage shall be equal to—

''(A) in the case of any American infrastructure bond issued before January 1, 2026, 35 percent, and

''(B) in the case of any American infrastructure bond issued after December 31, 2025, 28 percent.

''(3) INTEREST PAYMENT DATE.—For purposes of this subsection, the term 'interest payment date' means each date on which the holder of record of the American infrastructure bond is entitled to a payment of interest under such bond.

''(c) AMERICAN INFRASTRUCTURE BOND.—

''(1) IN GENERAL.—For purposes of this section, the term 'American infrastructure bond' means any obligation if—

''(A) the interest on such obligation would (but for this section) be excludable from gross income under section 103,

''(B) either—

''(i) the obligation is not a private activity bond, or

''(ii) the obligation is a private activity bond, but it is issued as part of an issue 95 percent or more of the net proceeds of which are to be used to finance or refinance property that meets the ownership test in section 145(a)(1), as applied by substituting '95 percent of the property' for 'all property', and

''(C) the issuer makes an irrevocable election to have this section apply.

''(2) APPLICABLE RULES.—For purposes of applying paragraph (1)—

''(A) for purposes of section 149(b), a bond shall not be treated as federally guaranteed by reason of the credit allowed under this section, and

''(B) a bond shall not be treated as an American infrastructure bond if the issue price has more than a de minimis amount (determined under rules similar to the rules of section 1273(a)(3)) of premium over the stated principal amount of the bond.

''(d) SPECIAL RULES.—

''(1) INTEREST ON AMERICAN INFRASTRUCTURE BONDS INCLUDIBLE IN GROSS INCOME FOR FEDERAL INCOME TAX PURPOSES.—For purposes of this title, interest on any American infrastructure bond shall be includible in gross income.

''(2) APPLICATION OF ARBITRAGE RULES.—For purposes of section 148, the yield on an issue of American infrastructure bonds shall be reduced by the credit allowed under this section, except that no such reduction shall apply with respect to determining the amount of gross proceeds of an issue that qualifies as a reasonably required reserve or replacement fund.

''(e) REGULATIONS.—The Secretary may prescribe such regulations and other guidance as may be necessary or appropriate to carry out this section.''.

(b) CONFORMING AMENDMENTS.—

(1) The table of sections for subchapter B of chapter 65 of subtitle F of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 6431. Credit to issuer of american infrastructure bonds.''.

(2) Subparagraph (A) of section 6211(b)(4) of such Code is amended by inserting ''6431,''after ''36B,''.

(c) TRANSITIONAL COORDINATION WITH STATE LAW.—Except as otherwise provided by a State after the date of the enactment of this Act, the interest on any American infrastructure bond (as defined in section 6431 of the Internal Revenue Code of 1986 (as added by this Act)) and the amount of any credit determined under such section with respect to such bond shall be treated for purposes of the income tax laws of such State as being exempt from Federal income tax.

(d) ADJUSTMENT TO PAYMENT TO ISSUERS IN CASE OF SEQUESTRATION.—

(1) IN GENERAL.—In the case of any payment under subsection (b) of section 6431 of the Internal Revenue Code of 1986 (as added by this Act) made after the date of enactment of this Act to which sequestration applies, the amount of such payment shall be increased to an amount equal to—

(A) such payment (determined before such sequestration), multiplied by

(B) the quotient obtained by dividing the number 1 by the amount by which the number 1 exceeds the percentage reduction in such payment pursuant to such sequestration.

(2) SEQUESTRATION.—For purposes of this subsection, the term ''sequestration'' means any reduction in direct spending ordered in accordance with a sequestration report prepared by the Director of the Office and Management and Budget pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 or the Statutory Pay-As-You-Go Act of 2010 or future legislation having similar effect.

(e) EFFECTIVE DATE.—The amendments made by this section shall apply to obligations issued after the date of enactment of this Act.

SA 2635. Mr. WICKER (for himself, Mr. BARRASSO, Mrs. CAPITO, Mr. PERDUE, Mr. BOOZMAN, Mr. MORAN, and Ms. MURKOWSKI) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. REINSTATEMENT OF ADVANCE REFUNDING BONDS.

(a) IN GENERAL.—The amendments made by section 13532 of Public Law 115-97 are repealed and the provisions of law amended by such section are restored as if such section had never been enacted.

(b) EFFECTIVE DATE.—The repeal made by this section shall take effect on the date of enactment of this Act.

SA 2636. Mr. MCCONNELL (for Mrs. FISCHER) proposed an amendment to the resolution S. Res. 659, designating September 2020 as ''School Bus Safety Month''; as follows:

In the sixth whereas clause of the preamble, strike ''school districts'' and insert ''schools''.

SA 2637. Mr. MCCONNELL (for Mr. THUNE) proposed an amendment to the joint resolution S.J. Res. 74, requesting the Secretary of the Interior to authorize a unique and 1-time arrangement for certain displays on Mount Rushmore National Memorial relating to the centennial of the ratification of the 19th Amendment to the Constitution of

the United States during the period beginning August 18, 2020, and ending on September 30, 2020; as follows:

On page 3, strike lines 17 and 18, and insert the following:

2020;

(2) encourages the Secretary of the Interior, in planning the event requested to be authorized under paragraph (1), to consult with the Director of the Centers for Disease Control and Prevention or a designee of the Director of the Centers for Disease Control and Prevention regarding precautions for events and large gatherings to limit the spread of COVID–19, including—

(A) clearly communicating the precautions in place to the public through signage;

(B) facilitating social distancing; and

(C) promoting safe hygiene practices for staff and visitors;

(3) requires the Secretary of the Interior, in carrying out the event requested to be authorized under paragraph (1), to adhere to, to the maximum extent practicable, any precautions recommended in the publication of the Centers for Disease Control and Prevention entitled ''Considerations for Events and Gatherings'' during that event; and

(4) respectfully requests that the Secretary of

SA 2638. Mr. MCCONNELL (for Mr. COONS) proposed an amendment to the concurrent resolution S. Con. Res. 37, honoring the life and work of Louis Lorenzo Redding, whose lifelong dedication to civil rights and service stand as an example of leadership for all people; as follows:

Strike the preamble and insert the following:

Whereas Louis Lorenzo Redding (referred to in this preamble as ''Louis L. Redding'') was born on October 25, 1901, in Alexandria, Virginia, the eldest of 5 children born to Lewis Alfred and Mary Ann Holmes Redding;

Whereas Louis L. Redding was an educator, attorney, and lifelong activist who worked on civil rights and educational issues;

Whereas Louis L. Redding graduated from Howard High School in 1919, which, at that time, was the only public high school for African-American students in Delaware;

Whereas Louis L. Redding received a bachelor's degree from Brown University in 1923;

Whereas, while at Brown University, Louis L. Redding and 7 other men established a chapter of the Alpha Phi Alpha fraternity in Providence, Rhode Island;

Whereas, in 1923, Louis L. Redding was the first African American awarded the prestigious William Gaston Prize for excellence in oratory and, as a result, delivered a commencement speech at Brown University;

Whereas Louis L. Redding became an English instructor and the vice principal of Fessenden Academy outside of Ocala, Florida, the oldest continuously operated school originally for African-American students in Florida;

Whereas Louis L. Redding left Fessenden Academy to teach English in the high school division of Morehouse College, a historically Black college in Atlanta, Georgia;

Whereas, after 2 years of teaching, Louis L. Redding enrolled in Harvard Law School in 1925;

Whereas, in 1926, as a law student at Harvard Law School, Louis L. Redding was ejected from the Wilmington, Delaware, municipal court while protesting segregation of the courtroom;

Whereas that municipal court was the first court in Wilmington, Delaware, to desegregate its gallery;

Whereas Louis L. Redding graduated from Harvard Law School in 1928 as the only African American in a class of about 200 students;

Whereas, in 1929, Louis L. Redding became the first African American to pass the Delaware bar;

Whereas Louis L. Redding remained the only African-American lawyer in Delaware for 26 years;

Whereas, in 1949, Louis L. Redding was admitted to the Delaware Bar Association, an organization from which Louis L. Redding had been excluded for 20 years after having passed the Delaware bar;

Whereas, in 1950, Louis L. Redding and Jack Greenberg, a lawyer for the NAACP Legal Defense and Educational Fund, filed the case of Parker v. University of Delaware to protest the segregated college system in Delaware;

Whereas, in August 1950, Chancellor Collins Seitz ruled in Parker v. University of Delaware, 75 A.2d 225 (Del. Ch. 1950), that, under Plessy v. Ferguson, 163 U.S. 537 (1896), the State of Delaware violated the Constitution of the United States by offering a separate but not equal education in the State college and university system;

Whereas, in 1951, Louis L. Redding and Jack Greenberg filed—

(1) Belton v. Gebhart, a case that concerned the desegregation of high schools; and

(2) Bulah v. Gebhart, a case that concerned the desegregation of elementary schools;

Whereas, in 1952, the Belton and Bulah cases were consolidated in the Delaware Court of Chancery, where, in Belton v. Gebhart, 87 A.2d 862 (Del. Ch. 1952), Chancellor Collins Seitz ordered the Delaware State Board of Education to open all schools in Delaware to African Americans;

Whereas the Delaware State Board of Education appealed the decision of Chancellor Collins Seitz to the Supreme Court of Delaware, which upheld the decision of the Chancellor in Gebhart v. Belton, 91 A.2d 137 (Del. 1952);

Whereas the case then came before the Supreme Court of the United States on a writ of certiorari to the Supreme Court of Delaware;

Whereas Louis L. Redding and Jack Greenberg argued the case alongside Thurgood Marshall, the first African-American Justice of the Supreme Court of the United States, as the last of a group of 5 school desegregation cases heard and decided by the Supreme Court of the United States in Brown v. Board of Education of Topeka, 347 U.S. 483 (1954), and Bolling v. Sharpe, 347 U.S. 497 (1954);

Whereas, on May 17, 1954, the Supreme Court of the United States held in Brown v. Board of Education of Topeka, 347 U.S. 483 (1954), that separate educational facilities for racial minorities violated the Equal Protection Clause of the 14th Amendment to the Constitution of the United States, thus holding that school segregation was unconstitutional;

Whereas, on February 21, 1961, Louis L. Redding argued to the Supreme Court of the United States in the case of Burton v. Wilmington Parking Authority that a private company with a relationship to a government agency was in violation of the Equal Protection Clause of the 14th Amendment to the Constitution of the United States if the private company refused to provide service to a customer on the basis of race;

Whereas, in April 1961, the Supreme Court of the United States established the principle of State action in Burton v. Wilmington Parking Authority, 365 U.S. 715 (1961), and ruled that a private entity may not discriminate on the basis of race if the State has approved, encouraged, or facilitated the relevant private conduct;

Whereas, in 1965, Louis L. Redding became a public defender for the State of Delaware and fought for the rights of poor clients for nearly 20 years thereafter;

Whereas, in 1984, Louis L. Redding retired after 55 years of practicing law;

Whereas Louis L. Redding was a member of many national organizations, including—

(1) the National Bar Association;

(2) the National Association for the Advancement of Colored People;

(3) the National Lawyers Guild; and

(4) the Emergency Civil Liberties Committee;

Whereas Louis L. Redding was awarded the Martin Luther King, Jr. Memorial Award by the National Education Association and an honorary Doctor of Law degree from Brown University;

Whereas the University of Delaware established the Louis L. Redding Chair for the Study of Law and Public Policy in the School of Education;

Whereas Pulitzer Prize winning author Richard Kluger described Louis L. Redding as a man who fought, largely alone, for the civil rights and liberties of Black Delawareans;

Whereas former Secretary of Transportation William T. Coleman, Jr., stated that the giants of the civil rights movement were Houston Hastings, Louis L. Redding, and Thurgood Marshall;

Whereas, on September 29, 1998, Louis L. Redding died at the age of 96 in Lima, Pennsylvania;

Whereas Louis L. Redding broke down barriers and paved the way for countless African-American lawyers to follow in his footsteps, including—

(1) Theophilus Nix, Sr., the second African American to pass the Delaware bar exam;

(2) Leonard L. Williams, the second African-American judge in Delaware; and

(3) Haile L. Alford, the first African-American female judge in Delaware; and

Whereas Louis L. Redding is remembered as an individual who figured prominently in the struggle for desegregation and as a lawyer who never lost a desegregation case: Now, therefore, be it

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SA 2639. Ms. MCSALLY (for herself and Mr. RISCH) submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. NUCLEAR REGULATORY COMMISSION FEE WAIVER.

(a) IN GENERAL.—Notwithstanding the second and fourth provisos under the heading ''SALARIES AND EXPENSES'' under the heading ''NUCLEAR REGULATORY COMMISSION'' in title IV of division C of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94; 133 Stat. 2682), the first and second provisos under the heading ''OFFICE OF INSPECTOR GENERAL'' under the heading ''NUCLEAR REGULATORY COMMISSION'' in that title (133 Stat. 2683), and section 6101 of the Omnibus Budget Reconciliation Act of 1990 (42 U.S.C. 2214), the total amount of revenues received by the Nuclear Regulatory Commission from licensing fees, inspection services, or other services and collections during fiscal year 2020 shall not exceed the total amount of those revenues received by the Nuclear Regulatory Commission prior to March 31, 2020.

(b) EMERGENCY REQUIREMENT DESIGNATION.—

(1) IN GENERAL.—Of the amounts appropriated for the Nuclear Regulatory Commission for fiscal year 2020 in the Further Consolidated Appropriations Act, 2020 (Public Law 116–94; 133 Stat. 2534), the amount described in paragraph (2) is designated by Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901(b)(2)(A)(i)).

(2) AMOUNT DESCRIBED.—The amount referred to in paragraph (1) is the difference between—

(A) $728,054,000; and

(B) the total amount of revenues described in subsection (a) received by the Nuclear Regulatory Commission prior to March 31, 2020.

(c) ADDITIONAL APPROPRIATIONS.—

(1) IN GENERAL.—There is appropriated, out of amounts in the Treasury not otherwise appropriated, for the fiscal year ending September 30, 2021—

(A) for an additional amount under the heading ''Nuclear Regulatory Commission—Salaries and Expenses'', $729,000,000, to become available on October 1, 2020, and to remain available until expended; and

(B) for an additional amount under the heading ''Nuclear Regulatory Commission—Office of Inspector General'', $11,000,000, to become available on October 1, 2020, and to remain available until September 30, 2022.

(2) LIMITATION.—The Nuclear Regulatory Commission shall not collect fees during fiscal year 2021 for licensing, inspection services, or other services and collections.

(3) EMERGENCY DESIGNATION.— The amounts made available under paragraph (1) are designated by Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901(b)(2)(A)(i)).

SA 2640. Mr. GRASSLEY submitted an amendment intended to be proposed by him to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EMERGENCY SUPPORT AND COVID–19 PROTECTIONS FOR NURSING HOMES.

(a) ESTABLISHING COVID–19 STRIKE TEAMS FOR NURSING FACILITIES.—

(1) IN GENERAL.—The Secretary is authorized to establish and support the operation of strike teams comprised of individuals with relevant skills, qualifications, and experience to respond to COVID–19-related crises in participating providers during the COVID–19 public health emergency period, based on data reported by such providers to the Centers for Disease Control and Prevention.

(2) MISSION AND COMPOSITION OF STRIKE TEAMS.—

(A) IN GENERAL.—Strike teams established by the Secretary may include assessment, testing, and clinical teams, and a mission for each such team may include performing medical examinations, conducting COVID–19 testing, and assisting participating providers with the implementation of infection control practices (such as quarantine, isolation, or disinfection procedures).

(B) LETTER OF AUTHORIZATION.—Strike teams and members of such teams shall be subject to the Secretary's oversight and direction and the Secretary may issue a letter of authorization to team members describing—

(i) the individual's designation to serve on 1 or more teams under an emergency proclamation by the Secretary;

(ii) the mission of the team;

(iii) the authority of the individual to perform the team mission;

(iv) the individual's authority to access places, persons, and materials necessary for the team member's performance of the team's mission;

(v) the requirement that team members maintain the confidentiality of patient information shared with such individuals by a participating provider; and

(vi) the required security background checks that the individual has passed.

(C) SECRETARIAL OVERSIGHT.—The Secretary may, at any time, disband any strike team and rescind the letter of authorization for any team member.

(D) TEAM AND MEMBER AUTHORITY.—A team and team member may not use the letter of authorization described in subparagraph (B) for any purpose except in connection with the team's mission of acting in good faith to promote resident and employee safety in participating providers in which COVID–19 is confirmed to be present.

(E) ADMINISTRATION.—The Secretary, in consultation with the Director of the Centers for Disease Control and Prevention, may establish protocols and procedures for requesting the assistance of a strike team established under this subsection and any other procedures deemed necessary for the team's operation.

(F) SUPPLEMENTATION OF OTHER RESPONSE EFFORTS.—Strike teams established by the Secretary under this subsection shall supplement and not supplant response efforts carried out by a State strike team or a technical assistance team established by the Secretary during the COVID-19 public health emergency period.

(b) PROMOTING COVID–19 TESTING AND INFECTION CONTROL IN NURSING FACILITIES.—

(1) NURSING HOME PROTECTIONS.—The Secretary, in consultation with the Elder Justice Coordinating Council established under section 2021 of the Social Security Act (42 U.S.C. 1397k), is authorized during the COVID–19 public health emergency period to enhance efforts by participating providers to respond to COVID–19, including through—

(A) development of online training courses for personnel of participating providers, survey agencies, the long-term care ombudsman of each State, and other individuals to facilitate the implementation of paragraph (2);

(B) enhanced diagnostic testing of visitors to, personnel of, and residents of, participating providers in which measures of COVID–19 in the community support more frequent testing for COVID–19;

(C) development of training materials for personnel of participating providers, the long-term care ombudsman of each State, and representatives and family members of residents; and

(D) providing support to participating providers in areas deemed by the Secretary to require additional assistance due to the presence COVID–19 infections.

(2) TRAINING ON BEST PRACTICES IN INFECTION CONTROL AND PREVENTION.—

(A) IN GENERAL.—The Secretary shall develop training courses on infection control and prevention, including cohorting, strategies and use of telehealth to mitigate the transmission of COVID–19 in participating providers during the COVID–19 public health emergency period.

(B) DEVELOPMENT.—To the extent practicable, the training programs developed by the Secretary under this subsection shall use best practices in infection control and prevention.

(C) COORDINATION WITH OTHER FEDERAL ENTITIES.—The Secretary shall seek input as appropriate on the training courses developed under this subsection from the Elder Justice Coordinating Council and the Director of the Centers for Disease Control and Prevention.

(D) INTERACTIVE WEBSITE.—The Secretary is authorized to create an interactive website to disseminate training materials and related information in the areas of infection control and prevention, for purposes of carrying out this subsection during the COVID–19 public health emergency period.

(c) PROMOTING TRANSPARENCY IN COVID–19 REPORTING BY NURSING FACILITIES AND LONG-TERM CARE FACILITIES.—

(1) COLLECTION AND REPORTING OF STAFFING DATA BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall develop a plan for ensuring that participating providers resume compliance with the requirement, under section 1128I(g) of the Social Security Act (42 U.S.C. 1320a–7j(g)), to electronically submit direct care staffing information based on payroll and other auditable data (including measures to ensure that the submitted data includes direct care staffing information for the entire duration of the COVID–19 emergency period).

(2) COLLECTION AND REPORTING OF DATA RELATED TO COVID–19 BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall ensure that participating providers and long-term care facilities report all suspected and confirmed cases of COVID–19 among personnel and residents of the provider or facility, all COVID–19-related fatalities among personnel and residents of the provider or facility, and all fatalities among personnel and residents of the provider or facility, whether related to COVID–19 or unrelated to COVID–19, for the period beginning on January 1, 2020, to the Secretary.

(3) REPORTING OF NURSING FACILITY DATA RELATED TO COVID–19 BY THE SECRETARY.—Not later than 10 days after the date of enactment of this Act, and at least weekly thereafter during the COVID–19 public health emergency period, the Secretary shall provide the Governor of each State with a list of all participating providers in the State with respect to which the reported cases of COVID–19 in visitors to, personnel of, and residents of, such providers increased during the previous week (or, in the case of the first such list, during the 10-day period beginning on the date of enactment of this Act).

(4) CONFIDENTIALITY.—Any information reported under this subsection that is made available to the public shall be made so available in a manner that protects the identity of residents of participating providers and long-term care facilities.

(d) EXTENDING ELDER JUSTICE ACT PROTECTIONS DURING THE COVID–19 EMERGENCY PERIOD.—

(1) LONG-TERM CARE OMBUDSMAN PROGRAM GRANTS AND TRAINING.—Section 2043 of the Social Security Act (42 U.S.C. 1397m–2) is amended—

(A) in subsection (a)—

(i) in paragraph (1)(A), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2)(D))'' before the semicolon; and

(ii) in paragraph (2)—

(iii) in subparagraph (B), by striking ''and'' after the semicolon;

(iv) in subparagraph (C), by striking the period at the end and inserting a semicolon; and

(v) by adding at the end the following:

''(D) for the emergency period described in section 1135(g)(1)(B), $12,000,000.'';

(B) in subsection (b)—

(i) in paragraph (1), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2))'' before the period; and

(ii) in paragraph (2), by inserting before the period the following: '', and for the emergency period described in section 1135(g)(1)(B), $12,000,000''.

(2) ELDER JUSTICE COORDINATING COUNCIL.—

(A) MEMBERSHIP.—Section 2021(b)(1) of the Social Security Act (42 U.S.C. 1397k(b)(1)) is amended—

(i) by redesignating subparagraph (C) as subparagraph (D); and

(ii) by inserting after subparagraph (B), the following:

''(C) The Administrator of the Federal Emergency Management Agency.''.

(B) DUTIES.—Section 2021(f)(1) of such Act (42 U.S.C. 1397k(f)(1)) is amended by inserting ''the Federal Emergency Management Agency,'' after ''Justice,''.

(3) ADULT PROTECTIVE SERVICES FUNCTIONS AND GRANT PROGRAMS.—Section 2042 of the Social Security Act (42 U.S.C. 1397m–1) is amended—

(A) in subsection (a)(2), by inserting '', and $5,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014'';

(B) in subsection (b)(5), by inserting '', and $150,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''; and

(C) in subsection (c)(6), by inserting '', and $30,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''.

(4) TECHNICAL AMENDMENT.—Section 2011(12)(A) of the Social Security Act (42 U.S.C. 1397j(12)(A)) is amended by striking ''450b'' and inserting ''5304''.

(e) ADDRESSING RACIAL AND ETHNIC CORONAVIRUS DISPARITIES IN LONG-TERM CARE FACILITIES.—

(1) TASK FORCE.—The Secretary shall establish a task force, to be known as the ''Racial and Ethnic Coronavirus Disparities in Long-Term Care Facilities Task Force'' (referred to in this section as the ''task force''), to gather data and information on racial and ethnic disparities in long-term care facilities, during the public health emergency, and to provide recommendations to Federal, State, local, and Tribal policymakers on ways to eliminate health disparities and to improve the health of racial and ethnic minority populations residing in long-term care facilities.

(2) MEMBERSHIP.—The task force shall be composed of the Surgeon General, other Federal, State, and local government officials, and individuals appointed by the Surgeon General with firsthand knowledge of, or expertise relating to, disparities in access to quality care for residents of long-term care facilities who are members of racial or ethnic minority groups. In appointing such individuals, the Surgeon General, in consultation with the Director of the U.S. Department of Health and Human Services Office of Minority Health, shall ensure the individuals appointed provide ample representation with respect to the demographics of residents and caregivers of all long-term care facilities, during the COVID-19 public health emergency period particularly with respect to residents and caregivers of such facilities who are members of racial or ethnic minority groups, communities of color, and communities with preexisting health challenges or difficulties in accessing care.

(3) ADMINISTRATION.—

(A) CHAIRPERSON AND VICE CHAIRPERSON.—The Surgeon General shall serve as the chairperson of the task force. The Director of the Department's Office of Minority Health shall serve as the vice chairperson.

(B) STAFF.—The task force shall have at least 2 full-time staff members, with diverse and relevant experience, including, but not limited to academic, community, governmental, or vocational work. The staff members, in coordination with the Chairperson and Vice Chairperson shall appoint at least two representatives from the aging community to serve on the task force in addition to at least four representatives providing ample representation with respect to the demographics of residents and caregivers of all long-term care facilities, particularly with respect to members of racial or ethnic minority groups and communities of color, and communities with preexisting health challenges or difficulties in accessing care.

(C) MEETINGS.—The task force shall convene at least monthly, with the first meeting to occur within 60 days after the enactment of this Act.

(4) REPORTING AND RECOMMENDATIONS.—

(A) MONTHLY REPORTS.—Not later than 45 days after the 1st meeting of the task force, and monthly thereafter, the task force shall submit to Congress, the Centers for Medicare and Medicaid, and the Centers for Disease Control and Prevention a report that includes—

(i) recommended methodologies for improving Federal data collection, including transparent publication of such data and information on resident outcomes in long-term care facilities with disproportionately high rates of admission of individuals who are members of racial or ethnic minority groups;

(ii) the identification of long-term care facilities evidencing racial or ethnic disparities in COVID-19 cases and fatalities, psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse rates, neglect rates, fatality rates, and any additional areas, as determined by the task force based on available public health data (or, if no such data are available, on the basis of such other publicly available data or information as the task force may determine);

(iii) the identification of factors, including Federal and State policies, that have contributed to health disparities in resident outcomes in long-term care facilities, and actions Congress (and if appropriate, other entities) can take to address these factors; and

(iv) recommendations for best practices to eliminate health disparities and to improve the health of racial and ethnic minority populations in long-term care facilities, especially such facilities evidencing racial or ethnic disparities in COVID-19 cases and fatalities, psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse and neglect rates, fatality rates, or any additional areas determined by the task force.

(B) CONSULTATION WITH INDIAN TRIBES.—In submitting reports and recommendations under this subsection, the task force shall consult with Indian Tribes and Tribal organizations.

(C) SUNSET.—The task force shall terminate on December 31, 2022.

(f) ACHIEVING SAVINGS IN HEALTH CARE PROGRAMS BY REDUCING IMPROPER PRESCRIBING OF CONTROLLED SUBSTANCES.—

(1) IN GENERAL.—Within 120 days of enactment of this Act and annually thereafter, the Secretary shall report all Medicare revocation actions or preclusion list placements to the Drug Enforcement Administration that are based totally or in part on the improper prescribing, administering, or dispensing of controlled substances.

(2) DEFINITIONS.—The terms used in this subsection shall have the meaning given such terms in section 102 of the Controlled Substances Act (42 U.S.C. 802). For purposes of paragraph (1), the ''improper prescribing, administering, or dispensing of controlled substances'' includes doing so in any of the following respects:

(A) In excessive quantities.

(B) For other than a legitimate medical purpose or outside the usual course of professional practice.

(C) Beyond the scope of the practitioner's DEA registration.

(D) In any other manner not permitted by the Controlled Substances Act (21 U.S.C. 801 et. seq.).

(3) ACCESS TO EVIDENCE.—When making the reports required under paragraph (1), the Secretary shall provide the Drug Enforcement Administration with any relevant records or other evidence that Drug Enforcement Administration requests for purposes of carrying out its functions under the Controlled Substances Act. The Drug Enforcement Administration may use any such information or other evidence provided by the Secretary for the purposes of any criminal, civil, or administrative proceeding arising out the Controlled Substances Act.

(g) FUNDING.—

(1) CARES ACT.—-The Secretary may use amounts appropriated for COVID–19 response and related activities pursuant to the CARES Act (Public Law 116–136) and subsequently enacted legislation to carry out this section and the amendments made by this section.

(2) PREVENTION AND PUBLIC HEALTH FUND.—The Secretary may use amounts in the Prevention and Public Health Fund, established under section 4002 of the Patient Protection and Affordable Care Act of 2010, to carry out this section and the amendments made by this section, including by providing financial assistance to participating providers as appropriate for implementation of the requirements of this section and the amendments made by this section.

(h) DEFINITIONS.—In this section:

(1) COVID–19.—The term ''COVID–19'' means the 2019 Novel Coronavirus or 2019-nCoV.

(2) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(3) LONG-TERM CARE FACILITY.—The term ''long-term care facility'' has the meaning given that term in section 2011(15) of the Social Security Act (42 U.S.C. 1397j(15)).

(4) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(5) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(6) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(7) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(8) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

SA 2641. Mr. GRASSLEY submitted an amendment intended to be proposed to amendment SA 2499 proposed by Mr. MCCONNELL to the bill S. 178, to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. EMERGENCY SUPPORT AND COVID–19 PROTECTIONS FOR NURSING HOMES.

(a) ESTABLISHING COVID–19 STRIKE TEAMS FOR NURSING FACILITIES.—

(1) IN GENERAL.—The Secretary is authorized to establish and support the operation of strike teams comprised of individuals with relevant skills, qualifications, and experience to respond to COVID–19-related crises in participating providers during the COVID–19 public health emergency period, based on data reported by such providers to the Centers for Disease Control and Prevention.

(2) MISSION AND COMPOSITION OF STRIKE TEAMS.—

(A) IN GENERAL.—Strike teams established by the Secretary may include assessment, testing, and clinical teams, and a mission for each such team may include performing medical examinations, conducting COVID–19 testing, and assisting participating providers with the implementation of infection control practices (such as quarantine, isolation, or disinfection procedures).

(B) LETTER OF AUTHORIZATION.—Strike teams and members of such teams shall be subject to the Secretary's oversight and direction and the Secretary may issue a letter of authorization to team members describing—

(i) the individual's designation to serve on 1 or more teams under an emergency proclamation by the Secretary;

(ii) the mission of the team;

(iii) the authority of the individual to perform the team mission;

(iv) the individual's authority to access places, persons, and materials necessary for the team member's performance of the team's mission;

(v) the requirement that team members maintain the confidentiality of patient information shared with such individuals by a participating provider; and

(vi) the required security background checks that the individual has passed.

(C) SECRETARIAL OVERSIGHT.—The Secretary may, at any time, disband any strike team and rescind the letter of authorization for any team member.

(D) TEAM AND MEMBER AUTHORITY.—A team and team member may not use the letter of authorization described in subparagraph (B) for any purpose except in connection with the team's mission of acting in good faith to promote resident and employee safety in participating providers in which COVID–19 is confirmed to be present.

(E) ADMINISTRATION.—The Secretary, in consultation with the Director of the Centers for Disease Control and Prevention, may establish protocols and procedures for requesting the assistance of a strike team established under this subsection and any other procedures deemed necessary for the team's operation.

(F) SUPPLEMENTATION OF OTHER RESPONSE EFFORTS.—Strike teams established by the Secretary under this subsection shall supplement and not supplant response efforts carried out by a State strike team or a technical assistance team established by the Secretary during the COVID-19 public health emergency period.

(b) PROMOTING COVID–19 TESTING AND INFECTION CONTROL IN NURSING FACILITIES.—

(1) NURSING HOME PROTECTIONS.—The Secretary, in consultation with the Elder Justice Coordinating Council established under section 2021 of the Social Security Act (42 U.S.C. 1397k), is authorized during the COVID–19 public health emergency period to enhance efforts by participating providers to respond to COVID–19, including through—

(A) development of online training courses for personnel of participating providers, survey agencies, the long-term care ombudsman of each State, and other individuals to facilitate the implementation of paragraph (2);

(B) enhanced diagnostic testing of visitors to, personnel of, and residents of, participating providers in which measures of COVID–19 in the community support more frequent testing for COVID–19;

(C) development of training materials for personnel of participating providers, the long-term care ombudsman of each State, and representatives and family members of residents; and

(D) providing support to participating providers in areas deemed by the Secretary to require additional assistance due to the presence COVID–19 infections.

(2) TRAINING ON BEST PRACTICES IN INFECTION CONTROL AND PREVENTION.—

(A) IN GENERAL.—The Secretary shall develop training courses on infection control and prevention, including cohorting, strategies and use of telehealth to mitigate the transmission of COVID–19 in participating providers during the COVID–19 public health emergency period.

(B) DEVELOPMENT.—To the extent practicable, the training programs developed by the Secretary under this subsection shall use best practices in infection control and prevention.

(C) COORDINATION WITH OTHER FEDERAL ENTITIES.—The Secretary shall seek input as appropriate on the training courses developed under this subsection from the Elder Justice Coordinating Council and the Director of the Centers for Disease Control and Prevention.

(D) INTERACTIVE WEBSITE.—The Secretary is authorized to create an interactive website to disseminate training materials and related information in the areas of infection control and prevention, for purposes of carrying out this subsection during the COVID–19 public health emergency period.

(c) PROMOTING TRANSPARENCY IN COVID–19 REPORTING BY NURSING FACILITIES AND LONG-TERM CARE FACILITIES.—

(1) COLLECTION AND REPORTING OF STAFFING DATA BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall develop a plan for ensuring that participating providers resume compliance with the requirement, under section 1128I(g) of the Social Security Act (42 U.S.C. 1320a–7j(g)), to electronically submit direct care staffing information based on payroll and other auditable data (including measures to ensure that the submitted data includes direct care staffing information for the entire duration of the COVID–19 emergency period).

(2) COLLECTION AND REPORTING OF DATA RELATED TO COVID–19 BY NURSING FACILITIES DURING COVID–19 EMERGENCY PERIOD.—The Secretary shall ensure that participating providers and long-term care facilities report all suspected and confirmed cases of COVID–19 among personnel and residents of the provider or facility, all COVID–19-related fatalities among personnel and residents of the provider or facility, and all fatalities among personnel and residents of the provider or facility, whether related to COVID–19 or unrelated to COVID–19, for the period beginning on January 1, 2020, to the Secretary.

(3) REPORTING OF NURSING FACILITY DATA RELATED TO COVID–19 BY THE SECRETARY.—Not later than 10 days after the date of enactment of this Act, and at least weekly thereafter during the COVID–19 public health emergency period, the Secretary shall provide the Governor of each State with a list of all participating providers in the State with respect to which the reported cases of COVID–19 in visitors to, personnel of, and residents of, such providers increased during the previous week (or, in the case of the first such list, during the 10-day period beginning on the date of enactment of this Act).

(4) CONFIDENTIALITY.—Any information reported under this subsection that is made available to the public shall be made so available in a manner that protects the identity of residents of participating providers and long-term care facilities.

(d) EXTENDING ELDER JUSTICE ACT PROTECTIONS DURING THE COVID–19 EMERGENCY PERIOD.—

(1) LONG-TERM CARE OMBUDSMAN PROGRAM GRANTS AND TRAINING.—Section 2043 of the Social Security Act (42 U.S.C. 1397m–2) is amended—

(A) in subsection (a)—

(i) in paragraph (1)(A), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2)(D))'' before the semicolon; and

(ii) in paragraph (2)—

(iii) in subparagraph (B), by striking ''and'' after the semicolon;

(iv) in subparagraph (C), by striking the period at the end and inserting a semicolon; and

(v) by adding at the end the following:

''(D) for the emergency period described in section 1135(g)(1)(B), $12,000,000.'';

(B) in subsection (b)—

(i) in paragraph (1), by inserting ''(including during the emergency period described in section 1135(g)(1)(B), from amounts made available with respect to such period in accordance with paragraph (2))'' before the period; and

(ii) in paragraph (2), by inserting before the period the following: '', and for the emergency period described in section 1135(g)(1)(B), $12,000,000''.

(2) ELDER JUSTICE COORDINATING COUNCIL.—

(A) MEMBERSHIP.—Section 2021(b)(1) of the Social Security Act (42 U.S.C. 1397k(b)(1)) is amended—

(i) by redesignating subparagraph (C) as subparagraph (D); and

(ii) by inserting after subparagraph (B), the following:

''(C) The Administrator of the Federal Emergency Management Agency.''.

(B) DUTIES.—Section 2021(f)(1) of such Act (42 U.S.C. 1397k(f)(1)) is amended by inserting ''the Federal Emergency Management Agency,'' after ''Justice,''.

(3) ADULT PROTECTIVE SERVICES FUNCTIONS AND GRANT PROGRAMS.—Section 2042 of the Social Security Act (42 U.S.C. 1397m–1) is amended—

(A) in subsection (a)(2), by inserting '', and $5,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014'';

(B) in subsection (b)(5), by inserting '', and $150,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''; and

(C) in subsection (c)(6), by inserting '', and $30,000,000 for the emergency period described in section 1135(g)(1)(B)'' after ''2014''.

(4) TECHNICAL AMENDMENT.—Section 2011(12)(A) of the Social Security Act (42 U.S.C. 1397j(12)(A)) is amended by striking ''450b'' and inserting ''5304''.

(e) ADDRESSING RACIAL AND ETHNIC CORONAVIRUS DISPARITIES IN LONG-TERM CARE FACILITIES.—

(1) TASK FORCE.—The Secretary shall establish a task force, to be known as the ''Racial and Ethnic Coronavirus Disparities in Long-Term Care Facilities Task Force'' (referred to in this section as the ''task force''), to gather data and information on racial and ethnic disparities in long-term care facilities, during the public health emergency, and to provide recommendations to Federal, State, local, and Tribal policymakers on ways to eliminate health disparities and to improve the health of racial and ethnic minority populations residing in long-term care facilities.

(2) MEMBERSHIP.—The task force shall be composed of the Surgeon General, other Federal, State, and local government officials, and individuals appointed by the Surgeon General with firsthand knowledge of, or expertise relating to, disparities in access to quality care for residents of long-term care facilities who are members of racial or ethnic minority groups. In appointing such individuals, the Surgeon General, in consultation with the Director of the U.S. Department of Health and Human Services Office of Minority Health, shall ensure the individuals appointed provide ample representation with respect to the demographics of residents and caregivers of all long-term care facilities, during the COVID-19 public health emergency period particularly with respect to residents and caregivers of such facilities who are members of racial or ethnic minority groups, communities of color, and communities with preexisting health challenges or difficulties in accessing care.

(3) ADMINISTRATION.—

(A) CHAIRPERSON AND VICE CHAIRPERSON.—The Surgeon General shall serve as the chairperson of the task force. The Director of the Department's Office of Minority Health shall serve as the vice chairperson.

(B) STAFF.—The task force shall have at least 2 full-time staff members, with diverse and relevant experience, including, but not limited to academic, community, governmental, or vocational work. The staff members, in coordination with the Chairperson and Vice Chairperson shall appoint at least two representatives from the aging community to serve on the task force in addition to at least four representatives providing ample representation with respect to the demographics of residents and caregivers of all long-term care facilities, particularly with respect to members of racial or ethnic minority groups and communities of color, and communities with preexisting health challenges or difficulties in accessing care.

(C) MEETINGS.—The task force shall convene at least monthly, with the first meeting to occur within 60 days after the enactment of this Act.

(4) REPORTING AND RECOMMENDATIONS.—

(A) MONTHLY REPORTS.—Not later than 45 days after the 1st meeting of the task force, and monthly thereafter, the task force shall submit to Congress, the Centers for Medicare and Medicaid, and the Centers for Disease Control and Prevention a report that includes—

(i) recommended methodologies for improving Federal data collection, including transparent publication of such data and information on resident outcomes in long-term care facilities with disproportionately high rates of admission of individuals who are members of racial or ethnic minority groups;

(ii) the identification of long-term care facilities evidencing racial or ethnic disparities in COVID-19 cases and fatalities, psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse rates, neglect rates, fatality rates, and any additional areas, as determined by the task force based on available public health data (or, if no such data are available, on the basis of such other publicly available data or information as the task force may determine);

(iii) the identification of factors, including Federal and State policies, that have contributed to health disparities in resident outcomes in long-term care facilities, and actions Congress (and if appropriate, other entities) can take to address these factors; and

(iv) recommendations for best practices to eliminate health disparities and to improve the health of racial and ethnic minority populations in long-term care facilities, especially such facilities evidencing racial or ethnic disparities in COVID-19 cases and fatalities, psychotropic drug usage, infection prevention and control deficiencies, hospitalization rates, infectious disease rates, injury rates, abuse and neglect rates, fatality rates, or any additional areas determined by the task force.

(B) CONSULTATION WITH INDIAN TRIBES.—In submitting reports and recommendations under this subsection, the task force shall consult with Indian Tribes and Tribal organizations.

(C) SUNSET.—The task force shall terminate on December 31, 2022.

(f) ACHIEVING SAVINGS IN HEALTH CARE PROGRAMS BY REDUCING IMPROPER PRESCRIBING OF CONTROLLED SUBSTANCES.—

(1) IN GENERAL.—Within 120 days of enactment of this Act and annually thereafter, the Secretary shall report all Medicare revocation actions or preclusion list placements to the Drug Enforcement Administration that are based totally or in part on the improper prescribing, administering, or dispensing of controlled substances.

(2) DEFINITIONS.—The terms used in this subsection shall have the meaning given such terms in section 102 of the Controlled Substances Act (42 U.S.C. 802). For purposes of paragraph (1), the ''improper prescribing, administering, or dispensing of controlled substances'' includes doing so in any of the following respects:

(A) In excessive quantities.

(B) For other than a legitimate medical purpose or outside the usual course of professional practice.

(C) Beyond the scope of the practitioner's DEA registration.

(D) In any other manner not permitted by the Controlled Substances Act (21 U.S.C. 801 et. seq.).

(3) ACCESS TO EVIDENCE.—When making the reports required under paragraph (1), the Secretary shall provide the Drug Enforcement Administration with any relevant records or other evidence that Drug Enforcement Administration requests for purposes of carrying out its functions under the Controlled Substances Act. The Drug Enforcement Administration may use any such information or other evidence provided by the Secretary for the purposes of any criminal, civil, or administrative proceeding arising out the Controlled Substances Act.

(g) FUNDING.—

(1) CARES ACT.—-The Secretary may use amounts appropriated for COVID–19 response and related activities pursuant to the CARES Act (Public Law 116–136) and subsequently enacted legislation to carry out this section and the amendments made by this section.

(2) PREVENTION AND PUBLIC HEALTH FUND.—The Secretary may use amounts in the Prevention and Public Health Fund, established under section 4002 of the Patient Protection and Affordable Care Act of 2010, to carry out this section and the amendments made by this section, including by providing financial assistance to participating providers as appropriate for implementation of the requirements of this section and the amendments made by this section.

(h) DEFINITIONS.—In this section:

(1) COVID–19.—The term ''COVID–19'' means the 2019 Novel Coronavirus or 2019-nCoV.

(2) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on the first day of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on the last day of the calendar quarter in which the last day of such emergency period occurs.

(3) LONG-TERM CARE FACILITY.—The term ''long-term care facility'' has the meaning given that term in section 2011(15) of the Social Security Act (42 U.S.C. 1397j(15)).

(4) NURSING FACILITY.—The term ''nursing facility'' has the meaning given that term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(5) PARTICIPATING PROVIDER.—The term ''participating provider'' means a skilled nursing facility or a nursing facility that has been assigned a national provider identifier number by the Secretary and has executed an agreement to participate in the Medicare program established under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) or the Medicaid program established under title XIX of such Act (42 U.S.C. 1396 et seq.).

(6) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(7) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given that term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

(8) STATE.—Except as otherwise provided, the term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

SA 2642. Mr. MCCONNELL (for Mr. WICKER) proposed an amendment to the bill S. 2299, to amend title 49, United States Code, to enhance the safety and reliability of pipeline transportation, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Protecting our Infrastructure of Pipelines and Enhancing Safety Act of 2020'' or the ''PIPES Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
TITLE I—IMPROVING PIPELINE SAFETY AND INFRASTRUCTURE
Sec. 101. Authorization of appropriations.
Sec. 102. Pipeline workforce development.
Sec. 103. Cost recovery and fees for facility reviews.
Sec. 104. Advancement of new pipeline safety technologies and approaches.
Sec. 105. Pipeline safety testing enhancement study.
Sec. 106. Regulatory updates.
Sec. 107. Self-disclosure of violations.
Sec. 108. Due process protections in enforcement proceedings.
Sec. 109. Pipeline operating status.
Sec. 110. Liquefied natural gas facility project reviews.
Sec. 111. Updates to standards for liquefied natural gas facilities.

Sec. 112. National Center of Excellence for Liquefied Natural Gas Safety and Training.
Sec. 113. Prioritization of rulemaking.
Sec. 114. Leak detection and repair.
Sec. 115. Inspection and maintenance plans.
Sec. 116. Consideration of pipeline class location changes.
Sec. 117. Protection of employees providing pipeline safety information.
Sec. 118. Transportation Technology Center.
Sec. 119. Interstate drug and alcohol oversight.
Sec. 120. Savings clause.
TITLE II—LEONEL RONDON PIPELINE SAFETY ACT
Sec. 201. Short title.
Sec. 202. Distribution integrity management plans.
Sec. 203. Emergency response plans.
Sec. 204. Operations and maintenance manuals.
Sec. 205. Pipeline safety management systems.
Sec. 206. Pipeline safety practices.

SEC. 2. DEFINITIONS.

In this Act:

(1) ADMINISTRATION.—The term ''Administration'' means the Pipeline and Hazardous Materials Safety Administration.

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Administration.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Transportation.

TITLE I—IMPROVING PIPELINE SAFETY AND INFRASTRUCTURE

SEC. 101. AUTHORIZATION OF APPROPRIATIONS.

(a) GAS AND HAZARDOUS LIQUID.—Section 60125 of title 49, United States Code, is amended by striking subsection (a) and inserting the following:

''(a) GAS AND HAZARDOUS LIQUID.—

''(1) IN GENERAL.—From fees collected under section 60301, there are authorized to be appropriated to the Secretary to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355) and the provisions of this chapter relating to gas and hazardous liquid—

''(A) $147,000,000 for fiscal year 2020, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $60,000,000 shall be used for making grants;

''(B) $151,000,000 for fiscal year 2021, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $63,000,000 shall be used for making grants;

''(C) $155,000,000 for fiscal year 2022, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $66,000,000 shall be used for making grants; and

''(D) $159,000,000 for fiscal year 2023, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $69,000,000 shall be used for making grants.

''(2) TRUST FUND AMOUNTS.—In addition to the amounts authorized to be appropriated under paragraph (1), there are authorized to be appropriated from the Oil Spill Liability Trust Fund established by section 9509(a) of the Internal Revenue Code of 1986 to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355) and the provisions of this chapter relating to hazardous liquid—

''(A) $25,000,000 for fiscal year 2020, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $10,000,000 shall be used for making grants;

''(B) $26,000,000 for fiscal year 2021, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $11,000,000 shall be used for making grants;

''(C) $27,000,000 for fiscal year 2022, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $12,000,000 shall be used for making grants; and

''(D) $28,000,000 for fiscal year 2023, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $13,000,000 shall be used for making grants.

''(3) UNDERGROUND NATURAL GAS STORAGE FACILITY SAFETY ACCOUNT.—From fees collected under section 60302, there is authorized to be appropriated to the Secretary to carry out section 60141 $8,000,000 for each of fiscal years 2020 through 2023.''.

(b) OPERATIONAL EXPENSES.—Section 2(b) of the PIPES Act of 2016 (Public Law 114–183; 130 Stat. 515) is amended by striking paragraphs (1) through (4) and inserting the following:

''(1) $24,000,000 for fiscal year 2020.

''(2) $25,000,000 for fiscal year 2021.

''(3) $26,000,000 for fiscal year 2022.

''(4) $27,000,000 for fiscal year 2023.''.

(c) ONE-CALL NOTIFICATION PROGRAMS.—Section 6107 of title 49, United States Code, is amended by striking ''$1,058,000 for each of fiscal years 2016 through 2019'' and inserting ''$1,058,000 for each of fiscal years 2020 through 2023''.

(d) EMERGENCY RESPONSE GRANTS.—Section 60125(b)(2) of title 49, United States Code, is amended by striking ''fiscal years 2012 through 2015'' and inserting ''fiscal years 2020 through 2023''.

(e) PIPELINE SAFETY INFORMATION GRANTS TO COMMUNITIES.—Section 60130 of title 49, United States Code, is amended—

(1) in subsection (a)(1), in the first sentence, by striking ''to local communities and groups of individuals (not including for-profit entities)'' and inserting ''to local communities, Indian Tribes, and groups of individuals (not including for-profit entities)''; and

(2) by striking subsection (c) and inserting the following:

''(c) FUNDING.—

''(1) IN GENERAL.—Out of amounts made available under section 2(b) of the PIPES Act of 2016 (Public Law 114–183; 130 Stat. 515), the Secretary shall use $1,500,000 for each of fiscal years 2020 through 2023 to carry out this section.

''(2) LIMITATION.—Any amounts used to carry out this section shall not be derived from user fees collected under section 60301.''.

(f) DAMAGE PREVENTION PROGRAMS.—Section 60134(i) of title 49, United States Code, is amended in the first sentence by striking ''fiscal years 2012 through 2015'' and inserting ''fiscal years 2020 through 2023''.

(g) PIPELINE INTEGRITY PROGRAM.—Section 12(f) of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355) is amended by striking ''2016 through 2019'' and inserting ''2020 through 2023''.

SEC. 102. PIPELINE WORKFORCE DEVELOPMENT.

(a) INSPECTOR TRAINING.—Not later than 1 year after the date of enactment of this Act, the Administrator shall—

(1) review the inspector training programs provided at the Inspector Training and Qualifications Division of the Administration in Oklahoma City, Oklahoma; and

(2) determine whether any of the programs referred to in paragraph (1), or any portions of the programs, could be provided online through teletraining or another type of distance learning.

(b) REPORT.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure, Energy and Commerce, and Science, Space, and Technology of the House of Representatives and make publicly available on a website of the Department of Transportation a report containing a comprehensive workforce plan for the Administration.

(2) CONTENTS.—The report under paragraph (1) shall include—

(A) a description of the current staffing at the Administration;

(B) an identification of the staff needed to achieve the mission of the Administration over the next 10 years following the date of the report;

(C) an evaluation of whether the inspector training programs referred to in subsection (a)(1) provide appropriate exposure to pipeline operations and current pipeline safety technology;

(D) a summary of any gaps between the current workforce of the Administration and the future human capital needs of the Administration; and

(E) a description of how the Administration—

(i) uses the retention incentives defined by the Office of Personnel Management; and

(ii) plans to use those retention incentives as part of the comprehensive workforce plan of the Administration.

SEC. 103. COST RECOVERY AND FEES FOR FACILITY REVIEWS.

(a) FEES FOR COMPLIANCE REVIEWS OF LIQUEFIED NATURAL GAS FACILITIES.—Chapter 603 of title 49, United States Code, is amended by inserting after section 60302 the following:

''§ 60303. Fees for compliance reviews of liquefied natural gas facilities

''(a) IMPOSITION OF FEE.—

''(1) IN GENERAL.—The Secretary of Transportation (referred to in this section as the 'Secretary') shall impose on a person who files with the Federal Energy Regulatory Commission an application for a liquefied natural gas facility that has design and construction costs totaling not less than $2,500,000,000 a fee for the necessary expenses of a review, if any, that the Secretary conducts, in connection with that application, to determine compliance with subpart B of part 193 of title 49, Code of Federal Regulations (or successor regulations).

''(2) RELATION TO OTHER REVIEW.—The Secretary may not impose fees under paragraph (1) and section 60117(o) or 60301(b) for the same compliance review described in paragraph (1).

''(b) MEANS OF COLLECTION.—

''(1) IN GENERAL.—The Secretary shall prescribe procedures to collect fees under this section.

''(2) USE OF GOVERNMENT ENTITIES.—The Secretary may—

''(A) use a department, agency, or instrumentality of the Federal Government or of a State or local government to collect fees under this section; and

''(B) reimburse that department, agency, or instrumentality a reasonable amount for the services provided.

''(c) ACCOUNT.—There is established an account, to be known as the 'Liquefied Natural Gas Siting Account', in the Pipeline Safety Fund established in the Treasury of the United States under section 60301.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 603 of title 49, United States Code, is amended by inserting after the item relating to section 60302 the following:

''60303. Fees for compliance reviews of liquefied natural gas facilities.''.

SEC. 104. ADVANCEMENT OF NEW PIPELINE SAFETY TECHNOLOGIES AND APPROACHES.

(a) IN GENERAL.—Chapter 601 of title 49, United States Code, is amended by adding at the end the following:

''§ 60142. Pipeline safety enhancement programs

''(a) IN GENERAL.—The Secretary may establish and carry out limited safety-enhancing testing programs during the period of fiscal years 2020 through 2026 to evaluate innovative technologies and operational practices testing the safe operation of—

''(1) a natural gas pipeline facility; or

''(2) a hazardous liquid pipeline facility.

''(b) LIMITATIONS.—

''(1) IN GENERAL.—Such testing programs may not exceed—

''(A) 5 percent of the total miles of hazardous liquid pipelines in the United States; and

''(B) 5 percent of the total miles of natural gas pipelines in the United States.

''(2) HIGH POPULATION AREAS.—Any program established under subsection (a) shall not be located in a high population area (as defined in section 195.450 of title 49, Code of Federal Regulations).

''(c) DURATION.—The term of a testing program established under subsection (a) shall be not more than a period of 4 years beginning on the date of approval of the program.

''(d) SAFETY STANDARDS.—

''(1) IN GENERAL.—The Secretary shall require, as a condition of approval of a testing program under subsection (a), that the safety measures in the testing program are designed to achieve a level of safety that is greater than, or equivalent to, the level of safety required by this chapter.

''(2) DETERMINATION.—

''(A) IN GENERAL.—The Secretary may issue an order under subparagraph (A) of section 60118(c)(1) to accomplish the purpose of a testing program for a term not to exceed the time period described in subsection (c) if the condition described in paragraph (1) is met, as determined by the Secretary.

''(B) LIMITATION.—An order under subparagraph (A) shall pertain only to those regulations that would otherwise prevent the use of the safety technology to be tested under the testing program.

''(e) CONSIDERATIONS.—In establishing a testing program under subsection (a), the Secretary shall consider—

''(1) whether the owners or operators participating in the program have a safety management system in place; and

''(2) whether the proposed safety technology has been tested through a research and development program carried out by—

''(A) the Secretary;

''(B) collaborative research development organizations; or

''(C) other institutions.

''(f) DATA AND FINDINGS.—As a participant in a testing program established under subsection (a), an operator shall submit to the Secretary detailed findings and a summary of data collected as a result of participation in the testing program.

''(g) AUTHORITY TO REVOKE PARTICIPATION.—The Secretary shall immediately revoke participation in a testing program under subsection (a) if—

''(1) the participant fails to comply with the terms and conditions of the testing program; or

''(2) in the determination of the Secretary, continued participation in the testing program by the participant would be unsafe or would not be consistent with the goals and objectives of this chapter.

''(h) AUTHORITY TO TERMINATE PROGRAM.—The Secretary shall immediately terminate a testing program under subsection (a) if continuation of the testing program would not be consistent with the goals and objectives of this chapter.

''(i) STATE RIGHTS.—

''(1) EXEMPTION.—Except as provided in paragraph (2), if a State submits to the Secretary notice that the State requests an exemption from any testing program considered for establishment under this section, the State shall be exempt.

''(2) LIMITATIONS.—

''(A) IN GENERAL.—The Secretary shall not grant a requested exemption under paragraph (1) after a testing program is established.

''(B) LATE NOTICE.—The Secretary shall not grant a requested exemption under paragraph (1) if the notice submitted under that paragraph is submitted to the Secretary more than 10 days after the date on which the Secretary issues an order providing an effective date for the testing program.

''(3) EFFECT.—If a State has not submitted a notice requesting an exemption under paragraph (1), the State shall not enforce any law (including regulations) that is inconsistent with a testing program in effect in the State under this section.

''(j) PROGRAM REVIEW PROCESS AND PUBLIC NOTICE.—

''(1) IN GENERAL.—The Secretary shall publish in the Federal Register and send directly to each relevant State authority with a certification in effect under section 60105 a notice of each testing program under subsection (a), including the order to be considered, and provide an opportunity for public comment for not less than 90 days.

''(2) RESPONSE FROM SECRETARY.—Not later than the date on which the Secretary issues an order providing an effective date of a testing program noticed under paragraph (1), the Secretary shall respond to each comment submitted under that paragraph.

''(k) REPORT TO CONGRESS.—At the conclusion of each testing program, the Secretary shall make publicly available on the website of the Department of Transportation a report containing—

''(1) the findings and conclusions of the Secretary with respect to the testing program; and

''(2) any recommendations of the Secretary with respect to the testing program, including any recommendations for amendments to laws (including regulations) and the establishment of standards, that—

''(A) would enhance the safe operation of interstate gas or hazardous liquid pipeline facilities; and

''(B) are technically, operationally, and economically feasible.

''(l) STANDARDS.—If a report under subsection (k) indicates that it is practicable to establish technically, operationally, and economically feasible standards for the use of a safety-enhancing technology and any corresponding operational practices tested by the testing program described in the report, the Secretary, as soon as practicable after submission of the report, may promulgate regulations consistent with chapter 5 of title 5 (commonly known as the 'Administrative Procedures Act') that—

''(1) allow operators of interstate gas or hazardous liquid pipeline facilities to use the relevant technology or practice to the extent practicable; and

''(2) establish technically, operationally, and economically feasible standards for the capability and deployment of the technology or practice.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 601 of title 49, United States Code, is amended by inserting after the item relating to section 60141 the following:

''60142. Pipeline safety enhancement programs.''.

SEC. 105. PIPELINE SAFETY TESTING ENHANCEMENT STUDY.

Not later than 2 years after the date of enactment of this Act, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure, Energy and Commerce, and Science, Space, and Technology of the House of Representatives a report relating to—

(1) the research and development capabilities of the Administration, in accordance with section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355);

(2)(A) the development of additional testing and research capabilities through the establishment of an independent pipeline safety testing facility under the Department of Transportation;

(B) whether an independent pipeline safety testing facility would be critical to the work of the Administration;

(C) the costs and benefits of developing an independent pipeline safety testing facility under the Department of Transportation; and

(D) the costs and benefits of colocating an independent pipeline safety testing facility at an existing training center of the Administration; and

(3) the ability of the Administration to use the testing facilities of the Department of Transportation, other Federal agencies, or federally funded research and development centers.

SEC. 106. REGULATORY UPDATES.

(a) DEFINITION OF OUTSTANDING MANDATE.—In this section, the term ''outstanding mandate'' means—

(1) a final rule required to be issued under the Pipeline Safety, Regulatory Certainty, and Job Creation Act of 2011 (Public Law 112–90; 125 Stat. 1904) that has not been published in the Federal Register;

(2) a final rule required to be issued under the PIPES Act of 2016 (Public Law 114–183; 130 Stat. 514) that has not been published in the Federal Register; and

(3) any other final rule regarding gas or hazardous liquid pipeline facilities required to be issued under this Act or an Act enacted prior to the date of enactment of this Act that has not been published in the Federal Register.

(b) REQUIREMENTS.—

(1) PERIODIC UPDATES.—Not later than 30 days after the date of enactment of this Act, and every 30 days thereafter until a final rule referred to in paragraphs (1) through (3) of subsection (a) is published in the Federal Register, the Secretary shall publish on a

publicly available website of the Department of Transportation an update regarding the status of each outstanding mandate in accordance with subsection (c).

(2) NOTIFICATION OF CONGRESS.—On publication of a final rule in the Federal Register for an outstanding mandate, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a notification in accordance with subsection (c).

(c) CONTENTS.—An update published or a notification submitted under paragraph (1) or (2) of subsection (b) shall contain, as applicable—

(1) with respect to information relating to the Administration—

(A) a description of the work plan for each outstanding mandate;

(B) an updated rulemaking timeline for each outstanding mandate;

(C) the staff allocations with respect to each outstanding mandate;

(D) any resource constraints affecting the rulemaking process for each outstanding mandate;

(E) any other details associated with the development of each outstanding mandate that affect the progress of the rulemaking process with respect to that outstanding mandate; and

(F) a description of all rulemakings regarding gas or hazardous liquid pipeline facilities published in the Federal Register that are not identified under subsection (b)(2); and

(2) with respect to information relating to the Office of the Secretary—

(A) the date that the outstanding mandate was submitted to the Office of the Secretary for review;

(B) the reason that the outstanding mandate is under review beyond 45 days;

(C) the staff allocations within the Office of the Secretary with respect to each the outstanding mandate;

(D) any resource constraints affecting review of the outstanding mandate;

(E) an estimated timeline of when review of the outstanding mandate will be complete, as of the date of the update;

(F) if applicable, the date that the outstanding mandate was returned to the Administration for revision and the anticipated date for resubmission to the Office of the Secretary;

(G) the date that the outstanding mandate was submitted to the Office of Management and Budget for review; and

(H) a statement of whether the outstanding mandate remains under review by the Office of Management and Budget.

SEC. 107. SELF-DISCLOSURE OF VIOLATIONS.

Section 60122(b)(1) of title 49, United States Code, is amended—

(1) in subparagraph (B), by striking ''and'' at the end; and

(2) by adding at the end the following:

''(D) self-disclosure and correction of violations, or actions to correct a violation, prior to discovery by the Pipeline and Hazardous Materials Safety Administration; and''.

SEC. 108. DUE PROCESS PROTECTIONS IN ENFORCEMENT PROCEEDINGS.

(a) IN GENERAL.—Section 60117 of title 49, United States Code, is amended—

(1) by redesignating subsections (b) through (o) as subsections (c) through (p), respectively; and

(2) by inserting after subsection (a) the following:

''(b) ENFORCEMENT AND REGULATORY PROCEDURES.—

''(1) REQUEST FOR FORMAL HEARING.—On request of a respondent in an enforcement or regulatory proceeding under this chapter, a hearing shall be held in accordance with section 554 of title 5.

''(2) ADMINISTRATIVE LAW JUDGE.—A hearing under paragraph (1) shall be conducted by an administrative law judge appointed under section 3105 of title 5.

''(3) OPEN TO THE PUBLIC.—

''(A) HEARINGS.—A hearing under paragraph (1) shall be—

''(i) noticed to the public—

''(I) on the website of the Pipeline and Hazardous Materials Safety Administration; and

''(II) in the Federal Register; and

''(ii) open to the public.

''(B) AGREEMENTS, ORDERS, AND JUDGMENTS.—A consent agreement, consent order, order, or judgment resulting from a hearing under paragraph (1) shall be made available to the public on the website of the Pipeline and Hazardous Materials Safety Administration.

''(4) PROCEDURES.—In implementing enforcement and regulatory procedures under this chapter, the Secretary shall—

''(A) allow the use of a consent agreement and consent order to resolve any matter of fact or law asserted;

''(B) allow the respondent and the agency to convene 1 or more meetings—

''(i) for settlement or simplification of the issues; or

''(ii) to aid in the disposition of issues;

''(C) require that the case file in an enforcement proceeding include all agency records pertinent to the matters of fact and law asserted;

''(D) require that a recommended decision be made available to the respondent when issued;

''(E) allow a respondent to reply to any post-hearing submission;

''(F) allow a respondent to request—

''(i) that a hearing be held, and a recommended decision and order issued, on an expedited basis; or

''(ii) that a hearing not commence for a period of not less than 90 days;

''(G) require that the agency have the burden of proof, presentation, and persuasion in any enforcement matter;

''(H) require that any recommended decision and order contain findings of fact and conclusions of law;

''(I) require the Associate Administrator of the Office of Pipeline Safety to file a post-hearing recommendation not later than 30 days after the deadline for any post-hearing submission of a respondent;

''(J) require an order on a petition for reconsideration to be issued not later than 120 days after the date on which the petition is filed; and

''(K) allow an operator to request that an issue of controversy or uncertainty be addressed through a declaratory order in accordance with section 554(e) of title 5, which order shall be issued not later than 120 days after the date on which a request is made.

''(5) SAVINGS CLAUSE.—Nothing in this subsection alters the procedures applicable to an emergency order under subsection (p).''.

(b) CONFORMING AMENDMENTS.—

(1) Section 60109(g)(4) of title 49, United States Code, is amended by striking ''section 60117(c)'' and inserting ''section 60117(d)''.

(2) Section 60117(p) of title 49, United States Code (as redesignated by subsection (a)(1)), is amended, in paragraph (3)(E), by striking ''60117(l)'' and inserting ''subsection (m)''.

(3) Section 60118(a)(3) of title 49, United States Code, is amended by striking ''section 60117(a)–(d)'' and inserting ''subsections (a) through (e) of section 60117''.

SEC. 109. PIPELINE OPERATING STATUS.

(a) IN GENERAL.—Chapter 601 of title 49, United States Code (as amended by section 104(a)), is amended by adding at the end the following:

''§ 60143. Idled pipelines

''(a) DEFINITION OF IDLED.—In this section, the term 'idled', with respect to a pipeline, means that the pipeline—

''(1)(A) has ceased normal operations; and

''(B) will not resume service for a period of not less than 180 days;

''(2) has been isolated from all sources of hazardous liquid, natural gas, or other gas; and

''(3)(A) has been purged of combustibles and hazardous materials and maintains a blanket of inert, nonflammable gas at low pressure; or

''(B) has not been purged as described in subparagraph (A), but the volume of gas is so small that there is no potential hazard.

''(b) RULEMAKING.—

''(1) IN GENERAL.—Not later than 2 years after the date of enactment of the PIPES Act of 2020, the Secretary shall promulgate regulations prescribing the applicability of the pipeline safety requirements to idled natural or other gas transmission and hazardous liquid pipelines.

''(2) REQUIREMENTS.—

''(A) IN GENERAL.—The applicability of the regulations under paragraph (1) shall be based on the risk that idled natural or other gas transmission and hazardous liquid pipelines pose to the public, property, and the environment, and shall include requirements to resume operation.

''(B) INSPECTION.—The Secretary or an appropriate State agency shall inspect each idled pipeline and verify that the pipeline has been purged of combustibles and hazardous materials, if required under subsection (a).

''(C) REQUIREMENTS FOR REINSPECTION.—The Secretary shall determine the requirements for periodic reinspection of idled natural or other gas transmission and hazardous liquid pipelines.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 601 of title 49, United States Code (as amended by section 104(b)), is amended by inserting after the item relating to section 60142 the following:

''60143. Idled pipelines.''.

SEC. 110. LIQUEFIED NATURAL GAS FACILITY PROJECT REVIEWS.

Section 60103(a) of title 49, United States Code, is amended—

(1) by redesignating paragraphs (1) through (7) as subparagraphs (A) through (G), respectively, and indenting appropriately;

(2) in the first sentence, by striking ''The Secretary of Transportation'' and inserting the following:

''(1) IN GENERAL.—The Secretary of Transportation'';

(3) in the second sentence, by striking ''In prescribing a standard'' and inserting the following:

''(2) CONSIDERATIONS.—In prescribing a standard under paragraph (1)''; and

(4) by adding at the end the following:

''(3) USE OF LOCATION STANDARDS.—If a Federal or State authority with jurisdiction over liquefied natural gas pipeline facility permits or approvals is using the location standards prescribed under paragraph (1) for purposes of making a decision with respect to the location of a new liquefied natural gas pipeline facility and submits to the Secretary of Transportation a request to provide a determination of whether the new liquefied natural gas pipeline facility would meet the location standards, the Secretary may provide such a determination to the requesting Federal or State authority.

''(4) EFFECT.—Nothing in this subsection or subsection (b)—

''(A) affects—

''(i) section 3 of the Natural Gas Act (15 U.S.C. 717b);

''(ii) the authority of the Federal Energy Regulatory Commission to carry out that section; or

''(iii) any other similar authority of any other Federal or State agency; or

''(B) requires the Secretary of Transportation to formally approve any project proposal or otherwise perform any siting functions.''.

SEC. 111. UPDATES TO STANDARDS FOR LIQUEFIED NATURAL GAS FACILITIES.

(a) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Secretary shall—

(1) review the minimum operating and maintenance standards prescribed under section 60103(d) of title 49, United States Code; and

(2) based on the review under paragraph (1), update the standards described in that paragraph applicable to large-scale liquefied natural gas facilities (other than peak shaving facilities) to provide for a risk-based regulatory approach for such facilities, consistent with this section.

(b) SCOPE.—In updating the minimum operating and maintenance standards under subsection (a)(2), the Secretary shall ensure that all regulations, guidance, and internal documents are developed and applied in a manner consistent with this section.

(c) REQUIREMENTS.—The updates to the operating and maintenance standards required under subsection (a)(2) shall, at a minimum, require operators—

(1) to develop and maintain written safety information identifying hazards associated with—

(A) the processes of liquefied natural gas conversion, storage, and transport;

(B) equipment used in the processes; and

(C) technology used in the processes;

(2) to conduct a hazard assessment, including the identification of potential sources of accidental releases;

(3)(A) to consult with employees and representatives of employees on the development and conduct of hazard assessments under paragraph (2); and

(B) to provide employees access to the records of the hazard assessments and any other records required under the updated standards;

(4) to establish a system to respond to the findings of a hazard assessment conducted under paragraph (2) that addresses prevention, mitigation, and emergency responses;

(5) to review, when a design change occurs, a hazard assessment conducted under paragraph (2) and the response system established under paragraph (4);

(6) to develop and implement written operating procedures for the processes of liquefied natural gas conversion, storage, and transport;

(7)(A) to provide written safety and operating information to employees; and

(B) to train employees in operating procedures with an emphasis on addressing hazards and using safe practices;

(8) to ensure contractors and contract employees are provided appropriate information and training;

(9) to train and educate employees and contractors in emergency response;

(10) to establish a quality assurance program to ensure that equipment, maintenance materials, and spare parts relating to the operations and maintenance of liquefied natural gas facilities are fabricated and installed consistent with design specifications;

(11) to establish maintenance systems for critical process-related equipment, including written procedures, employee training, appropriate inspections, and testing of that equipment to ensure ongoing mechanical integrity;

(12) to conduct pre-start-up safety reviews of all newly installed or modified equipment;

(13) to establish and implement written procedures to manage change to processes of liquefied natural gas conversion, storage, and transport, technology, equipment, and facilities; and

(14)(A) to investigate each incident that results in, or could have resulted in—

(i) loss of life;

(ii) destruction of private property; or

(iii) a major accident; and

(B) to have operating personnel—

(i) review any findings of an investigation under subparagraph (A); and

(ii) if appropriate, take responsive measures.

SEC. 112. NATIONAL CENTER OF EXCELLENCE FOR LIQUEFIED NATURAL GAS SAFETY AND TRAINING.

(a) DEFINITIONS.—In this section:

(1) CENTER.—The term ''Center'' means the National Center of Excellence for Liquefied Natural Gas Safety and Training established under subsection (b).

(2) LNG.—The term ''LNG'' means liquefied natural gas.

(3) LNG SECTOR STAKEHOLDER.—The term ''LNG sector stakeholder'' means a representative of—

(A) LNG facilities that represent the broad array of LNG facilities operating in the United States;

(B) States, Indian Tribes, and units of local government;

(C) postsecondary education;

(D) labor organizations;

(E) safety organizations; or

(F) Federal regulatory agencies of jurisdiction, which may include—

(i) the Administration;

(ii) the Federal Energy Regulatory Commission;

(iii) the Department of Energy;

(iv) the Occupational Safety and Health Administration;

(v) the Coast Guard; and

(vi) the Maritime Administration.

(b) ESTABLISHMENT.—Not later than 2 years after the date of enactment of this Act, the Secretary, in consultation with LNG sector stakeholders, shall establish a center, to be known as the ''National Center of Excellence for Liquefied Natural Gas Safety and Training''.

(c) FUNCTIONS.—The Center shall, for activities regulated under section 60103 of title 49, United States Code—

(1) promote, facilitate, and conduct—

(A) education;

(B) training; and

(C) technological advancements;

(2) be a repository of information on best practices relating to, and expertise on, LNG operations;

(3) foster collaboration among stakeholders; and

(4) provide a curriculum for training that incorporates—

(A) risk-based principles into the operation, management, and regulatory oversight of LNG facilities;

(B) the reliance on subject matter expertise within the LNG industry;

(C) the transfer of knowledge and expertise between the LNG industry and regulatory agencies; and

(D) training and workshops that occur at operational facilities.

(d) LOCATION.—

(1) IN GENERAL.—The Center shall be located in close proximity to critical LNG transportation infrastructure on, and connecting to, the Gulf of Mexico, as determined by the Secretary.

(2) CONSIDERATIONS.—In determining the location of the Center, the Secretary shall—

(A) take into account the strategic value of locating resources in close proximity to LNG facilities; and

(B) locate the Center in the State with the largest LNG production capacity, as determined by the total capacity (in billion cubic feet per day) of LNG production authorized by the Federal Energy Regulatory Commission under section 3 of the Natural Gas Act (15 U.S.C. 717b) as of the date of enactment of this Act.

(e) COORDINATION WITH TQ TRAINING CENTER.—In carrying out the functions described in subsection (c), the Center shall coordinate with the Training and Qualifications Training Center of the Administration in Oklahoma City, Oklahoma, to facilitate knowledge sharing among, and enhanced training opportunities for, Federal and State pipeline safety inspectors and investigators.

(f) JOINT OPERATION WITH EDUCATIONAL INSTITUTION.—The Secretary may enter into an agreement with an appropriate official of an institution of higher education—

(1) to provide for joint operation of the Center; and

(2) to provide necessary administrative services for the Center.

SEC. 113. PRIORITIZATION OF RULEMAKING.

(a) RULEMAKING.—Not later than 90 days after the date of enactment of this Act, the Secretary shall ensure completion of and publish in the Federal Register the outstanding rulemaking entitled ''Pipeline Safety: Safety of Gas Transmission and Gathering Pipelines'', published in the Federal Register on April 8, 2016 (81 Fed. Reg. 20722; Docket No. PHMSA–2011–0023), as that rulemaking relates to the consideration of gathering pipelines.

(b) STUDY.—Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) review the extent to which geospatial and technical data is collected by operators of gathering lines, including design and material specifications;

(2) analyze information collected by operators of gathering lines when the mapping information described in paragraph (1) is not available for a gathering line; and

(3) assess any plans and timelines of operators of gathering lines to develop the mapping information described in paragraph (1) or otherwise collect information described in paragraph (2).

(c) REPORT.—The Comptroller General of the United States shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report on the review required under subsection (b), including any recommendations that the Comptroller General of the United States may have as a result of the review.

SEC. 114. LEAK DETECTION AND REPAIR.

Section 60102 of title 49, United States Code, is amended by adding at the end the following:

''(q) GAS PIPELINE LEAK DETECTION AND REPAIR.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of this subsection, the Secretary shall promulgate final regulations that require operators of regulated gathering lines (as defined pursuant to subsection (b) of section 60101 for purposes of subsection (a)(21) of that section) in a Class 2 location, Class 3 location, or Class 4 location, as determined under section 192.5 of title 49, Code of Federal Regulations, operators of new and existing gas transmission pipeline facilities, and operators of new and

existing gas distribution pipeline facilities to conduct leak detection and repair programs—

''(A) to meet the need for gas pipeline safety, as determined by the Secretary; and

''(B) to protect the environment.

''(2) LEAK DETECTION AND REPAIR PROGRAMS.—

''(A) MINIMUM PERFORMANCE STANDARDS.—The final regulations promulgated under paragraph (1) shall include, for the leak detection and repair programs described in that paragraph, minimum performance standards that reflect the capabilities of commercially available advanced technologies that, with respect to each pipeline covered by the programs, are appropriate for—

''(i) the type of pipeline;

''(ii) the location of the pipeline;

''(iii) the material of which the pipeline is constructed; and

''(iv) the materials transported by the pipeline.

''(B) REQUIREMENT.—The leak detection and repair programs described in paragraph (1) shall be able to identify, locate, and categorize all leaks that—

''(i) are hazardous to human safety or the environment; or

''(ii) have the potential to become explosive or otherwise hazardous to human safety.

''(3) ADVANCED LEAK DETECTION TECHNOLOGIES AND PRACTICES.—

''(A) IN GENERAL.—The final regulations promulgated under paragraph (1) shall—

''(i) require the use of advanced leak detection technologies and practices described in subparagraph (B);

''(ii) identify any scenarios where operators may use leak detection practices that depend on human senses; and

''(iii) include a schedule for repairing or replacing each leaking pipe, except a pipe with a leak so small that it poses no potential hazard, with appropriate deadlines.

''(B) ADVANCED LEAK DETECTION TECHNOLOGIES AND PRACTICES DESCRIBED.—The advanced leak detection technologies and practices referred to in subparagraph (A)(i) include—

''(i) for new and existing gas distribution pipeline facilities, technologies and practices to detect pipeline leaks—

''(I)(aa) through continuous monitoring on or along the pipeline; and

''(bb) in the case of an existing facility, that do not impose any design or installation requirements on existing facilities that would be inapplicable under section 60104(b); or

''(II) through periodic surveys with handheld equipment, equipment mounted on mobile platforms, or other means using commercially available technology;

''(ii) for new and existing gas transmission pipeline facilities, technologies and practices to detect pipeline leaks through—

''(I) equipment that—

''(aa) is capable of continuous monitoring; and

''(bb) in the case of an existing facility, does not impose any design or installation requirements on existing facilities that would be inapplicable under section 60104(b); or

''(II) periodic surveys with handheld equipment, equipment mounted on mobile platforms, or other means using commercially available technology; and

''(iii) for regulated gathering lines in Class 2 locations, Class 3 locations, or Class 4 locations, technologies and practices to detect pipeline leaks through—

''(I) equipment that—

''(aa) is capable of continuous monitoring; and

''(bb) in the case of an existing facility, does not impose any design or installation requirements on existing facilities that would be inapplicable under section 60104(b); or

''(II) periodic surveys with handheld equipment, equipment mounted on mobile platforms, or other means using commercially available technology.

''(4) SAVINGS CLAUSES.—

''(A) SURVEYS AND TIMELINES.—In promulgating regulations under this subsection, the Secretary—

''(i) shall not reduce the frequency of surveys required under any other provision of this chapter or stipulated by regulation as of the date of enactment of this subsection; and

''(ii) shall not extend the duration of any timelines for the repair or remediation of leaks that are stipulated by regulation as of the date of enactment of this subsection.

''(B) APPLICATION.—The limitations in this paragraph do not restrict the Secretary's ability to modify any regulations through proceedings separate from or subsequent to the final regulations required under paragraph (1).

''(C) EXISTING AUTHORITY.—Nothing in this subsection shall alter the authority of the Secretary to regulate gathering lines as defined under section 60101.''.

SEC. 115. INSPECTION AND MAINTENANCE PLANS.

(a) IN GENERAL.—Section 60108 of title 49, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (2)—

(i) in the matter preceding subparagraph (A), by inserting '', must meet the requirements of any regulations promulgated under section 60102(q),'' after ''the need for pipeline safety'';

(ii) in subparagraph (C), by striking ''and'' at the end; and

(iii) by striking subparagraph (D) and inserting the following:

''(D) the extent to which the plan will contribute to—

''(i) public safety;

''(ii) eliminating hazardous leaks and minimizing releases of natural gas from pipeline facilities; and

''(iii) the protection of the environment; and

''(E) the extent to which the plan addresses the replacement or remediation of pipelines that are known to leak based on the material (including cast iron, unprotected steel, wrought iron, and historic plastics with known issues), design, or past operating and maintenance history of the pipeline.''; and

(B) by striking paragraph (3) and inserting the following:

''(3) REVIEW OF PLANS.—

''(A) IN GENERAL.—Not later than 2 years after the date of enactment of this subparagraph, and not less frequently than once every 5 years thereafter, the Secretary or relevant State authority with a certification in effect under section 60105 shall review each plan described in this subsection.

''(B) CONTEXT OF REVIEW.—The Secretary may conduct a review under this paragraph as an element of the inspection of the operator carried out by the Secretary under subsection (b).

''(C) INADEQUATE PROGRAMS.—If the Secretary determines that a plan reviewed under this paragraph does not comply with the requirements of this chapter (including any regulations promulgated under this chapter), has not been adequately implemented, is inadequate for the safe operation of a pipeline facility, or is otherwise inadequate, the Secretary may conduct enforcement proceedings under this chapter.''; and

(2) in subsection (b)(1)(B), by inserting ''construction material,'' after ''method of construction,''.

(b) DEADLINE.—Not later than 1 year after the date of enactment of this Act, each pipeline operator shall update the inspection and maintenance plan prepared by the operator under section 60108(a) of title 49, United States Code, to address the elements described in the amendments to that section made by subsection (a).

(c) INSPECTION AND MAINTENANCE PLAN OVERSIGHT.—

(1) STUDY.—The Comptroller General of the United States shall conduct a study to evaluate the procedures used by the Secretary and States in reviewing plans prepared by pipeline operators under section 60108(a) of title 49, United States Code, pursuant to subsection (b) in minimizing releases of natural gas from pipeline facilities.

(2) REPORT OF THE COMPTROLLER GENERAL OF THE UNITED STATES.—Not later than 1 year after the Secretary's review of the operator plans prepared under section 60108(a) of title 49, United States Code, the Comptroller General of the United States shall submit to the Secretary, the Committee on Commerce, Science, and Transportation of the Senate, and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report that—

(A) describes the results of the study conducted under paragraph (1), including an evaluation of the procedures used by the Secretary and States in reviewing the effectiveness of the plans prepared by pipeline operators under section 60108(a) of title 49, United States Code, pursuant to subsection (b) in minimizing releases of natural gas from pipeline facilities; and

(B) provides recommendations for how to further minimize releases of natural gas from pipeline facilities without compromising pipeline safety based on observations and information obtained through the study conducted under paragraph (1).

(3) RESPONSE OF THE SECRETARY.—Not later than 90 days after the date on which the report under paragraph (2) is published, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report that includes—

(A) a response to the results of the study conducted under paragraph (1) and the recommendations contained in the report submitted under paragraph (2);

(B) a discussion of—

(i) the best available technologies or practices to prevent or minimize, without compromising pipeline safety, the release of natural gas when making planned repairs, replacements, or maintenance to a pipeline facility;

(ii) the best available technologies or practices to prevent or minimize, without compromising pipeline safety, the release of natural gas when the operator intentionally vents or releases natural gas; and

(iii) pipeline facility designs that, without compromising pipeline safety, mitigate the need to intentionally vent natural gas; and

(C) a timeline for updating pipeline safety regulations, as the Secretary determines to be appropriate, to address—

(i) the recommendations of the Comptroller General of the United States in the report submitted under paragraph (2); and

(ii) the matters described in clauses (i) through (iii) of subparagraph (B) based on the discussion described in that subparagraph.

(4) RULEMAKING.—

(A) IN GENERAL.—Not later than 180 days after the date on which the Secretary submits the report under paragraph (3), the Secretary shall update, in accordance with the timeline described in paragraph (3)(C), pipeline safety regulations that the Secretary has determined are necessary to protect the environment without compromising pipeline safety.

(B) REPORT.—If the Secretary determines not to promulgate or update regulations to address a recommendation of the Comptroller General of the United States made in the report submitted under paragraph (2), the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a justification for that decision and any supporting documents or analysis used to make that decision.

SEC. 116. CONSIDERATION OF PIPELINE CLASS LOCATION CHANGES.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Pipeline and Hazardous Materials Safety Administration shall—

(1) review all comments submitted in response to the advance notice of proposed rulemaking entitled ''Pipeline Safety: Class Location Change Requirements'' (83 Fed. Reg. 36861 (July 31, 2018));

(2) complete any other activities or procedures necessary—

(A) to make a determination whether to publish a notice of proposed rulemaking; and

(B) if a positive determination is made under subparagraph (A), to advance in the rulemaking process, including by taking any actions required under section 60115 of title 49, United State Code; and

(3) consider the issues raised in the report to Congress entitled ''Evaluation of Expanding Pipeline Integrity Management Beyond High-Consequence Areas and Whether Such Expansion Would Mitigate the Need for Gas Pipeline Class Location Requirements'' prepared by the Pipeline and Hazardous Materials Safety Administration and submitted to Congress on June 8, 2016, including the adequacy of existing integrity management programs.

(b) APPLICATION.—Nothing in this section requires the Administrator of the Pipeline and Hazardous Materials Safety Administration to publish a notice of proposed rulemaking or otherwise continue the rulemaking process with respect to the advance notice of proposed rulemaking described in subsection (a)(1).

(c) REPORTING.—For purposes of this section, the requirements of section 106 shall apply during the period beginning on the date that is 180 days after the date of enactment of this Act and ending on the date on which the requirements of subsection (a) are completed.

SEC. 117. PROTECTION OF EMPLOYEES PROVIDING PIPELINE SAFETY INFORMATION.

Section 60129 of title 49, United States Code, is amended—

(1) in subsection (a)(1), in the matter preceding subparagraph (A), by striking ''employee with'' and inserting ''current or former employee with'';

(2) in subsection (b)(3), by adding at the end the following:

''(D) DE NOVO REVIEW.—

''(i) IN GENERAL.—With respect to a complaint under paragraph (1), if the Secretary of Labor has not issued a final decision by the date that is 210 days after the date on which the complaint was filed, and if the delay is not due to the bad faith of the employee who filed the complaint, that employee may bring an original action at law or equity for de novo review in the appropriate district court of the United States, which shall have jurisdiction over such action without regard to the amount in controversy, and which action shall, at the request of either party to the action, be tried by the court with a jury.

''(ii) BURDENS OF PROOF.—An original action described in clause (i) shall be governed by the same legal burdens of proof specified in paragraph (2)(B) for review by the Secretary of Labor.''; and

(3) by adding at the end the following:

''(e) NONENFORCEABILITY OF CERTAIN PROVISIONS WAIVING RIGHTS AND REMEDIES OR REQUIRING ARBITRATION OF DISPUTES.—

''(1) WAIVER OF RIGHTS AND REMEDIES.—The rights and remedies provided under this section may not be waived by any agreement, policy, form, or condition of employment, including by a predispute arbitration agreement.

''(2) PREDISPUTE ARBITRATION AGREEMENTS.—No provision of a predispute arbitration agreement shall be valid or enforceable if the provision requires arbitration of a dispute arising under subsection (a)(1).''.

SEC. 118. TRANSPORTATION TECHNOLOGY CENTER.

(a) RESEARCH AND DEVELOPMENT.—The Administrator may use the Transportation Technology Center in Pueblo, Colorado, for research and development relating to transportation safety improvements that will advance the safe and efficient transportation of hazardous materials and energy products.

(b) AUTHORITY TO PLAN, DESIGN, ENGINEER, ERECT, ALTER, AND REPAIR BUILDINGS AND MAKE PUBLIC IMPROVEMENTS.—Only after submitting a report to the Committees on Appropriations and Commerce, Science, and Transportation of the Senate and the Committees on Appropriations, Transportation and Infrastructure, and Energy and Commerce of the House of Representatives, and subject to the availability of funds appropriated by Congress for the applicable purpose, the Secretary may plan, design, engineer, erect, alter, and repair buildings and make other public improvements to carry out necessary research, safety, and training activities at the Transportation Technology Center in Pueblo, Colorado.

(c) REPORT.—Not later than 180 days after the date of enactment of this Act, and annually thereafter, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report on the use of, and future plans for, research and development activities at the Transportation Technology Center in Pueblo, Colorado.

SEC. 119. INTERSTATE DRUG AND ALCOHOL OVERSIGHT.

(a) IN GENERAL.—Not later than 18 months after the date of enactment of this Act, the Secretary shall amend the auditing program for the drug and alcohol regulations in part 199 of title 49, Code of Federal Regulations, to improve the efficiency and processes of those regulations as applied to—

(1) operators; and

(2) pipeline contractors working for multiple operators in multiple States.

(b) REQUIREMENT.—In carrying out subsection (a), the Secretary shall minimize duplicative audits of the same operators, and the contractors working for those operators, by the Administration and multiple State agencies.

(c) LIMITATION.—Nothing in this section requires modification of the inspection or enforcement authority of any Federal agency or State.

SEC. 120. SAVINGS CLAUSE.

Nothing in this title or an amendment made by this title affects the authority of the Administrator of the Environmental Protection Agency under the Clean Air Act (42 U.S.C. 7401 et seq.), the authority of the Secretary of the Interior under the Mineral Leasing Act (30 U.S.C. 181 et seq.), or the authority of any State to regulate the release of pollutants or hazardous substances to air, water, or land, including through the establishment and enforcement of requirements relating to that release.

TITLE II—LEONEL RONDON PIPELINE SAFETY ACT

SEC. 201. SHORT TITLE.

This title may be cited as the ''Leonel Rondon Pipeline Safety Act''.

SEC. 202. DISTRIBUTION INTEGRITY MANAGEMENT PLANS.

(a) IN GENERAL.—Section 60109(e) of title 49, United States Code, is amended by adding at the end the following:

''(7) DISTRIBUTION INTEGRITY MANAGEMENT PLANS.—

''(A) EVALUATION OF RISK.—Not later than 2 years after the date of enactment of this paragraph, the Secretary shall promulgate regulations to ensure that each distribution integrity management plan developed by an operator of a distribution system includes an evaluation of—

''(i) the risks resulting from the presence of cast iron pipes and mains in the distribution system; and

''(ii) the risks that could lead to or result from the operation of a low-pressure distribution system at a pressure that makes the operation of any connected and properly adjusted low-pressure gas burning equipment unsafe (as described in section 192.623 of title 49, Code of Federal Regulations (or a successor regulation)).

''(B) CONSIDERATION.—In the evaluations required in a plan under subparagraph (A), the regulations promulgated by the Secretary shall ensure that the distribution integrity management plan evaluates for future potential threats in a manner that considers factors other than past observed abnormal operations (within the meaning of section 192.605 of title 49, Code of Federal Regulations (or a successor regulation)), in ranking risks and identifying measures to mitigate those risks under that subparagraph, so that operators avoid using a risk rating of zero for low probability events unless otherwise supported by engineering analysis or operational knowledge.

''(C) DEADLINES.—

''(i) IN GENERAL.—Not later than 2 years after the date of enactment of this paragraph, each operator of a distribution system shall make available to the Secretary or the relevant State authority with a certification in effect under section 60105, as applicable, a copy of—

''(I) the distribution integrity management plan of the operator;

''(II) the emergency response plan under section 192.615 of title 49, Code of Federal Regulations (or a successor regulation); and

''(III) the procedural manual for operations, maintenance, and emergencies under section 192.605 of title 49, Code of Federal Regulations (or a successor regulation).

''(ii) UPDATES.—Each operator of a distribution system shall make available to the Secretary or make available for inspection to the relevant State authority with a certification in effect under section 60105, if applicable, an updated plan or manual described in clause (i) by not later than 60 days after the date of a significant update, as determined by the Secretary.

''(iii) APPLICABILITY OF FOIA.—Nothing in this subsection shall be construed to authorize the disclosure of any information that is exempt from disclosure under section 552(b) of title 5, United States Code.

''(D) REVIEW OF PLANS AND DOCUMENTS.—

''(i) TIMING.—

''(I) IN GENERAL.—Not later than 2 years after the date of promulgation of the regulations under subparagraph (A), and not less frequently than once every 5 years thereafter, the Secretary or relevant State authority with a certification in effect under section 60105 shall review the distribution integrity management plan, the emergency response plan, and the procedural manual for operations, maintenance, and emergencies of each operator of a distribution system and record the results of that review for use in the next review of the program of that operator.

''(II) GRACE PERIOD.—For the third, fourth, and fifth years after the date of promulgation of the regulations under subparagraph (A), the Secretary—

''(aa) shall not use subclause (I) as justification to reduce funding, decertify, or penalize in any way under section 60105, 60106, or 60107 a State authority that has in effect a certification under section 60105 or an agreement under section 60106; and

''(bb) shall—

''(AA) submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a list of States found to be noncompliant with subclause (I) during the annual program evaluation; and

''(BB) provide a written notice to each State authority described in item (aa) that is not in compliance with the requirements of subclause (I).

''(ii) REVIEW.—Each plan or procedural manual made available under subparagraph (C)(i) shall be reexamined—

''(I) on significant change to the plans or procedural manual, as applicable;

''(II) on significant change to the gas distribution system of the operator, as applicable; and

''(III) not less frequently than once every 5 years.

''(iii) CONTEXT OF REVIEW.—The Secretary may conduct a review under clause (i) or (ii) as an element of the inspection of the operator carried out by the Secretary.

''(iv) INADEQUATE PROGRAMS.—If the Secretary determines that the documents reviewed under clause (i) or (ii) do not comply with the requirements of this chapter (including regulations to implement this chapter), have not been adequately implemented, or are inadequate for the safe operation of a pipeline facility, the Secretary may conduct proceedings under this chapter.''.

(b) MONITORING.—Section 60105(e) of title 49, United States Code, is amended—

(1) in the second sentence, by striking ''A State authority'' and inserting the following:

''(2) COOPERATION.—A State authority with a certification in effect under this section'';

(2) by striking ''The Secretary'' and inserting the following:

''(1) IN GENERAL.—The Secretary''; and

(3) by adding at the end the following:

''(3) AUDIT PROGRAM.—Not later than 2 years after the date of enactment of this paragraph, the Secretary shall—

''(A) revise the State audit protocols and procedures to update the annual State Program Evaluations carried out under this subsection and section 60106(d) to ensure that a State authority with a certification in effect under this section has the capability to sufficiently review and evaluate the adequacy of the plans and manuals described in section 60109(e)(7)(C)(i);

''(B) update the State Inspection Calculation Tool to take into account factors including—

''(i) the number of miles of natural gas and hazardous liquid pipelines in the State, including the number of miles of cast iron and bare steel pipelines;

''(ii) the number of services in the State;

''(iii) the age of the gas distribution system in the State; and

''(iv) environmental factors that could impact the integrity of the pipeline, including relevant geological issues; and

''(C) promulgate regulations to require that a State authority with a certification in effect under this section has a sufficient number of qualified inspectors to ensure safe operations, as determined by the State Inspection Calculation Tool and other factors determined to be appropriate by the Secretary.''.

SEC. 203. EMERGENCY RESPONSE PLANS.

Section 60102 of title 49, United States Code (as amended by section 114), is amended by adding at the end the following:

''(r) EMERGENCY RESPONSE PLANS.—Not later than 2 years after the date of enactment of this subsection, the Secretary shall update regulations to ensure that each emergency response plan developed by an operator of a distribution system under section 192.615 of title 49, Code of Federal Regulations (or a successor regulation), includes written procedures for—

''(1) establishing communication with first responders and other relevant public officials, as soon as practicable, beginning from the time of confirmed discovery, as determined by the Secretary, by the operator of a gas pipeline emergency involving a release of gas from a distribution system of that operator that results in—

''(A) a fire related to an unintended release of gas;

''(B) an explosion;

''(C) 1 or more fatalities; or

''(D) the unscheduled release of gas and shutdown of gas service to a significant number of customers, as determined by the Secretary;

''(2) establishing general public communication through an appropriate channel—

''(A) as soon as practicable, as determined by the Secretary, after a gas pipeline emergency involving a release of gas that results in—

''(i) a fire related to an unintended release of gas;

''(ii) an explosion;

''(iii) 1 or more fatalities; or

''(iv) the unscheduled shutdown of gas service to a significant number of customers, as determined by the Secretary; and

''(B) that provides information regarding—

''(i) the emergency described in subparagraph (A); and

''(ii) the status of public safety; and

''(3) the development and implementation of a voluntary, opt-in system that would allow operators of distribution systems to rapidly communicate with customers in the event of an emergency.''.

SEC. 204. OPERATIONS AND MAINTENANCE MANUALS.

Section 60102 of title 49, United States Code (as amended by section 203), is amended by adding at the end the following:

''(s) OPERATIONS AND MAINTENANCE MANUALS.—Not later than 2 years after the date of enactment of this subsection, the Secretary shall update regulations to ensure that each procedural manual for operations, maintenance, and emergencies developed by an operator of a distribution pipeline under section 192.605 of title 49, Code of Federal Regulations (or a successor regulation), includes written procedures for—

''(1) responding to overpressurization indications, including specific actions and an order of operations for immediately reducing pressure in or shutting down portions of the gas distribution system, if necessary; and

''(2) a detailed procedure for the management of the change process, which shall—

''(A) be applied to significant technology, equipment, procedural, and organizational changes to the distribution system; and

''(B) ensure that relevant qualified personnel, such as an engineer with a professional engineer licensure, subject matter expert, or other employee who possesses the necessary knowledge, experience, and skills regarding natural gas distribution systems, review and certify construction plans for accuracy, completeness, and correctness.''.

SEC. 205. PIPELINE SAFETY MANAGEMENT SYSTEMS.

(a) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report describing—

(1) the number of operators of natural gas distribution systems who have implemented a pipeline safety management system in accordance with the standard established by the American Petroleum Institute entitled ''Pipeline Safety Management System Requirements'' and numbered American Petroleum Institute Recommended Practice 1173;

(2) the progress made by operators of natural gas distribution systems who have implemented, or are in the process of implementing, a pipeline safety management system described in paragraph (1); and

(3) the feasibility of an operator of a natural gas distribution system implementing a pipeline safety management system described in paragraph (1) based on the size of the operator as measured by—

(A) the number of customers the operator has; and

(B) the amount of natural gas the operator transports.

(b) REQUIREMENTS.—As part of the report required under subsection (a), the Secretary shall provide guidance or recommendations that would further the adoption of safety management systems in accordance with the standard established by the American Petroleum Institute entitled ''Pipeline Safety Management System Requirements'' and numbered American Petroleum Institute Recommended Practice 1173.

(c) EVALUATION AND PROMOTION OF SAFETY MANAGEMENT SYSTEMS.—The Secretary and the relevant State authority with a certification in effect under section 60105 of title 49, United States Code, as applicable, shall—

(1) promote and assess pipeline safety management systems frameworks developed by operators of natural gas distribution systems and described in the report under subsection (a), including—

(A) if necessary, using independent third-party evaluators; and

(B) through a system that promotes self-disclosure of—

(i) errors; and

(ii) deviations from regulatory standards; and

(2) if a deviation from a regulatory standard is identified during the development and application of a pipeline safety management system, certify that—

(A) due consideration will be given to factors such as flawed procedures, honest mistakes, or lack of understanding; and

(B) the operators and regulators use the most appropriate tools to fix the deviation, return to compliance, and prevent the recurrence of the deviation, including—

(i) root cause analysis; and

(ii) training, education, or other appropriate improvements to procedures or training programs.

SEC. 206. PIPELINE SAFETY PRACTICES.

Section 60102 of title 49, United States Code (as amended by section 204), is amended by adding at the end the following:

''(t) OTHER PIPELINE SAFETY PRACTICES.—

''(1) RECORDS.—Not later than 2 years after the date of enactment of this subsection, the Secretary shall promulgate regulations to require an operator of a distribution system—

''(A) to identify and manage traceable, reliable, and complete records, including maps and other drawings, critical to ensuring proper pressure controls for a gas distribution system, and updating these records as needed, while collecting and identifying other records necessary for risk analysis on an opportunistic basis; and

''(B) to ensure that the records required under subparagraph (A) are—

''(i) accessible to all personnel responsible for performing or overseeing relevant construction or engineering work; and

''(ii) submitted to, or made available for inspection by, the Secretary or the relevant State authority with a certification in effect under section 60105.

''(2) PRESENCE OF QUALIFIED EMPLOYEES.—

''(A) IN GENERAL.—Not later than 180 days after the date of enactment of this subsection, the Secretary shall promulgate regulations to require that not less than 1 agent of an operator of a distribution system who is qualified to perform relevant covered tasks (as defined in section 192.801(b) of title 49, Code of Federal Regulations (or a successor regulation)) shall monitor gas pressure at the district regulator station or at an alternative site with equipment capable of ensuring proper pressure controls and have the capability to promptly shut down the flow of gas or control over pressurization at a district regulator station during any construction project that has the potential to cause a hazardous overpressurization at that station, including tie-ins and abandonment of distribution lines and mains, based on an evaluation, conducted by the operator, of threats that could result in unsafe operation.

''(B) EXCLUSION.—In promulgating regulations under subparagraph (A), the Secretary shall ensure that those regulations do not apply to a district regulating station that has a monitoring system and the capability for remote or automatic shutoff.

''(3) DISTRICT REGULATOR STATIONS.—

''(A) IN GENERAL.—Not later than 1 year after the date of enactment of this subsection, the Secretary shall promulgate regulations to require that each operator of a distribution system assesses and upgrades, as appropriate, each district regulator station of the operator to ensure that—

''(i) the risk of the gas pressure in the distribution system exceeding, by a common mode of failure, the maximum allowable operating pressure (as described in section 192.623 of title 49, Code of Federal Regulations (or a successor regulation)) allowed under Federal law (including regulations) is minimized;

''(ii) the gas pressure of a low-pressure distribution system is monitored, particularly at or near the location of critical pressure-control equipment;

''(iii) the regulator station has secondary or backup pressure-relieving or overpressure-protection safety technology, such as a relief valve or automatic shutoff valve, or other pressure-limiting devices appropriate for the configuration and siting of the station and, in the case of a regulator station that employs the primary and monitor regulator design, the operator shall eliminate the common mode of failure or provide backup protection capable of either shutting the flow of gas, relieving gas to the atmosphere to fully protect the distribution system from overpressurization events, or there must be technology in place to eliminate a common mode of failure; and

''(iv) if the Secretary determines that it is not operationally possible for an operator to implement the requirements under clause (iii), the Secretary shall require such operator to identify actions in their plan that minimize the risk of an overpressurization event.''.

AUTHORITY FOR COMMITTEES TO MEET

Mr. CORNYN. Mr. President, I have 4 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority Leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON ARMED SERVICES

The Committee on Armed Services is authorized to meet during the session of the Senate on Thursday, August 6, 2020, at 9 a.m., in Open Session to consider the nomination of Mr. Jason A. Abend to be Inspector General of the Department of Defense; Mr. Bradley D. Hansell to be Deputy Under Secretary of Defense for Intelligence and Security; Mr. Lucas N. Polakowski to be Assistant Secretary of Defense for Nuclear, Chemical, and Biological Defense Programs; and Mr. Louis W. Bremer to be Assistant Secretary of Defense for Special Operations/Low-Intensity Conflict.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

The Committee on Commerce, Science, and Transportation is authorized to hold a meeting during the session of the Senate on Committee on Thursday, August 6, 2020, at 10 a.m. The committee will hold a full committee nominations hearing.

COMMITTEE ON FOREIGN RELATIONS

The Committee on Foreign Relations is authorized to meet during the session of the Senate on Thursday, August 6, 2020, at 10:30 a.m. to hold a full committee hearing on nominations.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

The Senate Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Thursday, August 6, 2020, at 10 a.m. in order to conduct a hearing entitled, ''Oversight of DHS Personnel Deployments to Recent Protests.''

AUTHORIZING THE PRODUCTION OF RECORDS BY THE PERMANENT SUBCOMMITTEE ON INVESTIGATIONS OF THE COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 676, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 676) to authorize the production of records by the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 676) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

NATIONAL AIRBORNE DAY

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 677, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 677) designating August 16, 2020, as ''National Airborne Day''.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 677) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

NATIONAL CHILD AWARENESS MONTH

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. Res. 678, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 678) designating September 2020 as ''National Child Awareness Month'' to promote awareness of charities that benefit children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I further ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 678) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

SCHOOL BUS SAFETY MONTH

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration and that the Senate now proceed to S. Res. 659.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 659) designating September 2020 as ''School Bus Safety Month''.

There being no objection, the committee was discharged, and the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to; that the amendment to the preamble at the desk be considered and agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 659) was agreed to.

The amendment (No. 2636) was agreed to, as follows:

(Purpose: To amend the preamble)

In the sixth whereas clause of the preamble, strike ''school districts'' and insert ''schools''.

The preamble, as amended, was agreed to.

The resolution with its preamble, as amended, reads as follows:

S. RES. 659

Whereas, in an average year, on every school day in the United States, approximately 500,000 public and private school buses carry more than 26,000,000 K–12 students to and from school;

Whereas school buses comprise the largest mass transportation fleet in the United States;

Whereas, in an average year, 48 percent of all K–12 students ride a school bus for each of the 180 school days in a year, and school bus operators drive school buses a total of nearly 4,680,000,000 miles;

Whereas the Child Safety Network (referred to in this preamble as the ''CSN''), which is celebrating 31 years of public service in the United States, supports the CSN Safe Bus campaign, which is designed to provide the school bus industry with driver training, the latest technology, and free safety and security resources;

Whereas the designation of School Bus Safety Month will allow broadcast and digital media and social networking industries to commit to disseminating public service announcements that are produced to—

(1) provide free resources designed to safeguard children;

(2) recognize school bus operators and professionals; and

(3) encourage the driving public to engage in safer driving behavior near school buses when students board and disembark from school buses;

Whereas key leaders who deserve recognition during School Bus Safety Month and beyond have—

(1) provided security awareness training materials to more than 14,000 public and private schools;

(2) trained more than 116,800 school bus operators; and

(3) provided more than 163,120 counterterrorism guides to individuals who are key to providing both safety and security for children in the United States; and

Whereas School Bus Safety Month offers the Senate and the people of the United States an opportunity to recognize and thank the school bus operators and the professionals focused on school bus safety and security in the United States: Now, therefore, be it

Resolved, That the Senate designates September 2020 as ''School Bus Safety Month''.

REINVIGORATING LENDING FOR THE FUTURE ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works be discharged from further consideration of S. 4075 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 4075) to amend the Public Works and Economic Development Act of 1965 to provide for the release of certain Federal interests in connection with certain grants under that Act, and for other purposes.

There being no objection, the committee was discharged, and the Senate proceeded to consider the bill.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the bill be considered read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 4075) was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

S. 4075

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Reinvigorating Lending for the Future Act'' or the ''RLF Act''.

SEC. 2. RELEASE OF CERTAIN INTERESTS.

Section 601(d)(2) of the Public Works and Economic Development Act of 1965 (42 U.S.C. 3211(d)(2)) is amended—

(1) by striking the paragraph designation and heading and all that follows through ''The Secretary may'' and inserting the following:

''(2) RELEASE.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the Secretary may''; and

(2) by adding at the end the following:

''(B) CERTAIN RELEASES.—

''(i) IN GENERAL.—On written request from a recipient of a grant under section 209(d), the Secretary shall release, in accordance with this subparagraph, any Federal interest in connection with the grant, if—

''(I) the request is made not less than 7 years after the final disbursement of the original grant;

''(II) the recipient has complied with the terms and conditions of the grant to the satisfaction of the Secretary;

''(III) any proceeds realized from the grant will be used for 1 or more activities that continue to carry out the economic development purposes of this Act; and

''(IV) the recipient includes in the written request a description of how the recipient will use the proceeds of the grant in accordance with subclause (III).

''(ii) DEADLINE.—

''(I) IN GENERAL.—Except as provided in subclause (II), the Secretary shall complete all closeout actions for the grant by not later than 180 days after receipt and acceptance of the written request under clause (i).

''(II) EXTENSION.—The Secretary may extend a deadline under subclause (I) by an additional 180 days if the Secretary determines the extension to be necessary.

''(iii) SAVINGS PROVISION.—Section 602 shall continue to apply to a project assisted with a grant under section 209(d) regardless of whether the Secretary releases a Federal interest under clause (i).''.

PROMOTING ALZHEIMER'S AWARENESS TO PREVENT ELDER ABUSE ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration of S. 3703 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 3703) to amend the Elder Abuse Prevention and Prosecution Act to improve the prevention of elder abuse and exploitation of individuals with Alzheimer's disease and related dementias.

There being no objection, the committee was discharged, and the Senate proceeded to consider the bill.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the bill be considered read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 3703) was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

S. 3703

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Promoting Alzheimer's Awareness to Prevent Elder Abuse Act''.

SEC. 2. ADDRESSING ALZHEIMER'S DISEASE IN BEST PRACTICES.

(a) IN GENERAL.—Section 101(b) of the Elder Abuse Prevention and Prosecution Act (34 U.S.C. 21711(b)) is amended—

(1) by redesignating subparagraphs (A), (B), and (C) of paragraph (2) as clauses (i), (ii), and (iii), respectively, and adjusting the margin accordingly;

(2) by redesignating paragraphs (1), (2), and (3) as subparagraphs (A), (B), and (C), respectively, and adjusting the margin accordingly;

(3) by striking ''Not later than'' and inserting the following:

''(1) IN GENERAL.—Not later than'';

(4) in paragraph (1)(B), as so redesignated—

(A) in clause (ii), by inserting '', including witnesses who have Alzheimer's disease and related dementias'' after ''other legal issues''; and

(B) in clause (iii), by striking ''elder abuse cases,'' and inserting ''elder abuse cases (including victims and witnesses who have Alzheimer's disease and related dementias),''; and

(5) by adding at the end the following:

''(2) TRAINING MATERIALS.—

''(A) IN GENERAL.—In creating or compiling replication guides and training materials under paragraph (1)(B), the Elder Justice Coordinator shall consult with the Secretary of Health and Human Services, State, local, and Tribal adult protective services, aging, social, and human services agencies, Federal, State, local, and Tribal law enforcement agencies, and nationally recognized nonprofit associations with relevant expertise, as appropriate.

''(B) UPDATING.—The Elder Justice Coordinator shall—

''(i) review the best practices identified and replication guides and training materials created or compiled under paragraph (1)(B) to determine if the replication guides or training materials require updating; and

''(ii) perform any necessary updating of the replication guides or training materials.''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall—

(1) take effect on the date of enactment of this Act; and

(2) apply on and after the date that is 1 year after the date of enactment of this Act.

SEC. 3. REPORT ON OUTREACH.

(a) IN GENERAL.—Section 101(c)(2) of the Elder Abuse Prevention and Prosecution Act (34 U.S.C. 21711(c)(2)) is amended—

(1) by redesignating subparagraphs (A) through (D) as clauses (i) through (iv), respectively, and adjusting the margin accordingly;

(2) by striking ''a report detailing'' and inserting the following: ''a report—

''(A) detailing''; and

(3) by adding at the end the following:

''(B) with respect to the report by the Attorney General, including a link to the publicly available best practices identified under subsection (b)(1)(B) and the replication guides and training materials created or compiled under such subsection.''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall apply with respect to the report under section 101(c)(2) of the Elder Abuse Prevention and Prosecution Act (34 U.S.C. 21711(c)(2)) submitted during the second year beginning after the date of enactment of this Act, and each year thereafter.

HONORING THE LIFE AND WORK OF LOUIS LORENZO REDDING

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration of S. Con. Res 37 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the concurrent resolution by title.

The legislative clerk read as follows:

A concurrent resolution (S. Con. Res. 37) honoring the life and work of Louis Lorenzo Redding, whose lifelong dedication to civil rights and service stand as an example of leadership for all people.

There being no objection, the committee was discharged, and the Senate proceeded to consider the concurrent resolution.

Mr. MCCONNELL. Mr. President, I further ask that the concurrent resolution be agreed to; the Coons amendment to the preamble at the desk be considered and agreed to; the preamble, as amended, be agreed to; and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (S. Con. Res. 37) was agreed to.

The amendment (No. 2638) was agreed to, as follows:

(Purpose: To amend the preamble)

Strike the preamble and insert the following:

Whereas Louis Lorenzo Redding (referred to in this preamble as ''Louis L. Redding'') was born on October 25, 1901, in Alexandria, Virginia, the eldest of 5 children born to Lewis Alfred and Mary Ann Holmes Redding;

Whereas Louis L. Redding was an educator, attorney, and lifelong activist who worked on civil rights and educational issues;

Whereas Louis L. Redding graduated from Howard High School in 1919, which, at that time, was the only public high school for African-American students in Delaware;

Whereas Louis L. Redding received a bachelor's degree from Brown University in 1923;

Whereas, while at Brown University, Louis L. Redding and 7 other men established a chapter of the Alpha Phi Alpha fraternity in Providence, Rhode Island;

Whereas, in 1923, Louis L. Redding was the first African American awarded the prestigious William Gaston Prize for excellence in oratory and, as a result, delivered a commencement speech at Brown University;

Whereas Louis L. Redding became an English instructor and the vice principal of Fessenden Academy outside of Ocala, Florida, the oldest continuously operated school originally for African-American students in Florida;

Whereas Louis L. Redding left Fessenden Academy to teach English in the high school division of Morehouse College, a historically Black college in Atlanta, Georgia;

Whereas, after 2 years of teaching, Louis L. Redding enrolled in Harvard Law School in 1925;

Whereas, in 1926, as a law student at Harvard Law School, Louis L. Redding was ejected from the Wilmington, Delaware, municipal court while protesting segregation of the courtroom;

Whereas that municipal court was the first court in Wilmington, Delaware, to desegregate its gallery;

Whereas Louis L. Redding graduated from Harvard Law School in 1928 as the only African American in a class of about 200 students;

Whereas, in 1929, Louis L. Redding became the first African American to pass the Delaware bar;

Whereas Louis L. Redding remained the only African-American lawyer in Delaware for 26 years;

Whereas, in 1949, Louis L. Redding was admitted to the Delaware Bar Association, an organization from which Louis L. Redding had been excluded for 20 years after having passed the Delaware bar;

Whereas, in 1950, Louis L. Redding and Jack Greenberg, a lawyer for the NAACP Legal Defense and Educational Fund, filed the case of Parker v. University of Delaware to protest the segregated college system in Delaware;

Whereas, in August 1950, Chancellor Collins Seitz ruled in Parker v. University of Delaware, 75 A.2d 225 (Del. Ch. 1950), that, under Plessy v. Ferguson, 163 U.S. 537 (1896), the State of Delaware violated the Constitution of the United States by offering a separate but not equal education in the State college and university system;

Whereas, in 1951, Louis L. Redding and Jack Greenberg filed—

(1) Belton v. Gebhart, a case that concerned the desegregation of high schools; and

(2) Bulah v. Gebhart, a case that concerned the desegregation of elementary schools;

Whereas, in 1952, the Belton and Bulah cases were consolidated in the Delaware Court of Chancery, where, in Belton v. Gebhart, 87 A.2d 862 (Del. Ch. 1952), Chancellor Collins Seitz ordered the Delaware State Board of Education to open all schools in Delaware to African Americans;

Whereas the Delaware State Board of Education appealed the decision of Chancellor Collins Seitz to the Supreme Court of Delaware, which upheld the decision of the Chancellor in Gebhart v. Belton, 91 A.2d 137 (Del. 1952);

Whereas the case then came before the Supreme Court of the United States on a writ of certiorari to the Supreme Court of Delaware;

Whereas Louis L. Redding and Jack Greenberg argued the case alongside Thurgood Marshall, the first African-American Justice of the Supreme Court of the United States, as the last of a group of 5 school desegregation cases heard and decided by the Supreme Court of the United States in Brown v. Board of Education of Topeka, 347 U.S. 483 (1954), and Bolling v. Sharpe, 347 U.S. 497 (1954);

Whereas, on May 17, 1954, the Supreme Court of the United States held in Brown v. Board of Education of Topeka, 347 U.S. 483 (1954), that separate educational facilities for racial minorities violated the Equal Protection Clause of the 14th Amendment to the Constitution of the United States, thus holding that school segregation was unconstitutional;

Whereas, on February 21, 1961, Louis L. Redding argued to the Supreme Court of the United States in the case of Burton v. Wilmington Parking Authority that a private company with a relationship to a government agency was in violation of the Equal Protection Clause of the 14th Amendment to the Constitution of the United States if the private company refused to provide service to a customer on the basis of race;

Whereas, in April 1961, the Supreme Court of the United States established the principle of State action in Burton v. Wilmington Parking Authority, 365 U.S. 715 (1961), and ruled that a private entity may not discriminate on the basis of race if the State has approved, encouraged, or facilitated the relevant private conduct;

Whereas, in 1965, Louis L. Redding became a public defender for the State of Delaware and fought for the rights of poor clients for nearly 20 years thereafter;

Whereas, in 1984, Louis L. Redding retired after 55 years of practicing law;

Whereas Louis L. Redding was a member of many national organizations, including—

(1) the National Bar Association;

(2) the National Association for the Advancement of Colored People;
(3) the National Lawyers Guild; and
(4) the Emergency Civil Liberties Committee;
Whereas Louis L. Redding was awarded the Martin Luther King, Jr. Memorial Award by the National Education Association and an honorary Doctor of Law degree from Brown University;
Whereas the University of Delaware established the Louis L. Redding Chair for the Study of Law and Public Policy in the School of Education;
Whereas Pulitzer Prize winning author Richard Kluger described Louis L. Redding as a man who fought, largely alone, for the civil rights and liberties of Black Delawareans;
Whereas former Secretary of Transportation William T. Coleman, Jr., stated that the giants of the civil rights movement were Houston Hastings, Louis L. Redding, and Thurgood Marshall;
Whereas, on September 29, 1998, Louis L. Redding died at the age of 96 in Lima, Pennsylvania;
Whereas Louis L. Redding broke down barriers and paved the way for countless African-American lawyers to follow in his footsteps, including—
(1) Theophilus Nix, Sr., the second African American to pass the Delaware bar exam;
(2) Leonard L. Williams, the second African-American judge in Delaware; and
(3) Haile L. Alford, the first African-American female judge in Delaware; and
Whereas Louis L. Redding is remembered as an individual who figured prominently in the struggle for desegregation and as a lawyer who never lost a desegregation case: Now, therefore, be it

The preamble, as amended, was agreed to.

The concurrent resolution, with its preamble, as amended, reads as follows:

S. CON. RES. 37

Whereas Louis Lorenzo Redding (referred to in this preamble as ''Louis L. Redding'') was born on October 25, 1901, in Alexandria, Virginia, the eldest of 5 children born to Lewis Alfred and Mary Ann Holmes Redding;
Whereas Louis L. Redding was an educator, attorney, and lifelong activist who worked on civil rights and educational issues;
Whereas Louis L. Redding graduated from Howard High School in 1919, which, at that time, was the only public high school for African-American students in Delaware;
Whereas Louis L. Redding received a bachelor's degree from Brown University in 1923;
Whereas, while at Brown University, Louis L. Redding and 7 other men established a chapter of the Alpha Phi Alpha fraternity in Providence, Rhode Island;
Whereas, in 1923, Louis L. Redding was the first African American awarded the prestigious William Gaston Prize for excellence in oratory and, as a result, delivered a commencement speech at Brown University;
Whereas Louis L. Redding became an English instructor and the vice principal of Fessenden Academy outside of Ocala, Florida, the oldest continuously operated school originally for African-American students in Florida;
Whereas Louis L. Redding left Fessenden Academy to teach English in the high school division of Morehouse College, a historically Black college in Atlanta, Georgia;
Whereas, after 2 years of teaching, Louis L. Redding enrolled in Harvard Law School in 1925;
Whereas, in 1926, as a law student at Harvard Law School, Louis L. Redding was ejected from the Wilmington, Delaware, municipal court while protesting segregation of the courtroom;
Whereas that municipal court was the first court in Wilmington, Delaware, to desegregate its gallery;
Whereas Louis L. Redding graduated from Harvard Law School in 1928 as the only African American in a class of about 200 students;
Whereas, in 1929, Louis L. Redding became the first African American to pass the Delaware bar;
Whereas Louis L. Redding remained the only African-American lawyer in Delaware for 26 years;
Whereas, in 1949, Louis L. Redding was admitted to the Delaware Bar Association, an organization from which Louis L. Redding had been excluded for 20 years after having passed the Delaware bar;
Whereas, in 1950, Louis L. Redding and Jack Greenberg, a lawyer for the NAACP Legal Defense and Educational Fund, filed the case of Parker v. University of Delaware to protest the segregated college system in Delaware;
Whereas, in August 1950, Chancellor Collins Seitz ruled in Parker v. University of Delaware, 75 A.2d 225 (Del. Ch. 1950), that, under Plessy v. Ferguson, 163 U.S. 537 (1896), the State of Delaware violated the Constitution of the United States by offering a separate but not equal education in the State college and university system;
Whereas, in 1951, Louis L. Redding and Jack Greenberg filed—
(1) Belton v. Gebhart, a case that concerned the desegregation of high schools; and
(2) Bulah v. Gebhart, a case that concerned the desegregation of elementary schools;
Whereas, in 1952, the Belton and Bulah cases were consolidated in the Delaware Court of Chancery, where, in Belton v. Gebhart, 87 A.2d 862 (Del. Ch. 1952), Chancellor Collins Seitz ordered the Delaware State Board of Education to open all schools in Delaware to African Americans;
Whereas the Delaware State Board of Education appealed the decision of Chancellor Collins Seitz to the Supreme Court of Delaware, which upheld the decision of the Chancellor in Gebhart v. Belton, 91 A.2d 137 (Del. 1952);
Whereas the case then came before the Supreme Court of the United States on a writ of certiorari to the Supreme Court of Delaware;
Whereas Louis L. Redding and Jack Greenberg argued the case alongside Thurgood Marshall, the first African-American Justice of the Supreme Court of the United States, as the last of a group of 5 school desegregation cases heard and decided by the Supreme Court of the United States in Brown v. Board of Education of Topeka, 347 U.S. 483 (1954), and Bolling v. Sharpe, 347 U.S. 497 (1954);
Whereas, on May 17, 1954, the Supreme Court of the United States held in Brown v. Board of Education of Topeka, 347 U.S. 483 (1954), that separate educational facilities for racial minorities violated the Equal Protection Clause of the 14th Amendment to the Constitution of the United States, thus holding that school segregation was unconstitutional;
Whereas, on February 21, 1961, Louis L. Redding argued to the Supreme Court of the United States in the case of Burton v. Wilmington Parking Authority that a private company with a relationship to a government agency was in violation of the Equal Protection Clause of the 14th Amendment to the Constitution of the United States if the private company refused to provide service to a customer on the basis of race;
Whereas, in April 1961, the Supreme Court of the United States established the principle of State action in Burton v. Wilmington Parking Authority, 365 U.S. 715 (1961), and ruled that a private entity may not discriminate on the basis of race if the State has approved, encouraged, or facilitated the relevant private conduct;
Whereas, in 1965, Louis L. Redding became a public defender for the State of Delaware and fought for the rights of poor clients for nearly 20 years thereafter;
Whereas, in 1984, Louis L. Redding retired after 55 years of practicing law;
Whereas Louis L. Redding was a member of many national organizations, including—
(1) the National Bar Association;
(2) the National Association for the Advancement of Colored People;
(3) the National Lawyers Guild; and
(4) the Emergency Civil Liberties Committee;
Whereas Louis L. Redding was awarded the Martin Luther King, Jr. Memorial Award by the National Education Association and an honorary Doctor of Law degree from Brown University;
Whereas the University of Delaware established the Louis L. Redding Chair for the Study of Law and Public Policy in the School of Education;
Whereas Pulitzer Prize winning author Richard Kluger described Louis L. Redding as a man who fought, largely alone, for the civil rights and liberties of Black Delawareans;
Whereas former Secretary of Transportation William T. Coleman, Jr., stated that the giants of the civil rights movement were Houston Hastings, Louis L. Redding, and Thurgood Marshall;
Whereas, on September 29, 1998, Louis L. Redding died at the age of 96 in Lima, Pennsylvania;
Whereas Louis L. Redding broke down barriers and paved the way for countless African-American lawyers to follow in his footsteps, including—
(1) Theophilus Nix, Sr., the second African American to pass the Delaware bar exam;
(2) Leonard L. Williams, the second African-American judge in Delaware; and
(3) Haile L. Alford, the first African-American female judge in Delaware; and
Whereas Louis L. Redding is remembered as an individual who figured prominently in the struggle for desegregation and as a lawyer who never lost a desegregation case: Now, therefore, be it
Resolved by the Senate (the House of Representatives concurring), That Congress honors the life and work of Louis Lorenzo Redding, a civil servant whose lifelong dedication to justice and equality stand as an outstanding example of leadership for all people.

PIPES ACT OF 2019

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 427, S. 2299.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 2299) to amend title 49, United States Code, to enhance the safety and reliability of pipeline transportation, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Commerce, Science, and Transportation, with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''PIPES Act of 2019''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
TITLE I—IMPROVING PIPELINE SAFETY AND INFRASTRUCTURE
Sec. 101. Authorization of appropriations.
Sec. 102. Pipeline workforce development.
Sec. 103. Underground natural gas storage user fees.
Sec. 104. Cost recovery and fees for facility reviews.
Sec. 105. Advancement of new pipeline safety technologies and approaches.
Sec. 106. Pipeline safety testing enhancement study.
Sec. 107. Regulatory updates.
Sec. 108. Self-disclosure of violations.
Sec. 109. Due process protections in enforcement proceedings.
Sec. 110. Pipeline operating status.
Sec. 111. Liquefied natural gas facility project reviews.
Sec. 112. Updates to standards for liquefied natural gas facilities.
Sec. 113. National Center of Excellence for Liquefied Natural Gas Safety and Training.
Sec. 114. Prioritization of rulemaking.
TITLE II—LEONEL RONDON PIPELINE SAFETY ACT
Sec. 201. Short title.
Sec. 202. Distribution integrity management plans.
Sec. 203. Emergency response plans.
Sec. 204. Operations and maintenance manuals.
Sec. 205. Pipeline safety management systems.
Sec. 206. Pipeline safety practices.

SEC. 2. DEFINITIONS.

In this Act:

(1) ADMINISTRATION.—The term ''Administration'' means the Pipeline and Hazardous Materials Safety Administration.

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Administration.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Transportation.

TITLE I—IMPROVING PIPELINE SAFETY AND INFRASTRUCTURE

SEC. 101. AUTHORIZATION OF APPROPRIATIONS.

(a) GAS AND HAZARDOUS LIQUID.—Section 60125 of title 49, United States Code, is amended by striking subsection (a) and inserting the following:

''(a) GAS AND HAZARDOUS LIQUID.—

''(1) IN GENERAL.—From fees collected under section 60301, there are authorized to be appropriated to the Secretary to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355) and the provisions of this chapter relating to gas and hazardous liquid—

''(A) $147,000,000 for fiscal year 2020, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $60,000,000 shall be used for making grants;

''(B) $151,000,000 for fiscal year 2021, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $63,000,000 shall be used for making grants;

''(C) $155,000,000 for fiscal year 2022, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $66,000,000 shall be used for making grants; and

''(D) $159,000,000 for fiscal year 2023, of which—

''(i) $9,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $69,000,000 shall be used for making grants.

''(2) TRUST FUND AMOUNTS.—In addition to the amounts authorized to be appropriated under paragraph (1), there are authorized to be appropriated from the Oil Spill Liability Trust Fund established by section 9509(a) of the Internal Revenue Code of 1986 to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355) and the provisions of this chapter relating to hazardous liquid—

''(A) $25,000,000 for fiscal year 2020, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $10,000,000 shall be used for making grants;

''(B) $26,000,000 for fiscal year 2021, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $11,000,000 shall be used for making grants;

''(C) $27,000,000 for fiscal year 2022, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $12,000,000 shall be used for making grants; and

''(D) $28,000,000 for fiscal year 2023, of which—

''(i) $3,000,000 shall be used to carry out section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355); and

''(ii) $13,000,000 shall be used for making grants.

''(3) UNDERGROUND NATURAL GAS STORAGE FACILITY SAFETY ACCOUNT.—From fees collected under section 60302, there is authorized to be appropriated to the Secretary to carry out section 60141 $8,000,000 for each of fiscal years 2020 through 2023.''.

(b) OPERATIONAL EXPENSES.—Section 2(b) of the PIPES Act of 2016 (Public Law 114–183; 130 Stat. 515) is amended by striking paragraphs (1) through (4) and inserting the following:

''(1) $24,000,000 for fiscal year 2020.

''(2) $25,000,000 for fiscal year 2021.

''(3) $26,000,000 for fiscal year 2022.

''(4) $27,000,000 for fiscal year 2023.''.

(c) ONE-CALL NOTIFICATION PROGRAMS.—Section 6107 of title 49, United States Code, is amended by striking ''$1,058,000 for each of fiscal years 2016 through 2019'' and inserting ''$1,058,000 for each of fiscal years 2020 through 2023''.

(d) PIPELINE SAFETY INFORMATION GRANTS TO COMMUNITIES.—Section 60130 of title 49, United States Code, is amended by striking subsection (c) and inserting the following:

''(c) FUNDING.—

''(1) IN GENERAL.—Out of amounts made available under section 2(b) of the PIPES Act of 2016, the Secretary shall use $1,500,000 for each of fiscal years 2020 through 2023 to carry out this section.

''(2) LIMITATION.—Any amounts used to carry out this section shall not be derived from user fees collected under section 60301.''.

(e) DAMAGE PREVENTION PROGRAMS.—Section 60134(i) of title 49, United States Code, is amended in the first sentence by striking ''fiscal years 2012 through 2015'' and inserting ''fiscal years 2020 through 2023''.

(f) PIPELINE INTEGRITY PROGRAM.—Section 12(f) of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355) is amended by striking ''2016 through 2019'' and inserting ''2020 through 2023''.

SEC. 102. PIPELINE WORKFORCE DEVELOPMENT.

(a) INSPECTOR TRAINING.—Not later than 1 year after the date of enactment of this Act, the Administrator shall—

(1) review the inspector training programs provided at the Inspector Training and Qualifications Division of the Administration in Oklahoma City, Oklahoma; and

(2) determine whether any of the programs referred to in paragraph (1), or any portions of the programs, could be provided online through teletraining or another type of distance learning.

(b) REPORT.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure, Energy and Commerce, and Science, Space, and Technology of the House of Representatives and make publicly available on a website of the Department of Transportation a report containing a comprehensive workforce plan for the Administration.

(2) CONTENTS.—The report under paragraph (1) shall include—

(A) a description of the current staffing at the Administration;

(B) an identification of the staff needed to achieve the mission of the Administration over the next 10 years following the date of the report;

(C) an evaluation of whether the inspector training programs referred to in subsection (a)(1) provide appropriate exposure to pipeline operations and current pipeline safety technology;

(D) a summary of any gaps between the current workforce of the Administration and the future human capital needs of the Administration; and

(E) a description of how the Administration—

(i) uses the retention incentives defined by the Office of Personnel Management; and

(ii) plans to use those retention incentives as part of the comprehensive workforce plan of the Administration.

SEC. 103. UNDERGROUND NATURAL GAS STORAGE USER FEES.

Section 60302(c) of title 49, United States Code, is amended—

(1) in paragraph (2)—

(A) in subparagraph (A), by striking ''and'' at the end;

(B) in subparagraph (B)—

(i) by striking ''the amount of the fee''; and

(ii) by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(C) may only be used to the extent provided in advance in an appropriations Act.'';

(2) by striking paragraph (3); and

(3) by adding at the end the following:

''(d) LIMITATION.—The amount of a fee imposed under subsection (a) shall be sufficient to pay the costs of activities referred to in subsection (c), subject to the limitation that the total amount of fees collected for a fiscal year under subsection (b) may not be more than 105 percent of the total amount of the appropriations made for the fiscal year for activities to be financed by the fees.''.

SEC. 104. COST RECOVERY AND FEES FOR FACILITY REVIEWS.

(a) FEES FOR COMPLIANCE REVIEWS OF LIQUEFIED NATURAL GAS FACILITIES.—Chapter 603 of title 49, United States Code, is amended by inserting after section 60302 the following:

''§ 60303. Fees for compliance reviews of liquefied natural gas facilities

''(a) IMPOSITION OF FEE.—

''(1) IN GENERAL.—The Secretary of Transportation (referred to in this section as the 'Secretary') shall impose on a person who files with the Federal Energy Regulatory Commission an application for a liquefied natural gas facility that has design and construction costs totaling not less than $2,500,000,000 a fee for the necessary expenses of a review, if any, that the Secretary conducts, in connection with that application, to determine compliance with subpart B of part 193 of title 49, Code of Federal Regulations (or successor regulations).

''(2) RELATION TO OTHER REVIEW.—The Secretary may not impose fees under paragraph (1) and section 60117(o) or 60301(b) for the same compliance review described in paragraph (1).

''(b) MEANS OF COLLECTION.—

''(1) IN GENERAL.—The Secretary shall prescribe procedures to collect fees under this section.

''(2) USE OF GOVERNMENT ENTITIES.—The Secretary may—

''(A) use a department, agency, or instrumentality of the Federal Government or of a State or local government to collect fees under this section; and

''(B) reimburse that department, agency, or instrumentality a reasonable amount for the services provided.

''(c) ACCOUNT.—There is established an account, to be known as the 'Liquefied Natural Gas Siting Account', in the Pipeline Safety Fund established in the Treasury of the United States under section 60301.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 603 of title 49, United States Code, is amended by inserting after the item relating to section 60302 the following:

''60303. Fees for compliance reviews of liquefied natural gas facilities.''.

SEC. 105. ADVANCEMENT OF NEW PIPELINE SAFETY TECHNOLOGIES AND APPROACHES.

(a) IN GENERAL.—Chapter 601 of title 49, United States Code, is amended by adding at the end the following:

''§ 60142. Pipeline safety enhancement programs

''(a) IN GENERAL.—The Secretary may establish and carry out limited safety-enhancing testing programs during the period of fiscal years 2020 through 2026 to evaluate innovative technologies and operational practices testing the safe operation of—

''(1) a natural gas pipeline facility; or

''(2) a hazardous liquid pipeline facility.

''(b) LIMITATIONS.—

''(1) IN GENERAL.—Such testing programs may not exceed—

''(A) 5 percent of the total miles of hazardous liquid pipelines in the United States; and

''(B) 5 percent of the total miles of natural gas pipelines in the United States.

''(2) HIGH POPULATION AREAS.—Any program established under subsection (a) shall not be located in a high population area (as defined in section 195.450 of title 49, Code of Federal Regulations).

''(c) DURATION.—The term of a testing program established under subsection (a) shall be not more than a period of 4 years beginning on the date of approval of the program.

''(d) SAFETY STANDARDS.—

''(1) IN GENERAL.—The Secretary shall require, as a condition of approval of a testing program under subsection (a), that the safety measures in the testing program are designed to achieve a level of safety that is greater than, or equivalent to, the level of safety required by this chapter.

''(2) DETERMINATION.—

''(A) IN GENERAL.—The Secretary may issue an order under subparagraph (A) of section 60118(c)(1) to accomplish the purpose of a testing program for a term not to exceed the time period described in subsection (c) if the condition described in paragraph (1) is met, as determined by the Secretary.

''(B) LIMITATION.—An order under subparagraph (A) shall pertain only to those regulations that would otherwise prevent the use of the safety technology to be tested under the testing program.

''(e) CONSIDERATIONS.—In establishing a testing program under subsection (a), the Secretary shall consider—

''(1) whether the owners or operators participating in the program have a safety management system in place; and

''(2) whether the proposed safety technology has been tested through a research and development program carried out by—

''(A) the Secretary;

''(B) collaborative research development organizations; or

''(C) other institutions.

''(f) DATA AND FINDINGS.—As a participant in a testing program established under subsection (a), an operator shall submit to the Secretary detailed findings and a summary of data collected as a result of participation in the testing program.

''(g) AUTHORITY TO REVOKE PARTICIPATION.—The Secretary shall immediately revoke participation in a testing program under subsection (a) if—

''(1) the participant fails to comply with the terms and conditions of the testing program; or

''(2) in the determination of the Secretary, continued participation in the testing program by the participant would be unsafe or would not be consistent with the goals and objectives of this chapter.

''(h) AUTHORITY TO TERMINATE PROGRAM.—The Secretary shall immediately terminate a testing program under subsection (a) if continuation of the testing program would not be consistent with the goals and objectives of this chapter.

''(i) STATE RIGHTS.—

''(1) EXEMPTION.—Except as provided in paragraph (2), if a State submits to the Secretary notice that the State requests an exemption from any testing program considered for establishment under this section, the State shall be exempt.

''(2) LIMITATIONS.—

''(A) IN GENERAL.—The Secretary shall not grant a requested exemption under paragraph (1) after a testing program is established.

''(B) LATE NOTICE.—The Secretary shall not grant a requested exemption under paragraph (1) if the notice submitted under that paragraph is submitted to the Secretary more than 10 days after the date on which the Secretary issues an order providing an effective date for the testing program.

''(3) EFFECT.—If a State has not submitted a notice requesting an exemption under paragraph (1), the State shall not enforce any law (including regulations) that is inconsistent with a testing program in effect in the State under this section.

''(j) PROGRAM REVIEW PROCESS AND PUBLIC NOTICE.—

''(1) IN GENERAL.—The Secretary shall publish in the Federal Register and send directly to each relevant State authority with a certification in effect under section 60105 a notice of each testing program under subsection (a), including the order to be considered, and provide an opportunity for public comment for not less than 90 days.

''(2) RESPONSE FROM SECRETARY.—Not later than the date on which the Secretary issues an order providing an effective date of a testing program noticed under paragraph (1), the Secretary shall respond to each comment submitted under that paragraph.

''(k) REPORT TO CONGRESS.—At the conclusion of each testing program, the Secretary shall make publicly available on the website of the Department of Transportation a report containing—

''(1) the findings and conclusions of the Secretary with respect to the testing program; and

''(2) any recommendations of the Secretary with respect to the testing program, including any recommendations for amendments to laws (including regulations) and the establishment of standards, that—

''(A) would enhance the safe operation of interstate gas or hazardous liquid pipeline facilities; and

''(B) are technically, operationally, and economically feasible.

''(l) STANDARDS.—If a report under subsection (k) indicates that it is practicable to establish technically, operationally, and economically feasible standards for the use of a safety-enhancing technology and any corresponding operational practices tested by the testing program described in the report, the Secretary, as soon as practicable after submission of the report, may promulgate regulations consistent with chapter 5 of title 5 (commonly known as the 'Administrative Procedures Act') that—

''(1) allow operators of interstate gas or hazardous liquid pipeline facilities to use the relevant technology or practice to the extent practicable; and

''(2) establish technically, operationally, and economically feasible standards for the capability and deployment of the technology or practice.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 601 of title 49, United States Code, is amended by inserting after the item relating to section 60141 the following:

''60142. Pipeline safety enhancement programs.''.

SEC. 106. PIPELINE SAFETY TESTING ENHANCEMENT STUDY.

Not later than 2 years after the date of enactment of this Act, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure, Energy and Commerce, and Science, Space, and Technology of the House of Representatives a report relating to—

(1) the research and development capabilities of the Administration, in accordance with section 12 of the Pipeline Safety Improvement Act of 2002 (49 U.S.C. 60101 note; Public Law 107–355);

(2)(A) the development of additional testing and research capabilities through the establishment of an independent pipeline safety testing facility under the Department of Transportation;

(B) whether an independent pipeline safety testing facility would be critical to the work of the Administration; and

(C) the costs and benefits of developing an independent pipeline safety testing facility under the Department of Transportation; and

(3) the ability of the Administration to use the testing facilities of other Federal agencies or federally funded research and development centers.

SEC. 107. REGULATORY UPDATES.

(a) DEFINITION OF OUTSTANDING MANDATE.—In this section, the term ''outstanding mandate'' means—

(1) a final rule required to be issued under the Pipeline Safety, Regulatory Certainty, and Job Creation Act of 2011 (Public Law 112–90; 125 Stat. 1904) that has not been published in the Federal Register;

(2) a final rule required to be issued under the Protecting our Infrastructure of Pipelines and Enhancing Safety Act of 2016 (Public Law 114–183; 130 Stat. 514) that has not been published in the Federal Register; and

(3) any other final rule regarding gas or hazardous liquid pipeline facilities required to be issued under this Act or an Act enacted prior to the date of enactment of this Act that has not been published in the Federal Register.

(b) REQUIREMENTS.—

(1) PERIODIC UPDATES.—Not later than 30 days after the date of enactment of this Act,

and every 30 days thereafter until a final rule referred to in paragraphs (1) through (3) of subsection (a) is published in the Federal Register, the Secretary shall publish on a publicly available website of the Department of Transportation an update regarding the status of each outstanding mandate in accordance with subsection (c).

(2) NOTIFICATION OF CONGRESS.—On publication of a final rule in the Federal Register for an outstanding mandate, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a notification in accordance with subsection (c).

(c) CONTENTS.—An update published or a notification submitted under paragraph (1) or (2) of subsection (b) shall contain, as applicable—

(1) with respect to information relating to the Administration—

(A) a description of the work plan for each outstanding mandate;

(B) an updated rulemaking timeline for each outstanding mandate;

(C) the staff allocations with respect to each outstanding mandate;

(D) any resource constraints affecting the rulemaking process for each outstanding mandate;

(E) any other details associated with the development of each outstanding mandate that affect the progress of the rulemaking process with respect to that outstanding mandate; and

(F) a description of all rulemakings regarding gas or hazardous liquid pipeline facilities published in the Federal Register that are not identified under subsection (b)(2); and

(2) with respect to information relating to the Office of the Secretary—

(A) the date that the outstanding mandate was submitted to the Office of the Secretary for review;

(B) the reason that the outstanding mandate is under review beyond 45 days;

(C) the staff allocations within the Office of the Secretary with respect to each the outstanding mandate;

(D) any resource constraints affecting review of the outstanding mandate;

(E) an estimated timeline of when review of the outstanding mandate will be complete, as of the date of the update;

(F) if applicable, the date that the outstanding mandate was returned to the Administration for revision and the anticipated date for resubmission to the Office of the Secretary;

(G) the date that the outstanding mandate was submitted to the Office of Management and Budget for review; and

(H) a statement of whether the outstanding mandate remains under review by the Office of Management and Budget.

SEC. 108. SELF-DISCLOSURE OF VIOLATIONS.

Section 60122(b)(1) of title 49, United States Code, is amended—

(1) in subparagraph (B), by striking ''and'' at the end; and

(2) by adding at the end the following:

''(D) self-disclosure and correction of violations, or actions to correct a violation, prior to discovery by the Pipeline and Hazardous Materials Safety Administration; and''.

SEC. 109. DUE PROCESS PROTECTIONS IN ENFORCEMENT PROCEEDINGS.

(a) IN GENERAL.—Section 60117 of title 49, United States Code, is amended—

(1) by redesignating subsections (b) through (o) as subsections (c) through (p), respectively; and

(2) by inserting after subsection (a) the following:

''(b) ENFORCEMENT AND REGULATORY PROCEDURES.—

''(1) REQUEST FOR FORMAL HEARING.—On request of a respondent in an enforcement or regulatory proceeding under this chapter, a hearing shall be held in accordance with section 554 of title 5.

''(2) ADMINISTRATIVE LAW JUDGE.—A hearing under paragraph (1) shall be conducted by an administrative law judge appointed under section 3105 of title 5.

''(3) OPEN TO THE PUBLIC.—

''(A) HEARINGS.—A hearing under paragraph (1) shall be—

''(i) noticed to the public—

''(I) on the website of the Pipeline and Hazardous Materials Safety Administration; and

''(II) in the Federal Register; and

''(ii) open to the public.

''(B) AGREEMENTS, ORDERS, AND JUDGMENTS.—A consent agreement, consent order, order, or judgment resulting from a hearing under paragraph (1) shall be made available to the public on the website of the Pipeline and Hazardous Materials Safety Administration.

''(4) PROCEDURES.—In implementing enforcement and regulatory procedures under this chapter, the Secretary shall—

''(A) allow the use of a consent agreement and consent order to resolve any matter of fact or law asserted;

''(B) allow the respondent and the agency to convene 1 or more meetings—

''(i) for settlement or simplification of the issues; or

''(ii) to aid in the disposition of issues;

''(C) require that the case file in an enforcement proceeding include all agency records pertinent to the matters of fact and law asserted;

''(D) require that a recommended decision be made available to the respondent when issued;

''(E) allow a respondent to reply to any post-hearing submission;

''(F) allow a respondent to request—

''(i) that a hearing be held, and a recommended decision and order issued, on an expedited basis; or

''(ii) that a hearing not commence for a period of not less than 90 days;

''(G) require that the agency have the burden of proof, presentation, and persuasion in any enforcement matter;

''(H) require that any recommended decision and order contain findings of fact and conclusions of law;

''(I) require the Associate Administrator of the Office of Pipeline Safety to file a post-hearing recommendation not later than 30 days after the deadline for any post-hearing submission of a respondent;

''(J) require an order on a petition for reconsideration to be issued not later than 120 days after the date on which the petition is filed; and

''(K) allow an operator to request that an issue of controversy or uncertainty be addressed through a declaratory order in accordance with section 554(e) of title 5, which order shall be issued not later than 120 days after the date on which a request is made.

''(5) SAVINGS CLAUSE.—Nothing in this subsection alters the procedures applicable to an emergency order under subsection (p).''.

(b) CONFORMING AMENDMENTS.—

(1) Section 60109(g)(4) of title 49, United States Code, is amended by striking ''section 60117(c)'' and inserting ''section 60117(d)''.

(2) Section 60117(p) of title 49, United States Code (as redesignated by subsection (a)(1)), is amended, in paragraph (3)(E), by striking ''60117(l)'' and inserting ''subsection (m)''.

(3) Section 60118(a)(3) of title 49, United States Code, is amended by striking ''section 60117(a)–(d)'' and inserting ''subsections (a) through (e) of section 60117''.

SEC. 110. PIPELINE OPERATING STATUS.

(a) IN GENERAL.—Chapter 601 of title 49, United States Code (as amended by section 105(a)), is amended by adding at the end the following:

''§ 60143. Idled pipelines

''(a) DEFINITION OF IDLED.—In this section, the term 'idled', with respect to a pipeline, means that the pipeline—

''(1)(A) has ceased normal operations; and

''(B) will not resume service for a period of not less than 180 days;

''(2) has been isolated from all sources of hazardous liquid, natural gas, or other gas; and

''(3)(A) has been purged of combustibles and hazardous materials and maintains a blanket of inert, nonflammable gas at low pressure; or

''(B) has not been purged as described in subparagraph (A), but the volume of gas is so small that there is no potential hazard.

''(b) RULEMAKING.—

''(1) IN GENERAL.—Not later than 2 years after the date of enactment of the PIPES Act of 2019, the Secretary shall promulgate regulations prescribing the applicability of the pipeline safety requirements to idled natural or other gas transmission and hazardous liquid pipelines.

''(2) REQUIREMENTS.—

''(A) IN GENERAL.—The applicability of the regulations under paragraph (1) shall be based on the risk that idled natural or other gas transmission and hazardous liquid pipelines pose to the public, property, and the environment, and shall include requirements to resume operation.

''(B) INSPECTION.—The Secretary or an appropriate State agency shall inspect each idled pipeline and verify that the pipeline has been purged of combustibles and hazardous materials, if required under subsection (a).

''(C) REQUIREMENTS FOR REINSPECTION.—The Secretary shall determine the requirements for periodic reinspection of idled natural or other gas transmission and hazardous liquid pipelines.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 601 of title 49, United States Code (as amended by section 105(b)), is amended by inserting after the item relating to section 60142 the following:

''60143. Idled pipelines.''.

SEC. 111. LIQUEFIED NATURAL GAS FACILITY PROJECT REVIEWS.

Section 60103(a) of title 49, United States Code, is amended—

(1) by redesignating paragraphs (1) through (7) as subparagraphs (A) through (G), respectively, and indenting appropriately;

(2) in the first sentence, by striking ''The Secretary of Transportation'' and inserting the following:

''(1) IN GENERAL.—The Secretary of Transportation'';

(3) in the second sentence, by striking ''In prescribing a standard'' and inserting the following:

''(2) CONSIDERATIONS.—In prescribing a standard under paragraph (1)''; and

(4) by adding at the end the following:

''(3) USE OF LOCATION STANDARDS.—If a Federal or State authority with jurisdiction over liquefied natural gas pipeline facility permits or approvals is using the location standards prescribed under paragraph (1) for purposes of making a decision with respect to the location of a new liquefied natural gas pipeline facility and submits to the Secretary of Transportation a request to provide a determination of whether the new liquefied natural gas pipeline facility would meet the location standards, the Secretary may provide such a determination to the requesting Federal or State authority.

''(4) EFFECT.—Nothing in this subsection or subsection (b)—

''(A) affects—

''(i) section 3 of the Natural Gas Act (15 U.S.C. 717b);

''(ii) the authority of the Federal Energy Regulatory Commission to carry out that section; or

''(iii) any other similar authority of any other Federal or State agency; or

''(B) requires the Secretary of Transportation to formally approve any project proposal or otherwise perform any siting functions.''.

SEC. 112. UPDATES TO STANDARDS FOR LIQUEFIED NATURAL GAS FACILITIES.

(a) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Secretary shall—

(1) review the minimum operating and maintenance standards prescribed under section 60103(d) of title 49, United States Code; and

(2) based on the review under paragraph (1), update the standards described in that paragraph applicable to large-scale liquefied natural gas facilities (other than peak shaving facilities) to provide for a risk-based regulatory approach for such facilities, consistent with this section.

(b) SCOPE.—In updating the minimum operating and maintenance standards under subsection (a)(2), the Secretary shall ensure that all regulations, guidance, and internal documents are developed and applied in a manner consistent with this section.

(c) REQUIREMENTS.—The updates to the operating and maintenance standards required under subsection (a)(2) shall, at a minimum, require operators—

(1) to develop and maintain written safety information identifying hazards associated with—

(A) the processes of liquefied natural gas conversion, storage, and transport;

(B) equipment used in the processes; and

(C) technology used in the processes;

(2) to conduct a hazard assessment, including the identification of potential sources of accidental releases;

(3)(A) to consult with employees and representatives of employees on the development and conduct of hazard assessments under paragraph (2); and

(B) to provide employees access to the records of the hazard assessments and any other records required under the updated standards;

(4) to establish a system to respond to the findings of a hazard assessment conducted under paragraph (2) that addresses prevention, mitigation, and emergency responses;

(5) to review, when a design change occurs, a hazard assessment conducted under paragraph (2) and the response system established under paragraph (4);

(6) to develop and implement written operating procedures for the processes of liquefied natural gas conversion, storage, and transport;

(7)(A) to provide written safety and operating information to employees; and

(B) to train employees in operating procedures with an emphasis on addressing hazards and using safe practices;

(8) to ensure contractors and contract employees are provided appropriate information and training;

(9) to train and educate employees and contractors in emergency response;

(10) to establish a quality assurance program to ensure that equipment, maintenance materials, and spare parts relating to the operations and maintenance of liquefied natural gas facilities are fabricated and installed consistent with design specifications;

(11) to establish maintenance systems for critical process-related equipment, including written procedures, employee training, appropriate inspections, and testing of that equipment to ensure ongoing mechanical integrity;

(12) to conduct pre-start-up safety reviews of all newly installed or modified equipment;

(13) to establish and implement written procedures to manage change to processes of liquefied natural gas conversion, storage, and transport, technology, equipment, and facilities; and

(14)(A) to investigate each incident that results in, or could have resulted in—

(i) loss of life;

(ii) destruction of private property; or

(iii) a major accident; and

(B) to have operating personnel—

(i) review any findings of an investigation under subparagraph (A); and

(ii) if appropriate, take responsive measures.

SEC. 113. NATIONAL CENTER OF EXCELLENCE FOR LIQUEFIED NATURAL GAS SAFETY AND TRAINING.

(a) DEFINITIONS.—In this section:

(1) CENTER.—The term ''Center'' means the National Center of Excellence for Liquefied Natural Gas Safety and Training established under subsection (b).

(2) LNG.—The term ''LNG'' means liquefied natural gas.

(3) LNG SECTOR STAKEHOLDER.—The term ''LNG sector stakeholder'' means a representative of—

(A) LNG facilities that represent the broad array of LNG facilities operating in the United States;

(B) States, Indian Tribes, and units of local government;

(C) postsecondary education;

(D) labor organizations;

(E) safety organizations; or

(F) Federal regulatory agencies of jurisdiction, which may include—

(i) the Administration;

(ii) the Federal Energy Regulatory Commission;

(iii) the Department of Energy;

(iv) the Occupational Safety and Health Administration;

(v) the Coast Guard; and

(vi) the Maritime Administration.

(b) ESTABLISHMENT.—Not later than 2 years after the date of enactment of this Act, the Secretary, in consultation with LNG sector stakeholders, shall establish a center, to be known as the ''National Center of Excellence for Liquefied Natural Gas Safety and Training''.

(c) FUNCTIONS.—The Center shall, for activities regulated under section 60103 of title 49, United States Code—

(1) promote, facilitate, and conduct—

(A) education;

(B) training; and

(C) technological advancements;

(2) be a repository of information on best practices relating to, and expertise on, LNG operations;

(3) foster collaboration among stakeholders; and

(4) provide a curriculum for training that incorporates—

(A) risk-based principles into the operation, management, and regulatory oversight of LNG facilities;

(B) the reliance on subject matter expertise within the LNG industry;

(C) the transfer of knowledge and expertise between the LNG industry and regulatory agencies; and

(D) training and workshops that occur at operational facilities.

(d) LOCATION.—

(1) IN GENERAL.—The Center shall be located in close proximity to critical LNG transportation infrastructure on, and connecting to, the Gulf of Mexico, as determined by the Secretary.

(2) CONSIDERATIONS.—In siting the location of the Center, the Secretary shall take into account the strategic value of locating resources in close proximity to LNG facilities.

(e) JOINT OPERATION WITH EDUCATIONAL INSTITUTION.—The Secretary may enter into an agreement with an appropriate official of an institution of higher education—

(1) to provide for joint operation of the Center; and

(2) to provide necessary administrative services for the Center.

SEC. 114. PRIORITIZATION OF RULEMAKING.

(a) RULEMAKING.—Not later than 90 days after the date of enactment of this Act, the Secretary shall ensure completion of and publish in the Federal Register the outstanding rulemaking entitled ''Pipeline Safety: Safety of Gas Transmission and Gathering Pipelines'', published in the Federal Register on April 8, 2016 (81 Fed. Reg. 20722; Docket No. PHMSA–2011–0023), as that rulemaking relates to the consideration of gathering pipelines.

(b) STUDY.—Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) review the extent to which geospatial and technical data is collected by operators of gathering lines, including design and material specifications;

(2) analyze information collected by operators of gathering lines when the mapping information described in paragraph (1) is not available for a gathering line; and

(3) assess any plans and timelines of operators of gathering lines to develop the mapping information described in paragraph (1) or otherwise collect information described in paragraph (2).

(c) REPORT.—The Comptroller General of the United States shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report on the review required under subsection (b), including any recommendations that the Comptroller General of the United States may have as a result of the review.

TITLE II—LEONEL RONDON PIPELINE SAFETY ACT

SEC. 201. SHORT TITLE.

This title may be cited as the ''Leonel Rondon Pipeline Safety Act''.

SEC. 202. DISTRIBUTION INTEGRITY MANAGEMENT PLANS.

(a) IN GENERAL.—Section 60109(e) of title 49, United States Code, is amended by adding at the end the following:

''(7) DISTRIBUTION INTEGRITY MANAGEMENT PLANS.—

''(A) EVALUATION OF RISK.—Not later than 2 years after the date of enactment of this paragraph, the Secretary shall promulgate regulations to ensure that each distribution integrity management plan developed by an operator of a distribution system includes an evaluation of—

''(i) the risks resulting from the presence of cast iron pipes and mains in the distribution system; and

''(ii) the risks that could lead to or result from the operation of a low-pressure distribution system at a pressure that makes the operation of any connected and properly adjusted low-pressure gas burning equipment unsafe (as described in section 192.623 of title 49, Code of Federal Regulations (or a successor regulation)).

''(B) CONSIDERATION.—In the evaluations required in a plan under subparagraph (A), the regulations promulgated by the Secretary shall ensure that the distribution integrity management plan evaluates for future potential threats in a manner that considers factors other than past observed abnormal operations (within the meaning of section 192.605 of title 49, Code of Federal Regulations (or a successor regulation)), in ranking risks and identifying measures to mitigate those risks under that subparagraph, so that operators avoid using a risk rating of zero for low probability events unless otherwise supported by engineering analysis or operational knowledge.

''(C) DEADLINES.—

''(i) IN GENERAL.—Not later than 2 years after the date of enactment of this paragraph, each operator of a distribution system shall make available to the Secretary or the relevant State authority with a certification in effect under section 60105, as applicable, a copy of—

''(I) the distribution integrity management plan of the operator;

''(II) the emergency response plan under section 192.615 of title 49, Code of Federal Regulations (or a successor regulation); and

''(III) the procedural manual for operations, maintenance, and emergencies under section 192.605 of title 49, Code of Federal Regulations (or a successor regulation).

''(ii) UPDATES.—Each operator of a distribution system shall make available to the Secretary or make available for inspection to the relevant State authority with a certification in effect under section 60105, if applicable, an updated plan or manual described in clause (i) by not later than 60 days after the date of a significant update, as determined by the Secretary.

''(iii) APPLICABILITY OF FOIA.—Nothing in this subsection shall be construed to authorize the disclosure of any information that is exempt from disclosure under section 552(b) of title 5, United States Code.

''(D) REVIEW OF PLANS AND DOCUMENTS.—

''(i) TIMING.—

''(I) IN GENERAL.—Not later than 2 years after the date of promulgation of the regulations under subparagraph (A), and not less frequently than once every 5 years thereafter, the Secretary or relevant State authority with a certification in effect under section 60105 shall review the distribution integrity management plan, the emergency response plan, and the procedural manual for operations, maintenance, and emergencies of each operator of a distribution system and record the results of that review for use in the next review of the program of that operator.

''(II) GRACE PERIOD.—For the third, fourth, and fifth years after the date of promulgation of the regulations under subparagraph (A), the Secretary—

''(aa) shall not use subclause (I) as justification to reduce funding, decertify, or penalize in any way under section 60105, 60106, or 60107 a State authority that has in effect a certification under section 60105 or an agreement under section 60106; and

''(bb) shall—

''(AA) submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a list of States found to be noncompliant with subclause (I) during the annual program evaluation; and

''(BB) provide a written notice to each State authority described in item (aa) that is not in compliance with the requirements of subclause (I).

''(ii) REVIEW.—Each plan or procedural manual made available under subparagraph (C)(i) shall be reexamined—

''(I) on significant change to the plans or procedural manual, as applicable;

''(II) on significant change to the gas distribution system of the operator, as applicable; and

''(III) not less frequently than once every 5 years.

''(iii) CONTEXT OF REVIEW.—The Secretary may conduct a review under clause (i) or (ii) as an element of the inspection of the operator carried out by the Secretary.

''(iv) INADEQUATE PROGRAMS.—If the Secretary determines that the documents reviewed under clause (i) or (ii) do not comply with the requirements of this chapter (including regulations to implement this chapter), have not been adequately implemented, or are inadequate for the safe operation of a pipeline facility, the Secretary may conduct proceedings under this chapter.''.

(b) MONITORING.—Section 60105(e) of title 49, United States Code, is amended—

(1) in the second sentence, by striking ''A State authority'' and inserting the following:

''(2) COOPERATION.—A State authority with a certification in effect under this section'';

(2) by striking ''The Secretary'' and inserting the following:

''(1) IN GENERAL.—The Secretary''; and

(3) by adding at the end the following:

''(3) AUDIT PROGRAM.—Not later than 2 years after the date of enactment of this paragraph, the Secretary shall—

''(A) revise the State audit protocols and procedures to update the annual State Program Evaluations carried out under this subsection and section 60106(d) to ensure that a State authority with a certification in effect under this section has the capability to sufficiently review and evaluate the adequacy of the plans and manuals described in section 60109(e)(7)(C)(i);

''(B) update the State Inspection Calculation Tool to take into account factors including—

''(i) the number of miles of natural gas and hazardous liquid pipelines in the State, including the number of miles of cast iron and bare steel pipelines;

''(ii) the number of services in the State;

''(iii) the age of the gas distribution system in the State; and

''(iv) environmental factors that could impact the integrity of the pipeline, including relevant geological issues; and

''(C) promulgate regulations to require that a State authority with a certification in effect under this section has a sufficient number of qualified inspectors to ensure safe operations, as determined by the State Inspection Calculation Tool and other factors determined to be appropriate by the Secretary.''.

SEC. 203. EMERGENCY RESPONSE PLANS.

Section 60102 of title 49, United States Code, is amended by adding at the end the following:

''(q) EMERGENCY RESPONSE PLANS.—Not later than 2 years after the date of enactment of this subsection, the Secretary shall update regulations to ensure that each emergency response plan developed by an operator of a distribution system under section 192.615 of title 49, Code of Federal Regulations (or a successor regulation), includes written procedures for—

''(1) establishing communication with first responders and other relevant public officials, as soon as practicable, beginning from the time of confirmed discovery, as determined by the Secretary, by the operator of a gas pipeline emergency involving a release of gas from a distribution system of that operator that results in—

''(A) a fire related to an unintended release of gas;

''(B) an explosion;

''(C) 1 or more fatalities; or

''(D) the unscheduled release of gas and shutdown of gas service to a significant number of customers, as determined by the Secretary;

''(2) establishing general public communication through an appropriate channel—

''(A) as soon as practicable, as determined by the Secretary, after a gas pipeline emergency involving a release of gas that results in—

''(i) a fire related to an unintended release of gas;

''(ii) an explosion;

''(iii) 1 or more fatalities; or

''(iv) the unscheduled shutdown of gas service to a significant number of customers, as determined by the Secretary; and

''(B) that provides information regarding—

''(i) the emergency described in subparagraph (A); and

''(ii) the status of public safety; and

''(3) the development and implementation of a voluntary, opt-in system that would allow operators of distribution systems to rapidly communicate with customers in the event of an emergency.''.

SEC. 204. OPERATIONS AND MAINTENANCE MANUALS.

Section 60102 of title 49, United States Code (as amended by section 203), is amended by adding at the end the following:

''(r) OPERATIONS AND MAINTENANCE MANUALS.—Not later than 2 years after the date of enactment of this subsection, the Secretary shall update regulations to ensure that each procedural manual for operations, maintenance, and emergencies developed by an operator of a distribution pipeline under section 192.605 of title 49, Code of Federal Regulations (or a successor regulation), includes written procedures for—

''(1) responding to overpressurization indications, including specific actions and an order of operations for immediately reducing pressure in or shutting down portions of the gas distribution system, if necessary; and

''(2) a detailed procedure for the management of the change process, which shall—

''(A) be applied to significant technology, equipment, procedural, and organizational changes to the distribution system; and

''(B) ensure that relevant qualified personnel, such as an engineer with a professional engineer licensure, subject matter expert, or other employee who possesses the necessary knowledge, experience, and skills regarding natural gas distribution systems, review and certify construction plans for accuracy, completeness, and correctness.''.

SEC. 205. PIPELINE SAFETY MANAGEMENT SYSTEMS.

(a) IN GENERAL.—Not later than 3 years after the date of enactment of this Act, the Secretary shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committees on Transportation and Infrastructure and Energy and Commerce of the House of Representatives a report describing—

(1) the number of operators of natural gas distribution systems who have implemented a pipeline safety management system in accordance with the standard established by the American Petroleum Institute entitled ''Pipeline Safety Management System Requirements'' and numbered American Petroleum Institute Recommended Practice 1173;

(2) the progress made by operators of natural gas distribution systems who have implemented, or are in the process of implementing, a pipeline safety management system described in paragraph (1); and

(3) the feasibility of an operator of a natural gas distribution system implementing a pipeline safety management system described in paragraph (1) based on the size of the operator as measured by—

(A) the number of customers the operator has; and

(B) the amount of natural gas the operator transports.

(b) REQUIREMENTS.—As part of the report required under subsection (a), the Secretary shall provide guidance or recommendations that would further the adoption of safety management systems in accordance with the standard established by the American Petroleum Institute entitled ''Pipeline Safety Management System Requirements'' and numbered American Petroleum Institute Recommended Practice 1173.

(c) EVALUATION AND PROMOTION OF SAFETY MANAGEMENT SYSTEMS.—The Secretary and the relevant State authority with a certification in effect under section 60105 of title 49, United States Code, as applicable, shall—

(1) promote and assess pipeline safety management systems frameworks developed by operators of natural gas distribution systems and described in the report under subsection (a), including—

(A) if necessary, using independent third-party evaluators; and

(B) through a system that promotes self-disclosure of—

(i) errors; and

(ii) deviations from regulatory standards; and

(2) if a deviation from a regulatory standard is identified during the development and application of a pipeline safety management system, certify that—

(A) due consideration will be given to factors such as flawed procedures, honest mistakes, or lack of understanding; and

(B) the operators and regulators use the most appropriate tools to fix the deviation, return to compliance, and prevent the recurrence of the deviation, including—

(i) root cause analysis; and

(ii) training, education, or other appropriate improvements to procedures or training programs.

SEC. 206. PIPELINE SAFETY PRACTICES.

Section 60102 of title 49, United States Code (as amended by section 204), is amended by adding at the end the following:

''(s) OTHER PIPELINE SAFETY PRACTICES.—

''(1) RECORDS.—Not later than 2 years after the date of enactment of this subsection, the Secretary shall promulgate regulations to require an operator of a distribution system—

''(A) to identify and manage traceable, reliable, and complete records, including maps and

other drawings, critical to ensuring proper pressure controls for a gas distribution system, and updating these records as needed, while collecting and identifying other records necessary for risk analysis on an opportunistic basis; and

''(B) to ensure that the records required under subparagraph (A) are—

''(i) accessible to all personnel responsible for performing or overseeing relevant construction or engineering work; and

''(ii) submitted to, or made available for inspection by, the Secretary or the relevant State authority with a certification in effect under section 60105.

''(2) PRESENCE OF QUALIFIED EMPLOYEES.—

''(A) IN GENERAL.—Not later than 180 days after the date of enactment of this subsection, the Secretary shall promulgate regulations to require that not less than 1 agent of an operator of a distribution system who is qualified to perform relevant covered tasks (as defined in section 192.801(b) of title 49, Code of Federal Regulations (or a successor regulation)) shall monitor gas pressure at the district regulator station or at an alternative site with equipment capable of ensuring proper pressure controls and have the capability to promptly shut down the flow of gas or control over pressurization at a district regulator station during any construction project that has the potential to cause a hazardous overpressurization at that station, including tie-ins and abandonment of distribution lines and mains, based on an evaluation, conducted by the operator, of threats that could result in unsafe operation.

''(B) EXCLUSION.—In promulgating regulations under subparagraph (A), the Secretary shall ensure that those regulations do not apply to a district regulating station that has a monitoring system and the capability for remote or automatic shutoff.

''(3) DISTRICT REGULATOR STATIONS.—

''(A) IN GENERAL.—Not later than 1 year after the date of enactment of this subsection, the Secretary shall promulgate regulations to require that each operator of a distribution system assesses and upgrades, as appropriate, each district regulator station of the operator to ensure that—

''(i) the risk of the gas pressure in the distribution system exceeding, by a common mode of failure, the maximum allowable operating pressure (as described in section 192.623 of title 49, Code of Federal Regulations (or a successor regulation)) allowed under Federal law (including regulations) is minimized;

''(ii) the gas pressure of a low-pressure distribution system is monitored, particularly at or near the location of critical pressure-control equipment;

''(iii) the regulator station has secondary or backup pressure-relieving or overpressure-protection safety technology, such as a relief valve or automatic shutoff valve, or other pressure-limiting devices appropriate for the configuration and siting of the station and, in the case of a regulator station that employs the primary and monitor regulator design, the operator shall eliminate the common mode of failure or provide backup protection capable of either shutting the flow of gas, relieving gas to the atmosphere to fully protect the distribution system from overpressurization events, or there must be technology in place to eliminate a common mode of failure; and

''(iv) if the Secretary determines that it is not operationally possible for an operator to implement the requirements under clause (iii), the Secretary shall require such operator to identify actions in their plan that minimize the risk of an overpressurization event.''.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the committee-reported substitute amendment be withdrawn and that the Wicker substitute amendment at the desk be agreed to; that the bill, as amended, be considered read a third time and passed, and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment in the nature of a substitute was withdrawn.

The amendment (No. 2642), in the nature of a substitute, was agreed to.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

The bill (S. 2299), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

REQUESTING THE SECRETARY OF THE INTERIOR TO AUTHORIZE A UNIQUE AND 1-TIME ARRANGEMENT FOR CERTAIN DISPLAYS ON MOUNT RUSHMORE NATIONAL MEMORIAL

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be discharged from further consideration and the Senate now proceed to S.J. Res. 74.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the joint resolution by title.

The legislative clerk read as follows:

A joint resolution (S.J. Res. 74) requesting the Secretary of the Interior to authorize a unique and 1-time arrangement for certain displays on Mount Rushmore National Memorial relating to the centennial of the ratification of the 19th Amendment to the Constitution of the United States during the period beginning August 18, 2020, and ending on September 30, 2020.

There being no objection, the committee was discharged and the Senate proceeded to consider the joint resolution.

Mr. MCCONNELL. I ask unanimous consent that the Thune amendment to the resolution at the desk be agreed to; that the joint resolution, as amended, be read a third time and passed; that the preamble be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 2637), as amended, was agreed to as follows:

(Purpose: To ensure that the event entitled ''LOOK UP TO HER at Mount Rushmore'' adheres to certain public health precautions)

On page 3, strike lines 17 and 18, and insert the following:

2020;

(2) encourages the Secretary of the Interior, in planning the event requested to be authorized under paragraph (1), to consult with the Director of the Centers for Disease Control and Prevention or a designee of the Director of the Centers for Disease Control and Prevention regarding precautions for events and large gatherings to limit the spread of COVID–19, including—

(A) clearly communicating the precautions in place to the public through signage;

(B) facilitating social distancing; and

(C) promoting safe hygiene practices for staff and visitors;

(3) requires the Secretary of the Interior, in carrying out the event requested to be authorized under paragraph (1), to adhere to, to the maximum extent practicable, any precautions recommended in the publication of the Centers for Disease Control and Prevention entitled ''Considerations for Events and Gatherings'' during that event; and

(4) respectfully requests that the Secretary of

The joint resolution (S.J. Res. 74), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

The preamble was agreed to.

The resolution, as amended, and the preamble reads, as follows:

S.J. RES. 74

Whereas, on May 21, 1919, the House of Representatives adopted House Joint Resolution 1, 66th Congress, proposing an amendment to the Constitution extending the right of suffrage to women;

Whereas, on June 4, 1919, the Senate adopted House Joint Resolution 1, 66th Congress, sending to the States for ratification the 19th Amendment to the Constitution of the United States;

Whereas, on August 18, 1920, the 36th State approved the 19th Amendment to the Constitution of the United States, satisfying the constitutional threshold of passage in ¾ of the States;

Whereas, on August 26, 1920, Secretary of State Bainbridge Colby certified the 19th Amendment to the Constitution of the United States;

Whereas section 431(a)(3) of the Department of the Interior, Environment, and Related Agencies Appropriations Act, 2017 (Public Law 115–31; 131 Stat. 502), enacted into law S. 847, 115th Congress (as introduced on April 5, 2017), which established the Women's Suffrage Centennial Commission ''to ensure a suitable observance of the centennial of the passage and ratification of the 19th Amendment to the Constitution of the United States providing for women's suffrage'';

Whereas August 18, 2020, marks the centennial of the ratification of the 19th Amendment to the Constitution of the United States by ¾ of the States;

Whereas August 26, 2020, marks the centennial of the 19th Amendment becoming a part of the Constitution of the United States; and

Whereas the centennial anniversary of the ratification of the 19th Amendment to the Constitution of the United States providing for women's suffrage should be honored and celebrated: Now, therefore, be it

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That Congress—

(1) requests the Secretary of the Interior to authorize a unique and 1-time arrangement to commemorate the centennial of the passage of the 19th Amendment to the Constitution of the United States entitled ''LOOK UP TO HER at Mount Rushmore'' with a display of historical artifacts, digital content, film footage, and associated historical audio and imagery in and around the vicinity of the Mount Rushmore National Memorial, including projected onto the surface of the Mount Rushmore National Memorial to the left and right of the sculpture for 14 nights of public display during the period beginning on August 18, 2020, and ending on September 30, 2020;

(2) encourages the Secretary of the Interior, in planning the event requested to be authorized under paragraph (1), to consult with the Director of the Centers for Disease

Control and Prevention or a designee of the Director of the Centers for Disease Control and Prevention regarding precautions for events and large gatherings to limit the spread of COVID–19, including—

(A) clearly communicating the precautions in place to the public through signage;

(B) facilitating social distancing; and

(C) promoting safe hygiene practices for staff and visitors;

(3) requires the Secretary of the Interior, in carrying out the event requested to be authorized under paragraph (1), to adhere to, to the maximum extent practicable, any precautions recommended in the publication of the Centers for Disease Control and Prevention entitled ''Considerations for Events and Gatherings'' during that event; and

(4) respectfully requests that the Secretary of the Senate transmit an enrolled copy of this resolution to—

(A) the Secretary of the Interior; and

(B) the Lincoln Borglum Museum at the Mount Rushmore National Memorial.

ORDERS FOR MONDAY, AUGUST 10, 2020

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 3 p.m., Monday, August 10; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; finally, that following leader remarks, the Senate be in a period of morning business with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 3 P.M. ON MONDAY, AUGUST 10, 2020

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:01 p.m., adjourned until Monday, August 10, 2020, at 3 p.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF DEFENSE

JONATHAN MOAK, OF VIRGINIA, TO BE AN ASSISTANT SECRETARY OF THE ARMY, VICE JOHN E. WHITLEY.

SECURITIES INVESTOR PROTECTION CORPORATION

MICHAEL J. FINKEL, OF NEW JERSEY, TO BE A DIRECTOR OF THE SECURITIES INVESTOR PROTECTION CORPORATION FOR A TERM EXPIRING DECEMBER 31, 2022, VICE GREGORY KARAWAN, TERM EXPIRED.

TENNESSEE VALLEY AUTHORITY

CHARLES W. COOK, JR., OF MISSISSIPPI, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE TENNESSEE VALLEY AUTHORITY FOR A TERM EXPIRING MAY 18, 2025, VICE RICHARD CAPEL HOWORTH, TERM EXPIRED.

IN THE SPACE FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES SPACE FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be general

LT. GEN. DAVID D. THOMPSON

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE PERMANENT GRADE INDICATED IN THE UNITED STATES SPACE FORCE UNDER TITLE 10, U.S.C., SECTION 716:

To be major general

LT. GEN. DAVID D. THOMPSON

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE UNITED STATES AIR FORCE AND AS AN APPELLATE MILITARY JUDGE ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW. IN ACCORDANCE WITH THEIR CONTINUED STATUS AS AN APPELLATE MILITARY JUDGE PURSUANT TO THEIR ASSIGNMENT BY THE SECRETARY OF DEFENSE UNDER TITLE 10, U.S.C., 950F(B)(2), WHILE SERVING ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW, ALL UNLAWFUL INFLUENCE PROHIBITIONS REMAIN UNDER 10, U.S.C., 949B(B).

To be colonel

JAMES E. KEY III

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE UNITED STATES ARMY AND AS AN APPELLATE MILITARY JUDGE ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW. IN ACCORDANCE WITH THEIR CONTINUED STATUS AS AN APPELLATE MILITARY JUDGE PURSUANT TO THEIR ASSIGNMENT BY THE SECRETARY OF DEFENSE UNDER TITLE 10, U.S.C., 950F(B)(2), WHILE SERVING ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW, ALL UNLAWFUL INFLUENCE PROHIBITIONS REMAIN UNDER 10, U.S.C., 949B(B).

To be colonel

LUIS O. RODRIGUEZ

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE REGULAR ARMY UNDER TITLE 10, U.S.C., SECTION 531:

To be major

KYLE C. FURFARI

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

BRIAN F. O'BANNON

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE REGULAR NAVY UNDER TITLE 10, U.S.C., SECTIONS 531 AND 8132:

To be lieutenant commander

INARAQUEL MIRANDAVARGAS

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES MARINE CORPS UNDER TITLE 10, U.S.C., SECTION 624:

To be major

ANTHONY J. BERTOGLIO

IN THE SPACE FORCE

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE GRADES INDICATED IN THE REGULAR SPACE FORCE UNDER TITLE 10, U.S.C., SECTIONS 531 AND 716:

To be lieutenant colonel

DAVID L. RANSOM

To be major

JONATHAN W. BAUSER
JUSTIN BLANKS
TROY N. DULANEY
JAMES C. KUNDERT

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE GRADES INDICATED IN THE REGULAR SPACE FORCE UNDER TITLE 10, U.S.C., SECTIONS 531 AND 716:

To be colonel

DAVID R. ANDERSON
CASEY M. BEARD
CARY M. BELMEAR
TODD J. BENSON
TIMOTHY J. BOS
RICHARD L. BOURQUIN
BRADLEY M. BREWINGTON
MARC A. BROCK
SCOTT D. BRODEUR
KELLY D. BURT
DENNIS O. BYTHEWOOD
MATTHEW S. CANTORE
THOMAS R. COLVIN
MIGUEL A. CRUZ
MONIQUE C. DELAUTER
ERIC S. DORMINEY
DOUGLAS M. DRAKE
JEAN K. EISENHUT
THOMAS J. ELLER
CHRISTOPHER A. FERNENGEL
PETER J. FLORES
NIKKI R. FRANKINO
DAVID M. FRANKLIN
PAUL B. FREEMAN
JACK D. FULMER II
CHARLES S. GALBREATH
ELVERT L. GARDNER
JEFFREY H. GREENWOOD
DAVID G. HANSON
MARK A. HAUSER
GLENN E. HILLIS II
JEFFREY A. HOKETT
MERNA H. H. HSU
ROBERT J. HUTT
NATHAN L. IVEN
MARCUS D. JACKSON
MAFWA M. KUVIBIDILA
MAX E. LANTZ II
NIKI J. LINDHORST
PATRICK V. LONG
ROBERT A. LONG
ANTHONY J. MASTALIR
HEATHER L. MCGEE
JACOB MIDDLETON, JR
TODD R. MOORE
MATTHEW A. MORAND
BENJAMIN C. OAKES
DEVIN R. PEPPER
STUART A. PETTIS
KYLE J. PUMROY
CHRISTOPHER S. PUTMAN
BOB A. REEVES
JENNIFER K. REEVES
ROBERT B. RIEGEL
RAMIRO RIOJAS
JASON N. SCHRAMM
ROBERT J. SCHREINER
JAMES E. SMITH
JASON L. TERRY
JOHN G. THIEN
MICHAEL C. TODD
PAUL A. TOMBARGE
STEPHON J. TONKO
RAYMUNDO O. TULIER
PHILLIP A. VERROCO
WILLIAM E. WADE, JR
LAUREL V. WALSH
MIA L. WALSH
BRANDE H. WALTON
PATRICK G. YOUNGSON
ANTHONY J. ZILINSKY III
STEVEN M. ZOLLARS

To be lieutenant colonel

CHRISTOPHER M. ABBOTT
JASON M. ADAMS
RAJ AGRAWAL
PETER A. AGUIRRE, JR
BRANDON P. ALFORD
KEVIN G. AMSDEN
BENJAMIN M. ANDERA
KELLY S. ANDERSON
JEREMY ANKRUM
MANUEL J. AYALA
ADAM B. BANDUCCI
RICHARD T. BARKER
HERBERT S. BEAUMONT
MATHEW J. BECK
SUSAN M. BEDELL
JENNIFER B. BEISEL
MATTHEW D. BEJCEK
BRYAN M. BELL
CASIMIRO BENAVIDEZ III
NATHAN T. BERTINO
MATTHEW J. BERTSCH
MARK C. BIGLEY
TIMOTHY R. BLOCKYOU
NIA K. BLUFORD
NATHAN D. BOARDMAN
ERIC D. BOGUE
CARL B. BOTTOLFSON
TARA B. BREWER SHEA
EVAN J. P. BRIGGS
FRANK BROOKS
WILLIAM J. BURICH
DANIEL C. BURTZ
ALAN C. BURWELL
LOUIS C. CAMILLI
BRIAN W. CAPPS
CHRISTOPHER T. CASTLE
AARON W. CELAYA
JOSEPH G. CLEMMER
AARON L. COCHRAN
DANIEL J. COE
DANIEL R. COLEMAN
MATTHEW D. COLLINS
CHARLES J. COOPER
ALEXANDER A. COURTNEY III
STEPHAN E. CUMMINGS
JAMES R. CURRAN
GERRIT H. DALMAN
SEPTEMBER S. DASILVA
JOEL T. DAVEE
BRANDON L. DAVENPORT
BRIAN A. DEA
ERIC C. DOCTOR
MICAH N. DODDS
ERIN M. DUNAGAN
RYAN T. DURAND
BRYAN J. DUTCHER
BRIAN D. ENO
GUY H. EPPS
JOSHUA L. FAILING
JOHN A. FERKO
ANGELO T. FERNANDEZ
JUSTIN C. FERNANDEZ
HANIF S. FLOOD
ERICK G. FONSECA
ETAN FUNCHES
MICHAEL S. FURNESS
DAVID E. GALLAGHER

PATRICK J. GAYNOR
ALISON R. GONZALEZ
MICHAEL E. GRAFF
CHAD R. GRONDAHL
SHAEN GUTZMAN
DOUGLAS R. HALE
MICHAEL L. HALL
CHARLES R. HANCOX
MATTHEW L. HANE
GUNNAR J. HANKINS
ALBERT C. HARRIS
JAMES HASKINS
WILLIAM J. HASSEY
BRIAN J. HAUG
BRENDON D. HERBECK
HENRY G. HEREN IV
CHRISTOPHER R. HILL
BLAKE R. HOAGLAND
STEPHEN A. HOBBS
JUSTIN A. HODGE
JENNIFER E. HODGES
DAVID B. HODGSON
CHARLES M. HOLLAND
KENNETH W. HOLMES
AUDREY L. HOPPE
RAMSEY M. HORN
ADAM P. HOWLAND
ODARO J. HUCKSTEP
TANYA A. HURWITZ
KRISTIN A. HUSSEY
SEAN C. IANACONE
DAVID S. ILLSLEY
JOSEPH C. IUNGERMAN
ROBERT T. JERTBERG
INGRID C. KAAT
BENJAMIN J. KEARNEY
BRIANNA L. KEEN
TRAVIS C. KENNEBECK
BARBARA A. KING
JANELLE L. KOCH
JOHN M. KOEHLER II
DENNIS J. KRILL, JR
MICHAEL G. KRUK
JOSHUA G. LANE
JOHN D. LANGSHAW
ARMON E. LANSING, JR
PAUL J. LAWSON
SHAWN P. LEE
MATTHEW J. LIEBER
MATTHEW LINTKER
JUSTIN D. LITTIG
MATTHEW L. LOHMEIER
BRIAN D. LUKOWSKI
AARON D. LYNCH
STEPHEN G. LYON
BOHDAN MALETZ
MICHAEL C. MARINER
NICHOLAS H. MARTIN
ARLEY V. MARX
ETHAN W. MATTOX
ALFRED T. MAYNARD
JASON M. MCCANDLESS
ROBERT C. MCCONNELL
JONISA MCGLOWN
WADE H. MCGREW
CHRISTOPHER W. MCLEOD
NEIL A. MENZIE
SUSANNAH B. MEYERS
DANIEL T. MODROW
BRIAN J. MORRISON
SEAN M. MULLIGAN
SCOTT D. MUNN
EAMON R. MURRAY
DARRELL A. MYERS
JOEL J. NEUBER
PHILIP A. NIGHTINGALE
PETER C. NORSKY
DAMIAN X. OCHS
THOMAS P. OHARA
GALEN K. OJALA
SAMUEL R. OPPELAAR III
MICHAEL G. ORENCHICK
JOHN H. PAEK
AANAN N. PATEL
ANDREW S. PETERSON
NICOLE M. PETRUCCI
SHAUN D. PHIPPS
JUSTIN W. PICCHI
FORREST L. POOLE
ROBERT A. PORTER
JASON F. POWELL
WALTER H. PRIEBE III
JUSTIN B. RAMSEY
JESSICA Y. RAPER
SHAHN S. RASHID
CHRISTOPHER S. RITTER
JAMES E. ROBERTS
PALMER L. ROBERTS
ANIBAL J. RODRIGUEZ
RAYMOND M. RUSCOE
JEFFREY L. RUTHERFORD
NICHOLAS B. SANDERS
WILLIAM D. SANDERS
CHARLES S. SANDUSKY
KARA L. SARTORI
ERNEST R. SCHMITT
MICHAEL K. SCHRIEVER
DANIEL C. SEBECK
TIMOTHY C. SHEEHAN
ROBERT E. SHRADER
ROBERT F. SHUMAKER
BRYONY L. SLAUGHTER
JON P. SLAUGHTER
JARED J. SMITH
JONATHAN Z. SMITH
NICHOLAS C. SMITH
RACHEL K. SMITH
ERIC B. SNYDER
JOSEPH E. SOLANO
NICHOLAS M. SOMERMAN
JUSTIN E. SORICE
JARED J. SPEER
KRISTA N. ST ROMAIN
MEGAN A. STANDIFER
MARCUS U. STEVENSON
MICHAEL H. STOBIE
THOMAS A. STRATTON
ANTHONY A. SURMAN
JUSTIN L. SUTHERLAND
ERIC J. TALCOTT
JOAN E. THOMPSON
MATTHEW S. THOMPSON
BRADLEY T. THRUSH
DAVID W. TIPTON
JOSEPH C. TOBIN
SACHA N. TOMLINSON
STEPHEN A. TOTH
COREY L. TRUSTY
GREGORY A. VICE
DAVID L. WASHER
JEFFREY E. WEISLER
JOSHUA T. WERNER
TYLER T. WESTERBERG
JONATHAN L. WHITAKER
PAUL H. WHITMORE
DAVID C. WILSON
DARIUSZ WUDARZEWSKI
MATTHEW L. YOUNG
CARRIE A. ZEDERKOF
JONATHAN L. ZENTNER
DAVID C. ZESINGER

To be major

BENNIE E. ABBOTT
ISRAEL ABENSUR
MATTHEW G. ADAMS
EARL R. ALEJANDRO
GREGORY L. ALLEN
SEAN P. ALLEN
JOSE L. ALMANZAR
DAVID C. ANDERSON
GEORGE E. ANDERSON
JON R. ANDERSON
SPENCER R. ANDERSON
TIMOTHY S. ANDERSON
KEVIN M. ANESHANSLEY
JONATHAN R. AREHART
PAUL A. ARNER
PHILIP W. BACHMEYER
MARISSA L. BANDUCCI
JAMES P. BANTA
SAMUEL P. BARBARO
SHANNON M. BARBARO
MICHAEL J. BARLOW
MICHAEL D. BEAVER
BRYAN G. BECKER
CAMERON S. BECKETT
BRADY L. BEHRENDT
MITCHELL L. BELGER
ROBERT L. BENT
BRIAN T. BERRY
DAVID G. BESZEDITZ
MELISSA BIERMA
DAVID C. BILLS
ALEXANDER E. BLACKWELL
AARON T. BLORE
NEIL F. BOCKUS
JEFFREY R. BONNER
THERESA M. BOROWIECKI
DANIEL H. BOYD
ROGER K. BROOKS
CHRISTOPHER S. BROWN
JAMIL L. BROWN
JASON T. BROWN
JEFFERY L. BROWN, JR
JONATHAN C. BRYDIE
JASON W. BULLOCK
DANIEL BUNDY
BRENT W. BURGE
NATHANIEL D. BURK
JOHN S. BURTON
JOHN M. BUSICK
CHRISTOPHER L. BUTLER
CHARDAY S. CAMINERO
ALEXANDRA L. CARICO
JOSHUA J. CARLSON
MARION M. CARTER
CESAR O. CARVAJAL
JASON J. CASEY
DYLAN L. CAUDILL
CHRISTOPHER P. CERULLO
JACQUELINE A. CERULLO
JONATHAN A. CESER
JOEL N. CHALMERS
EDMOND R. CHAN
EDWARD G. CHANDLER
JOSE A. CHAPARRO
ANDREW P. CHEMA
CRAIG P. CHEREK
ALEXANDER E. CHUNG
MARK M. CIESEL
JORDAN C. CLAUS
KATHRYN M. CONGDON
LIAM D. CONLEY
ELLIE J. CONSTANTINE BARREDO
CHARLES D. COOK
ROBERT H. COPLEY
GREG A. CORDOVA
JASON K. COX
SCOTT J. COX
MARK A. CRIMM
KERRY W. CROSSLEY
CAMERON R. CUNNINGHAM
AARON C. DALBEY
ARYAN L. DALE
GARY L. DAVENPORT
RONALD C. DAVIES
AMBER M. DAWSON
JUSTIN M. DAWSON
CASSANDRA E. DEVOLITES
JESSE O. DIAZ
CAITLIN B. DIFFLEY
LUKE N. DINH
LEILANI V. DISTASO
JESSE G. DOLL
ZACHARY M. DOLLEY
MATTHEW K. DOUGLAS
EMERSON L. DRAIN
ROBERT F. DUFRANE
SALLIE L. DUNCAN
TAYLOR L. DUNCAN
BARBARA A. DYER
ZACHARY R. EAGLE
ADAM K. EASLEY
ABIGAIL E. ELLIOTT
KAORU ELLIOTT
CLINTON J. EMRY
LAURA E. ENGLAND
TYLER E. ESKE
JOSEPH R. ESPLIN
CHRISTOPHER J. EWALD
RICHARD K. FANCHER
JENIFER FARKAS
JOSHUA M. FAUSTMAN
WILLIAM M. FERGUSON
CHRISTOPHER Y. FERRER
JUSTIN C. FISK
ADAM C. FIX
APRIL FOLEY
ALLAN G. FONSECA
RYAN J. FOSTER
NEIL M. FOURNIE
JAMES D. FRANCIERE
DAVID J. FRANDER
JAIME E. GARCIA
RANDALL J. GARDNER
MOSES K. GEORGE
JESSICA R. GETROST
ADAM S. GILMORE
THEODORE A. GIVLER
NATHAN D. GLANDON
RYAN O. GLASGOW
DARRELL P. GLOVER
JAMES M. GODFREY
DANIEL J. GOMEZ
FRANCISCO J. GONZALEZ
VALENCIA S. GORE
KAINOA A. GRAGER
BRANDON GRAY
SHAWN M. GREEN
LINEA M. GREENER
VERNON E. GRIER
RYAN T. GRIGGS
RICHARD C. GRIMBERG, JR
KENNETH P. GROSSELIN
ALLISON J. HAAS
JEREMY J. HANCOCK
DAVID M. HARRIS
DALE W. HATLEY
ALEXANDER HAU
DEREK W. HAUN
KATHERINE C. HEBNER
MICHELLE C. HERNANDEZ
BENJAMIN C. HERRING
ANDREW M. HICKS
CHRISTOPHER M. HIGGINS
AARON R. HINES
MICHAEL J. HOGGARD
JOHN J. HOLLYFIELD
JASON D. HOPE
BRUCE A. HRABAK
ANN L. HUGHES
DAVID C. HUNT
PAUL E. HYDE
TROY B. JACKSON
JARED JACOBS
BRANDEN P. JARMON
DANIEL JENSON
ADAM P. JODICE
LAUREL A. JODICE
KYLE B. JOHNSON
JUSTIN H. JONES
JASON B. JUDGE
ROBERT A. KAEGY
BRETT T. KASISCHKE
PAUL M. KEDDELL II
KYLE P. KEITH
CHRISTOPHER J. KELLER
JENNIFER J. KIEBACH
JOSEPH R. KILIAN
DAVID S. KIM
MATTHEW D. KNEPPER
BARRY E. KNOBLOCK
JEFFREY D. KOCH
MARC G. KORDELL
JEREMY D. KOTSENBURG
JASON O. LABOY
BRIAN A. LADD
DEANE L. LAKE
CHRISTOPHER M. LAMB
PAUL G. LAND
SUZANNE A. LANG
ADRIAN V. LAW
ANDREW B. LAYMAN
KEVON P. LAZARE
ROBERT J. LERNER
BRANDON A. LEVESQUE
LAURA L. LIGHT
DARIN J. LISTER
MARK E. LONG

MATTHEW J. LORD
STEPHEN G. LORENZ
MARCUS A. LOSINSKI
GREGORY T. LOTZ
JUSTIN D. LUGO
NICHOLAS A. LUINA
JACOB M. LYNES
ASHLEY N. MAHER
URI Y. MANDELBAUM
AMANDA L. MANSHIP
MATTHEW C. MANSHIP
KEITH C. MARSHALL
VINCENT E. MARSHALL
IRAKLI MATCHAVARIANI
SEAN M. MCCLAIN
MICHAEL E. MCCORMICK
JOSHUA M. MCCULLION
JOHN R. MCDONALD
WILLIAM C. MCGILLIVRAY
RYAN P. MCGINNIS
COLLIN M. MCSORLEY
RANDALL G. MERCER
STEVEN R. MERCER
COLIN M. MERRIN
WALTER W. MILLER II
COLIN D. MIMS
SHEENA H. MIRA
DAVID R. MISHKIN
STEPHANIE N. MITCHELL
ISAIAH L. MONTEMAYOR
ADAM C. MOODY
DANIEL MOOMEY
BRIAN P. MOORE
PHILLIP C. MUDAKHA
JORDAN O. MUGG
JAMES M. MUNROE
SCOTT Y. NAKATANI
ANDREW J. NASH
JOHN J. NERWINSKI
KELSON V. NISBETT
DUSTIN J.F. ODONNELL
TYLER D. PAFFETT
JOHANN A. PAMBIANCHI
JASON M. PANZARELLO
RAYMOND M. PARNTHER, JR
CHRISTINE T. PASUN
MARCIANNA J. PEASE
RYAN J. PENNINGTON
CHLOE A. PEREZ
DONALD T. PERROTTA
BRIAN A. PETERSON
JASON G. PETTI
JOSEPH M. PICARIELLO
CAMERON J. PITOU
DARIO A. PLAZAS
JOSHUA R. POLK
JESSICA M. PRATT
IAN C. PRECOURT
CHAD E. PRESTON
JOSHUA R. PRINT
DANIEL J. PUHEK
JEAN A. PURGASON
JOHN K. QUACH
MARIA E. QUINN
DAVID J. RAHL
EDWARD F. G. RAMIREZ
JULIE N. RAY
WILLIAM C. RAY
RICHARD B. REHS
JOSHUA M. RICHMEIER
ZACHARY J. RITTER
JEFFREY S. RIVENBARK
JUSTIN W. ROBERTS
PAUL E. ROGERS
JUSTIN A. ROQUE
JASON R. ROTGE
DANIEL M. RUBALCABA
JACOB E. RUNDELL
DOUGLAS B. RUYLE
DANIELLE D. RYAN
ERIN E. G. SALINAS
BRYAN R. SANCHEZ
MICHAEL J. SANDERS
LUIS O. SANTIAGO
MICHAELA A. SCHANNEP
DANIEL SCHEMPP
SAMUEL N. SHEPPARD
MICHAEL J. SHERMAN
RYAN W. SKILLING
DANE P. SKOUSEN
MATTHEW J. SLOANE
GARRETT M. SMITH
MICHAEL L. SMITH
ROBERT M. SMITH
RUSSELL C. SMITH
STEWART C. SMITH
BENJAMIN L. SNELL
DUSTIN D. SPAFFORD
LATASHA L. SPEAR
MATTHEW W. SPONSELLER
ARIEL D. STARK
DEBRA E. STARKEY
BRIAN C. STEWART
GREGORY J. STEWART
LEONARD D. STIFFLEMIRE
JONATHAN R. SZUL
BENJAMIN C. SZUTAR
EDWARD A. TABBUTT
CHRISTOPHER S. TAYLOR
LAUREN A. TAYLOR
BRADLEY D. TEMPIA
DONALD J. THOMAS
CHASE W. THORNTON
MARSHALL L. TILLIS
JUSTIN T. TONEY
CHRISTOPHER Y. TOVAR
MICHAEL A. TRETT
TRAVIS B. TUBBS
BRETT A. TUNING
BRADY A. URBANOVSKY
JOSHUA M. VACCARO
MATTHEW VALLERAND
AJVISH VARATHARAJ
FRANCISCO VAZQUEZ
JAYSUE J. VEATCH
ALBERTO VELEZ
SCOTT P. VOTH
ERIC K. WAGNER
GEOFFREY H. WALKER
ERIK L. WALLACE
AARON M. WARREN
WILLIAM L. WESTCOTT, JR
MATTHEW D. WHITAKER
LUCIA R. WHITE
CHRISTOPHER M. WILINSKI
BRYAN L. WILLIAMS
JOSEPH L. WILLIAMS
TIMOTHY S. WILSON
BRET N. WITHAM
MARQUIS A. WOFFORD
SHAWN WOODALL, JR
DEREK WOUDEN
ROBERT O. WRAY
SCOTT M. WRIGHT
BRIAN K. YOAKAM
STEPHEN P. ZIEGENFUSS
DEVIN L. ZUFELT

FOREIGN SERVICE

THE FOLLOWING–NAMED MEMBER OF THE FOREIGN SERVICE TO BE A CONSULAR OFFICER IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

LEANDRO RIZZUTO, OF NEW JERSEY

THE FOLLOWING–NAMED MEMBERS OF THE FOREIGN SERVICE OF THE DEPARTMENT OF STATE TO BE A FOREIGN SERVICE OFFICER, A CONSULAR OFFICER, AND A SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

BERGEN NICHOLE BASSETT, OF VIRGINIA
DILLON M. CLANCY, OF FLORIDA
DAVID J. MCCRANE, OF FLORIDA

THE FOLLOWING–NAMED CAREER MEMBERS OF THE FOREIGN SERVICE FOR PROMOTION INTO THE SENIOR FOREIGN SERVICE, CLASS OF COUNSELOR:

MATTHEW VICTOR CASSETTA, OF VIRGINIA
DAVID C. MCFARLAND, OF THE DISTRICT OF COLUMBIA
JAMES PATRICK MERZ, OF VIRGINIA
TIMOTHY L. SMITH, OF TEXAS

THE FOLLOWING–NAMED CAREER MEMBER OF THE FOREIGN SERVICE FOR PROMOTION INTO THE SENIOR FOREIGN SERVICE, AS A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF COUNSELOR, AND A CONSULAR OFFICER AND A SECRETARY IN THE DIPLOMATIC SERVICE OF THE UNITED STATES OF AMERICA:

MARK A. SULLO, OF VIRGINIA

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE UNITED STATES NAVY AND AS AN APPELLATE MILITARY JUDGE ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW. IN ACCORDANCE WITH THEIR CONTINUED STATUS AS AN APPELLATE MILITARY JUDGE PURSUANT TO THEIR ASSIGNMENT BY THE SECRETARY OF DEFENSE UNDER TITLE 10, U.S.C., SECTION 950F(B)(2), WHILE SERVING ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW, ALL UNLAWFUL INFLUENCE PROHIBITIONS REMAIN UNDER TITLE 10, U.S.C., SECTION 949B(B).

To be captain

DONALD KING

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE UNITED STATES MARINE CORPS AND AS AN APPELLATE MILITARY JUDGE ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW. IN ACCORDANCE WITH THEIR CONTINUED STATUS AS AN APPELLATE MILITARY JUDGE PURSUANT TO THEIR ASSIGNMENT BY THE SECRETARY OF DEFENSE UNDER TITLE 10, U.S.C., SECTION 950F(B)(2), WHILE SERVING ON THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW, ALL UNLAWFUL INFLUENCE PROHIBITIONS REMAIN UNDER TITLE 10, U.S.C., SECTION 949B(B).

To be lieutenant colonel

JOHN STEPHENS

CONFIRMATIONS

Executive nominations confirmed by the Senate August 6, 2020:

DEPARTMENT OF STATE

SUNG Y. KIM, OF CALIFORNIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF CAREER MINISTER, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF INDONESIA.

THE JUDICIARY

JOHN PETER CRONAN, OF NEW YORK, TO BE UNITED STATES DISTRICT JUDGE FOR THE SOUTHERN DISTRICT OF NEW YORK.

DEPARTMENT OF STATE

NATALIE E. BROWN, OF NEBRASKA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF UGANDA.

SANDRA E. CLARK, OF MARYLAND, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO BURKINA FASO.

JOSEPH MANSO, OF NEW YORK, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, FOR THE RANK OF AMBASSADOR DURING HIS TENURE OF SERVICE AS UNITED STATES REPRESENTATIVE TO THE ORGANIZATION FOR THE PROHIBITION OF CHEMICAL WEAPONS.

HENRY T. WOOSTER, OF VIRGINIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE HASHEMITE KINGDOM OF JORDAN.

ASIAN DEVELOPMENT BANK

JASON MYUNG–LK CHUNG, OF VIRGINIA, TO BE UNITED STATES DIRECTOR OF THE ASIAN DEVELOPMENT BANK, WITH THE RANK OF AMBASSADOR.

DEPARTMENT OF STATE

RICHARD M. MILLS, JR., OF TEXAS, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE THE DEPUTY REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE UNITED NATIONS, WITH THE RANK AND STATUS OF AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY AND THE DEPUTY REPRESENTATIVE OF THE UNITED STATES OF AMERICA IN THE SECURITY COUNCIL OF THE UNITED NATIONS.

WILLIAM ELLISON GRAYSON, OF CALIFORNIA, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF ESTONIA.

WILLIAM W. POPP, OF MISSOURI, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF GUATEMALA.

EUROPEAN BANK FOR RECONSTRUCTION AND DEVELOPMENT

J. STEVEN DOWD, OF FLORIDA, TO BE UNITED STATES DIRECTOR OF THE EUROPEAN BANK FOR RECONSTRUCTION AND DEVELOPMENT.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

RAMSEY COATS DAY, OF VIRGINIA, TO BE AN ASSISTANT ADMINISTRATOR OF THE UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT.

DEPARTMENT OF STATE

RICHARD M. MILLS, JR., OF TEXAS, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE SESSIONS OF THE GENERAL ASSEMBLY OF THE UNITED NATIONS, DURING HIS TENURE OF SERVICE AS DEPUTY REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE UNITED NATIONS.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

JENNY A. MCGEE, OF TEXAS, TO BE AN ASSOCIATE ADMINISTRATOR OF THE UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT.

OFFICE OF THE DIRECTOR OF NATIONAL INTELLIGENCE

CHRISTOPHER C. MILLER, OF VIRGINIA, TO BE DIRECTOR OF THE NATIONAL COUNTERTERRORISM CENTER, OFFICE OF THE DIRECTOR OF NATIONAL INTELLIGENCE.

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES MARINE CORPS UNDER TITLE 10, U.S.C., SECTION 624:

To be brigadier general

COL. JASON G. WOODWORTH

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be general

LT. GEN. JAMES H. DICKINSON

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be general

LT. GEN. GLEN D. VANHERCK

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

LT. GEN. RICHARD M. CLARK

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. SAM C. BARRETT

SPACE FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE PERMANENT GRADE INDICATED IN THE UNITED STATES SPACE FORCE UNDER TITLE 10, U.S.C., SECTION 716:

To be major general

MAJ. GEN. NINA M. ARMAGNO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE PERMANENT GRADE INDICATED IN THE UNITED STATES SPACE FORCE UNDER TITLE 10, U.S.C., SECTION 716:

To be major general

MAJ. GEN. WILLIAM J. LIQUORI, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE PERMANENT GRADE INDICATED IN THE UNITED STATES SPACE FORCE UNDER TITLE 10, U.S.C., SECTION 716:

To be major general

MAJ. GEN. BRADLEY C. SALTZMAN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE PERMANENT GRADE INDICATED IN THE UNITED STATES SPACE FORCE UNDER TITLE 10, U.S.C., SECTION 716:

To be major general

MAJ. GEN. STEPHEN N. WHITING

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES SPACE FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. NINA M. ARMAGNO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES SPACE FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. WILLIAM J. LIQUORI, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES SPACE FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. BRADLEY C. SALTZMAN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES SPACE FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. STEPHEN N. WHITING

SECURITIES AND EXCHANGE COMMISSION

HESTER MARIA PEIRCE, OF OHIO, TO BE A MEMBER OF THE SECURITIES AND EXCHANGE COMMISSION FOR A TERM EXPIRING JUNE 5, 2025.

CAROLINE A. CRENSHAW, OF THE DISTRICT OF COLUMBIA, TO BE A MEMBER OF THE SECURITIES AND EXCHANGE COMMISSION FOR A TERM EXPIRING JUNE 5, 2024.

IN THE AIR FORCE

AIR FORCE NOMINATIONS BEGINNING WITH VINCENT W. ABRUZZESE AND ENDING WITH MONICA SARAI ZAPATER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MAY 4, 2020.

AIR FORCE NOMINATION OF PETER B. FRENCH, TO BE COLONEL.

AIR FORCE NOMINATION OF LAURA A. KING, TO BE COLONEL.

AIR FORCE NOMINATION OF ISMAEL H. SOTO RIVAS, TO BE LIEUTENANT COLONEL.

IN THE ARMY

ARMY NOMINATION OF BENJAMIN J. POWELL, TO BE MAJOR.

ARMY NOMINATION OF ALFREDO CARINORIVERA, TO BE MAJOR.

ARMY NOMINATION OF ALEXANDER V. HARLAMOR, TO BE COLONEL.

ARMY NOMINATION OF KEITH A. MCGEE, TO BE COLONEL.

ARMY NOMINATION OF LEROY CARR III, TO BE COLONEL.

ARMY NOMINATION OF CHERRYANN M. JOSEPH, TO BE COLONEL.

ARMY NOMINATION OF WILLIAM H. PUTNAM, TO BE COLONEL.

ARMY NOMINATION OF DANA M. MURPHY, TO BE MAJOR.

IN THE COAST GUARD

COAST GUARD NOMINATION OF PETER H. IMBRIALE, TO BE LIEUTENANT.

COAST GUARD NOMINATIONS BEGINNING WITH NICHOLAS C. CUSTER AND ENDING WITH NICOLE L. BLANCHARD, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 17, 2020.

FOREIGN SERVICE

FOREIGN SERVICE NOMINATIONS BEGINNING WITH SHEFALI AGRAWAL AND ENDING WITH MICHAEL B. SCHOOLING, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

FOREIGN SERVICE NOMINATIONS BEGINNING WITH ANNA MAE G. AKERS AND ENDING WITH ISMAT MOHAMMAD G. OMAR YASSIN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

FOREIGN SERVICE NOMINATIONS BEGINNING WITH JONATHAN PAUL ACKLEY AND ENDING WITH AMANDA B. WHATLEY, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

FOREIGN SERVICE NOMINATIONS BEGINNING WITH JEFFREY THOMAS ALBANESE AND ENDING WITH KATHERINE ROSE WOODY, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

FOREIGN SERVICE NOMINATIONS BEGINNING WITH ERIN ELIZABETH MCKEE AND ENDING WITH DANA ROGSTAD MANSURI, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

FOREIGN SERVICE NOMINATIONS BEGINNING WITH LAWRENCE J. SACKS AND ENDING WITH BRUCE F. MCFARLAND, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

FOREIGN SERVICE NOMINATIONS BEGINNING WITH DEANNA SCOTT AND ENDING WITH CHRISTOPHER WALKER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 29, 2020.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S5229–S5358

Measures Introduced: Fifty-six bills and eleven resolutions were introduced, as follows: S. 4462–4517, and S. Res. 668–678. **Pages S5269–71**

Measures Reported:

S. 3681, to require a joint task force on the operation of air travel during and after COVID–19 pandemic, with an amendment in the nature of a substitute. (S. Rept. No. 116–246)

H.R. 835, to impose criminal sanctions on certain persons involved in international doping fraud conspiracies, to provide restitution for victims of such conspiracies, and to require sharing of information with the United States Anti-Doping Agency to assist its fight against doping. (S. Rept. No. 116–247)

H.R. 3153, to direct the Director of the National Science Foundation to support research on opioid addiction, with an amendment in the nature of a substitute. (S. Rept. No. 116–248)

S. 3455, to prohibit certain individuals from downloading or using TikTok on any device issued by the United States or a government corporation, with an amendment in the nature of a substitute. **Page S5269**

Measures Passed:

No TikTok on Government Devices Act: Senate passed S. 3455, to prohibit certain individuals from downloading or using TikTok on any device issued by the United States or a government corporation, after agreeing to the committee amendment in the nature of a substitute. **Pages S5236–37**

Federal Law Enforcement Training Center: Senate agreed to S. Res. 668, commemorating the Federal Law Enforcement Training Center's 50th Anniversary. **Pages S5239–40**

Production of Records: Senate agreed to S. Res. 676, to authorize the production of records by the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs. **Page S5345**

National Airborne Day: Senate agreed to S. Res. 677, designating August 16, 2020, as "National Airborne Day". **Page S5345**

National Child Awareness Month: Senate agreed to S. Res. 678, designating September 2020 as "National Child Awareness Month" to promote awareness of charities that benefit children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States. **Pages S5345–46**

School Bus Safety Month: Committee on the Judiciary was discharged from further consideration of S. Res. 659, designating September 2020 as "School Bus Safety Month", and the resolution was then agreed to, after agreeing to the following amendment proposed thereto: **Page S5346**

McConnell (for Fischer) Amendment No. 2636, to amend the preamble. **Page S5346**

Reinvigorating Lending for the Future Act: Committee on Environment and Public Works was discharged from further consideration of S. 4075, to amend the Public Works and Economic Development Act of 1965 to provide for the release of certain Federal interests in connection with certain grants under that Act, and the bill was then passed. **Page S5346**

Promoting Alzheimer's Awareness to Prevent Elder Abuse Act: Committee on the Judiciary was discharged from further consideration of S. 3703, to amend the Elder Abuse Prevention and Prosecution Act to improve the prevention of elder abuse and exploitation of individuals with Alzheimer's disease and related dementias, and the bill was then passed. **Pages S5346–47**

Honoring Louis Lorenzo Redding: Committee on the Judiciary was discharged from further consideration of S. Con. Res. 37, honoring the life and work of Louis Lorenzo Redding, whose lifelong dedication to civil rights and service stand as an example of leadership for all people, and the resolution was then agreed to, after agreeing to the following amendment proposed thereto: **Pages S5347–48**

McConnell (for Coons) Amendment No. 2638, to amend the preamble. **Pages S5347–48**

PIPES Act: Senate passed S. 2299, to amend title 49, United States Code, to enhance the safety and reliability of pipeline transportation, after withdrawing the committee amendment in the nature of a substitute, and agreeing to the following amendment proposed thereto: **Pages S5348–54**

McConnell (for Wicker) Amendment No. 2642, in the nature of a substitute. **Page S5354**

Mount Rushmore National Memorial: Committee on Energy and Natural Resources was discharged from further consideration of S.J. Res. 74, requesting the Secretary of the Interior to authorize a unique and 1-time arrangement for certain displays on Mount Rushmore National Memorial relating to the centennial of the ratification of the 19th Amendment to the Constitution of the United States during the period beginning August 18, 2020, and ending on September 30, 2020, and the resolution was then passed, after agreeing to the following amendment proposed thereto: **Pages S5354–55**

McConnell (for Thune) Amendment No. 2637, to ensure that the event entitled ''LOOK UP TO HER at Mount Rushmore'' adheres to certain public health precautions. **Page S5354–55**

Nominations Confirmed: Senate confirmed the following nominations:

By 55 yeas to 42 nays (Vote No. EX. 157), John Peter Cronan, of New York, to be United States District Judge for the Southern District of New York. **Pages S5230–36, S5240–41, S5357**

During consideration of this nomination today, Senate also took the following action:

By 55 yeas to 42 nays (Vote No. EX. 156), Senate agreed to the motion to close further debate on the nomination. **Pages S5235–36**

Sung Y. Kim, of California, to be Ambassador to the Republic of Indonesia.

Natalie E. Brown, of Nebraska, to be Ambassador to the Republic of Uganda.

Sandra E. Clark, of Maryland, to be Ambassador to Burkina Faso.

Joseph Manso, of New York, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, for the rank of Ambassador during his tenure of service as United States Representative to the Organization for the Prohibition of Chemical Weapons.

J. Steven Dowd, of Florida, to be United States Director of the European Bank for Reconstruction and Development.

Henry T. Wooster, of Virginia, to be Ambassador to the Hashemite Kingdom of Jordan.

Jason Myung-lk Chung, of Virginia, to be United States Director of the Asian Development Bank, with the rank of Ambassador.

Ramsey Coats Day, of Virginia, to be an Assistant Administrator of the United States Agency for International Development.

Richard M. Mills, Jr., of Texas, to be Representative of the United States of America to the Sessions of the General Assembly of the United Nations, during his tenure of service as Deputy Representative of the United States of America to the United Nations.

Richard M. Mills, Jr., of Texas, to be the Deputy Representative of the United States of America to the United Nations, with the rank and status of Ambassador and the Deputy Representative of the United States of America in the Security Council of the United Nations.

William Ellison Grayson, of California, to be Ambassador to the Republic of Estonia.

Jenny A. McGee, of Texas, to be an Associate Administrator of the United States Agency for International Development.

Christopher C. Miller, of Virginia, to be Director of the National Counterterrorism Center, Office of the Director of National Intelligence.

Hester Maria Peirce, of Ohio, to be a Member of the Securities and Exchange Commission for a term expiring June 5, 2025.

William W. Popp, of Missouri, to be Ambassador to the Republic of Guatemala.

Caroline A. Crenshaw, of the District of Columbia, to be a Member of the Securities and Exchange Commission for a term expiring June 5, 2024.

3 Air Force nominations in the rank of general.

1 Army nomination in the rank of general.

1 Marine Corps nomination in the rank of general.

8 Space Force nominations in the rank of general.

Routine lists in the Air Force, Army, Coast Guard, and Foreign Service. **Pages S5260–62, S5357–58**

Nominations Received: Senate received the following nominations:

Jonathan Moak, of Virginia, to be an Assistant Secretary of the Army.

Michael J. Finkel, of New Jersey, to be a Director of the Securities Investor Protection Corporation for a term expiring December 31, 2022.

Charles W. Cook, Jr., of Mississippi, to be a Member of the Board of Directors of the Tennessee Valley Authority for a term expiring May 18, 2025.

2 Space Force nominations in the rank of general.

Routine lists in the Air Force, Army, Foreign Service, Marine Corps, Navy, and Space Force. **Pages S5355–57**

Measures Placed on the Calendar: **Pages S5230, S5267**

Executive Communications: Pages S5267–69
Additional Cosponsors: Pages S5271–74
Statements on Introduced Bills/Resolutions: Pages S5274–85
Additional Statements: Pages S5264–67
Amendments Submitted: Pages S5290–S5345
Authorities for Committees to Meet: Page S5345

Record Votes: Two record votes were taken today. (Total—157) Pages S5235–36, S5240–41

Adjournment: Senate convened at 9:30 a.m. and adjourned at 6:01 p.m., until 3 p.m. on Monday, August 10, 2020. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S5355.)

Committee Meetings

(Committees not listed did not meet)

NOMINATIONS

Committee on Armed Services: Committee concluded a hearing to examine the nominations of Jason Abend, of Virginia, to be Inspector General, Bradley D. Hansell, of Virginia, to be a Deputy Under Secretary, and Lucas N. Polakowski, of Virginia, and Louis W. Bremer, of Connecticut, both to be an Assistant Secretary, all of the Department of Defense, after the nominees testified and answered questions in their own behalf.

NOMINATIONS

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the nominations of Eric J. Soskin, of Virginia, to be Inspector General, Department of Transportation, who was introduced by Senator Young, Robert E. Primus, of New Jersey, to be a Member of the Surface Transportation Board, and Sarah E. Feinberg, of West Virginia, and Chris Koos, of Illinois, who was introduced by Senator Durbin, both to be a Director of the Amtrak Board of Directors, after the nominees testified and answered questions in their own behalf.

NOMINATIONS

Committee on Foreign Relations: Committee concluded a hearing to examine the nominations of William A. Douglass, of Florida, to be Ambassador to the Commonwealth of The Bahamas, Melanie Harris Higgins, of Georgia, to be Ambassador to the Republic of Burundi, Jeanne Marie Maloney, of Virginia, to be Ambassador to the Kingdom of Eswatini, Michael A. McCarthy, of Virginia, to be Ambassador to the Republic of Liberia, Manisha Singh, of Florida, to be Representative of the United States of America to the Organization for Economic Cooperation and Development, with the rank of Ambassador, and James Broward Story, of South Carolina, to be Ambassador to the Bolivarian Republic of Venezuela, all of the Department of State, after the nominees testified and answered questions in their own behalf.

DHS SECURITY PERSONNEL DEPLOYMENTS TO PROTESTS

Committee on Homeland Security and Governmental Affairs: Committee concluded an oversight hearing to examine Department of Homeland Security personnel deployments to recent protests, after receiving testimony from Chad F. Wolf, Acting Secretary of Homeland Security.

House of Representatives

Chamber Action

The House was not in session today. The House is scheduled to meet at 10 a.m. on Friday, August 7, 2020.

Committee Meetings

CHALLENGES TO SAFELY REOPENING K–12 SCHOOLS

Committee on Oversight and Reform: Select Subcommittee on the Coronavirus Crisis held a hearing entitled ''Challenges to Safely Reopening K–12 Schools''. Testimony was heard from Robert W. Runcie, Superintendent, Broward County Public Schools, Florida; and public witnesses.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D717)*

H.R. 1957, to amend title 54, United States Code, to establish, fund, and provide for the use of

amounts in a National Parks and Public Land Legacy Restoration Fund to address the maintenance backlog of the National Park Service, the United States Fish and Wildlife Service, the Bureau of Land Management, the Forest Service, and the Bureau of Indian Education, and to provide permanent, dedicated funding for the Land and Water Conservation Fund. Signed on August 4, 2020. (Public Law 116–152)

COMMITTEE MEETINGS FOR FRIDAY, AUGUST 7, 2020

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

No hearings are scheduled.

Next Meeting of the **SENATE**

3 p.m., Monday, August 10

Senate Chamber

Program for Monday: Senate will be in a period of morning business.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Friday, August 7

House Chamber

Program for Friday: House will meet in Pro Forma session at 10 a.m.

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